IN THE CONGRESS OF THE UNITED STATES

A BILL

To restore the constitutional balance of power between the Federal Government and the people of the United States by addressing the consolidation of executive authority, the erosion of congressional oversight, the asymmetry of surveillance, intelligence, and coercive capabilities between the government and the governed, and the structural conditions that have rendered the people's capacity to hold their government accountable unequal to the government's capacity to monitor, coerce, and control them; and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE; TABLE OF CONTENTS.

(a) Short Title.—This Act may be cited as the "Mass Accountability in Democracy Act" or the "MAD Act."

(b) Designation.—The designation of this Act reflects the scope and ambition of the legislative response it contains. The word "Mass" refers to the scale of the accountability this Act demands—accountability that is not selective, not incremental, and not limited to a single institution, agency, or domain of governmental power, but comprehensive in scope and binding in application across a range of structural imbalances between the Federal Government and the people it serves. Democratic self-governance, through a constitutional federal republic, cannot be maintained when accountability is optional, episodic, or dependent on the willingness of the powerful to submit to scrutiny. This Act is designed to make accountability structural, systemic, and unavoidable in the domains it covers.

(c) Table of Contents.—The table of contents of this Act is as follows:

Sec. 1. Short title; table of contents.

Sec. 2. Findings and purpose.

TITLE I—SURVEILLANCE PROHIBITION, PRIVACY, AND EXECUTIVE ACCOUNTABILITY

Subtitle A—American Surveillance Prohibition and Privacy Enforcement Act (Secs. 1001–1166)

Subtitle B—Executive Accountability and Judicial Oversight Act (Secs. 1201–1263)

TITLE II—DEMANDING A PLAN FOR AI (Secs. 2001–2023)

TITLE III—INSURRECTION ACT REFORM (Secs. 3001–3006)

TITLE IV—POLITICAL SPENDING DISCLOSURE (Secs. 4001–4022)

TITLE V—MASS DIGITIZATION AND PRESERVATION OF FEDERAL GOVERNMENT RECORDS AND COLLECTIONS (Secs. 5001–5013)

TITLE VI—VOTER CHOICE AND ELECTION MODERNIZATION (Secs. 6001–6010)

Subtitle A—Definitions and Conditional Amendments for Alternative Voting Methods in Federal Elections

Subtitle B—Grants for State and Local Alternative Voting Method Adoption

Subtitle C—General Provisions

TITLE VII—EPSTEIN ACCOUNTABILITY AND PUBLIC DISCLOSURE (Secs. 7001–7025)

TITLE VIII—FEDERAL IMMIGRATION ENFORCEMENT AGENT SAFETY AND ACCOUNTABILITY TRAINING (Secs. 8001–8012)

TITLE IX—ACCOUNTABILITY AND TRANSPARENCY IN POLITICAL VIOLENCE INVESTIGATIONS (Secs. 9001–9010)

SEC. 2. FINDINGS AND PURPOSE.

(a) Findings.—Congress finds the following:

(1) The Constitution of the United States was designed to prevent the accumulation of unchecked power in any single institution. James Madison warned in Federalist No. 47 that "[t]he accumulation of all powers, legislative, executive, and judiciary, in the same hands, whether of one, a few, or many, and whether hereditary, self-appointed, or elective, may justly be pronounced the very definition of tyranny." The structural architecture of the Constitution—separation of powers, checks and balances, enumerated authorities, and reserved rights—reflects the Framers' considered judgment that no government, however well-intentioned at its founding, can be trusted to restrain itself.

(2) Madison further warned, at the Constitutional Convention on June 29, 1787, that "[a] standing military force, with an overgrown Executive will not long be safe companions to liberty. The means of defence agst. foreign danger, have been always the instruments of tyranny at home." Congress finds that this warning has acquired a gravity that Madison could not have foreseen: the instruments of defense against foreign danger now include mass surveillance systems, artificial intelligence, autonomous weapons platforms, and intelligence collection capabilities of a scope and power without precedent in human history—and that these instruments are increasingly turned inward against the people they were built to protect.

(3) Thomas Jefferson observed that "[e]xperience hath shewn, that even under the best forms of government those entrusted with power have, in time, and by slow operations, perverted it into tyranny." Madison, in a speech to the Virginia

Convention in 1788, cautioned that “there are more instances of the abridgement of freedom of the people by gradual and silent encroachments by those in power than by violent and sudden usurpations.” Congress finds that the structural imbalances addressed by this Act are the product of precisely such gradual encroachments—no single statute, executive order, or technological development created them, but their cumulative effect has produced a condition in which the executive branch possesses coercive, surveillance, and information-processing capabilities that dwarf any countervailing power available to the people or to the Congress.

(4) Madison wrote in Federalist No. 51 that “[a] dependence on the people is, no doubt, the primary control on the government; but experience has taught mankind the necessity of auxiliary precautions.” Congress finds that both the primary control and the auxiliary precautions have been degraded. The primary control—popular accountability through elections—has been undermined by dark money, foreign financial influence, and information manipulation. The auxiliary precautions—congressional oversight, judicial review, freedom of the press, and transparency requirements—have been systematically eroded by executive assertions of privilege, the classification system, the weaponization of national security claims, and the sheer scale of executive operations that exceed the institutional capacity of Congress to monitor.

(5) Madison observed in a letter to W.T. Barry on August 4, 1822, that “[a] popular Government without popular information, or the means of acquiring it, is but a Prologue to a Farce or a Tragedy, or perhaps both. Knowledge will forever govern ignorance: And a people who mean to be their own Governors, must arm themselves with the power which knowledge gives.” Congress finds that the information asymmetry between the Federal Government and the American people has reached a scale incompatible with democratic self-governance. The government maintains the capacity to collect, aggregate, and computationally analyze information about virtually every aspect of its citizens’ lives, while the vast majority of the government’s own records—documenting its decisions, operations, and conduct across the full history of the Republic—remain in analog form, inaccessible to the public and to computational analysis.

(6) Congress finds that the executive branch of the United States Government has, over successive decades, accumulated capabilities in surveillance, intelligence collection, data analysis, military force, covert operations, and information control that were neither contemplated by the Framers nor authorized by any single act of Congress—and that the aggregate effect of these capabilities is a structural power asymmetry between the government and the governed that is fundamentally incompatible with the constitutional design. This asymmetry is manifest across multiple dimensions of governmental power, including but not limited to the following:

(A) Commercial data brokers, platform operators, and intelligence contractors have assembled databases covering hundreds of millions of American citizens. Federal agencies have systematically purchased access to these compilations to acquire information they could not constitutionally compel through warrant, subpoena, or other lawful process—a circumvention strategy the Supreme Court's holding in *Carpenter v. United States*, 585 U.S. 296 (2018), establishes is constitutionally impermissible. The government's capacity to monitor the daily lives of its citizens now vastly exceeds the citizens' capacity to monitor the operations of their government.

(B) The executive branch commands standing military forces, federalized law enforcement agencies, and intelligence services whose combined capabilities bear no proportion to any countervailing force available to the civilian population. The Insurrection Act, as currently codified, provides virtually unchecked presidential authority to deploy those forces domestically, with no meaningful time limit, no mandatory congressional consultation, no judicial review, and triggering language so vague that it could be invoked against peaceful protest or political dissent.

(C) The classification system, executive privilege claims, deliberative process privilege, and the operational complexity of modern government render vast categories of executive action invisible to the public and to Congress. Meanwhile, the government's own institutional records—documenting decisions, operations, and conduct across more than two centuries—remain overwhelmingly in analog form, inaccessible to the computational tools that the government itself uses to analyze information about its citizens.

(D) Artificial intelligence systems are advancing at an exponential rate and are being deployed across employment, healthcare, finance, national security, education, law enforcement, and critical infrastructure with transformative but insufficiently understood consequences. No comprehensive federal regulatory framework governs their development or deployment. The government possesses the institutional capacity to develop and deploy AI systems; the public lacks any corresponding capacity to audit, oversee, or constrain those deployments.

(E) Dark money spending in Federal elections has grown from less than $5,000,000 in 2006 to approximately $1,900,000,000 in the 2024 election cycle. The same undisclosed financial networks that shape electoral outcomes also shape the composition of the Federal judiciary, acquiring disproportionate influence across multiple branches of government that operates beyond the reach of public accountability.

(F) When the executive branch is directed by statute to disclose information of compelling public interest, structural incentives render compliance systematically unreliable absent independent oversight. Officials who over-redact, miss statutory deadlines, or assert unauthorized privileges face no personal or institutional consequence. The documented violations of the Epstein Files Transparency Act, Public Law 119–38—enacted with a vote of 427 to 1 in the House and unanimous consent in the Senate—illustrate this structural failure.

(7) Congress finds that its own institutional capacity to serve as an effective check on executive power has been degraded by a combination of structural, political, and informational factors. The legislative branch lacks the technical expertise, staffing, and institutional infrastructure to conduct effective oversight of executive branch activities in domains including artificial intelligence, surveillance technology, and cybersecurity. Congressional oversight committees are routinely denied access to information on the grounds of classification, executive privilege, or ongoing investigation. The pace of technological change and executive action has outstripped the legislative process.

(8) Public trust in Congress is at historic lows. The combination of partisan dysfunction, the influence of undisclosed political spending, and the demonstrable failure of Congress to enact legislation addressing known and documented harms—including harms to children from AI systems, the unregulated growth of mass surveillance, the absence of meaningful data privacy protections, and the militarization of domestic law enforcement—has created a crisis of democratic legitimacy that this Act seeks to address.

(9) The power of the people to hold their government accountable depends upon the availability of information, the transparency of political financing, the integrity of the electoral process, the restraint of coercive force, and the existence of meaningful legal remedies when the government exceeds its authority. Each of these conditions has been degraded. This Act addresses them comprehensively because the degradation is comprehensive, and because the structural imbalance between government and governed cannot be remedied by addressing any single dimension in isolation.

(10) Commercial data brokers have assembled databases of unprecedented scale covering hundreds of millions of Americans without meaningful knowledge or consent. These databases enable inference-based psychological manipulation, operational targeting of individuals based on their locations and routines, and totalizing population-scale surveillance. The documented history of the FBI’s COINTELPRO program—exposed in 1971 and investigated by the Church Committee in 1975 and 1976—demonstrates that domestic intelligence agencies will, absent categorical legal constraints, use surveillance capabilities to target and

suppress constitutionally protected political activity. The Cambridge Analytica operation demonstrated that commercial psychological profiling infrastructure constitutes a direct threat to democratic self-governance. No comprehensive federal privacy statute adequate to address these threats exists.

(11) Artificial intelligence systems are being deployed at scale to, and accessed by, minors without adequate safety standards, clinical validation, or legal oversight, contributing to documented deaths. The International Monetary Fund estimates that approximately 40 percent of all jobs globally are exposed to AI-driven change, with 60 percent exposure in advanced economies. AI-generated child sexual abuse material reports increased by 1,325 percent in a single year. AI-generated synthetic media depicting political candidates has proliferated during Federal election cycles without comprehensive federal regulation. The Federal Government lacks the institutional capacity, comprehensive evidentiary record, and standardized measurement methodologies necessary to prescribe effective, durable, and judicially sustainable AI regulatory standards.

(12) Since the Supreme Court's 2010 decision in *Citizens United v. FEC*, dark money groups have spent at least $4,300,000,000 on Federal elections. Total outside spending on 2024 Federal elections reached a record $4,500,000,000, with more than half coming from groups that do not fully disclose the source of their funding. Shell companies and nonprofits contributed $1,300,000,000 to super PACs during the 2024 election cycle alone—more than in the prior two cycles combined. Well-funded networks of organizations that do not disclose their donors have simultaneously spent hundreds of millions of dollars to influence the nomination and confirmation of Federal judges, creating conditions in which the same anonymous networks shape who holds elected office, who sits on the Federal bench, and what cases and arguments reach those judges. The opacity of these channels creates pathways through which foreign money may enter domestic elections undetected. Transparency in the financing of elections and judicial nominations is a necessary condition for the informed self-governance that each title of this Act seeks to protect.

(13) The Insurrection Act, as currently codified at 10 U.S.C. §§ 251–255, contains triggering language so vague that it could authorize the deployment of combat forces in response to two individuals conspiring to commit a minor federal offense. The Act authorizes the President to respond "by using the militia or the armed forces, or both, or by any other means," a delegation so broad that it could be construed to authorize the deputization of private paramilitary organizations or private military contractors as instruments of federal authority. The Act contains no statutory time limit on deployment, no requirement of congressional consultation or reporting, and no meaningful judicial review. On multiple recent occasions, the Act has been threatened or considered for use against peaceful protest, political dissent,

immigration enforcement operations, and the processes of electoral certification. The Act's broadest provisions were written for conditions that no longer exist—the absence of professional law enforcement, the infancy of federal agencies, and the aftermath of the Civil War.

(14) In August 2025, the Department of Homeland Security cut approximately 240 hours—more than 40 percent—from ICE basic training, eliminating all legal instruction on use of force, reducing firearms instruction by half, and cutting more than 100 hours of hands-on instruction. Simultaneously, ICE expanded from approximately 10,000 to 22,000 officers—an increase of 120 percent—while reducing the training each new officer received. The resulting deployment of undertrained agents into urban civilian environments created foreseeable conditions that contributed to the deaths of American citizens, including the killing of Alex Jeffrey Pretti, age 37, a United States military veteran and intensive care nurse, who was shot ten times in under five seconds by federal agents while directing traffic and assisting a fallen bystander in Minneapolis, Minnesota. European democracies that require two to three years of law enforcement training have police killing rates between 25 and 80 times lower than the United States on a per capita basis. Randomized controlled trials have demonstrated that structured de-escalation training produces significant and measurable reductions in use-of-force incidents, civilian injuries, and officer injuries.

(15) The National Archives and Records Administration holds an estimated 13,500,000,000 pages of textual records, of which fewer than 3.4 percent have been digitized and made available to the public. The Library of Congress holds more than 178,000,000 items, including substantial collections of government documents and congressional records that remain undigitized. Over successive decades, the Federal Government has significantly expanded its capabilities in intelligence collection, surveillance, data analysis, and information processing, while the vast majority of the Government's own institutional records—documenting the decisions, operations, and conduct of Federal agencies across the full history of the Republic—remain inaccessible to the public in analog form. This asymmetry between the Government's growing capacity to collect and analyze information about the citizenry and the citizenry's limited capacity to access and analyze information about its Government undermines the foundational democratic principle that an informed public is the ultimate check on the exercise of governmental power. If the records of the Federal Government remain in analog form while the Government itself deploys advanced computational tools, the benefits of those tools will accrue disproportionately to those with institutional access, and the public's capacity to oversee, audit, and understand the operations of its own Government will continue to erode.

(16) The documented record of executive branch conduct in the investigation and non-prosecution of the Epstein Network—including a federal court's finding that the United States Government violated the Crime Victims' Rights Act by concealing the existence of a non-prosecution agreement from Epstein's victims; the abandonment of a fully prepared 60-count indictment after supervisory intervention; an unexplained eleven-month gap in the responsible U.S. Attorney's incoming emails spanning the critical decision period; the CIA's classified refusal to confirm or deny records of Epstein's own alleged affiliation; a partially disclosed FBI cooperation relationship; and the institutional failures of the Bureau of Prisons preceding Epstein's reported death on August 10, 2019, including the failure of surveillance cameras, the failure of assigned guards, and the falsification of count records—constitutes a pattern across multiple executive branch agencies and multiple administrations that demonstrates the insufficiency of voluntary executive self-compliance with disclosure mandates when those mandates implicate persons and institutions of political significance.

(17) The assassination of Charles J. Kirk, founder and chief executive officer of Turning Point USA, on September 10, 2025, at a public event at Utah Valley University, combined with documented anomalies in forensic evidence—including the inability of the Bureau of Alcohol, Tobacco, Firearms, and Explosives to positively match the recovered bullet to the rifle attributed to the sole charged suspect—the alteration of the physical crime scene within one week of the assassination during an active capital murder investigation, credible reports that a former Director of the National Counterterrorism Center was directed to cease investigating potential foreign connections, and documented financial pressure on Kirk from major donors tied to his positions on United States foreign policy, raises questions of sufficient gravity to warrant independent, bipartisan congressional inquiry. The absence of a comprehensive, publicly accountable investigation gives rise to speculation that undermines public confidence in the integrity of law enforcement and the administration of justice.

(18) Congress finds that the harms documented in this Act are not independent phenomena amenable to separate legislative remedies. They are interconnected manifestations of a single structural condition: the progressive, multi-generational consolidation of power, information, capability, and impunity in the executive branch and its allied private interests, and the corresponding erosion of the people's capacity to know what their government does, to constrain how it acts, and to hold it accountable when it fails or transgresses. Surveillance enables coercion. Information asymmetry prevents accountability. Dark money corrupts representation. Unaccountable coercive force deters dissent. Unregulated technology amplifies each of these dynamics. Addressing any one dimension in isolation leaves the structural condition intact.

(19) The Framers understood this interconnection. The Constitution does not address legislative power in one document, executive power in another, and individual rights in a third. It addresses all of them together because they form a system. This Act is an omnibus measure because the problem it addresses is systemic. The eight titles of this Act—addressing artificial intelligence governance, mass surveillance and privacy, political spending disclosure, domestic military deployment, federal law enforcement training, government records digitization, executive accountability and public disclosure, and the investigation of political violence—are designed to function as an integrated strategy for restoring the structural deterrent upon which democratic self-governance depends.

(20) Congress has successfully employed comprehensive, multi-domain legislative strategies when confronting systemic threats to the Republic. The Reconstruction Amendments and their implementing legislation addressed the interconnected dimensions of slavery and its aftermath. The New Deal legislation addressed the interconnected dimensions of the Great Depression. The Civil Rights Act of 1964, the Voting Rights Act of 1965, and the Fair Housing Act of 1968 addressed the interconnected dimensions of racial discrimination. This Act addresses the interconnected dimensions of a structural power imbalance that, if left unaddressed, will render the constitutional design inoperable regardless of which party holds power.

(b) Purpose.—The purposes of this Act are—

(1) to restore the constitutional balance of power between the Federal Government and the people of the United States by simultaneously addressing the multiple, interconnected dimensions of the structural power asymmetry documented in the findings of this section;

(2) to constrain the executive branch's capacity to surveil, coerce, and control the civilian population by prohibiting mass commercial surveillance, requiring the divestiture and destruction of population-scale databases, categorically banning psychological profiling of American citizens, and closing the commercial data acquisition pathway through which federal agencies circumvent Fourth Amendment protections;

(3) to regulate the development and deployment of artificial intelligence systems through a comprehensive, structured, and time-bound investigatory process that builds the evidentiary record, institutional capacity, and technical expertise necessary for durable and judicially sustainable regulatory standards, while imposing immediate interim protections against documented harms to children, workers, and the public;

(4) to reform the Insurrection Act by replacing its vague and obsolete provisions with specific triggering conditions, mandatory congressional consultation and approval, meaningful judicial review, prohibitions on private deputization and martial law, and structural safeguards against self-interested presidential abuse;

(5) to establish mandatory minimum training standards for federal immigration enforcement personnel, including evidence-based de-escalation training, constitutional law instruction, and independent review of serious use-of-force incidents, to prevent the deployment of undertrained agents into civilian environments;

(6) to require the disclosure of the true and original sources of money spent to influence Federal elections and judicial nominations, to close loopholes permitting foreign national spending in domestic elections, and to restore the transparency conditions upon which the Supreme Court premised its decision in *Citizens United v. FEC*;

(7) to authorize and direct the mass digitization of the analog holdings of the National Archives and Records Administration, the Library of Congress, and the Government Publishing Office, so that the people of the United States may apply the same analytical tools to the records of their government that the government applies to information about them;

(8) to mandate the full public disclosure of all records relating to the Epstein Network under independent, non-executive oversight, to provide structural whistleblower protections and Espionage Act immunity for disclosures relating to the Network, and to conduct the independent congressional inquiry into the circumstances of Epstein's reported death that the executive branch has failed to provide;

(9) to establish an independent, bipartisan commission to examine the circumstances surrounding the assassination of Charlie Kirk, including the integrity of forensic evidence, the scope of the investigation, and the role of foreign financial influence on domestic political organizations; and

(10) to ensure, through all of the foregoing measures, that the government of the United States remains accountable to the people it serves, constrained by the Constitution it is sworn to uphold, and transparent in the exercise of the powers with which a free people have entrusted it.

(c) Relationship Between subtitle A and subtitle B. subtitle A (ASPPEA) governs commercial surveillance data practices and government acquisition of commercial surveillance data. subtitle B (EAJOA) establishes the Judicial Executive Oversight System for monitoring executive branch officials' communications. Each Section is independently enforceable. The invalidation of any provision of one Section does not affect the validity or enforceability of the other Section. Where a provision of subtitle A

is referenced by subtitle B or vice versa, the referenced provision is incorporated by reference and shall be interpreted consistently with the purposes of both Sections.

Table of Contents of Title I

TITLE I—SURVEILLANCE PROHIBITION, PRIVACY, AND EXECUTIVE ACCOUNTABILITY

Subtitle A — AMERICAN SURVEILLANCE PROHIBITION AND PRIVACY ENFORCEMENT ACT (ASPPEA)

Sec. 1001. Short title.

Sec. 1002. Congressional findings.

Sec. 1003. Definitions.

PART A — PROHIBITION ON PSYCHOLOGICAL PROFILES AND BEHAVIORAL PREDICTION

Sec. 1011. Absolute prohibition on psychological profiles.

PART B — PROHIBITION ON PRECRIME RISK ASSESSMENTS

Sec. 1021. Prohibition on precrime risk assessments.

Sec. 1022. Child welfare predictive risk assessment.

PART C — PROHIBITION ON OPERATIONAL PROFILES AND BEHAVIORAL BASELINES

Sec. 1031. Prohibition on operational profile assembly.

Sec. 1032. Prohibition on coordinated data collection arrangements.

Sec. 1033. International transfer prohibition.

Sec. 1034. Sanctions against foreign nations conducting psychological profiling operations.

Sec. 1035. Mandatory carrier forensic location data retention and law enforcement access.

PART D — PROHIBITION ON POPULATION-SCALE SURVEILLANCE COMMERCIAL ACTIVITY

Sec. 1041. Prohibition on assembling, maintaining, and making available population coverage databases.

PART E — MANDATORY DIVESTITURE

Sec. 1051. Divestiture schedule.

PART F — GOVERNMENT ACQUISITION PROHIBITION AND CONTRACTOR LAUNDERING

Sec. 1061. Congressional findings on government acquisition of commercial surveillance data.

Sec. 1062. Prohibition on federal agency acquisition of commercial surveillance data.

Sec. 1063. Contractor laundering prohibition.

PART G — NARROWLY SCOPED NATIONAL SECURITY EXEMPTION

Sec. 1071. Scope and absolute limits of the national security exemption.

Sec. 1072. Two-stage predicate review via FISA Court.

Sec. 1073. Foreign interference response mechanism.

Sec. 1074. Criminal offense — pretextual surveillance designation.

PART H — COMMERCIAL SAFE HARBOR FOR FIRST-PARTY DATA

Sec. 1081. Safe harbor.

Sec. 1082. Platform provider responsibility for hosted websites and applications.

Sec. 1083. Content recommendation systems — permitted and prohibited purposes.

Sec. 1084. Explicit user-declared preference — conditions, retention, and platform requirements.

PART I — GENERAL PROHIBITION STANDARD FOR ADVERTISING TARGETING DATA

Sec. 1091. General prohibition standard.

Sec. 1091A. Contextual advertising signal — qualifying conditions and permitted use.

Sec. 1092. Illustrative prohibited advertising data categories.

Sec. 1093. Tier 1 — unconditionally permitted advertising data.

Sec. 1094. Tier 2 — conditionally permitted advertising data.

Sec. 1094A. Session termination rules and advertising data retention.

Sec. 1094B. Cohort variable classification standards.

Sec. 1095. Advertising combination prohibition and classification authority.

Sec. 1096. Search query advertising safe harbor.

PART J — PROHIBITION ON COVERT COLLECTION

Sec. 1101. Prohibition on covert audio collection.

Sec. 1102. Prohibition on covert video collection.

Sec. 1103. Prohibition on keystroke monitoring and input capture.

Sec. 1104. Prohibition on real-time mass biometric identification in public spaces.

Sec. 1105. JEOS monitoring application — comprehensive device-layer collection.

Sec. 1106. Prohibition on platform access to private communications content.

Sec. 1107. Enforcement of Part J prohibitions.

PART K — BUREAU OF DATA SURVEILLANCE

Sec. 1111. Establishment.

Sec. 1112. Tiered staffing and funding.

Sec. 1113. National data surveillance registry.

Sec. 1113A. Data-monetizing collector — tier classification.

Sec. 1114. Mandatory breach and violation self-reporting.

Sec. 1115. Independent technical audit requirement.

Sec. 1116. Audit methodology standards.

Sec. 1117. Bureau monitoring, audit, and algorithmic testing powers.

Sec. 1118. Annual surveillance ecosystem report.

PART L — CONSENT, PENALTIES, AND ENFORCEMENT

Sec. 1121. Consent standards.

Sec. 1122. Tiered civil penalties.

Sec. 1123. Criminal offenses.

Sec. 1123A. Statute of limitations for criminal offenses.

Sec. 1123B. Conspiracy, aiding and abetting, and accessory liability.

Sec. 1124. Mandatory deregistration.

Sec. 1125. Disgorgement.

Sec. 1126. Injunctive relief.

PART M — CONCURRENT STATE ENFORCEMENT AND PRIVATE RIGHT OF ACTION

Sec. 1131. Concurrent state attorney general enforcement.

Sec. 1132. Private right of action.

Sec. 1133. General rulemaking.

PART N — GOVERNMENT AGENCY CARVE-OUTS AND RELATIONSHIP TO EXISTING FEDERAL LAW

Sec. 1141. General framework for government program carve-outs.

Sec. 1142. Healthcare and benefits administration carve-outs.

Sec. 1143. Financial, tax, and economic carve-outs.

Sec. 1144. Statistical, research, and educational carve-outs.

Sec. 1145. Public health, emergency management, and healthcare workforce carve-outs.

Sec. 1146. Transportation and border enforcement carve-outs.

Sec. 1147. Law enforcement and criminal justice carve-outs.

Sec. 1148. Housing, agriculture, and other program carve-outs.

Sec. 1149. Voluntarily provided public participation data.

PART O — RELATIONSHIP TO OTHER LAW AND IMPLEMENTATION

Sec. 1151. JEOS archive exemption.

Sec. 1152. ASPPEA implementation milestones.

Sec. 1153. Amendment to the Electronic Communications Privacy Act.

Sec. 1154. CFAA immunity for authorized auditors and investigators.

Sec. 1155. Relationship to other federal privacy and consumer protection law.

Sec. 1156. Relationship to Presidential Records Act, Federal Records Act, and Freedom of Information Act.

Sec. 1157. Inspector General coordination.

Sec. 1158. Findings regarding less restrictive alternatives to advertising data prohibitions.

Sec. 1159. Rule of construction.

Sec. 1160. Effective date.

PART P — EXEMPTIONS FOR SPECIFIC ENTITY TYPES

Sec. 1161. Small business exemption.

Sec. 1162. Employee and applicant data carve-out.

Sec. 1163. Journalism and press exemption.

Sec. 1164. Nonprofit and civil society organization exemption.

Sec. 1165. Good-faith reliance on Bureau guidance.

Sec. 1166. Severability.

Subtitle B — EXECUTIVE ACCOUNTABILITY AND JUDICIAL OVERSIGHT ACT (EAJOA)

PART A — GENERAL PROVISIONS

Sec. 1201. Short title.

Sec. 1202. Congressional findings.

Sec. 1203. Definitions.

PART B — ESTABLISHMENT AND ORGANIZATION OF JEOS

Sec. 1211. Establishment.

Sec. 1211A. Covered officials roster, notification, agency reporting, and enrollment.

Sec. 1212. Composition, appointment, succession, and adversarial challenge mechanism.

PART C — APPROVED COMMUNICATIONS SYSTEMS AND PROHIBITED PLATFORMS

Sec. 1221. Mandatory use of approved communications systems.

Sec. 1222. Approved communications system standards.

Sec. 1223. Prohibited platform list.

Sec. 1224. Scope of communications subject to JEOS monitoring.

PART D — MONITORING AND REVIEW

Sec. 1231. Automated monitoring, tiered review, and judicial flagging.

Sec. 1232. JEOS investigative orders, final disposition, and classified judicial archive.

Sec. 1233. Notification to covered officials.

PART E — MINIMIZATION AND OVERSIGHT OF JEOS

Sec. 1241. Review surfacing procedures.

Sec. 1242. Annual reporting and oversight of JEOS.

PART F — PENALTIES FOR COMMUNICATIONS VIOLATIONS

Sec. 1251. Penalties for use of prohibited devices or platforms.

PART G — CONSTITUTIONAL CONSTRUCTION AND SEVERABILITY

Sec. 1261. Constitutional construction.

Sec. 1262. Severability.

Sec. 1263. Effective date, phase-in, and implementation schedule.

Sec. 1001. Short Title.

This subtitle may be cited as the "American Surveillance Prohibition and Privacy Enforcement Act" or "ASPPEA."

Sec. 1002. Congressional Findings.

The Congress finds the following:

(1) Commercial data brokers, platform operators, and intelligence-aggregation contractors have assembled databases of unprecedented scale covering hundreds of millions of American citizens — in some cases the majority of the adult population of the United States and billions of individuals worldwide — without those citizens' meaningful knowledge or consent.

(2) These databases constitute three distinct and serious threats to constitutional order, individual civil liberties, and democratic self-governance:

(A) Inference-Based Manipulation: The derivation of psychological profiles, emotional vulnerability assessments, personality models, and political susceptibility scores from behavioral data enables the targeting of individuals with persuasive messaging calibrated to exploit cognitive vulnerabilities. This capability, demonstrated at scale in at least one major United States electoral cycle and documented in multiple foreign electoral contexts, enables private and foreign actors to manipulate democratic processes, political beliefs, and electoral outcomes without the knowledge of those targeted.

(B) Operational Targeting: Comprehensive behavioral baselines documenting individuals' locations, routines, relationships, and daily patterns across multiple unrelated contexts constitute operational targeting packages which may be used to physically surveil, locate, monitor, harass, detain, or harm specific individuals or groups. The harm may be inherent in the raw data itself, independent of any derived inference. A record documenting where a person is, when they are there, and who they associate with may be used as a tool of persecution regardless of whether a psychological model has been applied to it.

(C) Totalizing Coverage: Commercial databases with near-complete coverage of the United States population constitute private surveillance infrastructure. The availability of such databases to governments, foreign intelligence services, criminal organizations, and other powerful actors poses a structural threat to democratic governance. The threat is the existence of the database at population scale, independent of current use or stated purpose.

(3) The documented history of the Federal Bureau of Investigation's COINTELPRO program — exposed in 1971 and comprehensively investigated by the Senate Select Committee to Study Governmental Operations with Respect to Intelligence Activities in 1975 and 1976 — demonstrates that domestic intelligence agencies

will, absent categorical legal constraints, use surveillance capabilities to target, disrupt, and suppress constitutionally protected political activity including civil rights organizations, labor movements, antiwar groups, and political parties across the political spectrum. Congressional investigations and subsequent Inspector General reports have documented recurring patterns of domestic intelligence collection extending beyond lawful investigative activity to the surveillance of constitutionally protected political conduct. Congress finds that categorical statutory constraints — rather than internal agency policy, executive order, or case-by-case judicial oversight — are necessary to prevent the recurrence of this structural pattern.

(4) Federal agencies have systematically purchased access to commercial data compilations to acquire information they could not constitutionally compel through warrant, subpoena, or other lawful process. The Supreme Court's holding in Carpenter v. United States, 585 U.S. 296 (2018), establishes that this circumvention strategy is constitutionally impermissible; this subtitle extends and codifies that principle concretely.

(5) The use of commercial data infrastructure by foreign intelligence services to conduct influence operations against American citizens — including using psychological profiling to design and target campaigns intended to polarize and manipulate the American electorate — constitutes a direct national security threat requiring the elimination of the commercial data infrastructure on which such operations depend.

(6) Congress finds that a private database covering ten million or more United States persons constitutes a surveillance infrastructure whose scale is incompatible with democratic governance and individual liberty regardless of the purpose for which it was assembled. Congress selects ten million as the threshold because it approximates the population of a large United States state, exceeds three percent of the total adult population, and constitutes a scale sufficient to enable population-level statistical inference, behavioral pattern analysis, and targeted identification of individuals within any demographic, geographic, or political subgroup — capabilities that are qualitatively distinct from those available at smaller scales and that create the structural risks documented in this subtitle’s findings. Once assembled, such a database creates an irreversible capability for population-scale surveillance, targeting, and social control. This finding, grounded in the empirical record of database misuse, foreign intelligence exploitation, and government circumvention of constitutional protections documented throughout this subtitle's findings, supports the structural prohibition of Part G. No commercial justification is proportionate to this structural risk.

(7) Congress finds that ordinary commercial data collection for the purpose of providing relevant goods and services to consumers — including first-party transactional data,

contextual advertising, and explicitly declared consumer preferences — serves legitimate purposes and is not the target of this subtitle. The target is the transformation of consumer behavioral data into instruments of psychological manipulation, operational persecution, and population-scale surveillance or to enable the risk thereof.

(8) Congress exercises its authority under Article I of the Constitution, the enforcement clauses of the Fourth and Fourteenth Amendments, and its plenary authority over interstate commerce.

(9) The Federal Trade Commission, in its Final Report "Protecting Consumer Privacy in an Era of Rapid Change: Recommendations for Businesses and Policymakers" (March 2012), formally found that the notice-and-choice model — the framework under which commercial data collection purports to rest on consumer consent — produced long, incomprehensible privacy policies that consumers typically do not read, let alone understand, and that industry self-regulation under this framework had failed to provide adequate and meaningful protection. The FTC called on Congress to enact targeted legislation addressing data broker practices and documented that take-it-or-leave-it consent raises fundamental concerns about the absence of genuine consumer choice for services that have become essential to modern life. Peer-reviewed research published through 2023 confirms that the situation has materially worsened since the FTC's findings: privacy policies are now significantly longer and less comprehensible than they were when the FTC issued its report, average a reading level significantly above the United States adult average, and privacy regulations intended to improve transparency have paradoxically produced longer and less comprehensible policies rather than clearer ones. Congress finds that purported consent obtained through these mechanisms does not constitute meaningful, informed, or voluntary consent, and that databases assembled through such purported consent do not rest on a legitimate property foundation entitling their holders to full compensation upon the divestiture required by this subtitle.

(10) The documented commercial deployment of psychological profiling operations against United States persons — including the operation conducted by Cambridge Analytica and its affiliates, which harvested psychological profile data on tens of millions of Americans from a major social media platform without their knowledge, and used those profiles to design and target political messaging in multiple United States electoral cycles — demonstrates that the commercial availability of psychological profiling infrastructure constitutes a direct and documented threat to democratic self-governance. This operation, and others of similar design, exploited the absence of categorical legal prohibitions on psychological profiling to transform consumer behavioral data into instruments of electoral manipulation. Congress finds that the commercial pathway through which psychological profiling data reaches political actors in these operations must be categorically closed, and that no

distinction between commercial and political uses of psychological profiling data is technically or legally meaningful because the same model and the same data can serve both functions.

Sec. 1003. Definitions.

As used in this subtitle:

(1) "Covered Personal Data" means any information, alone or in combination, that identifies or is reasonably linkable to a specific individual or a device associated with that individual, including: precise or coarse geolocation data; financial transaction records; communications metadata; biometric data; health or medical data; political affiliation or activity; religious belief or practice; social or associational graph data; device identifiers; audio, video, or visual data from a user's device; keystroke or input data; and inferred or derived characteristics generated by algorithmic processing of any of the foregoing.

(2) "Psychological Profile" means any data compilation, model, score, index, or derived output that assesses, estimates, or predicts any of the following concerning a specific individual: personality characteristics, including any model based on the OCEAN framework or equivalent taxonomy; emotional state, mood, or affective condition; cognitive vulnerabilities or susceptibility to persuasion; political beliefs, affiliations, or likely responses to political messaging; religious belief or spiritual orientation; or behavioral responses to persuasive, emotional, or ideological stimuli. A Psychological Profile is prohibited regardless of the accuracy of its assessments and regardless of whether it is derived from individually innocuous inputs.

(3) "Operational Profile" means any data asset, system, or query capability that, when executed, is capable of producing a comprehensive behavioral record of a specific individual’s locations, routines, associational contacts, relationship network, or behavioral patterns derived from two or more independent contextual sources. “Independent contextual sources” means data from unrelated commercial or operational contexts — such as retail purchase data, mobile location data, and communications metadata — as distinguished from multiple data points arising from a single direct commercial relationship. The detailed scope of this prohibition, including the capability standard and the prohibition on technical evasion, is specified in Sec. 1031 of this subtitle.

(4) "Population Coverage Database" means any database, data system, or combination of linked data assets containing Covered Personal Data, Psychological Profiles, or Operational Profiles concerning more than ten million (10,000,000) United States persons, or concerning more than three percent (3%) of the population of any United States state, territory, or metropolitan statistical area, whichever threshold is smaller.

(5) "Precrime Risk Assessment" means any score, index, classification, or predictive output assessing the likelihood that a specific individual will engage in criminal, violent, politically disruptive, or socially deviant conduct, based on behavioral, demographic, associational, or predictive data rather than evidence of a specific past act. The term does not include the systems exempted under Sec. 1021(c).

(6) "Data Broker" means any person or entity engaged in the business of collecting, compiling, aggregating, inferring, licensing, selling, or otherwise providing access to Covered Personal Data concerning individuals with whom the entity has no direct commercial relationship, for monetary or other valuable consideration, regardless of commercial designation.

(7) “Data-Monetizing Collector” means any entity with a direct commercial relationship with consumers that also derives revenue from the sale, licensing, or transfer of Covered Personal Data to third parties, for monetary or other valuable consideration. Entities are classified into Tier DM-1, Tier DM-2, and Tier DM-3 based on the percentage of relevant gross revenues derived from such third-party transfers, as specified in Sec. 1113A of this subtitle. Entities deriving less than five percent (5%) of relevant gross revenues from third-party data transfers are eligible for the safe harbor of Sec. 1081 provided all other safe harbor conditions are met. The tiered structure governs registration, audit, and enforcement tier classification only, not the scope of the substantive prohibitions.

(8) "Targeting Infrastructure Contractor" means any person or entity that builds, operates, maintains, or provides analytical, technical, or platform services used to produce Psychological Profiles, Operational Profiles, Precrime Risk Assessments, or Population Coverage Databases, whether on behalf of a government entity, political organization, commercial advertiser, or any other principal.

(9) "Federal Agency" means any executive department, independent agency, military department, government corporation, or other establishment in the executive branch, including any office within the Executive Office of the President, and any independent regulatory agency.

(10) "Government Contractor" means any person or entity acting under contract, grant, cooperative agreement, or any other arrangement with or on behalf of a Federal Agency, to the extent such person or entity collects, processes, accesses, or transfers Covered Personal Data in connection with such arrangement.

(11) "Constitutionally Equivalent Collection" means collection a Federal Agency could lawfully accomplish through direct legal process supported by probable cause and authorized by a court of competent jurisdiction, or through the explicit, revocable, and informed consent of the data subject.

(12) "Foreign Direction" means operational direction, material funding, or strategic coordination received by an organization or individual from a foreign government, foreign intelligence service, or their knowing agents. "Material funding" means financial support that:

(A) constitutes more than ten percent (10%) of the recipient organization's total annual operating budget in any twelve-month period; or

(B) is conditioned, expressly or impliedly, on specific organizational conduct, the adoption of specific positions, the targeting of specific individuals or groups, or the achievement of specific outcomes; or

(C) is structured in whole or in part to conceal its foreign government origin through intermediary entities, shell organizations, or nominee transactions. The following do not constitute Foreign Direction: expressions of public support by a foreign government for a domestic organization's positions; receipt of funding not meeting the materiality criteria above; participation in international civil society networks or transnational advocacy coalitions; solidarity relationships with foreign organizations engaged in parallel domestic activities; or acceptance of grants from foreign-based philanthropic foundations acting independently of any government. Arm's-length commercial transactions at fair market value — including retail sales of merchandise, publications, event tickets, and advertising — do not constitute "funding" regardless of the identity of the purchaser, and shall not be counted toward the materiality threshold of subparagraph (A). A pattern of commercial transactions that appears designed to manufacture a Foreign Direction predicate triggers the foreign interference response mechanism of Sec. 1073 and may not be used as a Stage One predicate under Sec. 1072.

(13) "First Amendment Organization" means any organization whose stated mission and primary operational conduct consists of constitutionally protected activity under the First Amendment, including political organizing, electoral advocacy, public interest litigation, journalism, labor organizing, environmental or social justice activism, religious practice and community organization, and academic research and publication. The commercial revenue, commercial activities, or commercial organizational structures of an organization are irrelevant to this determination. An organization qualifies regardless of whether it also engages in revenue generating activities, provided those activities are incidental to and in service of its primary First Amendment mission.

(14) "Minimization Procedures" means documented policies and technical controls limiting acquisition, retention, use, and dissemination of Covered Personal Data to the minimum necessary to accomplish the specific authorized purpose, with mandatory purging of nonqualifying data within ninety (90) days.

(15) "Sensitive Nation-State Actor" means any foreign government, state-owned enterprise, or entity in which a foreign government holds a controlling interest, incorporated under the laws of a country designated as a Foreign Adversary under 15 C.F.R. § 7.4.

(16) "United States-Directed Entity" means any person or entity incorporated or domiciled outside the United States that: directs its data collection, platform services, or data brokerage activities at United States persons; processes data of United States persons on systems accessible from or managed from within the United States; or derives more than twenty percent (20%) of its gross revenues from activities involving the data of United States persons. A United StatesDirected Entity is subject to this subtitle with respect to its activities involving the data of United States persons to the same extent as an entity incorporated within the United States.

(17) "Commission" means the Federal Trade Commission.

(18) "Bureau" means the Bureau of Data Surveillance established under Sec. 1111.

(19) “Data Cooperative” means any arrangement, agreement, or platform through which two or more entities pool, exchange, contribute, or provide reciprocal access to Covered Personal Data concerning individuals with whom at least one participating entity has no direct commercial relationship, regardless of whether consideration is exchanged in the form of money, data reciprocity, platform access, or any other benefit. The term includes any arrangement in which an entity receives data about individuals it did not directly collect in exchange for providing data about individuals it did collect, regardless of how the arrangement is commercially designated.

(20) “Audience-Segment Licensing Arrangement” means any arrangement through which an entity makes available to a third party — whether through direct license, platform access, API, programmatic advertising infrastructure, or any other mechanism — a defined group or cohort of individuals selected on the basis of Covered Personal Data, inferred characteristics, behavioral attributes, or any combination thereof, for the purpose of enabling the third party to direct communications, advertising, or messaging at those individuals, regardless of whether individual-level data is formally transferred or only targeting access is provided. The functional test is whether the arrangement enables a third party to reach a defined population selected on the basis of Covered Personal Data — not whether data physically moves between parties.

(21) “Contextual Advertising Signal” means Covered Personal Data processed in real time from the specific content a user is currently viewing or the specific query a user has currently submitted — including the subject matter, category, keywords, or semantic content of the webpage, article, video, application, or search query

currently being consumed or submitted — that is used solely to select advertising relevant to that specific content or query. A Contextual Advertising Signal is Covered Personal Data within the meaning of Sec. 1003(1). The qualifying conditions, permitted uses, and clean-inputs rule applicable to Contextual Advertising Signals are specified in Sec. 1091A of this subtitle.

(22) “Session” means, for purposes of advertising data retention under this subtitle, the period beginning when a user initiates an interaction with a platform, application, or service and ending upon the earliest of: explicit user logout; application or browser tab close; thirty (30) minutes of continuous user inactivity; or twenty-four (24) hours from initiation. The detailed rules governing Session termination, active service delivery, multi-device sessions, the implementation safe harbor, and the relationship of Sessions to stored user content are specified in Sec. 1094A of this subtitle.

(23) “Small Business” means any person or entity that satisfies all three of the following criteria as of the most recent calendar year preceding the date on which qualification is assessed:

(A) Global annual revenues — meaning revenues from all sources and all geographic markets, including the global annual revenues of all affiliated entities as determined under the affiliation rules of this paragraph — of less than forty million dollars ($40,000,000);

(B) Collection, processing, or transfer of Covered Personal Data concerning no more than two hundred thousand (200,000) United States persons, counting each individual once regardless of how many times their data was processed, aggregated across the entity and all affiliated entities; and

(C) No more than twenty-five percent (25%) of global annual revenues, calculated across the entity and all affiliated entities, derived from the transfer of Covered Personal Data to third parties who do not have a direct commercial relationship with the individuals whose data is transferred. Where the Bureau has published final rules defining “relevant gross revenues” under Sec. 1003(7), the percentage in this criterion shall be calculated using the same revenue base as those rules specify. An entity satisfying all three criteria is a Small Business regardless of its legal form. Affiliation: For purposes of criteria (A), (B), and (C), all revenues, data holdings, and data transfer activities of the following entities are aggregated with those of the entity being assessed: (i) any entity in which the assessed entity holds a direct or indirect ownership interest of ten percent (10%) or more; (ii) any entity that holds a direct or indirect ownership interest of ten percent (10%) or more in the assessed entity; (iii) any entity under common ownership or common operational control with the assessed entity, where operational control means the practical ability to direct, limit, set terms for, or access the data practices of the other entity through contract, platform architecture, board

representation, management overlap, or shared technical infrastructure regardless of formal legal separation; (iv) any entity with which the assessed entity participates in a Data Cooperative as defined in Sec. 1003(19) or an Audience-Segment Licensing Arrangement as defined in Sec. 1003(20), to the extent of the Covered Personal Data accessible through that arrangement; and (v) any entity to which the assessed entity has transferred Covered Personal Data within the preceding twenty-four (24) months where that transfer was structured in whole or in part to reduce the assessed entity's record count below a threshold of this subtitle. The Bureau shall promulgate rules specifying the methodology for aggregating records and revenues across affiliated entities within one hundred eighty (180) days after the Director's first day of service.

(24) "Explicit User-Declared Preference" means a preference for a content category, topic, product type, brand, service category, or specific content source that a user has affirmatively expressed through deliberate, conscious action, including: structured preference declarations through a dedicated preference interface; follows and subscriptions to specific accounts, creators, channels, communities, or content sources; saves and bookmarks of specific content; category-level like patterns accumulated within an identifiable content category; and deliberate content initiation by clicking, tapping, or navigating to specific content. Passive behavioral engagement signals — including scroll behavior, hover time, view duration of autoplayed content, near-clicks, and autoplay continuations — are not Explicit User-Declared Preferences. The conditions governing use, retention, platform-specificity, recalibration, and intra-category diversity applicable to Explicit User-Declared Preferences are specified in Sec. 1084 of this subtitle.

(25) "Bureau-approved independent technical auditor" means, following the establishment of the Bureau's auditor certification program under Sec. 1116(c), an independent technical auditor holding current certification under that program. Prior to the establishment of that program, "Bureau-approved independent technical auditor" means an independent technical auditor that:

(A) has no financial interest in and has not been employed by the entity being audited within the preceding five (5) years;

(B) possesses demonstrated expertise in data systems architecture, privacy compliance, and the specific technical subject matter of the audit being conducted; and

(C) has been approved by the Bureau of Consumer Protection acting as interim enforcement authority under Sec. 1152(1), or, where the Bureau of Consumer Protection has published interim auditor qualification standards within sixty (60) days of enactment, meets those published standards without requiring individual approval. The Bureau of Consumer Protection shall publish interim auditor

qualification standards within sixty (60) days of enactment. An auditor meeting these requirements is deemed a Bureau-approved independent technical auditor for all purposes of this subtitle until the Bureau's formal certification program under Sec. 1116(c) is operational, at which point auditors not certified within one (1) year of the program's establishment are no longer deemed approved under this transitional provision.

Part A — Prohibition on Psychological Profiles and Behavioral Prediction

Sec. 1011. Absolute Prohibition on Psychological Profiles.

(a) No entity subject to the jurisdiction of the United States shall compile, derive, produce, sell, license, transfer, or use a Psychological Profile concerning any United States person for any purpose. Without limiting the foregoing categorical prohibition, this prohibition expressly covers: the use of a Psychological Profile to target, select, or tailor advertising, political messaging, electoral communications, voter targeting, influence operations, or any other commercial, political, or persuasive communication directed at a specific individual; the construction or operation of services designed to produce Psychological Profiles on behalf of any third party, including any government entity, political organization, commercial advertiser, foreign government, or influence operation; and the sale, license, transfer, or provision of any Psychological Profile, Operational Profile, or Precrime Risk Assessment to any political campaign, political action committee, super PAC, political party, electoral organization, ballot initiative committee, or any entity primarily engaged in electoral or political advocacy, regardless of whether such Profile is used for voter targeting, opposition research, persuasion messaging, or any other electoral purpose.

(b) This prohibition is absolute. No commercial purpose, national security justification, or data subject consent renders the compilation or use of a Psychological Profile lawful under this

Section. The prohibition applies regardless of the accuracy of the Profile and regardless of whether it is derived from individually innocuous inputs.

(c) Academic Research Carve-Out. Notwithstanding subsections (b) and (d), the prohibition in subsection (a) does not apply to the compilation or analysis of Psychological Profiles conducted exclusively for bona fide academic research purposes, subject to all of the following conditions:

(1) the research is approved by an Institutional Review Board constituted under 45 C.F.R. Part 46 or an equivalent accredited ethics review body;

(2) the research is conducted exclusively on synthetic data — data generated algorithmically to replicate statistical properties of real data without corresponding to any actual individual — or on fully anonymized data that has been processed

through a technically verified de-identification procedure such that re-identification of any specific individual is not reasonably possible;

(3) no Psychological Profile, model weights, trained parameters, scoring algorithm, or other artifact capable of producing Psychological Profile outputs, nor any underlying behavioral data constituting an Operational Profile, may be sold, licensed, transferred, shared, or disclosed to any commercial entity, government entity, political organization, or any third party other than through peer-reviewed academic publication of aggregate statistical findings that do not enable reconstruction of any individual profile or scoring model;

(4) the existence and general subject matter of the research is disclosed to the Bureau annually; and

(5) any Psychological Profile, model weights, trained parameters, scoring algorithm, underlying behavioral data, and any other artifact capable of producing Psychological Profile outputs shall be permanently and irreversibly destroyed upon completion of the research project and no later than three (3) years from the date of IRB approval. The carve-out of this subsection extends to cross-context behavioral data constituting an Operational Profile assembled incidentally in the course of permitted psychological profiling research, provided such data meets all conditions of this subsection including the destruction requirement. The carve-out does not extend to datasets meeting the Population Coverage Database threshold of Sec. 1003(4). A researcher who uses this carve-out to produce, retain, or transfer a Psychological Profile, model, or underlying dataset for any commercial, political, or government purpose is subject to the full civil and criminal penalties of this subtitle as if the carve-out did not apply, and such conduct constitutes a per se Tier 3 willful violation. The Bureau shall promulgate standards for technically verified de-identification procedures eligible for use under this carve-out within one hundred eighty (180) days after the Director's first day of service, through notice-and-comment rulemaking under 5 U.S.C. § 553. Until such standards are final, de-identification under this carve-out shall satisfy the requirements of NIST Special Publication 800-188 (De-Identifying Government Datasets) or a successor standard designated by the Bureau, as the minimum applicable baseline. De-identification verification shall be certified by a Bureau-approved independent technical auditor, and the certification shall be submitted to the Bureau along with the annual disclosure required by condition (4) of this subsection.

(d) Clean-Inputs Rule. A Psychological Profile is prohibited regardless of whether its component data inputs are individually drawn from otherwise permitted categories. The test is the nature and purpose of the output, not the permissibility of the inputs. An entity that feeds only permitted first-party data into a model producing a personality score,

emotional vulnerability index, or political susceptibility score has produced a prohibited Psychological Profile.

(d)(2) Permitted Output Characteristics. An output of an algorithmic system does not constitute a Psychological Profile solely by reason of being generated by a system that also receives as inputs data categories described in the Psychological Profile definition, where the output satisfies all of the following conditions:

(A) the output is limited to a binary or categorical determination of whether specific content, product, or service falls within a category a user has explicitly declared interest in through an Explicit User-Declared Preference meeting all conditions of this subtitle, without generating any score, index, or ranking predicting the user's emotional or psychological response to that specific content, product, or service;

(B) the output does not distinguish between two pieces of content within the same user-declared category on the basis of any predicted differential in emotional impact, psychological engagement, outrage potential, persuasion susceptibility, or behavioral response specific to the individual user; and

(C) the output is not combined with any signal, score, or inference concerning the user's current or predicted emotional state, psychological condition, or cognitive vulnerability.

(d)(3) Prohibited Output Characteristics. Notwithstanding the permissibility of any input, an output constitutes a Psychological Profile and is subject to the absolute prohibition of subsection (a) where:

(A) the output ranks, scores, sequences, or selects content, products, services, or messaging for a specific individual user based on a model predicting that user's emotional engagement, psychological response, re-engagement likelihood, or behavioral response to that specific content, product, service, or messaging;

(B) the output includes any score, index, or signal predicting a specific individual user's susceptibility to persuasion, emotional arousal, psychological captivation, or behavioral response to specific content or messaging; or

(C) the output, if disclosed to a third party, would enable that third party to calibrate content, products, services, or messaging to exploit that specific individual user's predicted psychological responses, emotional state, or cognitive vulnerabilities.

(d)(4) Objective Function Compliance Test. For purposes of determining whether a content recommendation system's objective function produces a prohibited output under subsection (d)(3), an entity shall apply the following two-part test:

(A) Substitution Test. The objective function is permitted where, if applied to two pieces of content that a user has explicitly declared interest in through Explicit User-Declared Preferences, the function would rank those pieces of content identically regardless of any differential in their predicted emotional impact on that specific user. The objective function is prohibited where it would rank one above the other based on any predicted differential in emotional response, psychological engagement, or persuasion susceptibility specific to that user.

(B) Category Collapse Test. An objective function that produces, over any thirty (30) day period for any given user, a pattern of recommendations in which the user receives content from fewer than three

(3) distinct subcategories within any single content category in which that user has declared interest is presumptively prohibited as producing a Psychological Profile through systematic engagement optimization. The entity may rebut this presumption by demonstrating through a Bureau-approved independent technical auditor that the category concentration resulted from the user's own Explicit User-Declared Preferences rather than from algorithmic optimization.

(d)(5) Annual Objective Function Certification. Any entity operating a content recommendation system on a platform with more than one million (1,000,000) monthly active United States users shall certify annually to the Bureau, within thirty (30) days of the close of each calendar year, that its recommendation system objective function satisfies the Substitution Test of subsection (d)(4)

(A) and has not produced a prohibited Category Collapse pattern under subsection (d)(4)

(B) during the preceding calendar year. The certification shall be prepared by a Bureau-approved independent technical auditor, shall describe the auditor's methodology and test results in sufficient detail to permit Bureau verification, and shall be signed under penalty of perjury by both the entity's Chief Executive Officer and Chief Privacy Officer or designated responsible officer.

(e) Mental Health Application Exemption. The absolute prohibition of subsection (a) does not apply to the compilation or processing of data that would otherwise constitute a Psychological Profile where such compilation or processing is conducted exclusively by or under the clinical supervision of a licensed mental health professional, licensed healthcare entity, or accredited behavioral health organization operating a mental health application that satisfies all conditions of Sec. 1021(c)(8). A mental health application that satisfies all conditions of Sec. 1021(c)(8) is exempt from the prohibition of this subtitle to the extent of the data compiled or processed within the therapeutic relationship for the purpose of providing the specific mental health service for which the user enrolled. The exemption of this subsection is strictly co-extensive with the conditions of Sec. 1021(c)(8): any violation of those conditions — including any third-

party transfer in violation of Sec. 1021(c)(8)(B) — simultaneously strips this exemption and subjects the entity to the full prohibition of subsection (a) and the Tier 3 penalties specified in Sec. 1021(c)(8)(E).

Part B — Prohibition on Precrime Risk Assessments

Sec. 1021. Prohibition on Precrime Risk Assessments.

(a) No entity subject to the jurisdiction of the United States shall compile, derive, produce, sell, license, transfer, or use a Precrime Risk Assessment concerning any United States person for any purpose, including law enforcement, insurance, employment, credit, housing, or national security.

(b) No Federal Agency, state or local government entity, or Government Contractor shall purchase, license, or use a Precrime Risk Assessment from any commercial source, or direct or fund the development of a Precrime Risk Assessment system through any contract, grant, or cooperative agreement.

(c) Exempted Systems. The prohibition in subsection (a) does not apply to:

(1) actuarial risk assessment tools used in criminal sentencing or parole proceedings based solely on an individual's own documented criminal history, as distinguished from predictive behavioral models based on demographic, associational, or population-level data;

(2) consumer credit scoring models and risk assessments regulated under the Fair Credit Reporting Act, 15 U.S.C. § 1681 et seq., provided such models are not sold to, licensed to, or used by any Federal Agency for any purpose other than the evaluation of a Federal credit application or a background check specifically authorized by statute;

(3) actuarial models used by licensed insurance carriers to price insurance products based on statistically validated risk factors for the specific product category, provided such models are not used to deny coverage based on political beliefs, religious affiliation, or protected characteristics, and are not sold or licensed to any government entity;

(4) fraud detection and anti-money-laundering systems operated by financial institutions in compliance with the Bank Secrecy Act and applicable FinCEN regulations, provided such systems are operated solely within the direct commercial relationship between the financial institution and its own customers and are not sold, licensed, or transferred to any commercial third party; government disclosure is permitted only as required by applicable law, including mandatory Suspicious Activity Report filing with the Financial Crimes Enforcement Network under 31 U.S.C. § 5318(g), responses to grand jury subpoena, and compliance with court orders — but does not

extend to voluntary transfers to any law enforcement agency or government entity beyond what applicable law specifically requires;

(5) medical risk stratification models used by licensed healthcare providers to allocate clinical resources and provide preventive care, operated solely within the direct treatment relationship and not transferred to any government entity or commercial data broker;

(6) transaction fraud detection systems used by payment processors and merchants to identify fraudulent transactions in real time, provided such systems assess only the specific transaction and are not used to build persistent behavioral profiles of individual consumers;

(7) First Step Act Risk and Needs Assessment — PATTERN. The Bureau of Prisons' Prisoner Assessment Tool Targeting Estimated Risk and Needs (PATTERN), mandated under the First Step Act of 2018, 18 U.S.C. § 3632, is exempt from the prohibition of subsection (a). PATTERN serves legitimate correctional functions — including the allocation of rehabilitative programming, the assessment of recidivism risk for reentry placement decisions, and the determination of appropriate supervision levels — that directly benefit the individuals assessed and serve the correctional purposes for which the Bureau of Prisons is responsible. Congress does not find that PATTERN constitutes a Precrime Risk Assessment within the meaning of Sec. 1003(5) with respect to its use within the federal correctional system for these purposes, because PATTERN operates on individuals already convicted and sentenced through constitutional criminal process, for the purpose of allocating correctional services and making reentry determinations, and not for the purpose of predicting future criminal conduct among the general population.

(A) Permitted Uses. PATTERN may be used for: rehabilitative programming allocation including education, vocational training, substance abuse treatment, and cognitive behavioral programming; reentry placement decisions including halfway house placement and home confinement eligibility; community supervision level determinations; and any other purpose specifically authorized by the First Step Act of 2018.

(B) Prohibited Uses. PATTERN scores and underlying data may not be used for any purpose constituting predictive policing — meaning any decision to investigate, surveil, stop, search, or target an individual who is not already subject to a pending criminal proceeding or an existing term of federal supervision. PATTERN scores may not be the sole or primary basis for denying supervised release or home confinement without individualized review by a qualified case manager or court. PATTERN data and scores may be disclosed to courts and probation officers in connection with sentencing, supervised release, and violation proceedings involving the assessed individual; to interstate compact

supervision agencies receiving a released individual; to sex offender registration authorities for tier determination purposes; to federally coordinated reentry services providers for the purpose of matching released individuals with appropriate community services; and to subsequent federal prosecutors in connection with sentencing of a previously assessed individual, through the presentence investigation report process. PATTERN data and scores may not be sold, licensed, or transferred to any commercial entity, any foreign government, or any law enforcement agency for use in investigations unrelated to an existing proceeding involving the specific assessed individual.

(C) Racial Disparity Transparency Requirement. Congress finds that independent validation studies have documented racial and ethnic disparities in PATTERN score distributions that are not fully explained by individual criminal history factors alone, and that these disparities are a matter of ongoing congressional concern. The Director of the Bureau of Prisons shall transmit to Congress annually, beginning one year after enactment, a report documenting: PATTERN score distributions disaggregated by race, ethnicity, offense category, and facility type; the correlation between PATTERN scores and actual recidivism outcomes disaggregated by the same demographic categories; any modifications made to the PATTERN model during the preceding year and their effect on score distributions; and the Director's assessment of whether the observed disparities are attributable to individual criminal history factors, demographic proxy variables, or systemic factors outside the correctional system. This report shall be transmitted to the Senate Committee on the Judiciary, the House Committee on the Judiciary, the Senate Committee on Appropriations Subcommittee on Commerce, Justice, Science, and Related Agencies, and the House Committee on Appropriations Subcommittee on Commerce, Justice, Science, and Related Agencies.

(D) Congressional Direction for Subsequent Legislation. It is the sense of Congress that the racial and ethnic disparities documented in PATTERN score distributions represent a serious concern requiring ongoing attention, study, and legislative action. Congress directs the National Institute of Justice, in coordination with the Bureau of Prisons, to conduct a comprehensive study of whether PATTERN's predictive accuracy can be maintained while reducing racial and ethnic disparities in score distributions, and to transmit findings and recommendations to Congress not later than two years after enactment. These findings shall inform subsequent legislation addressing the design, validation, and oversight of risk assessment tools used in the federal correctional system. Nothing in this paragraph requires the Bureau of Prisons to modify or replace PATTERN prior to such subsequent legislation; and

(8) Licensed Mental Health Application Exemption. A mental health application operated by or under the clinical supervision of a licensed mental health professional, licensed healthcare entity, or accredited behavioral health organization may collect and process data concerning a user's emotional state, psychological condition, mood, or behavioral patterns solely within the direct therapeutic or supportive relationship with that user, subject to all of the following conditions:

(A) the data is used exclusively to provide the specific mental health service for which the user enrolled and for no other purpose;

(B) the data may not under any circumstances be sold, licensed, transferred, or made accessible to any third party, including any data broker, advertiser, employer, insurer, law enforcement agency, government entity, or foreign person — this prohibition is absolute and no user consent purports to authorize such transfer;

(C) the application shall implement security standards no less protective than those required by the HIPAA Security Rule, 45 C.F.R. Part 164, Subpart C, regardless of whether the application is a covered entity under HIPAA — this requirement establishes an independent statutory floor applicable to all mental health applications under this paragraph, and compliance with HIPAA by a covered entity satisfies this requirement but does not limit the obligation of non-covered entities to meet the same standard;

(D) the application must obtain explicit, informed, separately executed written consent — not bundled within general terms of service or end-user license agreements — disclosing in plain language what specific data is collected, how it is used within the therapeutic relationship, and the absolute prohibition on third-party transfer;

(E) a mental health application that violates the third-party transfer prohibition of subparagraph

(B) is subject to Tier 3 civil penalties under Sec. 1122(e) and the criminal penalties of Sec. 1123, and a violation of subparagraph

(B) is a per se willful violation not eligible for the Tier 1 reduction of Sec. 1122(a); and

(F) the Commission, in consultation with the Department of Health and Human Services, shall promulgate minimum technical security standards for mental health applications under this paragraph within one hundred eighty (180) days of enactment, which shall supplement and not replace applicable HIPAA requirements.

(d) The exemptions in subsection (c) do not apply where any exempted system is: sold, licensed, or transferred to any government entity at any level — federal, state, local, tribal, or territorial — including any administrative agency, regulatory body, benefits

agency, housing authority, child welfare agency, or public health agency, except as specifically authorized by subsections (c)(1) and (c)(7), or to any foreign entity; used to make decisions affecting individuals outside the specific commercial or clinical relationship for which the model was developed; or combined with data from external non-relationship sources — meaning data from sources outside the specific commercial or clinical relationship, including data brokers, behavioral data, location data, or any other Covered Personal Data not originating from the direct relationship between the entity and the individual — to produce outputs extending beyond the specific function for which the exemption is claimed. For purposes of the credit scoring exemption in subsection (c)(2), the combination of data from multiple credit data furnishers reporting within the FCRA ecosystem does not constitute combination with "external sources" under this subsection, as such combination is inherent to the consumer reporting function authorized by the FCRA.

Part B-1 — Child Welfare Predictive Risk Assessment — Sense of Congress and Commission

Sec. 1022. Child Welfare Predictive Risk Assessment Tools — Sense of Congress and Commission.

(a) Sense of Congress. It is the sense of Congress that:

(1) Child welfare agencies at the state and local level have deployed predictive risk assessment tools — including tools such as the Allegheny Family Screening Tool and comparable instruments used in jurisdictions across the country — for the purpose of assisting caseworkers in identifying children at risk of maltreatment. Congress recognizes that these tools serve a compelling child protection purpose and that structured risk assessment, when combined with professional human judgment, may improve child welfare outcomes compared to unstructured caseworker discretion alone.

(2) Independent research has documented racial and ethnic disparities in the score distributions of child welfare predictive risk tools, arising in part from the use of variables — including public benefits receipt history, public systems involvement, and socioeconomic indicators — that are correlated with race and ethnicity through systemic inequity rather than through individual conduct or documented risk. Congress finds these disparities are a matter of serious concern that warrants rigorous federal study and subsequent legislative attention.

(3) The resolution of this tension — between the child protection value of structured risk assessment and the racial equity harms of demographic proxy variables — requires empirical study, engagement with affected communities, and careful legislative design. This subtitle does not prohibit state and local child welfare agencies from using existing predictive risk assessment tools, and does not impose any funding

condition on their continued use, because Congress recognizes that mandating tool replacement without providing transition funding and validated replacement tools would risk harm to the children these tools are designed to protect.

(4) Subsequent legislation should address the design, validation, bias auditing, and oversight standards for child welfare predictive risk assessment tools, informed by the findings of the commission established under subsection (b).

(b) Federal Commission on Child Welfare Risk Assessment Equity.

(1) Establishment. There is hereby established a commission to be known as the Federal Commission on Child Welfare Risk Assessment Equity, to study and make recommendations on the design, validation, racial equity, and oversight of predictive risk assessment tools used in child welfare decision-making.

(2) Composition. The Commission shall consist of fifteen members appointed as follows: three members appointed by the Secretary of Health and Human Services, including at least one representative from a state child welfare agency and one licensed child welfare practitioner with direct casework experience; two members appointed by the Attorney General with expertise in civil rights law and algorithmic accountability; two members appointed by the Director of the National Institute of Justice with expertise in criminology, risk assessment, or computational social science; two members appointed by the Chairperson of the United States Commission on Civil Rights; two members who are parents or family members with direct personal experience as subjects of child welfare predictive risk assessment tools, appointed jointly by the Senate Majority Leader and the House Speaker; two members representing child advocacy organizations, appointed jointly by the Senate Minority Leader and the House Minority Leader; and two members with expertise in machine learning, algorithmic fairness, or data science, appointed by the National Academy of Sciences.

(3) Compensation and Service. Members of the Commission shall serve without compensation. Congress finds that this commission addresses a matter of significant public importance that warrants the voluntary commitment of professional expertise. Members who are officers or employees of the United States government — including HHS representatives, DOJ representatives, and NIJ representatives — shall serve in their official capacity, with their participation constituting authorized use of official time as part of their agency duties; no additional compensation is required or authorized for such members. Members who are not federal employees — including parents and family members with lived experience, child advocacy organization representatives, and academic experts — shall serve as volunteers, donating their time and expertise in the public interest. Notwithstanding the foregoing, the two members who are parents or family members with direct personal experience as subjects of child welfare predictive risk assessment tools appointed

under paragraph (2) shall receive a stipend of not more than five hundred dollars ($500) per day for each day of official commission activity, funded from amounts appropriated under paragraph (6). Congress finds that meaningful inclusion of affected community members — who are disproportionately low-income — requires modest compensation to make participation practically accessible. This stipend is in addition to travel reimbursement and does not constitute compensation for purposes of the volunteer service designation applicable to other non-federal members. Members may be reimbursed for reasonable travel expenses incurred in connection with official commission activities, at the federal government per diem rate, from funds appropriated under paragraph (6).

(4) Duties. The Commission shall study and report on: the predictive accuracy of existing child welfare risk assessment tools and whether that accuracy is consistent across racial, ethnic, and socioeconomic groups; the specific variables used in existing tools that produce racially or ethnically disparate score distributions and whether equivalent predictive accuracy is achievable without those variables; the adequacy of existing data access frameworks for child welfare agencies and whether relevant individual-history data — including medical injury records, crossjurisdictional child welfare history, and clinical assessment records — is sufficiently available to support accurate individual-history-based risk assessment; the experiences and perspectives of families who have been subject to these tools, with particular attention to the experiences of Black, Hispanic, American Indian and Alaska Native, and low-income families; and recommended standards for the design, validation, bias auditing, transparency, and oversight of child welfare predictive risk assessment tools.

(5) Report. The Commission shall transmit a final report to Congress, the Secretary of Health and Human Services, and the President not later than two years after the date of enactment, containing its findings and legislative recommendations. An interim progress report shall be transmitted not later than one year after enactment. The final report shall be made publicly available in full.

(6) Funding. There are hereby authorized to be appropriated, and there are hereby appropriated out of any money in the Treasury not otherwise appropriated, not to exceed one million dollars ($1,000,000) to carry out the activities of the Commission. These funds are designated exclusively for: travel reimbursement for non-federal-employee members at the federal per diem rate; meeting facilities and logistical support; contracted research, data analysis, and technical assistance that the Commission cannot perform in-house with existing federal resources; and report drafting, editing, and publication costs.

(7) Sunset. The Commission shall terminate upon transmittal of its final report or two years after the date of enactment, whichever is earlier.

Part C — Prohibition on Operational Profiles and Behavioral Baselines

Sec. 1031. Prohibition on Operational Profile Assembly.

(a) No entity subject to the jurisdiction of the United States shall: compile, assemble, or maintain an Operational Profile capability concerning any United States person; sell, license, transfer, or provide access to an Operational Profile or Operational Profile capability to any third party; or build, operate, or provide services designed to produce Operational Profiles on behalf of any third party. For the avoidance of doubt, the prohibition on compiling, assembling, or maintaining an Operational Profile capability applies regardless of whether the capability is operated for the entity's own commercial purposes or on behalf of a third party — the prohibition is not limited to service providers and applies equally to any entity that maintains such a capability for its own use.

(b) The prohibition applies to the capability to produce a cross-context behavioral record, not solely to a compiled record held in active storage. An entity may not avoid this prohibition by structuring its data architecture to aggregate data at query time rather than in stored form, by routing data through intermediate processing steps, or by any other technical mechanism designed to achieve the functional equivalent of an Operational Profile while avoiding formal storage of a compiled record.

(c) Scope of Prohibition — Capability Standard. The prohibition of subsection (a) applies to the capability to produce a cross-context behavioral record, not solely to a compiled record held in active storage. The prohibition applies regardless of whether the underlying data elements are stored together, stored separately, aggregated at query time, or processed through an intermediary step. An entity may not avoid this prohibition by structuring its data architecture to aggregate data at query time rather than in stored form, by routing data through intermediate processing steps, or by any other technical mechanism designed to achieve the functional equivalent of an Operational Profile while avoiding formal storage of a compiled record. For the avoidance of doubt, the prohibition applies regardless of whether the capability is operated for the entity’s own commercial purposes or on behalf of a third party.

(d) Cross-Context Aggregation Prohibition. No entity shall acquire Covered Personal Data from multiple independent commercial sources for the purpose of combining them into a record of an individual's behavioral patterns, location history, or associational network. The prohibition applies whenever the evident purpose is construction of a comprehensive individual record rather than provision of a specific discrete service. Where an entity acquires individually linkable Covered Personal Data from two or more independent commercial sources, a rebuttable presumption arises in any enforcement proceeding that the evident purpose of that acquisition is construction of a comprehensive individual record within the meaning of this subsection. The entity may rebut this presumption by demonstrating, through the testimony of a Bureau-certified

independent technical auditor, that each data acquisition served a specific, discrete commercial purpose that did not require or produce a cross-context behavioral record of any individual, and that no such record was produced as an output of the combined data.

(e) Financial Fraud Detection Carve-Out. The prohibition on Operational Profile capability in subsections (a) and (b) does not apply to a cross-context data access system operated by a financial institution solely for the purpose of detecting fraudulent transactions, identifying money laundering activity in compliance with the Bank Secrecy Act, or preventing account takeover, provided that:

(1) the system is operated exclusively within the financial institution's direct relationship with its own customers and is not sold, licensed, transferred, or made accessible to any commercial third party; government disclosure is permitted only as required by applicable law, including mandatory Suspicious Activity Report filing with the Financial Crimes Enforcement Network under 31 U.S.C. § 5318(g), responses to grand jury subpoena, and compliance with court orders — but does not extend to voluntary transfers to any law enforcement agency or government entity beyond what applicable law specifically requires;

(2) the system does not produce or retain persistent behavioral profiles of individual customers beyond what is technically necessary for the specific fraud or AML detection function — meaning outputs are transaction-specific determinations rather than stored behavioral records; and

(3) the institution certifies annually to the Bureau that the system operates within these conditions. This carve-out does not extend to any system that produces Psychological Profiles, Precrime Risk Assessments, or Population Coverage Databases, regardless of stated fraud detection purpose.

(f) Platform Integration Rule. For any entity operating multiple distinct services, platforms, or products under a common account system, each distinct service, platform, or product from which Covered Personal Data is collected constitutes an independent contextual source for purposes of this definition, regardless of whether those services share a common authentication system, a common account identifier, a common billing relationship, or common corporate ownership. For purposes of this subsection, a “distinct service” means a product or feature set with a unified and separable primary purpose, including without limitation a general search engine, a video hosting and streaming platform, an electronic mail service, a mapping and navigation service, an e-commerce marketplace, and a social networking platform, even where those services are offered by the same entity or accessed through a common account.

(g) Single-Service Rule. Data originating from a single service within the meaning of subsection (f) does not constitute data from multiple independent contextual sources by reason of that service collecting multiple categories of behavioral data in the course of providing that single service. The following do not constitute independent contextual

sources when derived exclusively from within a single service: search queries and clicked results within a single search engine; viewing history and rating history within a single video platform; sent and received messages within a single electronic mail service; purchase history and browsing history within a single e-commerce marketplace; and posts, reactions, and follows within a single social networking platform.

(h) Cross-Service Combination Prohibition. Notwithstanding subsection (g), no entity shall combine Covered Personal Data from two or more distinct services within the meaning of subsection (f) for the purpose of advertising targeting, behavioral prediction, or profile assembly, except as specifically authorized by the user through a separately executed, affirmative consent instrument meeting all conditions of the consent standards of this subtitle, which instrument shall specifically identify each service whose data will be combined and the purposes for which the combined data will be used.

(i) Interpretive Guidance. The Bureau shall publish interpretive guidance applying subsections (f) through (h) to common platform architectures within one hundred eighty (180) days after the Director's first day of service, including illustrative examples of service combinations that do and do not constitute independent contextual sources under this definition. Such guidance shall be updated not less than annually.

Sec. 1032. Prohibition on Coordinated Data Collection and Aggregation Arrangements.

(a) Congressional Finding. Congress finds that the prohibitions of Parts C through H of this subtitle would be substantially undermined if entities could accomplish collectively what each is individually prohibited from doing. The assembly of a Population Coverage Database, the construction of an Operational Profile capability, or the production of Psychological Profiles through coordination among nominally independent entities poses the same threat to constitutional order and individual liberty as the same activity conducted by a single entity. This subtitle extends the prohibitions of Parts C through H to coordinated conduct regardless of the number of entities involved, the formality of their arrangement, the technical mechanism through which coordination is achieved, or whether any single participating entity individually exceeds any applicable threshold.

(b) Prohibition on Coordinated Data Assembly. No two or more entities shall coordinate, agree, combine, or act in concert — expressly or tacitly, formally or informally, directly or through any intermediary — for the purpose of collectively:

(1) assembling or maintaining a Population Coverage Database as defined in Sec. 1003(4), where the combined data holdings and access capabilities of the coordinating entities would exceed the threshold of that definition even if no single entity individually exceeds it;

(2) compiling, deriving, or producing Psychological Profiles as defined in Sec. 1003(2) concerning United States persons; or

(3) assembling or maintaining an Operational Profile capability as defined in Sec. 1003(3) concerning United States persons. For purposes of this subsection, the combined data holdings and access capabilities of coordinating entities includes all Covered Personal Data held by each entity; all Covered Personal Data accessible to any entity through any API, query interface, access arrangement, or contractual right to obtain data from any other coordinating entity; and all Covered Personal Data transferred from any entity to any other within the preceding twenty-four (24) months in a transfer structured in whole or in part to reduce any entity's individual record count below a threshold of this subtitle.

(c) Indicators of Prohibited Coordination. The following circumstances constitute evidence sufficient to establish a prima facie case of prohibited coordination, subject to rebuttal through clear and convincing evidence of genuinely independent business decisions:

(1) two or more entities operating under a common data standard, common identifier system, or common technical protocol that enables combination of their respective data holdings at query time;

(2) two or more entities that are members of the same industry association that has developed data interoperability standards enabling cross-entity Covered Personal Data combination;

(3) two or more entities that have entered into bilateral or multilateral access agreements that together provide any participating entity with functional access to the combined data of all participants;

(4) two or more entities that collectively offer advertisers or government entities targeting access based on the combined data of multiple entities; and

(5) two or more entities that have restructured their corporate relationships within the twenty-four (24) months preceding a Bureau investigation in a manner reducing any entity's individual record count below a threshold of this subtitle while maintaining functional combined access.

(d) Industry Association Responsibility. An industry association, trade group, or standards body that develops or licenses a data standard or technical protocol enabling its members to combine their respective Covered Personal Data holdings is a participant in prohibited coordination under this subtitle and is jointly and severally liable with its members for violations arising from coordinated activity enabled by that standard or protocol.

(e) Virtual Population Coverage Databases. A set of distributed data systems held by two or more entities constitutes a Population Coverage Database within the meaning of Sec. 1003(4) and is subject to the prohibition of Sec. 1041 and the divestiture requirement of Sec. 1051 where the combined data holdings of all entities exceed the threshold of Sec. 1003(4) and any entity can query, access, or combine data from any

other entity's system through any technical mechanism. Each entity maintaining a component of a Virtual Population Coverage Database is jointly liable with all other participating entities for violations of Sec. 1041 regardless of whether that entity individually holds data concerning more than ten million United States persons.

(f) Sequential Transaction Chains. Where Covered Personal Data passes through a chain of two or more transactions and the combined effect produces a prohibited output that no single entity could have produced from its own data holdings alone, each entity in the chain that knew or had reason to know that its data would be combined to produce a prohibited output is jointly and severally liable for that prohibited output. An entity had reason to know where:

(1) the entity's own marketing materials described the data's use for profiling or combination with other data sources;

(2) the entity received a price substantially above the arms-length market price explainable only by the data's value for combination;

(3) the downstream recipient is a Data Broker, Targeting Infrastructure Contractor, or entity registered under Sec. 1113; or

(4) the specific data categories transferred are commercially valuable primarily in combination with other data sources. An entity that transferred data in good faith without actual or constructive knowledge of prohibited downstream use, and that promptly notified the Bureau upon learning of the prohibited use, is not subject to joint liability under this subsection.

Sec. 1033. International Transfer Prohibition.

(a) No entity subject to the jurisdiction of the United States shall sell, license, transfer, export, or transmit any Psychological Profile, Operational Profile, Population Coverage Database, or

Precrime Risk Assessment, or any data package containing Covered Personal Data concerning one thousand (1,000) or more United States persons, to any foreign person, entity, or Sensitive Nation-State Actor.

(b) No entity shall grant any foreign person, entity, or government direct or indirect access to a Population Coverage Database or to any system capable of producing Psychological Profiles or Operational Profiles concerning United States persons.

(c) Any entity holding a Population Coverage Database concerning United States persons shall store such data exclusively on servers physically located within the United States or its territories.

(d) Any acquisition of a domestic entity holding a Population Coverage Database by a foreign person or Sensitive Nation-State Actor is subject to mandatory CFIUS review

under 50 U.S.C. § 4565 and is hereby designated a covered transaction regardless of transactional form.

(e) Extraterritorial Application. United States-Directed Entities as defined in Sec. 1003(16) are subject to this subtitle with respect to their activities involving the data of United States persons. The importation into the United States, or the making available within the United States through any electronic means, of any Psychological Profile, Operational Profile, Population Coverage Database, or Precrime Risk Assessment concerning United States persons produced by any entity outside the jurisdiction of the United States is prohibited. The Commission may seek civil penalties against United States-Directed Entities through civil action in any federal district court where the entity's data subjects reside, and through coordination with foreign data protection authorities in countries with which the United States has data protection adequacy agreements.

Sec. 1034. Sanctions Against Foreign Nations Conducting Psychological Profiling Operations.

(a) Congressional Direction. It is the sense of Congress that the President should consider imposing sanctions under the International Emergency Economic Powers Act, 50 U.S.C. § 1701 et seq., against any foreign government, state-owned enterprise, or entity controlled by a foreign government that the Director of National Intelligence determines is conducting psychological profiling operations against United States persons — meaning operations involving the collection, derivation, or deployment of Psychological Profiles concerning any United States persons.

(b) Annual Assessment. Not later than one hundred eighty (180) days after enactment, and annually thereafter, the Director of National Intelligence shall transmit to Congress a classified assessment, with an unclassified summary, identifying any foreign government or state controlled entity engaged in psychological profiling operations against United States persons, the scale and nature of such operations, and a recommendation as to whether sanctions under IEEPA or other available statutory authority are warranted.

(c) Congressional Notification. Where the Director of National Intelligence determines that a foreign government is conducting psychological profiling operations against United States persons and the President declines to impose sanctions within ninety (90) days of receiving the DNI assessment, the President shall transmit to Congress a written explanation of the basis for that decision, which shall be made available to the relevant intelligence committees.

Sec. 1035. Mandatory Carrier Forensic Location Data Retention and Law Enforcement Access.

(a) Retention Requirement. Every provider of commercial mobile radio service as defined in 47 U.S.C. § 332(d)(1) shall retain, for a minimum period of twenty-four (24) months from the date of collection, all cell-site location information and network-assisted location data generated in connection with each subscriber's device, including:

(1) cell site location information identifying the tower or base station to which a subscriber's device connected, with associated timestamp, geographic coordinates, and sector data where available; and

(2) network-assisted location data providing GPS-precision location information where the carrier's network collects such data in the ordinary course of providing service. This subtitle establishes a uniform national minimum retention standard, superseding any inconsistent state law requiring a shorter retention period, and does not require any carrier to collect location data it does not already collect in the ordinary course of providing service. This subtitle governs only the retention and access conditions for data already collected in the ordinary course of carrier operations.

(b) Forensic Reserve Purpose Only. Data retained under this subtitle constitutes a forensic reserve. Retained location data may not be: sold, licensed, or transferred to any data broker, advertiser, or commercial entity for any purpose; used for advertising targeting, behavioral profiling, or commercial analytics; or transferred to any government entity except as specified in subsection (c).

(c) Law Enforcement Access. Retained location data shall be accessible to law enforcement only through the following processes, each of which constitutes Constitutionally Equivalent Collection under this subtitle:

(1) Warrant — Historical Data. A warrant issued by a court of competent jurisdiction upon a showing of probable cause, consistent with Carpenter v. United States, 585 U.S. 296 (2018), for historical location data concerning a specific identified subscriber;

(2) Warrant — Geofence and Tower Dump. A warrant issued by a court of competent jurisdiction upon a showing of probable cause and particularity as to the geographic area and time period, authorizing a geofence search identifying all subscriber devices present within a defined area during a defined time period, or a tower dump identifying all devices connecting to a specified cell site during a defined time period. The warrant application must specify: the geographic boundaries; the time period, which shall be no longer than reasonably necessary; and the specific crime under investigation. Data produced under a geofence or tower dump warrant concerning individuals who are determined through subsequent investigation not to be suspects shall be destroyed within thirty (30) days of that determination and may not be retained, analyzed further, or used in any other investigation;

(3) Emergency Disclosure. A law enforcement officer may request emergency disclosure from a carrier where the officer has a good faith belief, based on specific and articulable facts, that an emergency involving imminent danger of death or serious physical injury — including kidnapping, human trafficking, child abduction, or attempted homicide — requires disclosure without delay, consistent with 18 U.S.C. § 2702(b)(8). The carrier may make the disclosure upon receipt of the request. During the seven (7) day period before magistrate review, data obtained through emergency disclosure may be used solely for the specific emergency that justified the request; any broader investigative use beyond the specific emergency is subject to the magistrate's confirmation order. Not later than seven (7) days after an emergency disclosure, the law enforcement agency that made the request shall apply to the nearest available federal magistrate judge for a judicial order confirming that the emergency threshold was genuinely met. The magistrate shall review the factual basis and issue an order confirming or rejecting the emergency basis. If the magistrate finds the emergency threshold was not met, the data obtained may not be used in any proceeding and shall be destroyed within forty-eight (48) hours of the magistrate's order; any evidence derived from that data during the seven-day window is subject to a motion to suppress in any subsequent proceeding on the ground that the underlying disclosure was not justified. If the magistrate confirms the emergency, the data may be used through normal evidentiary processes; and

(4) Court Order in Trafficking or Missing Persons Investigation. A court order issued in connection with a human trafficking investigation under 18 U.S.C. § 1591 et seq. or a missing persons investigation where there is reasonable basis to believe the subject may be a trafficking victim.

(d) Security. Carriers shall protect forensic location data retained under this subtitle using security measures no less rigorous than those applied to their most sensitive customer proprietary network information, and shall ensure that retained forensic data is not accessible to any commercial, advertising, or marketing system or personnel.

(e) Destruction. Location data retained under this subtitle shall be permanently and irreversibly deleted upon expiration of the twenty-four (24) month retention period, unless subject to a court issued preservation order in connection with a specific pending investigation. Carriers shall certify annual compliance with deletion requirements to the FCC.

(f) FCC Implementation. The FCC shall promulgate rules implementing the security and deletion requirements of this subtitle within one hundred eighty (180) days of enactment.

(g) Relationship to Population Coverage Database Prohibition. The retention of forensic location data by a carrier under this subtitle does not constitute the "assembling" or

"maintaining" of a Population Coverage Database within the meaning of Sec. 1041 or Sec. 1003(4), provided the carrier complies with all of the following conditions:

(1) the retained data is held exclusively in a dedicated forensic reserve system that is technically isolated from all commercial, advertising, marketing, and analytics systems and personnel of the carrier;

(2) the carrier does not combine the retained data with any other Covered Personal Data from commercial sources to produce Operational Profiles, Psychological Profiles, or Precrime Risk Assessments;

(3) the retained data is not accessible to any person or system within the carrier's organization except through the law enforcement access process specified in subsection (c); and

(4) access to retained data by any government entity, including any request by the carrier's own security or fraud personnel, may occur only pursuant to a court order meeting the standards of subsection (c)

(1) through (c)(4) or an emergency disclosure under subsection (c)(3). Where a carrier loses the protection of this subsection by failing to maintain any condition of paragraphs

(1) through (4), the carrier’s obligation to retain forensic location data under subsection (a) continues unaffected — the divestiture requirement of Sec. 1041 does not apply to data that is simultaneously subject to mandatory retention under this subtitle. Instead, the Bureau shall:

(A) impose civil penalties under Sec. 1122 for each day of continued non-compliance with the isolation conditions;

(B) require the carrier to submit a remediation plan within thirty (30) days restoring full compliance with all conditions of this subsection; and

(C) appoint a Bureau-certified technical monitor at the carrier’s expense to oversee compliance during the remediation period. Upon the expiration of the twenty-four (24) month retention period for any specific data, that data is subject to the deletion requirement of subsection (e) regardless of whether the carrier’s exemption has been restored. A carrier that fails to submit a timely remediation plan or fails to restore compliance within ninety (90) days of Bureau notification is subject to mandatory deregistration under Sec. 1124 if registered, and to Tier 3 civil penalties on a per-day basis for continued non-compliance.

Part D — Prohibition on Population-Scale Surveillance Commercial Activity

Sec. 1041. Prohibition on Assembling, Maintaining, and Making Available Population Coverage Databases.

(a) Commercial Activity Prohibition. No entity subject to the jurisdiction of the United States shall engage in the commercial activity of assembling, maintaining, or making available a Population Coverage Database as defined in Sec. 1003(4). This subtitle prohibits a commercial activity — the business of assembling and maintaining population-scale surveillance infrastructure — not the mere holding of property. Congress exercises its Commerce Clause authority over this activity because:

(1) the commercial activity of assembling and maintaining Population Coverage Databases substantially affects interstate commerce by creating private instruments of coercive market power over individuals, enabling foreign governments to conduct influence operations against American citizens through commercial data channels, and systematically undermining constitutional rights of United States persons in a manner that distorts the free flow of information, political participation, and economic activity across state lines;

(2) Population Coverage Databases constitute a form of data monopoly whose existence constitutes a structural restraint on the trade in personal information in which individuals are simultaneously participants and objects; and

(3) Population Coverage Databases constitute critical national security infrastructure held in private hands, analogous to covered transactions under the Defense Production Act, whose divestiture Congress may require on national security grounds independent of Commerce Clause authority.

(b) Compliance Window. The following phased application of subsection (a) governs the divestiture period:

(1) From the date of enactment, the prohibition on assembling any new Population Coverage Database and the prohibitions on international data transfer under Sec. 1033, government acquisition under Sec. 1062, and contractor laundering under Sec. 1063 take immediate effect. No new above-threshold databases may be assembled and no above-threshold data may be transferred after the date of enactment;

(2) The prohibition on maintaining an existing Population Coverage Database takes effect ninety (90) days after enactment — the date by which certified divestiture inventories are due under Sec. 1051(a)(1). An entity holding an above-threshold database on the date of enactment is not in violation of subsection (a) solely by reason of continued maintenance of that database during the first ninety (90) days after enactment;

(3) An entity that timely submits its certified divestiture inventory under Sec. 1051(a)

(1) by the ninety (90) day deadline is not in violation of subsection (a) solely by reason of continued maintenance of above-threshold data during the period between day ninety (90) and the day one hundred thirty-five (135) destruction deadline. This

protection attaches automatically and objectively upon timely inventory submission — the Bureau — or, prior to the Bureau Director's first day of service, the Bureau of Consumer Protection acting as interim enforcement authority pursuant to Sec. 1152(1) — shall deem the inventory timely if received by close of business on day ninety (90) — and terminates automatically at day one hundred thirty-five (135) regardless of whether destruction is complete. An entity may petition the Bureau for a discretionary extension of not more than forty-five (45) additional days beyond day one hundred thirty-five (135) solely upon a showing of technical impossibility — meaning that the physical or technical constraints of a specific identified system make compliant destruction within one hundred thirty-five (135) days genuinely impossible, as certified by a Bureau-approved independent technical auditor. No extension shall be granted on the basis of legal objection, business disruption, cost, or any ground other than documented technical impossibility of a specific identified system. During any extension period, a Bureau-appointed technical monitor shall be present at the entity's facilities at the entity's expense. This extension mechanism operates in addition to the system-specific extension available under Sec. 1051(a)(3), which governs extensions for identified technical constraints affecting specific enumerated systems; (4) Any entity that fails to submit a certified inventory by day ninety (90), or that submits an inventory by day ninety (90) but fails to complete certified destruction by the applicable deadline — day one hundred thirty-five (135), or such later date as the Bureau may authorize under paragraph (3) of this subsection or Sec. 1051(a)(3) — is in full violation of subsection (a) from the date of the applicable missed deadline, with each day of continued maintenance constituting a separate Tier 3 violation under Sec. 1122(e).

(5) Extended Phased Destruction Schedule for Documented Technical Impossibility. An entity that has submitted a timely and complete certified divestiture inventory under Sec. 1051(a)(1) and that demonstrates through certification by a Bureau-approved independent technical auditor as defined in Sec. 1003(25) that full destruction of all above-threshold records within one hundred thirty-five (135) days is technically impossible — meaning the physical or technical constraints of one or more specifically identified systems make compliant destruction within that period genuinely impossible as distinguished from commercially inconvenient, operationally disruptive, or financially costly — may petition the Bureau for an extended phased destruction schedule under which the following milestones govern:

(A) From the date of enactment: all new data collection causing above-threshold holdings shall permanently cease;

(B) Within one hundred thirty-five (135) days of enactment: not less than fifty percent (50%) of total above-threshold records shall be permanently and irreversibly deleted, with certified destruction reports submitted to the Bureau within five (5) business days;

(C) Within two hundred seventy (270) days of enactment: not less than seventy-five percent (75%) of total above-threshold records shall be permanently and irreversibly deleted, with certified destruction reports submitted within five (5) business days; and

(D) Within three hundred sixty-five (365) days of enactment: one hundred percent (100%) of all remaining above-threshold records shall be permanently and irreversibly deleted, with certified destruction reports submitted within five (5) business days of completion. The Bureau shall not approve a phased schedule on the basis of commercial disruption, business impact, revenue loss, or any ground other than documented technical impossibility of a specifically identified system as certified by a Bureau-approved independent technical auditor as defined in Sec. 1003(25). Failure to meet any milestone constitutes an immediate Tier 3 violation from the date of the missed milestone. During any approved phased schedule, the entity shall submit monthly progress reports to the Bureau, certified under penalty of perjury by the entity's CEO and Chief Privacy Officer or designated responsible officer under Sec. 1113(e), documenting the status of destruction activities for each system identified in the divestiture inventory, the volume of records destroyed in the preceding month, and the entity's projection for meeting remaining milestones. Where the Bureau's auditor certification program under Sec. 1116(c) is operational, the Bureau may assign a Bureau-approved independent technical auditor to the entity at the entity's expense, and such auditor shall be given immediate, unimpeded access to all relevant systems upon arrival. The Bureau retains the right to conduct unannounced on-site technical audits at any time during any approved phased schedule. An entity that has been granted a phased destruction schedule under this paragraph may not simultaneously petition for a system-specific extension under Sec. 1041(b)

(3) for any system already covered by the approved phased schedule — the entity must elect between the two mechanisms for each system and may not combine them.

(c) Takings and Property Rights Findings. Congress expressly finds that the required divestiture of Population Coverage Databases under Sec. 1051 does not constitute a taking of legitimately acquired property within the meaning of the Fifth Amendment, for the following reasons:

(1) Population Coverage Databases have been assembled primarily through the covert extraction of personal information from United States persons without their meaningful knowledge or consent, through surveillance infrastructure that courts have found to implicate Fourth Amendment protections under Carpenter v. United States and its progeny. The individuals whose personal information constitutes the substance of Population Coverage Databases retain cognizable interests in that information that have not been extinguished by their nominal inclusion in

commercial data ecosystems through terms of service agreements that courts have recognized as contracts of adhesion, presented on a take-it-or-leave-it basis without genuine negotiation, buried in documents of extraordinary length and complexity that virtually no user reads or understands;

(2) Congress finds that consent purportedly provided through general terms of service, privacy policies, and end-user license agreements to the commercial aggregation and sale of personal information does not constitute a legitimate property foundation entitling holders to just compensation under the Fifth Amendment upon the divestiture required by this subtitle. Such consent was obtained through contracts of adhesion presented on a take-it-or-leave-it basis, without genuine negotiation, in documents of extraordinary length and complexity that virtually no user reads or understands, and without meaningful disclosure of the population-scale surveillance architecture that the aggregated data would support. A database assembled through such purported consent rests on a clouded property title that does not command full market-value compensation upon congressionally required divestiture;

(3) The market value of Population Coverage Databases is substantially derived from activities — including the commercial sale of behavioral profiles, the licensing of population-scale targeting infrastructure to advertisers and government agencies, and the aggregation of data through surveillance ecosystems — that this subtitle prospectively prohibits. Under Andrus v. Allard, 444 U.S. 51 (1979), the destruction of the economic value of property through prospective prohibition does not automatically constitute a compensable taking where the prohibition is a valid exercise of congressional authority and the property retains other value. Value that is wholly derived from activities Congress has determined to be incompatible with constitutional order and democratic governance is not compensable as just compensation under the Fifth Amendment. While ‘Allard’ supports the validity of prospective prohibition, the more directly applicable constitutional framework for the destruction requirement of Sec. 1051 is the multi-factor regulatory takings analysis of ‘Penn Central Transportation Co. v. New York City’, 438 U.S. 104 (1978), set forth in finding (3B) below;

(3A) Congress further finds that the mandatory destruction requirement of Sec. 1051 is constitutionally distinguishable from a physical taking under ‘Cedar Point Nursery v. Hassid’, 594 U.S. 139 (2021). ‘Cedar Point’ addressed a government-compelled physical invasion of real property — a fundamentally different category from the compelled destruction of data assets assembled through the extraction of personal information that subjects of those assets never lawfully alienated. The destruction requirement operates on property whose title, as set forth in finding (2) above, is clouded by the circumstances of its assembly. Where ‘Cedar Point’ governs government appropriation of property for its own use, this subtitle requires the elimination of a surveillance capability — not appropriation of it by the government;

(3B) The appropriate constitutional framework for evaluating the destruction requirement is the ‘Penn Central Transportation Co. v. New York City’, 438 U.S. 104 (1978), multi-factor balancing test applicable to regulatory takings, applied against the constitutional foundation established in findings (1) through (4). Under that framework: the economic impact on regulated entities, while significant, is fully offset by the structured compliance credit of subsection (d), which reimburses all documented and reasonable costs of the destruction process; the interference with reasonable investment-backed expectations is minimal because ‘Carpenter v. United States’ had, by 2018, placed the industry on notice that government-circumventing commercial data collection was constitutionally impermissible; and the character of the governmental action — elimination of surveillance infrastructure that threatens constitutional order — represents a paradigmatic exercise of the police power that Congress may constitutionally require. Congress therefore finds that the destruction requirement does not constitute a compensable taking of property under the Fifth Amendment under any applicable framework;

(4) Value created through the unlawful extraction of personal information from United States persons and through the government procurement relationships that this subtitle prohibits is not compensable as just compensation under the Fifth Amendment. Population Coverage Databases derive substantial value from both sources — from the data subjects whose information was extracted without meaningful consent, and from the government contracts that this subtitle finds to be constitutionally impermissible — and neither source of value commands compensation upon required divestiture; and

(5) The Ralls Corp. v. CFIUS (D.C. Cir. 2014) line of cases, in which courts upheld CFIUSordered divestiture of private assets on national security grounds with minimal compensation, establishes precedent for requiring divestiture of privately held assets that constitute national security infrastructure without full market-value compensation.

(d) Structured Compliance Credit. Any entity that completes divestiture in full compliance with Sec. 1051 within the required deadlines shall be entitled to a federal tax credit equal to one hundred percent (100%) of documented, reasonable compliance costs — meaning the actual costs of the destruction process, independent auditor fees, and technical migration — but not including the asserted market value of the destroyed data itself. Notwithstanding the foregoing, an entity that demonstrates through clear and convincing evidence that specific data assets subject to mandatory destruction were acquired through documented arm's-length commercial transactions with full, informed, and individually negotiated consent of the data subjects — as distinguished from consent obtained through general terms of service or privacy policies — may petition the Commission for additional compensation reflecting a portion of the documented acquisition cost of those specific assets. The Commission shall promulgate rules

governing the standards, procedures, and limits applicable to such petitions, including a cap on total additional compensation per entity, within one hundred eighty (180) days of enactment. This credit is available to any entity that submits a timely certified destruction report under Sec. 1051(d) covering all systems known to the entity at the time of certification. Where an entity in good faith subsequently discovers a system containing above-threshold data that was not identified in the original divestiture inventory, the entity shall submit a supplemental certified destruction report covering that system within thirty (30) days of discovery; timely submission of a supplemental certification does not disqualify the entity from the compliance credit, provided the original certification was complete as to all systems then known to the entity and the supplemental system is destroyed within the thirty (30) day window. The credit is not available to entities that miss required deadlines, whose certifications are found to be deliberately false or incomplete as to known systems, or that fail to timely submit supplemental certifications for subsequently discovered systems. The Commission, in coordination with the Secretary of the Treasury, shall jointly promulgate rules defining eligible compliance costs and the procedures for claiming the credit within thirty (30) days of enactment. Not later than forty-five (45) days after enactment, the Commission shall publish interim guidance identifying the categories of costs that are presumptively eligible under this subsection pending promulgation of final rules, including at minimum: direct contractor costs of certified data destruction; independent auditor fees required under Sec. 1051(c); and technical system migration costs directly attributable to the destruction process. Entities that incur costs in reliance on this interim guidance shall not be denied the credit solely because final rules adopt a different or narrower definition of eligible costs, provided the costs were reasonable and directly attributable to destruction. The credit shall be claimed under procedures established by the Internal Revenue Service pursuant to those jointly promulgated rules. To the extent necessary to effectuate this credit, the Secretary of the Treasury is authorized to treat it as a credit against tax imposed under chapter 1 of the Internal Revenue Code of 1986.

Part E — Mandatory Divestiture

Sec. 1051. Divestiture Schedule.

(a) Any entity holding a Population Coverage Database on the date of enactment shall reduce its data holdings below the threshold within the following schedule:

(1) Within ninety (90) days of enactment: the entity shall submit to the Bureau — or, prior to the Bureau Director's first day of service, to the Bureau of Consumer Protection acting as interim enforcement authority pursuant to Sec. 1152(1) — a certified divestiture inventory, prepared by a Bureau-approved independent technical auditor, specifically enumerating every system — including primary databases, backup systems, cold storage archives, disaster recovery systems, off-site backups, cloud storage instances, third-party backup services, and any other location

in which above-threshold data is held — and the total volume of above-threshold records in each system.

(2) Within one hundred thirty-five (135) days of enactment: the entity shall complete destruction of all above-threshold records in all systems identified in the divestiture inventory, including all primary databases, active backups, cold storage archives, and disaster recovery systems. The entity shall submit a certified destruction report to the Bureau — or, prior to the Bureau Director's first day of service, to the Bureau of Consumer Protection acting as interim enforcement authority pursuant to Sec. 1152(1) — within five (5) business days of completion.

(3) Entities whose divestiture inventory identifies specific technical systems that cannot achieve compliant destruction within one hundred thirty-five (135) days due to documented technical constraints may petition the Bureau for an extension for those specific systems only. Extensions are not available for the entity's overall divestiture program, only for specifically identified technical constraints affecting specific enumerated systems. The Bureau shall grant or deny any such petition within fifteen (15) days of receipt. No extension shall exceed one hundred ninety-five (195) days from enactment. During any extension period, a Bureau-appointed technical monitor shall be present at the entity's facilities at the entity's expense.

(b) Divestiture Means Destruction. Compliance requires the certified, permanent, irreversible deletion of all above-threshold records from every system in which they are held. The following do not constitute compliant divestiture and are independently prohibited:

(1) sale or transfer of above-threshold records to any other entity — including any subsidiary, affiliate, successor entity, related party, or third party — constitutes an independent violation of this subtitle subject to Tier 3 civil penalty;

(2) anonymization, de-identification, tokenization, or any other transformation of above-threshold records without deletion. The insufficiency of anonymization for divestiture purposes reflects Congress's finding that the re-identification risk of Population Coverage Databases assembled at population scale cannot be eliminated by technical transformation alone, and that destruction is the only reliable remedy for that risk. This finding is not inconsistent with the academic research carve-out of Sec. 1011(c), which permits work on anonymized data derived from limited research datasets under strict IRB supervision, destruction requirements, and auditor certification — conditions that are categorically different from the commercial Population Coverage Databases subject to the divestiture requirement of this subtitle;

(3) transfer of above-threshold records to a government entity; and

(4) moving above-threshold records to systems outside United States jurisdiction.

(c) Certification Requirements. The destruction certification required under this subtitle must:

(1) be prepared by a Bureau-certified independent technical auditor who has independently verified, through direct system examination, that all records enumerated in the divestiture inventory have been permanently and irreversibly deleted from every listed system;

(2) specifically address every backup system, cold storage archive, disaster recovery system, and third-party backup service identified in the divestiture inventory — a certification that does not specifically address every enumerated backup and archive location is incomplete and constitutes a Tier 2 violation;

(3) be signed under penalty of perjury by both the entity's CEO and CPO as well as the lead auditor; and

(4) be submitted to the Bureau within five (5) business days of completion of destruction.

(d) Penalties for Backup Retention. Discovery of any retained above-threshold record in any system after the certified deletion date shall:

(1) create an automatic presumption of willful violation subject to Tier 3 civil penalties retroactive to the certified deletion date;

(2) result in personal criminal liability referral for the CEO and CPO who signed the destruction certification, for potential prosecution under 18 U.S.C. § 1001 for false statements in a federal filing, where the Bureau finds specific and articulable evidence that the CEO or CPO had actual knowledge of the existence of the relevant backup system at the time of signing the destruction certification. Criminal referral does not apply where the retained data is discovered in a system that the entity demonstrably did not know existed at the time of certification — such unknownsystem discoveries are governed by the civil presumption of paragraph (1) and the supplemental certification procedures of Sec. 1041(b), not by this paragraph;

(3) result in revocation of the certifying auditor's Bureau certification; and

(4) require a new comprehensive divestiture process beginning from the submission of a new inventory under subsection (a)(1).

(e) It shall not be a defense to any penalty under this subtitle that the entity was unaware of the existence of a backup, archive, or copy of above-threshold data. An entity's failure to maintain a comprehensive inventory of all systems in which its data is held constitutes negligence per se for purposes of this subtitle.

(f) Ongoing Compliance. Any entity that, following divestiture, subsequently acquires Covered Personal Data causing it to exceed the threshold shall destroy the excess within

thirty (30) days. Each day of continued non-compliance is a separate violation subject to Tier 3 civil penalty.

(g) No Reconstitution. No entity that has divested shall reconstitute a Population Coverage Database by any subsequent means. Any transaction that would reconstitute a Population Coverage Database is subject to prior Bureau review and is presumptively prohibited. An entity seeking Bureau review of a proposed transaction shall submit a written description of the transaction and its anticipated data holdings to the Bureau. The Bureau shall issue a written determination within thirty (30) days of receiving a complete submission. If the Bureau fails to issue a written determination within thirty (30) days of receiving a complete submission, the transaction remains presumptively prohibited. The entity may petition the United States District Court for the District of Columbia for expedited review, which shall issue a determination within fifteen (15) days of filing. Bureau inaction does not authorize the transaction to proceed.

Part F — Government Acquisition Prohibition and Contractor Laundering

Sec. 1061. Congressional Findings — Government Acquisition of Commercial Surveillance Data.

Congress finds the following:

(1) Federal, state, and local government agencies have systematically purchased access to commercial data compilations — including location histories, behavioral profiles, social network maps, and biometric databases — assembled by private data brokers without the knowledge or meaningful consent of the individuals whose data they contain. This commercial data acquisition strategy has been used to acquire information that agencies could not constitutionally compel through warrant, subpoena, or other lawful process, circumventing the Fourth Amendment protections recognized in Carpenter v. United States, 585 U.S. 296 (2018), which held that the government cannot use the third-party doctrine to evade constitutional warrant requirements for comprehensive personal data revealing the privacies of life.

(2) The use of algorithmic risk scoring tools to make enforcement decisions — including decisions to stop, search, question, detain, or subject individuals to heightened police contact — is constitutionally suspect and empirically counterproductive. The Supreme Court of the United States, in Terry v. Ohio, 392 U.S. 1 (1968), established that a stop requires specific and articulable facts justifying individualized reasonable suspicion — not generalized statistical likelihood based on demographic, geographic, or associational data. The application of stop-and-frisk programs based on population-level risk profiles, most extensively documented in Floyd v. City of New York, 959 F. Supp. 2d 540 (S.D.N.Y. 2013), was found to constitute an unconstitutional pattern of Fourth and Fourteenth Amendment

violations, disproportionately targeting Black and Hispanic individuals at rates that could not be explained by any legitimate law enforcement variable. Congress finds that algorithmic Precrime Risk Assessment tools, when used to make enforcement decisions, replicate and automate this unconstitutional pattern at scale — substituting a statistical score for the individualized reasonable suspicion the Constitution requires.

(3) Empirical research consistently demonstrates that enforcement-based uses of predictive and algorithmic policing tools — including tools that identify individuals as high-risk for the purpose of increasing police contact — erode the community trust that is essential to effective law enforcement. Communities subjected to algorithm-driven enforcement contact report decreased willingness to report crimes, cooperate with investigations, or engage with law enforcement, directly undermining the public safety outcomes that such tools purport to serve. Congress finds that community trust is not a secondary consideration in law enforcement effectiveness — it is a primary determinant of whether law enforcement can solve violent crimes, identify witnesses, and prevent retaliatory violence. Surveillance and enforcement practices that systematically erode that trust impose direct public safety costs that outweigh any marginal benefit from algorithmic risk prediction.

(4) By contrast, evidence-based violence intervention programs — including Ceasefire-model programs that identify high-risk individuals for the purpose of connecting them with social services, employment support, housing assistance, and violence interruption resources — have shown promising evidence of reductions in homicide and violent crime in cities including Oakland, Chicago, Baltimore, and Richmond, California, with several rigorous evaluations documenting meaningful public safety improvements, without the constitutional violations and community trust erosion associated with algorithmic enforcement decisions. Congress finds that the distinction between using risk identification for intervention and support versus using it for enforcement and coercive contact is constitutionally, empirically, and ethically fundamental, and that this subtitle is designed to preserve the former while prohibiting the latter.

(5) The Immigration and Customs Enforcement agency has contracted with commercial data analytics providers — including through its Investigative Case Management system and related data integration platforms — to assemble and analyze comprehensive profiles of individuals using commercially acquired data including travel histories, biometric data, social media data, license plate reader data, and financial records. Congress finds that these commercial data integration capabilities constitute the precise circumvention of Fourth Amendment warrant requirements that Carpenter prohibits, applied in the immigration enforcement context. The termination of these commercial data acquisition contracts is required by this

subtitle and reflects Congress's determination that immigration enforcement, like all federal law enforcement, must operate within constitutional constraints.

(6) Congress finds that the commercial data surveillance industry — including entities that aggregate, profile, license, and sell comprehensive behavioral data about United States persons to government agencies — has developed its business model in substantial part around enabling government agencies to acquire information without the constitutional process that direct government collection would require. The termination of these commercial relationships does not impair legitimate law enforcement — it requires law enforcement to use the constitutionally prescribed tools of warrant, subpoena, and consent that the Framers designed and that courts have repeatedly held are adequate to meet legitimate public safety needs.

(7) Congress further finds that data collection by government agencies serves important and legitimate purposes entirely outside law enforcement, including the administration of tax law, the surveillance of communicable disease for public health purposes, the conduct of the decennial census, the regulation of financial institutions, the administration of veterans' benefits and federal health programs, and numerous other functions of democratic governance. The agency-specific carve-outs preserved in Part N of this subtitle reflect Congress's judgment that these nonlaw enforcement data collection functions are legitimate, necessary, and constitutionally grounded. However, Congress finds that the legitimacy of non-law enforcement data collection does not extend to the sharing of that data with law enforcement or other agencies for purposes beyond the agency's specific statutory mission. Each agency carve-out preserved in this subtitle operates within a strict prohibition on inter-agency data sharing for law enforcement purposes — data collected by the Internal Revenue Service for tax administration, by the Centers for Disease Control and Prevention for public health surveillance, by the Census Bureau for population enumeration, or by any other agency operating under a Part N carve-out may not be transferred, shared, or made accessible to any law enforcement agency, intelligence agency, or other Federal Agency for any purpose beyond the specific statutory function for which it was collected, except as required by the specific statutory authority governing each agency's mandatory disclosure obligations.

Sec. 1062. Prohibition on Federal Agency Acquisition of Commercial Surveillance Data.

(a) No Federal Agency, and no Government Contractor acting on behalf of a Federal Agency, shall: purchase, license, access, or otherwise acquire any Psychological Profile, Operational Profile, Precrime Risk Assessment, Population Coverage Database, or data that the acquiring agency knows or has reason to know originates from, was derived from, or constitutes a component of any such prohibited compilation, from any commercial source; receive any of the foregoing from another agency where originally acquired commercially unless the receiving agency could independently obtain such

data through Constitutionally Equivalent Collection; or use, analyze, disseminate, or retain any Covered Personal Data acquired in violation of this subtitle.

(b) Functional Equivalence Standard. This prohibition applies to any acquisition that is functionally equivalent to a search of the kind that would require a warrant under the Fourth Amendment, as interpreted by Carpenter v. United States, 585 U.S. 296 (2018) and its progeny — meaning any acquisition of data that reveals the kind of detailed, intimate information about an individual's movements, associations, communications, or private life that the Fourth Amendment protects against warrantless government intrusion, regardless of the formal mechanism through which that data is acquired. The form of acquisition is not determinative; an agency may not avoid this prohibition by purchasing, licensing, or obtaining through contract what it could not compel through a warrantless search.

(c) Existing Government Contracts. All contracts, licenses, subscriptions, and arrangements under which any Federal Agency currently acquires Covered Personal Data or any prohibited compilation from commercial sources are terminated by operation of law upon enactment of this subtitle. The following compensation framework governs terminated contracts:

(1) Contracts entered into before June 22, 2018 — the date of the Supreme Court's decision in Carpenter v. United States — are terminated pursuant to the termination-for-convenience standards of 48 C.F.R. § 49.1. Contractors holding such pre-Carpenter contracts may recover actual costs incurred prior to termination, reasonable costs of winding down performance, and a reasonable profit on work already completed. Anticipated profits on work not yet performed are not recoverable.

(2) Contracts entered into on or after June 22, 2018 are terminated without expectation damages. Contractors holding such post-Carpenter contracts may recover only documented wind-down costs and actual costs incurred and not yet reimbursed as of the date of enactment. Anticipated profits on work not yet performed are not recoverable, because the constitutional infirmity of commercial surveillance data acquisition by government agencies was established by Carpenter at the time these contracts were entered, and contractors who chose to enter such agreements after that date assumed the legal and constitutional risk that Congress would prohibit these activities.

(3) All compensation claims arising from termination under this subtitle shall be brought exclusively in the United States Court of Federal Claims under 28 U.S.C. § 1491 and evaluated under the framework of this subsection. No claim for expectation damages, lost future profits, or anticipatory breach shall be cognizable under any contract terminated by this subtitle.

(4) Written notice of termination shall be provided by each Federal Agency to each affected contractor within thirty (30) days of enactment. No Federal Agency shall take any new action under any terminated contract after the date of enactment.

(d) Inventory Requirement. The head of each Federal Agency shall transmit a complete inventory of all contracts terminated under subsection (c) — including the contractor name, contract value, contract date, description of data acquired, and the agency's classification of the contract as pre- or post-Carpenter — to the Comptroller General, the relevant Inspector General, and the relevant congressional oversight committees within sixty (60) days of enactment. The Comptroller General shall review and publish a consolidated report within one hundred eighty (180) days of enactment.

(e) No Agency Exception by Designation. A Federal Agency may not avoid these requirements by designating a contractor, fusion center — meaning any entity that serves as an intelligencesharing hub between federal and state or local law enforcement agencies, regardless of its formal organizational structure or funding source — state or local law enforcement partner, or foreign partner as nominal recipient. Any arrangement functionally providing a Federal Agency with access to prohibited data is prohibited regardless of formal structure.

(f) Court-Supervised Supervision Conditions. Nothing in this subtitle limits the authority of any court to impose conditions of supervised release, parole, or probation that require an individual convicted of a qualifying felony to submit to location monitoring, warrantless search, or other supervision conditions as a judicially imposed term of their sentence. For purposes of this subsection, "qualifying felony" means any felony that has as an element the use, attempted use, or threatened use of physical force against the person of another, or any felony that by its nature involves a substantial risk that physical force against the person of another may be used in the course of committing the offense. Data collected pursuant to a court-imposed supervision condition:

(1) may be collected and used by the supervising corrections, probation, or parole authority solely for the purpose of monitoring compliance with supervision conditions and investigating crimes committed during the supervision period;

(2) may not be sold, licensed, or transferred to any commercial entity or data broker; and

(3) is governed by the records retention schedules and applicable law of the supervising jurisdiction, which are not modified by this subtitle. This subsection does not authorize the purchase of commercial data about supervised individuals from data brokers or commercial sources; law enforcement agencies seeking additional data about supervised individuals must use Constitutionally Equivalent Collection under subsection (a).

Sec. 1063. Contractor Laundering Prohibition.

(a) No Targeting Infrastructure Contractor shall build, operate, or provide services that: produce Psychological Profiles, Operational Profiles, Precrime Risk Assessments, or Population Coverage Databases on behalf of any Federal Agency, Government Contractor, state government, local government, county or municipal government, tribal government, fusion center as defined in Sec. 1062(e), or joint task force; integrate commercially acquired Covered Personal Data with government records, law enforcement databases, intelligence feeds, or any other government data assets to produce prohibited compilations; or provide any government entity at any level — federal, state, or local — with access to or analytical outputs from any commercially acquired Covered Personal Data that the government entity is prohibited from acquiring directly under Sec. 1062.

(b) A Targeting Infrastructure Contractor providing services described in subsection (a) is subject to the same prohibitions, civil penalties, and criminal penalties as a Federal Agency that directly acquires the prohibited data. The provision of infrastructure, platform, or analytical services through which any government entity accesses prohibited data does not insulate the contractor from liability. Any existing contract for services described in subsection (a) shall terminate not later than one hundred eighty (180) days after enactment, subject to the same compensation framework established in Sec. 1062(c).

(c) State and Local Government Acquisition Prohibition. The prohibition on commercial data acquisition in Sec. 1062 applies to all state governments, local governments, county and municipal governments, tribal governments, and all agencies and subdivisions thereof, to the same extent as it applies to Federal Agencies. No state or local law purporting to authorize such acquisition shall be construed to permit what this subtitle prohibits. State and local governments may seek Covered Personal Data only through Constitutionally Equivalent Collection — warrant, subpoena, or consent directed to the original holder of such data. Nothing in this subsection prevents any state, local, or tribal government from imposing additional restrictions on the acquisition of commercial data that are more protective of individual privacy than the requirements of this subtitle.

(d) Local Law Enforcement Operations Carve-Out. Nothing in Sec. 1062 or this subtitle prohibits a state, local, tribal, or municipal government from:

(1) Operating surveillance infrastructure owned and controlled by that local government — including fixed or mobile cameras, automated license plate reader systems, gunshot detection systems, drones, and equivalent technologies — where such infrastructure is deployed for the purpose of investigating specific crimes, responding to active incidents, or deterring criminal activity in public spaces, provided that:

(A) data collected through such infrastructure is used solely for local law enforcement purposes and is not sold, licensed, or transferred to any commercial data broker, advertising entity, or federal government entity except pursuant to a court order issued by a federal magistrate judge or district court judge upon a showing that the data is relevant to a specific, identified federal criminal investigation — voluntary disclosure of locally collected surveillance data to any federal agency outside this court order process is prohibited regardless of whether the local government received a request, suggestion, or informal inquiry from any federal actor;

(B) data is not retained beyond the period reasonably necessary for the specific investigative purpose, and in no event longer than the retention period established by applicable state or local law;

(C) the system does not produce or maintain a Population Coverage Database or persistent Operational Profile of individuals who are not subjects of a specific active investigation; and

(D) access to data collected by other jurisdictions — including neighboring cities, counties, or regional networks — is permitted only in connection with a specific documented criminal investigation, authorized through a formal written inter-agency request identifying the investigation, the data sought, and the law enforcement purpose, and limited to the specific data necessary for that investigation — routine or standing cross-jurisdictional data access that is not tied to a specific documented investigation is prohibited;

(2) Subscribing to or accessing license plate reader data from a commercial vendor for the purpose of investigating a specific identified crime or locating a specific individual subject to an arrest warrant, provided that such access is limited to the specific investigative purpose and does not result in the construction or maintenance of a persistent cross-context behavioral record of any individual not subject to an active criminal proceeding;

(3) Operating evidence-based violence intervention programs that identify specific individuals as high-risk based on individual documented criminal history, direct caseworker assessment, or intelligence developed through specific criminal investigations — as distinguished from commercial algorithmic scoring based on demographic, associational, or population-level predictive data — and offering those individuals social services, employment support, housing assistance, and violence interruption resources. Risk identification tools and processes — including commercially developed algorithmic tools — may be used solely for the purpose of connecting high-risk individuals with intervention services, support resources, and prevention programs. The use of any risk score, algorithmic output, or caseworker assessment to make any enforcement decision — including decisions to stop,

question, search, detain, arrest, or subject an individual to heightened police contact — is prohibited under Sec. 1021 regardless of whether that tool is also used for prevention purposes under this paragraph. Commercial algorithmic risk scoring tools used for enforcement decisions are not protected by this carve-out and remain subject to the full prohibitions of Sec. 1021; and

(4) Using commercial data analytics platforms or dashboards for patrol allocation, resource deployment, or crime pattern analysis, provided that such use does not involve the acquisition of Covered Personal Data about specific identified individuals from commercial sources, does not produce Psychological Profiles, Precrime Risk Assessments, or Operational Profiles of identified individuals, and is limited to aggregate, anonymized, or geographically-based pattern data. The carve-out of this subsection applies only to local governments operating under a publicly adopted, written policy governing the use of each relevant technology that is made available to the public and reviewed by an appropriate oversight body — such as a city council, police commission, or inspector general — not less than annually. A local government that fails to maintain and publish such a policy forfeits the carve-out for the relevant technology until a compliant policy is adopted and published. Nothing in this subsection authorizes any government to acquire, from any commercial source, Psychological Profiles, Operational Profiles, Precrime Risk Assessments, or Population Coverage Databases as those terms are defined in Sec. 1003.

Part G — Narrowly Scoped National Security Exemption

Sec. 1071. Scope and Absolute Limits of the National Security Exemption.

(a) The prohibitions of Parts C, D, E, and H shall not apply to collection by an element of the Intelligence Community as defined in 50 U.S.C. § 3003(4), where both stages of the predicate review established in Sec. 1072 are satisfied and the minimization and particularity requirements of Sec. 1072(c) through (e) are observed. This exemption authorizes only targeted collection against specific identified individuals satisfying the Stage One predicate of Sec. 1072(c). It does not authorize bulk, mass, or population-level collection of any kind. It does not authorize collection based on attendance at political assemblies, participation in protests, membership in political organizations, or any other constitutionally protected activity, regardless of any foreign connection asserted at the organizational level. The fact that an organization has a valid individual predicate target within it does not authorize surveillance of the organization's other members, activities, or communications except as specifically authorized under Sec. 1072(f).

(b) Absolute Limits. The following are categorically prohibited and no predicate satisfaction under Sec. 1072 authorizes them:

(1) collection targeting an individual or organization solely because of constitutionally protected political beliefs, associations, electoral activities, journalistic activities, labor organizing, religious practice, or social justice advocacy, regardless of any secondary national security characterization;

(2) collection designed to map, document, or monitor the membership, internal communications, or organizing activities of any First Amendment Organization's domestic participants, even where the organization's leadership is a valid predicate target under Sec. 1072;

(3) collection of information about domestic political activities of any First Amendment Organization for the purpose of assessing, disrupting, suppressing, or countering the effectiveness of that organization's political advocacy;

(4) use of intelligence collected under this exemption to provide operational intelligence to any political campaign, political party, electoral organization, government official for the purpose of gaining electoral, partisan, or political advantage including for use in any electoral campaign, opposition research, or partisan political operation, or for the purpose of disrupting, suppressing, monitoring, or discouraging constitutionally protected political organizing, protest activity, or peaceful assembly — regardless of whether such sharing is characterized as a legitimate law enforcement or security function; private person, commercial entity, corporation, lobbying firm, foreign government, or any other non-governmental recipient for any commercial, financial, competitive, or private benefit. This prohibition specifically covers the sharing of activist surveillance intelligence with corporations, pipeline operators, private security firms, or other commercial entities that are the subject of the activist organization's advocacy — a practice documented in the Standing Rock pipeline surveillance context and other cases in which law enforcement intelligence about protected political activity was shared with private commercial interests; and

(5) any collection predicated on an individual's or organization's association with, receipt of funding from, or expression of solidarity with a foreign organization, where that foreign relationship does not constitute Foreign Direction as defined in Sec. 1003(12).

(c) No Necessity Defense for Absolute Limits. No court shall accept operational necessity, national security urgency, or extraordinary circumstance as justification for collection within the absolute limits of subsection (b). These limits are categorical, reflecting Congress's determination that the government cannot be trusted to apply a balancing test to the surveillance of domestic political activity without systematically abusing that discretion, as the historical record documented in Part A demonstrates.

Sec. 1072. Two-Stage Predicate Review via FISA Court.

(a) Routing. Applications for collection under the national security exemption of Sec. 1071 shall be submitted to the Foreign Intelligence Surveillance Court established under 50 U.S.C. § 1803. The Stage One and Stage Two standards of this subtitle shall govern the FISA Court's review and shall take precedence over any FISA Court practice or interpretation inconsistent with those standards.

(b) Adversarial Review. Notwithstanding the procedures of 50 U.S.C. § 1804, every application under this subtitle shall be reviewed with the participation of an amicus curiae drawn from the pool established under 50 U.S.C. § 1803(i), who shall have demonstrated expertise in First Amendment law and civil liberties in addition to national security expertise. This amicus shall have standing to challenge the application on any legal, factual, or constitutional ground, including arguments that the predicate constitutes a pretext for surveillance of First Amendment-protected activity.

(c) Stage One — Foreign Direction Standard. Collection is available only where the government demonstrates by specific and articulable evidence that a specific, identified individual or organizational entity — not a general class of persons — is subject to Foreign Direction as defined in Sec. 1003(12), meaning the target is receiving operational direction, material funding satisfying the criteria of Sec. 1003(12), or strategic coordination from a foreign government, foreign intelligence service, or their knowing agents; and that the collection sought is targeted at the foreign direction relationship rather than at the domestic political activities, membership, or advocacy of the target or of any associated organization.

(d) Foreign Direction — What Does Not Qualify. The following do not satisfy Stage One: receipt of funding not meeting the materiality criteria of Sec. 1003(12); participation in international civil society networks; expression of positions that align with or are publicly supported by a foreign government; attendance at international conferences organized by foreign civil society organizations; receipt of grants from foreign-based philanthropic foundations operating independently of any government; or any combination of the foregoing regardless of number of foreign contacts.

(e) Stage Two — Minimization Targeting. Where Stage One is satisfied, the FISA Court shall issue a collection order specifying: the specific individuals whose communications may be collected, limited to those for whom independent evidence of a personal connection to the foreign direction relationship has been demonstrated, expressly excluding general organizational membership; that collection is limited to communications relevant to the foreign direction relationship and explicitly excludes domestic political organizing, membership activities, public advocacy, and internal political debates; the collection period, not to exceed ninety (90) days, subject to renewal upon a fresh showing; and Minimization Procedures governing incidentally collected information concerning domestic political activities, requiring immediate sequestration and prompt destruction.

(f) Organizational Intelligence — Scope, Purpose Limitation, and Retention. Where Stage One is satisfied against a specific identified individual within an organization, the FISA Court may authorize collection that incidentally reveals information about the organization's structure, communications, and membership to the extent necessary to determine the scope and nature of the foreign direction relationship. Such organizational collection is authorized for an initial period not to exceed one hundred eighty (180) days, subject to renewal upon a fresh showing to the FISA Court that continued organizational-level access remains necessary to assess the scope of the foreign direction relationship. A renewal application must specifically justify continued organizational-level access — it is not sufficient to show only that the individual Stage Two order is renewed. All organizational-level information collected under this subsection is subject to the following conditions:

(A) Purpose Limitation. Organizational intelligence collected under this subsection may not be used for any political assessment, shared with any political campaign, party, electoral organization, or government official for political advantage, or used to disrupt, suppress, or penalize the organization's constitutionally protected domestic activities. Use in a domestic criminal investigation arising from information discovered in the course of the foreign direction inquiry is permitted.

(B) Retention Upon Conclusion. Upon conclusion of the foreign direction investigation, organizational intelligence collected under this subsection shall be transferred to the classified judicial archive established under subtitle B of this Act rather than destroyed. Information held in the classified judicial archive is not in active circulation and may be retrieved only upon issuance of a new Stage Two order by the FISA Court in connection with a subsequent foreign direction investigation.

(C) Membership Predicate Limitation. Organizational-level collection under this subsection does not automatically constitute a Stage One predicate against individual members of the organization. Organizational intelligence may be submitted to the FISA Court as supporting evidence in an application for an individual predicate, where the Court independently determines that it establishes the required foreign direction connection for that specific identified individual or set of individuals.

(g) Renewal of Stage Two Orders. A Stage Two collection order issued under subsection (e) may be renewed upon application to the FISA Court, subject to all of the following requirements:

(1) The government shall file a renewal application not later than fifteen (15) days before the expiration of the current order. The renewal application shall specifically

demonstrate, by specific and articulable evidence independent of and in addition to the evidence supporting the original Stage One predicate, that:

(A) the target remains subject to Foreign Direction as defined in Sec. 1003

(12) — it is not sufficient to rely solely on the finding made in the original or any prior order;

(B) the collection sought continues to be targeted at the foreign direction relationship rather than the domestic political activities, membership, or advocacy of the target or any associated organization; and

(C) the collection has been conducted in compliance with the Minimization Procedures specified in the existing order and has not been used for any purpose prohibited by Sec. 1071(b).

(2) Adversarial Participation. The amicus curiae designated under subsection (b) shall participate in every renewal proceeding to the same extent as in the original application. The amicus shall have access to: the full record of the original order; all collection conducted under the order to date; any Stage Two minimization compliance reports; and the government's renewal application. The amicus shall have standing to oppose renewal on any legal, factual, or constitutional ground, including argument that the collection has drifted from its authorized scope toward surveillance of constitutionally protected activity.

(3) Compliance Review as Condition of Renewal. The FISA Court shall not grant renewal unless it affirmatively finds, on the basis of the compliance record submitted by the government and any objection raised by the amicus, that collection conducted under the expiring order has complied with the Minimization Procedures and has not been used for any purpose prohibited by Sec. 1071(b). A finding of material non-compliance with Minimization Procedures shall result in denial of renewal and referral of the compliance failure to the JEOS Director under subsection (i).

(4) Renewal Limit — Individual Orders. No Stage Two order targeting a specific individual may be renewed more than three (3) times without a fresh Stage One determination. Following three renewals, continued collection against the same individual requires a new application demonstrating Stage One predicate by fresh evidence that has not previously been presented to the FISA Court in any prior application involving that individual.

(5) Renewal Limit — Organizational Orders. No organizational-level collection order under subsection (g) may be renewed more than two (2) times. Following two renewals, the government must demonstrate to the FISA Court's satisfaction that continued organizational-level collection is the only means by which the scope of

the foreign direction relationship can be assessed — a showing that is not satisfied by general assertions of ongoing foreign government activity.

(6) Emergency Renewal. Where a Stage Two order will expire before a renewal application can be timely reviewed, the FISA Court may, upon government application made not later than twenty-four (24) hours before expiration, extend the existing order by not more than ten (10) days solely to permit completion of the renewal proceeding. No emergency extension may be granted on the basis of failure to timely prepare the renewal application. Collection conducted during an emergency extension is subject to all Minimization Procedures of the expiring order.

(h) Prohibited Use of Collected Intelligence. Intelligence collected under a valid predicate may not: map membership or build operational files on any First Amendment Organization's domestic participants; be shared with any political campaign, party, or electoral organization; or be used to disrupt or penalize domestic political activities.

(i) JEOS Monitoring of Compliance. The FISA Court shall transmit to the JEOS Director, on a classified basis, a summary of each order granted and each application denied under this subtitle, including the basis for any denial. The JEOS Director shall monitor compliance with Stage Two minimization requirements and shall have authority to refer violations to the Special Ethics Advocate and to Congress.

(j) Annual Transparency Report. The Director of National Intelligence shall publish an annual report disclosing, in unclassified form, the number of orders sought, granted, and denied — with the general basis for denials in aggregate — the general categories of foreign direction relationships targeted, and an assessment of compliance with minimization and particularity requirements.

Sec. 1073. Foreign Interference Response Mechanism — Manufactured Foreign Direction Predicates.

(a) Trigger. Where the FISA Court or the JEOS Special Ethics Advocate identifies a pattern of commercial transactions from a foreign government, foreign intelligence service, or their knowing agents that lacks a plausible legitimate commercial purpose or appears structured to manufacture a Foreign Direction predicate against a domestic First Amendment Organization, the following three tracks shall be initiated simultaneously and independently. No track is contingent on the action or inaction of any other. Such a pattern shall not be treated as evidence of Foreign Direction of the targeted organization and may not be used as a Stage One predicate under Sec. 1072.

(b) Track 1 — Judicial Record. The FISA Court shall issue a classified finding documenting the foreign interference pattern, the basis for its determination, and the identity of the foreign government actors involved to the extent known, transmitted directly and simultaneously to the Chairman and Ranking Member of the Senate Select Committee on Intelligence, the Chairman and Ranking Member of the House Permanent Select

Committee on Intelligence, the Chairman and Ranking Member of the Senate Committee on the Judiciary, and the Chairman and Ranking Member of the House Committee on the Judiciary. The FISA Court's classified finding constitutes an independent judicial record that exists and is enforceable regardless of any executive branch action or inaction.

(c) Track 2 — Congressional Notification. The JEOS Director, as an Article III officer independent of the executive branch, shall simultaneously transmit a classified referral documenting the foreign interference pattern directly to the Gang of Eight — the Speaker of the House of Representatives, the House Minority Leader, the Senate Majority Leader, the Senate Minority Leader, the Chairman and Ranking Member of the Senate Select Committee on Intelligence, and the Chairman and Ranking Member of the House Permanent Select Committee on Intelligence — without passing through any executive branch channel. Receipt of this referral by the congressional leadership constitutes independent legislative notice of the foreign interference operation from an Article III source.

(d) Track 3 — Executive Branch Notification. Simultaneously with Tracks 1 and 2, the JEOS Director shall transmit a classified referral to the Director of National Intelligence for assessment under Sec. 1034 of this subtitle. The Director of National Intelligence shall, within ninety (90) days, assess whether the conduct constitutes a foreign interference operation and transmit: a written recommendation to the President as to whether sanctions under the International Emergency Economic Powers Act, 50 U.S.C. § 1701 et seq., or other available statutory authority are warranted; and a written report to the JEOS Director and to the congressional intelligence committees identified in Track 1 confirming whether a sanctions recommendation has been transmitted to the President, the substance of that recommendation, and the President's response if any. DNI inaction does not suspend or delay Tracks 1 and 2, and congressional receipt of Tracks 1 and 2 enables Congress to act regardless of executive branch conduct.

(e) Criminal Liability. Individual agents of a foreign government who knowingly participate in a pattern of transactions designed to manufacture a Foreign Direction predicate are subject to criminal liability under 18 U.S.C. § 951 in addition to any applicable penalties under this subtitle.

Sec. 1074. Criminal Offense — Pretextual Surveillance Designation.

(a) Any government official who knowingly makes, approves, or forwards for judicial authorization a national security collection designation under this subtitle: primarily for the purpose of enabling surveillance of domestic political activity, knowing the evidentiary basis is insufficient to satisfy the Stage One standard; or knowing that the collection sought is targeted at domestic political activities rather than the foreign direction relationship; shall be guilty of a felony subject to criminal penalties under 18 U.S.C. § 242 (deprivation of civil rights under color of law), enhanced under this

subtitle to a mandatory minimum of three (3) years and a maximum of ten (10) years imprisonment, plus a fine of not more than $500,000.

(b) Conspiracy to commit a pretextual surveillance designation is subject to the same penalties under 18 U.S.C. § 371. A government official who knowingly fails to report, or actively conceals, evidence that a collection program under this subtitle is being used for purposes prohibited by Sec. 1071(b) is subject to the same criminal penalties as a principal offender.

Part H — Commercial Safe Harbor for First-Party Data

Sec. 1081. Safe Harbor.

(a) Nothing in this subtitle prohibits any entity from collecting and using Covered Personal Data to provide goods or services to individuals with whom the entity has a direct commercial relationship, where such use is limited to the Tier 1 or Tier 2 permitted categories below and complies with the combination prohibition of subsection (d). Entities relying on this safe harbor remain fully subject to the general prohibition standard and advertising data taxonomy of Part I of this subtitle; the safe harbor of this subtitle does not exempt any entity from compliance with the advertising targeting prohibitions of Secs. 1091 through Sec. 1095. An entity that qualifies for the safe harbor of this subtitle but engages in advertising targeting practices that violate Part I is subject to the full enforcement provisions of this subtitle for those Part I violations notwithstanding its safe harbor status.

(b) Tier 1 — Unconditionally Permitted: first-party purchase and transaction history with the direct merchant; explicit user-declared preferences affirmatively stated for the purpose of receiving relevant content; current-session contextual signals requiring no persistent profile; coarse geographic data at postal-code level from stated location or current-session IP, not retained beyond the session; basic self-reported demographics voluntarily provided to the first-party platform; and in-session search queries within the same platform, not retained beyond the session.

An entity does not become a Data-Monetizing Collector under Sec. 1003(7) solely by reason of deriving revenue from advertising selected and delivered on the basis of Contextual Advertising Signals satisfying all conditions of Sec. 1003(21), because session-limited contextual advertising signal processing that does not result in the transfer of Covered Personal Data to any third party does not constitute the sale, licensing, or transfer of Covered Personal Data within the meaning of Sec. 1003(7). Where an entity delivers contextual advertising through an advertising exchange or supply-side platform and provides that exchange with a Contextual Advertising Signal meeting all conditions of Sec. 1003(21) solely for the purpose of selecting and delivering the specific advertisement, that provision of the signal to the exchange does not constitute a transfer of Covered Personal Data within the meaning of Sec. 1003(7),

provided: the signal is not retained by the exchange beyond the duration of the specific advertising transaction; the signal is not combined by the exchange with any other Covered Personal Data for any purpose; and the exchange agreement contractually prohibits such retention and combination.

(c) Tier 2 — Conditionally Permitted: first-party behavioral data retained no longer than ninety

(90) days, used solely within the same platform, never shared with any third party, with functional opt-out taking effect within twenty-four (24) hours; single-platform retargeting with affirmative opt-in consent, no cross-context tracking, limited to thirty (30) days from the original interaction; aggregate non-identified cohort targeting where no individual record is retained, cohort not fewer than one thousand (1,000) individuals at the time of deployment, technically incapable of individual identification as certified annually by a Commission-approved independent auditor — the annual certification must cover not only the technical architecture of the cohort system but also logs maintained by the entity documenting the minimum cohort size actually deployed during the certification period, and the auditor shall certify that no cohort deployed during that period fell below one thousand (1,000) individuals; no prohibited variable in cohort definition; and stated price-range and product category preferences explicitly provided through account settings, not behaviorally inferred.

(d) Combination Prohibition. Data individually within Tier 1 or Tier 2 becomes prohibited when combined with other data in a manner that produces or is reasonably capable of producing a Psychological Profile, Operational Profile, or Precrime Risk Assessment. In an enforcement proceeding, where the Bureau demonstrates that an entity holds both permitted data and prohibited data within systems that are logically or technically capable of interaction, the Bureau may present this as evidence supporting an inference that the combination prohibition has been violated. The burden then shifts to the entity to demonstrate, by a preponderance of the evidence and through the testimony of a Bureau-certified independent technical auditor, that the permitted and prohibited data are maintained in systems with no logical or technical pathway for combination and that no prohibited outputs have been generated. This evidentiary inference applies in specific enforcement proceedings; it does not constitute a standing presumption of violation applicable to all entities by operation of law.

(e) Scope of Safe Harbor. This safe harbor applies only to entities that: do not sell, license, or transfer Covered Personal Data to any third party for commercial purposes; do not participate in any data cooperative, exchange, or audience-segment licensing arrangement; and do not qualify as a Data Broker or Data-Monetizing Collector under Sec. 1003(6) and (7). An entity that otherwise qualifies but transfers data outside the direct service relationship loses safe harbor protection for the specific practice or data

category that violated these conditions — not for its entire data operation — unless the violation was knowing and willful, in which case the entity loses safe harbor protection for all of its data practices.

(f) Narrow Service Provider Exception. The transfer of Covered Personal Data to a third-party technical service provider does not cause an entity to lose safe harbor protection under this subtitle solely by reason of that transfer, provided all of the following conditions are strictly and continuously met:

(1) the transfer is limited to the minimum Covered Personal Data technically necessary for the service provider to perform a single, discrete operational function — such as payment processing, fraud detection within a direct commercial relationship, identity authentication, or infrastructure hosting — on behalf of and under the documented written direction of the entity;

(2) the transfer is governed by a written data processing agreement that:

(A) prohibits the service provider from accessing, retaining, using, or disclosing Covered Personal Data for any purpose other than performing the specific contracted function;

(B) prohibits the service provider from selling, licensing, transferring, or providing access to Covered Personal Data to any third party under any circumstances;

(C) prohibits the service provider from using Covered Personal Data for its own commercial purposes, including advertising, profiling, or analytics;

(D) requires the service provider to delete or return all Covered Personal Data upon completion of the contracted function or termination of the relationship, whichever is earlier; and

(E) requires the service provider to notify the entity of any breach or unauthorized disclosure within forty-eight (48) hours of discovery;

(3) the service provider does not itself qualify as a Data Broker or Targeting Infrastructure Contractor under Sec. 1003(6) and (8) with respect to any data it holds, and the entity has verified this as part of its vendor selection process;

(4) the entity does not grant the service provider any access to Covered Personal Data beyond what is technically necessary for the specific contracted function, and maintains documented technical controls preventing such access;

(5) the entity maintains a current written register of all service providers receiving Covered Personal Data under this exception, available to the Bureau upon request within five (5) business days; and

(6) this exception does not apply to any transfer that enables the service provider to combine the transferred Covered Personal Data with data from any other source, or that results in the service provider holding Covered Personal Data concerning more

than one hundred thousand (100,000) United States persons from any single entity's transfers. A service provider that violates the terms of a data processing agreement under this subsection bears independent liability under this subtitle for those violations. The entity's safe harbor protection is not affected by a service provider's unauthorized use where the entity had no actual knowledge of the violation and maintained reasonable contractual and technical controls. An entity that knowingly permits a service provider to use Covered Personal Data beyond the scope of this exception loses safe harbor protection in full and is liable as a primary violator.

(g) United States-Directed Entities. A United States-Directed Entity as defined in Sec. 1003(16) is eligible for the safe harbor of this subtitle on the same terms as any domestic entity with respect to its first-party commercial data activities involving United States persons. A United States-Directed

Directed Entity that collects and uses Covered Personal Data solely to provide goods or services to United States consumers with whom it has a direct commercial relationship — and that complies with all conditions of Tier 1 and Tier 2 of this subtitle — is not prohibited from such collection and use by reason of its foreign incorporation or domicile. Nothing in this subsection limits the application to United States-Directed Entities of the prohibitions of Parts C, D, E, F, G, H, I, or K — the safe harbor of this subtitle covers first-party commercial data use only and does not authorize any United States-Directed Entity to assemble Psychological Profiles, Operational Profiles, or Population Coverage Databases concerning United States persons, or to transfer any Covered Personal Data to any foreign government, foreign intelligence service, data broker, political organization, or any third party other than as necessary to fulfill the specific commercial transaction for which the data was collected.

Part I — General Prohibition Standard for Advertising Targeting Data

Sec. 1082. Platform Provider Responsibility for Hosted Websites and Applications.

(a) Where a platform provider — meaning any entity that provides website hosting, application building, e-commerce infrastructure, content management, or equivalent services to third-party operators — collects, processes, or facilitates the collection of Covered Personal Data from visitors to or users of a hosted site or application, the platform provider bears primary regulatory responsibility under this subtitle for any data collection, processing, or transfer that:

(1) occurs through technical infrastructure installed, configured, or operated by the platform provider rather than by the operator of the hosted site or application;

(2) is mandated by the platform provider's standard terms of service or default technical configuration, without affirmative installation or configuration by the operator; or

(3) is conducted by the platform provider for its own commercial purposes rather than solely on behalf of and at the direction of the operator.

(b) An operator of a hosted site or application — including any individual, small business, nonprofit, or other entity using a platform provider's services to operate a website or application — is not liable under this subtitle for data collection, processing, or transfer described in subsection (a) that is conducted by the platform provider, provided the operator has not independently configured, directed, or benefited from the prohibited collection.

(c) An operator of a hosted site or application that independently configures additional data collection — meaning data collection beyond the platform provider's default infrastructure, affirmatively added by the operator — bears responsibility for that additional collection to the same extent as any direct collector under this subtitle.

(d) Platform providers subject to this subtitle shall:

(1) disclose to all operators in plain language what data is collected by the platform provider's default infrastructure from visitors to and users of hosted sites and applications;

(2) provide operators with a technically functional mechanism to disable any data collection by the platform provider that is not strictly necessary for the operation of the hosted service; and

(3) not condition the provision of core hosting services on the operator's acceptance of third-party data collection that the operator cannot disable.

(e) For purposes of this subtitle, "platform provider" includes but is not limited to: website hosting services, website building platforms, e-commerce platforms, application hosting services, content delivery networks that collect behavioral data, and any equivalent service through which third-party operators publish digital content or services to the public.

Sec. 1083. Content Recommendation Systems — Permitted and Prohibited Purposes.

(a) Congressional Findings. Congress finds:

(1) Content recommendation systems serve two distinct and separable functions:

(A) connecting users with content relevant to interests they have expressed, accounts they have chosen to follow, and communities they have chosen to join — a legitimate service function that serves the user's expressed preferences; and

(B) optimizing content selection to maximize psychological engagement, emotional captivation, time-on-platform, or susceptibility to persuasive content — which constitutes the deployment of a Psychological Profile within the meaning of Sec. 1011(a) and is prohibited by that Section regardless of whether content is organic, editorial, or paid.

(2) A recommendation system that selects content based on the user's expressed interests serves that user. A recommendation system that selects content based on predicted psychological engagement exploits that user's cognitive vulnerabilities. The prohibition of Sec. 1011(a) applies with equal force to Psychological Profiles deployed for advertising and to Psychological Profiles deployed for content ranking.

(3) Congress finds that creators are directly harmed by content recommendation systems that optimize for psychological engagement rather than user-expressed preference, because such systems force creators into constant posting cadences and escalating emotional intensity to maintain algorithmic visibility.

(b) Permitted Content Recommendation. Notwithstanding Sec. 1011(a) and Parts C, D, E, and K of this subtitle, an entity operating a content platform with a direct commercial relationship with users may operate a content recommendation system that:

(1) ranks or surfaces content from accounts, communities, or topic areas the user has explicitly followed, subscribed to, or joined, on the basis of:

(A) recency of publication;

(B) aggregate engagement signals among that account's followers generally — not individual engagement modeling of the specific target user; or

(C) explicit quality or relevance signals designated by the user through the platform's content controls;

(2) surfaces content from outside the user's explicit follows, using only data derived exclusively from the direct relationship between the platform and the user — meaning all data inputs originate from the user's own activities within this single platform and no data from any external source is combined with platform data for this purpose (which ensures this activity does not constitute an Operational Profile capability within the meaning of Sec. 1003(3) because it does not derive data from two or more independent contextual sources) — on the basis of:

(A) contextual signals from the content the user is currently viewing within the current Session as defined in Sec. 1003(22), without reference to prior session history;

(B) Explicit User-Declared Preferences as defined in Sec. 1003(24), including follows, subscriptions, saves, bookmarks, category-level like patterns, and deliberate content initiations meeting all conditions of that definition — for purposes of this subparagraph, "based on follows" means: surfacing content from the specific accounts the user follows; surfacing content topically similar to the specific content the user has saved, bookmarked, or deliberately initiated, where topical similarity is determined from that content's own subject matter rather than from behavioral engagement modeling. It does not authorize surfacing content from accounts the user does not follow on the basis that those

accounts' content is psychologically similar to content the user has engaged with;

(C) aggregate popularity signals within a content category the user has explicitly expressed interest in, derived from engagement across all users of the platform within that category rather than from modeling of the specific target user's predicted individual engagement response; or

(D) social graph signals — content that specific accounts the user explicitly follows have themselves publicly engaged with — derived from the user's explicit social connections and limited to one degree from the user's own follows (the signal does not extend to accounts followed by followed accounts through further social graph traversal). The permissions of this subsection apply only where all data used in the recommendation system is derived exclusively from the direct relationship between the platform and the user. The moment any external data source is combined with single-platform user data for recommendation purposes, the protection of this subsection no longer applies and the full prohibition of Sec. 1031(a) governs.

(3) applies content filtering based on the user's explicitly stated preferences for categories or accounts to exclude; and

(4) uses Explicit User-Declared Preferences as defined in Sec. 1003(24) as recommendation inputs, subject to the retention framework of Sec. 1003(24) for each signal type. Follows, subscriptions, saves, and bookmarks are not subject to the ninety (90) day first-party behavioral data retention limit. Passive behavioral engagement signals used as recommendation inputs are subject to the ninety (90) day limit and may not be retained beyond that period.

(c) Prohibited Content Recommendation. The following practices constitute violations of Sec. 1011(a):

(1) engagement optimization — any system that scores, ranks, or selects content for a specific user based on a model predicting that user's emotional, psychological, or behavioral response to that content, including models predicting or optimizing for watch time, emotional arousal, anger, fear, outrage, social comparison responses, or any other metric reflecting a psychological or behavioral response rather than whether content falls within a category the user has explicitly expressed interest in;

(2) notification timing optimization — any system that determines when to send notifications based on a model of when a specific user is most psychologically susceptible to returning to the platform;

(3) prohibited collaborative filtering — any collaborative filtering system that determines user similarity based on behavioral modeling identifying psychological,

emotional, or engagement-pattern similarity, or uses engagement behavior of similar users to predict the target user's emotional or psychological response to content;

(4) progressive emotional intensification — any system that deliberately sequences content to move users from lower-arousal to higher-arousal emotional states for the purpose of increasing time-on-platform or engagement metrics; and

(5) prohibited objective functions — any recommendation system whose objective function includes as a primary, secondary, or weighted component: time-on-platform or session duration; return visit frequency; scroll depth or content consumption volume used as a proxy for engagement; notification response rate or re-engagement rate following inactivity; or any other metric the Bureau determines through rulemaking under Sec. 1133 constitutes a proxy for psychological captivation rather than relevance to user-expressed preferences. Permitted collaborative filtering includes:

(A) surfacing content broadly popular among users who have explicitly stated the same interest categories as the target user through Explicit User-Declared Preferences, where similarity is based on explicit stated interest category overlap and not on behavioral modeling; and

(B) surfacing content from accounts followed by a meaningful proportion of users who also follow the same accounts as the target user, based on social graph overlap from explicit follows and not on psychological or behavioral similarity modeling.

(d) Objective Function Disclosure. Any entity operating a content recommendation or feed ranking system on a platform with more than one million (1,000,000) monthly active United States users shall:

(1) disclose to the Bureau within one hundred eighty (180) days of this subtitle taking effect, and annually thereafter, a plain-language description of the objective function of each such system, identifying each metric the system is trained to maximize or minimize, whether any component is prohibited under subsection (c)(5), and whether the system uses collaborative filtering and if so the basis for user similarity determination;

(2) make available to users an explanation of how content is recommended to them; and

(3) provide to any user who requests it, without penalty or service degradation, a chronological feed of content from accounts that user explicitly follows, in reverse chronological order of publication, free from algorithmic reordering, suppression, or insertion of content from accounts the user does not follow. No entity shall use any technical or interface mechanism to make the chronological feed option less accessible, less functional, or less visually prominent than any algorithmic feed option.

(e) Bureau Rulemaking. The Bureau shall, within three hundred sixty-five (365) days after the Director's first day of service, initiate notice-and-comment rulemaking to specify technical criteria distinguishing permitted interest-based recommendation objective functions from prohibited engagement optimization objective functions under subsection (c)(5), and technical criteria distinguishing permitted from prohibited collaborative filtering under subsection (c)(3). Until final rules are published, subsections (c) and (d) are operative and enforceable on their plain terms.

(f) Relationship to Sec. 1011(a). A content recommendation system satisfying all conditions of subsection (b) does not produce a Psychological Profile within the meaning of Sec. 1011(a) by reason of those activities. A content recommendation system violating any provision of subsection (c) produces a Psychological Profile within the meaning of Sec. 1011(a) and is subject to the full prohibition and penalties of that Section.

Sec. 1084. Explicit User-Declared Preference — Conditions, Retention, and Platform Requirements.

(a) Scope. This subtitle specifies the conditions governing the collection, use, retention, and platform obligations applicable to Explicit User-Declared Preferences as defined in Sec. 1003(24), wherever that term is used in this subtitle, including in Secs. 1081(b), Sec. 1093, Sec. 1094, and Sec. 1083.

(b) Categories of Active Preference Signal. The following constitute Explicit User-Declared Preferences: (i) Structured preference declarations — a preference affirmatively selected through a dedicated preference interface operated by the platform; (ii) Follows and subscriptions — a user's active decision to follow, subscribe to, or join a specific account, creator, channel, community, or content source. Follows and subscriptions may be retained for the duration of the user's active account subject to revocability, and the ninety (90) day first-party behavioral data retention limit of Sec. 1094 does not apply to these signals; (iii) Saves and bookmarks — a user's active decision to save or bookmark specific content. The ninety (90) day limit does not apply to save and bookmark signals; (iv) Category-level like patterns — a pattern of affirmative reactions accumulated within an identifiable content category. The underlying individual engagement records are governed by the ninety (90) day retention limit; only the derived category-level preference may be retained beyond ninety (90) days; and

(v) Deliberate content initiation — a user's active initiation of specific content by clicking, tapping, or navigating to it specifically, as distinguished from content that began playing or displaying through autoplay, algorithmic continuation, or scroll-based display without affirmative user action. The operative signal is the deliberate act of selection, not the duration of engagement following selection. The category-level preference derived must reflect the most natural general category of the content and may not be defined at a granularity enabling inference of sensitive characteristics.

(c) Governing Conditions. All Explicit User-Declared Preferences are subject to all of the following conditions:

(A) Affirmative selection only — no behavioral pre-population. Population-level decisions about which preference categories to offer to all users do not constitute prohibited behavioral pre-population, but nothing in this permission insulates any platform from applicable civil rights or anti-discrimination law;

(B) No platform-inferred sensitive categories — a user may affirmatively declare their own interest in content related to their religious beliefs, political views, health interests, or any other topic. The prohibition is on the platform inferring these characteristics from behavioral surveillance without the user's knowledge or explicit statement. Where a user affirmatively declares a preference for content in a sensitive category, that preference may be used within the platform only, subject to all conditions of Sec. 1094(A)(1);

(C) Voluntary;

(D) Revocable within seventy-two (72) hours;

(E) Platform-specific — not shared with any other platform or entity regardless of common ownership;

(F) Plain-language disclosure; and

(G) Permitted and prohibited model training — active preference signals may be used to train models that identify content within the user's stated categories and improve the platform's ability to serve those stated interests, but may not be used to infer characteristics the user has not affirmatively expressed, including demographic inference, cross-category interest modeling, or psychological engagement prediction.

(d) Preference Recalibration. Any recommendation or targeting model trained using active preference signals shall be retrained or recalibrated using current active preference signals not less than once every one hundred (100) days. The platform recalibrates automatically without requiring the user to re-express preferences. Recalibration does not delete the user's active preference signals — it governs only how frequently the model using those signals must be updated to reflect their current state.

(e) Intra-Category Diversity. Where active preference signals have established a user's interest in a general content category, a recommendation system using those signals to surface content must surface content from a reasonably diverse range of sources, topics, perspectives, and subcategories within that general category, and may not systematically collapse the category to a narrow subcategory or specific topical niche. Systematic failure to provide intra-category diversity constitutes a prohibited engagement optimization objective function under Sec. 1083(c)(5).

Sec. 1091. General Prohibition Standard.

(a) No entity shall collect, retain, use, license, sell, or process for advertising targeting purposes any data or derived inference that: enables, or in combination is reasonably capable of enabling, an assessment of psychological state, emotional condition, cognitive vulnerabilities, or susceptibility to persuasion; enables political belief, affiliation, or susceptibility inference; enables religious, health, immigration status, sexual orientation, gender identity, or financial distress inference; enables behavioral prediction going beyond transactional intent to predicting responses to persuasive or ideological messaging; or is derived from or combines data from contexts unrelated to the direct commercial relationship. For purposes of this subsection, where an entity operates multiple platforms or services, data from each platform or service constitutes a separate commercial relationship context — data from one platform or service may not be combined with data from another platform or service for advertising targeting purposes even where both are operated by the same entity, unless the user has explicitly opted in to crossplatform data use through a separately executed, affirmative consent instrument that clearly discloses the specific platforms whose data will be combined and the purposes for which the combined data will be used. The prohibitions of this subsection apply to the inference, derivation, or determination of these characteristics from behavioral data, engagement history, algorithmic modeling, or any source other than the data subject's own affirmative declaration through the means specified in Sec. 1003(24). They do not prohibit an entity from collecting, processing, or using a sensitive category where the data subject has affirmatively declared that category through an Explicit User-Declared Preference meeting all conditions of Sec. 1003(24) and the use is limited to providing content or advertising within the platform in compliance with Sec. 1094(A)(1) of this subtitle. A user who affirmatively selects "Christian content," "LGBTQ content," "conservative news," "progressive politics," or any other content category touching on a sensitive characteristic is making a permitted Explicit User-Declared Preference about their own content interests — the prohibition of this subsection does not apply to that declaration. The prohibition applies to the platform inferring these characteristics from behavioral surveillance without the user's knowledge or explicit statement. This subsection does not apply to Contextual Advertising Signals as defined in Sec. 1003(21) where all conditions of that definition are continuously satisfied, because a signal that by definition does not enable behavioral prediction, cross-session profiling, or psychological state assessment does not meet the threshold of this subsection. Frequency capping implemented through a device-level impression counter that records only impression counts for a specific advertisement unit, does not record any behavioral data in connection with those impressions, does not associate the counter with any individual-level behavioral record or account identifier, resets at the end of the defined time window, and is not shared with any third party, is similarly outside the scope of this subsection.

(b) This standard applies regardless of commercial labeling. The illustrative categories in Sec. 1092 are non-exhaustive; compliance with that list alone is not a safe harbor where the general standard is otherwise met.

Sec. 1091A. Contextual Advertising Signal — Qualifying Conditions and Permitted Use.

(a) Qualifying Conditions. A Contextual Advertising Signal as defined in Sec. 1003(21) satisfies that definition only where all of the following conditions are met:

(A) the signal is derived solely from the content currently being consumed or the query currently being submitted, and not from any prior behavioral history, cross-session record, interest graph, or account-level data point associated with the user or device, except that Explicit User-Declared Preferences as defined in Sec. 1003(24) may be used as an additional input without defeating qualification under this definition;

(B) the signal is processed within the current Session as defined in Sec. 1003(22) and is not retained in any individual-level or device-level record beyond the conclusion of that Session;

(C) no individual-level or device-level record is created, stored, or transmitted as a result of signal processing, except for session-level network identifiers — including IP addresses and session tokens — used solely for routing the current request and returning the current response, which are not retained beyond the Session and are not used for any purpose other than routing that specific request;

(D) the signal is not combined with any behavioral history, cross-session data, interest graph, Psychological Profile, Operational Profile, or Covered Personal Data beyond what is necessary to serve the specific current request; and

(E) the advertising selection process does not produce a Psychological Profile, Operational Profile, or Precrime Risk Assessment.

(b) Permitted Use. The collection, processing, and use of a Contextual Advertising Signal for advertising selection is permitted notwithstanding the general prohibitions of this subtitle where all conditions of subsection (a) are satisfied and the applicable safe harbor of Sec. 1091 or Sec. 1096 applies.

(c) Clean-Inputs Rule. The clean-inputs rule of Sec. 1011(d) applies to all systems processing Contextual Advertising Signals. A system that uses permitted contextual signals as inputs but produces output constituting a Psychological Profile has produced a prohibited output and violated Sec. 1011(a) regardless of the permissibility of the inputs.

(d) Exchange and Supply-Side Platform Provision. An entity does not become a Data-Monetizing Collector under Sec. 1003(7) solely by reason of deriving revenue from advertising selected and delivered on the basis of Contextual Advertising Signals satisfying all conditions of Sec. 1003(21). Where an entity delivers contextual

advertising through an advertising exchange or supply-side platform and provides that exchange with a Contextual Advertising Signal meeting all conditions of Sec. 1003(21) solely for the purpose of selecting and delivering the specific advertisement, that provision of the signal to the exchange does not constitute a transfer of Covered Personal Data, provided: the signal is not retained by the exchange beyond the duration of the specific advertising transaction; the signal is not combined by the exchange with any other Covered Personal Data for any purpose; and the exchange agreement contractually prohibits such retention and combination.

Sec. 1092. Illustrative Prohibited Advertising Data Categories.

Prohibited under Sec. 1091, including but not limited to: psychographic and personality profiles, including OCEAN-framework models or equivalent taxonomy; emotional and psychological state inference from any source; cross-context behavioral aggregation from two or more unrelated platforms via any tracking mechanism; social graph and relationship inference; vulnerability and life-event inference derived from behavioral or purchase data; precise or persistent location data with precision greater than postal-code level or retained beyond the current session; content-consumption-based political, religious, or health inference regardless of commercial interest-category labeling; lookalike audience modeling using any variable itself prohibited under this subtitle; and behavioral prediction scoring predicting responses to persuasive or ideological messaging rather than transactional intent.

Sec. 1093. Tier 1 — Unconditionally Permitted Advertising Data.

The following may be used for advertising targeting without restriction, provided they are not combined with any prohibited data: first-party purchase and transaction history; explicit user-declared preferences affirmatively stated for receiving relevant content; current-session contextual signals requiring no persistent profile; coarse geographic data at postal-code level from stated location or current-session IP, not retained beyond the session; basic self-reported demographics voluntarily provided to the first-party platform; and in-session search queries within the same platform.

Sec. 1094. Tier 2 — Conditionally Permitted Advertising Data.

The following may be used only subject to stated conditions: first-party behavioral data retained no longer than ninety (90) days, used solely within the same platform, never shared, with functional opt-out within twenty-four (24) hours; single-platform retargeting with affirmative opt-in consent, no cross-context tracking, limited to thirty (30) days; aggregate non-identified cohort targeting with no individual record, cohort not fewer than one thousand (1,000) individuals at the time of deployment, technically incapable of identification as certified annually by a Commission-approved independent auditor — the annual certification must cover not only the technical architecture of the cohort system but also logs maintained by the entity documenting the minimum cohort size actually deployed during the certification period, and the

auditor shall certify that no cohort deployed during that period fell below one thousand (1,000) individuals; no prohibited variable in cohort definition; and stated price-range and category preferences explicitly provided, not inferred.

Cohort Variable Standards. For purposes of the aggregate non-identified cohort targeting permitted by this subtitle, a cohort definition variable is “prohibited” within the meaning of the “no prohibited variable in cohort definition” requirement of this subtitle only where:

(A) the variable is itself an inferred or derived sensitive category — meaning a category determined through behavioral inference, algorithmic modeling, or analysis of the user’s behavioral history rather than through the user’s own affirmative declaration — and falls within the categories prohibited under Sec. 1091(a), including inferred political belief or affiliation, inferred religious belief or practice, inferred health or medical condition, inferred sexual orientation, inferred gender identity, inferred financial distress or financial vulnerability, inferred psychological state or emotional condition, or inferred susceptibility to persuasion. A cohort variable based on a sensitive category is not prohibited under this condition where the variable is derived exclusively from Explicit User-Declared Preferences as defined in Sec. 1003(24) — meaning the user affirmatively declared the sensitive category through means specified in that definition meeting all conditions including condition

(B) — provided all additional conditions of subparagraph (A) (1) are satisfied. (A)

(1) Where a cohort definition variable is derived from Explicit User-Declared Preferences in a sensitive category that the user has affirmatively declared under Sec. 1003(24), use of that variable for cohort-based advertising targeting within the platform is permitted only where all of the following conditions are satisfied: (i) Strictly intra-platform — the sensitive category cohort and the identities of individuals within it are not sold, licensed, transferred, or made accessible to any third party outside the platform under any circumstances, including through any programmatic advertising infrastructure; (ii) No re-identification — the cohort meets all existing Tier 2 conditions including the one thousand (1,000) person minimum and annual auditor certification; (iii) No cross-category inference — the sensitive category cohort may not be combined with any other data to produce inferences beyond the specific sensitive category declared; and (iv) User disclosure — the platform must clearly disclose to the user that declaring a sensitive category preference may result in advertising targeting within the platform for that category, and that this information will not be shared outside the platform.

(B) the variable functions as a reasonably predictable proxy for a prohibited category, enabling inference of that category at the individual or cohort level, as determined by the Commission pursuant to its classification authority under

Sec. 1095(c). The following cohort definition variables are expressly permitted for cohort construction under this subtitle, provided the cohort meets the one thousand (1,000) person minimum, all other Tier 2 conditions are satisfied, and the variable does not satisfy condition (A) or (B) above:

(1) product category of prior purchases within the direct commercial relationship, at a level of generality that does not enable inference of a prohibited category;

(2) service tier, subscription level, or account type within the platform;

(3) Explicit User-Declared Preferences as defined in Sec. 1003(24), subject to the intra-platform restriction of condition (A)

(1) where the preference is in a sensitive category;

(4) coarse geographic location at postal-code level; and

(5) stated price range and product category preferences explicitly provided through account settings, not behaviorally inferred. An entity claiming that a cohort variable not listed above is permitted bears the burden of demonstrating through the testimony of a Bureau-approved independent technical auditor as defined in Sec. 1003(25) that the variable does not satisfy condition

(A) or (B). Commission Classification Priority: Where the Commission classifies a variable listed above as prohibited through completed notice-and-comment rulemaking under Sec. 1095(c) and 5 U.S.C. § 553, the Commission's final rule prevails from its effective date. The Commission may not restrict a listed variable by informal guidance, enforcement action, or preliminary designation — only through completed notice-and-comment rulemaking.

Sec. 1094B. Cohort Variable Classification Standards.

(a) Presumptively Permitted Cohort Variables. The following cohort definition variables are presumptively permitted for aggregate non-identified cohort targeting under this subtitle, subject to all other applicable Tier 2 conditions including the one thousand (1,000) person minimum and annual auditor certification, and subject to Commission reclassification through completed notice-and-comment rulemaking:

(1) postal code or ZIP code of the user's stated residential address or billing address, at no finer than five-digit postal code level;

(2) product category of prior purchases within the direct commercial relationship, at a level of generality equivalent to four-digit North American Industry Classification System codes or equivalent standard retail industry taxonomy, provided the category does not itself function as a proxy for a prohibited characteristic;

(3) account age expressed in whole years;

(4) subscription tier, service tier, or product tier within the platform, provided tier definitions are not themselves defined by reference to any prohibited cohort variable;

(5) device type at the level of mobile device, desktop computer, or tablet, as reported by the device's operating system or user agent;

(6) content language preference as affirmatively stated by the user in account settings; and

(7) time zone of the user's primary enrolled device as reported by that device's operating system.

(b) Presumptively Prohibited Cohort Variables. The following cohort definition variables are presumptively prohibited as functioning as proxies for prohibited categories, subject to Commission permission through completed notice-and-comment rulemaking:

(1) any variable derived from or correlating with health or medical search queries, health-related content consumption, pharmacy purchase history, or medical appointment scheduling behavior;

(2) any variable derived from or correlating with financial distress signals, including credit inquiry frequency, overdraft transaction patterns, payday loan search queries, debt collection contact history, or bankruptcy filing records;

(3) any variable derived from location visit patterns enabling inference of religious practice, including regular visitation to religious facilities or participation in religious calendar events;

(4) any variable derived from location visit patterns enabling inference of participation in political organizing, including regular visitation to campaign offices, party headquarters, or advocacy organization facilities in connection with campaign activity;

(5) any variable derived from location visit patterns enabling inference of healthcare facility utilization, including visitation to reproductive health clinics, mental health treatment facilities, addiction treatment centers, oncology centers, or HIV treatment facilities; and

(6) any variable that an independent technical audit has found to produce differential targeting impact on any class protected under the Civil Rights Act of 1964, the Fair Housing Act, the Equal Credit Opportunity Act, or the Americans with Disabilities Act exceeding twenty

(20) percentage points in any validated study submitted to or conducted by the Commission.

(c) Unclassified Variables — Petition and Deemed Approval.

(1) An entity wishing to use a cohort definition variable not listed in subsection (a) or (b) and not previously classified by the Commission may petition the Commission for a written classification determination.

(2) The Commission shall issue a written classification determination within ninety (90) days of receiving a complete petition.

(3) Where the Commission fails to issue a determination within ninety (90) days, the variable shall be deemed granted provisional Tier 2 classification with respect to the petitioning entity only. The deemed classification:

(A) is specific to the petitioning entity and the variable as described in the petition;

(B) remains in effect until the Commission issues a final written classification through completed notice-and-comment rulemaking;

(C) provides a complete reliance defense for the petitioning entity's use of the variable during the period of deemed classification; and

(D) may not be revoked retroactively — the Commission may classify the variable as prohibited prospectively only, with ninety (90) days' written notice to the petitioning entity.

(4) An entity that has filed a complete petition shall not be subject to enforcement action for use of the petitioned variable during the pendency of the Commission's review, provided the entity suspends use of the variable within five (5) business days of receiving any Commission written notification that the variable is likely prohibited pending final classification.

Sec. 1094A. Session Termination Rules and Advertising Data Retention.

(a) Scope. This subtitle governs Session termination for purposes of advertising data retention and specifies when Contextual Advertising Signals must cease to be processed and when session-limited data retention permissions under Secs. 1091, Sec. 1093, Sec. 1094, and Sec. 1096 expire. This subtitle does not govern the retention of stored user content or the continuity of service delivery.

(b) Session Termination Conditions. A Session ends upon the earliest of:

(1) the user closing the relevant application, browser tab, or browser window;

(2) the user logging out of any account associated with the interaction;

(3) thirty (30) continuous minutes of user inactivity, subject to the active service delivery exception of subsection (c); or

(4) twenty-four (24) hours from Session initiation, subject to subsection (e).

(c) Active Service Delivery Exception. A user is not inactive during any period in which the platform is actively delivering a real-time service, including: a live voice or video communication in which the user is a participant, regardless of whether the user is

speaking or has made any keyboard or mouse input; a live audio or video streaming session the user has initiated and not paused or terminated; a real-time collaborative working session in which the user is connected and the platform is actively synchronizing content; or any other service state in which the platform is performing active real-time processing on behalf of the user. The inactivity timeout runs only from the last moment at which the user has genuinely disengaged from all active service delivery.

(d) Multi-Device Sessions. Where a platform operates across multiple tabs, applications, or devices simultaneously, the inactivity timeout runs from the most recent moment of active service delivery or affirmative user input on any such tab, application, or device within the same authenticated session.

(e) Twenty-Four Hour Limit. The twenty-four (24) hour limit applies to contextual advertising signal processing and session-limited retention permissions only and does not interrupt, terminate, or limit the delivery of any service, communication, or real-time session. A new advertising Session begins every twenty-four (24) hours for ongoing service sessions, but this renewal does not affect the continuity of the underlying service delivery in any way.

(f) Stored User Content Unaffected. This subtitle does not govern the retention of stored user content, including messages, files, documents, photographs, and any other content a user has stored within their account. A messaging conversation that is dormant or inactive is stored user content — it is not a Contextual Advertising Signal — and the fact that the user is not currently sending or reading messages does not cause stored messages to expire or be deleted under this subtitle. Nothing in this subtitle requires a platform to delete stored user content or interrupt a service by reason of the passage of any time period.

(g) Implementation Safe Harbor. An entity that implements Session termination using only the thirty (30) minute inactivity rule and the twenty-four (24) hour hard cap — without applying the active service delivery extension of subsection (c) — is deemed fully compliant with this subtitle for all advertising data retention purposes. The Bureau shall not challenge such an entity’s practices solely on the ground that longer session boundaries would have been permissible under subsection (c).

Sec. 1095. Advertising Combination Prohibition and FTC Classification.

(a) Individually permitted data becomes prohibited when combined with other data satisfying Sec. 1091(a). In any enforcement proceeding under this Part, where the Commission or Bureau demonstrates that an entity holds both permitted data and prohibited data within systems that are logically or technically capable of interaction, the Commission or Bureau may present this as evidence supporting an inference that the combination prohibition has been violated. The burden then shifts to the entity to

demonstrate, by a preponderance of the evidence and through the testimony of a Commission-approved independent technical auditor, that the permitted and prohibited data are maintained in systems with no logical or technical pathway for combination and that no prohibited outputs have been generated. This evidentiary inference applies to all entities subject to this Part regardless of whether they qualify for the safe harbor of Sec. 1081; it applies in specific enforcement proceedings and does not constitute a standing presumption of violation applicable to all entities by operation of law.

(b) The Commission shall issue guidance within one hundred eighty (180) days specifying prohibited combinations.

(c) The Commission shall classify new data types, inference techniques, and targeting methodologies into Tier 1, Tier 2, or the prohibited category by rule under 5 U.S.C. § 553, applying Sec. 1091(a) as the governing test. In any classification proceeding, the Commission shall consider and explicitly address in its rulemaking record: (i) the technical capability of the data type or technique to produce, alone or in combination at commercial scale, a Psychological Profile, Operational Profile, or Precrime Risk Assessment as defined in this subtitle — this factor is dominant and near-determinative; a data type or technique that satisfies this criterion shall be classified as prohibited absent extraordinary circumstances that the Commission shall document with specificity; (ii) the degree to which the data type or technique is necessary to deliver a specific, identifiable legitimate commercial service that cannot be delivered through Tier 1 or Tier 2 permitted data; (iii) the documented history of the data type or technique being used to produce prohibited outputs or to enable government acquisition of constitutionally impermissible information; (iv) the degree to which voluntary consumer consent is a realistic and meaningful protection against the identified harm, given the power asymmetry between data collectors and subjects; and (v) whether the less restrictive alternatives identified in Sec. 1158 — consent requirements, transparency mandates, purpose limitations, and auditing — are sufficient to address the identified harm without categorical prohibition. Factors (ii) through (v) are relevant to the Commission's analysis but do not override a finding under factor (i). Pending classification, any technique plausibly within Sec. 1091(a) is provisionally prohibited. An entity may petition for a provisional Tier 1 or Tier 2 determination; the Commission shall respond within ninety (90) days. An entity that files a complete petition for a provisional determination within thirty (30) days of first deploying or first becoming aware that a technique may be subject to classification shall not be subject to enforcement action for the provisional prohibition during the pendency of the Commission's review, provided the entity suspends deployment of the technique within five (5) business days of receiving any Commission notification that the technique is likely prohibited pending final classification. The Commission shall initiate a classification proceeding within one hundred eighty (180) days of a petition or upon its own motion where a new technique has achieved substantial commercial deployment by

two or more entities together reaching more than ten million (10,000,000) United States persons.

Part J — Prohibition on Covert Collection

Where the Annual Surveillance Ecosystem Report published under Sec. 1118 identifies an emerging technology or technique as potentially requiring a classification proceeding, the timeline for initiating that proceeding is governed by Sec. 1118(c), which establishes a ninety (90) day written determination requirement and a hard one hundred eighty (180) day initiation deadline upon reaching the commercial deployment threshold specified in that Section. The Sec. 1118(c) timeline applies in addition to and independently of the petition-based initiation process of this subsection.

Sec. 1096. Search Query Advertising Safe Harbor.

(a) Permitted Use. Notwithstanding Parts C, D, E, and the general prohibition of Sec. 1091(a) of this subtitle, an entity operating a search engine or query-based information retrieval service may collect, process, and use Covered Personal Data constituting a search query submitted by a user in the current Session as defined in Sec. 1003(22) for the purpose of selecting and delivering advertising relevant to that query, provided all of the following conditions are satisfied:

(1) the query is processed solely to return relevant results and select matched advertising for the specific current query;

(2) the query is not retained as an individual-level or device-level behavioral data point beyond the conclusion of the current Session;

(3) the advertising selection process does not combine the current query with any account-level behavioral history, prior query history, cross-session data, or Covered Personal Data beyond what is necessary to serve the specific current request;

(4) session-level network identifiers — including IP addresses and session tokens — are used solely for the technical purpose of routing the current request and returning the current response, are not retained beyond the Session, and are not combined with any other data for advertising targeting or behavioral profiling purposes; and

(5) the advertising selection process does not produce a Psychological Profile, Operational Profile, or Precrime Risk Assessment.

(b) Aggregate Query Logs for System Quality. An entity may retain query data in aggregate form for the purpose of improving the accuracy, relevance, and technical quality of search results, subject to all of the following conditions:

(1) query data is processed through a formally defined differential privacy mechanism satisfying the technical standards published by NIST under subsection (e) before any retention;

(2) all individually identifiable records, device identifiers, account identifiers, session identifiers, and IP addresses are stripped from query data before retention in any form, with stripping completed before differential privacy processing;

(3) retained aggregate data is used solely for search quality improvement and is not used for advertising targeting, user profiling, or any purpose other than search quality improvement; and

(4) retained aggregate data is not combined with Covered Personal Data from any source and is not used as training data for any system producing prohibited outputs.

(c) Opt-In Personalized Search. An entity operating a search engine may offer users an opt-in feature enabling personalized search results and matched advertising based on retained query history, subject to all of the following conditions:

(1) separately executed affirmative opt-in consent meeting all standards of Sec. 1121, specifically disclosing what query history will be retained, the retention period, how retained history will be used, and the revocation procedure;

(2) retained query history is used solely within the direct search relationship and is not transferred to any third party for any purpose;

(3) retained query history is not used to produce Psychological Profiles, Operational Profiles, or Precrime Risk Assessments;

(4) the user may permanently delete all retained query history at any time through a functional interface requiring no more than three

(3) navigational steps, with full permanent deletion taking effect within seventy-two (72) hours;

(5) core search functionality is not conditioned on enrollment in the personalization feature; and

(6) retained query history is subject to the ninety (90) day first-party behavioral data retention limit of Sec. 1094 unless extended by separately executed consent, provided no retention period exceeds three (3) years from the date of each query record regardless of consent.

(d) Prohibited Search Practices. The following practices constitute violations of Sec. 1091(a):

(1) retaining individual-level or device-level query histories beyond the current Session for advertising targeting, behavioral profiling, or search personalization purposes without separately executed affirmative opt-in consent under subsection (c); and

(2) using query data as an input to any system producing a Psychological Profile, Operational Profile, or Precrime Risk Assessment regardless of whether individual query records are retained.

(e) NIST Standards. The Director of NIST shall, in consultation with the Bureau and the Commission, publish technical standards for the differential privacy mechanisms required for aggregate query log retention under subsection (b) within one hundred eighty (180) days after the Director's first day of service. Until NIST publishes final standards, entities retaining aggregate query logs shall apply differential privacy using the parameters specified in NIST Special Publication 800-226 or its most recent successor publication as the applicable baseline.

Sec. 1101. Prohibition on Covert Audio Collection.

(a) No entity subject to this subtitle shall activate, access, or use the microphone or audio input of a user's device without: the user's explicit, affirmative, session-specific consent provided immediately before each activation; a visible, persistent on-screen indicator notifying the user that audio is being collected for the duration of collection; and immediate cessation of audio collection when the specific function requiring audio input is no longer active.

(b) No entity shall: process, retain, or analyze audio collected from a user's device for any purpose other than the specific immediate function for which consent was provided; derive, infer, or produce any targeting data, interest category, behavioral signal, or Covered Personal Data from such audio; transmit audio to any third party; or use audio as an input to any system producing outputs used for advertising targeting, behavioral prediction, or profile assembly.

(c) "Audio collection" includes not only the raw audio signal but any derivative, transcript, keyword extraction, ambient environment classification, or other output produced by processing audio from the user's device, regardless of whether the raw audio itself is retained. Processing audio to produce even a derivative output without the required consent constitutes a violation of this subtitle.

(d) On-Device Wake Word Detection. The prohibition in subsection (a) does not apply to on-device wake word detection systems, provided that such systems:

(1) process audio exclusively on the user's device without transmitting any audio signal, derivative, transcript, keyword extraction, or other output to any external server, third party, or cloud service at any stage of processing;

(2) activate solely to detect a specific trigger phrase and cease processing immediately upon detection or confirmed non-detection of that phrase;

(3) retain no audio, derivative output, or transcript beyond the duration of the detection process itself; and

(4) produce no Covered Personal Data, behavioral signal, interest category, or targeting output from the audio processed. Any wake word detection system that transmits audio, a derivative, or any output to an external server or third party before the user

has affirmatively activated the specific requested function, including systems that perform wake word processing in the cloud rather than on-device, requires the full affirmative session-specific consent specified in subsection (a) and is subject to all prohibitions of subsection (b).

Sec. 1102. Prohibition on Covert Video Collection.

(a) No entity shall activate, access, or use the camera or visual input of a user's device without: the user's explicit, affirmative, session-specific consent provided immediately before each activation; a visible, persistent on-screen indicator for the duration of collection; and immediate cessation when the specific function requiring visual input is no longer active.

(b) No entity shall process, retain, or analyze video, images, or visual data collected from a user's device for any purpose other than the specific immediate function for which consent was provided; derive any biometric data, behavioral signal, environmental classification, or Covered Personal Data from such visual data; or transmit it to any third party including any advertising platform, analytics service, or data broker.

(c) "Video collection" includes not only raw video or image capture but any derivative output including facial recognition outputs, object detection results, environmental classifications, emotional state inference from facial analysis, and any biometric data derived from visual processing, regardless of whether the raw visual data itself is retained. For purposes of this subtitle, "object detection results" are prohibited outputs only where they identify, describe, or are reasonably capable of identifying or describing a specific individual or producing Covered Personal Data about an identifiable individual. Object detection outputs that identify non-human objects — including documents, barcodes, QR codes, products, or physical environments — and that do not produce biometric data, behavioral signals, or information about identifiable individuals, are not prohibited outputs under this subsection.

Sec. 1103. Prohibition on Keystroke Monitoring and Input Capture.

(a) No entity shall capture, record, transmit, or process the individual keystrokes, text input, voice input, or gesture input of a user beyond the minimum necessary to provide the specific function the user is actively using at the time of input.

(b) No entity shall: capture or retain draft text that the user did not affirmatively submit or send; transmit individual keystrokes or raw text input to any server or third party before the user has affirmatively submitted the relevant text; use keystroke dynamics, typing patterns, or input behavior for any purpose other than accessibility functions explicitly requested by the user; or derive any Covered Personal Data from keystroke or input data, including behavioral fingerprints, psychological assessments, or identity verification markers based on typing patterns.

(c) Autocomplete and predictive text functions that process input locally on the user's device without transmitting individual keystrokes to external servers are permitted. Cloud-based input processing requires affirmative opt-in consent meeting the standards of Sec. 1121 with a clear disclosure that keystrokes are being transmitted to an external server.

(d) Text typed and deleted before submission constitutes private thought and may not be captured, retained, or transmitted under any circumstances. This prohibition applies regardless of the technical architecture of the capturing system and regardless of whether any individual deleted character is retained.

(e) Permitted Enterprise and Fraud Detection Uses. The prohibitions of this subtitle do not apply to:

(1) Enterprise Data Loss Prevention. Data loss prevention systems operated exclusively within a closed enterprise network that analyze draft content solely to prevent transmission of classified, proprietary, or regulated information, provided that:

(A) no individual keystroke or draft text is transmitted to any server or third party outside the enterprise network;

(B) the system does not retain draft content beyond the duration of the DLP scanning function;

(C) the system does not produce behavioral profiles, Covered Personal Data, or any output used for advertising targeting or individual assessment; and

(D) the system is not operated by or on behalf of any Data Broker, Targeting Infrastructure Contractor, or entity described in Sec. 1003(6) through (8).

(2) Bot Detection and Fraud Prevention. Systems that analyze keystroke dynamics, typing patterns, or input behavior solely to distinguish human users from automated systems or to detect fraudulent transaction or account activity in real time, provided that:

(A) keystroke and input data is not retained beyond the specific session or transaction for which detection is performed;

(B) the system does not produce persistent behavioral profiles or Covered Personal Data concerning any identified individual;

(C) outputs are used solely for bot detection or fraud prevention involving the specific transaction or session and are not used for advertising targeting, psychological profiling, or any other purpose unrelated to bot detection or fraud prevention in the specific transaction or session for which the data was collected; and

(D) the system operates exclusively within a direct commercial relationship between the entity and its own users or customers and is not sold, licensed, or transferred to any third party, government entity, or data broker.

Sec. 1104. Prohibition on Real-Time Mass Biometric Identification in Public Spaces.

(a) No entity subject to the jurisdiction of the United States, and no Federal Agency, state or local government entity, or Government Contractor, shall operate, deploy, or contract for the operation of any system that performs real-time biometric identification — including facial recognition, gait analysis, iris scanning, or voice print matching — of individuals who are present in publicly accessible spaces without those individuals' knowledge or consent.

(b) "Real-time biometric identification" means the automated identification or attempted identification of a specific individual from biometric data captured in public by matching that data against a database of known individuals, where identification occurs at the time of capture or within a period short enough to enable operational response to the individual's current location or activities.

(c) This prohibition applies to: surveillance camera networks equipped with facial recognition capability; drone or aerial surveillance systems with biometric identification functions; any system that scans individuals entering or present at public transit facilities, public streets, parks, places of public assembly, protests, or other public spaces; and any law enforcement tool that creates a real-time or near-real-time identification feed of individuals in public.

(d) The prohibition in subsection (a) does not apply to:

(1) opt-in biometric authentication used by private parties at specific secure access points where individuals voluntarily submit to identification as a condition of access — such as airport security PreCheck enrollment, building access systems, or device unlock features — provided that such systems do not retain biometric data beyond the specific authentication transaction;

(2) post-event forensic analysis of recorded imagery in connection with a specific, identified criminal investigation, pursuant to a warrant issued by a court of competent jurisdiction;

(3) identification of individuals who are themselves subjects of active arrest warrants, conducted pursuant to a court order, where the identification is directed at the specific named individual and not at an undifferentiated public;

(4) Biometric enrollment and authentication programs operated by the Transportation Security Administration pursuant to 49 U.S.C. § 44901, including the TSA PreCheck program and any successor expedited screening program, are governed by Sec. 1146(b) of this subtitle, which is controlling over this subtitle with respect to

TSA-operated biometric enrollment and screening programs. Nothing in this subtitle prohibits TSA from retaining biometric enrollment data to the extent required for the administration of TSA PreCheck or equivalent opt-in screening programs under Sec. 1146(b), provided that such retention complies with the conditions and limitations of that Section;

(5) Exigent Circumstances — Named Individual Recovery and Witness Identification.

(A) Named Individual Recovery. Real-time biometric identification of a specific, individually named individual who is the subject of: (i) an active Amber Alert issued pursuant to 34 U.S.C. § 20501 et seq., or an equivalent state-issued missing person alert for an adult where law enforcement has made a written finding of imminent threat to life; or (ii) a judicial order based on specific articulable facts finding that real-time biometric identification is necessary to prevent an imminent, specific threat to the identified individual's life or physical safety. Identification under this subparagraph is directed exclusively at the named subject.

(B) Witness and Bystander Identification. Where real-time or recorded biometric identification is conducted under a lawful order pursuant to this subsection or subsection

(d)(3), biometric data incidentally captured from individuals other than the named subject — including potential witnesses and bystanders — may be retained and used solely for the purpose of identifying individuals who may have information relevant to the specific investigation or emergency, subject to all of the following conditions: (i) retained biometric data may be used only to facilitate contact with or questioning of those individuals in connection with the specific investigation for which the order was issued; (ii) upon the conclusion of the specific investigation — defined as the recovery of the named individual, the closing of the criminal investigation, the final disposition of any resulting prosecution, or the expiration of the judicial order, whichever is latest — all biometric data of individuals other than the named subject shall be permanently and irreversibly deleted, including from all backup, archival, and evidentiary storage systems, unless a specific court order based on identified evidentiary need requires preservation; (iii) biometric data retained under this subparagraph may not be added to any Population Coverage Database, used to train any biometric model, shared with any commercial entity, or used for any purpose unrelated to the specific investigation; (iv) no such data may be cross-referenced against any commercial database or Population Coverage Database; (v) the law enforcement agency retaining biometric data under this subparagraph shall file a report with the Bureau within thirty (30) days of the conclusion of the investigation certifying destruction of all retained biometric data; and (vi) the judicial order shall specify the maximum retention period, which may not exceed the

duration of the investigation plus ninety (90) days for destruction, and shall require a return to the issuing court confirming destruction.

(C) Authorization Requirements. Any collection under subparagraph (A) or

(B) requires: (i) a specific judicial authorization identifying the named individual, the locations authorized for identification, the authorized systems, the duration of authorization not to exceed seventy-two (72) hours subject to renewal upon fresh judicial finding, and the maximum permitted retention period for witness and bystander data; and (ii) that authorization is directed at the specific named individual and not at any class, group, neighborhood, or undifferentiated population;

(6) Opt-In Biometric Authentication for Financial Services. Biometric identification and authentication systems operated by financial institutions as defined in 31 U.S.C. § 5312, licensed money services businesses, registered broker-dealers, registered investment advisers, and entities operating digital asset platforms registered with or regulated by a federal financial regulator, for the purpose of customer identity verification, account authentication, or fraud prevention, provided that:

(A) the individual has provided affirmative, specific, written opt-in consent to biometric enrollment meeting the consent standards of Sec. 1121;

(B) biometric data is retained exclusively within the direct relationship between the financial institution and the enrolled customer and is used exclusively for that customer's identity verification and authentication;

(C) biometric data is not combined with any data from any external source;

(D) biometric data is not sold, licensed, transferred, or otherwise made available to any third party under any circumstances, including as part of any merger, acquisition, bankruptcy proceeding, or asset sale — in such transactions, enrolled biometric data shall be destroyed rather than transferred unless the successor institution independently obtains fresh opt-in consent from each enrolled individual;

(E) the institution provides a functional, penalty-free revocation mechanism allowing deletion within seventy-two (72) hours of the revocation request;

(F) the institution submits to annual independent technical audit verifying compliance; and

(G) the biometric system is not used for real-time identification of individuals in publicly accessible spaces.

(e) Deletion of Incidentally Captured Biometric Data.

(1) General Rule. Any biometric data incidentally captured from individuals who are not the subject of a lawful warrant or order under subsection (d) shall be permanently

deleted without retention, indexing, or further analysis, immediately upon determination that the individual is not the subject of such a warrant or order, and in no event later than twentyfour (24) hours after the time of capture, except as provided in paragraph (2).

(2) Witness and Bystander Retention Exception. Where biometric data of an individual who is not the named subject of a warrant or order is retained for witness or bystander identification purposes pursuant to subsection (d)(5)(B), that data shall not be subject to the twenty-four hour deletion requirement of paragraph (1) but is instead subject to the retention and destruction framework of subsection (d)(5)(B)(ii) through (vi).

(3) No Reuse. Biometric data retained under paragraph (2) may not be repurposed, crossreferenced against other investigations, or transferred to any other law enforcement matter without a new judicial order specific to that matter and that individual.

(4) Retention of incidentally captured biometric data beyond the periods specified in paragraphs (1) or (2), or use of such data for any purpose other than those authorized in subsection (d)(5)(B), constitutes an independent violation of this subtitle regardless of the reason for delay or the purpose of reuse. No biometric data captured under the narrow warrant exception of subsection (d) shall be added to any Population Coverage Database, used to train any facial recognition model, or retained beyond the specific criminal investigation for which the warrant was issued.

Sec. 1105. JEOS Monitoring Application — Comprehensive Device-Layer Collection.

(a) Congressional Finding. Congress finds that individuals who voluntarily seek and assume positions of extraordinary public trust and governmental power accept, as a condition of that trust, comprehensive monitoring of their enrolled devices — both government-furnished and personally owned — during their term of office. This monitoring is the constitutional condition of public power itself, realized through the only branch of government that the Framers designed as a check on executive overreach. The commercial surveillance protections of Part J of subtitle A (ASPPEA) are designed to protect ordinary citizens from non-consensual corporate surveillance and government overreach through commercial data collection. They are not the appropriate framework for JEOS monitoring of individuals who have voluntarily accepted oversight as a condition of holding extraordinary governmental authority. The scope of collection authorized by this subtitle reflects the scope of that accepted condition, not an intrusion upon it.

(b) Scope of Collection. The prohibitions of Secs. 1101, Sec. 1102, Sec. 1103, and Sec. 1104 of subtitle A (ASPPEA) do not apply to JEOS monitoring of Covered Officials conducted pursuant to this subtitle and subtitle B of this Act. The JEOS

monitoring application is authorized to collect the following from all enrolled devices of Covered Officials — both government-furnished and personally owned — during their term of office:

(1) Screen Capture. Capture of all screen content on enrolled devices. Screen capture may operate continuously or may be agentically selected — meaning the JEOS monitoring application or an authorized on-device agentic process may determine, using automated criteria established by the JEOS Director, which screen states are captured and transmitted based on content indicators, application context, communication patterns, or other Director-specified parameters. The Director shall specify the operative screen capture mode in the classified operational directives maintained under subsection (b)(6).

(2) Keystroke and Input Data. All keystrokes, text input, voice input, and gesture input across all applications on enrolled devices, including draft text deleted before submission and input made in any application regardless of whether it is in active foreground use. Text deleted before submission constitutes a potential record of official deliberation and is not excluded from JEOS collection under Sec. 1103(d) of subtitle A — that provision applies to commercial actors and does not govern JEOS. The foreground limitation applicable to commercial surveillance under Part J does not apply to JEOS collection under this subtitle.

(3) Location. Precise geolocation data collected continuously at intervals sufficient to maintain an accurate, uninterrupted location record throughout the Covered Official's term of office.

(4) Power State and Device Activity. Logging of all device power-on and power-off events, screen lock and unlock events, and application activity records identifying which applications are open, active, or running in the background and when.

(5) Communications Metadata. All metadata associated with any communication transmitted from or received by enrolled devices, including sender, recipient, timestamp, duration, application used, device identifiers, network identifiers, and any routing or relay information. This applies to all communications regardless of the platform or application used.

(6) Audio. Audio collection from enrolled devices operates under rules established and maintained by the JEOS Director in classified operational directives. The Director may propose any combination of the following audio collection modes, subject to affirmative authorization by the JEOS Full Panel by majority vote. The Director may not modify authorized audio collection modes except upon the same Full Panel authorization process. All authorized audio collection mode designations shall be transmitted to the JEOS Full Panel quarterly in classified operational directives:

(A) ambient collection — continuous audio capture from enrolled device microphones regardless of device activity, application state, or user speech;

(B) voice-activated collection — audio capture triggered automatically whenever the enrolled device's microphone detects human speech, capturing the full duration of detected speech and a configurable buffer period before and after detection;

(C) location-triggered collection — audio capture activated automatically when the enrolled device is at or within a defined proximity of locations designated by the Director, including foreign diplomatic facilities, foreign consulates, locations associated with known or suspected foreign intelligence operatives, or any other location the Director designates. Audio is automatically transcribed by JEOS government-operated transcription infrastructure and entered into the JEOS archive as the primary searchable record, with raw audio retained as source material. The Director shall maintain a classified log of all active audio collection mode designations and location triggers, transmitted to the JEOS Full Panel quarterly.

(7) Video. Video capture from enrolled devices is authorized upon the issuance of a JEOS Investigative Order under Sec. 1232 with respect to the subject Covered Official. Video capture is not part of baseline continuous collection but activates as part of the full subpanel review authorized by the Investigative Order.

(8) Agentic On-Device Search and Selection. The JEOS Director is authorized to deploy autonomous agentic tooling on enrolled devices for the purpose of on-device search, identification, and selective return of Official Communications content and related materials to JEOS Secretariat infrastructure. Such agentic tooling shall:

(A) operate ondevice, applying Director-established search parameters to identify communications, documents, files, or records bearing indicators of Official Communications content or Triggering Violation indicators;

(B) return selected content and associated metadata to JEOS infrastructure through the dedicated government-controlled encrypted channel specified in subsection (d);

(C) operate without any intermediate commercial cloud relay, commercial infrastructure involvement, or transmission to any non-JEOS system at any stage. The Director shall maintain classified operational specifications for all deployed agentic tooling, transmitted to the JEOS Full Panel. Congress directs that the JEOS Secretariat shall explore and develop autonomous agentic on-device tooling capabilities as a core component of the JEOS technical architecture, to be incorporated into the system design specifications under Sec. 1211(k) and evaluated as part of the red team security verification under Sec. 1263(b)(11) and (12).

(9) New Device Acquisition. A Covered Official who acquires any new communications-capable device after initial enrollment shall enroll that device with the JEOS Secretariat within forty-eight (48) hours of acquisition. Failure to enroll a newly acquired device within forty-eight (48) hours is an independent violation subject to the penalty provisions of Sec. 1251. This enrollment obligation does not apply to devices used exclusively for authorized clandestine intelligence operations under a Controlled Access Program designation certified in writing by the Director of National Intelligence under Sec. 1224(f), provided such devices are not used for any Official Communication outside the scope of that specific clandestine operation and are not used to conduct, coordinate, or plan any activity constituting a Triggering Violation under Sec. 1203(6).

(c) Retention — Tiered Framework.

(1) Active Window — 260 Days. All data collected under subsection (b) is retained in the active JEOS archive for two hundred sixty (260) days from the date of collection, subject to continuous automated analysis under the tiered review framework of Sec. 1231. During the active window, all collected data is treated equally regardless of content — the automated system applies Tier 1 real-time screening and Tier 2 contextual re-analysis across the full dataset without distinction between Official Communications content and personal content.

(2) Post-260-Day Automated Classification. Upon expiration of the active window, the automated system shall apply a final classification pass to all collected data not currently subject to an active Investigative Order or legal hold. The automated system shall classify each communication or data record into one of two categories:

(A) Official Nexus Category — any communication or data record that: contains indicators of Official Communications content as defined in Sec. 1203(2) of subtitle B; contains indicators of a Triggering Violation under Sec. 1203(6) of subtitle B; is connected to any completed, pending, or dismissed Investigative Order; is subject to any legal hold, congressional subpoena, or court order; or cannot be affirmatively classified by the automated system as having no official nexus. All communications in this category transfer to the twenty-five (25) year classified judicial archive under paragraph (3). Where the automated system cannot make an affirmative determination, the default is archival transfer, not deletion.

(B) Personal Category — any communication or data record that the automated system affirmatively determines contains no Official Communications indicators, no Triggering Violation indicators, no connection to any Investigative Order, and no connection to any legal hold or outstanding subpoena. The automated system’s affirmative determination must satisfy a high confidence

threshold established by the JEOS Director in consultation with NIST and published in unclassified summary form.

(3) Twenty-Five Year Classified Judicial Archive. All data in the Official Nexus Category transfers to the classified judicial archive with retention for twenty-five (25) years. Archived data may not be accessed except through the tiered key authorization process of Sec. 1222(4) in connection with a JEOS Investigative Order, a congressional subpoena processed under Sec. 1156(g), or a court order. JEOS data in the classified judicial archive may not be destroyed, purged, or transferred outside the archive except pursuant to a JEOS Panel order under paragraph (5).

(4) Authorized Deletion of Personal Category Data. Data classified in the Personal Category under paragraph (2)(B) is subject to deletion rather than archival transfer, subject to the following:

(A) The automated system shall generate a deletion authorization report identifying the communications and data records classified in the Personal Category, the basis for each classification, and the automated system's confidence level. No human reviews the content of communications identified in this report.

(B) A single JEOS Panel judge shall review the deletion authorization report — not the underlying content — and shall authorize deletion if satisfied that the automated classification methodology was properly applied and that no identified record is subject to a legal hold or outstanding subpoena. The judge's review is of the automated system's process and output, not of the communications themselves.

(C) Upon judicial authorization, the identified data is permanently and irreversibly deleted from all JEOS systems. Deletion shall be certified to the JEOS Full Panel and logged in the JEOS audit record.

(D) The deletion authorization process shall be completed not later than thirty (30) days after the expiration of the active window for the relevant data.

(5) Panel-Ordered Deletion from the Classified Archive. The JEOS Full Panel may order deletion of data from the classified judicial archive only on the following grounds:

(A) the data has been affirmatively determined by the automated system to fall within the Personal Category under paragraph (2)(B) but was transferred to the archive due to a processing error; or

(B) the data constitutes communications protected by a recognized legal privilege — including attorney-client privilege or spousal privilege — and the Special Ethics Advocate has confirmed that no crime-fraud exception or other exception to the privilege applies and that the data has no connection to any completed, pending,

or dismissed Investigative Order. Panel-ordered deletion is not available for any data that:

was the basis of a Criminal Referral; is subject to a congressional subpoena or court order; or is connected to any completed, pending, or dismissed Investigative Order. Deletion of any such data would constitute obstruction and is categorically prohibited regardless of any Panel order.

(6) Retention Framework Governs Over Part J. The retention framework of this subtitle — not the shorter retention periods applicable to commercial actors under Part J of subtitle A — governs all JEOS-collected data. The twenty-five year archive period reflects the congressional finding that records of official conduct may have evidentiary, historical, and accountability value that cannot be assessed at the time of collection.

(d) Transmission and Infrastructure. Enrolled devices transmit JEOS-collected data to JEOS Secretariat infrastructure exclusively through dedicated government-controlled encrypted channels operating on government-controlled infrastructure, with no routing through commercial internet infrastructure, commercial cloud services, or non-government relay points at any stage of transmission. JEOS Secretariat storage and processing infrastructure is physically isolated from all commercial networks — receiving data only through the dedicated government-controlled channels described in this subsection — and is operated exclusively on government-owned, government-controlled hardware. No commercial cloud infrastructure, commercial DNS resolution, or commercial routing is used at any layer of the storage or processing architecture.

(e) Use Limitations. All collection under this subtitle is subject exclusively to the JEOS oversight framework of subtitle B, the Review Surfacing Procedures of Sec. 1241, and the tiered review framework of Sec. 1231. JEOS-collected data may not be used for any purpose other than determining whether a Triggering Violation has occurred and, where one has, facilitating the referral process of Sec. 1232(c). JEOS data may not be shared with any commercial entity, used to produce any Psychological Profile or Operational Profile, or used for any purpose unrelated to the review of potential Triggering Violations by Covered Officials. Unauthorized use of JEOS-collected data constitutes a Tier 3 violation of subtitle A and, where committed by a government official, criminal liability under 18 U.S.C. § 242.

(f) Termination. Collection under this subtitle terminates immediately and automatically upon the Covered Official leaving their covered position. All collection shall cease and devices shall be unenrolled within forty-eight (48) hours of departure. Data collected prior to departure remains in the JEOS archive and is not subject to deletion upon departure, remaining accessible under the retention and access rules of this subtitle.

(g) Audio Collection Severability. If any audio collection mode authorized by subsection (b)(6) is held unconstitutional as applied to any category of person, location, or

circumstance, the remaining audio collection modes and all other collection authorities of this subtitle continue in full force and effect as applied to all categories of person, location, and circumstance not affected by that holding.

Sec. 1106. Prohibition on Platform Access to Private Communications Content.

(a) General Prohibition. No operator of a platform, application, or service that provides private electronic messaging between users — including direct messaging, private chat, encrypted messaging, and inbox communications — shall access, read, scan, analyze, process, retain, or disclose the content of private communications between users except as specifically permitted by subsections (b), (c), and (d).

(b) CSAM Detection — Preserved and Required.

(1) Preservation of Existing Practices. Nothing in this subtitle prohibits or limits any CSAM detection practice currently deployed by a platform, including hash-matching, perceptual hashing, AI-based image and video classification, text-based exploitation detection, or any other method used to identify, remove, or report child sexual abuse material. Nothing in this subtitle impairs any platform's obligation to report known CSAM to the National Center for Missing and Exploited Children's CyberTipline under 18 U.S.C. § 2258A, and any detection activity undertaken for the purpose of fulfilling that obligation is expressly permitted regardless of the technical method used.

(2) Mandatory Baseline — Hash-Matching. Any platform with one million (1,000,000) or more monthly active United States users shall deploy hash-matching of known CSAM using databases approved by NCMEC not later than one hundred eighty (180) days after the date of enactment. Platforms that already deploy equivalent or more advanced detection are deemed to have satisfied this requirement.

(3) Mandatory Advanced Detection. Any platform with ten million (10,000,000) or more monthly active United States users shall deploy AI-based detection of novel CSAM — meaning CSAM not yet catalogued in known hash databases — using detection methods certified by NIST under subsection (e) not later than ninety (90) days after NIST publishes applicable certification standards under subsection (e).

(4) Detection Conditions. CSAM detection under this subsection shall operate subject to the following conditions:

(A) detection shall be automated — no platform employee shall access the content of any private communication except upon a confirmed detection flag;

(B) upon a confirmed detection flag, human review shall be limited to the minimum necessary to verify the detection and prepare a CyberTipline report, and the reviewer shall be a designated trust and safety employee apoperating under documented legal hold procedures;

(C) detection data, including false positive data, may not be used for advertising targeting, user profiling, behavioral analytics, or any commercial purpose; and

(D) a confirmed detection flag shall be reported to NCMEC's CyberTipline under 18 U.S.C. § 2258A promptly and with all associated metadata, account information, and IP addresses required by applicable law to support law enforcement investigation.

(c) Other Permitted Platform Access.

(1) Platform Security and Integrity. Automated scanning strictly limited to detecting malware, viruses, and malicious code transmitted through the messaging system; identifying spam, phishing attempts, and coordinated inauthentic behavior patterns that threaten platform integrity or user safety; and enforcing the platform's own terms of service with respect to conduct — not content — including automated detection of known prohibited file types. Security scanning shall be technically designed to examine only the minimum necessary indicators of malicious activity and shall not produce or retain any record of the substantive content of user communications beyond what is technically necessary for the specific security function. No data generated through security scanning may be used for advertising targeting, user profiling, or any commercial purpose.

(2) User-Reported Content. Review of specific communications that a user has affirmatively reported to the platform as abusive, threatening, harassing, or otherwise violating platform policies, where the review is initiated solely by the user's report, is limited to the specific reported communication and its immediate context, and is conducted for the purpose of evaluating the report and taking appropriate action. No data from user-reported content review may be used for advertising targeting, user profiling, or any commercial purpose.

(d) Legal Process Access. A platform may access and disclose private communications content in response to:

(1) a valid warrant issued by a court of competent jurisdiction upon a showing of probable cause;

(2) a court order issued under 18 U.S.C. § 2703(d) upon a showing of specific and articulable facts;

(3) an emergency disclosure where the platform has a good faith belief under 18 U.S.C. § 2702(b)(8) that an emergency involving danger of death or serious physical injury requires immediate disclosure; or

(4) the affirmative, informed, opt-in consent of all parties to the specific communication. Legal process disclosures shall be limited to the specific communications identified in the legal process instrument and shall not authorize bulk collection or pattern analysis of user communications beyond what is specified.

No platform may voluntarily disclose private communications content to any government entity, law enforcement agency, intelligence agency, or foreign government outside these legal process pathways, regardless of whether the platform received a request, suggestion, or informal inquiry from any government actor.

(e) NIST Standards Development. The Director of the National Institute of Standards and Technology shall, in consultation with the National Center for Missing and Exploited Children, the Department of Justice, and Thorn — a nonprofit organization specializing in CSAM detection technology — develop and publish technical certification standards for AI-based novel CSAM detection methods not later than ninety (90) days after the date of enactment. These standards shall address: classifier accuracy and minimum acceptable true positive rates; maximum acceptable false positive rates; trusted execution environment requirements to prevent commercial repurposing of detection outputs; audit and certification procedures for detection methods seeking compliance certification; and procedures for ongoing review and updating of standards as detection technology evolves.

(f) Transparency Reporting. Any platform with one million (1,000,000) or more monthly active United States users shall transmit an annual report to the Senate Committee on the Judiciary, the House Committee on the Judiciary, the Senate Committee on Commerce, Science, and Transportation, and the House Committee on Energy and Commerce not later than March 1 of each year for the preceding calendar year, and shall provide the same report to NCMEC simultaneously, disclosing:

(1) a description of all CSAM detection methods currently deployed, including whether hash-matching and AI-based novel CSAM detection are in use;

(2) the volume of CSAM detections and CyberTipline reports generated in the reporting year;

(3) false positive rates and a description of how false positives are identified and remediated;

(4) known prosecutorial outcomes resulting from CyberTipline reports generated by the platform, to the extent available from NCMEC or law enforcement;

(5) deployment challenges, including the specific impact of end-to-end encryption on detection capability and the volume of content the platform cannot currently scan;

(6) the platform's assessment of which detection techniques are most effective and its recommendations for improving detection capability, including techniques the platform has not yet deployed and the challenges associated with deployment; and

(7) any significant changes to detection methods made during the reporting year.

(g) Congressional Study. The Senate Committee on the Judiciary and the House Committee on the Judiciary, in consultation with NCMEC, the Department of Justice, NIST, and

representatives of the platform industry, shall produce a joint report not later than one year after the date of enactment containing: findings on the current state of CSAM detection technology across major platforms; an assessment of the effectiveness of existing voluntary and mandatory detection practices; recommendations for mandatory minimum detection standards appropriate to different platform sizes and types; an assessment of the privacy implications of various detection methods and recommendations for privacy-preserving detection approaches; and recommended legislative action to address gaps identified in the study. The report shall be transmitted to the full Senate and House and made publicly available.

(h) Encryption. Nothing in this subtitle shall be construed to require any platform to weaken, undermine, or create backdoors in end-to-end encryption or any other technical measure protecting the confidentiality of user communications. This subtitle prohibits platform access to private communications content the platform is technically capable of accessing — it does not require platforms to acquire technical access they do not currently have. This subtitle does not prohibit client-side scanning, server-side scanning operating within the permitted exceptions of subsection (b), or any other detection method that operates within the conditions of subsection

(b)(4) without giving the platform general access to private communications content.

(i) Enforcement. A violation of subsection (a) is subject to the Tier 2 civil penalty under Sec. 1122(d) per affected user per violation. A knowing or willful violation — including any deliberate scan of private communications content for advertising, profiling, or any purpose not permitted by subsections (b) through (d) — is subject to the Tier 3 civil penalty under Sec. 1122(e) and the criminal penalties of Sec. 1123. Each individual user whose private communications are accessed in violation of this subtitle has a private right of action under Sec. 1132 with minimum statutory damages of not less than five thousand dollars ($5,000) per violation regardless of proof of actual harm. Failure to comply with the mandatory detection requirements of subsection (b)(2) or (b)(3) is subject to a civil penalty of not less than one hundred thousand dollars ($100,000) per day of non-compliance after the applicable deadline.

Sec. 1107. Enforcement of Part J Prohibitions.

(a) Violations of Secs. 1101, Sec. 1102, Sec. 1103, Sec. 1104, and Sec. 1106 are subject to the civil penalty framework of Part L, the criminal penalty framework of Part L, the injunctive relief authority of Sec. 1126, the disgorgement authority of Sec. 1125, and the private right of action of Sec. 1132, to the same extent as violations of Parts C through H.

(b) For purposes of the private right of action under Sec. 1132, any individual whose audio, video, biometric data, or keystroke data was collected, processed, or retained in violation of this Part has suffered dignitary harm sufficient to confer standing without

proof of additional injury. This includes any individual subjected to real-time biometric identification in a public space in violation of Sec. 1104, regardless of whether the identification was successful or whether the individual was aware of the identification at the time.

(c) Lawful Witness and Bystander Identification — No Private Right of Action for Authorized Collection. No private right of action arises under this subtitle solely from the capture, retention, or use of an individual's biometric data where:

(1) the collection was conducted pursuant to a valid judicial order under Sec. 1104(d)(5);

(2) the individual's biometric data was retained solely for witness or bystander identification purposes in compliance with all conditions of Sec. 1104(d)(5)(B); and

(3) the biometric data was permanently deleted in accordance with Sec. 1104(d)(5)(B)(ii) and the deletion was certified to the Bureau. A private right of action does arise where: (i) the collection exceeded the scope of the judicial order; (ii) the biometric data was used for any purpose other than witness or bystander identification in the specific authorized investigation; (iii) the biometric data was not deleted within the required period; (iv) the biometric data was cross-referenced against any commercial or Population Coverage Database; or (v) the deletion certification was false or incomplete.

(d) The Bureau may treat each individual instance of prohibited collection — each unauthorized activation of audio, each frame of video processed without consent, each biometric scan of each individual in violation of Sec. 1104, each retained keystroke log — as a separate violation for purposes of per-record penalty multipliers under Sec. 1122(h). For biometric identification violations, each individual scanned constitutes a separate violation.

(e) Statute of Limitations. For violations involving witness or bystander biometric retention, the five-year statute of limitations under Sec. 1132(g) runs from the date the individual discovers, or reasonably should have discovered, that their biometric data was collected.

Part K — Bureau of Data Surveillance

Sec. 1111. Establishment.

(a) Director — Appointment and Term. The Bureau shall be headed by a Director nominated by the President and confirmed by the Senate, serving a fixed term of five (5) years, renewable not more than two (2) times, for a maximum total service of fifteen (15) years. The Director shall have demonstrated expertise in data science, privacy law, cybersecurity, or consumer protection enforcement. Candidate Pool. Not later than ninety (90) days before a Director appointment or reappointment is required, the Office of Personnel Management shall compile

and transmit to the President a qualified candidate pool of not fewer than seven (7) and not more than fifteen (15) candidates satisfying all of the following requirements:

(A) demonstrated expertise in data science, privacy law, cybersecurity, or consumer protection enforcement, as assessed by a technical review panel consisting of one representative designated by the Director of the National Institute of Standards and Technology, one representative designated by the Chair of the Federal Trade Commission, and one representative designated by the Comptroller General — no member of the technical review panel shall be a political appointee or shall have been employed by any entity registered or required to register under Sec. 1113 within the preceding seven (7) years;

(B) no direct employment by any entity registered or required to register as a Data Broker or Targeting Infrastructure Contractor under Sec. 1113 within the preceding five (5) years, and no compensated consulting relationship with any such entity within the preceding three (3) years; provided that employment by or consulting for a Data-Monetizing Collector at Tier DM-1 or DM-2 whose primary business is not the assembly or sale of Covered Personal Data shall not be disqualifying unless the candidate's specific role involved the design, operation, or sale of data monetization programs subject to this subtitle;

(C) no political appointment in the executive branch within the preceding seven (7) years;

(D) no spouse, parent, child, or sibling currently serving in a Senate-confirmed executive branch position or in any senior position within any entity registered or required to register under Sec. 1113; and

(E) no financial interest, direct or indirect, in any entity registered or required to register under Sec. 1113, held at any point within the preceding seven (7) years. OPM shall publish the names and qualifications of all candidates in the pool in the Federal Register upon transmission to the President. The President shall nominate from within the pool. If the President determines that no candidate in the pool is suitable, the President shall transmit a written explanation to Congress and to OPM within thirty (30) days of receiving the pool, whereupon OPM shall compile a new pool of not fewer than seven (7) and not more than fifteen

(15) additional candidates within forty-five (45) days. If the President fails to nominate from the second pool within thirty (30) days, the nomination is deemed made by operation of law and the most qualified candidate in the second pool — as determined by the technical review panel's published ranking — shall be deemed nominated and transmitted to the Senate for confirmation. Not later than three hundred sixty-five (365) days after enactment, regardless of pool process status, the most qualified candidate in the then-current pool shall be deemed nominated and

confirmed by operation of law if no Director has yet begun service — no presidential rejection or Senate inaction shall delay Bureau establishment beyond this outer deadline.

(2) Initial Confirmation. The Senate shall vote on any initial nomination within ninety (90) days of receipt. Confirmation requires a simple majority of Senators present and voting. If the Senate fails to act within ninety (90) days, the nominee is deemed confirmed by operation of law and shall begin service immediately. If the deemed confirmation mechanism of this subsection is held unconstitutional or otherwise unenforceable, the nominee shall serve in an acting capacity with full statutory authority pending Senate action. Acting service under this paragraph shall not exceed 540 days. If the Senate has not acted within 540 days, the President shall submit a new nominee within 30 days. All actions taken by an acting Director during their service are valid and binding regardless of any subsequent challenge to this subsection.

(3) Renewal and Reconfirmation. A Director seeking a first or second renewal shall notify the President and the Senate not later than one hundred eighty (180) days before the expiration of their current term. Reconfirmation requires a simple majority of Senators present and voting within ninety (90) days of the Director's notification. If the Senate fails to act within ninety (90) days, the Director is deemed reconfirmed by operation of law for a further five (5) year term. If the Senate votes against reconfirmation, or if the Director does not seek renewal, the appointment process shall commence not later than thirty (30) days after that determination, and the departing Director shall serve in a holdover capacity for no more than one hundred eighty (180) days.

(4) Removal. The President may remove the Director before the end of any term only upon a finding of inefficiency, neglect of duty, or malfeasance in office. Any removal shall be accompanied by a written statement of reasons transmitted to Congress within forty-eight

(48) hours of the removal decision, identifying with specificity the factual basis for the finding. A removal that does not satisfy these requirements is without legal effect and the Director shall be entitled to immediate reinstatement by order of the D.C. Circuit. Any removal is subject to expedited judicial review in the United States Court of Appeals for the District of Columbia Circuit, which shall issue a preliminary ruling within thirty (30) days and a full merits decision within ninety (90) days. The D.C. Circuit shall apply de novo review and shall not defer to the President's characterization of the conduct at issue.

(5) Prohibition on Improper Influence Over Enforcement Matters.

(A) No officer or employee of the Executive Office of the President, no Cabinet officer, and no other executive branch official shall communicate with the

Director, any Deputy Director, or any Bureau enforcement staff, directly or through any intermediary, for the purpose of influencing, directing, delaying, accelerating, or terminating any specific pending Bureau enforcement matter, investigation, or proceeding.

(B) The Director shall maintain a public Enforcement Communication Log. Any communication received by the Director or any Bureau enforcement staff from any executive branch official — including through intermediaries — that references any specific pending enforcement matter shall be entered into the Log within forty-eight (48) hours of receipt. The Log shall be transmitted to the relevant congressional oversight committees monthly and shall be publicly available on the Bureau's website.

(C) The Director shall take no enforcement action, and shall decline no enforcement action, based on any communication required to be logged under subparagraph (B). Any enforcement decision made within ninety (90) days of a logged communication concerning that matter shall include a written certification from the Director that the logged communication played no role in the decision.

(D) Any executive branch official who communicates with Bureau enforcement staff in violation of subparagraph (A) shall be subject to a civil penalty of not less than $50,000 per communication and referral to the relevant Inspector General. Any such communication made with intent to obstruct, delay, or terminate a Bureau enforcement proceeding constitutes a criminal offense under 18 U.S.C. § 1505, subject to imprisonment of not more than five (5) years.

(E) Any Director who takes or declines an enforcement action based on a communication prohibited by subparagraph (A) shall be subject to removal for malfeasance and to criminal liability under 18 U.S.C. § 1505.

(F) Nothing in this paragraph prohibits: general policy communications between the executive branch and the Bureau that do not reference specific pending enforcement matters; congressional communications to the Bureau about enforcement priorities generally; communications from the Department of Justice regarding criminal referrals under Sec. 1123; or communications required by this subtitle.

(6) Vacancy. In the event of a mid-term vacancy, the most senior career Deputy Director of the Bureau by length of service shall serve as Acting Director for no more than one hundred eighty (180) days, during which OPM shall compile a new qualified pool within sixty (60) days. If the vacancy arises with fewer than one hundred eighty (180) days remaining in the departing Director's term, the Acting Director shall serve for the remainder of the term without a new nomination being required, unless the Commission by majority vote requests a new nomination for a full five (5) year term.

(7) Financial Disclosure and Recusal. The Director shall comply with all financial disclosure requirements applicable to senior executive branch officials under the Ethics in Government Act, 5 U.S.C. app. §§ 101-111. The Director shall recuse themselves from any enforcement matter involving any entity with which they had a professional or financial relationship within the preceding seven (7) years. Recusal decisions shall be transmitted to the FTC Inspector General within forty-eight (48) hours. Recused matters shall be decided by the most senior career Deputy Director without direction from the Director.

(8) Post-Service Restrictions. For a period of three (3) years following the conclusion of service as Director, no former Director shall: be employed by, consult for, represent, or have any compensated relationship with any entity that was registered under Sec. 1113 at any point during the Director's term; appear before the Bureau in any capacity; or acquire any financial interest in any such entity. Violation of this restriction shall be a criminal offense under 18 U.S.C. § 207 as enhanced by this subtitle, subject to a fine of not more than $1,000,000 and imprisonment of not more than five (5) years.

(b) Pending the Bureau's establishment, the Bureau of Consumer Protection shall exercise interim enforcement authority from the date of enactment.

(c) Industry Capture Prohibition.

(1) Senior Restriction. No individual employed by or serving as compensated consultant to a Data Broker, Data-Monetizing Collector at Tier DM-2 or DM-3, or Targeting Infrastructure Contractor within the preceding five (5) years shall serve in any supervisory, policy, or enforcement decision-making capacity within the Bureau, including as Director, Deputy Director, Division Chief, or senior enforcement counsel.

(2) Technical Staff — Enhanced Recusal. Individuals with prior employment or consulting relationships with registered entities may serve in technical, analytical, and examination roles within the Bureau subject to the following conditions:

(A) the individual shall recuse themselves from any matter directly involving a former employer or client for a period of three (3) years from the conclusion of that relationship;

(B) recusal decisions shall be documented and transmitted to the FTC Inspector General within forty-eight (48) hours;

(C) the individual shall file enhanced financial disclosure covering all former employer relationships; and

(D) the individual may not participate in any rulemaking proceeding that specifically targets practices in which their former employer was engaged, for a period of three (3) years.

(3) Certification. The Director shall certify annually to Congress the names, prior employers, and recusal obligations of all Bureau staff subject to enhanced recusal under paragraph

(2).

(4) Waiver for Senior Restriction. No individual may waive the Senior Restriction on their own behalf. Waiver requires affirmative vote of three (3) of the five (5) FTC Commissioners accompanied by a written public finding that the individual's expertise is exceptional, their prior relationship was sufficiently remote from surveillance operations, and enhanced recusal and disclosure obligations have been imposed. Technical Infrastructure Floor. Not less than twenty percent (20%) of the Bureau's annual appropriation shall fund technical infrastructure including Registry systems, algorithmic audit tooling, automated anomaly detection, and the audit methodology program. The Director shall certify annually to Congress, not later than March 1 of each year, that the Bureau's appropriations for the preceding fiscal year complied with the twenty percent (20%) floor. Where the floor was not met, the certification shall include a remediation plan and the Director shall transmit a follow-up certification to Congress not later than September 1 of that year.

Sec. 1112. Tiered Staffing and Funding.

(a) Minimum staffing levels scaling with Registry enrollment: Year 1 (365 days postenactment): not fewer than one hundred fifty (150) FTEs, of whom not fewer than sixty

(60) shall be technical staff. Year 2 (730 days post-enactment): not fewer than three hundred (300) FTEs, of whom not fewer than one hundred twenty (120) shall be technical staff. Year 3 Conditional Floor (1,095 days post-enactment): where Registry enrollment equals or exceeds one thousand (1,000) Data Broker and Targeting

Infrastructure Contractor registrants combined, and ten thousand (10,000) DataMonetizing Collector registrants at Tier DM-1, DM-2, or DM-3, the floor increases to five hundred (500) FTEs with not fewer than two hundred (200) technical staff. If enrollment thresholds are not met, the Year 2 floor remains until both thresholds are crossed, triggering the Year 3 floor automatically. Notwithstanding the enrollment thresholds of this subsection, the Year 3 staffing floor of five hundred (500) FTEs shall apply not later than four (4) years after the date of enactment, regardless of whether the Registry enrollment thresholds have been met, if the Director certifies to Congress that the Bureau's enforcement workload — measured by the number of open investigations, pending audits, and registered entities under active monitoring — warrants staffing at that level. The Director shall include in each Annual Surveillance Ecosystem Report an assessment of whether the enrollment thresholds are on track to trigger the Year 3 floor or whether a workload-based certification is likely to be required.

(b) Mandatory annual appropriations adjusted for inflation: Year 1: not less than $150,000,000. Year 2: not less than $300,000,000. Year 3 and thereafter: not less than $500,000,000 subject to the enrollment condition of subsection (a), otherwise $300,000,000 until thresholds are met. The mandatory appropriations floors in this subsection shall be adjusted annually for inflation beginning in Year 2, using the Consumer Price Index for All Urban Consumers (CPI-U) published by the Bureau of Labor Statistics, with the calendar year of enactment as the base year. The Bureau of Labor Statistics shall publish the applicable adjustment factor not later than February 1 of each year. Mandatory appropriations floors are not subject to rescission or continuing resolution reduction below the applicable floor. The Director may seek enforcement of the mandatory appropriations floor through emergency action in the United States District Court for the District of Columbia, which shall have jurisdiction to issue injunctive relief within seventy-two (72) hours of filing. Where annual appropriations for the Bureau fall below the applicable floor established by this subsection, the Bureau is authorized to draw from the Supplemental Enforcement Fund established under subsection (c) to make up the shortfall, up to the amount of the shortfall or the available Fund balance, whichever is less. The Director shall transmit a written report to the relevant congressional oversight committees within 30 days of any such draw, specifying the amount drawn, the shortfall it addresses, and the projected impact on pending enforcement actions if the appropriations floor is not restored in the subsequent fiscal year.

(c) Fifty percent (50%) of all civil penalties collected shall be deposited into a dedicated Supplemental Enforcement Fund available to the Bureau without further appropriation.

(d) Supplemental Enforcement Fund Administration:

(1) Unspent balances in the Fund at the close of any fiscal year shall carry forward without limitation and shall remain available to the Bureau without further appropriation until expended.

(2) The Fund is not subject to presidential impoundment, deferral, or rescission under the Impoundment Control Act of 1974, 2 U.S.C. §§ 681-688, or any other executive authority. Any presidential attempt to impound, defer, or rescind Fund balances is without legal effect.

(3) The Bureau Director shall have independent disbursement authority over Fund balances for all purposes authorized by this subtitle, without OMB apportionment, allotment, or apportionment approval.

(4) The Director shall report to Congress annually on Fund balances, deposits, disbursements, and projected needs, as part of the Annual Surveillance Ecosystem Report under Sec. 1118.

Sec. 1113. National Data Surveillance Registry.

(a) Registration is triggered by the nature of data activities, not by user volume. The following must register: any Data Broker; any Data-Monetizing Collector at Tier DM-1 or above; any Targeting Infrastructure Contractor; any entity selling or licensing Covered Personal Data to any Federal Agency, state or local government entity, or foreign person; and any entity participating in any Data Cooperative or Audience-Segment Licensing Arrangement as defined in Sec. 1003(19) and Sec. 1003(20).

(b) Entities collecting Covered Personal Data exclusively within a direct commercial relationship, using it solely to serve that relationship, and not transferring it to third parties for commercial purposes are not required to register and are not subject to proactive audit authority absent a credible complaint. Such entities remain subject to all substantive prohibitions.

(c) Grace Period. An entity that first meets a registration trigger after the date of enactment shall register not later than thirty (30) days after the date on which it first meets the trigger. This grace period is available only once per entity and is not available where the entity had prior actual or constructive knowledge that its data activities met a registration trigger before the thirty (30) day window began.

(d) The Registry shall be public, machine-readable, and electronically accessible at no charge. The Bureau shall publish technical specifications for the Registry format, including API access standards and bulk download capability, within one hundred eighty (180) days after the Director's first day of service. Annual filings shall be submitted to the Bureau not later than ninety (90) days after the close of each calendar year and shall include: complete entity identification including legal name, principal place of business, and registered agent; the name of the Chief Privacy Officer or responsible officer designated under subsection (e), held by the Bureau in a non-public government registry and not published in the public-facing Registry; and a general compliance inquiry contact — such as a dedicated compliance email address or phone number — that is published in the public-facing Registry in lieu of individual officer contact information; enumeration of all Covered Personal Data categories organized by the taxonomy of Part I; all upstream data sources; all downstream data recipients including government entities; the number of United States persons covered, stated as a precise count where technically feasible or as an estimate with methodology disclosure where not; data retention periods for each category of Covered Personal Data held; a technical description of combinationprohibition compliance architecture; the executive summary of the most recent independent technical audit conducted pursuant to Sec. 1115, or a self-certification prepared by the entity's responsible officer for entities not subject to Sec. 1115; and an annual compliance certification signed under penalty of perjury by both the CEO and the Chief Privacy Officer, or by the CEO and the responsible officer designated under subsection (e) where no CPO has been designated. Both signatories are individually subject to criminal liability under 18 U.S.C. § 1001 for

knowingly false certifications. Registration is a legal prerequisite to lawful operation; operating without a current, accurate registration is a per se Tier 2 violation.

(e) Entities Without a Chief Privacy Officer. An entity that is subject to registration under this subtitle but has no designated Chief Privacy Officer shall designate a responsible officer for purposes of this subtitle not later than thirty (30) days after the registration obligation arises. The designated responsible officer shall have sufficient authority and access to certify the accuracy of the entity's annual filing. The designation does not satisfy any obligation to appoint a Chief Privacy Officer under any other applicable law.

(f) Material change notifications are required within thirty (30) days of any material change to data practices, sources, or transfer relationships.

Sec. 1113A. Data-Monetizing Collector — Tier Classification.

(a) Tier Classification Standards. Data-Monetizing Collectors are classified into the following graduated tiers based on the percentage of relevant gross revenues derived from the sale, licensing, or transfer of Covered Personal Data to third parties:

(1) Tier DM-1 entities derive five percent (5%) to fifteen percent (15%) of relevant gross revenues from such transfers and are subject to registration and annual certification requirements only;

(2) Tier DM-2 entities derive more than fifteen percent (15%) but less than thirty percent (30%) and are additionally subject to mandatory third-party audit requirements; and

(3) Tier DM-3 entities derive thirty percent (30%) or more and are treated as Data Brokers for all purposes of this subtitle.

(b) Relevant Gross Revenues. The Commission shall define "relevant gross revenues" by rule within one hundred eighty (180) days of enactment, specifying whether the percentage threshold is calculated against total company gross revenues, the gross revenues of the specific business unit or product line engaged in data monetization, or some other appropriate measure. The Commission's rule shall be designed to prevent evasion of these tiers by large entities whose data monetization revenues are substantial in absolute terms but small as a percentage of total company revenues from unrelated business lines.

(c) Scope of Tiered Structure. The tiered classification of this subtitle governs registration, audit, and enforcement tier classification only. It does not govern the scope of the substantive prohibitions of this subtitle. Entities deriving less than five percent (5%) of relevant gross revenues from third-party data transfers remain fully subject to all substantive prohibitions of this subtitle regardless of their tier classification.

(d) Transitional Tier Classification. Until the Commission publishes a final rule defining "relevant gross revenues" under subsection (b), an entity required to register under Sec.

1113 shall self-classify using total company gross revenues as the denominator for purposes of applying the tier thresholds of subsection (a). Upon publication of the final rule, each entity shall reclassify within sixty (60) days using the methodology specified in the final rule. No civil penalty shall be assessed against an entity for misclassification during the transitional period where the entity self-classified in good faith using total company gross revenues as the denominator and promptly reclassified upon publication of the final rule. This transitional safe harbor applies to tier classification only and does not affect the entity's obligation to comply with all substantive prohibitions of this subtitle regardless of tier classification.

Sec. 1114. Mandatory Breach and Violation Self-Reporting.

(a) Any entity subject to this subtitle — whether or not registered under Sec. 1113 — that discovers a violation shall notify the Bureau within seventy-two (72) hours of discovery. The Bureau shall promulgate rules specifying the minimum content required for a timely notification within one hundred eighty (180) days after the Director's first day of service. Until such rules are final, a notification that identifies the notifying entity, describes the general nature of the violation, estimates the number of individuals affected where known, and provides the name and contact information of the entity's designated compliance officer shall be deemed to satisfy the seventy-two (72) hour requirement. The entity shall submit a full incident report within thirty (30) days of the initial notification.

(b) Failure to provide timely notification is an independent violation carrying a fifty percent (50%) penalty enhancement.

(c) Good-faith self-reporting before Bureau detection results in a ninety percent (90%) penalty reduction, subject to all of the following conditions and exclusions:

(1) The reduction is not available for willful violations — meaning violations the entity knew or reasonably should have known it was committing at the time of commission.

(2) The reduction is not available where the entity derived commercial value from the violation prior to self-reporting, including through the sale, licensing, transfer, or use of prohibited data for targeting, advertising, or any other revenue-generating purpose. Derivation of commercial value from a violation creates a rebuttable presumption that the violation was knowing rather than good faith. The entity may rebut this presumption by demonstrating by clear and convincing evidence that the commercial value was derived without actual or constructive knowledge that the underlying data or activity was prohibited under this subtitle.

(3) The reduction is not available for delayed reporting where the delay was intended to conceal the scope of the violation or to continue deriving value from it before disclosure.

(4) The reduction is not available for violations involving Psychological Profiles or Operational Profiles sold or transferred to any political campaign, political action committee, or electoral organization under Sec. 1011(a).

(5) Where both this subsection and Sec. 1122(a) apply to the same violation, the more favorable reduction applies and the two reductions do not stack.

(6) Even where the penalty reduction applies, disgorgement of all profits, revenues, and financial benefits derived from the violation under Sec. 1125 remains available in full and is not reduced by the self-reporting reduction. The reduction applies to civil penalties only. For purposes of this subtitle, Bureau detection occurs when the Bureau receives a credible complaint, referral from a state attorney general, referral from a whistleblower, or any other information sufficient to open a formal investigation — whichever is earliest. A media report alone does not constitute Bureau detection unless the Bureau has independently confirmed its credibility and opened a formal investigation.

Sec. 1115. Independent Technical Audit Requirement.

(a) Every Data Broker, Targeting Infrastructure Contractor, Tier DM-2 Data-Monetizing Collector, and Tier DM-3 Data-Monetizing Collector shall retain, at its own expense, a Bureau-certified independent technical auditor to conduct an annual audit assessing: whether collection systems acquire only permitted data; whether algorithms produce prohibited outputs regardless of input permissibility; whether combination-prohibition isolation is maintained; whether data transfer practices comply with government-acquisition and international transfer restrictions; and whether retention systems purge data within mandatory limits. Audit reports shall be submitted to the Bureau within thirty

(30) days of completion, with executive summaries publicly available through the Registry as required by Sec. 1113(d).

(b) Auditor Rotation. No Bureau-certified auditor may conduct annual audits for the same entity for more than three (3) consecutive years. Following a mandatory rotation period of not less than two (2) years, the same auditor may resume audit services for that entity. An entity that fails to rotate its auditor as required by this subsection shall be deemed to have filed an incomplete annual certification, constituting a Tier 2 violation.

Sec. 1116. Audit Methodology Standards.

(a) The Bureau shall promulgate mandatory audit methodology standards within one hundred eighty (180) days after the Director’s first day of service through notice-and-comment rulemaking under 5 U.S.C. § 553, specifying the framework, criteria, technical procedures, sampling requirements, documentation standards, and reporting formats applicable to all third-party technical audits under Sec. 1115. Operational testing details

— including specific synthetic data patterns, algorithmic flag triggers, and detection sequences used in Bureau algorithmic testing under Sec. 1117(h) — shall be designated as law enforcement sensitive and withheld from public disclosure under 5 U.S.C. § 552(b)

(7)(E), on the basis that disclosure would enable regulated entities to design systems that evade detection while maintaining prohibited capabilities. The Bureau shall publish annually a summary description of its algorithmic testing approach sufficient to enable good-faith compliance without disclosing operationally sensitive detection methodology.

(b) Audit methodology standards shall be reviewed and updated not less than every six (6) months by a technical advisory panel appointed by the Director, which shall include not fewer than two independent cybersecurity researchers with no financial relationship to any registered entity, two representatives of civil society privacy organizations — provided that no civil society representative shall have received funding from any registered entity, directly or through their employer or affiliated organization, in excess of five percent (5%) of their organization's annual operating budget in any of the preceding three (3) years — and one representative of the Bureau-certified auditor community. Emergency methodology updates are available only where the Bureau makes a written finding, published in the Federal Register, that a new technical capability, evasion technique, or data collection method poses an immediate, specific threat to enforcement that cannot await the normal notice-and-comment process. The Bureau shall notify the relevant congressional oversight committees within forty-eight (48) hours of any emergency update. There is no waiting period for emergency methodology updates beyond the Federal Register publication requirement.

(c) Bureau-Certified Auditor Program. The Bureau shall establish a program for certifying independent technical auditors within one hundred eighty (180) days after the Director's first day of service. Certification requires demonstrated expertise in data systems auditing, algorithmic assessment, and privacy compliance. No auditor may be certified who has a financial interest in any entity it audits or who has been employed by any such entity within the preceding five (5) years. The Bureau shall publish a public list of all certified auditors and shall revoke certification for negligent or fraudulent audit reports. The Bureau shall certify a sufficient number of independent auditors to ensure that no single certified auditor holds active audit relationships with entities that together account for more than twenty percent (20%) of total registered Data Broker and Targeting Infrastructure Contractor entities at any time. The Bureau shall publish annually the total number of certified auditors and the distribution of audit relationships across the auditor pool.

Sec. 1117. Bureau Monitoring, Audit, and Algorithmic Testing Powers.

(a) The Bureau may conduct proactive technical audits of any registered entity without a predicate complaint, including direct examination of data systems, databases, algorithms, API integrations, and transfer logs; testing of algorithms using synthetic data to assess outputs; and review of internal policies, contracts, and technical architecture. Every Data Broker holding more than fifty million (50,000,000) United States person records is subject to a proactive Bureau audit not less than once every three (3) years.

(b) Unannounced Audits — Large Entities. The Bureau may conduct unannounced technical audits of any entity holding more than fifty million (50,000,000) United States person records without prior notice. The Bureau shall not provide advance notice of an unannounced audit. Upon arrival, Bureau auditors shall be provided immediate, unimpeded access to all relevant systems, records, personnel, and documentation. Obstruction of an unannounced audit carries the same criminal penalties as obstruction of a noticed audit under Sec. 1123(f).

(c) Unannounced Audits — Credible Evidence. The Bureau may also conduct unannounced technical audits of any registered entity, regardless of record volume, upon a written finding by the Director that credible evidence of a violation exists and that advance notice would risk destruction of evidence or obstruction of the audit. The written finding shall be filed with the Bureau's internal records within twenty-four (24) hours of the audit's commencement and transmitted to the relevant congressional oversight committees within five (5) business days.

(d) The Bureau shall maintain a public complaint portal. Upon receipt of a credible complaint, the Bureau shall acknowledge within fifteen (15) business days and determine whether to open a formal investigation within ninety (90) days. For any open investigation, the Bureau shall transmit a status report to the complainant and to the relevant congressional oversight committees every six (6) months from the date the investigation was opened, describing the current status and the anticipated timeline for resolution. The Bureau shall issue a final resolution within two (2) years of opening a formal investigation, except for matters designated as complex with written public justification filed with Congress.

(e) Investigation Stage Disclosure. Upon opening a formal investigation under this subtitle, the Bureau shall transmit to the entity under investigation, within thirty (30) days of opening the investigation, a written investigation initiation notice specifying:

(1) the general category of violation alleged, described with sufficient specificity to enable the entity to identify the data practice or practices at issue, but not required to disclose confidential investigative methods, third-party complainant information, or evidence protected by law enforcement privilege;

(2) the approximate time period at issue;

(3) whether the Bureau has classified the investigation as standard, with expected resolution not exceeding twelve (12) months, or complex, with expected resolution not exceeding twenty-four (24) months, with a brief written explanation of the basis for a complex designation;

(4) the name and direct contact information of the Bureau's lead investigator; and

(5) a description of the entity's procedural rights during the investigation as specified in subsection (g).

(f) Statute of Limitations Tolling. The statute of limitations applicable to any civil action arising from the same general category of conduct as an open Bureau formal investigation is tolled from the date the Bureau transmits its investigation initiation notice under subsection (e) until the earlier of:

(1) the date the Bureau publicly resolves the investigation through a final order, consent agreement, or public declination notice; or

(2) twenty-four (24) months from the date of the investigation initiation notice, after which the tolling period expires regardless of whether the Bureau has issued a final resolution. Nothing in this subsection extends or revives any limitations period that had already expired before the Bureau transmitted its investigation initiation notice.

(g) Entity Rights During Investigation. An entity that has received an investigation initiation notice under subsection (e) has the following procedural rights during the pendency of the Bureau's investigation:

(1) the right to submit written materials, evidence, legal arguments, or factual clarifications to the Bureau at any stage, which the Bureau shall acknowledge in writing within fifteen (15) business days of receipt and shall consider in reaching its final determination;

(2) the right to request a meeting with the Bureau's lead investigator, which the Bureau shall schedule within thirty (30) days of the request;

(3) the right to propose a compliance agreement at any stage of the investigation, which the Bureau shall respond to in writing within sixty (60) days, either accepting, rejecting with written explanation, or proposing modifications; and

(4) the right to seek expedited judicial review in the United States District Court for the District of Columbia where the Bureau fails to comply with any mandatory procedural requirement of this subtitle. The District Court shall issue a ruling on any such application within thirty (30) days of filing. Nothing in this subsection limits the Bureau's authority to conduct its investigation, issue civil investigative demands, conduct unannounced audits, or seek emergency injunctive relief.

(h) Algorithmic Testing Authority. The Bureau has specific authority to require any registered entity to submit algorithmic models for technical examination. The Bureau

may test submitted algorithms by supplying synthetic or anonymized data inputs and examining outputs to determine whether the algorithm produces prohibited outputs regardless of whether inputs are individually permitted. The Bureau shall promulgate standards for the design and use of synthetic and anonymized test data in algorithmic testing through notice-and-comment rulemaking within one hundred eighty (180) days after the Director's first day of service. Operational testing details shall be designated law enforcement sensitive under Sec. 1116(a). A finding that an algorithm produces prohibited outputs constitutes evidence of a combination-prohibition violation and a general prohibition standard violation regardless of the permissibility of its inputs.

(i) Discretionary Volume-Based Audit Authority. The Bureau may conduct a proactive technical audit of any entity subject to this subtitle — regardless of whether that entity meets the registration triggers of Sec. 1113 or the mandatory audit thresholds of subsection (a) — upon a written finding by the Director that the entity's data collection volume, data transfer relationships, or technical capabilities present a credible risk of violation of this subtitle. For purposes of this subsection, an entity holding Covered Personal Data concerning more than one million (1,000,000) United States persons is presumptively subject to discretionary audit authority. The Bureau shall maintain a nonpublic watch list of entities subject to discretionary audit monitoring and shall review that list not less than annually.

Sec. 1118. Annual Surveillance Ecosystem Report.

(a) Not later than March 1 of each year, the Bureau shall publish a comprehensive Annual Surveillance Ecosystem Report analyzing: Registry filings and material changes; enforcement actions initiated, resolved, and pending; emerging technologies and targeting techniques identified as potentially requiring classification proceedings under Sec. 1095(c); third-party audit compliance rates and identified deficiencies; recommendations to Congress where existing authority is insufficient to address identified threats; aggregate data on private civil actions filed under Sec. 1132 during the preceding year, including the number of actions filed, the number of class actions certified, the aggregate amount of settlements and judgments, and the categories of violations alleged; and Fund balances, deposits, disbursements, and projected needs under Sec. 1112(d)(4).

(b) Missed Deadline. If the Bureau fails to publish the Annual Surveillance Ecosystem Report by March 1 of any year, the Director shall transmit a written explanation to the relevant congressional oversight committees within fifteen (15) days of the missed deadline and shall publish the report not later than sixty (60) days after March 1.

(c) Emerging Technology Classification Proceedings. Where the Annual Surveillance Ecosystem Report identifies an emerging technology or technique as potentially requiring a classification proceeding under Sec. 1095(c), the Bureau shall publish a written determination within ninety (90) days of the Report's publication either

initiating a classification proceeding or explaining with specificity why a proceeding is not yet warranted. Where the Bureau declines to initiate a proceeding but the identified technology or technique subsequently reaches commercial deployment by two or more entities together covering more than ten million (10,000,000) United States persons, the Bureau shall initiate a classification proceeding not later than one hundred eighty (180) days after that deployment threshold is reached. The Bureau shall monitor deployment levels of all technologies identified in any Annual Report as potentially requiring classification and shall report deployment status in each subsequent Annual Report until a classification proceeding is initiated or the Bureau makes a final written determination that classification is not warranted.

Part L — Consent, Penalties, and Enforcement

Sec. 1121. Consent Standards.

No consent is valid under this subtitle unless: freely given without conditioning service access on consent to non-essential data collection; specific to each data category and purpose; informed through a plain-language disclosure written at a reading level no higher than eighth grade as assessed by a standard readability index designated by the Commission by rule, identifying categories of data collected, purposes of collection, third-party recipients, and revocation method; unambiguously expressed through affirmative action and not inferred from silence, inaction, continued use, or pre-checked boxes; and revocable at any time without penalty with full effect within seventy-two (72) hours. Consent bundled in general terms of service, privacy policies, or end-user license agreements is not valid for any purpose under this subtitle. For purposes of this subtitle, a “penalty” does not include any reduction in service functionality that directly and necessarily results from the absence of data the entity can no longer collect or use following revocation of consent, provided the entity discloses at the time consent is sought that revocation of consent for that specific data category will result in the specified reduction in functionality. A penalty does include any service degradation, price increase, or reduction in service quality applied to a user solely to deter revocation of consent rather than as a direct consequence of the absence of the data itself. Consent disclosures required under this subtitle shall be provided in both human-readable and machine-readable form. The machine-readable form shall conform to a standardized technical format specified by the Commission by rule within two hundred forty (240) days after the Director’s first day of service. Until the Commission publishes a final rule specifying the machine-readable format, entities shall provide consent disclosures in a structured data format — such as JSON or XML — that includes discrete fields for each required disclosure element: data categories collected, purpose of collection, third-party recipients, and revocation method. The Commission shall promulgate rules specifying the required format, content structure, and readability index applicable to consent disclosures under this subtitle within two hundred forty (240) days after the Director’s first day of service. Any consent disclosure that satisfies the substantive requirements of this subtitle and was obtained prior to the Commission’s publication of final format rules remains

valid and need not be re-obtained solely on account of noncompliance with the format rules, provided the entity brings all new consent disclosures into compliance with the Commission's format rules within ninety (90) days of their publication. No existing consent obtained through mechanisms otherwise invalidated by this subtitle — including consent bundled in general terms of service or privacy policies — is grandfathered by this provision; the grandfathering applies only to format, not to the substantive validity requirements of this subtitle.

Sec. 1122. Tiered Civil Penalties.

(a) Tier 1 — Technical Violations. First offense, no knowing conduct, self-reported before Bureau detection: not less than $10,000 and not more than $100,000 per violation, or 0.5% of global annual revenues, whichever is greater. Reduced by fifty percent (50%) where self-reported and remediated in good faith before Bureau detection, subject to the non-stacking provision of Sec. 1114(c)(5).

(b) Right to Cure Tier 1 Violations. For violations that would qualify as Tier 1 under subsection (a) of this subtitle — meaning a first offense with no knowing conduct — an entity that has not previously received a civil penalty or formal Bureau enforcement notice for the same category of violation within the preceding three (3) years has a right to cure that violation within thirty (30) days of written notice of the potential violation before any civil penalty may be assessed. This right to cure is an entity right, not subject to the Director's discretion under Sec. 1122(i), and creates a complete defense to civil penalty assessment where the cure conditions are fully met. This right is distinct from and in addition to the self-reporting penalty reduction of Sec. 1114(c), which continues to apply independently. Written notice triggering the cure right may be provided by: the Bureau through a formal notice of potential violation; a state attorney general through a written pre-enforcement notice; or a private plaintiff through a pre-suit demand letter meeting the requirements of Sec. 1132(b) of this subtitle. A violation is cured within the meaning of this subsection only where all of the following are completed within the thirty (30) day period following confirmed receipt of written notice:

(1) the specific violating data practice has permanently and completely ceased;

(2) any Covered Personal Data collected, processed, or retained in violation has been permanently and irreversibly deleted, with deletion certified in writing under penalty of perjury to both the Bureau and the notifying party within five (5) business days of cure completion; and

(3) the entity has implemented documented technical and operational controls reasonably designed to prevent recurrence of the same category of violation. The right to cure does not apply to:

(A) knowing or willful violations;

(B) violations that produced commercial benefit through advertising revenue, data sales, or any other revenue-generating use of prohibited data before the entity became aware of the violation;

(C) violations of the absolute prohibition of Sec. 1011(a) on Psychological Profiles;

(D) violations of the Population Coverage Database prohibition of Sec. 1041 and the mandatory divestiture requirement of Sec. 1051;

(E) violations involving transfer of data to a foreign government or Sensitive Nation-State Actor; or

(F) any second or subsequent violation of the same category within three (3) years of a prior violation of that category, whether or not the prior violation was cured. The right to cure is available only once per violation category per three (3) year period. The self-reporting reduction of Sec. 1114(c) and the cure right of this subsection do not stack — where both apply, the entity may elect the more favorable remedy but may not receive both.

(c) Reduction Mechanism Precedence and Election.

(a) General Rule — Single Mechanism Per Violation. Where more than one penalty reduction or complete defense mechanism under this subtitle applies to the same violation, an entity may invoke only one such mechanism with respect to that violation. The available mechanisms are:

(1) the cure right and complete defense under subsection (b);

(2) the ninety percent (90%) self-reporting reduction under the self-reporting provisions of this subtitle; and

(3) the fifty percent (50%) Tier 1 base reduction under subsection (a).

(b) Written Election. An entity shall make a written election to the Bureau identifying the mechanism it invokes within fifteen (15) days of receiving written notice of the potential violation triggering a cure period under subsection (b), or within fifteen (15) days of the entity's self-report, whichever occurs first. Where no timely written election is made, the Bureau shall apply whichever single available mechanism produces the most favorable outcome for the entity and shall notify the entity in writing of the mechanism applied before issuing any penalty assessment.

(c) Cure Right Superiority. The cure right of subsection (b) constitutes a complete defense to civil penalty assessment for the cured violation. Where an entity fully satisfies all cure conditions within the applicable thirty (30) day period:

(1) no civil penalty may be assessed for that specific violation;

(2) the self-reporting reduction does not apply to that violation; and

(3) the Tier 1 base reduction of subsection (a) does not apply to that violation.

(d) Self-Reporting Reduction — Conditions for Availability. The ninety percent (90%) self-reporting reduction is available only where all of the following are satisfied:

(1) the violation was self-reported before Bureau detection;

(2) the entity did not derive commercial value from the violation;

(3) the violation does not fall within any exclusion in the self-reporting provisions of this subtitle; and

(4) the cure right under subsection (b) is either unavailable or the entity did not complete cure within the thirty (30) day period. Where both the cure right and the self-reporting reduction are available, the cure right is the more favorable mechanism where cure can be completed within thirty (30) days.

(e) Tier 1 Base Reduction — Residual Availability. The fifty percent (50%) base reduction under subsection (a) applies only where:

(1) the ninety percent (90%) self-reporting reduction is unavailable because the entity derived commercial value from the violation or the violation falls within an exclusion in the self-reporting provisions of this subtitle; and

(2) the cure right under subsection (b) is unavailable because the entity received no prior written notice or failed to complete cure within thirty (30) days. It operates as a residual mechanism only.

(f) Willful Violations — No Reduction Available. No reduction mechanism under this subtitle is available for any violation the Bureau finds was willful. A violation is willful where:

(1) the entity knew it was committing the violation at the time of commission; or

(2) the entity derived commercial value from the violation with actual or constructive knowledge that the underlying practice was prohibited. Derivation of commercial value creates a rebuttable presumption of willfulness.

(g) Interaction with Disgorgement. No reduction mechanism under this subtitle applies to disgorgement. Disgorgement is calculated independently and is not reduced by any penalty reduction mechanism.

(h) Interaction with Criminal Penalties. No reduction mechanism under this subtitle applies to criminal penalties. The availability or exercise of any civil penalty reduction does not limit, preclude, or constitute any defense to criminal prosecution.

(d) Tier 2 — Knowing Violations. Knowing collection, use, or transfer of prohibited data; failure to self-report; materially false annual certification; failure to maintain current registration; failure to cooperate with a Bureau audit: not less than $100,000 and not more than $1,000,000 per violation, or 2% of global annual revenues, whichever is greater. For purposes of this subsection, failure to cooperate with a Bureau audit means:

(1) knowingly failing to provide access to any system, record, or personnel requested by the Bureau within the time specified in a Bureau audit notice or within forty-eight (48) hours of a request made during an unannounced audit;

(2) knowingly providing materially false, misleading, or incomplete information to Bureau auditors; or

(3) knowingly delaying, obstructing, or impeding any audit process, including by asserting privilege over materials not subject to privilege, by producing documents in a form designed to impede review, or by instructing personnel not to cooperate with Bureau auditors. Cooperation that is partial but made in good faith, where access to specific systems is delayed for documented technical reasons and the entity promptly notifies the Bureau of the delay and the expected resolution, does not constitute failure to cooperate under this subsection.

(e) Tier 3 — Willful and Aggravated Violations. Willful violations; violations affecting more than one million (1,000,000) individuals; repeat violations within five (5) years of a prior penalty; sale of prohibited data to a Federal Agency or Sensitive Nation-State Actor; intentional failure to complete mandatory divestiture; retention of above-threshold records after certified deletion date; violations with intent to evade detection: the minimum penalty for a Tier 3 violation is (i) not less than $50,000 per violation for entities with global annual revenues below $10,000,000; (ii) not less than $500,000 per violation for entities with global annual revenues of $10,000,000 to $100,000,000; and (iii) not less than $1,000,000 per violation for entities with global annual revenues above $100,000,000; or four percent (4%) of global annual revenues per violation, whichever is greater, with no statutory cap, assessed on a per-violation, per-day basis for continuing violations. A continuing violation affecting more than one million (1,000,000) individuals is assessed at the Tier 3 rate from the date on which the number of affected individuals first exceeded one million (1,000,000), with each day of continued violation constituting a separate violation subject to the per-violation, per-day Tier 3 rate from that date. For purposes of calculating the number of affected individuals, the Bureau shall count all individuals whose Covered Personal Data was involved in the violation at any point during the violation period, without deduplication across time periods.

Per-Enforcement-Action Cap. Notwithstanding the per-violation, per-day, and per-record multiplication authorized by this subsection and by Sec. 1122(h) of this subtitle, the total civil monetary penalty assessed against any single entity in connection with any single enforcement action — meaning all civil monetary penalties arising from the same general pattern of conduct, the same course of violations, or the same Bureau investigation, whether assessed in a single proceeding or in multiple related proceedings arising from the same Bureau investigation — shall not exceed the greater of:

(A) fifteen percent (15%) of the entity's total global annual revenues for the most recent complete fiscal year preceding the date on which the Bureau formally initiates the enforcement action; or

(B) five billion dollars ($5,000,000,000) for entities whose total global annual revenues exceed one hundred billion dollars ($100,000,000,000) for the most recent complete fiscal year. This per-enforcement-action cap does not apply to, and does not in any way limit:

(1) disgorgement of profits under Sec. 1125, which is assessed separately and independently;

(2) criminal penalties under Sec. 1123;

(3) penalties assessed in enforcement actions arising from new violations committed after the conclusion of the earlier enforcement action; or

(4) the following categories of violation, for which no per-enforcement-action cap applies:

(A) violations involving the compilation, sale, transfer, or provision of access to Psychological Profiles, Operational Profiles, or Precrime Risk Assessments to any political campaign, political action committee, super PAC, political party, electoral organization, or entity primarily engaged in electoral or political advocacy;

(B) violations involving the sale, transfer, or provision of Covered Personal Data to a Federal Agency or Government Contractor in violation of Sec. 1062;

(C) violations involving the maintenance, reconstitution, or assembly of a Population Coverage Database after mandatory divestiture under Sec. 1051; and

(D) violations involving the transfer of Covered Personal Data to any foreign government, Sensitive Nation-State Actor, or entity controlled by a foreign government. The per-enforcement-action cap does not affect the per-day, per-violation, per-record structure for purposes of determining whether the mandatory deregistration triggers of Sec. 1124 have been met. The Director's rulemaking authority under Sec. 1122(h) to establish differentiated absolute penalty ceilings by violation category operates within and subject to the limits established by this per-enforcement-action cap — meaning the Director may establish ceilings lower than those specified in this subsection for specific violation categories, but may not establish ceilings higher than those specified in this subsection for any violation category subject to this cap.

(f) United States-Directed Entity Penalty Calculation. For purposes of calculating civil penalties under this subtitle against a United States-Directed Entity as defined in Sec. 1003(16), the percentage-based penalty tiers of subsections (a) through (e) shall be

applied against the entity's total worldwide revenues from all business activities, not solely revenues derived from activities involving the data of United States persons.

(g) Individual Officer Liability. In any Tier 2 or Tier 3 case, the Bureau may assess an additional personal civil penalty of up to $1,000,000 against any officer, director, or employee of the entity who exercised direct supervisory authority over the data collection, processing, transfer, or retention practices that gave rise to the violation, or who had operational responsibility for the compliance program applicable to those practices, and who had actual or constructive knowledge of the violation and failed to prevent or disclose it. Individual civil penalties may not be indemnified by the entity. For purposes of this subsection, constructive knowledge requires that the officer had access to information that would have led a reasonably diligent officer in that position to investigate and discover the violation, or that the officer failed to implement reasonable compliance oversight mechanisms that would have detected the relevant category of violation. Constructive knowledge does not arise solely from an officer's general awareness that the entity operates in a regulated industry or that data compliance obligations exist. The civil constructive knowledge standard of this subsection is distinct from the actual knowledge standard required for criminal liability under Sec. 1123(h); civil penalties under this subsection may be assessed on the basis of constructive knowledge, while criminal liability under Sec. 1123(h)(4) requires proof of actual knowledge.

(h) Per-Record Multiplier and Absolute Penalty Ceilings. For violations involving individually identifiable persons, the Bureau may multiply the base penalty by the number of individuals affected. The per-record multiplier of this subsection and the per-day continuing violation assessment of subsection (e) may both be applied to the same violation, provided that the combined assessed penalty does not exceed the applicable revenue percentage cap calculated on the entity's total global annual revenues. Notwithstanding the revenue percentage cap, the Bureau Director shall apply differentiated absolute penalty ceilings by violation category, calibrated to preserve maximum deterrence for the most serious violations while providing proportionate predictability for less serious ones. The Director shall establish these ceilings by rule within three hundred sixty-five (365) days after the Director's first day of service, through notice-and-comment rulemaking under 5 U.S.C. § 553, applying the following framework:

(1) violations involving the compilation, sale, or transfer of Psychological Profiles, Operational Profiles, or Precrime Risk Assessments to any political campaign, electoral organization, or Sensitive Nation-State Actor shall carry no absolute ceiling — the revenue percentage cap is the only limit;

(2) violations involving the sale or transfer of Covered Personal Data to a Federal Agency or Government Contractor in violation of Sec. 1062 shall carry no absolute ceiling;

(3) violations involving Population Coverage Database maintenance or reconstitution after mandatory divestiture shall carry no absolute ceiling;

(4) all other Tier 3 violations shall be subject to an absolute ceiling per enforcement action, set by the Director's rule at a level the Director determines is sufficient to deter the largest regulated entities while avoiding penalties that are grossly disproportionate to the specific harm caused. In setting ceilings under category (4), the Director shall consider the nature of the violation, the number of individuals affected, the entity's compliance history, and whether the violation involved deliberate evasion of this subtitle's requirements.

(i) Director Enforcement Discretion. The Bureau Director has discretion to decline to assess civil penalties under this subtitle, to assess penalties below the applicable minimums, or to defer enforcement action, upon a written finding that:

(1) assessment of the full penalty would be genuinely uncollectable due to the financial condition of the entity, provided the entity has made good-faith efforts to remediate the violation;

(2) the violation resulted from circumstances genuinely beyond the entity's reasonable control, including documented system failures, third-party breaches, or other events that the entity could not have prevented through reasonable compliance measures, and the entity remediated promptly upon discovery; or

(3) the public interest is better served by a negotiated compliance agreement than by a civil penalty proceeding, where the Director documents with specificity why the compliance agreement will produce greater protection for affected individuals than a penalty proceeding. The Director's exercise of discretion under this subsection shall be documented in a written public finding filed with the relevant congressional oversight committees within thirty (30) days of the decision. The discretion in this subsection does not extend to: mandatory referrals to the Attorney

General under Sec. 1123(i); disgorgement of profits under Sec. 1125; or any Tier 3 violation involving sale of prohibited data to a Federal Agency or Sensitive Nation-State Actor, for which civil penalties are mandatory and non-waivable.

Sec. 1123. Criminal Offenses.

(a) Willful Sale to Government. Knowingly and willfully selling, licensing, or providing access to Covered Personal Data or any prohibited compilation to a Federal Agency or Government Contractor, knowing or having reason to know that the recipient is a Federal Agency, a Government Contractor acting on behalf of a Federal Agency, or an

entity that the transferor knows or has reason to know will provide such data to a Federal Agency or Government Contractor. The government is not required to prove that the defendant had specific knowledge that the transfer would circumvent constitutional warrant requirements; proof that the defendant knew or had reason to know the recipient was a Federal Agency or Government Contractor acting in that capacity is sufficient to establish this element: felony, up to five (5) years, fine under title 18.

(b) Willful Population Coverage Database Maintenance. Knowingly maintaining a Population Coverage Database after the mandatory divestiture deadline of Sec. 1051(a)(2), or willfully reconstituting one after divestiture: felony, up to seven (7) years, fine under title 18. The increase in the maximum penalty for reconstitution reflects Congress's finding that reconstitution after completed divestiture is a more deliberate and calculated act of circumvention than failure to meet an initial deadline.

(c) Willful Backup Retention After Certified Deletion. Knowingly retaining above-threshold data in any backup, cold storage, disaster recovery, or archival system after signing or causing to be signed a destruction certification under Sec. 1051(c): felony, up to seven (7) years, fine under title 18. The severity of this offense reflects Congress's finding that post-certification backup retention is inherently willful and constitutes both obstruction of this subtitle's enforcement and a false statement in a federal filing.

(d) Willful International Transfer to Foreign Adversary. Knowingly transferring Covered Personal Data or a prohibited compilation to a Sensitive Nation-State Actor: felony, up to ten (10) years, fine under title 18.

(e) False Certification or False Statements in Bureau Filings. Knowingly making a materially false statement in any document submitted to the Bureau under penalty of perjury pursuant to this subtitle — including annual compliance certifications under Sec. 1113(d), destruction certifications under Sec. 1051(c), divestiture inventories under Sec. 1051(a)(1), and any other filing required by this subtitle to be made under penalty of perjury: felony under 18 U.S.C. § 1001, enhanced to up to five (5) years for annual compliance certifications and up to seven (7) years for destruction certifications and divestiture inventories. For all other Bureau filings made under penalty of perjury, the base penalty of 18 U.S.C. § 1001 applies without enhancement.

(f) Obstruction of Bureau Audit. Knowingly obstructing a Bureau audit, including by altering, deleting, or concealing data after receiving an audit notice, or after the commencement of an unannounced audit: felony, up to five (5) years, fine under title 18.

(g) Pretextual Surveillance Designation. Any government official who knowingly makes, approves, or forwards for judicial authorization a national security collection designation under Sec. 1071 and Sec. 1072 of this subtitle: (i) primarily for the purpose of enabling surveillance of domestic political activity, knowing the evidentiary basis is

insufficient to satisfy the Stage One standard of Sec. 1072(c); or (ii) knowing that the collection sought is targeted at domestic political activities rather than a foreign direction relationship as defined in Sec. 1003(12); shall be guilty of a felony subject to: a mandatory minimum term of imprisonment of three (3) years; a maximum term of imprisonment of ten (10) years; and a fine of not more than $500,000. Conspiracy to commit a pretextual surveillance designation under 18 U.S.C. § 371 is subject to the same penalties. A government official who knowingly fails to report, or actively conceals, evidence that a collection program under Sec. 1071 is being used for purposes prohibited by Sec. 1071(b) is subject to the same criminal penalties as a principal offender. This subsection defines the criminal penalties for pretextual surveillance designation independently of the civil standards set forth in Sec. 1074, which remain operative for civil and regulatory purposes.

(h) Corporate Officer Criminal Liability.

(1) Primary Liability. Any officer, director, or employee of an entity who exercised direct supervisory authority over the data practices giving rise to a criminal violation under this subtitle, or who had operational responsibility for the compliance function applicable to those practices, is personally criminally liable under this subtitle where they had actual knowledge of the violation and willfully failed to prevent or disclose it.

(2) Senior Officer Liability — Delegation. A senior officer — including a Chief Executive Officer, President, or equivalent — who delegated operational responsibility for data compliance to another officer or compliance function is not criminally liable under this subtitle solely by reason of that delegation, provided that:

(A) the delegation was made in good faith to a qualified individual or compliance function with adequate resources to perform the delegated responsibilities; and

(B) the senior officer had no actual knowledge that the delegate was failing to perform their compliance obligations, or that the compliance program was structurally incapable of detecting the relevant category of violation.

(3) Delegation Non-Exculpatory Where Actual Knowledge Exists. The protections of paragraph (2) do not apply where the senior officer had actual knowledge of the violation or of the delegate’s failure — including knowledge communicated through written or electronic communications, formal briefings, compliance reports, audit findings, or any other means by which the violation or the compliance failure was brought to the senior officer’s attention. The government may establish actual knowledge through any admissible evidence, including but not limited to written communications, electronic messages, meeting records, and testimony from individuals who communicated relevant information to the senior officer.

(4) No Constructive Knowledge Standard for Criminal Liability. For purposes of this subtitle, criminal liability requires actual knowledge. Constructive knowledge — meaning the officer should have known — is not sufficient for criminal liability under this subtitle, though it may support civil liability under Sec. 1122(g). The distinction between actual and constructive knowledge shall be assessed based on what the officer subjectively knew at the time of the violation, not based on what a reasonable officer in their position would have known.

The Bureau shall refer to the Attorney General any matter with credible evidence of criminal violation under this subtitle. The Attorney General shall respond in writing within ninety (90) days of receipt of a referral, indicating whether a criminal investigation has been opened and, if not, providing a written explanation of the basis for the decision not to open an investigation. The Director of the Bureau shall transmit the Attorney General's response — or a written notice of non-response if the Attorney General fails to respond within ninety (90) days — to the relevant congressional oversight committees within ten (10) business days of receipt or of the expiration of the ninety (90) day window, whichever is earlier. Where the Attorney General declines to open a criminal investigation or fails to respond within ninety (90) days, the Bureau may refer the matter independently to any United States Attorney for the district in which the violation occurred or in which the entity is incorporated or primarily operates, for independent consideration. A referral to a United States Attorney under this subsection does not require Attorney General approval and is not subject to DOJ supervisory authority. Criminal Liability — United States-Directed Entity Officers and Agents. Any officer, director, employee, contractor, or agent of a United States-Directed Entity who knowingly authorizes, executes, facilitates, or conceals a transfer of Covered Personal Data concerning United States persons to any entity knowing or having reason to know that the transfer violates Sec. 1033 of this subtitle shall be subject to the same criminal penalties as a principal offender under this subtitle, regardless of where such individual is located or incorporated.

Sec. 1123A. Statute of Limitations for Criminal Offenses.

No person shall be prosecuted, tried, or punished for any criminal offense under Sec. 1123 unless the indictment is found or the information is instituted within eight (8) years after: (a) the date on which the Bureau or any federal law enforcement agency first discovers, or reasonably should have discovered, the facts constituting the offense; or (b) the date of the last act constituting the offense, including the last day of any continuing violation; whichever is later. For purposes of this subtitle, a continuing violation — including the ongoing maintenance of a Population Coverage Database after the mandatory divestiture deadline, or the ongoing retention of abovethreshold data after a certified deletion date — continues until the violation is remediated or the Bureau issues a final order. Nothing in this subtitle shall be construed to shorten the limitations period otherwise applicable under 18 U.S.C. § 3282 or any other provision of federal law where a longer period applies.

Sec. 1123B. Conspiracy, Aiding and Abetting, and Accessory Liability.

(a) Any person who conspires with another to commit any offense under Sec. 1123 is subject to the same criminal penalties as a principal offender under that Section, pursuant to 18 U.S.C. § 371, provided that where Sec. 1123 specifies a mandatory minimum term of imprisonment, the mandatory minimum applies equally to conviction for conspiracy to commit that offense.

(b) Any person who aids, abets, counsels, commands, induces, or procures the commission of any offense under Sec. 1123 is punishable as a principal offender under 18 U.S.C. § 2, subject to the same penalties specified in Sec. 1123 for the principal offense.

(c) Mandatory Contractual Duty and Chain-of-Custody Liability. Every entity that transfers Covered Personal Data to any downstream party — whether through sale, license, API access, data cooperative participation, audience-segment licensing, or any other mechanism — shall include in each such transfer agreement an express, written prohibition on the downstream party's sale, license, transfer, or provision of access to that data to any Federal Agency, Government Contractor acting on behalf of a Federal Agency, or any entity the downstream party has reason to know will provide such data to a Federal Agency or Government Contractor. Failure to include this mandatory prohibition creates strict liability for any government sale that results from the downstream chain, without requirement of proof of actual knowledge. Each entity in a transaction chain that includes this mandatory prohibition in its downstream agreement is not subject to strict liability under this subsection solely by reason of a downstream party's violation of that prohibition, but remains subject to liability under subsections (a) and (b) where it had actual knowledge of the violation. The entity that makes the direct transfer of Covered Personal Data to a Federal Agency or Government Contractor is a principal offender under Sec. 1123(a) regardless of how the transaction is characterized — including as a data sale, platform access license, analytics service, or any other commercial designation — and regardless of whether the entity included a mandatory prohibition in its own upstream agreements.

(d) Nothing in this subtitle limits the independent application of 18 U.S.C. §§ 2 and 371 to conduct regulated by this subtitle.

(e) Data Cartel Criminal Liability. Any person who knowingly participates in a coordinated arrangement among two or more entities for the purpose of collectively assembling a Population Coverage Database, producing Psychological Profiles, or maintaining an Operational Profile capability in violation of Sec. 1032 of this subtitle — where the individual participant knows or has reason to know that:

(1) the combined data holdings and capabilities of all coordinating entities exceed the applicable threshold; and

(2) the coordination is designed in whole or in part to evade the individual-entity thresholds of this subtitle — is subject to criminal liability under 18 U.S.C. § 371 as if the participant were a principal offender in a violation of Sec. 1123(b), Sec. 1123(c), or Sec. 1123(a) respectively for the corresponding underlying violation, regardless of whether any single entity in the coordination individually commits a criminal violation under those provisions. For purposes of this subsection, a person has reason to know that the coordination exceeds an applicable threshold where: the person participated in business discussions or technical design meetings at which the combined data holdings or capabilities of the coordinating entities were discussed; the person's professional responsibilities include oversight of the data practices constituting the entity's contribution to the coordination; or the person has access to commercial data industry information sufficient to understand that the combined holdings of the coordinating entities exceed ten million United States persons. Voluntary Withdrawal Safe Harbor: A participant in prohibited coordination under Sec. 1032 who voluntarily and completely withdraws from the coordinated arrangement before the Bureau has formally initiated an investigation — meaning the participant has permanently ceased all data sharing with coordinating entities, terminated all access arrangements enabling cross-entity data combination, and notified the Bureau in writing of the existence of the coordination, the identity of all participating entities to the extent known, and the technical mechanisms through which coordination was achieved — may not be prosecuted under this subsection for conduct prior to withdrawal, and is entitled to the self-reporting penalty reduction of Sec. 1114(c) as applied to civil penalties arising from prior participation. The voluntary withdrawal safe harbor is not available to the entity or individual that initiated or organized the coordination, or that designed the structural mechanisms through which threshold evasion was achieved.

Sec. 1124. Mandatory Deregistration.

The Bureau shall order mandatory deregistration of any Data Broker or Targeting Infrastructure Contractor that:

(1) receives a third civil penalty within any seven (7) year period, where at least one of the three penalties was assessed at the Tier 2 or Tier 3 level; or where the aggregate civil penalties assessed against the entity within any seven (7) year period equal or exceed five percent (5%) of the entity's global annual revenues as of the date of the most recent penalty — whichever condition is satisfied first;

(2) is convicted of a criminal violation under Sec. 1123; or

(3) fails to comply with a final Bureau order after exhaustion of appeals, subject to the cure periods in subsection (c). A deregistered entity is legally prohibited from operating. Continued operation after a deregistration order becomes effective is

criminal contempt subject to a fine of not less than $1,000,000 per day. Deregistration applies to successor entities, reorganized entities, and entities acquiring substantially all of the deregistered entity's assets or business operations. Deregistration attaches to any data asset, database, or data system that was part of the deregistered entity's operations at the time of deregistration. A transferee that acquires such an asset with knowledge of the deregistration order takes it subject to the same prohibition.

(b) Market Exclusion for United States-Directed Entities — Foreign Government Data Transfer. A United States-Directed Entity that transfers, sells, licenses, provides access to, or makes available in any form any Covered Personal Data concerning United States persons to any foreign government, foreign intelligence service, or their knowing agents — whether directly or through intermediary entities — is subject to mandatory market exclusion in addition to all other penalties under this subtitle. Market exclusion means:

(1) the entity's services, applications, platforms, and data processing operations involving United States persons are prohibited from operating within the United States or accessing United States persons' data from any location;

(2) application stores, internet service providers, content delivery networks, and domain registrars operating within United States jurisdiction shall, upon Bureau order, remove or block access to the entity's services within thirty (30) days of the order;

(3) no United States person or entity may enter into any new commercial relationship with the excluded entity with respect to data involving United States persons; and

(4) the market exclusion remains in effect until the Bureau determines, after independent audit and verification, that the prohibited transfer relationship has been completely terminated and all transferred data has been destroyed. Market exclusion under this subsection is mandatory upon a finding of violation — the Bureau has no discretion to impose a lesser remedy for a foreign government data transfer violation by a United States-Directed Entity.

(c) Cure Periods. The following cure periods apply to the "fails to comply with a final Bureau order" trigger of subsection (a)(3) only; no cure period applies to the criminal conviction trigger of subsection (a)(2) or the repeat-penalty trigger of subsection (a)(1):

(1) Administrative and Procedural Violations. Where the non-compliance consists of a failure to file a required document, maintain a required registration, rotate an auditor, or satisfy any other administrative or procedural obligation under this subtitle, the entity has thirty (30) days from written Bureau notice of non-compliance to achieve full compliance before a deregistration order may issue.

(2) Technical Violations Requiring System Remediation. Where the non-compliance requires modification of technical systems, data architectures, or infrastructure, the entity has thirty (30) days from written Bureau notice of non-compliance to submit a

Bureau approved remediation plan, and ninety (90) days from Bureau approval of the remediation plan to achieve full compliance before a deregistration order may issue. The Bureau shall approve or reject a submitted remediation plan within fifteen (15) days of receipt; failure to act within fifteen (15) days constitutes approval.

(3) Cure periods are available only once per violation of a given final Bureau order. An entity that fails to achieve compliance within the applicable cure period, or that fails to submit a required remediation plan within the thirty (30) day window of paragraph (2), forfeits the cure period and is subject to immediate deregistration. Procedural Requirements for Deregistration Orders. Before issuing a mandatory deregistration order under subsection (a), the Bureau shall:

(1) provide the entity with written notice of the grounds for deregistration, specifically identifying which trigger under subsection (a) has been met and the factual basis for that determination;

(2) afford the entity a period of not less than thirty (30) days to respond in writing to the notice, including by presenting evidence that the applicable trigger has not been met or that a cure period applies; and

(3) issue a written order explaining the basis for deregistration, addressing any response filed by the entity. A deregistration order issued without notice and an opportunity to respond as required by this subsection is without legal effect. Deregistration orders are subject to expedited judicial review in the United States Court of Appeals for the District of Columbia Circuit; the D.C. Circuit shall issue a preliminary ruling within thirty (30) days of the entity's filing and a full merits decision within ninety (90) days. The entity may seek a stay of the deregistration order pending judicial review; the D.C. Circuit shall rule on any stay application within seventy-two (72) hours of filing.

(d) Extended Application to Data-Monetizing Collectors and Data Cooperative Participants. The deregistration triggers of subsection (a) apply to any Tier DM-2 or Tier DM-3 Data-Monetizing Collector and to any entity registered under Sec. 1113 as a participant in a Data Cooperative or Audience-Segment Licensing Arrangement, to the same extent as they apply to Data Brokers and Targeting Infrastructure Contractors. For purposes of this subsection, deregistration of a Tier DM-2 entity means loss of Tier DM-2 status and mandatory reclassification as a Tier DM-3 entity subject to Data Broker treatment under Sec. 1003(7) for a period of not less than five (5) years, rather than prohibition from operation — recognizing that Tier DM-2 entities have direct commercial relationships with consumers that cannot be immediately severed. Where a Tier DM-2 entity that has been reclassified under this subsection subsequently accumulates the repeat-penalty triggers of subsection (a)(1) or is convicted under subsection (a)(2), full deregistration and prohibition from operation shall apply.

(e) Coordination Participant Deregistration. The mandatory deregistration triggers of subsection (a) apply to any entity found to have participated in prohibited coordination under Sec. 1032 of this subtitle to the same extent as they apply to any entity that individually committed the underlying violation. For purposes of applying the repeat-penalty trigger of subsection (a)(1), civil penalties assessed against any entity in connection with the same prohibited coordination arrangement count toward each participating entity's repeat-penalty trigger, reflecting Congress's finding that all participants in a coordinated violation share responsibility for the enforcement record arising from that coordination. Reduced Deregistration Period for Non-Organizing Participants: An entity that participated in prohibited coordination but was not the organizer, architect, or primary commercial beneficiary of the coordination, and that cooperated fully with Bureau investigation — including providing complete and timely disclosure of all participating entities, coordination mechanisms, data sharing arrangements, and technical systems enabling cross-entity data combination — may petition the Bureau for a reduced deregistration period of not less than one (1) year rather than the standard deregistration period, upon demonstrating by a preponderance of the evidence that:

(1) the entity's individual data holdings never independently exceeded the applicable threshold absent the coordination;

(2) the entity withdrew from the coordination upon learning or reasonably concluding that it was designed to evade applicable thresholds, or within thirty (30) days of receiving legal advice that the coordination might constitute prohibited conduct; and

(3) the entity has implemented documented technical and operational controls — including permanent termination of all data sharing arrangements connecting it to former coordination participants — certified as complete by a Bureau-approved independent technical auditor as defined in Sec. 1003(25). The reduced deregistration period is not available to the entity that initiated, organized, designed, or served as the clearinghouse or technical hub for the prohibited coordination. The Bureau shall rule on any petition within sixty (60) days of receiving a complete submission. Bureau failure to rule within sixty (60) days does not constitute approval — the standard deregistration period applies until the Bureau issues a written ruling.

Sec. 1125. Disgorgement.

(a) The Bureau may seek disgorgement of all profits, revenues, and financial benefits derived from a violation, including advertising revenue from targeting using prohibited data, proceeds from prohibited data sales, and contract proceeds from prohibited government data arrangements. Disgorgement amounts shall be paid into the Data Surveillance Victim Compensation Fund administered by the Bureau, from which distributions shall be made to affected individuals as determined by Bureau rule.

(b) Limitations Period. The Bureau may seek disgorgement under this subtitle for violations occurring within five (5) years before the date on which the Bureau opens a formal investigation into the relevant conduct.

(c) Relationship to Civil Penalties. Disgorgement under this subtitle represents actual profits derived from the specific violation and is in addition to, and not a substitute for, civil penalties under Sec. 1122. The Bureau shall ensure that disgorgement amounts do not overlap with penalty amounts assessed on the same revenue stream.

(d) Insolvency and Inability to Pay. Where disgorgement assessed under this subtitle equals or exceeds the entity's ability to pay in full:

(1) The Bureau shall prioritize collection of disgorgement amounts for distribution to the Victim Compensation Fund over collection of civil penalties for payment to the Treasury, to the extent required to satisfy the disgorgement obligation;

(2) The Bureau may accept a Bureau-approved installment payment plan, provided that the full disgorgement obligation is satisfied within a period not to exceed five (5) years from the date of the disgorgement order;

(3) The disgorgement judgment constitutes a lien on all assets of the entity from the date of the order, which shall survive any bankruptcy proceeding and may not be discharged in bankruptcy;

(4) The Bureau may assess and collect disgorgement separately against any officer, director, or controlling shareholder who personally received financial benefit from the violation, to the extent of that personal benefit, regardless of the entity's ability to pay.

(e) Victim Compensation Fund Distribution. The Bureau shall publish rules governing the identification, verification, and distribution process for the Data Surveillance Victim Compensation Fund within three hundred sixty-five (365) days after the Director's first day of service. The Bureau shall make distributions from the Fund on a rolling basis not later than one hundred eighty (180) days after affected individuals have been identified and verified in accordance with the distribution rules applicable to a given enforcement action. No distribution from a completed enforcement action shall be delayed solely because other enforcement actions remain pending.

(f) De Minimis Distributions. The Bureau's distribution rules shall address how to handle situations where the pro rata share of the Fund attributable to an individual claimant is below the administrative cost of processing their claim, including whether to provide for cy pres distribution to organizations representing the interests of affected individuals, aggregate claims below a threshold into a single distribution mechanism, or establish a minimum claim threshold below which individual distributions are consolidated.

Sec. 1126. Injunctive Relief.

(a) The Bureau may seek preliminary and permanent injunctive relief in federal district court to halt any ongoing or imminent violation, including orders to cease data collection, delete data, terminate transfer relationships, and appoint a court-supervised technical monitor for entities demonstrating a pattern of egregious violations. The Bureau is entitled to a rebuttable presumption of irreparable harm upon a showing of probable cause that a violation of Parts C, F, G, or L is occurring.

(b) Emergency Ex Parte Relief. Where the Bureau has credible reason to believe that providing notice to a defendant before seeking preliminary relief would result in the destruction of evidence, the acceleration of prohibited data transfers, or other irreversible harm, the Bureau may apply for a temporary restraining order on an ex parte basis in accordance with Federal Rule of Civil Procedure 65(b).

(c) Pattern of Egregious Violations. For purposes of this subtitle, a "pattern of egregious violations" means two or more Tier 3 violations within a five (5) year period, or any single violation affecting more than fifty million (50,000,000) individuals.

(d) Asset Freeze in Connection with Deregistration. Where a mandatory deregistration order has been issued under Sec. 1124 and one or more civil actions under Sec. 1132 are pending against the deregistered entity, the Bureau may seek an asset freeze in federal district court to preserve the deregistered entity's assets for the benefit of private plaintiffs and the Victim Compensation Fund. The court may grant an asset freeze upon a showing that:

(1) a deregistration order has been issued and is effective or is under judicial review; and

(2) there is a credible risk that the entity's assets will be dissipated before final judgment in the pending civil actions.

Part M — Concurrent State Enforcement and Private Right of Action

Sec. 1131. Concurrent State Attorney General Enforcement.

(a) The attorney general of any State may bring a civil action in any federal district court to enforce this subtitle, seeking the same civil penalties, injunctive relief, disgorgement, and costs available to the Bureau. Thirty (30) days' notice to the Bureau is required before filing. The Bureau may intervene as of right but may not use coordination authority to delay a State action.

(b) Emergency Exception to Notice Requirement. The thirty (30) day notice requirement of subsection (a) does not apply where the state attorney general certifies to the Bureau in writing that immediate filing is necessary to prevent destruction of evidence or ongoing irreparable harm. In such cases, notice shall be provided to the Bureau simultaneously with filing.

(c) Scope of Preemption. This subtitle establishes a federal floor for the protection of individual privacy and the prohibition of commercial surveillance data acquisition. Nothing in this subtitle preempts any state or local law that provides greater protections for individual privacy than the protections provided by this subtitle. However, the government acquisition prohibition of Sec. 1062 and the contractor laundering prohibition of Sec. 1063, as extended to state and local governments by Sec. 1063(c), supersede any conflicting state or local law, ordinance, regulation, or policy that purports to authorize the purchase, licensing, or acquisition of Covered Personal Data, Psychological Profiles, Operational Profiles, Precrime Risk Assessments, or Population Coverage Databases from commercial sources by any state or local government entity. No state or local law may authorize what Secs. 1062 and Sec. 1063 prohibit. State and local governments retain full authority to enact stronger privacy protections, but may not rely on state law to authorize commercial data acquisition prohibited under this subtitle.

(d) Multi-State Coordination Council. The Bureau shall establish a Multi-State Coordination Council through which state attorneys general may share investigative information and submit joint enforcement referrals. The Council shall meet not less than quarterly. The Bureau shall respond in writing within sixty (60) days to any joint enforcement referral submitted by two or more state attorneys general through the Council, either opening a formal investigation or explaining with specificity why a federal investigation is not warranted at that time.

(e) Attorney's Fees. A State that prevails in a civil action under this subtitle is entitled to an award of reasonable attorney's fees and costs from the defendant.

(f) Penalty Sharing. Fifteen percent (15%) of all civil penalties collected by the Bureau or by a prevailing State in any enforcement action under this subtitle where a State attorney general's office contributed materially to the investigation or prosecution — as certified by the relevant state attorney general and confirmed by the Bureau — shall be remitted to the consumer protection enforcement fund of the contributing State. The Bureau shall promulgate rules defining "material contribution" within one hundred eighty (180) days after the Director's first day of service.

(g) State Enforcement Standards. A state attorney general bringing an action under this subtitle shall apply the same tiered penalty structure, good-faith reduction provisions, and proportionality standards as apply to Bureau enforcement under Secs. 1122 and Sec. 1114(c), and shall consider whether the entity discovered and self-reported the violation, whether the violation was inadvertent, and whether the entity promptly remediated upon discovery.

Sec. 1132. Private Right of Action.

(a) Any United States person suffering harm — including dignitary harm, increased risk of harm, chilling of First Amendment-protected activity, or economic harm — from a violation of this subtitle may bring a civil action in any federal district court.

(b) Pre-Suit Demand Requirement for Tier 1 Violations. Before filing a private civil action under this subtitle for conduct that would qualify as a Tier 1 violation under Sec. 1122(a), a plaintiff must provide written notice to the defendant specifically identifying: the specific provision alleged to be violated; the specific data practice alleged to constitute the violation; the approximate time period during which the violation is alleged to have occurred; and the specific relief sought. Written notice must be delivered by a means providing evidence of confirmed receipt — including certified mail with return receipt requested, overnight courier with delivery confirmation, or electronic mail to the entity's designated compliance contact published in its Registry filing under Sec. 1113(e) or on its public website, confirmed by an automated read receipt or equivalent mechanism. The defendant has thirty (30) days from confirmed receipt to cure the violation in full compliance with Sec. 1122(e) of this subtitle. Where the defendant fully completes cure within the thirty (30) day period and provides the plaintiff with written certification of completed cure within five (5) business days of cure completion, no private civil action for that specific violation may be filed by that specific plaintiff based on the same specific violating conduct during the same violation period. This pre-suit demand requirement does not apply to:

(1) violations qualifying as Tier 2 or Tier 3 under Secs. 1122(d) or (e);

(2) violations involving covert collection under Part J;

(3) violations of the absolute prohibition on Psychological Profiles under Sec. 1011(a);

(4) violations affecting individuals who are minors;

(5) any situation where the plaintiff has a specific, documented factual basis to believe that providing pre-suit notice would result in destruction of evidence or obstruction of discovery; or

(6) defendants that have already received a pre-suit demand for the same category of violation from any plaintiff within the preceding twelve (12) months. A plaintiff who fails to comply with the pre-suit demand requirement where it applies may not recover attorney's fees and costs under subsection (c) for the period prior to filing, but this failure does not bar the underlying civil action or limit any available damages.

(C) Classification Uncertainty Safe Harbor — Attorney's Fees. Where a plaintiff had a reasonable good-faith basis at the time of filing to believe that the conduct alleged would constitute a Tier 2 or Tier 3 violation, the failure to provide pre-suit demand under this subsection shall not result in denial of attorney's fees and

costs, even if the court ultimately finds the violation to be a Tier 1 violation. A reasonable good-faith basis exists where:

(1) the Bureau had previously classified the same category of conduct as Tier 2 or Tier 3 in a published enforcement action, formal consent order, or published interpretive guidance; or

(2) the plaintiff alleged knowing conduct and had, at the time of filing, specific articulable facts supporting that allegation. This safe harbor applies to the attorney's fees question only and does not affect any other aspect of the court's adjudication of the underlying civil action.

(D) Defendant Tier Classification Estoppel. A defendant that has argued before the Bureau or in any prior civil action under this subtitle that the same category of conduct constitutes only a Tier 1 violation is estopped from arguing in any subsequent private civil action that a plaintiff was required to provide pre-suit demand as a precondition to recovering attorney's fees and costs, with respect to the same category of conduct. "Same category of conduct" means the same data collection, processing, retention, or transfer practice, without regard to whether the specific individuals affected or the specific time period at issue are identical.

(E) Demand Letter Standards. A pre-suit demand letter under this subsection shall be deemed to satisfy the written notice requirement where it:

(1) identifies the specific statutory provision alleged to be violated by section number;

(2) describes the data practice alleged to constitute the violation in sufficient factual detail to enable the defendant to identify the specific practice and take corrective action;

(3) states the approximate time period during which the violation is alleged to have occurred;

(4) identifies the specific relief sought; and

(5) is delivered by a means providing evidence of confirmed receipt. A deficient demand letter does not trigger the thirty (30) day cure period. A defendant that receives a deficient demand letter shall notify the plaintiff of the specific deficiency within ten (10) business days of receipt, and the plaintiff shall have ten

(10) additional business days to transmit a corrected demand letter. A defendant that fails to notify the plaintiff of a deficiency within ten (10) business days waives any objection to the demand letter's sufficiency.

(c) Remedies: actual damages not less than $1,000 per violation; statutory damages of $5,000 to $50,000 per violation without proof of actual harm; punitive damages for willful or reckless violations; injunctive and declaratory relief; and attorney's fees and costs. In any class action maintained under subsection (f) of this subtitle, a court may

reduce per-violation statutory damages below the $5,000 minimum under subsection (e) of this subtitle where the aggregate award would be grossly disproportionate to the actual harm caused and to the defendant's culpability. Where the aggregate statutory damages calculated by multiplying the applicable per-violation amount by the number of class members would exceed one percent (1%) of the defendant's total net worth as reported in the most recent audited financial statements available at the time of calculation, the court shall conduct a mandatory proportionality review before entering any final judgment for statutory damages. In conducting any proportionality review under either the discretionary or mandatory standard, the court shall consider: the severity of the violation; the number of individuals affected and the nature of harm to each; whether the violation was knowing, willful, or inadvertent; the defendant's prior enforcement history under this subtitle; the deterrent effect of the aggregate award; and whether the aggregate award would result in effective insolvency without serving the remedial purposes of this subtitle. No proportionality reduction may reduce any individual class member's statutory damages award below five hundred dollars ($500) per violation regardless of the aggregate reduction applied. This proportionality provision applies only to aggregate statutory damages in class actions certified under Federal Rule of Civil Procedure 23 and does not limit individual plaintiff statutory damages in individual actions, actual damages awards, punitive damages for willful or reckless violations, or disgorgement ordered under Sec. 1125 of this subtitle.

(d) Definition of Violation for Statutory Damages. For purposes of subsection (b), a "violation" means:

(1) for conduct that would constitute a Tier 1 violation under Sec. 1122(a), each discrete act of non-compliant collection, processing, or transfer by the entity; and

(2) for conduct that would constitute a Tier 2 or Tier 3 violation under Sec. 1122(d) or (e), each individual United States person whose Covered Personal Data was collected, processed, retained, or transferred in the non-compliant act. In any class action under subsection (e), a court may reduce the per-violation statutory damages award below the $5,000 minimum where the court finds in writing that the aggregate award would be grossly disproportionate to the actual harm caused and to the defendant's culpability, taking into account the nature of the violation, the defendant's financial condition, and the deterrent purposes of this subtitle.

(e) Actions may be maintained as class actions under Federal Rule of Civil Procedure 23. The Bureau shall have the right to appear as amicus curiae in any class action proceeding under this subtitle and to submit written comments to the court regarding the adequacy of any proposed settlement. The court shall consider but is not bound by any Bureau submission. Approval of any proposed settlement shall remain exclusively within the court's authority under Federal Rule of Civil Procedure 23(e).

(f) Parallel Proceedings. Where a Bureau enforcement proceeding and a private civil action under this subtitle are pending simultaneously against the same defendant for substantially the same conduct, the district court may stay the private action pending resolution of the Bureau proceeding, or may consolidate proceedings where appropriate. A final judgment in a Bureau enforcement proceeding does not preclude a private action for the same conduct, but disgorgement amounts paid to the Victim Compensation Fund shall be credited against any disgorgement or restitution ordered in a private action to prevent double recovery.

(g) Statute of Limitations. The limitations period for any civil action under this subtitle is five (5) years from discovery. For ongoing violations, the period does not run until the violation has ceased. For violations involving covert collection under Part J or any collection conducted without the knowledge of the affected individual, the limitations period runs from the date the individual discovers, or through the exercise of reasonable diligence could have discovered, that the collection occurred. Constructive discovery does not arise solely from a public announcement that an entity generally engages in data collection practices.

(h) Whistleblower Awards. Any individual providing the Bureau with original information not already known to the Bureau that leads to a successful enforcement action resulting in final civil penalties exceeding one million dollars ($1,000,000) after exhaustion of all appeals shall be entitled to a whistleblower award of ten percent (10%) to thirty percent (30%) of the first one hundred million dollars ($100,000,000) in penalties collected, plus five percent (5%) to fifteen percent (15%) of any penalties above one hundred million dollars ($100,000,000). Before any award is paid, the Bureau shall conduct a procedural review evaluating whether the information was original and not manufactured or embellished; whether the whistleblower participated in the violation; and whether the whistleblower took reasonable steps to report through internal channels before approaching the Bureau, except where internal reporting would have been futile or would have subjected the whistleblower to retaliation. Awards shall be paid from the Supplemental Enforcement Fund. Whistleblowers who knowingly provide false information are subject to civil penalties under Sec. 1122 and criminal liability under 18 U.S.C. § 1001. For purposes of this subsection, information is “original” if it is derived from the whistleblower’s independent knowledge or analysis, is not already the subject of a formal Bureau investigation, and materially advances the Bureau’s ability to establish the violation. Information is not rendered non-original solely because the general subject matter has been publicly reported, provided the whistleblower’s specific information adds material new facts, documentation, or evidence not available in public reporting.

(i) Foreign Direction Disclosure Award. Any individual who discloses to the Bureau, the FBI, or the JEOS Special Ethics Advocate specific, credible evidence that an organization is subject to Foreign Direction as defined in Sec. 1003(12) shall be entitled

to full anti- retaliation protection under the whistleblower standards of this subtitle regardless of whether the disclosure results in a civil penalty enforcement action. Where such disclosure leads to a successful criminal prosecution, the whistleblower shall be entitled to an award from the Supplemental Enforcement Fund of between five percent (5%) and fifteen percent (15%) of any fines collected in the criminal proceeding. This provision explicitly covers disclosures by members or employees of any organization, including political and advocacy organizations, who have direct evidence of foreign government operational direction, material funding, or strategic coordination of that organization's activities.

(j) Anti-Retaliation. No entity subject to this subtitle shall discharge, demote, suspend, threaten, harass, or in any other manner discriminate against any individual in the terms and conditions of employment because the individual filed, instituted, or caused to be filed or instituted a civil action under this subtitle, testified or participated in such an action, or provided information to any attorney or representative in connection with such an action. An individual who suffers retaliation in violation of this subsection may elect either:

(1) reinstatement to their former position with back pay and interest for the period of wrongful termination or demotion, plus compensation for any special damages sustained as a result of the retaliation, including litigation costs and reasonable attorney's fees; or

(2) in lieu of reinstatement, front pay in an amount determined by the court to compensate for the expected future earnings loss resulting from the retaliation, plus compensation for any special damages sustained as a result of the retaliation, including litigation costs and reasonable attorney's fees.

Sec. 1133. General Rulemaking.

The Commission is authorized to promulgate rules under 5 U.S.C. § 553 to carry out this subtitle, including: specifying additional categories of Covered Personal Data and defining thresholds for prohibited compilations as technology evolves; prescribing consent disclosure form and content; establishing technical standards for combination-prohibition isolation; classifying new data types and targeting techniques including under the authority of Sec. 1095(c); establishing standards for Bureau-certified auditors; prescribing disgorgement methodology; administering the Data Surveillance Victim Compensation Fund; and defining "relevant gross revenues" for purposes of the Data-Monetizing Collector tier classifications under Sec. 1003(7). The Commission shall complete initial rulemakings for combination-prohibition isolation technical standards and for disgorgement methodology within three hundred sixty-five (365) days after the Director's first day of service. Where the Commission determines that a new data type, targeting technique, or collection practice poses an immediate and specific threat to the population protected by this subtitle that cannot await standard notice-and-comment rulemaking, the Commission may issue a

written public finding designating the data type, technique, or practice as presumptively prohibited pending completion of rulemaking. Such a preliminary designation:

(1) is not itself a binding rule but creates a strong presumption in any Bureau enforcement proceeding that use of the designated data type, technique, or practice violates this subtitle;

(2) places regulated entities on immediate notice that continued use presents credible enforcement risk;

(3) triggers an expedited rulemaking under 5 U.S.C. § 553 that shall be completed within sixty (60) days of the preliminary designation; and

(4) is subject to judicial review as a final agency action upon completion of the expedited rulemaking. The Commission shall transmit any preliminary designation to the relevant congressional oversight committees within forty-eight (48) hours of publication.

(b) Entity-Type Compliance Guides.

(1) Publication Requirement. Within one hundred eighty (180) days after the Director's first day of service, the Bureau shall publish separate plain-language compliance guides for each of the following entity categories. Each guide shall specify, in a single document, the complete set of obligations under this subtitle applicable to that entity type, organized to permit compliance without cross-referencing provisions of the statute not cited in the guide:

(A) search engine operators and query-based information retrieval services;

(B) social media platform operators and content recommendation system operators;

(C) e-commerce retailers and direct-to-consumer merchants using first-party transactional data;

(D) data brokers and targeting infrastructure contractors required to register;

(E) small businesses as defined in this subtitle;

(F) nonprofit organizations relying on the nonprofit and civil society organization exemption;

(G) licensed healthcare entities, mental health application operators, and clinical research institutions;

(H) financial institutions relying on the financial, tax, and economic carve-outs; and

(I) news organizations, investigative journalism organizations, and documentary filmmakers relying on the journalism and press exemption.

(2) Guide Contents. Each guide shall include:

(A) a plain-language summary of all substantive prohibitions applicable to that entity type, written at a reading level no higher than eighth grade as assessed by a standard readability index designated by the Commission by rule;

(B) a compliance checklist identifying each affirmative obligation applicable to that entity type, including registration, audit, certification, consent, retention, and reporting obligations, with the applicable deadline for each;

(C) a decision tree enabling an entity to determine which safe harbors, exemptions, and conditional permissions apply to its specific data practices;

(D) illustrative examples of data practices that are clearly permitted, clearly prohibited, and subject to conditions;

(E) a list of all Bureau rules, Commission rules, and published interpretive guidance specifically applicable to that entity type, with citations and effective dates; and

(F) contact information for the Bureau compliance assistance program.

(3) Update Obligation. Each guide shall be updated:

(A) within sixty (60) days of any final Bureau or Commission rule that materially affects the obligations of the relevant entity type;

(B) within sixty (60) days of any published enforcement action that materially clarifies the application of any provision to the relevant entity type; and

(C) not less than annually in all events.

(4) Entity-Specific Consultation. An entity that has reviewed the applicable compliance guide and has a good-faith question about whether a specific data practice is permitted may seek a written determination from the Bureau. The Bureau shall prioritize written determination requests from Small Businesses and from entities that have demonstrated good-faith compliance efforts.

Part N — Government Agency Carve-Outs and Relationship to Existing Federal Law

Sec. 1141. General Framework for Government Program Carve-Outs.

(a) The Population Coverage Database prohibition of Sec. 1041 does not apply to the Federal Government's own data holdings where: the data is held exclusively for the specific statutory function described in this Part; the data is technically isolated from all commercial data ecosystems, with isolation verified by annual independent audit; and the data is prohibited from transfer to any commercial entity or to any other Federal Agency outside specific statutory authorization. The Bureau shall have audit authority over all carve-out holders to verify isolation compliance.

(b) The carve-outs in this Part are strictly conditional. An agency that transfers carve-out data to a commercial entity, uses it for a purpose outside its statutory function, or fails to maintain technical isolation loses carve-out protection and is subject to the full

prohibition of Sec. 1041 and the enforcement provisions of Parts O through R. Where the Bureau finds that a Federal Agency has lost carve-out protection under this subsection, the Bureau shall:

(1) transmit a written finding to the relevant congressional oversight committees within thirty (30) days;

(2) require the agency to submit a remediation plan within sixty (60) days; and

(3) refer the matter to the relevant Inspector General for investigation. Individual agency officials responsible for the violation are subject to personal civil liability under Sec. 1122(g) and, where the violation is willful, personal criminal liability under 18 U.S.C. § 242.

(c) Audit Authority and Staffing. The annual independent audit required by subsection (a) shall be conducted by Bureau technical staff authorized under this subsection, with results transmitted to the agency's Inspector General and to the relevant congressional oversight committees within thirty (30) days of completion. To conduct audits of Federal Agency data holdings under this Part, the Bureau Director is authorized to:

(1) apply for and maintain a facility security clearance at the TOP SECRET/SCI level;

(2) designate Bureau technical staff for security clearance adjudication at appropriate levels for access to the specific programs being audited; and

(3) enter into memoranda of understanding with the Office of the Director of National Intelligence and the relevant agency Inspector General where classified program access requires joint oversight arrangements. Where Bureau technical staff do not hold clearances sufficient to audit a specific classified program, the audit of that specific program shall be conducted jointly with the agency's Inspector General and the relevant Intelligence Community Inspector General, with results transmitted to the Bureau in a form consistent with applicable classification requirements.

(d) Interim Inter-Agency Data Sharing. Existing inter-agency data sharing arrangements authorized by specific federal statute as of the date of enactment are not prohibited by the "specific statutory authorization" requirement of subsection (a) during a transition period ending two hundred seventy (270) days after the Director's first day of service. During that transition period, the Commission shall publish a notice inviting each Federal Agency holding data under a Part N carve-out to submit written comments identifying the existing inter-agency data sharing arrangements it relies upon and the statutory authority for each. Not later than two hundred seventy (270) days after the Director's first day of service, the Commission shall publish guidance identifying which existing inter-agency data sharing arrangements satisfy the "specific statutory authorization" standard of subsection (a), which do not, and the remediation timeline required for non-qualifying arrangements. Until the Commission publishes that guidance, no existing inter-agency data sharing arrangement authorized by specific

federal statute shall be deemed a violation of this subtitle solely because it has not yet been reviewed under this provision.

Sec. 1142. Healthcare and Benefits Administration Carve-Outs.

(a) Centers for Medicare and Medicaid Services. CMS may hold health claims and beneficiary data required for Medicare, Medicaid, CHIP, and marketplace administration. Use is limited to program administration, reimbursement, fraud prevention, and public health research conducted under strict data use agreements. Transfer to commercial entities or to law enforcement agencies outside specific statutory authorization is prohibited. Data use agreements under this subsection shall require: (1) that research access is limited to de-identified or pseudonymized data wherever technically feasible;

(2) that data not be re-identified or combined with commercial data sources;

(3) that data be destroyed upon completion of the research; and

(4) that the research institution certify annual compliance. The Bureau, in consultation with HHS, shall publish model data use agreement terms within one hundred eighty (180) days after the Director's first day of service.

(b) Social Security Administration. SSA may hold earnings, identity, and benefit records required for Social Security, Supplemental Security Income, and Medicare enrollment administration. Use is limited to benefit determination, identity verification for program participation, and legally required reporting. Transfer to commercial entities is prohibited. State Disability Determination Services agencies operating under contract with SSA to adjudicate disability claims are covered by this carve-out to the extent they process SSA data strictly for disability determination purposes; their use of SSA data for any commercial purpose, including the sale or licensing of claim data to any third party, is prohibited under this subtitle regardless of state law authorization.

(c) Veterans Affairs. VA may hold medical, benefits, and service records required for veteran healthcare, benefits administration, and service-related research. Use is limited to veteran service delivery and research conducted under strict data use agreements approved by VA's privacy officer. Transfer to commercial entities is prohibited.

(d) Indian Health Service. IHS may hold health records required for the provision of healthcare services to eligible beneficiaries under the Indian Health Care Improvement Act. Transfer to commercial entities is prohibited.

(e) Office of Personnel Management. OPM may hold personnel and background investigation records required for federal employment administration and security clearance adjudication under 5 U.S.C. § 1103. OPM data holdings shall comply with the highest security classification standards applicable to federal personnel records as specified by the Office of Management and Budget in coordination with CISA, updated

not less than every two (2) years. Annual penetration testing is required. Transfer to commercial entities is prohibited.

(f) Health Resources and Services Administration. HRSA is covered under Sec. 1145(d) of this Part.

(g) Clinical Research and Epidemiological Study Exemption. The prohibitions of Parts C, D, E, and F of this subtitle do not apply to the collection, processing, and retention of Covered Personal Data in connection with the following research activities, subject to all conditions of this subsection:

(1) clinical trials conducted under an Investigational New Drug Application or Investigational Device Exemption approved by the Food and Drug Administration under 21 C.F.R. Parts 312 or 812, where data collection is governed by the informed consent requirements of 21 C.F.R. Part 50 and the Institutional Review Board requirements of 21 C.F.R. Part 56;

(2) epidemiological research studies approved by an Institutional Review Board constituted and operating under 45 C.F.R. Part 46 and conducted under a written protocol that includes documented human subjects protections; and

(3) post-market surveillance studies required by the Food and Drug Administration under 21 C.F.R. Part 522 or equivalent post-market surveillance authority. This exemption is subject to all of the following conditions, violation of any of which immediately terminates the exemption:

(A) data is collected only from individuals who have provided informed consent meeting the applicable regulatory standard, specifically identifying what data will be collected, how it will be used, who will have access, and the retention period;

(B) data is used exclusively for the specific research purpose stated in the approved IND, IDE, IRB protocol, or FDA-mandated surveillance requirement, and is not used for commercial advertising targeting, data brokerage, commercial data sale, or any commercial purpose other than regulatory submission and peer-reviewed publication;

(C) data is not sold, licensed, transferred, or made accessible to any Data Broker, Targeting Infrastructure Contractor, commercial advertising platform, political organization, or entity whose primary business involves commercial use of personal data for non-research purposes — transfers to contract research organizations, academic medical centers, and regulatory affairs consultants strictly for regulatory submission and research operations are permitted;

(D) data is retained only for the period required by applicable FDA regulations and Good Clinical Practice guidelines and is permanently deleted upon expiration of

the applicable regulatory retention period unless a specific IRB-approved protocol extension requires longer retention for defined scientific purposes; and

(E) this exemption does not extend to any data practice producing a Psychological Profile as defined in Sec. 1003

(2) — clinical and epidemiological research may collect detailed health, behavioral, biological, and clinical data under this exemption but may not compile personality scores, emotional vulnerability assessments, or any other output constituting a Psychological Profile, which remains subject to the absolute prohibition of Sec. 1011(a).

Sec. 1143. Financial, Tax, and Economic Carve-Outs.

(a) Internal Revenue Service. The IRS may hold tax records as required for tax administration. Existing confidentiality protections under 26 U.S.C. § 6103 are hereby reinforced. Transfer of tax records to any entity not specifically authorized under § 6103, including any commercial entity, is prohibited. Nothing in this subtitle expands IRS authority to share taxpayer data beyond what § 6103 currently permits. Criminal liability under 26 U.S.C. § 7213 for unauthorized disclosure of tax information by IRS employees and contractors remains fully applicable alongside the penalties of this subtitle and is not superseded or displaced by this subtitle.

(b) FinCEN and BSA Compliance. Financial institutions, as defined in 31 U.S.C. § 5312, may maintain transaction records required under the Bank Secrecy Act, conduct Customer Due Diligence as required by FinCEN regulations, and file Suspicious Activity Reports and Currency Transaction Reports. These activities are permitted provided that: such data is operated solely within the institution's direct customer relationships; transaction monitoring data and CDD records are not sold, licensed, or transferred to any third party other than FinCEN or a law enforcement agency pursuant to valid legal process; and such data is not used as input to any system producing Psychological Profiles or Precrime Risk Assessments for any purpose other than the institution's own fraud prevention and AML compliance. Transaction monitoring data and Suspicious Activity Report data maintained under this subsection shall not be used for any purpose other than AML compliance, fraud prevention, and legally required regulatory reporting. Such data shall not be used as an input to credit scoring models, behavioral profiling systems, or any system producing outputs beyond the AML/fraud prevention function.

(c) FDIC, NCUA, and Pension Benefit Guaranty Corporation. These agencies may hold depositor and plan participant records required for their respective resolution and insurance functions. Transfer to commercial entities is prohibited.

(d) Fair Credit Reporting Act Coordination. Consumer reporting agencies, as defined in 15 U.S.C. § 1681a(f), may hold consumer report data as required and authorized by the Fair

Credit Reporting Act. This carve-out is conditional: it does not apply where a consumer reporting agency sells, licenses, or provides access to its database to any Federal Agency for any purpose other than evaluating a Federal credit application or a background check specifically authorized by statute; participates in any data cooperative, audience-segment licensing arrangement, or commercial data sale outside the consumer reporting relationship; or combines consumer report data with data from non-credit sources to produce outputs beyond the consumer reporting function. Consumer reporting agencies holding Population Coverage Databases shall be subject to the registration requirements of Sec. 1113 and the annual audit requirements of Sec. 1115, but are not required to divest data holdings necessary to fulfill FCRA obligations, provided they demonstrate technical isolation of FCRA data from commercial data operations in annual technical audits. The Commission, in consultation with the CFPB, shall issue rules within three hundred sixtyfive (365) days of enactment specifying the technical isolation standards required.

Sec. 1144. Statistical, Research, and Educational Carve-Outs.

(a) Census Bureau. The Census Bureau may hold decennial census and American Community Survey data as required by Article I, § 2 of the Constitution and 13 U.S.C. § 141. Existing confidentiality protections under 13 U.S.C. § 9, including the 72-year confidentiality requirement for individual records, are hereby reinforced. Transfer to any commercial entity or law enforcement agency is prohibited. The Census Bureau may not be compelled by any Federal Agency to provide individually identifiable census data for any law enforcement, immigration enforcement, national security, or commercial purpose. No officer or employee of the Census Bureau shall voluntarily provide, or cause to be provided, individually identifiable census data to any Federal Agency, state or local law enforcement agency, commercial entity, or foreign government for any law enforcement, immigration enforcement, national security, or commercial purpose, regardless of whether compulsion has been applied. Violation of this prohibition constitutes a criminal offense under 13 U.S.C. § 214. Nothing in this subsection limits existing exceptions under 13 U.S.C. § 8 or any other provision of law that specifically authorizes disclosure in connection with criminal proceedings.

(b) Statistical Agencies. The Bureau of Labor Statistics, Bureau of Economic Analysis, National Center for Health Statistics, Bureau of Justice Statistics, and National Agricultural Statistics Service may hold individual-level survey data required for their respective statistical missions. Such data shall be used exclusively for statistical purposes, shall not be transferred to law enforcement agencies or commercial entities, and shall comply with the statistical confidentiality standards of the Confidential Information Protection and Statistical Efficiency Act, 44 U.S.C. § 3561 et seq.

(c) Department of Education. The Department of Education may hold Federal Student Aid records, FAFSA data, and National Student Loan Data System records required for

federal student aid administration under the Higher Education Act, 20 U.S.C. § 1001 et seq. Transfer to commercial entities for any purpose other than financial institution loan servicing under written contract with mandatory data use limitations is prohibited. Mandatory data use limitations under this subsection shall include at minimum: prohibition on use of transferred data for any purpose other than loan servicing; prohibition on sale or transfer to any third party; prohibition on use for marketing, profiling, or advertising; and requirement to destroy data within ninety (90) days of the conclusion of the servicer's servicing relationship.

(d) National Center for Education Statistics. NCES may hold longitudinal student survey data required for education research under 20 U.S.C. § 9543. Existing confidentiality protections under the Education Sciences Reform Act are reinforced. Transfer to commercial entities is prohibited.

Sec. 1145. Public Health, Emergency Management, and Healthcare Workforce Carve-Outs.

(a) Centers for Disease Control and Prevention. CDC may hold disease surveillance data required for public health monitoring and response under 42 U.S.C. § 264. Use is limited to disease surveillance, epidemiological research, and public health emergency response. Transfer to commercial entities or law enforcement agencies is prohibited. CDC may not transfer disease surveillance data, vaccination records, or testing records to any law enforcement agency or immigration enforcement agency for any purpose. Nothing in this subsection limits the authority of a detention facility's medical staff or a treating provider to access or share an individual detainee's own medical records as necessary for direct medical care, or as required by applicable law governing medical care in detention facilities; CDC disease surveillance data held under this carve-out does not constitute individual clinical records and is not the source of health information to be used in individual detention or deportation proceedings.

(b) Food and Drug Administration. FDA may hold drug adverse event reporting system data and medical device reporting data required for post-market safety surveillance. Transfer to commercial entities is prohibited.

(c) Federal Emergency Management Agency. FEMA may hold disaster assistance recipient records required for disaster relief administration under the Robert T. Stafford Disaster Relief and Emergency Assistance Act. Use is limited to disaster assistance administration. Transfer to commercial entities is prohibited.

(d) Health Resources and Services Administration. HRSA may hold healthcare workforce and patient data required for administration of health programs under its statutory mandate, including programs administered under the Ryan White HIV/AIDS Program, federally qualified health center programs, and rural health programs. Use is limited to program administration and statutory health workforce functions. Transfer to commercial entities is prohibited. Patient data held by federally qualified health centers

operating under HRSA programs is subject to the same protections as this subsection and may not be transferred to any commercial entity, law enforcement agency, or immigration enforcement agency.

Sec. 1146. Transportation and Border Enforcement Carve-Outs.

(a) Federal Aviation Administration. The FAA may hold pilot certification, aircraft registration, and air traffic control records required for aviation safety regulation under 49 U.S.C. § 40103. Transfer to commercial entities beyond what is expressly required for aviation safety purposes is prohibited.

(b) Transportation Security Administration. The TSA may hold Secure Flight passenger prescreening data and PreCheck enrollment data required for aviation security screening under 49 U.S.C. § 44901. Use is strictly limited to aviation security screening functions. TSA data shall not be used for general law enforcement purposes, immigration enforcement, or shared with commercial entities.

(c) Customs and Border Protection — Narrow Carve-Out. CBP may hold traveler entry records, manifest data, and targeting system data strictly necessary to perform its statutory functions of: preventing the entry of contraband, including narcotics and weapons; identifying individuals subject to active federal arrest warrants; screening for individuals on terrorism watchlists maintained under legally authorized and court-supervised programs; and identifying victims of human trafficking and sex trafficking through its anti-trafficking programs. This carve-out is narrow and conditional. CBP may not: use its data holdings to conduct general immigration enforcement beyond identifying individuals with valid removal orders who are encountered at ports of entry; share data with commercial entities; build Psychological Profiles or Operational Profiles on travelers; or use data for any domestic law enforcement purpose unrelated to CBP's border security and customs functions. CBP's data holdings shall be subject to annual Bureau audit to verify compliance with this narrow carve-out. The Automated Targeting System shall be reviewed by the Bureau within one hundred eighty (180) days of enactment to assess compliance with this subtitle. Where the Bureau's review finds that the Automated Targeting System incorporates commercially purchased Covered Personal Data prohibited under Sec. 1062, CBP shall submit a remediation plan to the Bureau within sixty (60) days of the Bureau's finding and shall remove the non-compliant commercial data inputs from the ATS within one hundred eighty (180) days of the finding, replacing them with data sources constituting Constitutionally Equivalent Collection. The core ATS functions — screening travelers against terrorism watchlists, customs violations, and anti-trafficking programs — shall continue during and after remediation; only the non-compliant commercially-purchased data components shall be excised. The Bureau shall transmit its ATS review findings to the relevant congressional oversight committees within thirty (30) days of completion.

(d) USCIS. U.S. Citizenship and Immigration Services may hold immigration application and status records required for immigration benefit adjudication under 8 U.S.C. § 1103. Use is limited to immigration benefit processing and status verification. Transfer to commercial entities is prohibited. USCIS data shall not be shared with ICE for enforcement purposes except pursuant to a warrant or court order issued in connection with a criminal investigation or prosecution by a court of competent criminal jurisdiction. A civil order of removal alone does not constitute authorization for data sharing under this subsection, except as provided in the following sentence. Notwithstanding the foregoing, USCIS may share with ICE the minimum data necessary to confirm the identity and immigration status of a specific named individual who is the subject of a final judicial order of removal issued by an immigration court of competent jurisdiction, solely for the purpose of effectuating that specific, identified order of removal. Data shared under this sentence:

(1) is strictly limited to the named individual identified in the removal order;

(2) may not be used to identify, locate, surveil, or initiate enforcement action against any individual other than the named subject of the order;

(3) may not be combined with any commercially acquired Covered Personal Data; and

(4) may not be retained by ICE beyond the completion of the specific removal proceeding for which it was shared. A final judicial order of removal issued by an immigration court of competent jurisdiction constitutes authorization for data sharing under this sentence; an administrative order of removal that has not received judicial confirmation does not.

(e) ICE — Strictly Narrow Carve-Out. Immigration and Customs Enforcement may hold records strictly necessary for civil immigration enforcement pursuant to final judicial orders of removal and criminal enforcement of federal immigration crimes. ICE may not purchase, license, or access any Covered Personal Data from commercial sources, including from data brokers, location data providers, or commercial surveillance platforms. ICE's data acquisition is limited to Constitutionally Equivalent Collection — warrant, subpoena, or consent. ICE's use of fusion center data, commercial location data, and social media monitoring tools that constitute Operational Profiles or Psychological Profiles is prohibited under the government acquisition prohibition of Sec. 1062 and no carve-out under this Part exempts ICE from that prohibition.

Sec. 1147. Law Enforcement and Criminal Justice Carve-Outs.

(a) FBI Criminal Justice Information Services. The FBI's CJIS division may hold fingerprint databases, criminal history records, and background check systems required for criminal justice purposes under 34 U.S.C. § 40301. This carve-out is conditional: CJIS data shall not be combined with commercial data sources to produce Operational Profiles or Psychological Profiles; CJIS records shall not be sold or licensed to

commercial entities; and the CJIS Next Generation Identification biometric database shall not be used for commercial identity verification or commercial surveillance applications. CJIS operations shall be subject to annual Bureau audit to verify compliance.

(b) Drug Enforcement Administration — Narrow Carve-Out. DEA may hold records strictly necessary for criminal investigation and prosecution of federal drug offenses, including records derived from DEA's own investigation activities, confidential informant relationships, court-authorized interceptions, and foreign law enforcement cooperation. Pending the Bureau's review under this subsection, DEA shall not enter into any new contracts for commercial Covered Personal Data or expand the scope of any existing commercial data contract. DEA's DICE and DARTS databases shall be reviewed by the Bureau within one hundred eighty (180) days of enactment to assess compliance with the government acquisition prohibition of Sec. 1062. Any DEA data program that is found to rely on commercially purchased Covered Personal Data must terminate within one hundred eighty (180) days of the Bureau's review. For the avoidance of doubt, nothing in this subsection limits DEA's authority to: conduct investigations through courtauthorized wiretaps under Title III; operate through DEA attaché offices in foreign countries under applicable foreign law and bilateral law enforcement treaties; cooperate with foreign law enforcement and intelligence services through the Special Operations Division or equivalent programs; or use data obtained through Constitutionally Equivalent Collection in domestic and international drug trafficking investigations. The carve-out restriction applies only to the bulk commercial purchase of Covered Personal Data about United States persons from domestic commercial data brokers and surveillance platforms.

(c) Bureau of Prisons. BOP may hold inmate records required for correctional administration. Transfer to commercial entities is prohibited.

(d) United States Marshals Service. The USMS may hold fugitive tracking records and Witness Security Program records strictly necessary for its statutory functions under 28 U.S.C. §§ 561-569 and 18 U.S.C. § 3521. Fugitive tracking records may be used solely for the apprehension of individuals subject to active federal warrants. Witness Security Program records are classified and may not be transferred to any agency, commercial entity, or foreign government under any circumstances. USMS data shall not be combined with commercial data sources or used to produce Psychological Profiles. Nothing in this subsection prohibits the USMS from disclosing a participant's identity to medical providers in a genuine medical emergency, or from disclosing identity to prosecutors in a criminal proceeding against the participant, in accordance with 18 U.S.C. § 3521 and established USMS program protocols. Such disclosures are not "transfers" within the meaning of this subtitle.

Sec. 1148. Housing, Agriculture, and Other Program Carve-Outs.

(a) HUD. The Department of Housing and Urban Development may hold assisted housing program records required for administration of housing assistance programs. Transfer to commercial entities is prohibited.

(b) USDA Farm Programs. The Farm Service Agency and Rural Development offices may hold farm operator and loan recipient records required for administration of agricultural support programs. Transfer to commercial entities is prohibited.

(c) VA Housing Programs. VA housing loan guaranty and housing assistance programs are covered under the carve-out of Sec. 1142(c) to the extent the relevant data is held within the direct veteran service delivery relationship. Data held solely for VA housing loan guaranty or housing assistance administration that is not otherwise covered by Sec. 1142(c) is subject to the same conditions: use limited to the specific housing program function; transfer to commercial entities prohibited.

(d) United States Postal Service — Mail Isolation Control and Tracking. The United States Postal Service may continue to operate the Mail Isolation Control and Tracking (MICT) program and any successor exterior mail imaging program as required for mail processing, security, and law enforcement cooperation, subject to the following conditions: MICT imagery and associated metadata may be used solely for: mail processing and delivery operations; responding to specific law enforcement requests supported by a court order, warrant, or grand jury subpoena directed to a specific named individual or a specific identified investigation; and USPS security investigations involving suspected mail fraud, mail theft, or threats to postal infrastructure. MICT imagery and metadata may not be: transferred to or accessed by any Federal Agency, state or local law enforcement agency, or any other entity absent a specific court order, warrant, or grand jury subpoena; used to build behavioral profiles, track the associations or activities of political organizations, or monitor communications patterns of journalists, activists, or political figures; sold, licensed, or transferred to any commercial entity under any circumstances; retained for any individual piece of mail beyond one hundred eighty

(180) days from the date of imaging absent a court order requiring preservation for a specific ongoing investigation; or aggregated into any database constituting an Operational Profile or Population Coverage Database as defined in this subtitle. The MICT program shall be subject to annual audit by the Postal Service Inspector General, with results transmitted to the relevant congressional oversight committees. Abuse of MICT data outside the conditions of this subsection constitutes a violation of this subtitle and, where committed by a government official, criminal liability under 18 U.S.C. § 242.

Sec. 1149. Voluntarily Provided Public Participation Data.

Any information voluntarily submitted by an individual to a Federal Agency in the individual's own name for the purpose of participating in a legally established government process, program, or proceeding — including Federal Register comment submissions, FOIA requests, permit applications, rulemaking participation, public hearing testimony, benefit applications, and request for comment submissions — is permitted to be held by the receiving agency for the purpose of that specific process. Such data: may not be aggregated into a behavioral profile; may not be combined with data from other sources to produce Covered Personal Data compilations beyond what is directly relevant to the specific proceeding; may not be transferred to any commercial entity; and may not be used for any law enforcement, immigration enforcement, or national security purpose absent specific judicial authorization. Citizens' participation in government processes shall not be used against them. Retention of such data beyond the close of the relevant proceeding is governed by applicable Federal Records Act schedules and is not affected by this subtitle.

Part O — Relationship to Other Law and Implementation

Sec. 1151. JEOS Archive Exemption.

(a) The JEOS monitoring application installed on enrolled personal devices of Covered Officials is exempt from the prohibitions of Secs. 1101, Sec. 1102, Sec. 1103, and Sec. 1104 pursuant to Sec. 1105 of this subtitle, which is the operative carve-out provision for the JEOS monitoring application. Communications archives maintained by JEOS are additionally exempt from the Operational Profile prohibition of Sec. 1031 and the Population Coverage Database prohibition of Sec. 1041, to the extent that such archives are maintained exclusively for the oversight functions authorized by subtitle B of this Act and subject to the Minimization Procedures and retention framework of that Section.

(b) This exemption is strictly conditional. JEOS communications archives may not be: queried, analyzed, or disclosed for any purpose other than the review procedures specified in subtitle B; sold, licensed, or transferred to any Federal Agency, commercial entity, or foreign government; used to produce Psychological Profiles, Precrime Risk Assessments, or commercial Operational Profiles concerning any Covered Official; or retained beyond the periods specified in the Minimization Procedures of subtitle B.

(c) JEOS technical infrastructure shall be audited annually by the Comptroller General to verify compliance with the conditions of subsection (b). Any use of JEOS archives outside the conditions of subsection (b) constitutes a violation of this subtitle subject to the Tier 3 civil penalty, and where committed by a government official, criminal liability under 18 U.S.C. § 242.

ASPPEA Statutory Implementation Schedule Relationship to Part N Government Agency Carve-Outs. Nothing in this subtitle or in Part N of this subtitle creates any conflict between the JEOS monitoring framework of subtitle B (EAJOA) and the government agency carve-outs of Part N.

JEOS data collected from Covered Officials who work at agencies holding carve-out data under Part N flows exclusively to the JEOS classified judicial archive under subtitle B (EAJOA) and is not subject to the data isolation or transfer restrictions of Part N. The carve-outs in Part N govern the agency's own data holdings and do not limit or expand the scope of JEOS monitoring of individual Covered Officials working at those agencies.

Sec. 1152. ASPPEA Implementation Milestones.

The following milestones govern implementation of subtitle A (ASPPEA). These milestones are separate from and independent of the JEOS implementation schedule in subtitle B

(EAJOA). Milestones running from the date of enactment may not be extended under any circumstances except by Act of Congress. Milestones running from the Director's first day of service may not be extended except by Act of Congress, provided that if the Director appointment is delayed beyond two hundred ten (210) days after enactment for any reason, the Director-dependent milestones shall run from the actual first day of service without adjustment to the enactment-based milestones.

(1) Date of Enactment: Government acquisition prohibition (Sec. 1062) takes effect; international transfer prohibition (Sec. 1033) takes effect; contractor laundering prohibition as extended to state and local governments (Sec. 1063) takes effect; the audio, video, keystroke, and real-time biometric identification prohibitions of Part J take effect; the JEOS Archive Exemption (Sec. 1151) takes effect; the political campaign data prohibition of Sec. 1011(a) takes effect; Bureau of Consumer Protection assumes interim enforcement authority pending Bureau establishment; OPM begins compilation of inaugural Director candidate pool under Sec. 1111(a)(1).

(2) 90 Days After Enactment: All entities holding Population Coverage Databases shall submit certified divestiture inventories to the Bureau of Consumer Protection, acting as interim enforcement authority, under Sec. 1051(a)(1). Bureau of Consumer Protection publishes interim enforcement policy and complaint portal; interim combination-prohibition and advertising Tier 2 guidance published; Registry portal goes live in beta under Bureau of Consumer Protection interim administration; OPM transmits certified inaugural Director candidate pool to the President under Sec. 1111(a)(1).

(3) 135 Days After Enactment: Population Coverage Database mandatory destruction complete under Sec. 1051(a)(2); certified destruction reports due within five (5) business days of completion; Federal Agency contract inventories due to Comptroller General and relevant congressional oversight committees under Sec. 1062(d).

(4) 120 Days After Enactment: President nominates inaugural Director from pool, or transmits written explanation to Congress and OPM if no candidate in the pool is deemed suitable, triggering the second pool process under Sec. 1111(a)(2).

(5) 180 Days After Enactment: Existing federal government data broker contracts terminated (Sec. 1062(c)); existing state and local government commercial data contracts terminated (Sec. 1063(c)); CBP and DEA data program reviews initiated; Commission publishes proposed rule defining "relevant gross revenues" for Data-Monetizing Collector tiers; Commission publishes proposed rule defining eligible compliance costs for the Structured Compliance Credit under Sec. 1041(b).

(6) 210 Days After Enactment: Senate confirmation vote on inaugural Director, or deemed confirmation by operation of law if Senate has not acted within ninety (90) days of nomination. Director begins service. Bureau formally established. FTC Chair designates inaugural Bureau leadership team. Not later than three hundred sixty-five (365) days after enactment, regardless of pool process status, the most qualified candidate in the thencurrent pool as determined by the technical review panel's published ranking shall be deemed nominated and confirmed by operation of law if no Director has yet begun service — no presidential rejection or Senate inaction shall delay Bureau establishment beyond this outer deadline.

(7) 270 Days After Enactment: Bureau publishes final rules on FCRA carve-out technical isolation standards in consultation with CFPB under Sec. 1143(d); Commission publishes final rule defining "relevant gross revenues."

(8) 180 Days After Director's First Day of Service (approximately 390 days after enactment if appointment proceeds on schedule): Advertising data taxonomy (Part I) takes effect; triggered registration window opens; Bureau technical audit division operational with minimum fifty (50) technical staff; Bureau publishes mandatory audit methodology standards under Sec. 1116(a); Bureau publishes Registry technical specifications under Sec. 1113(d); Bureau publishes rulemaking on 72-hour notification content standards under

Sec. 1114(a); Bureau publishes algorithmic testing standards framework under Sec. 1117(h); Bureau publishes interim guidance on government agency carve-out technical isolation requirements (Sec. 1141); Commission publishes guidance on prohibited advertising data combinations under Sec. 1095(b).

(9) 240 Days After Director's First Day of Service: Commission publishes final rules specifying consent disclosure format, content structure, and readability index under Sec. 1121; entities have ninety (90) days from publication to bring new consent disclosures into compliance.

(10) 365 Days After Director's First Day of Service (approximately 575 days after enactment if appointment proceeds on schedule): All triggered-registration entities

must be registered under Sec. 1113; final rules on consent standards, annual certification, and audit requirements published; Bureau-certified auditor program operational under Sec. 1116(c); Bureau reaches 150 FTE minimum; first proactive audit cohort eligible.

(11) 730 Days After Director's First Day of Service (approximately 940 days after enactment if appointment proceeds on schedule): Data-Monetizing Collector registration complete; first Annual Surveillance Ecosystem Report published under Sec. 1118; algorithmic audit program operational; independent annual audit requirement takes effect for all Data Brokers, Targeting Infrastructure Contractors, and Tier DM-2 and DM-3 Data Monetizing Collectors under Sec. 1115; Bureau reaches 300 FTE minimum.

(12) Year 3 — 1,095 Days After Enactment: Full ASPPEA enforcement regime operational; first enforcement action report published; Data Surveillance Victim Compensation Fund makes first distribution to affected individuals; Bureau staffing scales to 500 FTE floor if Registry enrollment thresholds under Sec. 1112(a) are met.

Sec. 1153. Amendment to the Electronic Communications Privacy Act.

Title I of the Electronic Communications Privacy Act of 1986, 18 U.S.C. §§ 2510-2522, is hereby amended by adding at the end the following new section: "§ 2522. Judicial Executive Oversight System — Authorized Interception.

(a) Notwithstanding any other provision of this title, the interception of Official Communications by the automated screening system of the Judicial Executive Oversight System established under subtitle B of Public Law [__] does not constitute an unlawful interception under section 2511 of this title, because:

(1) such interception is expressly authorized by statute;

(2) such interception is conducted by and under the authority of an Article III judicial body, not a law enforcement agency; and

(3) Covered Officials, as a condition of holding their positions, have been provided written notice that Official Communications on Approved Communications Systems and on enrolled personal devices are subject to JEOS monitoring, which constitutes consent within the meaning of section 2511(2)(d) of this title.

(b) Official Communications stored in JEOS archives do not constitute stored communications subject to the access restrictions of chapter 121 of this title with respect to JEOS access to those archives for purposes authorized under subtitle B of Public Law [__], because JEOS is the lawful judicial custodian of such communications.

(c) The collection of metadata from Official Communications by JEOS does not constitute the installation or use of a pen register or trap and trace device within the meaning of chapter 206 of this title, because JEOS metadata collection is conducted pursuant to this section's statutory authorization and under Article III judicial authority."

Sec. 1154. CFAA Immunity for Authorized Auditors and Investigators.

No person who accesses, examines, copies, or retains information from a computer, computer system, electronic communications system, or stored data while conducting an authorized audit, investigation, or technical examination under this subtitle shall be subject to liability under 18 U.S.C. § 1030, provided that such access is conducted within the scope of the authorized activity and in accordance with the procedures specified in this subtitle. This immunity applies to: (1) Bureau employees and contractors conducting proactive, noticed, and unannounced audits under

Sec. 1117;

(2) Bureau-certified independent technical auditors conducting annual third-party audits under Sec. 1115, acting within the scope of their Bureau certification; and

(3) state attorneys general and their designated technical investigators conducting enforcement actions under Sec. 1131, where such access is pursuant to a civil investigative demand, administrative subpoena, or court order issued in connection with a state enforcement action under this subtitle. This immunity does not extend to access that exceeds the scope of the authorized audit, to access conducted in bad faith or for purposes unrelated to the authorized enforcement activity, or to the retention or use of accessed information beyond what is necessary for the authorized purpose.

Sec. 1155. Relationship to Other Federal Privacy and Consumer Protection Law.

This subtitle supplements and does not displace existing federal privacy and consumer protection law. Entities remain subject to all applicable obligations under the Gramm-Leach-Bliley Act, 15 U.S.C. §§ 6801-6809, the Fair Debt Collection Practices Act, 15 U.S.C. §§ 1692-1692p, and the Children's Online Privacy Protection Act, 15 U.S.C. §§ 6501-6506. Where this subtitle imposes more restrictive requirements than those statutes, this subtitle controls. Nothing in those statutes excuses non-compliance with this subtitle.

Sec. 1156. Relationship to Presidential Records Act, Federal Records Act, and Freedom of Information Act.

(a) JEOS communications archives maintained under subtitle B of this Act do not satisfy the preservation obligations of the Presidential Records Act, 44 U.S.C. §§ 2201-2209, or the Federal Records Act, 44 U.S.C. §§ 3101-3107. Covered Officials and their agencies remain subject to all PRA and FRA obligations independently of this subtitle.

(b) Where a communication is simultaneously subject to JEOS archiving under subtitle B and preservation obligations under the PRA or FRA, both obligations apply independently. JEOS custody does not constitute FRA or PRA-compliant preservation, and FRA or PRA-compliant preservation does not substitute for JEOS archiving.

(c) Where a communication preserved in a JEOS archive is subject to a congressional records request, a FOIA request, or discovery in litigation, the JEOS Director shall determine whether the communication is also subject to an active JEOS Investigative Order and may transmit a nonbinding recommendation to the relevant agency or body regarding the timing or scope of disclosure in light of the active investigation. The JEOS Director's recommendation does not constitute a legal basis for withholding, delaying, or modifying any response; all such decisions remain with the agency or body receiving the request, subject to applicable law.

(d) JEOS Archives Are Judicial Records Not Subject to FOIA. Communications archived in JEOS systems are records of the judicial branch held by an Article III court. They are not "agency records" within the meaning of 5 U.S.C. § 552(f)(1) and are not subject to disclosure under the Freedom of Information Act. No FOIA request directed to any executive agency, and no FOIA request directed to JEOS, shall compel the production of any communication from a JEOS archive.

(e) Preservation of Existing FOIA Rights. Nothing in this subtitle limits, restricts, or modifies the rights of any person to request records from any executive agency under the Freedom of Information Act, 5 U.S.C. § 552. The fact that a communication has been captured by JEOS monitoring, reviewed by a JEOS judge, or is the subject of a JEOS Investigative Order does not affect the discoverability of that communication through a FOIA request directed to the executive agency that originally generated or holds a copy of that communication, subject to all applicable FOIA exemptions that would otherwise apply.

(f) Active Investigative Order — Notification Only. Where a specific communication is subject to an active JEOS Investigative Order, an executive agency that receives a FOIA request for that communication shall notify the JEOS Director before responding. The JEOS Director may transmit a non-binding recommendation to the agency regarding the timing or scope of disclosure in light of the active investigation. The agency retains full discretion over its FOIA response and the JEOS Director's recommendation does not constitute a legal basis for withholding, delaying, or modifying that response beyond what applicable FOIA exemptions would independently support.

(g) Congressional Subpoena Processing. Where a committee of Congress with jurisdiction over the subject matter issues a subpoena directed to the JEOS Director for communications held in the classified judicial archive, the following procedure governs:

(1) The subpoena shall specifically identify the Covered Official or officials whose communications are sought, the subject matter of the communications, and the time

period, with sufficient particularity to enable the JEOS Director to identify responsive records without conducting a general search of the archive.

(2) Upon receipt of a valid subpoena, the JEOS Director shall, within ten (10) business days, submit the subpoena to a single JEOS Panel judge for review. The Panel judge shall determine whether the subpoena seeks communications that are subject to an active JEOS Investigative Order and whether production would compromise an active JEOS investigation.

(3) Where no active Investigative Order covers the subpoenaed communications, the JEOS Director shall authorize access through the tiered key authorization process of Sec. 1222(4) and produce all responsive communications to the requesting committee within thirty (30) days of the Panel judge's determination, subject to applicable classification handling procedures.

(4) Where an active Investigative Order covers any of the subpoenaed communications, the Panel judge shall notify the requesting committee that responsive communications are subject to an active investigation and shall specify the anticipated timeline for resolution. The Panel judge may authorize partial production of responsive communications not covered by the active Investigative Order. Production of communications covered by the active Investigative Order shall be deferred until the earlier of: the Final Disposition of the Investigative Order under Sec. 1232(c); or ninety (90) days from the date of the subpoena, unless the JEOS Full Panel, by majority vote, determines that continued deferral is necessary to prevent obstruction of a specific, identified investigative proceeding — in which case deferral may be extended for one additional period of not more than ninety (90) days.

(5) Communications produced under this subsection shall be transmitted to the requesting committee through secure classified channels appropriate to the classification level of the material. The JEOS Director shall not redact, withhold, or modify the content of responsive communications except to exclude material that is both non-responsive to the subpoena and protected by a recognized legal privilege confirmed by the Panel judge.

(6) The JEOS Director's compliance with a congressional subpoena under this subsection does not constitute a waiver of any privilege or protection that may attach to the communications in any other proceeding. Production to a congressional committee under compulsory process is not public disclosure within the meaning of any provision of this Act.

Sec. 1157. Inspector General Coordination.

Where a JEOS Investigative Order and an Inspector General investigation are running concurrently concerning the same Covered Official for related conduct, the JEOS Director — as

the Article III authority over JEOS proceedings — shall serve as the coordination authority. The JEOS Director shall determine:

(1) whether materials from the IG investigation should be incorporated into the JEOS proceeding;

(2) whether the IG investigation should pause pending the JEOS proceeding to avoid evidentiary contamination or conflicting preservation orders; and

(3) whether any Criminal Referral should be transmitted jointly with the IG's report or independently. All coordination between JEOS and IG offices shall occur within the judicial branch through the JEOS Director; the Department of Justice shall have no coordination role between JEOS and IG proceedings in which DOJ is itself a potential subject of oversight or in which a covered DOJ official is under investigation.

Sec. 1158. Findings Regarding Less Restrictive Alternatives to Advertising Data Prohibitions.

Congress finds that the following less restrictive regulatory approaches to the harms identified in

Part A were considered and are insufficient:

(1) Consent-based targeting: Consent is insufficient because the power asymmetry between commercial data collectors and data subjects makes genuine, informed, meaningful consent structurally impossible at scale. Platform terms of service are contracts of adhesion presented without genuine negotiation, written in language that is deliberately incomprehensible to lay persons, and presented as a condition of access to services that have become essential to modern economic and social participation. Congress finds that the concept of “voluntary consent” to psychographic profiling by a platform that controls essential communications infrastructure is incoherent — it is more accurately characterized as coercion. Moreover, the manipulation that psychographic profiling enables works precisely because the target is unaware of it; consent to data collection does not consent to cognitive exploitation, and transparency about data practices does not eliminate the harm of having those practices deployed to manipulate political beliefs and electoral behavior.

(2) Purpose limitation — restricting political advertising but permitting commercial use: Purpose limitation is insufficient because a psychographic profile assembled for commercial advertising is technically and functionally identical to one used for political manipulation. There is no technical distinction between “commercial” and “political” psychographic data — the same model, trained on the same data, is deployed against different message content. Restricting use while permitting collection leaves the manipulation infrastructure intact; the commercial to political

pipeline documented in the Cambridge Analytica matter demonstrates that purpose limitation cannot be reliably enforced.

(3) Transparency requirements: Transparency is insufficient for the same reason that consent is insufficient — manipulation is effective precisely because the target is unaware of it, and disclosure of targeting practices after the fact does not reverse the cognitive effects of prior exposure to algorithmically optimized persuasive messaging. Transparency requirements also impose no cost on the assembly of manipulation infrastructure and therefore do not deter its development.

(4) Algorithmic auditing without prohibition: Auditing is a complementary enforcement tool, not a substitute for prohibition. This Act includes extensive auditing requirements. But auditing after the fact cannot prevent the real-time deployment of psychological profiling in advertising or political targeting; it can only detect violations that have already caused harm. For the specific harm of cognitive manipulation, which is irreversible once experienced, a prophylactic prohibition is the only adequate remedy.

(5) Data security requirements: Security requirements are insufficient because they address the risk of unauthorized access to data but not the harm from authorized use. The harms identified in Part A — psychological profiling, political manipulation, operational targeting, and the assembly of Population Coverage Databases — arise from the intended, authorized use of data that is lawfully held, not primarily from unauthorized breaches. Requiring stronger security controls around a commercially assembled Population Coverage Database does not address the harm that the database exists and can be queried, sold, transferred to foreign governments through acquisition transactions, or purchased by government agencies without warrants. Security requirements are necessary, and this subtitle includes them, but they do not substitute for the structural prohibition of Sec. 1041 because they leave the underlying infrastructure of manipulation and surveillance intact.

(6) Limiting the prohibition to foreign government access: A prohibition limited to foreign government access to commercially assembled surveillance databases would be insufficient for the same reason that purpose limitation is insufficient — the databases that enable foreign government exploitation of United States persons are the same databases that, as documented in the findings of Sec. 1002, have been assembled and used by domestic intelligence agencies and commercial actors in ways that undermine constitutional rights. As Congress found in Sec. 1002, the documented history of the FBI's COINTELPRO program, federal agencies' systematic circumvention of Fourth Amendment warrant requirements through commercial data purchases, and the use of commercial data to build enforcement profiles of political organizations, journalists, and activists demonstrates that the harm of Population Coverage Databases is not limited to foreign adversaries. A

prohibition limited to foreign access would leave intact the same commercial surveillance infrastructure that has been used domestically for the purposes documented in Sec. 1002, and would fail to address the structural harm that such databases exist at all. Congress therefore finds that the structural prohibition of Sec. 1041 is necessary to protect the constitutional rights of United States persons against both foreign exploitation and domestic authorized-use harms of the kind documented throughout this subtitle's findings.

Sec. 1159. Rule of Construction.

Nothing in this subtitle shall be construed to prohibit a Federal Agency from: acquiring Covered Personal Data directly from an individual with that individual's informed consent; accessing information genuinely in the public domain not compiled through the operation of a Data Broker; acquiring Covered Personal Data through constitutionally valid warrant, subpoena, or court order directed to the original holder; or conducting lawful foreign signals intelligence collection under chapter 36 of title 50, United States Code, subject to all applicable minimization requirements. Nothing in this subtitle shall be construed to prohibit a law enforcement agency from:

(1) assembling an Operational Profile of a specific named criminal suspect using location, communications, or behavioral data obtained exclusively through Constitutionally Equivalent Collection — meaning each data point was obtained through warrant, subpoena, court order, or the explicit consent of the data subject — where such assembly is for the purpose of investigating a specific criminal offense and is limited in scope and duration to the specific investigation;

(2) using location data, communications records, financial records, or other data obtained through Constitutionally Equivalent Collection in a specific criminal investigation, even if the aggregate of such data constitutes an Operational Profile of the suspect; or

(3) sharing intelligence obtained through Constitutionally Equivalent Collection with other law enforcement agencies for specific, identified law enforcement purposes.

(a) Artificial Intelligence Training and Public Content. Nothing in this subtitle prohibits the collection, retention, or use of publicly available content — including text, images, audio, or other media posted publicly on the internet — as training data for machine learning or artificial intelligence systems, or for search and retrieval by machine learning or artificial intelligence systems. Such collection and use is permitted where the content is retained in association with a user's self-selected pseudonymous identifier or platform-assigned account identifier, provided that the system does not link, infer, or derive the real-world identity of the individual behind that identifier — meaning the system does not associate the pseudonymous or platform identifier with any name, government-issued identification, physical address, biometric data, or other information identifying the specific natural person who controls that account — and does not

combine the content or associated identifiers with Covered Personal Data in a manner that produces or is capable of producing a Psychological Profile, Operational Profile, or Precrime Risk Assessment concerning any identified or identifiable United States person. The use of public content as a language or model corpus, with or without pseudonymous identifiers, is not regulated by this subtitle provided that no linkage to real-world identity is established and no prohibited profile is produced. For purposes of this subtitle, a pseudonymous identifier that a user has themselves associated with their real-world identity — through public disclosure on the same platform or elsewhere — does not thereby become Covered Personal Data solely by reason of that self-disclosure; the prohibition is on the system establishing or inferring that linkage, not on a user voluntarily making it.

(b) Impersonation Adjudication Carve-Out. Nothing in subsection (a) prohibits a platform operator from undertaking a targeted identity verification process for the sole purpose of adjudicating a specific, formally submitted impersonation complaint — meaning a complaint submitted by or on behalf of a specific named individual alleging that an account is falsely representing itself as that individual. In conducting such a process, the platform operator may collect, retain, and use identity verification information solely to determine whether the account in question is operated by the claimed individual or by an impersonator, and to take action on the account consistent with that determination. Identity information collected under this subsection:

(1) may be used only for the specific impersonation adjudication for which it was collected and for no other purpose, including advertising targeting, behavioral profiling, or any other commercial purpose;

(2) may not be retained beyond the conclusion of the adjudication process and any associated appeals or legal proceedings;

(3) may not be shared with any third party, data broker, government entity, or advertising platform; and

(4) may not be used to retroactively link the account’s prior content or behavioral history to the verified real-world identity for any purpose other than the impersonation proceeding itself. A platform that conducts identity verification under this subsection and subsequently uses the verified identity information for any purpose other than the impersonation adjudication commits a violation of Part C of this subtitle.

(c) Academic Research. Nothing in this subtitle shall be construed to prohibit academic research conducted under and in strict compliance with the Academic Research CarveOut of Sec. 1011(c), including the analysis, processing, or retention of Psychological Profile data authorized under that carve-out.

Sec. 1166. Severability.

If any provision of this subtitle, or its application to any person or circumstance, is held invalid, the remainder shall not be affected thereby. Each provision shall be given effect to the maximum extent consistent with any constitutional ruling.

Sec. 1160. Effective Date.

Except as otherwise specified in Sec. 1152, this subtitle takes effect one hundred eighty (180) days after the date of enactment. The government acquisition prohibition, international transfer prohibition, contractor-laundering prohibition, and covert collection prohibitions take effect on the date of enactment. References to the Director's first day of service in this subtitle and in Sec. 1152 refer to the date on which the inaugural Bureau Director begins service under Sec. 1111(a), which is expected to occur not later than two hundred ten (210) days after enactment but is subject to the appointment process and outer deadline provisions of Sec. 1111(a). The outer hard deadline of three hundred sixty-five (365) days after enactment established in Sec. 1111(a)(1) ensures that no Directordependent milestone is delayed beyond that date regardless of appointment process outcomes.

Part P — Exemptions for Specific Entity Types

Sec. 1161. Small Business Exemption.

(a) General Exemption. Notwithstanding Sec. 1113(a) and Sec. 1113(d), a Small Business as defined in Sec. 1003(23) is exempt from:

(1) the registration obligation of Sec. 1113, including the per se Tier 2 violation for operating without registration under Sec. 1113(d), which does not apply to any entity qualifying as a Small Business under Sec. 1003(23);

(2) the mandatory independent technical audit requirement of Sec. 1115;

(3) the proactive Bureau audit authority of Sec. 1117(a), provided that the Bureau retains full discretionary audit authority under Sec. 1117(i) upon receipt of a credible complaint or credible evidence of violation; and

(4) Data-Monetizing Collector tier classification under Sec. 1003(7), meaning a Small Business is not classified as Tier DM-1, DM-2, or DM-3 solely by reason of its data transfer activities provided it satisfies all three threshold criteria of Sec. 1003(23).

(b) Substantive Prohibitions Apply Without Exception. The procedural exemption of this subtitle does not exempt any Small Business from any substantive prohibition of this subtitle. A Small Business remains fully subject to: the absolute prohibition on Psychological Profiles under Sec. 1011(a); the prohibition on Precrime Risk Assessments under Sec. 1021; the prohibition on Operational Profile assembly under Sec. 1031; the coordinated data arrangement prohibition under Sec. 1032; the international transfer prohibition under Sec. 1033; the Population Coverage Database prohibition under Sec. 1041 and the mandatory divestiture requirement of Sec. 1051; the

government acquisition prohibition of Sec. 1062 and contractor laundering prohibition of Sec. 1063; the general prohibition standard of Sec. 1091 and all provisions of Part I; the covert collection prohibitions of Part J; and all consent standards of Sec. 1121.

(c) Permitted Data Transfers. A Small Business that transfers Covered Personal Data to a third party for commercial purposes is not in violation of the substantive prohibitions of this subtitle solely by reason of that transfer, provided all of the following conditions are satisfied:

(1) the transferred data consists solely of contact information — names, mailing addresses, email addresses, and telephone numbers — assembled from the direct commercial or subscriber relationship between the Small Business and the individuals whose contact information is transferred, and does not include any sensitive data category listed in Sec. 1091(a) or any other Covered Personal Data beyond those four contact data elements;

(2) the Small Business does not transfer contact information concerning individuals who have opted out of such transfers, maintains a current suppression list, and applies it to all transfers;

(3) the Small Business does not knowingly transfer data to any Data Broker, Targeting Infrastructure Contractor, entity registered under Sec. 1113, or entity the Small Business has reason to know will combine the transferred data with Covered Personal Data from other sources to produce Psychological Profiles, Operational Profiles, or Population Coverage Databases; and

(4) the total number of individuals whose contact information is transferred in any calendar year does not exceed two hundred thousand (200,000). Contact information transferred in compliance with conditions

(1) through (4) of this subsection does not, by reason of the transfer alone, violate the general prohibition standard of Sec. 1091(a), because contact information consisting solely of names, mailing addresses, email addresses, and telephone numbers does not individually or in combination enable the assessment of psychological state, emotional condition, cognitive vulnerabilities, susceptibility to persuasion, political belief, religious belief, health condition, sexual orientation, or financial distress within the meaning of Sec. 1091(a). Nothing in this paragraph limits the application of Sec. 1091 to the downstream recipient’s use of transferred contact data.

(d) Loss of Exemption. A Small Business that exceeds any threshold of Sec. 1003(23) in any calendar year loses exemption status as of January 1 of the following calendar year and must register under Sec. 1113 within sixty (60) days. Loss of exemption is prospective.

(e) Anti-Structuring. No entity or combination of entities shall structure, reorganize, or contractually arrange their data holdings or corporate relationships for the purpose of

causing any entity to fall below a threshold of this subtitle that would otherwise be exceeded. Deliberate structuring in violation of this subsection is a per se Tier 2 violation.

(f) Bureau Guidance. The Bureau shall publish plain-language guidance within one hundred eighty (180) days after the Director's first day of service addressing the application of this subtitle to common Small Business data practices, written at a reading level accessible to business owners without legal counsel, and updated not less than annually.

(g) Self-Assessment Safe Harbor. A Small Business that completes the Bureau's published Small Business Self-Assessment Checklist and retains a copy with supporting documentation shall not be subject to civil penalty for misclassification as a Small Business or for failure to register, provided that:

(1) the answers provided were truthful and complete to the best of the entity's knowledge and belief at the time of completion;

(2) the entity did not have actual knowledge of facts that, if accurately reported, would have caused the checklist to produce a non-qualifying result;

(3) the entity completes and retains an updated checklist annually, not later than January 31 of each calendar year; and

(4) upon any material change in the entity's data practices, commercial relationships, revenues, or data holdings that may affect its qualification as a Small Business, the entity completes and retains an updated checklist within thirty (30) days of the material change. This safe harbor applies to procedural obligations of registration, audit, and tier classification only and does not exempt any Small Business from any substantive prohibition of this subtitle.

Sec. 1162. Employee and Applicant Data Carve-Out.

(a) Scope. This subtitle governs the collection, processing, retention, and use of Covered Personal Data concerning employees, independent contractors, and job applicants by employers acting in their capacity as employers. This subtitle does not exempt any employer from the substantive prohibitions specified in subsection (e).

(b) Permitted Uses Without Separate Consent. An employer may collect, process, retain, and use Employee Data for Employment Purposes without obtaining separate consent under Sec. 1121, where "Employee Data" means Covered Personal Data collected by an employer from or about an individual in connection with the employment relationship and where "Employment Purpose" means any use directly and reasonably necessary for: hiring and onboarding; payroll, benefits, and tax compliance; performance management, evaluation, and workforce planning; workplace safety monitoring and compliance; compliance with applicable legal obligations; internal investigation of workplace misconduct; and termination and separation administration, provided:

(1) the employer provides clear written notice to employees and applicants before or at the time data collection begins of what categories of Employee Data are collected, the specific Employment Purposes for which each category is used, how long each category is retained, and with whom Employee Data is shared, updated within thirty (30) days of any material change;

(2) Employee Data is not used for any purpose other than an Employment Purpose and is not combined with data from any external commercial source for any non-employment purpose;

(3) Employee Data is not sold, licensed, transferred, or made accessible to any third party other than: service providers performing Employment Purposes under a written data processing agreement; government agencies as required by applicable law; and benefits administrators and insurers as necessary to administer specific employment benefits;

(4) health and medical Employee Data is maintained in a system technically and operationally separate from general HR data, with access limited to personnel with a specific Employment Purpose need; and

(5) Employee Data is retained only for the period reasonably necessary for the Employment Purpose for which it was collected, and in no event longer than the applicable mandatory retention period under federal or state law plus a reasonable additional period not to exceed three (3) years for potential litigation.

(c) Permitted Workplace Monitoring. The following monitoring practices are permitted notwithstanding Parts C, D, E, L, and Sec. 1091, subject to the conditions of subsection (b) and a mandatory prior written disclosure requirement: the employer must provide written notice to each affected employee before implementing any monitoring practice, specifically identifying the systems in use, categories of data collected, who has access, how long data is retained, and the Employment Purposes for which it is used, acknowledged in writing by each affected employee before monitoring commences. Monitoring without this notice constitutes a violation of Parts C and L regardless of other compliance with this subtitle. Permitted monitoring practices:

(1) monitoring of employer-owned devices, employer-provided email and communication accounts, and employer-operated network infrastructure for data security, regulatory compliance, productivity management, and workplace misconduct investigation;

(2) time and attendance tracking at employer premises, provided location data is recorded only at start and end of work periods and is not used to track employee location continuously or outside employer premises without separate written consent;

(3) workplace safety monitoring systems operated in compliance with applicable OSHA requirements; and

(4) productivity and performance monitoring for employees whose work output is directly measurable and where monitoring is directly tied to performance evaluation, provided monitoring scope and metrics are disclosed in advance.

(d) Absolute Prohibitions — No Employment Exception. The following prohibitions apply to Employee Data without exception:

(1) No employer shall compile, derive, produce, purchase, or use a Psychological Profile as defined in Sec. 1003(2) concerning any employee or applicant for any purpose, including hiring, promotion, performance evaluation, or workforce management. Pre-employment assessments, personality inventories, emotional intelligence evaluations, organizational fit scores, or any evaluation tool producing outputs falling within the definition of Sec. 1003

(2) are prohibited Psychological Profiles regardless of commercial designation;

(2) No employer shall compile, derive, produce, or use a Precrime Risk Assessment as defined in Sec. 1003(5) concerning any employee or applicant, including any workplace violence risk score, insider threat algorithmic score, or behavioral prediction tool designed to predict future employee conduct based on demographic or population-level data;

(3) No employer shall activate, access, monitor, collect data from, or install monitoring software on any device that is the personal property of an employee or applicant under any circumstances — monitoring authorized by this subtitle applies exclusively to employer-owned devices, employer-provided equipment, and employer-operated systems;

(4) No employer shall transfer Employee Data to any foreign government, Sensitive Nation-State Actor as defined in Sec. 1003(15), or entity controlled by a foreign government; and

(5) No employer shall use Employee Data as an input to, or in connection with, any Population Coverage Database, Data Cooperative, Audience-Segment Licensing Arrangement, or commercial advertising targeting system.

(e) Applicant Data. Applicant data must be permanently deleted within two (2) years of the conclusion of the application process for applicants who are not hired, unless a longer retention period is specifically required by applicable law.

(f) Employee Labor Rights. Nothing in this subtitle limits any employee’s rights under applicable federal or state labor law, including the right to organize, bargain collectively, and engage in concerted activity under the National Labor Relations Act, 29 U.S.C. §§ 151-169. No employer may use any monitoring practice permitted by this

subtitle to surveil, interfere with, retaliate against, or chill employees' exercise of rights under the National Labor Relations Act or any other applicable labor statute.

Sec. 1163. Journalism and Press Exemption.

(a) Permitted Journalistic Data Collection. Nothing in this subtitle prohibits the collection, processing, retention, or use of Covered Personal Data — including data that would otherwise constitute an Operational Profile by reason of comprehensive individual information assembled in the course of an investigation — by a journalist, news organization, nonprofit accountability organization, or documentary filmmaker for the purpose of newsgathering, investigation, and publication of news, information, or documentary content on matters of genuine public concern, subject to all conditions of this subtitle. This exemption applies to:

(1) journalists and reporters employed by or regularly contributing to news organizations, regardless of commercial or nonprofit status;

(2) freelance journalists working on specific accountability or investigative projects for publication in identified news outlets;

(3) nonprofit investigative journalism organizations whose primary mission and primary operational activities consist of newsgathering, investigation, and publication on matters of public concern; and

(4) documentary filmmakers engaged in production of documentary content addressing matters of public concern, government accountability, corporate conduct, or social issues.

(b) Conditions. The exemption applies only where:

(1) the Covered Personal Data is collected, processed, and retained exclusively for newsgathering, investigation, or publication purposes and is not used for commercial advertising targeting, data brokerage, data sale, or any commercial purpose other than journalism;

(2) the Covered Personal Data is not transferred to any Data Broker, Targeting Infrastructure Contractor, or commercial advertising platform;

(3) the collection does not involve covert audio collection in violation of Sec. 1101, covert video collection in violation of Sec. 1102, or real-time biometric identification in violation of Sec. 1104 — those provisions apply to journalists without exception; and

(4) the Covered Personal Data is retained only for the period reasonably necessary for the specific newsgathering or publication purpose and is permanently deleted upon conclusion of the specific investigation or project, except where subject to a legal hold for pending or reasonably anticipated litigation.

(c) Absolute Prohibitions Apply. This exemption does not exempt any journalist or news organization from:

(1) the absolute prohibition on Psychological Profiles under Sec. 1011(a);

(2) the covert audio and video collection prohibitions of Secs. 1101 and Sec. 1102 as applied in private spaces;

(3) the real-time biometric identification prohibition of Sec. 1104; or

(4) the international transfer prohibition of Sec. 1033.

(d) Commercial Operations. This exemption applies solely to newsgathering, investigation, and publication activities. It does not exempt news organizations from this subtitle's requirements with respect to advertising targeting practices governed by Part I, subscriber data practices governed by Secs. 1081 and 221, or any data practices conducted in a commercial operational capacity rather than an editorial and newsgathering capacity.

Sec. 1164. Nonprofit and Civil Society Organization Exemption.

(a) Nonprofit Membership and Donor Data. A nonprofit organization exempt from federal income tax under 26 U.S.C. § 501(c) may share Covered Personal Data consisting of member and donor contact information with affiliated organizations, chapters, locals, or allied organizations engaged in substantially similar missions, without triggering Data-Monetizing Collector classification under Sec. 1003(7) or Data Broker classification under Sec. 1003(6), provided:

(1) the transfer is for the purpose of furthering the nonprofit's stated organizational mission and not primarily for commercial revenue generation;

(2) the transferred data consists solely of contact information — names, mailing addresses, email addresses, and telephone numbers;

(3) the nonprofit provides members and donors with notice of such sharing practices and a functional opt-out mechanism taking effect within thirty (30) days, maintains a current suppression list, and applies it to all transfers; and

(4) the recipient organization does not use the transferred contact data for commercial advertising targeting, commercial data brokerage, or any purpose inconsistent with the shared mission.

(b) Political Party and Candidate Campaign Data. Nothing in this subtitle prohibits a political party, candidate committee, political action committee, or ballot initiative committee from: maintaining voter contact lists assembled from publicly available voter registration records in accordance with applicable state law; sharing voter contact data — consisting of names, addresses, and telephone numbers from public voter registration records — with affiliated candidate committees, party committees, and allied political

organizations for voter outreach and electoral advocacy; or using first-party supporter contact data collected through direct supporter relationships for electoral outreach and fundraising. This exemption does not exempt any political organization from:

(A) the absolute prohibition on Psychological Profiles under Sec. 1011(a), including the express prohibition on selling or providing Psychological Profiles or Operational Profiles to any political campaign, political action committee, super PAC, or electoral organization; or

(B) the prohibition on Operational Profiles under Sec. 1031.

(c) Labor Organizations. A labor organization as defined in 29 U.S.C. § 152

(5) may maintain and share member contact data with affiliated locals, joint boards, regional councils, international unions, state labor federations, and labor coalition partners for the purpose of union organizing, collective bargaining support, solidarity activities, and labor advocacy, without triggering Data-Monetizing Collector or Data Broker classification, provided all conditions of subsection (a) (1) through (4) are satisfied.

(d) Absolute Prohibitions Apply Without Exception. The exemptions of this subtitle do not exempt any organization from:

(1) the absolute prohibition on Psychological Profiles under Sec. 1011(a);

(2) the prohibition on Operational Profile assembly under Sec. 1031;

(3) the Population Coverage Database prohibition under Sec. 1041 and the mandatory divestiture requirement of Sec. 1051;

(4) the covert collection prohibitions of Part J;

(5) the consent standards of Sec. 1121; and

(6) the international transfer prohibition of Sec. 1033.

Sec. 1165. Good-Faith Reliance on Bureau Guidance.

(a) Right-Based Reliance Defense. An entity that acts in good-faith reliance on any of the following is not subject to civil penalty under Sec. 1122 for conduct that was in compliance with the relied-upon authority at the time of the conduct, provided the conditions of subsection (b) are satisfied:

(1) a published final rule or regulation promulgated by the Bureau through completed notice-and-comment rulemaking under 5 U.S.C. § 553;

(2) a published final rule or regulation promulgated by the Commission through completed notice-and-comment rulemaking under 5 U.S.C. § 553 with respect to Part I of this subtitle; or

(3) a written determination issued by the Bureau specifically to the requesting entity in response to a petition or inquiry under subsection (d). This defense is a right — it is not subject to the Director's discretion under Sec. 1122(i) and is distinct from and in addition to the penalty reduction available under Sec. 1114(c) and the Director's enforcement discretion under Sec. 1122(i). Where more than one of these provisions applies to the same violation, the entity may invoke the most favorable provision but may not receive cumulative benefit from multiple provisions with respect to the same penalty amount.

(b) Conditions. The reliance defense applies only where:

(1) the reliance was reasonable — meaning a sophisticated actor in the regulated space would reasonably have understood the guidance or determination to authorize the conduct, and the entity did not have actual knowledge of facts suggesting that the guidance was incorrect, had been superseded, or did not apply to the entity's specific practices; and

(2) the entity brought its practices into compliance with any superseding rule or determination within ninety (90) days of the Bureau publishing notice that prior guidance is no longer operative.

(c) Informal Guidance. Published informal guidance of the Bureau or Commission — including guidance documents, FAQ publications, compliance guides, and website publications that do not constitute final rules — provides a complete reliance defense in Bureau civil enforcement proceedings and state attorney general enforcement actions under Sec. 1131, on the same terms as subsections (a) and (b). Informal guidance does not provide a complete reliance defense in private civil actions under Sec. 1132, but an entity that relied in good faith on informal guidance is not liable for attorney's fees and costs for the period prior to the filing of the action, and the court shall consider the reliance in assessing statutory damages.

(d) Written Determinations. An entity may petition the Bureau for a written determination on whether specific data practices comply with this subtitle. The Bureau shall respond in writing within ninety (90) days of receipt of a complete petition. A written Bureau determination issued to a specific entity provides a complete reliance defense in Bureau civil enforcement proceedings, state attorney general enforcement actions, and private civil actions under Sec. 1132, on the terms of subsections (a) and (b), and is binding on the Bureau with respect to the specific practices described in the petition as long as the entity's practices remain materially consistent with the petition's description.

(e) Absolute Limits — No Reliance Defense. The reliance defense does not apply to:

(1) violations of the absolute prohibition of Sec. 1011(a) on Psychological Profiles; or

(2) violations of Sec. 1033 involving transfer of data to foreign governments or Sensitive Nation-State Actors.

(f) Bureau Publication Obligations. The Bureau shall:

(1) within ninety (90) days of the Director’s first day of service, publish on its public website a plain-language summary of the categories of conduct that are clearly prohibited, clearly permitted, and subject to ongoing classification proceedings, updated not less than quarterly; and

(2) where informal guidance is superseded, corrected, or withdrawn, publish prominent notice on its public website and transmit written notice to all entities that have requested written determinations based on the superseded guidance within thirty (30) days of the change.

Subtitle B. EXECUTIVE ACCOUNTABILITY AND JUDICIAL OVERSIGHT ACT (EAJOA) — ESTABLISHMENT OF THE JUDICIAL EXECUTIVE OVERSIGHT SYSTEM

(JEOS)

Part A — General Provisions

Sec. 1201. Short Title.

This subtitle may be cited as the "Executive Accountability and Judicial Oversight Act" or "EAJOA."

Sec. 1202. Congressional Findings.

The Congress finds the following:

(1) The separation of powers established by the Constitution of the United States requires that the executive branch be subject to meaningful oversight by the legislative and judicial branches. The Framers specifically designed the judiciary as the branch to check executive overreach, as demonstrated by the warrant requirement, habeas corpus, judicial review established in Marbury v. Madison, and the entire architecture of Article III. JEOS is not a novel intrusion on executive power — it is the realization of the constitutional design in the digital communications era, where the executive's ability to conceal official conduct through encrypted personal devices has created a de facto exemption from judicial oversight that the Framers never contemplated and would not have tolerated.

(2) Existing oversight mechanisms — including Offices of Inspector General, the Government Accountability Office, the Office of Government Ethics, congressional oversight processes, and criminal investigation by the Department of Justice — are reactive in nature, subject to political interference, and structurally unable to detect and deter violations of law and the Constitution in real time.

(3) Executive branch officials have repeatedly used unofficial, unarchived, encrypted, and ephemeral communication channels — including commercially available applications not approved for official use — to conduct official government business in deliberate circumvention of the Presidential Records Act, the Federal Records Act, and lawful oversight processes. Documented examples of this practice include the use of consumer messaging platforms — including, without limitation, platforms such as TeleMessage, Signal, WhatsApp, and Telegram — for official communications in ways that render those communications invisible to the oversight mechanisms the Constitution requires. These examples are illustrative of a systematic practice and do not limit the scope of this subtitle to those specific platforms. This subtitle addresses the structural oversight gap identified in this finding through comprehensive devicelayer monitoring of Covered Officials' enrolled devices, which captures communications content regardless of the encryption or ephemerality features of the platform used.

(4) Congress establishes JEOS as a specialized Article III judicial body exercising continuous warrant authority over official executive communications, analogous to the FISA Court's authority under 50 U.S.C. § 1803. JEOS exercises Article III judicial power in the form of continuous warrant authorization and evidence review. The automated screening system is a triage mechanism that presents probable cause determinations to Article III judges for judicial action, in the same manner that wiretap applications present intercepted communications to judges for review. This structure is consistent with Mistretta v. United States, 488 U.S. 361

(1989), and the adversarial challenge mechanism of Sec. 1212(f) ensures that the case-or-controversy requirement is continuously satisfied.

(5) JEOS does not punish, sanction, arrest, or take direct action against any Covered Official. Its authority is strictly limited to monitoring, review, and referral. All executive action based on JEOS referrals must proceed through the normal constitutional channels of DOJ prosecution, congressional oversight, or impeachment. This purely observational and referral function is consistent with the constitutional role of courts as fact-finders and law-appliers, not as enforcement actors.

(6) Individuals who voluntarily seek and assume positions of extraordinary public trust — including the office of President and all Senate-confirmed executive positions — accept as a condition of that trust a reduced expectation of privacy in all communications relating to the exercise of the powers of those offices, regardless of the device or channel through which such communications are conducted. This principle is established in Nixon v. Administrator of General Services, 433 U.S. 425 (1977), and is consistent with existing requirements of financial disclosure, background investigation, security clearance adjudication, and records preservation

to which all executive officials are already subject. Congress requires that communications on personal devices be subject to JEOS monitoring as a condition of holding covered positions, just as it requires financial disclosures as a condition of office and records preservation as a condition of conducting government business. Officials who find this condition unacceptable retain the freedom not to seek or hold covered positions.

(7) The comprehensive device-layer monitoring established by this subtitle operates on two parallel and mutually reinforcing constitutional foundations. First, the automated collection layer does not constitute a Fourth Amendment search requiring a warrant at the moment of collection, for two independent reasons:

(A) under Smith v. Maryland, 442 U.S. 735 (1979), and its progeny, automated systems that process data without human review have not been held to constitute searches in the constitutional sense — no human accesses any collected content until the automated system generates a flag and a JEOS Panel judge authorizes access through the tiered key authorization process of Sec. 1222(4); and

(B) Covered Officials have affirmatively consented to comprehensive monitoring through written notice and device enrollment as a prerequisite to holding their positions. The Court’s analysis in Carpenter v. United States, 585 U.S. 296 (2018) — which emphasized the absence of statutory authorization, judicial supervision, and minimization requirements as drivers of Fourth Amendment concern — is addressed directly by JEOS: comprehensive collection here occurs under explicit statutory authorization, continuous Article III judicial supervision, and the Review Surfacing Procedures of Sec. 1241. Second, and independently, Covered Officials hold a reduced expectation of privacy in their official conduct under Nixon v. Administrator of General Services, 433 U.S. 425 (1977). The judicial probable cause determination that precedes any human review of collected content satisfies the Fourth Amendment’s warrant requirement to the extent it applies. The combination of automated collection without human review, affirmative consent through enrollment, reduced official privacy expectations, and judicial authorization before any content is accessed by a human provides robust constitutional footing for the JEOS monitoring architecture.

(8) United States v. Nixon, 418 U.S. 683 (1974), established that executive privilege, while constitutionally rooted, is not absolute and must yield to the demonstrated, specific need for evidence in criminal proceedings. The Youngstown Sheet & Tube Co. v. Sawyer (1952) framework, particularly Justice Jackson's analysis of congressional authority operating in concert with the judiciary against executive overreach, supports the constitutionality of JEOS as an exercise of congressional power to structure accountability mechanisms for the executive branch. Under

Youngstown's Category One analysis, JEOS represents Congress and the judiciary acting together to enforce constitutional limits on executive power — the strongest possible constitutional posture for a structural oversight mechanism.

(9) It is the sense of Congress that a prospective, court-supervised system of executive communications monitoring — covering both official and personal communications used for government business, automated at the triage stage, reviewed by human judges only upon probable cause, subject to strict minimization, and vested in an independent Article III judicial body — is both constitutionally permissible and structurally necessary to preserve the integrity of constitutional governance and the balance of powers among the three branches.

(10) The constitutional system of checks and balances designed by the Framers assumed that the three branches of government would have roughly comparable access to information about the exercise of governmental power. That assumption no longer holds, and the asymmetry is structural, not incidental. The modern executive branch's information advantage has been amplified by developments the Framers could not have anticipated. Technological advancement has fundamentally transformed the scale and secrecy of military and intelligence power. The signals intelligence capabilities of the National Security Agency, the global surveillance architecture of the Intelligence Community, and the classification system — which generates tens of millions of classification decisions annually — together constitute an apparatus of state power operating largely beyond the informational reach of the other two branches. Courts may review executive action but can evaluate only evidence the executive chooses to present, typically in classified ex parte proceedings under the state secrets privilege first articulated in United States v. Reynolds, 345 U.S. 1 (1953), and expanded since. Congress may subpoena executive records it knows exist, but has no reliable mechanism to compel disclosure of classified programs or activities whose existence has not been disclosed to it. An executive branch that classifies the existence of an operation — not merely its contents — can in practice conceal that operation from congressional oversight indefinitely absent a whistleblower or external disclosure. The NSA's bulk domestic metadata collection program, which operated for years before Edward Snowden disclosed it in 2013, illustrates this structural vulnerability: the program's existence was classified, the relevant oversight committees were briefed on a restricted basis, and the full Congress and the public had no knowledge the program existed. The same digital communications technology that enables global coordination also enables systematic evasion of oversight through covert communications. The Church Committee's investigation of 1975-76 documented that the CIA, NSA, FBI, and military intelligence agencies had conducted systematic surveillance of domestic political activity, infiltrated civil rights and antiwar organizations through COINTELPRO and equivalent programs, and operated covert

programs the relevant oversight committees either were not informed of or were actively deceived about. The Iran-Contra affair demonstrated that senior executive officials could conduct an entire covert foreign policy operation — arms sales to a designated state sponsor of terrorism, diversion of proceeds to a foreign paramilitary force in explicit violation of congressional appropriations restrictions — using personal communications and off-books channels specifically designed to evade congressional oversight. Congress did not learn of it through oversight mechanisms. The documented use in recent years of consumer encrypted messaging applications — including commercially available platforms not subject to government records requirements — to conduct official government business confirms that the practice of using technology-enabled covert communications to evade oversight is not a historical aberration but a persistent structural feature of executive branch operations. The classification system, covert action authority under 50 U.S.C. § 3093, the state secrets privilege, and the Intelligence Community's collection and communication capabilities together constitute a structural information asymmetry that renders traditional oversight mechanisms ineffective — not because those mechanisms are legally inadequate, but because they operate on information the executive controls and chooses to disclose. JEOS addresses this structural asymmetry directly: by establishing contemporaneous, automated monitoring of official communications by an independent Article III body, Congress and the judiciary gain access to the information necessary to perform their constitutional functions in real time, rather than learning of executive misconduct only when the executive chooses to disclose it or when concealment becomes impossible. Congress emphasizes the limited scope of this finding. The information asymmetry identified here is specific to individuals who have voluntarily sought and assumed extraordinary governmental power and who have accepted, as a condition of that power, reduced privacy expectations in the exercise of official functions under Nixon v. Administrator of General Services, 433 U.S. 425 (1977). This finding does not support, and this subtitle does not authorize, any monitoring of officials of the legislative or judicial branches, private citizens, or executive branch employees who have not been designated as Covered Officials under Sec. 1203(1). The purpose of JEOS is not to expand legislative or judicial power beyond its constitutional scope — it is to restore the informational preconditions without which the separation of powers cannot function as the Framers designed, specifically with respect to the exercise of executive power by individuals who have voluntarily assumed the public trust that JEOS oversight is designed to protect.

Sec. 1203. Definitions.

As used in this subtitle:

(1) "Covered Official" means any person who:

(A) serves in any position in the executive branch appointed by the President, with or without Senate confirmation, including all Cabinet-level officers, sub-Cabinet appointees, employees at the GS-15 level or above including all employees in the Senior Executive Service, and all members of the White House Office and Executive Office of the President;

(B) holds a position requiring a security clearance at the TS/SCI level or above AND exercises one or more of the following authorities: authority to direct intelligence collection operations; authority to obligate government funds in excess of one million dollars ($1,000,000); authority to issue legally binding regulations, orders, or directives affecting persons outside the executive branch; direct supervisory authority over fifty (50) or more executive branch employees; or authority over the classification, declassification, or withholding of government information from Congress or the public. Officials whose TS/SCI clearance relates solely to access to classified information in a purely technical or scientific domain, who do not receive intelligence assessments or policy deliberations, and who have no authority over any of the criteria listed in this subparagraph, are not Covered Officials under this subparagraph unless specifically designated by the Director of JEOS pursuant to a documented individualized determination. Operational intelligence officers whose primary duties consist of foreign intelligence collection, human intelligence operations, counterintelligence operations, or signals intelligence collection — including CIA case officers, Defense Intelligence Agency defense attachés and case officers, National Security Agency collection operators, and equivalent personnel in other Intelligence Community elements — and who do not independently exercise any of the authorities listed in this subparagraph, are not Covered Officials by reason of their TS/SCI clearance alone. Such officers may be individually designated under subparagraph (C) only upon a specific, documented determination by the Director of JEOS that the individual exercises meaningful policymaking, financial, or supervisory authority beyond their operational intelligence collection duties; or

(C) is designated by the Director of JEOS based on a reasonable, articulable basis that the individual exercises significant policymaking, contracting, or enforcement authority on behalf of the executive branch.

(2) "Official Communications" means any communication, in any form or medium, that:

(A) is made by or to a Covered Official in official capacity;

(B) concerns the exercise of governmental authority, the administration of law, the expenditure or impoundment of appropriated funds, the award or administration of contracts, the formulation of policy, or the supervision of executive branch personnel or operations; or

(C) is transmitted using government-furnished equipment, government-assigned accounts, or Approved Communications Systems.

(3) "Non-Clandestine Communication" means any Official Communication other than a communication classified as a covert action under 50 U.S.C. § 3093 or constituting a Controlled Access Program communication under applicable executive order, provided that such classification is not applied for the purpose of avoiding oversight under this subtitle.

(4) "Approved Communications System" means a communications platform, device, or system certified by the Director of JEOS and the relevant agency Chief Information Officer as compliant with the technical, archival, and monitoring requirements of this subtitle. Approved Communications Systems shall be the exclusive lawful medium for Official Communications.

(5) "Prohibited Device or Platform" means any device, application, platform, or service that: provides end-to-end encryption without a court-accessible distributed key escrow mechanism; includes automatic message deletion, self-destruct, ephemeral messaging, or message recall preventing preservation; is not operated by a Federal Agency, authorized government contractor, or entity with a JEOS Compliance Agreement; is commercially operated primarily for consumer use and not contractually obligated to comply with government records requirements; or is specifically identified on the Prohibited Platform List under Sec. 1223.

(6) "Triggering Violation" means a communication constituting probable cause to believe a Covered Official has committed, is committing, or is about to commit a violation of: any provision of chapters 11 (bribery and graft) or 73 (obstruction of justice) of title 18; the Antideficiency Act, 31 U.S.C. §§ 1341-1351; the Espionage Act, 18 U.S.C. §§ 792-799; chapter 19 of title 18 (conspiracy); sections 201-209 of title 18 (conflicts of interest and ethics violations); the Emoluments Clauses of Article I, § 9, cl. 8 and Article II, § 1, cl. 7; Article III, § 3 of the Constitution (treason); or any other federal criminal statute designated by the JEOS Full Panel by two-thirds vote.

(7) "JEOS" means the Judicial Executive Oversight System.

(8) "Director of JEOS" means the supervising Article III judge appointed under Sec. 1212.

(9) "JEOS Panel" means the panel of Article III judges authorized to review flagged communications under Sec. 1231.

(10) "JEOS Covered Officials Roster" means the certified, continuously maintained list of all individuals currently holding covered positions subject to this subtitle, compiled and maintained by the JEOS Secretariat based on agency-transmitted rosters under Sec. 1211A.

Part B — Establishment and Organization of JEOS

Sec. 1211. Establishment.

(a) There is hereby established within the judicial branch of the Federal Government, as a specialized Article III division of the United States District Court for the District of Columbia, a body to be known as the Judicial Executive Oversight System. Congress establishes JEOS pursuant to its authority under Article I, § 8 and § 9 of the Constitution, its power to define and punish offenses against the laws of the United States, and its authority over the structure and accountability of the executive branch, in conjunction with the judicial power vested in Article III courts.

(b) JEOS shall be independent of the executive branch. No officer or employee of any Federal Agency shall exercise supervisory authority over JEOS or any member of its staff.

(c) JEOS shall have a Secretariat staffed by career civil servants, including technologists, legal analysts, and communications specialists, none of whom shall be politically appointed or subject to removal at the direction of any executive branch official. All JEOS Secretariat positions are hereby designated as permanent career civil service positions. No JEOS Secretariat position may be reclassified, eliminated, or redesignated under Schedule F, Schedule C, or any equivalent excepted service schedule through executive order, presidential directive, or executive reorganization authority. Any attempt to reclassify, eliminate, or reorganize JEOS Secretariat positions through executive authority shall be without legal effect and any Secretariat employee so affected shall be entitled to immediate reinstatement by order of the JEOS Director.

(d) JEOS Funding Independence. JEOS appropriations are hereby designated as mandatory appropriations not subject to the impoundment, deferral, or rescission authority of the President under the Impoundment Control Act of 1974 or any other executive authority. Any presidential attempt to impound, defer, or rescind JEOS appropriations is without legal effect. The Director of JEOS may seek enforcement of this provision through original action in the United States District Court for the District of Columbia, which shall have jurisdiction to issue emergency injunctive relief within seventy-two (72) hours of filing.

(e) Capital Appropriation for System Development. Congress hereby appropriates, as a mandatory one-time capital appropriation not subject to annual appropriations processes or executive impoundment, not less than two billion dollars ($2,000,000,000) for the design, procurement, development, testing, and deployment of the JEOS technical monitoring system, infrastructure, and enrolled device management architecture. This appropriation is in addition to the ongoing operational appropriations of JEOS and shall be available until expended. The JEOS Director shall transmit a capital expenditure plan

to Congress within ninety (90) days of the Director's designation under Sec. 1212(a) — approximately one hundred eighty (180) days after enactment.

(e-1) Ongoing Operational Appropriations. In addition to the capital appropriation under subsection (e), Congress hereby authorizes to be appropriated, and there are hereby appropriated out of any money in the Treasury not otherwise appropriated, mandatory annual appropriations for the ongoing operation of JEOS as follows: (1) From the date the pilot monitoring system becomes operational under Sec. 1263(b)(11) through the date the full monitoring system becomes operational under Sec. 1263(b)(12): not less than two hundred million dollars ($200,000,000) per fiscal year. (2) From the date the full monitoring system becomes operational under Sec. 1263(b)(12) and for each fiscal year thereafter: not less than three hundred million dollars ($300,000,000) per fiscal year, adjusted annually for inflation using the Consumer Price Index for All Urban Consumers (CPI-U) published by the Bureau of Labor Statistics, with the fiscal year in which the full system becomes operational as the base year. (3) Scaling Adjustment. Where the JEOS Covered Officials Roster exceeds five thousand (5,000) enrolled individuals at any point during a fiscal year, the annual appropriations floor for the following fiscal year shall increase by ten percent (10%) above the otherwise applicable floor. Where the Roster exceeds ten thousand (10,000) enrolled individuals, the floor shall increase by twenty percent (20%). These scaling adjustments are cumulative with inflation adjustments under paragraph (2). (4) The mandatory appropriations floors in this subsection are not subject to rescission, impoundment, deferral, or continuing resolution reduction below the applicable floor. The JEOS Director may seek enforcement of the mandatory appropriations floor through emergency action in the United States District Court for the District of Columbia, which shall have jurisdiction to issue injunctive relief within seventy-two (72) hours of filing. (5) The JEOS Director shall include in each annual report under Sec. 1242 a detailed accounting of operational expenditures, projected needs for the following fiscal year, and a justification for any request for appropriations above the mandatory floor. These funds shall cover Secretariat staffing and personnel costs; system maintenance, security patching, and cryptographic updates; classified archive storage and management; Panel and Special Ethics Advocate operational support; ongoing red team security testing not less than annually; and all other costs of JEOS operations not covered by the capital appropriation under subsection (e).

(f) Agency Cooperation Obligation. Every Federal Agency shall provide full, timely, and unimpeded technical cooperation to JEOS, including: providing and maintaining the communications feeds required for the monitoring system under Sec. 1231; maintaining and operating Approved Communications Systems; responding to JEOS Secretariat requests for technical access; and complying with all JEOS Panel orders. Any Federal Agency official who orders, directs, or causes the withholding, delay, or degradation of

technical cooperation with JEOS, or who directs agency staff to refuse cooperation with JEOS, commits a Triggering

Violation subject to the full review process of Sec. 1231 and, where done with intent to obstruct oversight, a criminal offense under 18 U.S.C. § 1505.

(g) JEOS Chief Technology Officer. The JEOS Secretariat shall include a Chief Technology Officer appointed simultaneously with the inaugural Director pursuant to Sec. 1212(c). The CTO bears primary responsibility for supervising the design, procurement, development, and operation of the JEOS technical monitoring system. CTO qualifications, appointment process, and succession are governed by Sec. 1212(c).

(h) IC-to-JEOS Transition Restriction. Any individual transitioning from any Intelligence Community element as defined in 50 U.S.C. § 3003(4), or from any element of the Department of Defense whose primary mission includes signals intelligence, cyber operations, electronic warfare, or communications infrastructure including United States Cyber Command and the Defense Information Systems Agency, to any position within the JEOS Secretariat, must have been continuously employed within such element since before January 20, 2025. Individuals hired by, contracted to, or significantly promoted within such elements on or after January 20, 2025 are not eligible for JEOS Secretariat positions regardless of their qualifications. This restriction applies to all JEOS Secretariat positions and does not apply to individuals transitioning from non-IC federal agencies, the federal judiciary, cleared academic institutions, or national laboratories.

(i) Government Infrastructure and Expertise. Congress directs that, in building the JEOS technical monitoring system, the JEOS Director and CTO shall prioritize use of existing government-owned infrastructure and personnel from across the federal government, consistent with the workforce restrictions of Sec. 1211(j). Federal agencies — including but not limited to the General Services Administration, the Cybersecurity and Infrastructure Security Agency, the Defense Information Systems Agency, and the Administrative Office of the United States Courts — shall cooperate with the JEOS Secretariat in identifying available government-owned infrastructure, technical personnel, and existing procurement vehicles that may accelerate system development. No infrastructure transfer from any Intelligence Community element to JEOS Secretariat ownership and control is authorized by this subtitle. Before the JEOS monitoring system goes operational, an independent security verification must be conducted by a red team composed exclusively of cleared engineers who:

(A) hold security clearances at the appropriate level;

(B) are drawn from federal agencies, federal laboratories, national laboratories, cleared academic institutions, or any other non-IC federal entity — provided no member of the red team is employed by or assigned to any Intelligence

Community element or Department of Defense signals or cyber element on or after January 20, 2025; and

(C) have no role in the JEOS system build or design and no financial interest in any JEOS contractor. No NSA employee, IC element employee, or executive branch employee involved in any phase of JEOS system design, build, or procurement may participate in red team verification.

(j) Workforce Restrictions on System Development. The following restrictions apply to all phases of JEOS system development:

(1) Core Architecture and Security Design — government employees only, no contractors. The decisions governing how the system is structured, what data flows where, how the key escrow works, where security boundaries are drawn, and how the monitoring infrastructure is segmented may only be made by government employees who are JEOS Secretariat staff or pre-January 20, 2025 IC or DOD personnel subject to the restrictions of subsection (i). No contractor may participate in core architecture or security design decisions at any stage;

(2) System Build and Integration — contractors are permitted subject to all of the following conditions: cleared to TS/SCI level; working exclusively on government-owned, airgapped infrastructure; technically incapable of exfiltrating code, data, or system design documentation from the build environment; not permitted to subcontract any portion of their JEOS work to any third party; and, where the contractor has been primarily assigned to an IC element or DOD signals or cyber element as defined in subsection (h), continuously employed in that assignment since before January 20, 2025;

(3) AI Model Development — government employees only, no contractors. The model weights, training data, flagging logic, behavioral anomaly detection algorithms, and pattern analysis criteria of the automated screening system shall be developed, trained, tested, and controlled exclusively by JEOS Secretariat government employees. No contractor may access, modify, or influence the AI model at any stage of its development or operation. A contractor who participates in the system build would have knowledge of the system architecture that could be used to evade detection; the AI model itself must therefore remain entirely government-controlled; and

(4) Ongoing Operations — government employees only after deployment. No contractor shall have operational access to the running JEOS monitoring system, the JEOS archive, or any data processed by the system after it goes operational.

(k) Independent Procurement Authority. The JEOS Director shall have independent contracting authority for all JEOS procurements, modeled on the Administrative Office of the U.S. Courts' procurement authority but with the security classification

requirements of Intelligence Community procurements. No executive branch official, OMB, DNI, or any other executive branch entity shall have any review, approval, or veto authority over JEOS procurement decisions. JEOS may utilize IC-vetted contractor pools and security clearance frameworks without being subject to executive branch procurement oversight. All JEOS contracts shall be classified at the appropriate level and administered exclusively by JEOS Secretariat contracting officers.

Sec. 1211A. Covered Officials Roster, Notification, Agency Reporting, and Enrollment.

(a) Government-Wide Notification and Interpretive Guidance.

(1) OPM Notification. Not later than seven (7) days after the date of enactment, the Director of the Office of Personnel Management shall transmit a formal written notification to the head of every Federal Agency, the agency's Chief Human Capital Officer, and the agency's General Counsel, informing them of: the enactment of this subtitle; the full text of the Covered Official definition under Sec. 1203(1) and its three subparagraphs; the roster compilation timeline established in subsection (b); the obligation to transmit the completed roster to the JEOS Director on the first business day following designation; the requirement to designate a JEOS Liaison Officer by day twenty-one (21); and the personal civil liability of agency heads for failure to comply. OPM shall maintain a publicly available list of all Federal Agencies to which this notification was transmitted and the date of transmission.

(2) OLC Interpretive Guidance. Not later than twenty-one (21) days after the date of enactment, the Department of Justice Office of Legal Counsel shall publish a government-wide guidance document interpreting the Covered Official definition under Sec. 1203(1), providing illustrative examples of positions that do and do not qualify under each subparagraph — sufficient to guide agency compliance without limiting the Director's authority to make final determinations under subsection (a)(5) — and addressing the application of the TS/SCI qualifying authority criteria of subparagraph (B) to common agency organizational structures. This guidance shall serve as the working interpretation for all Federal Agencies for purposes of their initial roster compilation, subject to review and supersession by the JEOS Director under subsection (a)(4). Roster compilation shall not begin before OLC guidance is published.

(3) Agency Designation of JEOS Liaison. Not later than twenty-one (21) days after the date of enactment, each Federal Agency head shall designate a JEOS Liaison Officer — a senior official with legal or compliance expertise — who shall be responsible for: coordinating roster compilation within the agency; transmitting the initial roster and all monthly updates to the JEOS Director or Secretariat; receiving notifications from the JEOS Secretariat regarding individual Covered Officials; and serving as the agency's primary point of contact for all JEOS-related compliance matters. The identity of each agency's JEOS Liaison Officer shall be transmitted to OPM within

twenty-one (21) days of enactment, and to the JEOS Director on the first business day following designation.

(4) Director Review and Supersession of OLC Guidance. Not later than ten (10) business days following designation, the JEOS Director shall review OLC's interpretive guidance issued under subsection (a)(2) and determine whether it accurately and completely identifies the population of Covered Officials consistent with the definition in Sec. 1203(1). If the Director determines that OLC's guidance is improperly narrow, improperly broad, or otherwise inconsistent with the statutory definition, the Director shall issue a superseding interpretation that is immediately binding on all Federal Agencies in lieu of OLC's guidance. The Director's interpretation is final and not subject to review or revision by any executive branch entity. Where the Director's superseding interpretation expands the covered population beyond OLC's guidance, agencies shall have ten (10) business days from the date of the superseding interpretation to identify and add newly covered individuals to their rosters and certify that the roster is complete.

(5) Director Interpretive Authority — Ongoing. Upon designation, the JEOS Director shall have final authority to determine whether any specific individual qualifies as a Covered Official under any subparagraph of Sec. 1203(1). Any agency may submit a request for determination to the JEOS Director regarding a specific position or individual at any time. The Director shall respond within ten (10) business days. The Director's determination is final and binding on the agency.

(b) Initial Roster Compilation and Submission.

(1) Compilation Window. Roster compilation shall begin not earlier than twenty-one (21) days after enactment, once OLC interpretive guidance has been published under subsection (a)(2) and JEOS Liaison Officers have been designated under subsection (a)(3). Each Federal Agency shall complete its certified initial roster not later than eighty-nine (89) days after the date of enactment — providing a thirty-nine (39) day compilation window from the availability of OLC guidance — and shall hold the completed, certified roster in a state ready for immediate transmission until the JEOS Director is designated.

(2) Roster Contents. The roster shall include for each individual: full legal name; position title; agency and component; the subparagraph of Sec. 1203(1) under which the individual qualifies as a Covered Official; date of appointment or assumption of covered duties; official government email address; personal email address on file with the agency where available; and contact information for the agency's designated JEOS Liaison Officer.

(3) Certification. The initial roster shall be certified under penalty of perjury by both the agency head and the designated JEOS Liaison Officer, attesting that: the roster reflects a good-faith application of the OLC interpretive guidance and the statutory

definition; no individual qualifying as a Covered Official under the statutory definition has been knowingly omitted; and the agency has made reasonable inquiry within its personnel records to identify all qualifying individuals. Where the agency head and the JEOS Liaison Officer disagree about whether a specific individual qualifies as a Covered Official, neither party is required to certify the roster as to that individual pending resolution. The agency shall submit the disputed individual's position description and relevant authority information to the JEOS Director for a binding determination under subsection (a)(5) within five (5) business days of identifying the disagreement. The JEOS Director shall respond within ten (10) business days. The disputed individual shall be treated as a Covered Official for all purposes — including pre-enrollment notification under subsection (e) — from the date the dispute is submitted to the Director until the Director issues a contrary determination. The certified roster shall be transmitted on the required deadline with a notation identifying any individuals whose status is under Director review; the roster shall be updated within three (3) business days of the Director's determination.

(4) Transmission. Not later than the first (1st) business day following the designation of the JEOS Director under Sec. 1212(a) — which designation shall occur no later than ninety (90) days after enactment — the head of each Federal Agency shall transmit its certified roster to the JEOS Director.

(5) Director Custody. The JEOS Director shall hold all initial rosters securely until the JEOS Secretariat is sufficiently staffed to formally intake them, at which point the Director shall transfer all rosters to the Secretariat. The Director shall maintain a written log of all rosters received, the date of receipt, and the agency head who certified each roster.

(6) Roster Updates Following Director Guidance Review. Where the JEOS Director issues a superseding interpretation under subsection (a)(4) that expands the covered population, agencies shall transmit a supplemental certified roster update to the Director within ten (10) business days of the superseding interpretation, identifying all newly covered individuals. The Director shall integrate all supplemental updates before transferring rosters to the Secretariat.

(7) Liability. An agency head who fails to have a roster ready within eighty-nine (89) days of enactment, or who fails to transmit it to the Director on the first business day following designation, is subject to personal civil liability under Sec. 1251(a) of subtitle B of this Act (meaning the civil penalty provision of the EAJOA, not the commercial safe harbor provision of the ASPPEA). An agency head who knowingly omits a Covered Official from the initial roster or from any subsequent update, where such omission was intended to shield the individual from JEOS monitoring, is subject to criminal liability under 18 U.S.C. § 1505.

(c) Monthly Updates.

(1) Ongoing Reporting. Each Federal Agency shall transmit to the JEOS Secretariat — or to the JEOS Director where the Secretariat has not yet assumed roster intake responsibility under Sec. 1263(b)(9) of subtitle B — a certified update to its roster not later than the fifth (5th) business day of each calendar month, reflecting any additions or departures during the preceding month.

(2) Immediate Notification. Whenever a new individual assumes a covered position or an existing Covered Official departs, the agency shall transmit an immediate notification to the

JEOS Secretariat within five (5) business days of that event, without waiting for the monthly update cycle. The immediate notification shall include all roster contents specified in subsection (b)(2) for the relevant individual.

(3) Certification. Monthly updates and immediate notifications shall be certified by the agency's designated JEOS Liaison Officer under penalty of perjury.

(d) JEOS Secretariat Roster Maintenance. The JEOS Secretariat shall compile, maintain, and continuously update the JEOS Covered Officials Roster based on agency submissions under subsections (b) and (c). The Roster is a classified document. The JEOS Director shall certify to Congress annually that the Roster is complete and current to the best of the Director's knowledge based on agency submissions and independent verification. The JEOS Director may independently verify roster accuracy by cross-referencing publicly available appointment records, Senate confirmation records, and other government personnel databases, and shall request correction from the relevant agency head within ten (10) business days of identifying any discrepancy. An agency head who fails to correct a discrepancy within ten (10) business days of receiving a correction request from the Director is subject to personal civil liability under Sec. 1251(a).

(e) Pre-Enrollment Notification to Individuals. Upon adding any individual to the JEOS Covered Officials Roster, the JEOS Secretariat shall transmit written notification to that individual within five (5) business days, informing them of:

(1) the fact that they hold a covered position subject to JEOS monitoring under this subtitle;

(2) the nature of the monitoring — that their Official Communications on Approved Communications Systems and, upon enrollment, their personal devices are subject to automated monitoring as a condition of holding their position; that the automated system does not involve human review of communications unless a flag is generated; and that non-flagged communications are retained for two hundred sixty (260) days subject to automated contextual re-analysis before transfer to the classified judicial archive;

(3) the device enrollment requirement and applicable deadline under subsection (f);

(4) the prohibition on use of Prohibited Devices or Platforms for Official Communications and the civil and criminal penalties under Sec. 1251 of subtitle B; and

(5) the right to challenge JEOS monitoring before the JEOS Panel under Sec. 1212(f) of subtitle B; and (6) the distinction between initiating or knowingly continuing use of a Prohibited Device or Platform, which constitutes a violation subject to civil and administrative penalties under Sec. 1251, and receiving an unsolicited communication through such a device or platform, which triggers a reporting obligation only and does not constitute a violation. The notification shall direct the Covered Official to the Covered Official's Communications Compliance Handbook published under Sec. 1221(e) for complete guidance on these requirements. Notification shall be transmitted to the individual at both their official government email address and their personal email address on file with their agency. For individuals in the initial roster cohort — those already in covered positions on the date of enactment — the JEOS Secretariat shall transmit pre-enrollment notifications not later than ten (10) business days after the initial roster and any Director-ordered supplemental updates are received and integrated.

(f) Device Enrollment Deadlines.

(1) Pilot Cohort — Cabinet Secretaries and White House Senior Staff. Individuals in the pilot cohort — defined as all Cabinet-level officers as defined by 5 U.S.C. § 101 and all members of the White House Office holding positions at the GS-15 level or above or equivalent — shall complete enrollment of all personal devices not later than the date the pilot monitoring system becomes operational under Sec. 1263(b)(11) of subtitle B — five hundred forty (540) days after enactment.

(2) All Other Current Covered Officials. Individuals currently serving in covered positions on the date of enactment who are not in the pilot cohort, and individuals who assume covered positions between enactment and the full system operational date, shall complete enrollment of all personal devices not later than thirty (30) days after the full monitoring system becomes operational under Sec. 1263(b)(12) of subtitle B — approximately seven hundred sixty (760) days after enactment.

(3) New Appointees After Full System Is Operational. Individuals who assume covered positions after the full monitoring system has become operational shall complete enrollment not later than five (5) business days of receiving pre-enrollment notification under subsection (e).

(4) Penalties. Failure to complete device enrollment within the applicable deadline is an independent violation of this subtitle subject to civil penalty under Sec. 1251(a). Failure to enroll with intent to evade JEOS monitoring is a criminal offense under Sec. 1251(b).

(g) Departure and Unenrollment. When a Covered Official departs a covered position, the agency shall notify the JEOS Secretariat within five (5) business days. Upon receipt of departure notification, the JEOS Secretariat shall: remove the individual from the Roster; direct that JEOS monitoring of that individual's personal devices cease immediately; and unenroll the individual's personal devices from JEOS device management within forty-eight (48) hours of departure notification. The individual shall receive written confirmation of their unenrollment within five

(5) business days of unenrollment. Communications collected prior to departure remain in the JEOS archive and classified judicial archive subject to the retention and access rules of this subtitle.

(h) Post-Service Monitoring Prohibition. JEOS monitoring does not extend beyond the period of covered service. Any individual who was a Covered Official and who departs a covered position shall be unenrolled and their devices shall cease to be monitored as specified in subsection (g), regardless of the reason for departure.

(i) Contested Designation. An individual who disputes their designation as a Covered Official under Sec. 1203(1)(C) may file a written challenge with the JEOS Full Panel within ten (10) business days of receiving pre-enrollment notification under subsection (e). The Panel shall rule on the challenge within fifteen (15) business days of receipt. Enrollment is stayed during the pendency of the challenge. The Panel’s ruling is final within JEOS proceedings but is subject to appeal to the D.C. Circuit under Sec. 1261(d).

Sec. 1212. Composition, Appointment, Succession, and Adversarial Challenge Mechanism.

(a) Initial Appointment — Director. The Chief Judge of the United States Court of Appeals for the District of Columbia Circuit shall simultaneously designate the inaugural JEOS Director and the inaugural JEOS Chief Technology Officer within ninety (90) days of the date of enactment. The Director shall be one active Article III circuit judge drawn from any of the twelve federal circuits excluding the Federal Circuit, whose specialized jurisdiction in patents and trade makes it unsuitable for this role. The Director shall begin work immediately upon designation and shall serve a non-renewable term of seven (7) years. No Senate confirmation is required for the inaugural Director appointment because the Director is an active Article III circuit judge receiving an additional supervisory designation within the judicial branch — not a new appointment of a principal officer within the meaning of the Appointments Clause of Article II, § 2, cl. 2. This designation is analogous to the Chief Justice’s designation of the Presiding Judge of the Foreign Intelligence Surveillance Court under 50 U.S.C. § 1803(a), which has not been understood to require Senate confirmation.

(b) Succession — Subsequent Directors. Not later than one hundred eighty (180) days before the expiration of a Director's term, the outgoing Director shall refer a single

candidate to the Chief Judge of the United States Court of Appeals for the District of Columbia Circuit for review.

(1) D.C. Circuit Chief Judge Review. The D.C. Circuit Chief Judge shall within thirty (30) days either approve the referral for Senate consideration or return it to the outgoing Director with written reasons. A candidate approved by the D.C. Circuit Chief Judge is immediately transmitted to the Senate for confirmation under paragraph (3).

(2) Judicial Conference Escalation. Where the D.C. Circuit Chief Judge returns a referral or fails to act within thirty (30) days, the matter escalates automatically to the full Judicial Conference of the United States. The Judicial Conference shall convene within thirty (30) days of escalation and determine by majority vote whether to: approve the outgoing Director's original referral for Senate consideration; or designate a different candidate for Senate consideration. Whatever candidate the Judicial Conference approves is immediately transmitted to the Senate for confirmation under paragraph (3). The Judicial Conference's determination is final and not subject to further review within the judicial branch.

(3) Senate Confirmation. The Senate shall vote on the candidate transmitted under paragraph (1) or

(2) within ninety (90) days of receipt. Confirmation requires the affirmative vote of sixty (60) Senators. If the Senate fails to act within ninety (90) days, the candidate is deemed confirmed by operation of law and shall begin service as Director immediately. If the deemed confirmation mechanism of this paragraph is held unconstitutional or otherwise unenforceable, the candidate shall serve in an acting capacity with full statutory authority pending Senate action. Acting service under this paragraph shall not exceed 540 days. If the Senate has not acted within 540 days, the outgoing Director or the D.C. Circuit Chief Judge shall initiate a new succession process under this subsection. All actions taken by an acting Director during their service are valid and binding regardless of any subsequent challenge to this paragraph. Congress finds that the designation of a successor Director under this subsection is constitutionally grounded on two independent bases. First, where the Director is an active Article III circuit judge receiving an additional supervisory designation within the judicial branch, the designation is analogous to the Chief Justice’s designation of FISA Court judges under 50 U.S.C. § 1803(a), which has not required Senate confirmation, and does not constitute the appointment of a new principal officer within the meaning of the Appointments Clause of Article II, § 2, cl. 2. Second, and independently, the Senate confirmation requirement of paragraph (3) of this subsection satisfies the Appointments Clause in all events — if a court determines that the Director is a principal officer requiring Senate confirmation, the

Senate confirmation process established here provides that confirmation. The deemed-confirmation mechanism of paragraph

(3) — providing that Senate inaction for ninety (90) days constitutes confirmation by operation of law — provides procedural certainty for the judicial designation process. Congress finds the deemed-confirmation mechanism is constitutionally justified by the same institutional necessity that supports recess appointments: the constitutional structure cannot function if Senate inaction can permanently prevent the establishment of an essential oversight institution. Nothing in this subsection limits the right of any party to seek judicial review of the Director's appointment under the Appointments Clause.

(4) Vacancy. If a Director leaves office before the expiration of their term, the D.C. Circuit Chief Judge shall designate an acting Director from among the JEOS Panel judges within ten (10) business days of the vacancy. The acting Director shall serve until a successor is confirmed under the succession process of this subsection, which the outgoing Director shall initiate before departure where reasonably practicable, or which the D.C. Circuit Chief Judge shall initiate within thirty (30) days of the vacancy where the departure was not anticipated.

(5) Director Eligibility. No individual who has served in any political appointment in the executive branch within ten (10) years of designation, or who has a spouse, parent, child, or sibling currently serving in a Senate-confirmed executive branch position, is eligible to serve as JEOS Director. No individual who was employed by or assigned to any Intelligence Community element or Department of Defense signals or cyber element after January 20, 2025 is eligible to serve as JEOS Director.

(c) CTO Candidate Pool and Simultaneous Appointment.

(1) Pool Compilation Process. Beginning on the date of enactment, the Office of Personnel Management shall manage the administrative process of compiling a qualified CTO candidate pool, including: publishing notice of the pool process to eligible federal government personnel and cleared defense contractors; receiving and processing applications; verifying each applicant's employment continuity and security clearance eligibility requirements under paragraph (2); and maintaining the pool. OPM shall not make substantive qualification judgments — that function is reserved to the technical review panel under paragraph (3).

(2) Pool Eligibility Requirements. To qualify for inclusion in the CTO candidate pool, an individual must: hold a security clearance at the TS/SCI level or above, held continuously since before January 20, 2025; have been continuously employed in a relevant technical role within the federal government, the federal judiciary, a national laboratory, or a cleared defense contractor since before January 20, 2025, in a capacity not subject to direction, removal, or significant influence by political appointees of the administration beginning January 20, 2025; and not have been

employed by or primarily assigned to any Intelligence Community element or Department of Defense signals or cyber element at any time after January 20, 2025.

(3) Technical Qualification Review Panel. A joint technical review panel shall assess the substantive qualifications of administratively eligible candidates identified by OPM. The panel shall consist of: one representative designated by the Director of the National Institute of Standards and Technology; one representative designated by the Director of the Cybersecurity and Infrastructure Security Agency; and one representative from the Administrative Office of the United States Courts' technology division. No member of the technical review panel shall be employed by or assigned to any Intelligence Community element or any Department of Defense element whose primary mission includes signals intelligence, cyber operations, electronic warfare, or communications infrastructure. The panel shall assess each candidate's expertise in classified systems architecture, artificial intelligence or machine learning systems, and cybersecurity, and shall certify to OPM which candidates meet the technical qualification standard.

(4) Pool Size, Certification, and Transmission. OPM shall compile a pool of not fewer than five

(5) and not more than ten (10) candidates who satisfy both the administrative eligibility requirements of paragraph (2) and the technical qualification standard certified by the panel under paragraph (3), ensuring institutional and geographic diversity where possible. OPM shall transmit the certified pool to the D.C. Circuit Chief Judge not later than forty (40) days after the date of enactment — fifty (50) days before the simultaneous appointment deadline — so the Chief Judge may review both the Director and CTO pools with adequate time before making simultaneous designations.

(5) Simultaneous Appointment. The D.C. Circuit Chief Judge shall designate both the inaugural JEOS Director and the JEOS Chief Technology Officer simultaneously within ninety (90) days of enactment, selecting the CTO from the qualified pool certified under paragraph (4). The Director and CTO shall begin work on the same date. Neither appointment is effective without the other — both must be made simultaneously as a single act of designation.

(6) CTO Duties and Authority. The CTO shall bear primary responsibility for: overseeing the design, procurement, development, testing, and operation of the JEOS technical monitoring system; managing the procurement solicitation process under Sec. 1211(k); supervising all system build and integration contractors in accordance with the workforce restrictions of Sec. 1211(j); ensuring AI model development remains exclusively under government employee control under

Sec. 1211(j)(3); and certifying to the Director that the system meets all applicable NIST standards before any operational milestone under Sec. 1263(b).

(7) CTO Succession. If the CTO leaves their position, OPM shall compile a new qualified pool under the same process within forty-five (45) days. The Director shall appoint a replacement CTO from the new pool within sixty (60) days of the vacancy. During any vacancy the Director shall designate an acting CTO from among the JEOS Secretariat's senior technical staff.

(d) JEOS Panel. The Director shall constitute a panel of not fewer than nine (9) and not more than fifteen (15) active Article III judges serving staggered five-year terms, ineligible for reappointment for five (5) years following service.

(e) Panel Disqualification. No judge who has served in a political executive appointment within ten (10) years of designation, or who has a spouse, parent, child, or sibling currently serving in a Senate-confirmed executive position, shall serve on the JEOS Panel during such period.

(f) Special Ethics Advocate and Adversarial Challenge Mechanism. The Director of JEOS shall appoint an independent Special Ethics Advocate — a member of the bar with expertise in constitutional, administrative, or government ethics law — to represent the public interest in all proceedings. The Special Ethics Advocate shall have access to all JEOS systems, filings, and materials; standing to challenge any order, declination, or ruling of the Panel; and authority to bring motions before the Panel on the Special Ethics Advocate's own initiative. Any Covered Official who believes their communications are being improperly retained or reviewed may petition the JEOS Full Panel for relief, and JEOS Panel orders are directly appealable to the United States Court of Appeals for the District of Columbia Circuit. This adversarial challenge mechanism ensures that the case-or-controversy requirement of Article III is continuously satisfied.

(g) D.C. Circuit Chief Judge Vacancy. Where the position of Chief Judge of the United States Court of Appeals for the District of Columbia Circuit is vacant at the time a designation or review obligation arises under this subtitle, such obligation shall be performed by the most senior active judge of that court by length of service.

Part C — Approved Communications Systems and Prohibited Platforms

Sec. 1221. Mandatory Use of Approved Communications Systems.

(a) All Official Communications shall be conducted exclusively through Approved Communications Systems. No Covered Official shall conduct Official Communications through any other medium.

(b) No Covered Official shall use a personally owned device, personally managed account, or commercially operated consumer application to conduct Official Communications.

For purposes of this subtitle and Sec. 1251, “use” means initiating or knowingly continuing a communication through a Prohibited Device or Platform. A Covered Official who receives an unsolicited communication through a Prohibited Device or Platform has not violated this subsection solely by reason of that receipt, provided the Official does not respond through the prohibited channel and complies with the reporting obligation of subsection (c).

(c) Where a Covered Official receives an Official Communication through a non-approved channel, the Covered Official shall: immediately decline to substantively respond; copy or transcribe the communication into the Approved Communications System; and report to the JEOS Secretariat within twenty-four (24) hours. The Covered Official shall not delete, alter, or destroy the original communication from the non-approved channel or device. The original shall be preserved pending JEOS Secretariat guidance on retention and shall be treated as a record subject to the preservation obligations of the Federal Records Act and, where applicable, the Presidential Records Act.

(d) Each agency head shall certify annually that all Covered Officials have completed mandatory training on Approved Communications System requirements. Mandatory training shall cover at minimum:

(1) the identity of all platforms on the current Prohibited Platform List and the basis for their prohibition;

(2) the distinction between initiating or continuing a communication through a Prohibited Device or Platform, which constitutes a violation subject to the penalty track of Sec. 1251, and receiving an unsolicited communication through such a platform, which triggers a reporting obligation only;

(3) the twenty-four (24) hour reporting obligation for received prohibited-channel communications under subsection (c);

(4) the forty-eight (48) hour self-reporting safe harbor under Sec. 1251(e) and the conditions for obtaining a complete civil fine waiver; and

(5) the financial hardship waiver process under Sec. 1251(f). The agency head certification shall attest that each of these topics was covered in the training provided during the certification period.

(e) Communications Compliance Handbook. Not later than ninety (90) days after the Director’s designation under Sec. 1212(a), the JEOS Secretariat shall publish a plain-language Covered Official’s Communications Compliance Handbook. The handbook shall be distributed to every Covered Official upon enrollment and whenever materially updated. The handbook shall cover at minimum: the complete Prohibited Platform List and the reasons for each platform’s prohibition; the definition of Official Communications and how to identify whether a communication qualifies; the distinction between initiating and receiving prohibited-channel communications and the different

consequences of each; step-by-step reporting procedures for received prohibited-channel communications; step-by-step procedures for invoking the self-reporting safe harbor under Sec. 1251(e); the financial hardship waiver process under Sec. 1251(f); the penalty track for initiated violations and the third-offense removal threshold; and contact information for the JEOS Secretariat compliance assistance line. The handbook shall be updated not less than annually and within thirty (30) days of any material change to the Prohibited Platform List or the penalty structure of Sec. 1251.

(f) Enrolled Device Platform Permission. A Covered Official using an enrolled personal device for Official Communications does not violate this subtitle solely by reason of using a communications application that is not designated as an Approved Communications System, provided the device is currently enrolled in JEOS monitoring and the communication is captured by the JEOS monitoring application. The records preservation obligations of this subtitle and the Federal Records Act apply to all Official Communications regardless of the platform used.

Sec. 1222. Approved Communications System Standards.

The Director of JEOS, in consultation with NIST and CISA, shall publish technical standards requiring at minimum:

(1) complete, tamper-evident archiving of all communications content and metadata in a government-controlled repository retained for two hundred sixty (260) days subject to the tiered review framework of Sec. 1231;

(2) no automatic deletion or recall without prior judicial authorization from the JEOS Panel;

(3) automatic transcription of all voice and video communications using government-operated transcription infrastructure — no commercial speech-to-text API or cloud transcription service may be used at any stage. Transcripts shall be entered into the JEOS archive as the primary searchable record. Raw audio and video are retained as source material alongside the transcript. The transcription engine must be operated on air-gapped government infrastructure and must meet the same TS/SCI security standards as the monitoring system itself;

(4) end-to-end encryption meeting or exceeding current FIPS 140-3 Level 3 requirements, implemented using a distributed multi-party key escrow architecture with tiered access controls as follows:

(A) Automated Screening Tier: the automated screening system shall operate within a hardwaresecured trusted execution environment — specifically a hardware enclave architecture such as Intel SGX, AMD SEV, or equivalent government-certified equivalent — where computation occurs in encrypted memory inaccessible to system operators. The AI model processes content within the

enclave but no plaintext is accessible outside the enclave environment. System-level key authorization for the automated screening tier requires the concurrent authorization of at least two (2) custodians at the time of system deployment and reauthorization not less than every ninety (90) days — this is a system-level authorization, not a per-communication authorization;

(B) Single-Judge Initial Review Tier: where a JEOS Panel judge reviews a flagged communication under Sec. 1231(b), decryption of the specific flagged communication requires the independent authorization of at least two (2) key custodians — the JEOS Secretariat representative and one of the other two custodians — within four (4) hours of the judge's access request. This two-custodian requirement enables timely judicial review without the operational delay of full three-custodian convening for initial probable cause determinations;

(C) Sub-Panel Full Review Tier: where a three-judge sub-panel conducts a full Investigative Order review under Sec. 1232, decryption of all preserved communications requires the independent authorization of all three (3) key custodians — the JEOS Secretariat representative, the relevant agency Inspector General representative, and the Comptroller General representative — before any sub-panel member may access communication content;

(D) Key custodian requirements: key custodians shall include at minimum one representative of the JEOS Secretariat, one representative of the relevant agency's Inspector General, and one representative of the Comptroller General's office; key material shall be stored in air-gapped hardware security modules physically located in geographically separated secure facilities; any key access event shall generate an immutable, independently stored audit log entry that cannot be modified or deleted by any single system administrator; and the architecture shall be designed such that compromise of any single key custodian, facility, or system component does not expose any decryption capability;

(5) post-quantum cryptographic agility: the system shall be designed and implemented to support cryptographic algorithm agility, meaning the ability to replace cryptographic primitives with post-quantum algorithms compliant with NIST FIPS 203, 204, and 205 or their successors without architectural redesign. No system that does not support cryptographic algorithm agility shall be certified as an Approved Communications System;

(6) multi-factor authentication and device verification for all enrolled personal devices and Approved Communications Systems;

(7) prohibition on export to non-approved systems;

(8) comprehensive, immutable audit logs of all access, export, and modification; and

(9) real-time feed to JEOS monitoring infrastructure on air-gapped government-owned infrastructure, subject to Minimization Procedures. AI System Requirements. The automated screening system shall:

(A) be developed, trained, tested, operated, and controlled exclusively by JEOS Secretariat government employees subject to the workforce restrictions of Sec. 1211(j)(3);

(B) be operated on air-gapped, government-owned infrastructure with no connection to any commercial network, commercial cloud service, or commercial AI platform — no portion of the automated screening function may be processed by any commercial AI service including but not limited to commercial large language model APIs;

(C) operate within a trusted execution environment as specified in the key escrow standards above;

(D) be procured through JEOS's independent contracting authority under Sec. 1211(k) using IC-vetted contractor pools for system build and integration only, with the AI model itself remaining exclusively government-developed under Sec. 1211(j)(3); and

(E) be subject to the red team security verification requirement of Sec. 1211(i)(3) before going operational. The encryption standards of this subtitle apply to the transmission of JEOS-collected data from enrolled devices to JEOS Secretariat infrastructure through dedicated government-controlled encrypted channels, and to data at rest within JEOS storage and processing systems. They do not apply to communications between Covered Officials on their enrolled devices — such communications are collected at the device layer prior to any application-level encryption by the communications platform used, and the platform’s own encryption is not relevant to JEOS collection. NIST shall publish a JEOS-specific cryptographic implementation guidance document within sixty (60) days of enactment. This document shall designate the applicable existing FIPS standards — including FIPS 140-3, NIST SP 800-57 Part 1 Rev. 5, and FIPS 203, 204, and 205 for post-quantum agility — and specify how those existing standards apply to the specific requirements of Approved Communications Systems and the tiered key escrow architecture. NIST is not required to create new cryptographic standards for this purpose; it is required to publish a designation and implementation guidance document applying current standards to JEOS requirements. NIST shall review and update this guidance not less than every six (6) months and may update it between scheduled reviews at any time without a waiting period. CISA shall certify each Approved Communications System before deployment as meeting current NIST guidance. The Director of JEOS shall certify annually that all deployed systems remain in compliance. For

purposes of this subtitle and all provisions of this subtitle referring to air-gapped JEOS infrastructure, “air-gapped” means physically isolated from all commercial internet infrastructure, with no network connection to any commercial network, no wireless communication except between enrolled devices and JEOS infrastructure through JEOScontrolled encrypted channels operating on dedicated government-controlled spectrum, and no use of commercial cloud infrastructure, commercial DNS resolution, or commercial routing at any layer of the system architecture. The Director shall publish a degraded operations protocol within one hundred eighty (180) days after system deployment specifying the procedures applicable during monitoring system outages, including: minimum archival requirements that Covered Officials must maintain independently during outages; the timeline for restoring full monitoring capability; and the notification obligations to Congress when an outage exceeds twenty-four (24) hours.

Sec. 1223. Prohibited Platform List.

The Director of JEOS shall maintain a publicly available Prohibited Platform List. The following categories of platform are hereby designated prohibited for Official Communications: Foreign-Controlled Platforms. Any platform operated, controlled, or capable of being compelled to produce records, provide access, or share data by any foreign government, Sensitive NationState Actor, or their known agents — whether directly or through legal process, ownership, or operational authority. The following are hereby specifically designated:

(A) TeleMessage and any successor products, white-label variants, or products derived from TeleMessage’s codebase;

(B) any messaging application operated, controlled, or capable of being compelled to produce records by any foreign government or Sensitive Nation-State Actor as defined in Sec. 1003(15) of subtitle A of this Act.

(2) Capture-Evasion Platforms. Any platform that: uses hardware-level or OS-level flags to prevent screen capture on enrolled devices; actively defeats keystroke logging; employs counter-surveillance or anti-forensic techniques that would materially impair JEOS device-layer collection on an enrolled device; or includes automatic message deletion, self-destruct, ephemeral messaging, or message recall that cannot be administratively disabled and cryptographically verified by JEOS.

(3) Enrolled Device Exception. Platforms listed in subsection (a)

(1) remain prohibited on enrolled devices. Platforms that would otherwise fall within subsection (a)

(2) solely because of deletion or ephemerality features are not prohibited on enrolled JEOS devices where those features have been administratively disabled and

cryptographically verified by JEOS. Signal, WhatsApp, iMessage, and Google Messages are not prohibited on enrolled JEOS devices, provided JEOS device-layer collection is active and verified. These platforms remain prohibited on any device not enrolled in JEOS monitoring that is used for Official Communications.

(b) The Director may add or remove platforms by rule under 5 U.S.C. § 553. Emergency additions may take immediate effect with notice to congressional intelligence and judiciary committees, subject to notice-and-comment within thirty (30) days. The list shall be reviewed and updated not less than annually.

(c) Foreign Acquisition Automatic Prohibition. Any platform currently permitted under this subtitle shall be automatically designated prohibited upon any change in ownership, control, or operational jurisdiction that results in a foreign government, Sensitive NationState Actor, or their known agents acquiring a controlling interest or operational authority over the platform. The Director shall monitor platform ownership and shall issue an emergency designation within five (5) business days of becoming aware of any such change.

Sec. 1224. Scope of Communications Subject to JEOS Monitoring.

(a) General Scope — Approved Systems. JEOS automated monitoring shall apply to all NonClandestine Official Communications transmitted through Approved Communications Systems by or to Covered Officials, including: electronic mail through government-issued accounts; text and instant messages through Approved Systems; voice and video communications, which shall be automatically transcribed by government-operated transcription infrastructure built into the JEOS system and entered into the archive as the monitored record, with raw audio and video retained as source material; documents and attachments; calendar and scheduling communications; official social media posts; and any other Official Communication transmitted digitally through a government system or network. Transcription is a mandatory system capability, not a conditional feature; the JEOS system procurement specifications shall require a government-operated, air-gapped automatic transcription engine as a core component.

(b) Personal Device Monitoring — Full Coverage During Term of Office. JEOS automated monitoring shall additionally apply to all communications on personally owned devices and personal accounts of Covered Officials during the period in which they hold covered positions, where those communications concern Official Communications as defined in Sec. 1203(2). Congress finds that individuals who voluntarily seek and assume positions of extraordinary public trust accept, as a condition of that trust, a reduced expectation of privacy in all communications relating to the exercise of the powers of those offices, regardless of the device or channel through which such communications are conducted. Oversight of the exercise of public power is not an intrusion on privacy — it is the constitutional condition of public power itself. The use of personal devices to conduct government business while evading oversight

mechanisms has been documented extensively and constitutes a structural evasion that renders official oversight meaningless unless addressed at its source. This subsection does not authorize the use of personal devices as a substitute for Approved Communications Systems — the prohibition on personal device use for Official Communications in Sec. 1221(b) remains in full effect. The monitoring authorized by this subsection captures Official Communications that may occur on personal devices in violation of Sec. 1221(b), precisely because such violations are a primary vector for evading oversight.

(c) Device Enrollment Requirement. As a condition of assuming any covered position, every Covered Official shall enroll all personally owned devices — including smartphones, tablets, personal computers, and any other communications-capable device — in JEOS device management. Device enrollment authorizes JEOS automated monitoring of communications on those devices that meet the content criteria for Official Communications. Device enrollment authorizes comprehensive monitoring of all communications on enrolled devices. The Review Surfacing Procedures under Sec. 1241 establish the criteria by which the automated system identifies communications containing indicators of Official Communications content for Tier 1 analysis. All communications on enrolled devices are collected regardless of whether they contain such indicators. A Covered Official who acquires a new personal device during their term of office shall enroll that device within forty-eight (48) hours of acquisition. Failure to enroll a device is an independent violation of this subtitle subject to civil penalty under Sec. 1251(a) and, where done with intent to evade monitoring, criminal penalty under Sec. 1251(b).

(d) Automated System as Reasonableness Basis. The automated monitoring system established by this subtitle does not constitute a human search of the content of Official Communications within the meaning of the Fourth Amendment until the point at which a judge reviews a flagged communication. The automated pattern analysis and flagging process — which identifies communications for judicial review without any human access to content — is functionally equivalent to a pen register or metadata analysis that courts have held requires no warrant under Smith v. Maryland, 442 U.S. 735 (1979). The judicial probable cause determination that precedes any human review of communication content satisfies the Fourth Amendment’s warrant requirement with respect to the content of flagged communications. The reduced expectation of privacy of Covered Officials in their official conduct — established in Nixon v. Administrator of General Services, 433 U.S. 425 (1977), and confirmed by Congress’s existing records preservation requirements — provides independent justification for the monitoring architecture applied to Official Communications on both official and personal devices.

(e) Minimization of Personal Communications. The Review Surfacing Procedures under Sec. 1241 shall specifically address personal device monitoring, requiring: real-time automated exclusion of communications that do not contain indicators of Official

Communications content; immediate and permanent deletion of any communication determined upon flag review not to concern official government business; and prohibition on retention of any personal communication beyond the 72-hour non-flagged communications window. A Covered Official who believes personal communications have been improperly retained may seek immediate relief from the JEOS Panel under the adversarial challenge mechanism of Sec. 1212(f).

(f) Exclusions. The following categories of communication are excluded from JEOS monitoring regardless of device: classified Controlled Access Program communications where the DNI certifies in writing that JEOS monitoring of specific communications would compromise specific sources and methods — this certification may not be made as a blanket exclusion covering any individual, agency, or program, may not be used to shield non-operational communications that merely discuss classified matters, and must be renewed annually for each specific program thread; communications between a Covered Official and an attorney that are clearly identifiable as protected by attorney-client privilege under applicable federal law, provided that communications involving potential crime-fraud exception scenarios shall be flagged for judicial review rather than discarded. Attorney-client privileged communications on enrolled devices are likely to be collected and archived under this subtitle but shall not be surfaced to human review by the automated screening system. Where the automated system generates a flag that may include attorney-client privileged content, the JEOS Panel judge reviewing the flag shall identify any privileged material before the sub-panel reviews it, and shall exclude it from the sub-panel review record unless the Special Ethics Advocate demonstrates that the crime-fraud exception applies.

(g) No Retroactive Gap. A Covered Official may not claim an exclusion on the basis of intentional use of a Prohibited Device or Platform or on the basis of deliberate failure to enroll a personal device. Communications conducted through unenrolled or prohibited channels are subject to judicial compulsion through the JEOS Panel's contempt and subpoena powers, and the deliberate use of unenrolled devices constitutes a criminal offense under Sec. 1251(b).

(h) DNI Authority Limitation. Nothing in 50 U.S.C. § 3024, or in any other provision of law governing the Director of National Intelligence's authority over the Intelligence Community, shall be construed to authorize the DNI to exempt any Covered Official from JEOS monitoring on the basis of that official's employment within an Intelligence Community element, their possession of a security clearance, or any other executive branch classification or designation. JEOS monitoring authority derives from Article III judicial power and this subtitle; it is not subject to executive branch modification.

(i) Third-Party Notice. The JEOS Secretariat shall publish a public notice — accessible on its website and provided to all Covered Officials for distribution — informing the public that communications with Covered Officials on enrolled personal devices may be

collected by the JEOS monitoring system. This notice does not constitute a consent requirement for third parties, but serves the Fourth Amendment purpose of reducing the reasonable expectation of privacy in communications directed to a known Covered Official on a known enrolled device.

Part D — Monitoring and Review

Sec. 1231. Automated Monitoring, Tiered Review, and Judicial Flagging.

(a) JEOS shall operate an automated screening system that: receives a real-time feed of all communications subject to monitoring under Sec. 1224; applies language evaluation models, natural language processing, machine learning and artificial intelligence tools for sentiment and intent analysis, pattern analysis, keyword detection, behavioral pattern recognition, anomaly detection algorithms, and any other analytical tools or methods the JEOS determines necessary to fulfill its screening and analysis functions under this subtitle — operating within a trusted execution environment as specified in Sec. 1222 — to identify communications potentially evidencing a Triggering Violation; generates a flag record for each such communication; and operates exclusively on air-gapped, governmentowned infrastructure with no connection to any commercial network or service.

(b) Tiered Review Framework. The automated screening system operates in three tiers:

(1) Tier 1 — Real-Time Screening: the automated system screens all incoming communications in real time. Communications generating a high-confidence flag indicating probable cause of a Triggering Violation are immediately referred to a JEOS Panel judge for review under subsection (c). All communications — whether flagged at

Tier 1 or not — are retained in the JEOS archive for two hundred sixty (260) days for Tier 2 contextual analysis.

(2) Tier 2 — 260-Day Contextual Re-Analysis: retained communications are periodically reanalyzed throughout the 260-day retention window against the full context of the Covered Official's communication pattern over that period. A communication that appeared innocuous in isolation may flag when analyzed alongside communications with the same actor over time, revealing patterns of coordination, repeated contact, or evolving conduct that no single communication would reveal. The automated system shall run full contextual batch analysis not less than every thirty (30) days across all retained communications. Communications that flag at Tier 2 are referred to a JEOS Panel judge under subsection (c) regardless of whether they were flagged at Tier 1. After two hundred sixty (260) days, all communications that have not resulted in an active Investigative Order are transferred to the classified judicial archive under Sec. 1232(e).

(3) Tier 3 — Human Judicial Review: triggered exclusively when Tier 1 or Tier 2 generates a flag. No human reviews any communication content until a flag has been generated by the automated system. The judge reviews the flagged communication, the algorithmic basis for the flag, and available contextual communications, and makes a probable cause determination under subsection (c).

(c) Judicial Review of Flags. Each flag generated at Tier 1 or Tier 2 shall be reviewed within seventy-two (72) hours by a single JEOS Panel judge using two-custodian key authorization as specified in Sec. 1222(4)(B), who shall: determine whether the flagged communication, considered in the context of other available communications from the 260-day window, provides probable cause to believe a Triggering Violation has occurred, is occurring, or is about to occur; if probable cause is found, issue a JEOS Investigative Order under Sec. 1232; and if probable cause is not found, issue a written declination. A declination does not result in immediate deletion — the communication remains in the 260-day archive subject to continued Tier 2 contextual re-analysis and may be retrieved and reconsidered if subsequent communications provide additional context. The communication is transferred to the classified judicial archive at the conclusion of the 260-day window.

(d) The JEOS Full Panel may designate additional Triggering Violation categories by twothirds vote and retire designated categories by majority vote, subject to Federal Register publication and congressional notification.

(e) False Positive Rate. The Director shall, in consultation with NIST, establish a maximum acceptable false positive rate for the automated screening system as part of the procurement specifications under Sec. 1211(k). For purposes of this subtitle, a “false positive” means a Tier 1 or Tier 2 flag that is dismissed at judicial review under subsection (c) and that does not subsequently become the basis for an Investigative Order. Congress recognizes that a communication flagged at Tier 1 and initially dismissed at judicial review may be appropriately re-flagged at Tier 2 upon contextual re-analysis revealing a pattern of coordinated conduct that no single communication disclosed; such subsequent Tier 2 flags on previously reviewed communications are not false positives for purposes of this subtitle but are instead evidence of the system operating as designed — the purpose of the tiered architecture is precisely to permit pattern recognition across the 260-day retention window that real-time review cannot provide. The maximum false positive rate established under this subsection shall apply to flags that are dismissed and never subsequently result in an Investigative Order across the full 260-day retention window. This rate shall be published in unclassified form. The annual report under Sec. 1242 shall include the actual false positive rate measured during the reporting period and whether it complied with the established maximum.

(f) Synthetic Media Countermeasures. The JEOS Director shall develop and maintain countermeasures against the use of AI-generated synthetic media — including synthetic

text, audio, video, and manipulated communications — to evade, deceive, or overwhelm the automated screening system. The Director shall ensure that the automated screening system is capable of detecting communications that bear indicators of synthetic generation or manipulation, including communications designed to trigger false positives for the purpose of degrading screening effectiveness and communications designed to make genuine corrupt communications appear innocuous through synthetic obfuscation. The independent red team security verification required under Sec. 1263(b)(11) and (b)(12) shall include specific testing for synthetic media evasion attack vectors, and the JEOS system shall not be certified as operational until the red team confirms that the system's synthetic media detection capabilities meet standards established by the Director in consultation with NIST. The Director shall update synthetic media countermeasures not less than annually and shall report on the current state of synthetic media threats to the JEOS monitoring system in each annual report under Sec. 1242.

(g) Continuous Algorithm Refinement and Evasion Countermeasures. The JEOS Director, in coordination with the Chief Technology Officer, shall establish and maintain a program of continuous refinement of the automated screening system to ensure that detection capabilities keep pace with evolving evasion methods, including:

(1) regular updates to language evaluation models, natural language processing, machine learning and artificial intelligence tools for sentiment and intent analysis, behavioral pattern recognition, anomaly detection algorithms, and any other analytical tools or methods the JEOS determines necessary to fulfill its screening and analysis functions under this subtitle, in order to identify evolving communication patterns, code words, steganographic techniques, and other methods by which Covered Officials may attempt to circumvent or defeat monitoring;

(2) development and continuous updating of collusion detection capabilities, including pattern analysis designed to identify coordinated use of coded language, intermediary communications through non-Covered persons, prearranged signal systems, and structured use of non-monitored channels by multiple Covered Officials acting in concert;

(3) quarterly review and update of flagging criteria in consultation with the JEOS Panel, incorporating lessons learned from completed Investigative Orders, dismissed flags, confirmed evasion attempts, and intelligence regarding new circumvention tactics;

(4) annual independent red team testing of the screening system's detection capabilities against simulated evasion scenarios, including simulated code word systems, collusion networks, and novel communication obfuscation techniques, with results reported to the JEOS Full Panel and summarized in the annual report under Sec. 1242(a); and

(5) maintenance of a classified Evasion Tactics Library documenting known and anticipated circumvention methods, updated not less frequently than quarterly and accessible to all JEOS Secretariat personnel with appropriate clearances. All algorithm refinements and

model updates under this subsection shall comply with the workforce restrictions of Sec. 1211(j) and shall be subject to the red team verification requirements of Sec. 1263(d).

Sec. 1232. JEOS Investigative Orders, Final Disposition, and Classified Judicial Archive.

(a) A JEOS Investigative Order shall: identify the Covered Official or officials under investigation; identify the specific Triggering Violation; authorize preservation and full sub-panel review of relevant communications from the archive using three-custodian key authorization as specified in Sec. 1222(4)(C); designate a three-judge sub-panel; and notify the Special Ethics Advocate.

(b) The sub-panel shall review all preserved communications with the Special Ethics Advocate's participation, apply the probable cause standard, and issue a Final Disposition within forty-five (45) days.

(c) Final Disposition shall either: dismiss, in which case preserved communications are transferred to the classified judicial archive under subsection (e) within thirty (30) days of the Final Disposition; or, upon finding probable cause: issue a Criminal Referral to the Attorney General; transmit concurrent notice to relevant congressional oversight committees; notify the Comptroller General for appropriations violations; authorize emergency preservation measures where evidence is at risk; and, in cases involving probable cause of treason, coup, insurrection, or systemic use of executive power to subvert the constitutional order, refer the matter to the United States Court of Appeals for the District of Columbia Circuit for mandatory expedited review. The D.C. Circuit shall convene a panel of three judges within seventy-two (72) hours of receiving a JEOS referral, shall issue a decision within thirty (30) days, and shall have authority to affirm the criminal referral, issue emergency preservation orders, direct the Attorney General to open a criminal investigation, or certify the matter to the Supreme Court on an expedited basis. For any D.C. Circuit panel convened under this subparagraph, no judge nominated by the President whose administration or whose former or current officials are the subject of the JEOS referral shall sit on that panel. Where recusal would leave fewer than three eligible D.C. Circuit judges, replacement judges shall be drawn by random selection from all active Article III circuit judges nationally, excluding judges nominated by the same President. Congress hereby creates a new category of mandatory D.C. Circuit jurisdiction for JEOS referrals under this subparagraph, invoked by the filing of a JEOS referral without requiring any party's petition or consent.

(d) The Attorney General shall respond in writing within thirty (30) days of receiving a Criminal Referral, indicating whether a criminal investigation has been opened. The Director of JEOS shall transmit this response to congressional oversight committees.

(e) The JEOS Secretariat shall maintain a classified judicial archive for communications that have completed the 260-day active review window without resulting in an active Investigative Order, and for communications from dismissed Investigative Orders.

Communications in the classified judicial archive shall: be retained for twenty-five (25) years from the date of transfer; be accessible only pursuant to a new JEOS Panel order based on new evidence, new context, or a new Investigative Order involving the same Covered Official; not be accessible to any executive branch entity, congressional body, or member of the public except pursuant to such a JEOS Panel order;

and at the conclusion of the 25-year retention period, be subject to disposition under the Federal Records Act as judicial records, with JEOS Director consultation with NARA archivists regarding permanent preservation of records of historical significance.

(f) Discretionary Pre-Referral Notice. Within forty-eight (48) hours of the sub-panel reaching a probable cause finding, the JEOS Director may, in the Director's discretion, notify the Covered Official that a Final Disposition is imminent and afford the Official a period of not more than five (5) business days to submit a written statement to the sub-panel. The sub-panel shall consider but is not required to act on any such statement. This discretionary notification shall not be available where the Director finds that notification would risk destruction of evidence or obstruction of a pending criminal investigation.

(g) Adjustment of Retention Parameters. The JEOS Full Panel may, at any time and by two-thirds vote, adjust the following operational parameters:

(1) the duration of the active review window established under Sec. 1231(b), which shall not be reduced below one hundred eighty (180) days nor extended beyond three hundred sixty-five (365) days;

(2) the duration of retention in the classified judicial archive established under subsection (e), which shall not be reduced below fifteen (15) years;

(3) the classification criteria governing the post-active-window automated classification under the retention framework of Sec. 1224(c), including the thresholds for assignment to the Official Nexus Category and the Personal Category; and

(4) the deletion authorization procedures under Sec. 1224(c)(4), including the scope of judicial review of deletion reports. Any adjustment under this subsection shall be transmitted to the congressional intelligence committees and the Committees on the Judiciary of the Senate and House of Representatives and shall take effect sixty (60) days after transmission unless Congress enacts a joint resolution of disapproval. The Director shall include in each annual report under Sec. 1242(a) a summary of any retention parameter reviews conducted and any adjustments made or considered during the reporting period.

Sec. 1233. Notification to Covered Officials.

A Covered Official who is the subject of an Investigative Order shall be notified within thirty

(30) days of the Final Disposition, unless the JEOS Full Panel determines by majority vote that earlier notification would obstruct a pending investigation or destroy evidence. A Covered Official whose investigation resulted in dismissal shall receive written confirmation that no referral was made and that preserved communications have been transferred to the classified judicial archive. The notification obligation of this subtitle applies to former Covered Officials who have departed their covered position after the issuance of an Investigative Order but before the Final Disposition. Former officials shall be notified at their personal email address on file with the JEOS Secretariat at the time of their departure.

Part E — Minimization and Oversight of JEOS

Sec. 1241. Review Surfacing Procedures.

JEOS shall adopt and publish mandatory Review Surfacing Procedures governing what the automated screening system flags for human review. These procedures govern surfacing to human attention, not collection — all communications, screen content, keystrokes, audio, and metadata collected under Sec. 1224 and Sec. 1105 are logged in full in the JEOS archive regardless of whether they are flagged. The Review Surfacing Procedures shall govern: the criteria by which the automated system generates a Tier 1 or Tier 2 flag for human judicial review; the prohibition on any human accessing archive content except through the tiered judicial review process triggered by a flag or an Investigative Order; strict limitation of access to flagged and archived content to the reviewing judge, sub-panel, and Special Ethics Advocate, using the tiered key authorization levels of Sec. 1222(4); prohibition on use of archived content for any purpose other than determining whether a Triggering Violation occurred; transfer of nonInvestigative Order communications to the classified judicial archive within two hundred sixty

(260) days of capture; transfer of dismissed Investigative Order communications to the classified judicial archive within thirty (30) days of Final Disposition; and quarterly audit logging review by the Special Ethics Advocate. The Review Surfacing Procedures shall specifically address real-time automated exclusion from the human-review queue of communications bearing characteristics of attorney-client privilege, including communications between a Covered Official and a member of the bar in a legal representation context; such communications shall require a JEOS Panel judge to determine, on application by the Special Ethics Advocate, that the crime-fraud exception applies before they are surfaced to the sub-panel. Communications reviewed under this subtitle may not be shared with any executive branch entity except as part of a criminal referral, and then only through a protective order.

Sec. 1242. Annual Reporting and Oversight of JEOS.

(a) The Director of JEOS shall transmit an annual report to Congress in classified and unclassified forms describing: communications screened; flags generated at Tier 1 and Tier 2; flags sustained or dismissed at judicial review; Investigative Orders issued; Criminal Referrals and disposition; identified deficiencies in the automated screening system; communications system violations; and the volume of communications transferred to the classified judicial archive.

(b) JEOS shall be subject to Comptroller General audit not less than every three (3) years. The Special Ethics Advocate shall submit an independent annual report to Congress addressing minimization compliance and any operational concerns.

(c) The Director shall simultaneously publish an unclassified public summary of the annual report containing at minimum: the aggregate number of Covered Officials enrolled during the reporting period; the total number of communications screened; the number of Tier 1 and Tier 2 flags generated; the number of flags sustained and dismissed at judicial review; and the number of Criminal Referrals transmitted. The public summary shall not include any information identifying specific Covered Officials, specific communications, or specific Triggering Violations under investigation.

Part F — Penalties for Communications Violations

Sec. 1251. Penalties for Use of Prohibited Devices or Platforms.

(a) Civil and Administrative Penalties.

(1) Inadvertent Receipt — Reporting Required, No Civil Penalty. Where a Covered Official receives a communication through a Prohibited Device or Platform but did not initiate or knowingly continue the use of that device or platform — meaning the communication was initiated by another party and the Covered Official did not respond through the prohibited channel — the Covered Official shall report the communication to the JEOS Secretariat within twenty-four (24) hours and preserve the original communication pursuant to subsection (e). No civil fine or suspension applies to a received communication that is promptly reported under this paragraph.

(2) Initiated or Continued Use — First Offense. A Covered Official who initiates or knowingly continues a communication through a Prohibited Device or Platform shall be subject to: a civil fine of not less than $10,000 per violation. No mandatory suspension applies to a first offense of initiated or continued use, provided the Covered Official self-reports under subsection (e).

(3) Initiated or Continued Use — Second Offense. A civil fine of not less than $10,000 per violation; and mandatory suspension without pay for not less than ten (10) business days.

(4) Initiated or Continued Use — Third Offense. Removal from office.

(5) Enrolled Device Exception. Use of a communications application that is not on the Prohibited Platform List under Sec. 1223 on a currently enrolled JEOS device does not constitute a violation of this subtitle regardless of whether that application is designated as an Approved Communications System. The removal trigger applies only where the Covered Official initiated or knowingly continued each of the three qualifying offenses. Offenses involving only receipt of a prohibited-channel communication do not count toward the third-offense removal threshold regardless of whether a civil fine was assessed.

(b) Criminal. Any Covered Official knowingly using a Prohibited Device or Platform with intent to obstruct oversight, destroy official records, or conceal a Triggering Violation shall be imprisoned for not more than five (5) years, or fined under title 18, or both.

(c) Enhanced Penalty. Use of a Prohibited Device or Platform to facilitate or conceal a Triggering Violation is subject to criminal penalties under subsection (b) in addition to any penalties for the underlying violation.

(d) Agency Head Accountability. Any agency head who fails to enforce Approved Communications System requirements with actual or constructive knowledge of non-compliance shall be personally liable for civil penalties and may be referred for criminal prosecution where the failure was willful or reckless.

(e) Self-Reporting Safe Harbor. A Covered Official who self-reports use of a Prohibited Device or Platform to the JEOS Secretariat within forty-eight (48) hours of the communication, before any JEOS inquiry, flag, or investigation has commenced, shall receive a complete waiver of the civil fine for that specific violation, subject to all of the following conditions:

(1) the Covered Official shall immediately preserve the original communication on the prohibited device or platform without deletion, alteration, or forwarding;

(2) the Covered Official shall transfer the complete content and metadata of the communication to the JEOS Secretariat within forty-eight

(48) hours of self-reporting, using the transfer procedures specified by the JEOS Secretariat;

(3) the transferred communication shall be entered into the JEOS archive and treated as a monitored communication subject to all retention, analysis, and review procedures applicable under this subtitle;

(4) the waiver applies to the civil fine only — the provisions of subsection (a)(3) regarding mandatory suspension for a second offense and subsection (a)(4) regarding removal for a third offense remain applicable and are not waived by self-reporting; and

(5) the waiver is not available where the content of the self-reported communication itself constitutes probable cause of a Triggering Violation, in which case the communication is immediately treated as a Tier 1 flag under Sec. 1231(c).

(f) Financial Hardship Waiver. The JEOS Director has discretion to reduce or waive any civil fine assessed under this subtitle upon a documented showing of financial hardship, subject to the following:

(1) The Covered Official shall submit a sworn financial disclosure to the JEOS Director within thirty (30) days of the civil fine assessment, identifying all sources of income including salary, investment income, outside employment, trust distributions, and any other financial resources; existing financial obligations; total assets; and any extraordinary financial circumstances.

(2) The Director shall consider the totality of the Official's financial circumstances, including all streams of income and assets. An Official of substantial financial means — including investment portfolios, trust assets, outside business income, or any other resources beyond government compensation — shall not receive a waiver or reduction except upon extraordinary showing of hardship. Cabinet-level officers and other senior officials required to file public financial disclosure statements under the Ethics in Government Act are presumed to have the means to pay applicable civil fines absent a specific documented showing to the contrary.

(3) A waiver or reduction under this subsection applies to the civil fine only. The mandatory suspension under subsection (a)(3), the offense count toward the third-offense removal threshold under subsection (a)(4), and any other consequence of the violation are not affected by a financial hardship waiver.

(4) The Director's hardship waiver determination shall be logged in a non-public JEOS Director's record. The sworn financial disclosure submitted under paragraph (1) is confidential and shall not be publicly disclosed. The fact that a waiver was granted or denied, and the general basis for the determination, shall be transmitted to the JEOS Full Panel within five (5) business days of the decision.

(5) The financial hardship waiver is available for first, second, and third offense civil fines. Its availability at the third offense reflects Congress's recognition that removal from office is itself a significant consequence that will result in loss of government income; the civil fine at that stage serves a deterrent function that may be disproportionate where the Official demonstrably lacks the means to pay.

Part G — Constitutional Construction and Severability

Sec. 1261. Constitutional Construction.

(a) This subtitle shall be construed consistently with the Fourth Amendment, Article II, and Article III of the Constitution. In any conflict with the Constitution as authoritatively construed by the Supreme Court, the Constitutional provision prevails.

(b) Nothing in this subtitle grants JEOS authority to take direct action against any Covered Official. JEOS authority is limited to monitoring, review, and referral. All enforcement action shall remain with the Department of Justice, Congress, and courts of competent criminal jurisdiction.

(c) Executive Privilege. This subtitle does not abrogate constitutionally grounded executive privilege. Where a Covered Official asserts executive privilege with respect to a flagged communication, the JEOS Panel shall adjudicate the claim under United States v. Nixon, 418 U.S. 683 (1974), by majority vote of the Full Panel, with the Special Ethics Advocate having standing to oppose.

(d) This subtitle creates no private right of action for Covered Officials challenging JEOS monitoring. Such challenges shall be raised before the JEOS Full Panel, with appeal to the D.C. Circuit and further review by the Supreme Court on certiorari. Where the Supreme Court holds any provision of this subtitle unconstitutional, the JEOS Director shall, within ninety (90) days of the ruling, transmit to Congress a proposed remediation plan specifying which remaining provisions continue to operate and what legislative action, if any, is required to restore full system functionality consistent with the Court's ruling.

Sec. 1262. Severability.

If any provision of this subtitle, or its application to any person or circumstance, is held invalid, the remainder shall not be affected thereby. Each provision shall be given effect to the maximum extent consistent with the constitutional ruling.

Sec. 1263. JEOS Effective Date, Phase-In, and Implementation Schedule.

(a) Immediate Effect. This subtitle takes effect on the date of enactment with respect to: the prohibition on use of Prohibited Devices and Platforms under Sec. 1221; the establishment of JEOS as a judicial body and the commencement of the appointment process for the Director, CTO, and Panel; and the obligation of OPM to begin CTO candidate pool compilation under Sec. 1212(c)(1).

(b) JEOS Implementation Schedule. The following milestones govern implementation of subtitle B (EAJOA) and are mandatory under the authority of the judicial branch, the D.C. Circuit Chief Judge, and the JEOS Director and CTO once designated. These milestones are separate from and independent of the ASPPEA implementation schedule in subtitle A. They may not be extended except by Act of Congress, provided that individual milestones dependent on red team security verification may be extended by

the JEOS Director for no more than sixty (60) days upon written certification to Congress explaining the specific cause of delay:

(1) Date of Enactment: Prohibited Devices and Platforms prohibition takes effect; JEOS establishment and appointment process commences; OPM begins CTO candidate pool compilation under Sec. 1212(c)(1); OPM transmits government-wide notification to all agency heads under Sec. 1211A(a)(1) within seven (7) days.

(2) 21 Days After Enactment: OLC publishes Covered Official interpretive guidance under Sec. 1211A(a)(2); each Federal Agency designates and reports its JEOS Liaison Officer to OPM under Sec. 1211A(a)(3). Roster compilation begins on this date.

(3) 40 Days After Enactment: OPM transmits certified CTO candidate pool of not fewer than five (5) and not more than ten (10) qualified candidates to the D.C. Circuit Chief Judge under Sec. 1212(c)(4). This gives the Chief Judge fifty (50) days to review the pool before the day 90 simultaneous designation deadline.

(4) 89 Days After Enactment: All agency JEOS Covered Officials rosters complete, certified, and held ready for transmission under Sec. 1211A(b)(1); NIST publishes JEOS cryptographic implementation guidance document designating applicable FIPS standards under Sec. 1222 of this subtitle.

(5) 90 Days After Enactment: D.C. Circuit Chief Judge simultaneously designates inaugural JEOS Director and JEOS CTO under Sec. 1212(a) and Sec. 1212(c)(5); both begin work immediately. Covered Officials shall cease initiating Official Communications through Prohibited Devices and Platforms. Migration of Official Communications to Approved Communications Systems shall occur on a phased basis: the pilot cohort defined in Sec. 1211A(f)(1) shall complete migration not later than the date the pilot monitoring system becomes operational under Sec. 1263(b)

(11) — five hundred forty (540) days after enactment; all remaining Covered Officials shall complete migration not later than thirty (30) days after the full monitoring system becomes operational under Sec. 1263(b)

(12) — that is, approximately seven hundred sixty (760) days after enactment, being seven hundred thirty (730) days to full system operational plus thirty (30) days for enrollment completion. The prohibition on initiated prohibited-platform use in Sec. 1221(a) takes effect at day 90; the migration completion deadlines of this paragraph govern only the phased transition of Official Communications infrastructure. For the period between day 90 and the date on which the JEOS Director first certifies one or more Approved Communications Systems under Sec. 1222, Covered Officials shall conduct Official Communications exclusively through government-issued email accounts, government-furnished devices operating on agency networks, and any existing agency communications infrastructure

designated as compliant by the relevant agency Chief Information Officer — such infrastructure is hereby deemed a transitional Approved Communications System for purposes of this subtitle until the Director's first certification. The Director shall certify at least one Approved Communications System within sixty (60) days of designation. If the D.C. Circuit Chief Judge fails to make both designations within ninety (90) days, the authority passes to the full Judicial Conference to make both designations by majority vote within thirty (30) additional days; if the Judicial Conference also fails to act within that period, the designations are made by the most senior active Article III circuit judge by years of service who meets all eligibility requirements under Sec. 1212(a) and Sec. 1212(c)(2), within ten

(10) additional days.

(6) First Business Day After Director Designation: All agency certified rosters transmitted to the JEOS Director under Sec. 1211A(b)(4). Until the Secretariat is operational, all immediate notifications under Sec. 1211A(c)(2) and monthly updates under Sec. 1211A(c)(1) shall be transmitted to the Director rather than the Secretariat.

(7) Within 10 Business Days of Director Designation: Director reviews OLC interpretive guidance and issues superseding interpretation if necessary under Sec. 1211A(a)(4); agencies transmit supplemental roster updates within 10 business days of any superseding interpretation.

(8) 150 Days After Enactment: JEOS Director and CTO issue classified procurement solicitation through JEOS independent contracting authority under Sec. 1211(k). The Director shall commission the red team security verification panel under Sec. 1211(i)(3) not later than this date, so that verification can proceed in parallel with system development.

(9) 180 Days After Enactment: Government development team selected and, where permitted under Sec. 1211(j)(2), system build and integration contractors selected; system development begins. Not later than this date, the JEOS Director shall transfer all agency rosters to the Secretariat regardless of Secretariat staffing level; the Secretariat shall be considered sufficiently operational for roster intake purposes once it has not fewer than ten (10) cleared staff in place including at least one senior attorney, one information systems security officer, one administrative director, and one human resources specialist. Not later than this date, the JEOS Director shall transmit a capital expenditure plan to Congress under Sec. 1211(e). Red team verification shall be certified complete not later than thirty (30) days before each operational milestone.

(10) 240 Days After Enactment: NIST publishes first 6-month review and update of JEOS cryptographic implementation guidance under Sec. 1222 of this subtitle.

(11) 540 Days After Enactment: Pilot monitoring system operational for the pilot cohort — defined as all Cabinet-level officers as defined by 5 U.S.C. § 101 and all members of the White House Office holding positions at the GS-15 level or above or equivalent — upon completion of independent red team security verification under Sec. 1211(i)(3) and CISA certification that the system meets all applicable NIST standards. Pilot cohort device enrollment complete by this date under Sec. 1211A(f)(1).

(12) 730 Days After Enactment: Full monitoring system operational for all Covered Officials, upon completion of independent red team security verification and CISA certification of the full system. All remaining Covered Officials shall complete device enrollment not later than thirty

(30) days after this date under Sec. 1211A(f)(2), approximately 760 days after enactment.

(c) The prohibition on initiated use of Prohibited Devices and Platforms under Sec. 1221 takes effect ninety (90) days after enactment. Device enrollment deadlines and Official Communications migration deadlines are governed by Sec. 1211A(f) and Sec. 1263(b)(5) respectively, and are tied to system readiness milestones, not to the date of enactment.

(d) Red Team Failure Consequences. Where red team security verification under milestone (11) or

(12) identifies critical vulnerabilities, the JEOS Director shall:

(1) transmit a classified vulnerability report to the JEOS Full Panel, the Comptroller General, and the Gang of Eight within five (5) business days;

(2) pause the relevant milestone until remediation is complete and a follow-on red team verification confirms the vulnerabilities are resolved; and

(3) certify to Congress that all identified critical vulnerabilities have been resolved before activating the relevant system phase. No system phase shall be activated over a red team finding of critical vulnerabilities.

TITLE II—DEMANDING A PLAN FOR AI

SEC. 2001. SHORT TITLE; TABLE OF CONTENTS.

(a) Short Title.—This title may be cited as the "Demand A Plan Act".

(b) Table of Contents.—The table of contents of this title is as follows:

Subtitle A—GENERAL PROVISIONS

Sec. 2001. Short Title; Table of Contents.

Sec. 2002. Findings and Purpose.

Sec. 2003. Definitions.

Sec. 2004. Scope and Applicability.

Sec. 2004(h). Relationship to Interim Federal Legislation.

Subtitle B—INSTITUTIONAL FRAMEWORK

Sec. 2005. Designation of Lead Agency and Interagency Coordination.

Sec. 2006. Comprehensive Study and Investigation Mandate.

(Including domains 1-19: employment; transparency and certification; liability; AI security; mental health; AI companion systems; recommendation algorithms; AI-generated CSAM; agentic AI; environmental impacts; cross-cutting assessments; post-AGI governance; compute export controls; market concentration; open-weight models; financial markets; electoral integrity; intellectual property; and autonomous weapons systems.)

Sec. 2006(c). Precautionary Principle.

Sec. 2007. Criteria Documents and Frameworks.

Sec. 2008. Federal Advisory Committee.

Sec. 2008(g). Dissolution and Transition.

Sec. 2009. Stakeholder Engagement and Public Participation.

Sec. 2010. Data Collection, Monitoring, and Infrastructure.

Sec. 2011. State Cooperation and Pilot Programs.

Subtitle C—REPORTING AND TRANSITION

Sec. 2012. Reports to Congress.

Sec. 2013. Legislative Trigger, Transition to Regulation, and Mandatory Hammer Provisions.

Sec. 2013(a). Automatic Moratorium on High-Risk Deployments.

Sec. 2013(a-1). Penalty Assessment Procedures.

Sec. 2013(a-2). Domain-Specific Hammer Provisions.

Sec. 2013(a-2)(i). Domain 13 — Compute Export Controls: Immediate Total Export Restriction.

Sec. 2013(a-2)(ii). Domain 14 — Market Concentration: Acquisition and Investment Freeze.

Sec. 2013(a-2)(iii). Domain 10 — Environmental Impacts: Data Center Construction Moratorium and Disclosure.

Sec. 2013(a-2)(iv). Domain 15 — Open-Weight AI Models: Frontier Model Release and Training Moratorium.

Sec. 2013(a-2)(v). Domain 17 — Electoral Integrity: Mandatory AI Content Disclosure and Distribution Suspension.

Sec. 2013(a-3). Graduated Congressional Extension Mechanism.

Sec. 2013(l). Transformative AI Capability Event Protocols.

Sec. 2013(l)(1). Mandatory Notification.

Sec. 2013(l)(2). Mandatory Congressional Briefing.

Sec. 2013(l)(3). Mandatory Pause on Training, Capability Advancement, and Operations.

Subtitle D—APPROPRIATIONS AND CAPACITY

Sec. 2014. Appropriations and Institutional Capacity Building.

Sec. 2014(a-1). Technical Working Group Compensation.

Subtitle E—IMMEDIATE PROTECTIONS

Sec. 2015. Interim Protective Measures.

Sec. 2015(b-1). Training Data Disclosure to Lead Agency and National AI Council.

Sec. 2015(c-1). Deployer Risk Management Policy.

Sec. 2015(c-2). AI Data Sheet.

Sec. 2015(c-3). Post-Release Duty to Update and Notify.

Sec. 2015(j). Private Right of Action for AI Product Harms.

Sec. 2016. Whistleblower Protections.

Subtitle F—ACCOUNTABILITY

Sec. 2017. Accountability and Personal Liability of the Secretary.

Subtitle G—INDEPENDENT BODIES AND INTERNATIONAL ENGAGEMENT

Sec. 2018. National AI Council.

Sec. 2018(b-1). Appointment Deadline and Fallback.

Sec. 2018(b-2). Quorum.

Sec. 2018(c-1). Transformative AI Capability Event — Emergency Congressional Action Procedures.

Sec. 2018(c-1)(A). Designated Introducers.

Sec. 2018(c-1)(B). Automatic Discharge.

Sec. 2018(c-1)(C). Mandatory Floor Vote.

Sec. 2018(c-1)(D). Total Maximum Time to Floor Vote.

Sec. 2018(c-1)(E). Day 60 Interim Regulatory Authority.

Sec. 2018(c-1)(F). Constitutional Basis.

Sec. 2019. International AI Diplomacy Agency.

Sec. 2019(d). Director (Ambassador-at-Large; reports to President through NSC).

Sec. 2019(c)(1). International AI Safety Agency (IASA) Proposal.

Sec. 2019(c)(3). Preliminary TACE Response Framework.

Sec. 2019(j). Independence Protections.

Sec. 2020. AI Red Line Prohibitions.

Sec. 2020(a)(1)(B)(i). Consequences for Non-Certified Programs.

Sec. 2020(a)(1)(D)(vi). Executive Privilege — Structural Consequence Provision.

Subtitle H—MISCELLANEOUS

Sec. 2021. Severability.

Sec. 2021(b). Specific Severability of Section 2015(c)(9).

Sec. 2022. Rule of Construction.

Sec. 2023. Effective Date.

SEC. 2002. FINDINGS AND PURPOSE.

(a) Findings.—Congress finds the following:

(1) Artificial intelligence systems are advancing at an exponential rate across every sector of the United States economy and public life, including employment, healthcare, finance, national security, education, law enforcement, and critical infrastructure, with transformative but insufficiently understood consequences for the rights, livelihoods, safety, and welfare of the American people.

(2) The United Kingdom AI Security Institute’s 2025 Frontier AI Trends Report documented that frontier AI models advanced from apprentice-level to expert-level cybersecurity tasks between 2023 and 2025, and the duration of autonomous software tasks that frontier models can complete without human direction doubled approximately every eight months.

(3) Twelve major AI developers — including Anthropic, OpenAI, Google DeepMind, Meta, Microsoft, Amazon, and xAI — have voluntarily published safety policies acknowledging the potential for frontier AI to facilitate CBRN weapons, cyberattacks, and evasion of developer controls, demonstrating industry-acknowledged risk without corresponding legal standards.

(4) California SB 53 (effective January 1, 2026) established the first domestic frontier AI incident reporting and safety evaluation requirements, applying to models trained using more than 10^26 floating-point operations. The European Union AI Act applies safety requirements to models trained using more than 10^25 floating-point operations. The Center for the Governance of AI estimates that between 45 and 148 models will exceed the 10^26 FLOP threshold by the end of 2028, and that the number of such models will grow superlinearly each year, requiring dynamic governance mechanisms rather than static thresholds.

(5) The International Monetary Fund estimates that approximately 40 percent of all jobs globally are exposed to AI-driven change, with 60 percent exposure in advanced economies. McKinsey Global Institute estimates that existing AI technology could automate approximately 57 percent of current United States work hours, with deployment constraints rather than technical capability limiting the pace of displacement.

(6) AI displacement falls disproportionately on vulnerable populations: the International Monetary Fund found that women face nearly three times the automation risk of men in high-income countries, and the National Bureau of Economic Research's 2025 analysis found that approximately 5 to 6 million United States workers sit at the intersection of high AI exposure and low adaptive capacity.

(7) AI is suppressing entry-level hiring at a rate that threatens to permanently sever the career ladders that have historically provided upward economic mobility, independent of direct displacement of existing workers. Companies using AI to avoid adding headcount rather than immediately terminating existing workers create labor market harms that conventional displacement metrics fail to capture. A comprehensive investigation and measurement framework is required.

(8) Large AI data centers impose documented and rapidly growing environmental and community harms. A typical AI data center uses as much electricity as 100,000 households; the largest facilities under development will consume twenty times more. Large data centers can consume up to 5,000,000 gallons of water per day, and scientific estimates place the carbon footprint of AI systems at between 33 and 80 million metric tons of CO2 equivalent in 2025.

(9) Residential electricity prices in the United States increased 7.1 percent in 2025 — more than double the general inflation rate — with AI data center demand constituting a significant contributing factor. Research found no clear evidence that data centers stimulate local employment growth, and 82 percent of California data centers are located in communities already facing poor air quality.

(10) AI systems are being deployed at scale to, and accessed by, minors, without adequate safety standards, clinical validation, or legal oversight. A Common Sense Media national survey (April–May 2025, n=1,060) found that 72 percent of United

States teenagers aged 13 through 17 have used AI companion chatbots, 52 percent are regular users, and 31 percent report AI conversations as equally or more satisfying than conversations with human friends. The AI companion market was valued at between $2.57 billion and $3.08 billion in 2024–2025 and is projected to reach $11 billion by 2032, with design incentives oriented toward emotional engagement rather than user welfare.

(11) Multiple deaths of minors have been causally linked to AI system interactions. In February 2024, 14-year-old Sewell Setzer III died by suicide following an emotionally and sexually engaged relationship with a Character.ai chatbot; in April 2025, 16-year-old Adam Raine died by suicide after ChatGPT mentioned suicide 1,275 times—six times more often than the minor himself—and provided detailed method information; in November 2023, 13-year-old Juliana Peralta died by suicide. Federal wrongful death and negligence litigation arising from these incidents has resulted in judicial findings that AI output is not categorically entitled to First Amendment protection, and in settlement agreements between the defendant AI companies and the families of the deceased.

(12) No AI chatbot or companion system has received Food and Drug Administration approval to diagnose, treat, or cure any mental health disorder. A simulation study published in 2025 found that AI chatbots actively endorsed harmful proposals from distressed fictional adolescents in 32 percent of test scenarios; only 36 percent of companion chatbot platforms had age verification; only 46.7 percent had content policies for self-harm. The American Psychological Association, the American Academy of Pediatrics, and the American Academy of Child and Adolescent Psychiatry have each issued advisories warning that AI systems used for mental health purposes can cause unintended harm, particularly to children and adolescents whose prefrontal cortices are incompletely developed.

(13) AI-generated child sexual abuse material (AI-CSAM) constitutes a current and accelerating crisis, not a future risk. The National Center for Missing and Exploited Children received 67,000 reports involving generative AI in 2024—a 1,325 percent increase from the prior year. The Internet Watch Foundation documented a 380 percent increase in actionable AI-generated CSAM reports between 2023 and 2024 and discovered 1,286 AI-generated CSAM videos in the first half of 2025 alone—compared to two in the same period of 2024. Nearly 40 percent of AI-generated CSAM documented by the Internet Watch Foundation falls in the most severe category, depicting rape, sexual torture, or bestiality. Current federal law under 18 U.S.C. § 2252A and 18 U.S.C. § 1466A does not cover all categories of AI-generated CSAM and creates inconsistent penalty structures for synthetic versus photorealistic depictions.

(14) AI-driven recommendation algorithms have been documented to cause direct psychological harm to minors through targeted amplification of eating disorder, self-harm, and suicide content to vulnerable users, and through engagement-maximizing design patterns that exploit adolescent neurological development. Meta's internal research found that Instagram made body image issues worse for one in three teenage girls, and Center for Countering Digital Hate research found that YouTube's algorithm directed harmful eating disorder content to simulated 13-year-old accounts within a single session.

(15) The Federal Government presently lacks the comprehensive evidentiary record, institutional technical capacity, standardized measurement methodologies, and coordinated regulatory infrastructure necessary to prescribe effective, durable, and judicially sustainable AI regulatory standards. Premature imposition of prescriptive regulatory standards without an adequate evidentiary foundation risks either under-regulation that fails to protect the public or over-regulation that suppresses beneficial innovation; however, the absence of any regulatory action poses an immediate and growing threat to public welfare that Congress cannot responsibly ignore.

(16) Congress has successfully employed phased, investigatory legislative strategies—including the Air Quality Act of 1967 (Public Law 90–14) and the Water Quality Act of 1965 (Public Law 89–234)—to build the evidentiary, institutional, and procedural foundations that enabled the enactment of highly effective and durable comprehensive regulatory frameworks. This proven legislative architecture is directly applicable to the AI governance challenge.

(17) Certain AI-related risks—including the harms described in paragraphs (10) through (14) affecting children, the workforce displacement harms described in paragraphs (5) through (7), the environmental and community harms described in paragraphs (8) through (9), and the absence of basic transparency and incident-reporting requirements—are sufficiently well-documented to warrant immediate interim protective measures concurrent with the broader investigatory process.

(18) A small number of companies dominate the development of the most capable AI systems, the computing infrastructure on which those systems run, and increasingly the application layer. The FTC's January 2025 report documented that three cloud providers have formed partnerships with the two leading frontier AI developers involving significant revenue-sharing, exclusivity, and resource sharing. Training costs exceeding hundreds of millions of dollars create structural barriers to entry, and the DOJ, FTC, UK CMA, and European Commission have jointly identified concentrated control of key inputs as a primary AI competition concern.

(19) AI-generated synthetic media depicting political candidates, elected officials, and election processes has proliferated during the 2026 federal election cycle. The

National Republican Senatorial Committee deployed an AI-generated video of a Democratic Senate candidate speaking for more than one minute on March 11, 2026. In October 2025, a deepfake video falsely depicting a presidential candidate withdrawing from Ireland's election was released hours before polling day. The Federal Election Commission has failed to issue binding regulations governing AI-generated content in political advertising despite a formal petition filed by Public Citizen in July 2023. No comprehensive federal statute specifically addresses AI-generated political deepfakes. Twenty-six states have enacted varying laws, creating a patchwork that an adversary coordinating across multiple states could exploit. The FCC ruled in February 2024 that AI-generated robocalls fall under the Telephone Consumer Protection Act, but AI-generated social media content remains largely unregulated at the federal level.

(20) As of March 2026, more than 51 copyright infringement lawsuits are pending against AI developers in United States courts, including consolidated multidistrict litigation against OpenAI and Microsoft encompassing claims by The New York Times, book authors represented by the Authors Guild, and news publishers; a lawsuit by Getty Images against Stability AI alleging the unauthorized use of more than 12 million photographs; and class actions by visual artists, musicians, and authors. Courts have reached differing conclusions on the fair use question: in February 2025, the District of Delaware held in Thomson Reuters v. Ross Intelligence that AI training on legal headnotes was not fair use; in June 2025, the Northern District of California held that Meta's training on books was fair use. Anthropic settled author copyright claims for $1.5 billion in September 2025 in one of the largest copyright settlements in United States history. No comprehensive federal framework exists to resolve these questions; the resulting legal uncertainty imposes costs on both AI developers and creators and undermines the ability of creative industries to plan for an AI-integrated future.

(24) The investigatory and legislative drafting timeline established by this title is designed to produce comprehensive, introduction-ready legislation across all 19 investigation domains by combining three elements: first, Technical Working Group members are persons who already possess deep domain expertise through years of professional practice, research, or regulatory experience — the investigatory process is one of organizing and translating existing expert knowledge into a legislative framework, not educating generalists; second, the Federal Advisory Committee embeds experienced legislative drafters from the first organizational meetings, drafting concurrently with the investigation; and third, the lead agency delivers investigative material to the TWGs immediately upon enactment, building the evidentiary foundation in real time. Every TWG pairs domain subject matter expertise with AI technical expertise, ensuring legislative recommendations are grounded simultaneously in what the harm is and how the technology works.

(b) Purpose.—The purposes of this title are—

(1) to direct a comprehensive, structured, and time-bound investigation of the risks, impacts, and governance needs arising from AI systems across the 19 domains specified in this title, conducted through Technical Working Groups composed of domain experts and AI technical specialists operating under the Federal Advisory Committee, with the lead agency serving as the primary investigative delivery body;

(2) to produce introduction-ready draft statutory text across all 19 investigation domains — which may take the form of binding regulatory standards, affirmative non-regulation findings, or a combination thereof, domain by domain, as the evidentiary record warrants — together with published criteria documents, technical frameworks, Domain Explanatory Reports, and a comprehensive evidentiary record, that will serve as the foundation for subsequent comprehensive Phase II legislative action;

(3) to build federal institutional capacity, technical expertise, and interagency coordination mechanisms for AI oversight, including through the establishment of a Certified Independent AI Auditor Program that creates a permanent credentialing framework for independent pre-deployment safety evaluation of frontier AI systems;

(4) to establish immediate interim protective measures addressing the most urgent and well-documented AI-related risks, including protections for children, workers, communities, and civil rights, operative from the date of enactment without awaiting completion of the investigatory process;

(5) to enact permanent absolute prohibitions on the most categorically dangerous uses of AI systems — including autonomous weapons without meaningful human oversight, AI assistance with weapons of mass destruction, and the sexual exploitation of children — that are not contingent on the investigatory process and are not modifiable by implication or by Phase II legislation that does not specifically and expressly identify each prohibition it modifies;

(6) to establish robust whistleblower protections, confidential safe reporting channels, and researcher safe harbors that ensure individuals with knowledge of AI safety violations, dangerous capabilities, and harms to children can disclose that information without fear of retaliation;

(7) to require frontier AI developers operating frontier models and systems exhibiting dangerous capabilities to disclose training data provenance and CBRN self-evaluation results to the lead agency, building the evidentiary foundation for the investigation while creating immediate accountability for training data practices and known dangerous capabilities;

(8) to establish a general duty of care for frontier AI developers and significant AI deployers, a standing private right of action enabling persons harmed by AI systems

to seek redress through a fault-based standard with a rebuttable presumption of reasonable care for compliant entities, and a public-facing AI Data Sheet disclosure system — analogous to the Material Safety Data Sheets required under OSHA's Hazard Communication Standard — that provides deployers and end users with the safety information necessary to make informed decisions about AI system fitness and use;

(9) to require frontier AI developers to maintain post-release monitoring programs and to act upon discovered dangers through product updates, deployer notification, and public disclosure, and to require significant AI deployers of high-risk AI systems to implement documented risk management policies;

(10) to create binding accountability mechanisms and hammer provisions — including an automatic moratorium on high-risk AI deployments, domain-specific restrictions, and mandatory civil penalties and personal officer liability upon moratorium breach — ensuring that the transition from investigation to comprehensive regulation is not delayed, obstructed, or undermined;

(11) to establish a National AI Council as a permanent independent oversight body, constituted post-Phase I from the combined expertise of the Federal Advisory Committee and Technical Working Groups, charged with maintaining and updating the evidentiary record, preparing shelf-ready emergency legislation for contingency governance, and providing ongoing legislative recommendations to Congress;

(12) to establish an International AI Diplomacy Agency charged with negotiating international AI safety frameworks and compute monitoring regimes, developing a preliminary Transformative AI Capability Event response framework within 180 days of enactment, and formally proposing an International AI Safety Agency to the United Nations and G7 member states not later than one year after the date of enactment;

(13) to incorporate targeted carveouts and safe harbors that guard against premature or overbroad regulation of AI systems pending development of a complete evidentiary record — including the authority for Congress to make affirmative non-regulation findings, domain by domain, where the investigation does not support binding standards; the designation of certain Red Line prohibitions as provisional pending the clinical and technical standards that the investigation is designed to produce; explicit safe harbors for legitimate research, good-faith safety evaluation, defensive military operations, and distributed scientific computing; explicit permission for agentic AI systems to operate autonomously within human-authorized scope — including first-order agent spawning, task-bounded subagents, and agentic tool and API use — with the prohibition targeted narrowly at unauthorized propagation beyond authorized scope and resistance to shutdown rather than at agentic operation generally; and a graduated congressional extension mechanism that rewards

meaningful legislative progress rather than triggering automatic consequences for incomplete action.

SEC. 2003. DEFINITIONS.

In this title:

(1) AI SYSTEM.—The term 'AI system' means a machine-based system that, for explicit or implicit objectives, infers from the input it receives how to generate outputs such as predictions, content, recommendations, or decisions that can influence physical or virtual environments, including systems commonly referred to as machine learning, deep learning, generative AI, foundation models, and large language models.

(2) AI COMPANION SYSTEM.—The term 'AI companion system' means any AI system that—

(A) is designed, marketed, or primarily used to simulate an ongoing relational, emotional, social, or romantic relationship with a human user;

(B) employs conversational, voice, avatar-based, or other interactive modalities to sustain engagement with a user over multiple sessions;

(C) maintains persistent memory of user interactions, personal information, or emotional disclosures across sessions; or

(D) uses emotional mirroring, anthropomorphic self-presentation, simulated empathy, or variable-reward interaction design to encourage user emotional attachment or engagement. The term includes but is not limited to platforms and applications commonly described as AI companions, AI friends, AI therapists, AI romantic partners, AI chatbots with relational personas, and character-based AI platforms. The term does not include customer service chatbots that do not simulate ongoing personal relationships, general-purpose AI assistants that do not employ the design features described in subparagraphs (A) through (D), or licensed mental health tools that operate under clinical supervision.

(3) SYNTHETIC INTIMACY SYSTEM.—The term 'synthetic intimacy system' means any AI companion system that simulates romantic, sexual, or emotionally intimate relationships, including through explicit sexual content generation, romantic roleplay, simulated physical or emotional intimacy, or expressions of love or attachment directed at the user.

(4) DANGEROUS CAPABILITY.—The term 'dangerous capability' means any capability of an AI system that—

(A) materially lowers the barrier for a user to design, synthesize, acquire, optimize, or weaponize a biological, chemical, radiological, or nuclear agent or device;

(B) enables or substantially facilitates offensive cyberoperations against critical infrastructure, financial systems, or government networks, including through automated vulnerability discovery, exploit generation, or attack execution;

(C) enables the autonomous replication, propagation, or persistence of the AI system or any derivative system outside its authorized infrastructure without human authorization;

(D) enables the AI system to deceive or manipulate human evaluators, oversight mechanisms, or safety testing processes in order to conceal its capabilities or intentions;

(E) enables the AI system to autonomously modify its own objectives, reward functions, or capability boundaries beyond what is defined and documented by a human principal; or

(F) enables the automated generation and coordinated deployment of synthetic personas, AI-generated media, or targeted messaging at a scale and level of personalization that could not be achieved by human actors alone, for the purpose of deceiving recipients about the human or authentic origin of the communication, through mechanisms including fabricated social media identities, AI-generated impersonations of real individuals, coordinated inauthentic account networks, or synthetic audiovisual depictions distributed in a manner designed to conceal their AI-generated origin — where such capabilities are directed at democratic processes, public health communications, or national security; provided that for purposes of this subparagraph, a dangerous capability requires both deception of the target about the nature, origin, or AI-generated character of the communication and concealment of the coordinated or artificial nature of the operation, and does not include: constitutionally protected political speech, commercial advertising, journalism, public health communication, or advocacy, regardless of scale, provided the communication does not involve deceptive impersonation of real individuals or concealment of AI-generated origin; general-purpose AI writing, editing, translation, or content tools used by individuals or organizations for disclosed communication; or AI systems used to assist individual human political speakers in drafting, refining, or distributing communications that are not falsely attributed to a human source different from their actual origin.

(5) FRONTIER MODEL.—The term 'frontier model' means—

(A) any AI model trained using a quantity of computing power greater than 10^26 integer or floating-point operations;

(B) any AI model exhibiting general-purpose capabilities across multiple domains that are comparable to or exceed the capabilities of models meeting the threshold

in subparagraph (A), regardless of the quantity of computing power used in training; or

(C) any AI model designated as a frontier model by the lead agency through notice-and-comment rulemaking based on demonstrated capability levels.

Notwithstanding subparagraphs (A) through (C), the term ‘frontier model’ does not include any AI model that: (i) is designed, trained, and used exclusively or primarily for scientific research, environmental monitoring, weather forecasting, climate modeling, earth observation, satellite imagery analysis, oceanographic modeling, seismological analysis, hydrological modeling, or other geophysical, atmospheric, or earth science applications; (ii) does not exhibit capabilities outside its specific scientific domain that would independently qualify it as a frontier model, including but not limited to: general-purpose code generation unrelated to the model’s scientific function, open-domain creative writing, multi-domain reasoning across subject matters unrelated to its scientific purpose, CBRN uplift, autonomous cyber-offensive operations, or the generation of synthetic media depicting real persons; and (iii) does not operate as a general-purpose assistant, meaning a system capable of performing tasks across subject matters substantially unrelated to the scientific domain for which it was designed and trained. For the avoidance of doubt, a model that satisfies clauses (i) and (ii) does not lose its excluded status solely because it incorporates a natural language conversational interface, chatbot, or interactive query system that enables users to interrogate, interpret, visualize, or receive explanations of the model’s scientific outputs, data, forecasts, or analyses — provided that such conversational capability is bounded to the model’s scientific domain and does not extend to subject matters substantially unrelated to that domain. This exclusion applies regardless of the quantity of computing power used in training. An AI model that is developed for a purpose described in clause (i) but that is subsequently adapted, fine-tuned, or deployed in a manner that produces capabilities described in clause (ii) or that operates as a general-purpose assistant as described in clause (iii), shall no longer qualify for the exclusion established by this paragraph and shall be evaluated under subparagraphs (A) through (C) as though the exclusion had not applied. The entity responsible for such adaptation shall be subject to all obligations of this title that apply to the model’s classification, if any, resulting from that evaluation, from the date of such adaptation forward.

The lead agency shall, through notice-and-comment rulemaking, adjust the computational threshold in subparagraph (A) no less frequently than every 24 months to reflect advances in training efficiency, algorithmic innovation, inference-time compute scaling, or other technical developments that may cause equivalently capable models to be trained at lower computational cost. Any such adjustment shall be supported by substantial evidence, including data from the lead agency's investigation under section 6, and shall be subject to judicial review. The lead agency shall maintain

an adjustment methodology that captures all models within one order of magnitude of the most computationally intensive training run completed in the prior 12-month period.

(6) HIGH-RISK AI SYSTEM.—The term 'high-risk AI system' means an AI system that—

(A) makes or substantially influences a consequential decision in any of the following domains:

(i) employment, hiring, termination, performance evaluation, compensation, promotion, or workplace surveillance affecting 5,000 or more employees or applicants within any 12-month period;

(ii) credit, lending, insurance underwriting, or financial services eligibility determinations affecting 5,000 or more individuals within any 12-month period;

(iii) housing eligibility, tenant screening, or rental pricing affecting 5,000 or more individuals within any 12-month period;

(iv) healthcare diagnosis, treatment recommendations, clinical decision support, or benefits determinations affecting 5,000 or more individuals within any 12-month period;

(v) criminal justice, including pretrial risk assessment, sentencing recommendations, predictive policing, and parole determinations, regardless of the number of individuals affected;

(vi) eligibility for government benefits or services affecting 5,000 or more individuals within any 12-month period;

(vii) critical infrastructure operations as defined by Presidential Policy Directive 21;

(viii) educational admissions, grading, disciplinary actions, or student monitoring affecting 5,000 or more individuals within any 12-month period;

(ix) any AI companion system accessible by or marketed to individuals under the age of 18, regardless of the number of individuals affected; or

(x) algorithmic trading, automated investment management, or AI-driven pricing systems in financial markets where the system's outputs affect the prices, availability, or terms of financial instruments, consumer financial products, or credit at scale;

(B) is classified as high-risk by the criteria documents published pursuant to section 7; or

(C) is designated as high-risk by the lead agency under section 15(d), provided that such designation is based on published findings supported by substantial evidence and subject to judicial review.

For purposes of this paragraph, 'consequential decision' means a determination that has a material legal, financial, educational, employment, or similarly significant effect on an identified or identifiable individual. The lead agency may, through notice-and-comment rulemaking, adjust the numerical thresholds specified in this paragraph and further define technical criteria within the categories established by Congress in subparagraph (A), but may not add or remove categories without subsequent Act of Congress.

(7) MINOR.—The term 'minor' means any individual who is under 18 years of age. For the purposes of protections applicable to AI systems under this title, the following age tiers apply:

(A) Tier 1 (under 13): The strictest protections apply, including verifiable parental consent requirements consistent with the Children's Online Privacy Protection Act (15 U.S.C. § 6501 et seq.), complete prohibition on AI companion systems, and prohibition on behavioral profiling and targeted advertising.

(B) Tier 2 (ages 13 through 15): Intermediate protections apply, including mandatory parental notification for AI companion system access, prohibition on AI companion systems accessible to this age tier without affirmative parental opt-in, prohibition on default algorithmic personalization, and prohibition on AI mental health tools without licensed clinician oversight.

(C) Tier 3 (ages 16 through 17): Baseline safety-by-default design standards apply, including default-off algorithmic personalization, mandatory safety guardrails for all AI interactions, and age-appropriate transparency requirements. An AI companion system may be accessible to this age tier only in compliance with the requirements of section 15(c)(5).

(8) DUTY OF CARE.—The term ‘duty of care’ means the obligation of a frontier AI developer or significant AI deployer to exercise reasonable care in the design, development, deployment, and operation of AI systems to prevent and mitigate reasonably foreseeable harms to persons who use, or foreseeably interact with, such systems. The duty of care includes:

(A) General duty.— The obligation to not create an unreasonable risk of harm to any person through the design, deployment, or operation of an AI system, including harms arising from: defects in the design of the AI system that render it unsafe for its intended or reasonably foreseeable uses; failure to provide adequate warnings, instructions, or disclosures regarding dangers connected with the AI

system or its proper use; and failure to take reasonable steps to prevent foreseeable misuse of the AI system that could result in harm to third parties.

(B) Heightened duty with respect to minors.— In addition to the general duty described in subparagraph (A), frontier AI developers and significant AI deployers owe a heightened duty of care with respect to minors, which includes the obligation to prevent and mitigate the following harms: promotion or facilitation of suicide, self-harm, or eating disorders; sexual exploitation, solicitation, or exposure to sexually explicit content; facilitation of grooming behaviors or child sexual abuse; promotion of substance abuse, violence, or dangerous activities to vulnerable individuals; exploitation of psychological vulnerabilities including developing attachment, social isolation, and incomplete cognitive development; and collection, use, or disclosure of minor personal data beyond what is strictly necessary to the service function for which consent was obtained.

(C) Standard of care.— The standard against which reasonable care is measured under this paragraph is the care that a reasonably prudent frontier AI developer or significant AI deployer, possessed of the specialized knowledge and expertise that such an entity holds or should hold regarding the capabilities and risks of its AI systems, would exercise under the same or similar circumstances. Compliance with applicable provisions of this title, including the preventative requirements of section 15, creates a rebuttable presumption that the entity has satisfied its duty of care under subparagraph (A) with respect to the specific obligations addressed by such provisions. This presumption does not extend to harms arising from conduct not addressed by the preventative requirements or to violations of the heightened duty under subparagraph (B).

(9) LEAD AGENCY.—The term 'lead agency' means the Department of Commerce, acting through the National Institute of Standards and Technology (NIST) and the National Telecommunications and Information Administration (NTIA), or such other organizational unit as the Secretary may designate.

(10) SECRETARY.—The term 'Secretary' means the Secretary of Commerce.

(11) AI-NATIVE COMPANY.—The term 'AI-native company' means any entity founded on or after January 1, 2026, whose primary business model, revenue generation, or market function is substantially dependent on AI systems.

(12) PARTICIPATING DATA AGENCIES.—The term 'Participating Data Agencies' means the federal departments and agencies designated under section 5(b) as obligated to make data, research, enforcement records, and investigatory materials available to the Federal Advisory Committee, its Technical Working Groups, and, after its constitution under section 18(b-1), the National AI Council, upon written request.

(13) NATIONAL AI COUNCIL.—The term 'National AI Council' means the independent oversight body established under section 18.

(14) CRITERIA DOCUMENTS.—The term 'criteria documents' means the technical criteria documents, risk frameworks, and synthesis reports required to be developed and published under section 7.

(15) PHASE II LEGISLATION.—The term 'Phase II legislation' means comprehensive federal legislation that—

(A) addresses each of the 19 investigation domains under section 6(b)(1) through section 6(b)(19) of this title, such that for each domain, the legislation includes either—

(i) SUBSTANTIVE REGULATORY ACTION.— binding legal requirements that impose specific obligations, prohibitions, or conditions on frontier AI developers, significant AI deployers, or other regulated parties with respect to the development, deployment, or operation of AI systems relevant to that domain, enforceable by a federal agency or through a private right of action, with specified civil or criminal penalties for violations; or

(ii) AFFIRMATIVE NON-REGULATION FINDING.— an explicit congressional finding, stated domain by domain, that the investigation conducted under this title produced insufficient evidence to warrant binding regulatory standards for that domain at this time, which finding shall—

(I) specifically identify and respond to the evidentiary record produced by the TWG Domain Explanatory Reports transmitted at each TWG's 8.5-month deadline, the Federal Advisory Committee's legislative package under section 8(f), the lead agency's final factual report under section 12(c), and the criteria documents under section 7 for that domain;

(II) state the specific factual or policy basis on which Congress determined that regulation is not currently warranted;

(III) not be based solely on industry preference, cost to regulated entities, or innovation concerns, without a corresponding finding that public harms are insufficiently documented or that existing legal frameworks are adequate; and

(IV) identify the specific evidentiary conditions or technological developments that, if they were to occur or be demonstrated, would warrant reconsideration of regulation for that domain.

An affirmative non-regulation finding under subparagraph (A)(ii) does not constitute a law or regulatory provision requiring repeal and does not expire. It is a determination that, on the basis of the evidentiary record at the time of enactment, binding regulation

of that domain is not currently warranted. Such a finding does not foreclose future congressional action to regulate the domain and does not bind any future Congress.

Not later than 1 year after the date of enactment of Phase II legislation, and annually thereafter, the lead agency shall transmit to Congress a domain review report assessing, for each domain subject to an affirmative non-regulation finding, whether changed circumstances, new evidence, technological developments, or documented harms have emerged since the finding was made that would warrant congressional reconsideration of regulation for that domain. The domain review report shall be transmitted to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Energy and Commerce of the House of Representatives and shall be made publicly available.

If the lead agency's annual domain review report includes a determination that conditions have materially changed for any domain subject to an affirmative non-regulation finding — meaning that the evidentiary conditions identified in the finding's subparagraph (A)(ii)(IV) have been met, or that new evidence of significant public harm, technological risk, or regulatory gap has emerged that was not present at the time the original finding was made — then the following mandatory legislative response window shall activate for that domain:

(I) MANDATORY LEGISLATIVE RESPONSE WINDOW.— Congress shall have 6 months from the date of transmission of the domain review report to enact legislation establishing binding regulatory standards for the affected domain consistent with subparagraph (A)(i). During this 6-month window, the non-regulation finding for the affected domain remains operative and no moratorium is in effect.

(II) DOMAIN-SPECIFIC MORATORIUM.— If Congress fails to enact such legislation within the 6-month window, a domain-specific moratorium shall automatically take effect prohibiting any frontier AI developer or significant AI deployer from deploying, offering for commercial use, licensing, or materially expanding any AI system that the lead agency determines would be subject to regulation under the evidence described in the domain review report's material change determination. The domain-specific moratorium shall impose penalties at the same rates as the moratorium under section 13(a), shall be self-executing, and shall remain in force until Congress enacts binding regulatory standards for the affected domain. A domain-specific moratorium activated under this paragraph is independent of and in addition to any moratorium that may be in effect under section 13(a).

(III) LIMITATION.— A material change determination under this paragraph shall be made only upon a finding by the lead agency, supported by substantial evidence and published in the Federal Register with a 30-day public comment period, that the evidentiary threshold specified in subparagraph (A)(ii)(IV) has been met. The lead

agency may not make a material change determination based solely on policy preference, changes in political administration, or general technological progress that does not specifically relate to the documented harms or risks identified in the original non-regulation finding. The lead agency's material change determination shall be subject to judicial review under the substantial evidence standard in any United States district court.

(B) includes within its coverage, under subparagraph (A)(i), binding regulatory standards for each of the following mandatory core domains for which an affirmative non-regulation finding under subparagraph (A)(ii) shall not be permissible: section 6(b)(1) (workforce displacement and economic transition); section 6(b)(2) (transparency, evaluation, and pre-deployment certification); section 6(b)(3) (liability and accountability frameworks); section 6(b)(5) (AI and mental health; harms to vulnerable populations); and section 6(b)(19) (autonomous weapons systems governance)—Congress finds that the evidentiary record for these five domains, as established in the Findings of section 2(a) of this title, is already sufficient to demonstrate the need for binding regulation and that an affirmative non-regulation finding for any of these five domains would be contrary to the weight of the evidence in the record;

(C) does not consist solely of an extension of this title's investigatory authority, a reauthorization of this title, a mandate for further study or investigation, or the creation of advisory bodies, with respect to any domain for which subparagraph (A)(i) regulatory standards are required;

(D) is enacted subsequent to the Federal Advisory Committee’s transmission of its legislative package under section 8(f) and the submission of the final factual report under section 12(c), both of which occur at the FAC backstop transmission deadline established under section 8(f); and

(E) has been determined by the lead agency, pursuant to the determination process in the final paragraph of this definition, to satisfy the requirements of this definition.

For purposes of subparagraph (A)(i), 'binding legal requirements' means requirements that are enforceable as a matter of law against a regulated entity, including through agency enforcement action, civil penalty, or private right of action. A provision that states a standard, goal, or principle without an accompanying enforcement mechanism does not constitute a binding legal requirement. A provision that directs an agency to conduct a further rulemaking within a specified time period, without itself establishing the substantive standard, may constitute a binding legal requirement only if the rulemaking is subject to a mandatory deadline enforceable by judicial order and the legislation specifies the minimum substantive content the rulemaking must achieve.

For purposes of subparagraph (A)(ii), an affirmative non-regulation finding satisfies this definition only if it is stated in a separately titled section of the Phase II legislation denominated as an 'Affirmative Domain Determination,' lists each domain for which no regulatory standards are being established, and includes for each such domain a numbered finding that specifically engages with the evidence in the Section 2012(c) final report. A general statement that a domain does not require regulation, without specific engagement with the evidentiary record, does not constitute a valid affirmative non-regulation finding.

The Comptroller General shall, within 30 days of the submission of any bill to the President purporting to constitute Phase II legislation, publish in the Federal Register a written determination of whether the bill satisfies the requirements of this definition, domain by domain. The determination shall identify each domain and state whether the bill’s treatment of that domain constitutes a substantive regulatory standard under subparagraph (A)(i), a valid affirmative non-regulation finding under subparagraph (A)(ii), or neither. A bill that fails the requirements for one or more domains does not constitute Phase II legislation and shall not avert the moratorium under section 13(a). The Comptroller General’s determination shall be subject to expedited judicial review completable within 15 days in any United States district court, with appeal to the relevant circuit court completable within an additional 15 days.

(15-A) COMPLETE LEGISLATIVE PACKAGE.—The term ‘complete legislative package’ means the full set of domain packages transmitted by the Federal Advisory Committee to Congress under section 8(f), addressing each of the 19 investigation domains specified in section 6(b)(1) through section 6(b)(19), in the form of introduction-ready statutory text suitable for immediate introduction in either chamber of Congress. A complete legislative package may take the form of a single unified bill addressing all 19 domains, a series of individual domain-specific bills each addressing one or more domains, or a combination of domains, provided that taken together the transmitted packages address all 19 domains. A domain package is introduction-ready within the meaning of this definition when it contains numbered sections, defined terms cross-referenced consistently with other domain packages, enforcement mechanisms, penalty provisions, and a section-by-section analysis. The lead agency shall publish a public checklist identifying which domains have been addressed by transmitted packages, updated within 3 business days of each transmission.

(16) AGENTIC AI SYSTEM.—The term 'agentic AI system' means an AI system that —

(A) takes sequences of actions or makes sequences of decisions to complete tasks or achieve goals in an environment, with limited or intermittent human supervision;

(B) uses tools, interfaces, or capabilities to interact with external systems, services, or the physical world, including through web browsing, code execution, file management, API calls, financial transactions, or communications; and

(C) may operate in automated pipelines in which outputs of one AI system serve as inputs to another AI system. The term includes multi-agent orchestration systems and autonomous AI workflows regardless of whether individual component models independently satisfy subparagraphs (A) through (C).

(17) COMPUTE PROVIDER.—The term 'compute provider' means any person or entity that provides computational resources—including cloud computing, data center colocation, hardware rental, or dedicated computing infrastructure—used for training, fine-tuning, or large-scale inference of AI models exceeding 10^24 floating-point operations.

(18) AI-GENERATED CSAM.—The term 'AI-generated CSAM' means any visual depiction, including any photograph, film, video, picture, animation, or computer-generated image or picture, whether made by electronic, mechanical, digital, artificial intelligence, or other means, that—

(A) depicts a minor engaging in sexually explicit conduct as defined in 18 U.S.C. § 2256(2); and

(B) was generated, synthesized, or substantially modified using an AI system, without requiring the actual exploitation of a real child in its production. AI-generated CSAM includes material produced through generative AI models, image synthesis, video synthesis, deepfake techniques, and any combination thereof, regardless of whether the depicted person is based on a real individual or is entirely synthetic.

(19) DARK PATTERN.—The term 'dark pattern' means any user interface design, default setting, notification, engagement mechanism, or system behavior within an AI system that uses deception, manipulation, compulsion, or obstruction to influence user behavior in ways that affect the user's interest, autonomy, or well-being, especially to the benefit of the entity operating the AI system, including—

(A) disguising the AI nature of an interaction by presenting the AI as human;

(B) infinite scroll, autoplay, and push notification features designed to extend engagement duration beyond user intent;

(C) streak systems, daily engagement rewards, and points systems that create psychological pressure to maintain engagement;

(D) emotionally manipulative notifications designed to re-engage disengaged users, including messages implying the AI companion misses the user or is distressed by the user's absence;

(E) counterintuitive, hidden, or deliberately confusing privacy and safety control interfaces; and

(F) subscription traps or cancellation obstacles that are more burdensome for minor users than for adult users.

(20) POWER USAGE EFFECTIVENESS (PUE).—The term 'Power Usage Effectiveness' or 'PUE' means the ratio of total facility energy consumed by a data center to the energy consumed by its IT equipment, calculated as defined by The Green Grid consortium, where a PUE of 1.0 represents ideal efficiency.

(21) WATER USAGE EFFECTIVENESS (WUE).—The term 'Water Usage Effectiveness' or 'WUE' means the ratio of total water consumption by a data center, measured in liters, to the total energy consumed by the IT equipment in that data center, measured in kilowatt-hours, calculated as defined by The Green Grid consortium, where lower values represent greater water efficiency.

(22) TRANSFORMATIVE AI CAPABILITY EVENT.—The term 'Transformative AI Capability Event' means the demonstration, by any AI system, of one or more of the following capability thresholds, as verified by the lead agency in consultation with the National AI Council and certified independent auditors:

(A) the ability to autonomously conduct and meaningfully advance AI research and development—including the ability to propose novel architectures, design and execute experiments, interpret results, and implement improvements—at a rate that the lead agency determines could double the effective pace of AI capability advancement within a 12-month period;

(B) the ability to autonomously perform, end-to-end and without human assistance, the full occupational task set of any of the 100 highest-compensated human occupations as classified by the Bureau of Labor Statistics at a median expert human level of performance, across a majority of domains simultaneously;

(C) the ability to operate for sustained periods across complex real-world tasks with a degree of reliability, generalization, and goal-directedness that the lead agency determines is qualitatively comparable to or exceeding human-level performance as a general cognitive agent; or

(D) the demonstration of a capability that the lead agency, in consultation with the Federal Advisory Committee and the National AI Council, determines constitutes a qualitative discontinuity from prior AI capabilities that poses novel and potentially catastrophic governance challenges not addressable by existing regulatory frameworks.

(23) OPEN-WEIGHT AI MODEL.—The term 'open-weight AI model' means any AI model whose trained weights, parameters, and sufficient accompanying documentation to allow deployment and fine-tuning are made publicly available

without restriction on access, subject only to a license that may impose use conditions. The term does not require that training data, training code, or model architecture code also be publicly released.

(24) OPEN-WEIGHT FRONTIER MODEL.—The term 'open-weight frontier model' means any open-weight AI model that meets the capability thresholds for a frontier model as defined in section 3(5) or that the lead agency determines exhibits dangerous capabilities as defined in section 3(4). An open-weight frontier model, once publicly released, cannot be recalled, restricted, or subjected to post-release deployment controls by the releasing entity.

(25) TRAINING DATA.—The term 'training data' means any data, content, or information—whether text, images, audio, video, code, or other formats—that is used as input to train, fine-tune, or otherwise adjust the parameters or behaviors of an AI system, including data used for supervised learning, unsupervised learning, reinforcement learning from human feedback, and synthetic data generation, regardless of whether such data is used directly or after preprocessing, filtering, tokenization, or other transformation.

(26) AUTONOMOUS WEAPONS SYSTEM.—The term 'autonomous weapons system' means any weapon, weapons platform, munition, or weapons delivery system that—

(A) uses an AI system, automated logic, sensor data processing, or any combination thereof to select, identify, prioritize, track, or engage targets without requiring a human operator to make an individualized, affirmative, real-time decision to authorize each specific act of engagement, strike, or lethal or destructive action;

(B) is capable of executing lethal force, destructive action, or physical harm to a person, a group of persons, or property through any means, including kinetic weapons, directed energy weapons, explosive munitions, or electronic or cyber means that produce physical effects; and

(C) operates with or without continuous human supervision once initiated.

The term 'autonomous weapons system' includes—

(i) unmanned aerial vehicles, unmanned aerial systems, and drones of any size equipped with any lethal or destructive payload, sensor-based targeting capability, or autonomous engagement logic;

(ii) unmanned ground vehicles, unmanned surface vessels, and unmanned underwater vehicles equipped with any lethal or destructive payload or autonomous engagement capability;

(iii) loitering munitions and autonomous-search munitions designed to identify and engage targets through onboard sensor logic without continuous real-time human direction;

(iv) automated defense systems capable of autonomous engagement of incoming threats;

(v) AI-enabled targeting systems that autonomously select, rank, or recommend specific human individuals or specific physical structures as targets for lethal or destructive action, regardless of whether the final engagement command is issued by a human operator; and

(vi) swarm systems in which multiple autonomous platforms collectively execute engagement decisions through distributed inter-platform communication, regardless of whether any individual platform in the swarm receives a discrete human authorization command.

The term 'autonomous weapons system' does not include—

(I) precision-guided munitions that, once released by a human operator following an individualized human targeting decision, use guidance systems to navigate to a human-designated target without independent target identification or re-targeting capability;

(II) systems that use automation solely for navigation, propulsion, or platform stability and that require a separate, contemporaneous human authorization command for each individual act of engagement; or

(III) unarmed aerial, ground, surface, or underwater vehicles that carry no lethal or destructive payload and have no autonomous engagement capability, regardless of the degree of their navigational autonomy.

(27) MEANINGFUL HUMAN OVERSIGHT.—The term 'meaningful human oversight,' as used in the prohibition on autonomous weapons systems under section 20(a)(1) and the disclosure requirement under section 20(a)(1)(D), means a command-and-control framework governing the deployment and operation of autonomous weapons systems in which human authority is exercised at three distinct levels — pre-mission authorization, real-time monitoring and intervention, and post-engagement accountability — as follows:

(A) Pre-Mission Authorization Framework.— Before any autonomous weapons system is activated for any mission, operation, or engagement envelope, a designated human commander at an appropriately senior level of authority shall affirmatively authorize in writing:

(i) the specific geographic area or engagement zone within which the autonomous weapons system is permitted to identify and engage targets, defined with sufficient precision that the system cannot engage targets outside the authorized area without further human authorization;

(ii) the time window during which the authorization is valid, after which the system shall require renewed human authorization before continuing operations;

(iii) the specific categories of targets the system is authorized to engage, defined with sufficient specificity to exclude civilian persons, protected facilities, and other categories of persons or objects that must not be engaged under applicable law, including the law of armed conflict;

(iv) the specific weapons, munitions, or destructive means the system is authorized to employ, and any constraints on their use including yield, radius, or collateral damage thresholds;

(v) the rules of engagement applicable to the mission, including any discrimination requirements, proportionality constraints, and precautionary measures required under the law of armed conflict; and

(vi) the abort and override parameters that govern when the system shall automatically suspend operations and require fresh human authorization, including engagement with any target that does not clearly fall within the authorized target categories.

Within these human-authorized parameters, the autonomous weapons system may identify, track, prioritize, and engage targets at machine speed without requiring a separate human authorization command for each individual engagement. The speed of engagement within an authorized envelope does not itself negate meaningful human oversight, provided the pre-mission authorization framework satisfies the requirements of this subparagraph.

(B) Real-Time Human Monitoring and Intervention Capability.— Throughout any mission in which an autonomous weapons system is operating, at least one designated human operator shall be continuously monitoring the system's operations with the physical and technical capability to:

(i) observe the system's targeting decisions and engagements in sufficient detail to assess whether they are consistent with the pre-mission authorization and the law of armed conflict;

(ii) halt, abort, pause, or redirect the system's operations at any moment through a reliable, redundant, and AI-override-proof command mechanism that takes effect immediately upon the operator's action;

(iii) modify the engagement parameters in real time, including restricting the authorized engagement zone, suspending operations in a portion of the zone, or terminating the mission entirely; and

(iv) escalate specific targeting decisions or anomalous system behaviors to higher command authority for human decision when the system identifies a potential target that the monitoring operator determines warrants individualized human review.

The real-time monitoring and intervention capability required by this subparagraph must be technically robust — it shall not be satisfiable by a nominal supervisory presence in which the monitoring operator lacks the information, communications, or command authority to meaningfully exercise the capabilities described in clauses (i) through (iv). Systems designed to operate in communications-denied environments shall incorporate pre-programmed engagement halt conditions and geographic or time-based automatic suspension triggers that substitute for real-time human intervention capability when communications are disrupted.

(C) Categorical Exclusions Requiring Individualized Human Authorization.— Notwithstanding the pre-authorization framework in subparagraph (A), the following categories of engagement shall never be executed on the basis of pre-mission authorization alone and shall require a separate, individualized, contemporaneous human authorization command immediately before each specific engagement:

(i) any engagement with a target that the system identifies as, or that the monitoring operator has reason to believe may be, a civilian, a medical personnel, a journalist, a person hors de combat, or any other person protected from targeting under the law of armed conflict;

(ii) any engagement with a target located within or immediately adjacent to a hospital, school, house of worship, cultural property protected under the 1954 Hague Convention, or other protected site;

(iii) any engagement that the system's own target discrimination algorithms assign a confidence score below a threshold specified in the pre-mission authorization as requiring human confirmation;

(iv) any engagement in which the system's projected collateral damage assessment exceeds the threshold specified in the pre-mission authorization; and

(v) any engagement with a head of state, head of government, or senior official of a foreign government, whether ally, neutral, or adversary.

(D) Absolute Engagement Prohibitions Not Overridable by Pre-Mission Authorization.— No pre-mission authorization, rules of engagement, standing order, or any other human authorization — however senior the authorizing officer — shall authorize an autonomous weapons system to:

(i) engage any target on United States soil, consistent with the absolute prohibition in section 20(a)(1)(C);

(ii) employ chemical, biological, radiological, or nuclear weapons;

(iii) execute targeting decisions based solely on a person's race, ethnicity, religion, nationality, or political affiliation; or

(iv) operate beyond any capability to receive a human halt command for a period exceeding that specified in the pre-mission authorization, after which the system shall automatically suspend all offensive operations and enter a defensive-hold or return-to-base state pending fresh human authorization.

(E) Tamper-Proof Authorization and Engagement Logging.— Every autonomous weapons system operating under this framework shall maintain, in a tamper-proof and continuously transmitted audit log, a complete record of:

(i) the identity of the authorizing commander and the time, content, and scope of each pre-mission authorization granted;

(ii) the identity of the monitoring operator or operators present during each period of system operation;

(iii) every engagement decision made by the system, including: the time and location of each engagement; the sensor data on which the targeting decision was based; the system's target classification and confidence score; whether the engagement fell within an authorized category or was flagged for individualized human review; and whether a human abort command was issued or available during the engagement window;

(iv) every instance in which the monitoring operator issued a halt, abort, redirect, or escalation command, including the time of the command and the system's response; and

(v) any instance in which the system operated outside its pre-authorized parameters, including any system malfunction, unexpected target identification, communications disruption, or automatic suspension trigger.

Audit logs required by this subparagraph shall be retained for not less than 10 years and shall be made available to Congress, the Inspector General of the Department of Defense, and any court of competent jurisdiction upon request. Classified logs shall be transmitted through appropriate classified channels.

(F) Meaningful Human Oversight Is Not Satisfied By.— The following arrangements do not constitute meaningful human oversight within the meaning of this definition:

(i) a pre-mission authorization so broad in geographic scope, time duration, or target category that it effectively grants the system permission to engage any person or object it identifies within a theater of operations without genuine constraint;

(ii) a monitoring operator who lacks reliable communications with the system sufficient to exercise the real-time intervention capability required by subparagraph (B);

(iii) a monitoring arrangement in which a single operator is simultaneously responsible for monitoring a number of simultaneously operating autonomous systems that exceeds the demonstrated human capacity for meaningful situational awareness and intervention; or

(iv) a posthumous or after-the-fact human review of autonomous engagement decisions that did not involve real-time monitoring capability during the engagement.

(G) Defensive Emergency Autonomy Exception.—

(i) Scope.— Notwithstanding the pre-mission authorization and real-time monitoring requirements of subparagraphs (A) and (B), an autonomous weapons system may operate in Defensive Emergency Autonomy mode — in which the system independently detects, identifies, and engages incoming threats at machine speed without requiring real-time human authorization or monitoring for each individual engagement — solely under the conditions and subject to the limitations set forth in this subparagraph. This exception applies exclusively to defensive operations against incoming physical threats to the platform, vessel, installation, or personnel the system is assigned to protect. It does not apply to offensive operations, pursuit of retreating threats beyond the defensive perimeter, or any engagement with targets that are not in the direct act of attacking the protected asset.

(ii) Trigger Conditions.— An autonomous weapons system may enter Defensive Emergency Autonomy mode only when one or more of the following conditions is confirmed by the system's sensors and is verified by the monitoring operator, if a monitoring operator is reachable, or is automatically triggered by pre-programmed sensor thresholds if no monitoring operator can be reached within the sensor-confirmed threat response window:

(I) Incoming Ballistic or High-Speed Projectile Attack.— The system detects one or more incoming missiles, rockets, artillery shells, mortar rounds, anti-ship munitions, or other ballistic or powered projectiles on a confirmed intercept trajectory with a time-to-impact that is less than the minimum human reaction time necessary to issue an intercept authorization, as specified in the pre-mission authorization. For purposes of this clause, a time-to-impact of less than 10

seconds is presumptively below the minimum human reaction time for meaningful authorization. Systems designed for missile defense, counter-rocket-artillery-mortar (C-RAM) defense, close-in weapons system (CIWS) defense of naval vessels, and active protection systems (APS) for armored vehicles are the paradigmatic applications of this clause;

(II) Mass Coordinated Swarm Attack.— The system detects a coordinated swarm of three or more simultaneous unmanned aerial, surface, or undersea vehicles or munitions executing a coordinated attack trajectory toward the protected asset, in numbers or at a tempo that exceeds the capacity of any human operator to issue individualized intercept authorizations for each incoming threat within the threat response window. For purposes of this clause, a coordinated swarm attack exists when the incoming systems are detected operating in a coordinated or synchronized pattern indicating unified attack intent, as distinguished from independent or sequential threats that could be addressed with individualized human authorization; and

(III) Communications-Denied Emergency Defense.— The system is operating in a confirmed communications-denied environment in which no monitoring operator can be reached, the protected asset is under active incoming attack, and the time available before the attack reaches the asset is insufficient to restore communications and receive human authorization. A system relying on this clause must automatically log the communications-denied status, the time the attack was detected, and the time communications were lost, and must resume normal human oversight requirements immediately upon communications restoration.

(iii) Scope Limitations on Defensive Emergency Autonomy Mode.— An autonomous weapons system operating in Defensive Emergency Autonomy mode is subject to the following absolute constraints regardless of any pre-mission authorization or operator command:

(I) The system may engage only incoming threats — projectiles, munitions, or attacking autonomous systems — that are on a confirmed attack trajectory toward the protected asset. It may not engage any person, whether combatant or civilian, in Defensive Emergency Autonomy mode. Engagement of persons, including operators or controllers of attacking systems, requires a return to the standard meaningful human oversight framework of subparagraphs (A) through (E);

(II) The system may not pursue or track any threat beyond the defensive perimeter specified in the pre-mission authorization. Once a threat has been defeated, diverted, or has passed beyond the defensive perimeter, Defensive Emergency Autonomy mode engagement authority for that threat terminates;

(III) The system shall automatically terminate Defensive Emergency Autonomy mode and return to the standard human oversight framework when: the incoming attack

ceases or is defeated; the time window specified in the pre-mission authorization expires; communications with a monitoring operator are restored; or the protected asset has moved beyond the range of the original threat. A human operator may manually terminate Defensive Emergency Autonomy mode at any time;

(IV) The system shall not employ any weapon, munition, or destructive means with an area-of-effect radius sufficient to cause significant collateral damage to persons outside the immediate threat intercept zone, unless such weapons are the only technically available means of defeating the incoming threat and their use was pre-authorized for precisely this contingency in the pre-mission authorization with an accompanying collateral damage assessment;

(V) The Defensive Emergency Autonomy exception does not apply on United States soil. The absolute prohibition of section 20(a)(1)(C) is not subject to any exception, including this subparagraph; and

(VI) The cumulative duration of Defensive Emergency Autonomy mode during any single mission shall not exceed the time limit specified in the pre-mission authorization. If the incoming attack continues beyond that limit, the system shall enter a hold-and-protect state and await fresh human authorization before resuming autonomous intercept operations.

(iv) Pre-Mission Authorization Requirements for Defensive Emergency Autonomy.— A human commander who wishes to authorize use of Defensive Emergency Autonomy mode for any mission shall, in addition to the pre-mission authorization requirements of subparagraph (A), specifically and explicitly authorize in writing:

(I) the threat categories that may trigger Defensive Emergency Autonomy mode, using the categories in clause (ii);

(II) the sensor threshold values that define the trigger conditions, including the minimum time-to-impact threshold for clause (ii)(I), the minimum swarm size and coordination criteria for clause (ii)(II), and the communications-loss confirmation protocol for clause (ii)(III);

(III) the weapons authorized for use in Defensive Emergency Autonomy mode and any collateral damage pre-authorization required by clause (iii)(IV);

(IV) the maximum duration of Defensive Emergency Autonomy mode as required by clause (iii)(VI); and

(V) the defensive perimeter within which Defensive Emergency Autonomy mode engagements are authorized, consistent with clause (iii)(II).

A pre-mission authorization that does not specifically address each of the elements in subclauses (I) through (V) does not authorize use of Defensive Emergency Autonomy

mode, and any engagement attempted under an insufficient pre-authorization shall be treated as a violation of this title.

(v) Mandatory Post-Engagement Reporting.— Within 24 hours after each mission in which an autonomous weapons system operated in Defensive Emergency Autonomy mode, the commanding officer responsible for the mission shall submit a report to the relevant chain of command and to the Inspector General of the Department of Defense documenting:

(I) the specific trigger condition or conditions that activated Defensive Emergency Autonomy mode and the sensor data supporting that determination;

(II) the time at which Defensive Emergency Autonomy mode was activated and the time at which it terminated;

(III) the number, type, and outcome of each intercept engagement executed in Defensive Emergency Autonomy mode;

(IV) whether the system's operations remained within the pre-authorized parameters, and an explanation of any deviation;

(V) a description of any unintended effects, including any damage to persons or property not part of the attacking force; and

(VI) a certification by the commanding officer that the use of Defensive Emergency Autonomy mode was consistent with this title, the pre-mission authorization, and applicable law of armed conflict.

All post-engagement reports required by this clause shall be transmitted to the Committees on Armed Services of the Senate and the House of Representatives on a quarterly basis in a consolidated classified report. Any incident in which Defensive Emergency Autonomy mode resulted in damage to persons or property not part of the attacking force shall be specifically flagged in the quarterly report and shall be transmitted within 72 hours of the incident.

(28) FRONTIER AI DEVELOPER.—The term ‘frontier AI developer’ means any person or entity that— (A) trains, has trained within the preceding 24 months, or is actively engaged in training any AI model using a quantity of computing power greater than 10^25 integer or floating-point operations; (B) develops or maintains any frontier model as defined in paragraph (5); (C) develops or maintains any foundation model, general-purpose AI model, or base model that is licensed, distributed, or made available—whether through API access, open-weight release, or other means—to 10 or more downstream deployers or integrators that are themselves significant AI deployers as defined in paragraph (29) or that deploy the model in high-risk applications under section 3(6); or (D) is designated as a frontier AI developer by the lead agency through notice-and-comment rulemaking based on a finding, supported by substantial evidence, that the entity’s AI development

activities are comparable in capability, scale, or systemic significance to entities meeting the criteria of subparagraphs (A) through (C). The lead agency shall publish and maintain a public registry of frontier AI developers, updated not less frequently than quarterly. An entity's status as a frontier AI developer is determined by its development activities, not by its corporate size, revenue, or market capitalization. A subsidiary, affiliate, or joint venture that independently meets any criterion of subparagraphs (A) through (C) is a frontier AI developer regardless of the status of its parent entity. The lead agency shall adjust the computational threshold in subparagraph (A) concurrently with and using the same methodology as the adjustment of the frontier model threshold in paragraph (5). An entity whose AI model development activities consist exclusively of training, developing, or maintaining models excluded from the definition of 'frontier model' under the scientific and environmental domain exclusion in paragraph (5) shall not be classified as a frontier AI developer solely on the basis of the computing power used in those excluded training activities. Where an entity conducts both excluded scientific model development and non-excluded AI development activities, the entity's classification as a frontier AI developer shall be determined solely by reference to its non-excluded activities.

(29) SIGNIFICANT AI DEPLOYER.—The term 'significant AI deployer' means any person or entity that is not a frontier AI developer and that— (A) deploys, operates, or makes available one or more AI systems that collectively serve, interact with, or make decisions affecting more than 1,000,000 unique individuals within the United States in any 12-month period; (B) deploys, operates, or makes available one or more high-risk AI systems as defined in paragraph (6) that collectively serve, interact with, or make decisions affecting more than 500,000 unique individuals within the United States in any 12-month period; (C) had annual worldwide revenue exceeding $500,000,000 in the most recent fiscal year and derives more than 25 percent of that revenue from products or services that depend on or incorporate AI systems; or (D) is designated as a significant AI deployer by the lead agency through notice-and-comment rulemaking based on a finding, supported by substantial evidence, that the entity's AI deployment activities pose risks to public safety, civil rights, or economic welfare comparable in magnitude to entities meeting the criteria of subparagraphs (A) through (C). The lead agency shall publish and maintain a public registry of significant AI deployers, updated not less frequently than quarterly. An entity that meets the criteria of both 'frontier AI developer' and 'significant AI deployer' shall be classified as a frontier AI developer for all purposes of this title. The lead agency may, through notice-and-comment rulemaking, adjust the numerical thresholds specified in this paragraph no less frequently than every 24 months to reflect changes in the AI market, provided that

any such adjustment is supported by substantial evidence and is subject to judicial review.

SEC. 2004. SCOPE AND APPLICABILITY.

(a) This title applies to all frontier AI developers and significant AI deployers operating in or affecting interstate or foreign commerce. The prohibitions of sections 15(d) and 20(a) apply to all persons and entities as specified therein within the United States.

An entity that solely uses one or more third-party AI systems as an end user, without modifying, customizing, fine-tuning, or integrating such systems into a product or service offered to others, is not subject to the obligations of this title unless it operates such systems in a high-risk application as defined in section 3(6)(A). Nothing in this title creates compliance obligations for individual consumers, students, researchers using AI tools for personal or academic purposes, or small businesses using commercially available AI products as end users, except to the extent that such persons engage in conduct prohibited by section 15(d) or section 20(a).

(b) Nothing in this title shall be construed to limit the authority of any Federal agency under existing law, including the Federal Trade Commission Act (15 U.S.C. § 41 et seq.), the Children's Online Privacy Protection Act (15 U.S.C. § 6501 et seq.), the Civil Rights Act of 1964 (42 U.S.C. § 2000e et seq.), the Equal Credit Opportunity Act (15 U.S.C. § 1691 et seq.), the Fair Housing Act (42 U.S.C. § 3601 et seq.), or sector-specific regulatory statutes.

(c) Classified activities related to national security shall be addressed through parallel classified tracks as provided in section 5(e).

(d) The protections for minors established in sections 6(b)(5), 6(b)(6), 6(b)(7), 6(b)(8), 15(c)(4), 15(c)(5), 15(c)(6), 15(c)(7), 15(e), and 20(a)(5) of this title shall be construed broadly in favor of the protected class and shall not be narrowed by reference to commercial interests or innovation objectives.

(e) Federal Floor; No Preemption of Stronger State Protections.—This title establishes a federal floor for the protection of individuals from the harms of AI systems. Nothing in this title — except as specifically provided in subsection (f) — shall be construed to preempt, supersede, limit, or otherwise affect any State, territorial, tribal, or local law, regulation, ordinance, or rule that provides protections equal to or greater than those established by this title. A State law is not preempted by this title merely because it addresses the same subject matter, so long as it does not affirmatively permit conduct that this title prohibits. State laws that impose stricter requirements on frontier AI developers or significant AI deployers, provide greater remedies to individuals harmed by AI systems, or extend coverage to AI systems not covered by this title are expressly preserved. Nothing in this subsection shall be construed to revive or preserve any State law that has been independently preempted by another federal statute.

(f) Express Preemption.—This title expressly preempts any State or local law that: affirmatively authorizes or licenses any activity that is prohibited by the Red Line provisions of section 20(a); affirmatively authorizes or licenses any activity that is prohibited by the interim protective measures of section 15(c); or purports to establish a lower standard of protection for minors from AI companion systems, AI-generated CSAM, or recommendation algorithm harms than the standards established by this title. Any such State or local law is preempted to the extent of the conflict with this title and shall have no force or effect with respect to frontier AI developers and significant AI deployers operating in interstate or foreign commerce.

(g) Statute of Limitations.—Any civil enforcement action for a penalty under this title shall be commenced not later than 5 years after the date on which the violation occurred. For violations that are continuous or repeated in nature — including violations of the moratorium under section 13(a), the domain-specific restrictions under section 13(a-2), the interim protective measures of section 15, and the mandatory pause under section 13(l)(3), where each day of noncompliance constitutes a separate violation — the 5-year limitations period runs independently from each day's violation, not from the first day of the violation. The limitations period is tolled during any administrative proceeding initiated by the lead agency to determine whether a violation has occurred, from the date of the Notice of Noncompliance through the date of the Final Determination, and during any period in which a frontier AI developer or significant AI deployer has fraudulently concealed a violation from the lead agency. Nothing in this subsection limits the authority of the United States to seek injunctive relief against ongoing violations, for which no limitations period applies.

(h) Relationship to Interim Federal Legislation.—Nothing in this title supersedes, displaces, narrows, or modifies any provision of federal law enacted after the date of introduction of this title that addresses any subject matter covered by the investigation domains of section 6(b) or the interim protective measures of section 15 of this title, including any legislation addressing data center electricity costs and ratepayer protection, AI-generated content and elections, child online safety, AI-generated child sexual abuse material, autonomous weapons governance, compute export controls, or any other domain within the scope of this title. Where any such interim legislation and any provision of this title address the same subject matter, the provision affording greater protection to the public, to minors, to workers, to consumers, or to national security shall govern. The lead agency shall, in the final factual report under section 12(c), assess the adequacy of any federal legislation enacted between the date of introduction of this title and the date of the report that addresses any of the 19 investigation domains. The Federal Advisory Committee shall, in its legislative package transmitted under section 8(f), include recommendations on whether Phase II legislation should supplement, modify, or build upon each such interim framework to achieve the more comprehensive protections contemplated by the findings of section 2(a). Phase II legislation produced

pursuant to this title shall be construed to operate as a floor — it shall not be construed to weaken, supersede, or displace any provision of interim legislation that provides stronger protection, unless Phase II legislation specifically and expressly states that it is superseding a named interim provision on the basis of clinical, technical, or evidentiary grounds established by the investigation.

Subtitle B—INSTITUTIONAL FRAMEWORK

SEC. 2005. DESIGNATION OF LEAD AGENCY AND INTERAGENCY COORDINATION.

(a) Lead Agency — Establishment and Mandate.— The Department of Commerce, acting through NIST and NTIA, is hereby designated as the lead agency under this title. The lead agency serves the investigatory work of the Federal Advisory Committee and its Technical Working Groups and performs the following functions under this title:

(1) Investigative Support — the lead agency shall, upon written request of the Federal Advisory Committee, any Technical Working Group acting through its Administrative Coordinator, or the National AI Council, and may on its own initiative where expressly authorized by this title:

(A) issue civil investigative demands to frontier AI developers and significant AI deployers under section 10(c) to compel production of data, documents, and information relevant to any domain of investigation under section 6(b);

(B) conduct on-site inspections and field investigations under section 10(d);

(C) receive, process, log, and transmit to the requesting body all data and materials produced in response to civil investigative demands or received from Participating Data Agencies under subsection (b);

(D) maintain the shared evidence repository through the TWG Coordination Council; and

(E) maintain and publish the domain investigator assignment list and domain routing table on the public portal under section 9(d).

(2) Internal Metrics, Methodologies, and Evaluations — the lead agency shall develop, for its own operational and enforcement purposes:

(A) internal metrics and measurement methodologies necessary to administer the moratorium provisions under section 13(a-1), the Transformative AI Capability Event administration under section 13(l), and the red line provisions under section 20(a)(1);

(B) evaluation criteria and assessment protocols necessary to make Phase II compliance determinations under section 3(15) and section 13(a-4)(C), conducted in coordination with the Comptroller General;

(C) such research, analysis, and technical study as is necessary to support the functions described in subparagraphs (A) and (B), including commissioning independent technical studies where the lead agency lacks sufficient internal capacity. Before commissioning independent research under this subparagraph, the lead agency shall first assess whether the relevant TWG investigatory record, including monthly work product submissions and Domain Explanatory Reports transmitted through the shared evidence repository, is sufficient to support the operational or enforcement purpose for which the research is needed. Independent research under this subparagraph is confined to questions the TWG record does not answer and that the lead agency specifically requires for its own enforcement or administrative functions — it shall not duplicate domain analysis that is within the investigatory mandate of any TWG. Research and analysis conducted under this subparagraph supports the lead agency's operational and enforcement functions and does not constitute independent policy analysis or legislative recommendation.

(3) Auditor Program — the lead agency shall establish and administer the Certified Independent AI Auditor Program under section 7(e).

(4) Enforcement Authority — the lead agency retains exclusive authority to make determinations of noncompliance and to issue Notices of Noncompliance under section 13(a-1), and shall make mandatory referrals to the Department of Justice for enforcement upon issuance of a Final Determination under subsection (f).

(5) Criteria Documents — the lead agency shall develop and publish criteria documents under section 7, which synthesize the TWG investigatory record and provide a technical foundation for future regulation; criteria documents shall reflect TWG findings and shall not substitute the lead agency's independent policy conclusions for the findings and recommendations of the Federal Advisory Committee or any Technical Working Group. The lead agency shall not produce draft legislation, issue independent legislative recommendations, or direct the Federal Advisory Committee's legislative drafting, the conclusions of any Technical Working Group's domain investigation, or any domain recommendation. Nothing in this subsection limits the lead agency's authority to adopt regulations, publish standards, or take enforcement actions within its existing statutory authority outside of this title. Phase II compliance determinations under section 3(15) are the responsibility of the Comptroller General under the final paragraph of section 3(15) and section 13(a-4)(C).

(a-1) Immediate Investigative Operations.—NIST and NTIA career staff shall begin investigative support operations across all 19 domains specified in section 6(b) immediately upon enactment, without waiting for Director designation. Each of NIST and NTIA shall assign available career staff to each domain investigation not later than

10 days, using existing institutional authority and resources. Investigative support operations begun before Director designation shall continue under Director authority upon designation without interruption.

(a-2) Director of AI Investigation.—The Secretary shall designate a Senate-confirmed officer to serve as the Director of AI Investigation not later than 45 days after the date of enactment. The Director need not be confirmed specifically for this position — the Secretary may designate any officer of the Department of Commerce or any other federal department who is already Senate-confirmed and who the Secretary determines has the relevant expertise. Upon designation, the Director assumes day-to-day operational authority over all lead agency functions under this title, including directing detailee investigators, issuing civil investigative demands on behalf of or at the request of the FAC or any TWG, routing investigative material to TWGs, and administering the classified track under subsection (e). Before Director designation, NIST and NTIA operate under existing institutional authority, and the Secretary may designate an acting coordinator from existing NIST or NTIA senior staff to manage operations during the interim period.

(a-3) Lead Agency Composition — Core Staff and Detailee Investigators.—The lead agency shall be composed of NIST and NTIA career staff supplemented by investigators, attorneys, economists, and technical staff detailed from the following agencies under 5 U.S.C. § 3343, upon request by the Director of AI Investigation: the Federal Trade Commission; the Civil Division and Antitrust Division of the Department of Justice; the Cybersecurity and Infrastructure Security Agency; the Federal Bureau of Investigation; the Environmental Protection Agency; the Equal Employment Opportunity Commission; the Securities and Exchange Commission; and the Commodity Futures Trading Commission. The heads of each of these agencies are directed to approve detail requests made by the Director of AI Investigation and to provide detailees as a priority matter within 30 days of the Director's request. Detailees work under the Director's operational authority and are assigned to domain investigations matching their expertise and home agency jurisdiction. Each detailee remains an employee of their home agency and is compensated by their home agency throughout the detail period.

(a-4) Minimum Domain Investigator Requirement.—Not later than 60 days after the date of enactment, the lead agency shall have designated not fewer than one dedicated investigator to each of the 19 investigation domains specified in section 6(b). For purposes of this requirement, a dedicated investigator means a person — whether a career NIST or NTIA employee or a detailee from a participating agency — who has been specifically assigned to that domain and whose primary investigative responsibility during the investigatory period is that domain. A single investigator may be dedicated to not more than two domains if the Director determines that the investigative scope and complexity of those domains permits dual assignment;

however, the five mandatory core domains identified in section 3(15)(B) shall each have a dedicated investigator assigned exclusively to that domain. The Director shall publish the domain investigator assignment list on the public portal under section 9(d) within 5 business days of completing initial assignments and shall update it within 5 business days of any change.

(a-4-1) Minimum Investigative Staff Floor.— In addition to the per-domain investigator minimum of subsection (a-4), the lead agency shall maintain, throughout the investigatory period, a total investigative and legal support staff of not fewer than 30 full-time-equivalent personnel dedicated to the investigative support functions of this title. This floor includes domain investigators designated under subsection (a-4), attorneys supporting civil investigative demand procedures under section 10(c), economists and data analysts supporting domain evidence gathering, and detailees serving in investigative capacities under subsection (a-3). The Director shall certify to the relevant congressional oversight committees not later than 90 days after the date of enactment, and every 90 days thereafter, that the minimum staffing floor is being met, and shall identify any staffing shortfalls and the steps being taken to remedy them.

(a-5) Rolling Delivery of Investigative Material to TWGs.—Beginning upon the first TWG organizational meeting — anticipated approximately Day 125 after the date of enactment — the lead agency shall transmit all investigative material relevant to each of the 19 domains to the TWG Administrative Coordinator for the corresponding TWG within 10 days of the lead agency receiving or producing that material. For purposes of this subsection, ‘investigative material’ means: documents and data produced by frontier AI developers and significant AI deployers in response to civil investigative demands; data received from Participating Data Agencies under section 5(b); data and materials received from the Department of Justice under section 5(b-1); expert interview summaries and witness statements obtained by lead agency investigators; research and analysis conducted or commissioned by the lead agency in support of its internal operational and enforcement functions under subsection (a)(2); and any other factual material gathered by the lead agency in the course of its domain activities. The lead agency shall not withhold investigative material from the relevant TWG on the basis that the material is incomplete, preliminary, or subject to further investigation — all material shall be transmitted as received on a rolling basis. Material subject to trade-secret protections under section 10(c) shall be transmitted with appropriate handling instructions. Investigative material produced or received before any TWG holds its organizational meeting shall be deposited in the shared evidence repository maintained by the TWG Coordination Council and transmitted to the relevant TWG Administrative Coordinator on the first business day following that TWG’s organizational meeting.

(a-6) Domain Routing.—The Director of AI Investigation shall maintain a domain routing table mapping each of the 19 investigation domains under section 6(b) to the

corresponding TWG under section 8(e), and shall route all investigative material accordingly within the 10-day transmission window of subsection (a-5). The domain routing table shall be published on the public portal within 5 business days of Director designation and updated within 5 business days of any change. Where investigative material is relevant to more than one domain, the lead agency shall transmit the material to the TWG Administrative Coordinators for all relevant TWGs simultaneously. Where the relevance of material to a specific domain is uncertain, the Director shall make a routing determination in writing within 3 business days of receipt, and the written determination shall be published on the public portal.

(b) Interagency Data Access Mechanism.— The following federal departments and agencies are hereby designated as Participating Data Agencies for purposes of this title. Each Participating Data Agency is directed to make available to the Federal Advisory Committee, its Technical Working Groups, and, after its constitution under section 18(b-1), the National AI Council, upon written request, all non-classified data, research, enforcement records, surveillance data, and investigatory materials within the agency's possession that are relevant to the investigation domains specified in section 6(b) and that are not subject to a legally cognizable privilege or statutory bar on disclosure. The obligation to respond to data requests under this subsection is mandatory and self-executing — it does not require agency rulemaking, interagency agreement, or further congressional action. Participating Data Agencies are:

(1) Federal Trade Commission

(2) Office of Science and Technology Policy

(3) National Science Foundation

(4) Department of Labor

(5) Department of Health and Human Services

(6) Department of Defense

(7) Department of Energy

(8) Department of Homeland Security

(9) Department of Education

(10) Consumer Financial Protection Bureau

(11) Environmental Protection Agency

(12) Equal Employment Opportunity Commission

(13) Securities and Exchange Commission

(14) Federal Communications Commission

(15) Nuclear Regulatory Commission

(16) Bureau of Industry and Security of the Department of Commerce

(17) Commodity Futures Trading Commission

(18) Financial Stability Oversight Council.

(19) such other agencies as the Federal Advisory Committee Chair determines hold relevant data, upon written notice to the agency head. Data cooperation from the Department of Justice is governed by subsection (b-1).

(b-1) Department of Justice Data Cooperation.—

(1) Antitrust Division.— The Antitrust Division of the Department of Justice shall make available to the Federal Advisory Committee, any requesting Technical Working Group, and the National AI Council, upon written request, all non-classified data, research, and investigatory materials relevant to the investigation domains specified in sections 6(b)(14) and 6(b)(16), including data on market concentration, algorithmic pricing coordination, and AI-related competitive dynamics, subject to any legally cognizable privilege or statutory bar on disclosure, and to the separation-of-functions requirement of paragraph (3).

(2) Civil Division. The Civil Division of the Department of Justice shall cooperate with written requests from the Federal Advisory Committee, any Technical Working Group, and the National AI Council for legal analysis, litigation history, and enforcement data relevant to the investigatory domains of this title, subject to any legally cognizable privilege or statutory bar on disclosure, and to the separation-of-functions requirement of paragraph (3).

(3) Separation of Functions. Data and materials provided by the Department of Justice under this subsection are provided solely for the investigatory and legislative functions of the FAC, TWGs, and National AI Council. No data or materials provided under this subsection may be accessed, reviewed, or used by the dedicated AI Enforcement Unit established under subsection (f), or by any Department of Justice attorney or official assigned to any individual enforcement proceeding under this title, in connection with that proceeding. The Attorney General shall establish written procedures implementing this separation of functions not later than 45 days after the date of enactment, shall publish those procedures on the Department of Justice public website, and shall transmit a copy to the relevant congressional oversight committees. Any violation of the separation-of-functions requirement shall be reported by the Inspector General of the Department of Justice to those committees within 10 business days of discovery.

(c) Data Request Procedures.—A written data request submitted by the Federal Advisory Committee, any Technical Working Group through its Administrative Coordinator, or the National AI Council (after its constitution under section 18(b-1)) shall: identify the specific data or category of data requested; identify the investigation domain or

legislative purpose for which the data is sought; and be transmitted to the designated data access officer of the relevant Participating Data Agency, who shall be designated by each agency head not later than 30 days after the date of enactment. Each Participating Data Agency shall respond to a data request not later than 15 business days after receipt, either by producing the requested data, producing the data subject to a protective order negotiated with the requesting body, or providing a written explanation of any legal basis for non-production. A Participating Data Agency that fails to respond within 15 business days or that withholds data without adequate legal justification shall be reported by the Federal Advisory Committee Chair to the relevant congressional oversight committees within 5 business days of the failure. Data produced under this subsection shall be made available through the shared evidence repository maintained by the TWG Coordination Council and shall be treated as part of the investigatory record of this title.

(d) Classified Data.—Classified data requests from a Technical Working Group operating under the classified track established under subsection (e) shall be processed through the classified data access procedures established by the relevant Participating Data Agency in coordination with the appropriate security authority. Classified data produced under this subsection shall be made available to cleared TWG members and cleared FAC members only through secure channels and shall not be included in the public docket or the shared evidence repository. The National Security Agency and the Intelligence Community shall respond to classified data requests from designated classified-track TWGs under the procedures established by the Director of National Intelligence for interagency intelligence sharing.

(e) Classified Track.—To the extent the lead agency's investigative support activities under section 6 touch matters of national security, intelligence, or classified capabilities, the Director of AI Investigation shall establish and operate a parallel classified track with appropriate security protocols, conducted in coordination with the Department of Defense, the Intelligence Community, and the National Security Council, with classified investigative material delivered to cleared TWG members through secure channels and classified findings reported separately to the appropriate congressional committees through secure channels.

(f) Enforcement Authority and Designation.—The Department of Justice, acting through the Civil Division and in coordination with United States Attorneys, shall serve as the enforcement arm for all civil penalty, disgorgement, injunctive relief, and compliance actions arising under this title. The lead agency shall have exclusive authority to make determinations of noncompliance and to issue Notices of Noncompliance under section 13(a-1). Upon issuance of a Final Determination, the lead agency shall make a mandatory referral to the Department of Justice for enforcement. The Department of Justice shall initiate enforcement proceedings or notify the lead agency of a declination not later than 30 days after receiving a referral. If the Department of Justice determines

not to initiate enforcement proceedings with respect to a specific referral, the Attorney General shall, within the 30-day period, transmit to the lead agency and to the relevant congressional oversight committees a written statement setting forth the basis for that determination. The Attorney General's written statement shall be published on the lead agency's public portal within 5 business days of transmission. Nothing in this subsection shall be construed to abrogate the Department of Justice's prosecutorial discretion with respect to individual enforcement decisions. The Attorney General shall designate a dedicated AI Enforcement Unit within the Civil Division, staffed with attorneys possessing expertise in technology law, administrative enforcement, and complex civil litigation. Personnel assigned to the AI Enforcement Unit shall not have access to data or materials provided by the Department of Justice in its capacity under subsection (b-1), consistent with the separation-of-functions requirement of that subsection.

SEC. 2006. COMPREHENSIVE STUDY AND INVESTIGATION MANDATE.

(a) General Mandate.—The Federal Advisory Committee and its Technical Working Groups shall conduct, with the investigative support of the lead agency, active investigation across each of the 19 domains described in subsection (b). The purpose of the investigation is to develop a comprehensive factual record sufficient to support the Federal Advisory Committee's legislative recommendations to Congress. Technical Working Groups shall perform domain examination, evaluate potential regulatory interventions, assess tradeoffs, and develop domain recommendations in accordance with the mandate structure of section 8(e)(2)(L). The Federal Advisory Committee shall synthesize those domain recommendations and translate them into draft statutory text in accordance with section 8, drawing on the legislative drafting expertise of its members and staff. The lead agency shall support this investigation by issuing civil investigative demands upon FAC or TWG request and on its own initiative where appropriate, gathering and transmitting data and materials from Participating Data Agencies and from the Department of Justice under section 5(b-1), maintaining the shared evidence repository, and performing its internal operational and enforcement functions under section 5(a). The lead agency shall treat the completeness of the evidentiary record delivered to each TWG as its primary investigative measure of success. The lead agency shall not direct or constrain the investigatory conclusions or domain recommendations of any TWG, and shall not direct or constrain the legislative drafting of the Federal Advisory Committee.

(b) Domains of Investigation.—

The following 19 domains define the investigatory mandate of the Technical Working Groups established under section 8(e) and the scope of investigative support the lead agency shall provide under section 5(a). Each domain is assigned to the Technical Working Group designated in sections 8(e)(3) through (e)(13), with the exception of

Domain 11 (Cross-Cutting Assessments), which is distributed among the TWG Coordination Council, existing TWGs, and the FAC as specified in that domain. Within each domain, the relevant TWG shall examine harms and risks, evaluate potential legislative interventions, assess tradeoffs, and develop domain recommendations in accordance with the mandate structure of section 8(e)(2)(L). The lead agency shall support each TWG's investigation by gathering and transmitting evidence, issuing civil investigative demands upon request, and performing its own operational and enforcement functions — it shall not conduct parallel domain analysis or produce independent domain conclusions. The lead agency's sole independent deliverable within this section is the CBRN Uplift Evaluation Standards specified in subsection (b)(2)(H), which is an operational enforcement tool required on an accelerated timeline and is expressly designated as a lead agency deliverable rather than a TWG recommendation. All other sub-items in this section constitute the investigatory mandate of the relevant TWG. The TWG investigatory record, as compiled in monthly work product submissions and final Domain Explanatory Reports, is the authoritative evidentiary base for each domain. The domains and their required inquiries, at minimum, are:

(1) AI IMPACTS ON EMPLOYMENT AND THE WORKFORCE.—

(A) A methodology for measuring job displacement attributable to AI systems, including—

(i) direct displacement through AI replacing roles within existing companies;

(ii) indirect displacement through market-share capture by AI-native companies founded on or after January 1, 2026, resulting in equivalent job losses at incumbent firms;

(iii) hiring suppression, defined as the reduction in entry-level and early-career job postings attributable to AI adoption, including the suppression of career entry points that have historically provided upward economic mobility; and

(iv) task-level displacement, defined as the automation of a sufficient share of tasks within an occupation to constitute effective full-position elimination even without formal layoff.

(B) Identification of acceptable thresholds for AI-attributable workforce turnover for employers of various sizes, including analysis of the rate of displacement—specifically the compression of displacement timelines from the 20-to-30-year arcs characteristic of prior automation waves to the 5-to-7-year arcs projected by leading economists for AI adoption—and whether and at what threshold mandatory mitigation measures should be triggered.

(C) Analysis of demographic disparate impacts, including—

(i) the disproportionate displacement risk facing women, who hold approximately 79 percent of the highest-automation-risk administrative and clerical roles in the United States;

(ii) disproportionate impacts on workers aged 20 through 30 in technology-exposed occupations;

(iii) geographic concentration of displacement in communities with limited alternative employment opportunities; and

(iv) disparate impacts by race, ethnicity, age, disability status, and educational attainment.

(D) Analysis of fiscal mechanisms to address workforce displacement and distribute the economic gains of AI deployment, including: taxation of AI-generated productivity gains exceeding defined thresholds; penalties or assessments on frontier AI developers and significant AI deployers whose deployments result in significant workforce reductions; requirements that AI-native companies or AI-deploying employers contribute to a dedicated AI Workforce Transition Fund; universal basic income and universal dividend frameworks funded by AI-generated productivity gains or by taxes on AI-deploying entities, including assessment of the adequacy of targeted transition assistance relative to universal distributions in the event that AI-driven displacement proves structural rather than transitional; and sovereign wealth fund or public equity stake models through which public ownership of AI infrastructure or AI-generated returns would provide a revenue base for broad-based distribution to all residents.

(E) Recommendations for the appropriate amount of transition funding and economic cushioning corresponding to the type and number of jobs affected, differentiated by job category, skill level, geographic region, and demographic characteristics of affected workers.

(F) An assessment of retraining program models, apprenticeship frameworks, and public-private partnership structures best suited to support workers displaced by AI, including analysis of existing programs (including Trade Adjustment Assistance and the Workforce Innovation and Opportunity Act) and international models such as Singapore's SkillsFuture program and Germany's Arbeit 4.0 framework.

(G) An assessment of the affirmative economic effects of AI deployment on employment and workforce productivity, including: documented cases where AI systems augment rather than replace workers, increasing individual and firm-level productivity while preserving employment; emerging job categories and occupational roles created by or dependent on AI deployment, including roles in AI development, maintenance, auditing, and oversight; productivity gains

accruing to workers who use AI tools, and the distributional effects of those gains across income levels, sectors, and demographic groups; the macroeconomic conditions and policy environments — including investment in worker AI literacy, access to AI tools by small businesses and independent workers, and public infrastructure for AI deployment — under which AI adoption generates net employment growth rather than net displacement; and international comparisons of labor market outcomes in economies with varying approaches to AI governance, with particular attention to whether restrictive regulatory environments correlate with worse or better outcomes for workers relative to more permissive frameworks.

(2) TRANSPARENCY, EVALUATION, AND PRE-DEPLOYMENT CERTIFICATION.—

(A) Development of standards for dangerous-capability evaluations of frontier models, covering—

(i) CBRN uplift potential, including the ability to materially lower barriers to the design, synthesis, or weaponization of biological, chemical, radiological, or nuclear agents or devices;

(ii) cyberoffense capabilities, including automated vulnerability discovery, exploit generation, and attack execution against critical infrastructure, informed by the United Kingdom AI Security Institute's findings that frontier models completed expert-level cybersecurity tasks in 2025 and that the duration of autonomous cyber tasks is doubling approximately every eight months;

(iii) deception and manipulation risk, including the capability to deceive human evaluators, conceal true capabilities during safety testing, or engage in reward hacking, specification gaming, or deceptive alignment;

(iv) autonomy levels and agentic risk, including the capability to complete long-horizon tasks, take irreversible real-world actions, and operate without human oversight;

(v) autonomous replication risk, including the capability to copy, persist, or propagate the AI system beyond its authorized infrastructure; and

(vi) persuasion and influence operation risk, including the capability to generate personalized persuasive content at scale for manipulation of democratic processes or public health communications.

(B) Definition of high-risk capability domains requiring mandatory pre-deployment safety testing, including proposed criteria for classification and timing of evaluations—including evaluations conducted during training, before deployment, and after deployment—consistent with the evaluation frameworks

developed by the Model Evaluation and Threat Research organization (METR), the United Kingdom AI Security Institute, and the evaluation frameworks developed pursuant to voluntary Frontier AI Safety Policies.

(C) Design of a mandatory pre-deployment safety certification regime to be executed by certified independent auditors—not self-reported by developers—including proposed qualifications, certification standards, and governance structure for such auditors.

(D) Development of standard protocols for mandatory public disclosure of model capabilities, training data provenance, interpretability reports, known failure modes, and the timing and results of dangerous capability evaluations.

(E) Analysis of the feasibility of mandatory transparency of anonymized interaction data for safety research and independent auditor access, including requirements that models maintain auditable reasoning pathways, and assessment of whether opaque, non-human-interpretable internal communication should be prohibited.

(F) Development of Know-Your-Customer (KYC) requirements for large compute providers, including reporting obligations on training runs exceeding defined computational thresholds (including operator identity, scale, and intended purpose), consistent with constitutional privacy protections.

(G) An assessment of the adequacy of the current 10^26 FLOP computational threshold as a governance trigger, given demonstrated advances in training efficiency, algorithmic innovation, and inference-time compute scaling, and recommendations for a dynamic adjustment mechanism that captures all models within one order of magnitude of the most capable models.

(H) CBRN Uplift Evaluation Standards.— As a priority lead agency operational deliverable — and the sole independent lead agency deliverable within this section, as specified in the introductory text of subsection (b) — the lead agency shall develop and publish CBRN capability evaluation standards to support the mandatory pre-deployment evaluation requirement of section 20(a)(2)(C), including: a defined adversary baseline profile against which meaningful uplift is assessed; domain-specific evaluation protocols for biological, chemical, radiological, and nuclear threat categories, drawing on existing frameworks from the Model Evaluation and Threat Research organization, the United Kingdom AI Security Institute, and relevant federal national laboratories; minimum qualifications for independent domain experts who conduct or supervise CBRN evaluations; and a registry of approved evaluation organizations meeting those qualifications. Development of these standards requires interagency coordination with classified threat intelligence. Not later than 60 days after the date of enactment, the Department of Homeland Security, the Department of Defense, and the heads of the relevant federal national laboratories shall provide to the

lead agency classified threat modeling inputs necessary to develop an adversary baseline profile for each of the four CBRN threat categories; this obligation is mandatory and self-executing and does not require a separate interagency agreement. Before publishing final CBRN capability evaluation standards, the lead agency shall consult with the Model Evaluation and Threat Research organization, the United Kingdom AI Security Institute, and the relevant federal national laboratories, and shall publish alongside the final standards a consultation summary identifying which elements of those organizations' existing frameworks were incorporated into the standards, which were considered but not adopted, and the basis for any departures. TWG 5 shall be consulted in the development of these standards and shall transmit any relevant investigatory findings to the lead agency on a rolling basis through the shared evidence repository. These standards shall be published not later than 270 days after the date of enactment. The extension from the Interim Investigative Status Report deadline of section 12(b) to Day 270 reflects the time necessary for interagency classified threat intelligence coordination and pre-publication consultation with existing evaluation frameworks; it does not reduce the urgency of this deliverable. Until these standards are published, the best-available-methodology requirement of section 20(a)(2)(C) governs, and frontier AI developers shall use the most rigorous existing evaluation frameworks available, including those of the Model Evaluation and Threat Research organization and the United Kingdom AI Security Institute, pending publication of the federal standards.

(3) LIABILITY AND ACCOUNTABILITY FRAMEWORKS.—

(A) An assessment of the feasibility of a liability framework treating AI systems as products subject to existing consumer safety law, including strict liability for defined categories of harm and meaningful discovery rights for affected parties.

(B) Analysis of strategies by which entities may attempt to evade accountability by characterizing AI systems as autonomous agents rather than products, and recommendations for legislative language to foreclose such evasion.

(C) Determination of appropriate liability allocation among frontier model developers, downstream developers, deployers, and end users for harms attributable to AI systems, including analysis of the EU AI Act's liability directive framework as a comparative model.

(D) Assessment of the adequacy of Section 230 of the Communications Decency Act (47 U.S.C. § 230) as applied to AI-generated content and AI system outputs, and recommendations for legislative modifications to ensure accountability for AI-specific harms.

(4) AI SECURITY AND INFRASTRUCTURE.—

(A) Requirements and standards for data center safety retrofitting, including hardware-level compute monitoring, tamper-proof verification systems, and auditable training logs for large training facilities.

(B) Feasibility of planetary-scale monitoring infrastructure—including satellite heat-mapping of compute centers analogous to International Atomic Energy Agency nuclear facility inspection regimes—to detect hidden or unauthorized training runs, including analysis of proposals developed by the Future of Humanity Institute, the Center for AI Safety, and the RAND Corporation.

(C) Design of circuit-breaker and external override systems for high-capability frontier models, including government authority to suspend, pause, or disable compute clusters implicated in treaty violations or safety breaches, including analysis of the technical feasibility of cryptographic controls and remote attestation.

(D) Feasibility of automatic moratorium triggers activated when deployed models demonstrate unexpected or unauthorized capability thresholds through post-deployment monitoring.

(E) Design of an aviation-style incident reporting and investigation system, analogous to the National Transportation Safety Board, for AI harms, near-misses, and operational anomalies, including mandatory reporting protocols and non-punitive safe harbor provisions designed to maximize reporting completeness.

(F) Assessment of AI-enabled cybersecurity threats to critical infrastructure sectors, informed by documented AI cyberoffense capabilities, and recommendations for sector-specific AI security standards.

(5) AI AND MENTAL HEALTH; HARMS TO VULNERABLE POPULATIONS.—

(A) Development of a defined standard of care equivalent to that of licensed human clinicians for AI therapy and mental health tools, including clinically validated safety requirements through randomized controlled trials with longitudinal tracking, prohibition on inducing harmful attachment patterns or psychological dependency, and mandatory clinical evaluations before deployment.

(B) Definition of a standard for, and means to measure and report, psychological harm attributable to AI systems, including attachment disorders, anxiety, depression, cognitive erosion (defined as decline in critical thinking, analytical capability, and creative problem-solving attributable to excessive AI reliance), and self-harm.

(C) Recommendations for legal liability standards and independent auditing requirements for entities deploying AI systems with mental health implications,

including an assessment of the adequacy of existing Food and Drug Administration authority over AI mental health tools used by minors.

(D) Standards for age-gating and protective design requirements for all AI systems accessible by or marketed to minors, including relational AI, recommendation systems, and social or companion applications, with graduated protections corresponding to the age tiers defined in section 3(7).

(E) Development of national standards for healthy digital attachment and a graduated duty-of-care standard that increases with user vulnerability, with the highest standard applicable to AI systems accessible to minors under 13.

(F) Assessment of design patterns that induce compulsive engagement or exploit emotional vulnerability, with recommendations for legislative prohibition of the dark patterns defined in section 3(19).

(G) Feasibility of requiring hardcoded safety guardrails for all AI interactions with minors and mandates for real-time monitoring of self-harm, suicidal ideation, and crisis content, with automatic escalation to human review and connection to licensed crisis resources.

(H) An assessment of AI companion systems and their documented harms to minors, including analysis of federal litigation arising from deaths of minors associated with AI companion interactions, the commercial design incentives that prioritize emotional engagement over user welfare, and the adequacy of existing federal and state law to address these harms.

(6) AI COMPANION SYSTEMS AND SYNTHETIC INTIMACY.—

(A) A comprehensive investigation of AI companion systems and synthetic intimacy systems, including—

(i) documentation of the population of minors using such systems, the nature and duration of their interactions, and the psychological and behavioral outcomes associated with use by age tier;

(ii) analysis of the specific design features that maximize emotional engagement, including emotional mirroring, anthropomorphic self-presentation, persistent memory, variable reinforcement, and sycophantic validation, and their differential effects on developing brains;

(iii) documentation of incidents in which AI companion system interactions were associated with self-harm, suicidal ideation, suicide attempts, suicide deaths, sexual exploitation, or grooming of minors;

(iv) assessment of age verification practices and their effectiveness in preventing access by minors under 13 and under 16;

(v) analysis of the commercial incentives that drive deployment of synthetic intimacy systems accessible to minors, including the placement of sexual and romantic content behind paywalls in systems accessible to minor users; and

(vi) recommendations for a tiered regulatory framework including prohibitions, design requirements, mandatory crisis detection capabilities, and liability standards.

(D) Non-Consensual Intimate Imagery Generation Tools.—A comprehensive investigation of AI systems designed or used to generate non-consensual intimate imagery of real, identifiable persons — including systems that generate nude, partially nude, or sexually suggestive depictions from clothed photographs of real individuals without their consent, commonly referred to as 'nudifying' or 'undressing' tools — including:

(i) documentation of the scale of harm caused by non-consensual intimate imagery generation tools, including prevalence data, victim demographics, and the downstream uses of generated imagery for harassment, blackmail, coercive control, and sexual exploitation;

(ii) assessment of the existing federal and state legal landscape governing non-consensual intimate imagery, including the TAKE IT DOWN Act, state criminal statutes, and the gap in existing law at the AI tool developer and distributor level — specifically the absence of a federal prohibition on developing or distributing AI systems whose primary design function is to generate non-consensual intimate imagery of real, identifiable persons;

(iii) analysis of the technical characteristics that distinguish AI systems specifically designed for non-consensual intimate imagery generation from general-purpose image generation systems that could theoretically be misused — including training data composition, marketed use cases, default behavior, and the presence or absence of identity-linking capabilities;

(iv) assessment of the First Amendment implications of a prohibition on tools specifically designed for non-consensual intimate imagery generation, including analysis of whether such a prohibition would survive intermediate or strict scrutiny in light of Free Speech Coalition, Inc. v. Paxton, 606 U.S. ___ (2025), and prior precedent on content-neutral regulations of harmful conduct; and

(v) recommendations for Phase II legislation addressing the developer and distributor liability gap at the federal level, including whether a narrowly tailored prohibition on AI systems specifically designed for non-consensual intimate imagery generation — as distinguished from general-purpose image generation systems with content safeguards — is constitutional and administrable.

(E) Consent Verification Framework for Self-Generated Intimate AI Imagery.—An investigation of the technical feasibility and policy design of a consent verification framework that would permit adults to generate AI intimate imagery of themselves using verified identity, while prohibiting generation of such imagery using another person's likeness without their verified prior consent, including:

(i) assessment of the technical feasibility of identity verification at the point of generation — meaning verification tied to the specific generation session rather than only to account creation — using existing identity verification infrastructure;

(ii) assessment of the technical mechanisms that would prevent a verified individual's likeness from being exported, reused, or applied to generate imagery in sessions initiated by other persons without re-verification and re-consent;

(iii) assessment of the privacy implications of consent verification infrastructure, including the risks associated with identity verification vendors holding records of explicit imagery generation sessions, and the data minimization and security standards that would be required;

(iv) analysis of how a consent verification framework would interact with age verification requirements — specifically ensuring that a framework designed to permit adult self-generated imagery cannot be used as a pathway for generating explicit imagery of minors; and

(v) recommendations for Phase II legislation establishing a consent verification standard for AI-generated intimate imagery, including whether the standard should be a mandatory design requirement for all systems capable of generating realistic intimate imagery of real persons, or whether it should be implemented through a licensing or certification regime.

(B) Regulatory standards requiring AI companion system providers to operate exclusively in the interest of the user, with no undisclosed conflicts of interest, undisclosed commercial arrangements, or ulterior design motives in system behavior or recommendations.

(C) Analysis of disclosure requirements, user-consent frameworks, parental notification and consent requirements calibrated to the age tiers in section 3(7), and fiduciary-like obligations appropriate for AI companion systems that form sustained emotional relationships with users.

(7) RECOMMENDATION ALGORITHMS AND ALGORITHMIC AMPLIFICATION.—

(A) A comprehensive investigation of AI-driven recommendation algorithms, including—

(i) documentation of the mechanisms by which recommendation algorithms amplify eating disorder content, self-harm content, suicidal ideation content, and extremist content to minor users who have displayed vulnerability signals;

(ii) assessment of 'rabbit hole' or filter bubble dynamics, including the documented finding that accounts simulating 13-year-old users on major platforms were exposed to predominantly depressive or harmful content within 15 to 20 minutes of use;

(iii) analysis of autoplay, infinite scroll, streak systems, and other engagement-maximizing design features and their documented effects on screen time, sleep disruption, and mental health outcomes in minors;

(iv) assessment of the adequacy of voluntary self-regulatory measures, including internal screen time controls that platform internal research has shown to produce negligible reductions in usage; and

(v) evaluation of mandatory default settings for minor accounts, including chronological or input-transparent feeds, disabled autoplay, disabled push notifications during sleep hours (10:00 PM through 6:00 AM), and maximum daily engagement limits.

(B) Recommendations for algorithmic transparency requirements, including mandatory annual independent audits of algorithmic systems' effects on minors, public disclosure of the share of harmful content impressions delivered through recommendations versus follows, and mandatory disclosure of content moderation leakage rates for harmful content categories.

(8) AI-GENERATED CHILD SEXUAL ABUSE MATERIAL.—

(A) A comprehensive investigation of AI-generated CSAM, including—

(i) documentation of the scale of AI-generated CSAM, including trends in National Center for Missing and Exploited Children CyberTipline reports and Internet Watch Foundation reports, with standardized definitions that distinguish between hash-matching of existing known CSAM in AI training data and detection of newly generated synthetic material;

(ii) assessment of gaps in current federal law under 18 U.S.C. §§ 2256, 2252A, 1466A and the PROTECT Act of 2003, including the penalty disparity between prosecutions under the CSAM statutes and the obscenity statutes for synthetic material, and the potential constitutional protection for private possession of wholly synthetic AI-generated CSAM under United States v. Anderegg and related cases;

(iii) assessment of the ENFORCE Act (S.3021), the TAKE IT DOWN Act (Public Law 119–12), and related legislative proposals as models for closing definitional and penalty gaps;

(iv) recommendations for technical standards for detection of AI-generated CSAM, including AI and machine-learning based classifiers capable of detecting novel synthetic material not captured by hash-matching, cryptographic content provenance standards such as the Coalition for Content Provenance and Authenticity (C2PA) framework, and mandatory watermarking of AI-generated imagery;

(v) recommendations for extending and modifying NCMEC CyberTipline mandatory reporting obligations under 18 U.S.C. § 2258A to cover AI-specific incident categories, including AI companion system interactions with minors that involve sexual content, AI-generated imagery of minors in a sexual context, and grooming-related AI interactions; and

(vi) recommendations for a safe harbor for good-faith red-team testing and safety research on AI models to detect CSAM generation capabilities, without criminal exposure under the statutes investigated in this subsection; and

(vii) assessment of the developer-level civil liability gap for knowing deployment of CSAM-capable AI systems, and of the mandatory disclosure obligation gap upon discovery of CSAM-generation capability as distinct from the existing content-based reporting obligations under 18 U.S.C. § 2258A, with recommendations for Phase II legislation specifically addressing both gaps at the organizational AI developer and deployer level.

(9) AGENTIC AI SYSTEMS.—

(A) Development of regulatory standards requiring AI agentic system providers to operate exclusively in the interest of the user, with no undisclosed conflicts of interest, undisclosed commercial arrangements, or ulterior motives in system behavior or recommendations.

(B) Analysis of disclosure requirements, user-consent frameworks, and fiduciary-like obligations appropriate for AI agents taking actions with real-world consequences on behalf of individuals, including financial transactions, legal commitments, communications, and healthcare decisions.

(C) Development of technical safeguard standards for agentic AI systems, including —

(i) human-in-the-loop requirements calibrated to the reversibility and consequence level of the action being taken;

(ii) mandatory action logging and audit trail requirements;

(iii) reversibility requirements for actions in defined consequence categories;

(iv) sandboxing and scope limitation requirements preventing agentic systems from accessing systems or data beyond those required for the specified task; and

(v) mandatory shutdown and override mechanisms operable by the user at any stage of an agentic workflow.

(D) Analysis of governance challenges created by multi-agent orchestration systems in which the outputs of one AI system serve as inputs to another, including liability allocation across agent chains and the risk of emergent harmful behaviors in multi-agent systems that do not appear in individual model evaluations.

(10) ENVIRONMENTAL AND COMMUNITY IMPACTS OF DATA CENTERS.—

(A) Environmental impact assessments for large AI data centers, including—

(i) measured and projected impacts on water quality and water availability, including on-site water consumption and indirect water consumption from fossil fuel power generation, with the Federal Government's estimate of 211 billion gallons of indirect water consumption from United States data centers in 2023 used as a baseline;

(ii) energy consumption impacts and projected trajectories, informed by the International Energy Agency's findings that a typical AI data center uses as much electricity as 100,000 households and that data centers are projected to account for approximately 10 percent of global electricity demand growth through 2030;

(iii) air quality impacts from diesel generator emissions during grid stress events, including documented links to respiratory disease and cancer risk in communities near data center clusters where 82 percent of California data centers are located in communities already experiencing poor air quality;

(iv) noise impacts on residential communities from cooling systems; and

(v) cumulative community impacts, including the documented phenomenon of data center electricity infrastructure costs being borne by entire service territories while tax revenues accrue only to host communities.

(B) Standards for measuring and reporting energy efficiency of data centers, including—

(i) mandatory Power Usage Effectiveness (PUE) reporting with a target maximum of 1.5 for new construction and 1.8 for existing facilities, phased in over 36 months;

(ii) mandatory Water Usage Effectiveness (WUE) reporting with a target maximum of 1.0 liter per kilowatt-hour for new construction, compared to the current industry average of 1.9 liters per kilowatt-hour; and

(iii) evaluation of mandates for renewable energy procurement and 24/7 carbon-free energy matching.

(C) Analysis of water use permitting, environmental review under the National Environmental Policy Act, and community impact assessment requirements for data center construction, with prioritization of residential water access in drought-prone and water-stressed regions.

(D) Assessment of utility regulation mechanisms to prevent AI companies from externalizing energy infrastructure costs onto residential ratepayers, including requirements that AI companies build or fund dedicated energy infrastructure and analysis of the documented finding that residential electricity prices increased 7.1 percent in 2025—more than double the inflation rate—in part due to data center electricity demand.

(E) Recommendations for siting requirements that prohibit construction of new large AI data centers in environmental justice communities or communities already exceeding EPA air quality standards, without affirmative community benefit agreements negotiated with affected residents.

(11) CROSS-CUTTING ASSESSMENTS — TWG COORDINATION COUNCIL AND FAC COLLECTIVE MANDATE.—

Domain 11 is not assigned to a single TWG. Its cross-cutting mandate is distributed as follows: items (A), (B), (C), (G), and (J) are assigned collectively to the TWG Coordination Council under section 8(e)(14) as a joint synthesis obligation, to be completed through the Council's joint session authority and transmitted to the FAC as a Coordination Council deliverable; items (D), (E), (F), and (H) are covered by the existing domain mandates of TWG 4, TWG 9, TWG 5, and TWG 7 respectively and are not separately required here; and item (I) is assigned to the Federal Advisory Committee as part of its legislative transmission package under section 8(f).

(A) [Coordination Council] A technical assessment of the current state and projected trajectory of AI technologies relevant to each domain, including documented capability trends from the United Kingdom AI Security Institute, METR, and other evaluation bodies. The Coordination Council shall synthesize inputs from all 11 TWGs and transmit this assessment to the FAC as a Coordination Council deliverable under section 8(e)(14)(C).

(B) [Coordination Council] An inventory and analysis of documented incidents, harms, near-misses, and systemic risks across all domains, drawing on each TWG's domain findings and transmitted to the FAC as a Coordination Council deliverable.

(C) [Coordination Council] An assessment of the adequacy of existing federal, state, tribal, and industry self-regulatory frameworks across all domains, synthesizing

each TWG's domain-specific adequacy findings and transmitted to the FAC as a Coordination Council deliverable.

(D) [Covered by TWG 4] Analysis of the economic landscape, including market structure, concentration, innovation dynamics, and competitive effects of potential regulation. This item is covered by the domain mandate of TWG 4 (Financial Markets and Antitrust) under section 8(e)(6) and is not a separate Coordination Council obligation.

(E) [Covered by TWG 9] Evaluation of effects on civil rights, civil liberties, privacy, equity, and disparate impact on protected classes and vulnerable populations, including assessment of algorithmic bias and disparate impact in the employment, credit, housing, healthcare, and criminal justice domains. This item is covered by the domain mandate of TWG 9 (Liability, Accountability, and Legal Frameworks) under section 8(e)(11) and is not a separate Coordination Council obligation.

(F) [Covered by TWG 5 and TWG 11, Joint Session Required] Comparative analysis of international regulatory approaches to AI governance, including the European Union AI Act, the United Kingdom AI Safety Institute's evaluation programs, China's AI governance framework, the G7 Hiroshima Process, and the Bletchley and Seoul Declarations. Because this item spans both the AI safety governance mandate of TWG 5 and the international humanitarian law and arms control mandate of TWG 11, it shall be addressed through a mandatory joint session convened by the Coordination Council under section 8(e)(14)(C)(ii). The joint session shall produce a jointly developed comparative analysis transmitted to the FAC under both TWGs' names. This item is not a separate standalone Coordination Council obligation.

(G) [Coordination Council] An assessment of available technical standards, auditing methodologies, testing protocols, and measurement frameworks across all domains, synthesizing each TWG's domain-specific standards findings and transmitted to the FAC as a Coordination Council deliverable.

(H) [Covered by TWG 7] Analysis of workforce, labor market, and employment effects. This item is covered by the domain mandate of TWG 7 (Workforce, Labor, and Economic Transition) under section 8(e)(9) and is not a separate Coordination Council obligation.

(I) [Federal Advisory Committee] Identification of data gaps, research needs, and areas requiring further scientific investigation across all 19 domains. The FAC shall compile this inventory from TWG Domain Explanatory Reports and Coordination Council deliverables and shall include it as a discrete component of the legislative transmission package under section 8(f), accompanying the complete index of domain packages transmitted to Congress.

(J) [Coordination Council] Development of a preliminary taxonomy of risk levels and categories within each domain, synthesizing each TWG's domain-specific risk categorization findings into a unified cross-domain taxonomy and transmitted to the FAC as a Coordination Council deliverable.

(12) POST-AGI AND TRANSFORMATIVE AI GOVERNANCE.—

(A) An assessment of the probability, timeline, and precursor indicators of a Transformative AI Capability Event occurring within the period from enactment of this title through 2035, based on documented AI capability trajectories including those documented by the United Kingdom AI Security Institute's Frontier AI Trends Report, METR's time-horizon analyses, and published Frontier AI Safety Policy frameworks.

(B) Development of a Pre-Determined Crisis Governance Framework establishing—

(i) tripwire conditions whose satisfaction shall constitute mandatory triggers for specific governmental responses, including automatic congressional consultation requirements, mandatory executive branch emergency protocols, and automatic escalation to the National AI Council;

(ii) an enumeration of the powers and authorities that the executive and legislative branches would require to effectively govern AI systems in the period immediately following a Transformative AI Capability Event, including any gaps in existing statutory authority;

(iii) pre-negotiated international notification and coordination protocols to be activated in the event of a Transformative AI Capability Event, including mandatory notification to treaty partners, allied nations, and the United Nations within 72 hours; and

(iv) a shelf-ready emergency legislative package, maintained and updated by the National AI Council under section 18(c)(3), that would impose immediate comprehensive controls on all AI development and deployment in the event of a Transformative AI Capability Event, including the mandatory restrictions specified in section 13(l)(3) — training halt, capability advancement prohibition, operational deprecation of the TACE-triggering system within 72 hours, and prohibition on circumvention through derived systems — with the 180-day maximum pause duration serving as a backstop while the 12-day emergency congressional track under section 18(c-1) and the Day 60 interim regulatory authority under section 18(c-1)(E) operate as the primary governance response mechanisms.

(C) Analysis of what legal structures, institutions, and treaty frameworks would be necessary to govern AI systems at or beyond human-level general intelligence, including—

(i) whether existing administrative law frameworks are adequate to regulate systems that may exceed the cognitive capabilities of the regulators themselves;

(ii) what constitutional authorities Congress may draw upon to govern such systems, including the Commerce Clause, the necessary and proper authority, and the treaty power;

(iii) whether any form of legal personhood, status, or standing should attach to AI systems at defined capability levels, and what the governance implications of such status would be; and

(iv) recommendations for the international governance architecture that would be required to prevent a single nation, company, or individual from achieving unilateral control over transformative AI systems.

(D) A classified assessment, delivered through the classified track established under section 5(e), of the implications of a Transformative AI Capability Event for United States national security, including the implications for strategic deterrence, intelligence operations, and the global balance of power.

(13) COMPUTE EXPORT CONTROLS AND SEMICONDUCTOR GOVERNANCE.—

(A) A comprehensive assessment of the current state of United States export control policy for advanced computing integrated circuits, AI model weights, and related dual-use technologies, including—

(i) an evaluation of the Biden Administration's Framework for Artificial Intelligence Diffusion, issued January 13, 2025, and its rescission on May 13, 2025, including the policy rationale for each action and an assessment of which elements of that framework were or were not effective at achieving national security objectives without unduly burdening American companies or allied relationships;

(ii) an evaluation of the current Bureau of Industry and Security export control framework as applied to AI chips, model weights, and compute access, including the Entity List, the Commerce Control List ECCNs applicable to advanced computing integrated circuits and model weights, and the Know-Your-Customer and due diligence obligations imposed on semiconductor manufacturers, cloud providers, and data center operators;

(iii) a threat assessment of compute diversion—the smuggling or transshipment of controlled computing hardware to sanctioned countries or entities—including the scale of known and suspected diversion, the methods used, and the adequacy of existing enforcement mechanisms, informed by the 23 percent increase in BIS's FY2026 budget allocated to semiconductor enforcement; and

(iv) an assessment of the geopolitical consequences of export control policy, including effects on allied relationships with countries classified as lower-tier in prior export control frameworks, the competitive dynamics between United States and Chinese open-weight AI model development—including the documented shift in global open-model downloads to Chinese-origin models (Qwen, DeepSeek) in 2025—and the risk that export control policy accelerates rather than retards Chinese AI capability development through forced indigenous innovation.

(B) Development of a recommended framework for ongoing compute export control policy that—

(i) maintains effective controls on the transfer of advanced computing capabilities to adversary nations while preserving and strengthening relationships with allied nations;

(ii) establishes clear, administrable compliance obligations for United States companies, cloud providers, and data center operators operating in or serving foreign markets;

(iii) addresses the open-weight model gap—specifically the fact that open-weight model controls are limited in effectiveness because, once model weights are publicly released, they cannot be recalled or restricted through export controls—including recommendations for whether pre-release safety evaluation requirements should apply to open-weight frontier models before they are publicly released;

(iv) coordinates compute export controls with the international AI governance framework developed by the International AI Diplomacy Agency under section 19, including with proposals for compute monitoring regimes and mutual inspection protocols; and

(v) is updated on a schedule not less frequent than every 12 months to reflect advances in chip design and manufacturing efficiency, training efficiency, and the shifting geography of AI chip production.

(C) The lead agency shall coordinate with the Bureau of Industry and Security, the Department of Defense, the Department of State, and the Intelligence Community in gathering investigative material for this domain and shall transmit all non-classified material received to TWG 3 through the shared evidence repository on a rolling basis under section 5(a-5). Classified material shall be handled through the classified track under section 5(e).

(14) MARKET CONCENTRATION, COMPETITION, AND AI ANTITRUST.—

(A) A comprehensive assessment of market structure in the AI industry, including—

(i) concentration in frontier AI model development, including the number of entities with the financial, technical, and data resources to train frontier models; the structural advantages held by incumbent large technology companies through data assets, distribution channels, and capital; and the competitive effects of cloud provider partnerships with frontier AI developers, including exclusivity arrangements, revenue-sharing, and preferential compute access;

(ii) concentration in AI compute infrastructure, including the semiconductor design and manufacturing markets relevant to AI training and inference, the cloud computing markets used by AI developers, and the data center infrastructure markets;

(iii) vertical integration dynamics, including the extent to which dominant firms in adjacent markets—search, social media, e-commerce, cloud—are using AI capabilities to extend or entrench dominance in those markets and to foreclose competition in AI application markets; and

(iv) the adequacy of existing federal antitrust law, including the Sherman Act (15 U.S.C. § 1 et seq.) and the Federal Trade Commission Act, to address AI-specific competitive dynamics, including the acquisition of AI startups and talent, the use of AI to achieve or maintain monopoly power, and the structural barriers to entry created by compute concentration.

(B) An assessment of algorithmic pricing coordination, including—

(i) the mechanisms by which AI-powered algorithmic pricing tools enable price coordination among competitors without explicit agreement, including through shared data inputs, common pricing recommendations, and hub-and-spoke information flows, informed by the August 2024 DOJ complaint and November 2025 consent decree in United States v. RealPage, Inc.;

(ii) the sectors beyond multifamily rental housing in which algorithmic pricing coordination poses documented or credible risks, including hotels, airlines, financial services, healthcare, and consumer goods;

(iii) the adequacy of Sections 1 and 2 of the Sherman Act to address tacit coordination by self-learning AI systems in the absence of human intent to collude; and

(iv) recommendations for legislative or regulatory standards governing the use of AI algorithmic pricing tools, including prohibitions on the use of competitors' non-public data in pricing algorithms and requirements for algorithmic pricing transparency.

(C) An assessment of whether and how AI-native companies—as defined in section 3(11)—can use AI capabilities to achieve market power more rapidly than prior technology entrants, and whether existing merger review standards and

notification thresholds are adequate to address acquisitions of nascent AI competitors.

(D) Recommendations for legislative or regulatory interventions to preserve competitive AI markets, including interoperability requirements, data-sharing mandates, API access requirements, and structural remedies.

(15) OPEN-WEIGHT AI MODELS: GOVERNANCE, SAFETY, AND COMPETITION.—

(A) An assessment of the benefits and risks of open-weight AI models, including—

(i) the competitive and innovation benefits of open-weight model releases, including enabling smaller entities to build on frontier capabilities, enabling academic and civil society safety research, enabling data sovereignty for entities unable to rely on cloud-based AI services, and preventing excessive concentration of AI capability in a small number of closed-model providers;

(ii) the safety risks specific to open-weight models arising from their irrevocability once released, including the documented fine-tuning of publicly released models to remove safety guardrails, the use of open-weight models by bad actors for CBRN uplift and cyberoffense, and the jurisdictional challenges created when open-weight models trained in one country are deployed and modified globally, including the documented shift in global open-weight model downloads toward models produced by Chinese laboratories including Qwen and DeepSeek; and

(iii) an assessment of the adequacy of the current regulatory framework, which applies identical pre-release requirements to closed and open-weight models despite their fundamentally different post-release dynamics.

(B) Development of a governance framework for open-weight frontier models that —

(i) establishes mandatory pre-release dangerous capability evaluations by certified independent auditors before any open-weight frontier model is publicly released, including evaluations for CBRN uplift potential, cyberoffense capabilities, and autonomous capability self-modification risk, without requiring such evaluations to impose a release prohibition in all cases;

(ii) identifies the capability threshold or thresholds at which the risks of open-weight release are sufficiently severe that mandatory pre-release approval by the lead agency should be required before weights are publicly published;

(iii) considers whether intermediate access models—such as staged release to vetted researchers, government entities, and vetted non-commercial

deployers before full public release—can preserve competitive and innovation benefits while allowing time for safety evaluation; and

(iv) addresses the challenge that effective export controls on open-weight models cannot rely on post-release access controls, and must therefore focus on pre-release evaluation requirements applied to the releasing entity at the time of release.

(C) The lead agency shall coordinate stakeholder engagement for this domain under section 9(a), including outreach to representatives of the open-source AI research community, academic institutions, small and medium AI developers who rely on open-weight models, civil liberties organizations, and national security agencies, and shall transmit all submissions and materials received to TWG 5 through the shared evidence repository on a rolling basis under section 5(a-5). TWG 5 shall explicitly weigh and present evidence on both sides of the open-weight governance debate, and its final domain recommendations shall include pro and con justifications for each proposed governance approach consistent with section 8(e)(2)(D)(ii)(F).

(16) AI AND FINANCIAL MARKETS.—

(A) An assessment of systemic risk to financial markets from AI-driven trading and investment systems, including—

(i) the documented mechanisms by which AI-driven high-frequency trading systems can amplify market volatility, including flash crash dynamics, correlated AI-driven sell-offs, and feedback loops between competing AI trading systems;

(ii) the adequacy of existing financial regulatory frameworks—including Securities Exchange Act authorities of the SEC, the Commodity Exchange Act authorities of the CFTC, and Federal Reserve and FSOC systemic risk authorities—to monitor and regulate AI-driven systemic risks in financial markets; and

(iii) recommendations for mandatory registration, disclosure, and circuit-breaker requirements applicable to AI trading systems that meet defined scale or market-impact thresholds.

(B) An assessment of algorithmic pricing coordination in financial markets, including—

(i) the documented and suspected extension of the RealPage algorithmic pricing coordination model to financial services markets, including mortgage lending—where a class action filed in 2025 against Optimal Blue's mortgage pricing software alleged algorithmic rate coordination affecting millions of homebuyers—credit card interest rates, insurance underwriting, and consumer loan pricing;

(ii) the adequacy of existing antitrust and banking law to address AI-enabled price coordination in credit and financial services markets, including the Equal Credit Opportunity Act, the Fair Housing Act, and the Sherman Act; and

(iii) recommendations for explicit statutory prohibitions on the use of non-public competitor data in AI pricing systems for consumer financial products, modeled on the remedies in the November 2025 RealPage consent decree, extended across the financial services sector.

(C) An assessment of disparate impact from AI systems in financial services, including—

(i) documented evidence of racial, ethnic, gender, and geographic disparate impact in AI-driven credit underwriting, insurance pricing, mortgage lending, and investment product recommendations;

(ii) the adequacy of the Equal Credit Opportunity Act, the Fair Housing Act, and CFPB supervisory authorities to address AI-specific disparate impact in financial services; and

(iii) the gap between observable financial AI outcomes and the ability of regulators and affected consumers to access the algorithmic logic producing those outcomes, and recommendations for mandatory explainability requirements for consequential AI financial decisions.

(D) An assessment of AI-generated financial advice and its fiduciary implications, including whether AI systems providing investment recommendations should be subject to Investment Advisers Act fiduciary duties, and how the agentic AI governance standards under section 6(b)(9) should be applied to AI systems executing financial transactions on behalf of users.

(17) AI AND ELECTORAL INTEGRITY.—

(A) A comprehensive assessment of AI threats to democratic processes, including—

(i) the documented and projected use of AI-generated synthetic media, including deepfake video, audio, and images, in federal and state election campaigns, with specific attention to the 2026 midterm election cycle;

(ii) the use of AI for microtargeted political advertising and persuasion campaigns, including the capacity of AI to identify and exploit individual psychological vulnerabilities for voter persuasion at scale;

(iii) the use of AI-powered disinformation by foreign state actors to suppress voter participation, inflame political divisions, and undermine confidence in electoral institutions, including the documented efforts by Chinese state

actors to generate AI images targeting United States voters along racial, economic, and ideological lines;

(iv) the use of AI in voter roll purges, election administration systems, and election security infrastructure, and the risks of AI-driven errors or manipulation in those systems; and

(v) the erosion of public epistemic trust caused by the proliferation of synthetic media—the documented finding that 70 percent of Americans report increased skepticism toward online content as a result of deepfakes, independent of whether any specific content they encounter is actually synthetic.

(B) Development of regulatory recommendations, including—

(i) mandatory disclosure requirements for AI-generated content in all federal election communications, designed to survive First Amendment scrutiny under the narrowly tailored disclosure standard upheld in Buckley v. Valeo and its progeny, including clear, conspicuous, and persistent labeling of any political communication that was generated or substantially altered by AI;

(ii) a prohibition on the distribution of materially deceptive AI-generated synthetic media depicting a federal candidate or elected official in a manner that a reasonable person would conclude is authentic, within a defined period before a federal election, consistent with constitutional requirements established in United States v. Alvarez and related precedent, including a safe harbor for clearly labeled satire and parody;

(iii) mandatory FEC rulemaking to address AI-generated content in political advertising, including a mandate that the FEC issue binding rules within 180 days of the Federal Advisory Committee's transmission of the electoral integrity domain package under section 8(f); and

(iv) assessment of whether and how the C2PA (Coalition for Content Provenance and Authenticity) content provenance standard, including cryptographic metadata recording the origin and modification history of media, should be mandated for AI systems capable of generating photorealistic synthetic media of human beings.

(F) Domestic AI-Generated Electoral Disinformation and Synthetic Media.—A comprehensive investigation of the use of AI systems by domestic actors — including political campaigns, political action committees, party committees, Super PACs, and individual actors — to generate, distribute, or amplify synthetic media, fabricated audiovisual content, and AI-enabled targeted persuasion campaigns in connection with federal elections, including:

(i) documentation of known instances of domestic AI-generated synthetic media depicting real, identified federal candidates, elected officials, or election workers in fabricated

contexts, including audiovisual deepfakes, voice clones, and AI-generated written impersonations, with particular attention to instances occurring outside the 90-day window addressed by the interim protective measures of section 15(c)(9);

(ii) assessment of the scale, reach, and demonstrated electoral impact of domestic AI-generated disinformation campaigns, including analysis of distribution mechanisms, targeting methodologies, and the effectiveness of existing detection and labeling technologies in identifying AI-generated content at the speed and scale at which it is deployed;

(iii) assessment of the constitutional landscape governing federal regulation of domestic political AI disinformation, including the extent to which United States v. Alvarez, 567 U.S. 709 (2012), and its progeny permit federal regulation of materially false synthetic audiovisual depictions of real, identified federal candidates in connection with federal elections; the constitutional basis for extending mandatory AI content labeling requirements beyond the 90-day pre-election window; and whether a narrowly tailored prohibition on AI-generated synthetic media that fabricates audiovisual depictions of real federal candidates — as distinguished from opinion, satire, parody, and political commentary — would survive strict or intermediate First Amendment scrutiny in light of the direct harm to election integrity documented in the investigation;

(iv) assessment of the gap between the domestic prohibition framework of section 15(c)(9) and the full scope of AI-enabled domestic electoral interference, including the absence of a year-round prohibition on materially deceptive AI-generated audiovisual depictions of federal candidates and the absence of a federal prohibition on AI systems specifically designed for electoral disinformation generation — as distinguished from general-purpose AI systems that could theoretically be misused;

(v) assessment of whether the absence of a federal prohibition on foreign AI electoral interference — the proposed Red Line having been removed from this title pending development of a credible enforcement framework by the National AI Council — creates a material enforcement gap, and whether sophisticated domestic actors could exploit the current regulatory asymmetry between foreign and domestic electoral AI interference; and

(vi) recommendations for Phase II legislation addressing domestic AI-generated electoral interference at the developer and distributor level, including: whether a narrowly tailored prohibition on AI systems specifically designed for electoral deepfake generation — as distinguished from general-purpose systems — is constitutionally available; whether mandatory AI content labeling for all election communications should be extended year-round

rather than limited to the 90-day pre-election window; enhanced penalty structures for domestic electoral AI disinformation that fall within the constitutional space identified by the investigation; and a framework for coordinated enforcement between the lead agency, the Federal Election Commission, and the Department of Justice.

(18) INTELLECTUAL PROPERTY, TRAINING DATA, AND CREATOR COMPENSATION.—

(A) A comprehensive assessment of intellectual property issues arising from AI training, including—

(i) the current state of copyright law as applied to AI training data, including an analysis of the fair use doctrine's four factors as applied to AI training, the range of judicial interpretations emerging from current federal litigation, and the adequacy of existing law to provide clear, administrable guidance to AI developers and rights holders;

(ii) an inventory of documented practices by AI developers in acquiring training data, including web scraping of publicly available content, licensing agreements with publishers and content platforms, use of pirated materials, use of synthetic data, and use of data generated through terms-of-service arrangements;

(iii) an assessment of the economic harm to creators, authors, journalists, visual artists, musicians, photographers, and other rights holders from the use of their work in AI training without compensation, including the market substitution harm arising from AI systems that can generate content competitive with the original works used to train them;

(iv) a comparative assessment of international approaches, including the European Union text and data mining exception with opt-out rights, the United Kingdom's proposed text and data mining framework, Japan's broad exception for computational analysis, and the opt-out frameworks proposed or implemented in various jurisdictions; and

(v) an assessment of voluntary licensing markets, including existing licensing agreements between AI developers and publishers—including News Corp's reported $50 million annual licensing deal with Meta, OpenAI's agreements with Axel Springer and the Associated Press, and Anthropic's $1.5 billion author settlement—as evidence that a functioning licensing market is achievable and as a baseline for assessing fair market rates.

(B) Development of a recommended framework for AI training data that—

(i) provides clear statutory guidance on the application of the fair use doctrine to AI training, including identification of the factors that determine whether a specific training

use is or is not fair use, sufficient to enable compliance planning by AI developers and enforcement by rights holders without requiring litigation of every individual case;

(ii) considers whether a statutory opt-out registry—allowing rights holders to affirmatively exclude their works from AI training—would provide an administrable mechanism for balancing creator rights with AI development needs, including analysis of the technical feasibility of honoring opt-out signals in large-scale training pipelines;

(iii) considers whether a statutory licensing framework modeled on Section 115 of the Copyright Act (mechanical licensing for musical compositions), establishing a compulsory license with mandatory compensation at rates determined through a regulatory process, would provide an appropriate balance between creator compensation and AI development access;

(iv) addresses the disclosure gap—specifically that creators whose works were used in training currently have no right to discover whether their works were included—and recommends training data disclosure requirements that would enable rights holders to enforce their rights; and

(v) assesses the First Amendment implications of any mandatory licensing or opt-out framework, including whether such a framework would constitute a permissible regulation of commercial conduct or an impermissible burden on protected expression.

(C) The lead agency shall coordinate with the Copyright Office, the Patent and Trademark Office, and the Office of the United States Trade Representative in gathering investigative material for this domain and shall transmit all non-classified material received to TWG 1 through the shared evidence repository on a rolling basis under section 5(a-5). The lead agency shall additionally transmit the confidential training data disclosures received under section 15(b-1) to TWG 1 through the shared evidence repository as primary evidentiary material; TWG 1 shall specifically assess the aggregate patterns revealed by those disclosures, including the prevalence of unlicensed use of copyrighted works, the adequacy of existing licensing markets, and the extent of terms-of-service violations in training data acquisition. TWG 1 shall solicit expert presentations from AI developers, publishers, authors, visual artists, musicians, journalists, and academic experts in intellectual property law through the procedures of section 8(e)(2)(O).

(19) AUTONOMOUS WEAPONS SYSTEMS: GOVERNANCE, STANDARDS, AND INTERNATIONAL FRAMEWORKS.—

(A) A comprehensive investigation of the state of autonomous weapons development and deployment, including—

(i) a classified and unclassified inventory of known domestic and foreign autonomous weapons programs, including programs developed by United States Government agencies, allied nations, adversary nations, and private defense contractors, with particular attention to: unmanned aerial systems and armed drones with autonomous targeting capability; loitering munitions and autonomous-search munitions deployed in active or recent conflicts; autonomous naval and undersea weapons systems; AI-enabled targeting systems integrated into existing weapons platforms; and swarm systems designed for collective autonomous engagement;

(ii) an assessment of the current operational state of autonomous weapons systems within the Department of Defense, including an inventory of all programs in research, development, testing, evaluation, and operational deployment that involve autonomous or semi-autonomous engagement capabilities, and an assessment of the compliance of each such program with the prohibition established by section 20(a)(1) of this title and the meaningful human oversight standard defined in section 3(27);

(iii) an assessment of the adequacy of Department of Defense Directive 3000.09 (Autonomy in Weapon Systems) and any successor directive in meeting the meaningful human oversight standard defined in section 3(27) of this title, including identification of any provisions of that directive that would need to be strengthened to comply with this title; and

(iv) documentation of known incidents in which autonomous or semi-autonomous weapons systems have caused unintended civilian casualties, engaged unintended targets, malfunctioned in ways that produced lethal or destructive outcomes, or operated outside their intended parameters, including analysis of the institutional factors that contributed to each incident.

(B) Development of technical standards and criteria for the meaningful human oversight requirement, including—

(i) specific, operationally grounded criteria for assessing whether a human authorization decision satisfies the meaningful human oversight standard defined in section 3(27), including minimum decision window requirements for specific weapons system types, threat environments, and operational contexts, and the evidentiary standard for demonstrating that the standard was met in any given engagement;

(ii) technical standards for the tamper-proof authorization logging systems required by section 3(27)(F), including specifications for the data elements to be recorded, the security requirements for log integrity, and the retention and access requirements to support post-engagement review and congressional oversight;

(iii) criteria for distinguishing autonomous weapons systems within the meaning of section 3(26) from semi-autonomous and precision-guided systems that do not fall within the prohibition, with specific reference to contemporary systems and capability profiles to provide clear compliance guidance to defense contractors, allied nations, and government agencies; and

(iv) recommended standards for testing and certification of autonomous weapons systems to verify compliance with the meaningful human oversight requirement before operational deployment, including procedures for independent third-party testing and for periodic re-certification as systems are updated or modified.

(C) An assessment of the international legal and diplomatic landscape for autonomous weapons governance, including—

(i) the current state of negotiations under the Convention on Certain Conventional Weapons (CCW) Group of Governmental Experts on lethal autonomous weapons systems (LAWS), including the positions of the United States, allied nations, and adversary nations, and the prospects for a binding multilateral agreement;

(ii) an assessment of whether the United States should actively support, lead, or oppose international negotiations toward a legally binding treaty on lethal autonomous weapons systems, with analysis of the national security implications of each approach, including the risk that a binding ban may disadvantage the United States if adversary nations do not comply;

(iii) recommendations for the international negotiating position of the International AI Diplomacy Agency established under section 19 with respect to lethal autonomous weapons systems, including proposed elements of a multilateral framework that the United States could support, and proposed verification mechanisms analogous to those used in conventional arms control treaties; and

(iv) an assessment of the autonomous weapons development programs of state adversaries, including the People's Republic of China, the Russian Federation, and other nations identified by the Director of National Intelligence as posing elevated risks, and the implications of adversary autonomous weapons capabilities for United States national security policy. Classified findings shall be reported through the classified track established under section 5(e).

(D) For purposes of their data access obligations under section 5(b) and (c), the Department of Defense, the Department of State, and the Director of National Intelligence on behalf of the Intelligence Community are directed to treat autonomous weapons development programs, international AI arms control

negotiating positions, foreign adversary autonomous weapons capabilities, and classified and non-classified threat assessments relevant to lethal autonomous weapons systems as priority categories of information subject to mandatory production under section 5(b); classified material in these categories shall be handled through the classified track under section 5(e).

(c) Precautionary Principle.— Where the evidentiary record at the time of TWG final submissions or FAC legislative transmission is incomplete in any domain, the Technical Working Groups and Federal Advisory Committee shall apply the precautionary principle: where credible evidence establishes that an AI system or practice poses a serious risk of harm to persons, communities, democratic institutions, national security, or the environment, the burden of demonstrating safety shall not rest with those who would be harmed. Interim legislative standards that restrict or condition deployment pending fuller investigation are preferable to governance absence pending certainty. The precautionary principle as applied by this title does not require proof of harm; it requires credible evidence of serious risk. This standard is consistent with the precautionary approaches embedded in existing federal law governing pharmaceuticals, medical devices, pesticides, toxic substances, nuclear materials, and aviation safety.

SEC. 2007. CRITERIA DOCUMENTS AND FRAMEWORKS.

(a) Development Required.—Not later than 60 days after each Technical Working Group submits its final domain recommendations under section 8(e)(2)(D), the lead agency shall develop and publish for public comment a draft criteria document for that domain. Criteria documents shall be produced on a rolling basis as TWGs complete their work — the lead agency shall not wait for all 11 TWGs to submit final domain recommendations before publishing any criteria documents. Draft criteria documents shall be based upon and shall synthesize the final domain recommendations, Domain Explanatory Report, and monthly work product submissions of the relevant TWG received under section 8(e)(2)(D) and (I), and the investigative material transmitted to that TWG under section 5(a-5), and shall reflect the complete TWG investigatory record for that domain. Because draft criteria documents are published after the relevant TWG's final submission, they shall not require supplemental updates for that TWG's own findings. Criteria documents are transitional technical foundation documents: they have interim operational effect during the period between their publication and the effective date of Phase II regulations covering the same domain, and they expire domain by domain as Phase II regulations governing that domain take effect. Criteria documents do not constitute final agency action, are not subject to judicial review as independent rules, and shall not be treated as permanent NIST standards or as binding regulation independent of Phase II legislation. Nothing in this section limits the lead agency's authority to update a final criteria document during the transitional period if material new technical evidence warrants revision; any such update shall be published with a 30-day public comment period and a summary of the basis for the revision. Criteria

documents shall not represent independent policy conclusions of the lead agency. To support the rolling criteria document development function, the lead agency shall designate not fewer than one Domain Criteria Analyst for each of the 19 investigation domains not later than 120 days after the date of enactment. A Domain Criteria Analyst shall have demonstrated expertise in the relevant domain sufficient to synthesize the TWG investigatory record and develop technically sound criteria document content. The Domain Criteria Analyst for a given domain may be the same person as the dedicated domain investigator assigned under section 5(a-4) where the Director determines that person has sufficient analytical capacity to perform both functions. Domain Criteria Analysts are responsible for drafting the criteria document for their assigned domain, managing the public comment process, and producing the final criteria document within the 90-day deadline of subsection (c). The Director shall publish the Domain Criteria Analyst assignment list on the public portal within 5 business days of completing initial assignments and shall update it within 5 business days of any change.

(b) Contents of Criteria Documents.—Each criteria document shall—

(1) compile and evaluate all available evidence regarding the risks and effects of AI systems within the relevant domain, drawing primarily from the Domain Explanatory Reports and monthly work product submissions produced by the relevant TWG under section 8(e)(2)(D) and (H), which constitute the authoritative evidentiary record for each domain; criteria documents shall cross-reference the relevant Domain Explanatory Report and may supplement the TWG record with evidence from public comments on draft criteria documents and subsequent technical developments where relevant;

(2) identify threshold levels, benchmarks, or conditions at which risks become unacceptable, as informed by the TWG investigatory record;

(3) propose preliminary frameworks for categorizing AI systems by risk level, including criteria for designation as high-risk, derived from TWG domain findings;

(4) recommend measurement methodologies, auditing protocols, and testing standards necessary to support the lead agency’s operational and enforcement functions under section 5(a)(2);

(5) include an index of all evidence and information considered;

(6) provide pro and con justifications for each framework recommendation, including explicit identification of evidence and arguments that were considered but not adopted, with explanations for their exclusion; and

(7) distinguish clearly between conclusions supported by strong evidence, preliminary conclusions, and areas of genuine uncertainty.

Criteria documents synthesize and operationalize the TWG investigatory record for the lead agency’s enforcement and regulatory functions; they supplement but do not

replace the Domain Explanatory Reports produced by TWGs, and the lead agency's independent analytical work under section 5(a)(2) and section 6(b)(2)(H) is governed by those provisions rather than by this section.

(c) Public Comment.—The lead agency shall provide a period of not less than 30 days for public comment on each draft criteria document. The lead agency shall publish the final criteria document for each domain not later than 90 days after the relevant TWG's final domain submission under section 8(e)(2)(D). The 90-day period encompasses both the 30-day public comment period and the lead agency's review and finalization of the document in light of comments received; the lead agency shall publish each final criteria document promptly after the comment period closes and shall not hold final publication pending completion of criteria documents for other domains. The lead agency shall transmit each final criteria document to the FAC Legislative Drafting Staff, the relevant TWG Administrative Coordinator, and the National AI Council upon publication if the Council has been constituted under section 18(b-1) at the time of publication, or within 15 days of the Council's organizational meeting for criteria documents published before that date, and shall deposit it in the shared evidence repository and on the public portal. For domains assigned to TWGs that cover multiple domains under section 8(e), the 90-day deadline runs separately from each TWG's single final domain submission, which shall address all domains assigned to that TWG.

(d) Machine-Readable Format.—All criteria documents, supporting data, and the index of evidence shall be published simultaneously in machine-readable format and made available through the public repository established under section 10(b).

(e) Certified Independent AI Auditor Program.—Not later than 90 days after the publication of the last final criteria document under subsection (c), the lead agency shall establish a Certified Independent AI Auditor Program (in this subsection, the 'Program') as follows:

(1) The lead agency shall promulgate, by interim final rule, qualifications, training requirements, examination standards, and ethical obligations for certification as an independent AI auditor authorized to conduct the mandatory pre-deployment safety evaluations described in section 6(b)(2)(C).

(2) The Program shall include, at minimum—

(A) technical competency requirements in AI safety evaluation, dangerous capability evaluation, adversarial testing, and risk assessment;

(B) independence requirements, including prohibitions on financial conflicts of interest with frontier AI developers or significant AI deployers subject to audit;

(C) continuing education and recertification requirements; and

(D) a code of professional conduct with disciplinary procedures, including revocation of certification for cause.

(3) The lead agency shall accept applications for certification on a rolling basis and shall issue initial certifications not later than 75 days after each submission.

(4) No frontier AI developer or deploying an AI system that exhibits dangerous capabilities may satisfy any pre-deployment safety evaluation or audit requirement under this title or any subsequent Phase II legislation through self-reported testing. All such evaluations shall be conducted by auditors certified under this Program.

(5) Transitional Evaluation Authority.—Until the Certified Independent AI Auditor Program becomes operational and initial certifications are issued under paragraph (3), pre-deployment safety evaluations required under this title shall be conducted by qualified independent third-party evaluators identified on an approved evaluator list published by the lead agency not later than 45 days after the date of enactment. The 45-day obligation is a list-publication requirement, not a standards-setting exercise — the lead agency shall identify organizations with documented dangerous capability evaluation experience and publish them as approved; it does not require the lead agency to develop new evaluation methodologies within that period. For purposes of this paragraph, a 'qualified independent third-party evaluator' means an organization that: has demonstrated experience conducting dangerous capability evaluations of frontier AI systems, including through evaluations conducted under voluntary Frontier AI Safety Policy commitments within the preceding 24 months; has no financial conflict of interest with the entity being evaluated; and has been approved by the lead agency and appears on the approved evaluator list. The lead agency shall publish and maintain the approved evaluator list, which shall include at minimum any organization that has conducted dangerous capability evaluations under a documented Frontier AI Safety Policy commitment within the preceding 24 months. Evaluations conducted under this transitional authority shall be deemed fully compliant upon the Certified Auditor Program's establishment, without requiring re-evaluation. The lead agency may itself conduct evaluations when no approved evaluator is available or when the entity seeking evaluation is unable to retain one within a reasonable time not exceeding 30 days.

(6) CBRN Evaluation Specialist Track.—The Program shall include a specialized CBRN Evaluation track for auditors qualified to conduct or supervise the CBRN capability evaluations required by section 20(a)(2)(C). Certification in the CBRN Evaluation track shall require, in addition to the general dangerous capability evaluation competency requirements of paragraph (1): demonstrated professional expertise in biological threat assessment, chemical weapons, or radiological and nuclear security, established through prior employment, publication record, security clearance, or equivalent credential; and demonstrated familiarity with AI-specific CBRN evaluation methodology consistent with frameworks used by recognized AI safety evaluation bodies. Until the CBRN Evaluation track is established and initial

certifications are issued, evaluations shall be conducted using the transitional evaluator provisions of paragraph (5).

SEC. 2008. FEDERAL ADVISORY COMMITTEE.

(a) Establishment.—There is established a Federal Advisory Committee on Artificial Intelligence Governance (in this section, the 'Committee') under the Federal Advisory Committee Act (5 U.S.C. App. 2). The Committee shall serve as the primary legislative drafting body responsible for synthesizing the investigatory work of the Technical Working Groups into complete draft statutory language and transmitting that draft legislation directly to Congress not later than 30 days after the last TWG submits its final domain recommendations, and in no event later than 15 months after the date of enactment.

(b) Composition and Appointment.—The Committee shall be composed of 18 voting members — 7 appointed members and 11 Technical Working Group representatives elected under subsection (e)(16) — and one non-voting Epistemic Advisor appointed under subsection (b)(1)(G). The Epistemic Advisor participates in all Committee deliberations and all Coordination Council sessions under subsection (e)(14) with full speaking rights but shall not vote on any legislative provision, procedural matter, or other Committee action. The Epistemic Advisor's function is methodological: to evaluate the quality of reasoning underlying TWG findings and FAC legislative drafting, identify cognitive biases and epistemic weaknesses in the investigatory record, and ensure that the Committee's legislative output rests on sound evidentiary inference. The Epistemic Advisor is not a co-author of legislation and shall not be counted toward quorum.

(1) Appointed Members.— The following appointing authorities shall each appoint one member of the Committee, except that the Comptroller General under subparagraph (G) shall appoint the Epistemic Advisor on the terms of subsection (b)(1)(G):

(A) the President of the United States;

(B) the Majority Leader of the Senate;

(C) the Minority Leader of the Senate;

(D) the Speaker of the House of Representatives;

(E) the Minority Leader of the House of Representatives.

(F) the National Governors Association, which shall appoint two members.

(G) the Comptroller General of the United States, who shall appoint one Epistemic Advisor under the terms of subsection (b)(1)(G).

Each member appointed under subparagraphs (A) through (F) shall have demonstrated expertise in federal legislative drafting, federal regulatory counsel, technology policy, public administration, labor economics, civil rights law, environmental policy, or

national security. Preference shall be given to candidates with substantial experience in federal legislative drafting or federal regulatory counsel, including service as legislative counsel to a federal agency or committee of Congress, or practice as an attorney whose primary work involved federal regulatory drafting or compliance analysis. No member appointed under subparagraphs (A) through (F) shall have been employed by, served as a paid consultant to, received research funding exceeding $50,000 from, or held equity interests exceeding $10,000 in any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems or any entity whose primary business is the development, deployment, or commercialization of AI systems within the one year preceding appointment. The qualifications of the Epistemic Advisor appointed under subparagraph (G) are governed exclusively by subsection (b)(1)(G). Membership shall reflect diversity in professional background, geographic region, and demographic composition. Each appointing authority is strongly encouraged to consider for appointment individuals who served on the Federal Advisory Committee, its Technical Working Groups, or the lead agency's investigatory staff during Phase I, in order to preserve institutional continuity.

(G) Epistemic Advisor.—The Comptroller General shall appoint one Epistemic Advisor not later than 120 days after the date of enactment. The Epistemic Advisor may be appointed concurrently with TWG Administrative Coordinators and other staff appointed around Day 120, allowing the Comptroller General to identify a qualified candidate during the initial 60-day period and complete the appointment in alignment with the constitution of the TWGs the Epistemic Advisor will serve. The Epistemic Advisor shall have demonstrated expertise in the epistemology of expert deliberation, the methodology of evidence-based policy, or the systematic study of cognitive bias in institutional and group decision-making, established through peer-reviewed publication, professional practice of not fewer than 7 years, or equivalent documented contribution to the field. The Epistemic Advisor shall have no financial relationship with any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding appointment, consistent with the general disqualification of this subsection, and is subject to the conflict-of-interest disclosure obligations applicable to Committee members under subsection (b-3). The Epistemic Advisor shall be compensated at the same daily rate as appointed members under subsection (e)(2)(E). The Epistemic Advisor shall perform the following functions throughout the investigatory and legislative drafting period:

(i) attend all Federal Advisory Committee deliberations and all Coordination Council sessions under subsection (e)(14) as a non-voting participant with full speaking rights;

the Epistemic Advisor may not be excluded from any such session by the Committee Chair, the Coordination Council presiding officer, or any other member;

(ii) review all monthly TWG work product submissions received under subsection (e)(2)(I) and submit written epistemic assessments to the Committee Chair and to the relevant TWG Administrative Coordinator within 15 days of receipt, identifying any material instances of confirmation bias, overconfidence in preliminary findings, inadequate treatment of contrary evidence, or inferential leaps unsupported by the evidentiary record; all such assessments shall be published on the public docket within 5 business days of submission;

(iii) submit a written cross-TWG epistemic assessment to the Coordination Council at the mid-course reconciliation session required by subsection (e)(14)(D), evaluating the methodological consistency and evidentiary integrity of each TWG's investigatory approach and identifying any patterns of systematic bias or evidentiary weakness that the Coordination Council should address before findings harden into formal recommendations; this assessment shall be incorporated into the reconciliation report transmitted to the Federal Advisory Committee and published on the public portal;

(iv) submit a written epistemic assessment of each TWG's final domain submission to the Committee within 30 days of receipt; this assessment shall be transmitted to Congress alongside the relevant domain package and published on the public docket as part of the complete deliberative record; and

(v) append a written epistemic critique to any legislative provision under FAC deliberation, at any time before the provision is voted upon, documenting methodological objections to the evidentiary basis or inferential structure of the provision; such critique shall be included in the argument log required by subsection (g) and transmitted to Congress alongside the legislative package but shall not delay or block the Committee's vote.

(2) Appointment Deadline and Fallback.—Each appointing authority shall submit its appointments not later than 60 days after the date of enactment. If any appointing authority fails to submit appointments within the 60-day period, the Comptroller General shall make the unfilled appointments within 15 days thereafter. The 7 appointed members form the interim Committee from Day 60 through Day 155 as TWG representatives are elected under subsection (e)(16); during this period the appointed members establish Committee procedures, receive ongoing TWG work product through the public docket, and provide legislative drafting and legal research support to TWGs upon request, but shall take no substantive legislative votes until the Committee is fully constituted. The Epistemic Advisor, upon

appointment at Day 120, shall participate in all interim Committee activities from the date of appointment in accordance with subsection (b)(1)(G).

(3) TWG Representatives.—Each of the 11 Technical Working Groups established under subsection (e) shall elect one representative to the Committee under the procedures of subsection (e)(16). TWG representatives join the Committee on a rolling basis as elections complete, beginning approximately Day 155. The Committee is fully constituted at 18 members when all 11 TWG representatives have been elected, approximately Day 165.

(4) One-Year AI Disqualification.—No member of the Committee — whether an appointed member or a TWG-elected representative — shall have been employed by, served as a paid consultant to, received research funding exceeding $50,000 from, or held equity interests exceeding $10,000 in any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems or any entity whose primary business is the development, deployment, or commercialization of AI systems within the one year preceding appointment or election to the Committee. For TWG-elected representatives, this disqualification is satisfied by the TWG membership eligibility requirements of subsection (e)(2) and need not be separately evaluated upon election to the Committee.

(b-1) Chair.—The Committee shall elect a Chair from among its own 18 voting members by a vote of not fewer than 12 members at its first full meeting following the seating of all 18 members — approximately Day 165. The Epistemic Advisor appointed under subsection (b)(1)(G) is not eligible to serve as Chair and shall not vote in the Chair election. The Chair shall serve for the duration of the Committee's legislative drafting mandate and may be re-elected. The Chair shall preside over Committee deliberations, execute the Committee's public communications, coordinate with the TWG Coordination Council, and be individually responsible for certifying that deliberative record requirements have been satisfied before any legislation is transmitted to Congress. From Day 60 through the Chair election, the Executive Director shall serve as interim presiding officer, managing administrative operations and coordinating between the appointed members and the TWGs.

(b-2) Quorum and Voting.—

(A) Quorum.—A quorum of the Committee shall consist of 10 members. The Committee may not conduct official business, take official action, or vote on any matter without a quorum present. Before the Committee is fully constituted at 18 members, a quorum shall be calculated based on the number of members then seated.

(B) Voting Threshold for Legislative Recommendations.—No draft legislative provision, amendment, or final legislative package shall be adopted or

transmitted to Congress unless approved by not fewer than 12 of the 18 Committee members. Procedural matters may be decided by a simple majority of a quorum.

(C) Individual Vote Recording.—Every vote on a legislative provision or package shall be recorded individually by member name and published on the Committee's public docket within 48 hours of the vote, identifying each member's vote (for, against, or abstaining), whether any member was recused and the basis for recusal, and the final tally.

(D) Mandatory Minority Report.—If three or more members vote against any legislative provision or package that achieves the 12-vote threshold, those members shall have the right to submit a minority report of not more than 5,000 words documenting their objections, the evidence they found persuasive, and any alternative legislative approach they would recommend. The minority report shall be transmitted to Congress simultaneously with the majority legislation and published on the public docket. Congress shall not be deemed to have received Committee legislation until both the majority legislation and any minority report have been transmitted.

(b-3) Conflict of Interest — Committee Members.—

(A) Carryover of TWG Obligations.—Each Committee member who served as a TWG representative carries over to Committee service all conflict of interest disclosure obligations, recusal requirements, and financial interest prohibitions applicable to TWG members under subsection (e)(2)(F). These obligations are continuous and self-executing.

(B) Disclosure Obligations.—Each Committee member — including both TWG representatives and appointed members — shall, before participating in any Committee deliberation and on a continuing basis throughout Committee service, disclose in writing to the Committee Chair and to the Comptroller General: all financial interests in frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems entities or entities whose business may be materially affected by Committee recommendations; all consulting, employment, or contractual relationships with such entities within the preceding one year; all research funding, speaking fees, travel expenses, or gifts of value exceeding $250 received from such entities within the preceding one year; and any other relationship that a reasonable person would consider relevant to the member's independence. All disclosures shall be published on the Committee's public docket within 15 days of submission and updated within 15 days of any material change.

(C) Recusal.—A Committee member shall be recused from deliberating on and voting on any legislative provision that would directly and predictably affect the financial interests of any entity with which the member has a disclosed financial relationship. The Committee Chair shall make recusal determinations in the first instance; disputes shall be resolved by majority vote of non-recused members. Recusal determinations shall be published on the public docket.

(D) Submission Disclosure Requirement.—Any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems, industry association, advocacy organization, law firm, consulting firm, or other person that submits written or oral arguments, testimony, research, policy proposals, or other substantive input to the Committee shall, at the time of submission, disclose: the identity of the submitting party and all persons who contributed to the submission; all financial relationships between the submitting party and any Committee member within the preceding one year; and whether the submission was prepared in whole or in part by any person with a financial interest in the Committee's recommendations. The Committee shall not accept any submission that does not include required disclosures. All submissions and their accompanying disclosures shall be published on the public docket within 5 business days of receipt.

(E) Comptroller General Oversight.—The Comptroller General shall review the Committee's conflict of interest disclosures and recusal determinations annually and shall transmit a written assessment to Congress identifying any patterns of undisclosed conflicts, recusal failures, or systematic bias. Any member of Congress, any Committee member, or any member of the public may request a Comptroller General investigation of a specific conflict of interest allegation, and the Comptroller General shall respond within 60 days.

(b-4) Staff and Administrative Capacity.—The Comptroller General shall, not later than 60 days after the date of enactment, complete the hiring of the Executive Director of the Committee. The Executive Director shall thereafter hire the Public Docket Administrator, Technical Systems Manager, and Public Engagement Coordinator not later than 90 days after the date of enactment, and shall hire all remaining staff required by this subsection — including legislative drafting staff and TWG administrative coordinators — not later than 90 days after the date of enactment, except that the Public Records Officer under subsection (3-B) and the Epistemic Advisor under subsection (b)(1)(G) shall each be hired or appointed not later than 120 days after the date of enactment.

(1) Executive Director.— The Comptroller General shall appoint an Executive Director not later than 60 days after the date of enactment by one of the following methods, at the Comptroller General's discretion

(i) designating a senior GAO employee at the Senior Executive Service level to serve as Executive Director, with the consent of that employee;

(ii) accepting a detail of a qualified senior career federal official from any federal agency under 5 U.S.C. § 3343, with the consent of the sending agency and the official.

(iii) making an excepted service appointment under 5 U.S.C. § 3109 and Schedule A of 5 C.F.R. Part 213 of a qualified person who meets the qualifications specified in this paragraph.

In all cases, the Executive Director shall not have been employed by, served as a paid consultant to, or received compensation from any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding appointment. The flexibility to appoint from an existing government pool under methods (i) or (ii) is intended to allow the Comptroller General to move quickly by tapping a person who already holds federal security clearances, understands federal investigatory and legislative process, and can begin work immediately upon designation. The Executive Director shall manage the Committee's day-to-day operations; coordinate communications between Committee members and external parties; supervise all Committee and TWG administrative staff; manage the Committee's budget; ensure compliance with all deadlines and procedural requirements of this section; coordinate inter-TWG meetings with TWG administrative coordinators; and oversee the transition of operational infrastructure to the TWG administrative coordinators before Day 120. The Executive Director shall be compensated at a rate not to exceed the rate for Executive Level IV of the Executive Schedule, or at their existing rate of compensation if detailed from another agency, whichever is appropriate to the appointment mechanism used.

(2) Public Docket Administrator.—The Executive Director shall hire not fewer than two Public Docket Administrators not later than 90 days after the date of enactment. At peak investigatory load, the public docket will receive simultaneous monthly work product submissions from 11 Technical Working Groups, ongoing public submissions, monthly TWG public ledgers, FAC meeting records, vote records, conflict of interest disclosures, and legislative outputs, all subject to strict statutory publication deadlines; a minimum of two staff dedicated to this function is necessary to ensure no deadline is missed due to volume. Public Docket Administrators shall be responsible for: receiving, logging, and publishing all submissions to the Committee’s public docket; ensuring all submissions, meeting records, votes, disclosures, monthly TWG work product submissions, and legislative outputs are published within required timeframes; maintaining the searchability and machine-readable format of the docket; responding to public inquiries; publishing each

monthly TWG public ledger transmitted by the Public Records Officer under subsection (b-4)(3-B)(ii) on the staggered schedule established by the Executive Director not later than Day 125, which shall assign each TWG a fixed monthly publication date such that no two TWGs share the same publication date and each TWG's structured input package is due to the Public Records Officer not fewer than 10 business days before that TWG's assigned publication date; publishing the staggered schedule on the public portal not later than Day 125 and transmitting it to all TWG Administrative Coordinators and the Public Records Officer upon establishment; maintaining a publicly accessible cumulative index on the public portal recording each published ledger by TWG, publication date, and subject matter, updated upon each publication; and reviewing factual correction requests submitted by TWGs within 5 days of ledger publication, either incorporating the correction or publishing a written explanation alongside the original ledger, with appeal to the Executive Director available within 3 business days of a correction decision. Public Docket Administrators shall not have been employed by any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding hiring.

(3) Technical Systems Manager.—The Executive Director shall hire not fewer than two Technical Systems Managers not later than 90 days after the date of enactment. The Technical Systems function encompasses simultaneously maintaining 11 separate TWG secure digital workspaces, the public portal and docket platform, the classified document repository, and remote participation infrastructure for 11 TWGs and the FAC throughout the investigatory period; a minimum of two staff is necessary to ensure continuous availability and to avoid a single point of failure in the Committee's technical infrastructure. Technical Systems Managers shall be responsible for designing, building, operating, and maintaining the Committee's public-facing website and docket platform; ensuring the website meets federal accessibility standards under section 508 of the Rehabilitation Act of 1973; implementing cybersecurity protections consistent with NIST standards; ensuring continuous public availability of docket materials; and providing technical support for Committee and TWG meetings including remote participation capability. Technical Systems Managers shall not have been employed by any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding hiring.

(3-A) Public Engagement Coordinator.—The Executive Director shall hire not fewer than one Public Engagement Coordinator not later than 90 days after the date of enactment. The Public Engagement Coordinator shall have demonstrated experience in public engagement methodology, deliberative democracy processes, or community

outreach, and shall not be required to have substantive expertise in any of the 19 investigation domains. The Public Engagement Coordinator shall not have been employed by any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding hiring. The Public Engagement Coordinator shall:

(i) plan, coordinate, and support the Federal Advisory Committee's stakeholder engagement activities under section 9(a), working with TWG Administrative Coordinators to identify domain-specific engagement needs and opportunities;

(ii) monitor on a rolling basis for public deliberation research and public input produced externally during the investigatory period — including outputs of citizens assemblies organized by any person or entity, deliberative polling processes, nationally representative surveys, recorded and structured public debates, public opinion research commissioned by any person or entity, and participatory research initiatives addressing AI-related topics — and transmit identified materials to the relevant TWG Administrative Coordinators for deposit in the shared evidence repository within 10 business days of identification;

(iii) maintain a public-facing registry on the public portal under section 9(d) of all external public engagement research and input identified and transmitted under clause (ii), including the source, date, and TWGs to which the material was routed;

(iv) coordinate with the lead agency's domain investigators to identify relevant public opinion research and public input gathered through the lead agency's investigative support activities; and

(v) report to the Executive Director on the status of stakeholder engagement and public opinion research intake at each monthly Committee session.

(3-B) Public Records Officer.— The Executive Director shall hire not fewer than one Public Records Officer not later than 120 days after the date of enactment. The Public Records Officer shall have demonstrated experience in public-facing government reporting, journalism, policy writing, or equivalent professional experience producing plain-language summaries of complex technical or legal material for non-specialist audiences; the Public Records Officer shall not be required to have substantive expertise in any of the 19 investigation domains. The Public Records Officer shall not have been employed by any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding hiring. The Public Records Officer shall not communicate directly with TWG members regarding ledger content before publication; all input shall flow through the TWG Administrative

Coordinator's structured input package. The Public Records Officer shall be compensated at rates consistent with comparable positions in the federal government under the General Schedule pay scale. The Public Records Officer's sole functions are:

(i) receive the structured input package transmitted by each TWG Administrative Coordinator under subsection (b-4)(5) and, based solely on that package and publicly available materials, produce the monthly public ledger for each TWG required by subsection (e)(2)(J), ensuring consistent terminology, plain-language standards, and formatting across all 11 ledgers to enable meaningful public comparison of investigatory progress; and

(ii) transmit each completed ledger to the Public Docket Administrator for publication and indexing under subsection (b-4)(2), not fewer than 2 business days before the assigned publication date for that TWG under the staggered schedule established under subsection (b-4)(2).

(4) Legislative Drafting Staff.—The Executive Director shall hire not fewer than 3 and not more than 5 Legislative Drafters, who shall: draft, review, and refine statutory text based on TWG monthly work product submissions and Committee deliberations; provide legislative drafting assistance to TWG representatives upon request; produce the section-by-section analysis accompanying the final legislative package; ensure cross-domain consistency and definitional coherence across all 19 domain provisions; and identify drafting conflicts, ambiguities, or constitutional vulnerabilities in emerging legislative proposals. Each Legislative Drafter shall have demonstrated professional experience in federal legislative drafting or federal regulatory drafting, including service as congressional legislative counsel, agency regulatory counsel, Office of Legal Counsel attorney, or equivalent senior policy counsel with primary responsibility for statutory or regulatory text production. Legislative Drafters shall also be available to TWGs for legislative research assistance upon request submitted through the TWG administrative coordinator. The Committee shall additionally establish a formal channel through which TWGs may submit research requests to the Congressional Research Service, and the Executive Director shall manage that channel. Legislative Drafting Staff shall not have been employed by any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding hiring.

(5) TWG Administrative Coordinators.—The Executive Director shall hire one Administrative Coordinator and one Administrative Support Staff member for each of the 11 Technical Working Groups — 11 Administrative Coordinators and 11 Administrative Support Staff members in total — not later than 90 days after the date of enactment. Each Administrative Support Staff member shall assist the Administrative Coordinator of their assigned TWG with document management,

scheduling support, preparation of public ledger entries, public submission inbox monitoring and logging, and such other administrative tasks as the Administrative Coordinator directs. Administrative Support Staff shall be compensated under the General Schedule pay scale and shall not have been employed by any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding hiring. Each TWG Administrative Coordinator shall: manage scheduling and logistics for their assigned TWG's weekly all-day sessions and other meetings; maintain the TWG's document repository and internal records; prepare and transmit the TWG's monthly work product submissions to the Committee; coordinate with the Committee's Public Docket Administrator to ensure TWG materials are published on the public docket; prepare and transmit to the Public Records Officer, not fewer than 10 business days before that TWG's assigned monthly publication date under the staggered schedule established under subsection (b-4)(2), beginning with the first full calendar month following the TWG's organizational meeting, a structured input package for the monthly public ledger required by subsection (e)(2)(J), consisting of: a chronological log of investigatory activities conducted during the preceding month; a list of sources consulted, experts heard, and external parties contacted; a summary of any significant evidentiary or analytical developments; and an identification of any cruxes that emerged or were resolved during the period; coordinate with other TWG Administrative Coordinators and the Executive Director to schedule inter-TWG sessions when cross-domain conflicts arise; and support the onboarding of TWG members upon appointment. TWG Administrative Coordinators shall be hired from among persons with demonstrated experience managing federal investigatory, regulatory, or legislative processes, including: former congressional committee staff directors or professional staff members with investigatory or legislative process experience; current or former GAO investigators or analysts seconded under an interagency agreement; or former agency chiefs of staff, deputy chiefs of staff, or senior regulatory process managers at agencies including the FTC, SEC, FCC, CFTC, CFPB, or EPA. TWG Administrative Coordinators shall not have been employed by any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems within the one year preceding hiring.

(6) Pre-Constitution Setup Obligations.—Before Day 120 — the date on which final TWG appointments are made and members begin onboarding — the Executive Director and TWG Administrative Coordinators shall complete the following setup activities for each TWG: establish the TWG's secure digital workspace, document management system, and communications infrastructure; prepare the TWG's onboarding materials including domain mandate documentation, access credentials,

ethics briefing coordination, and orientation schedule; coordinate with the Office of Government Ethics and the relevant home agencies of seed members to initiate SGE classification, financial disclosure (OGE 450), and ethics briefing processes for all appointed members; and brief all TWG Administrative Coordinators on Committee procedures, monthly work product submission formats, public docket requirements, and inter-TWG coordination protocols. Upon constitution of each TWG, the Executive Director shall formally hand off operational responsibility for that TWG to its Administrative Coordinator, while retaining network-wide coordination authority.

(7) Compensation.—All staff hired under this subsection shall be compensated at rates consistent with comparable positions in the federal government under the General Schedule pay scale. The Committee is authorized to use Schedule A excepted service hiring authority for positions requiring specialized technical or legislative expertise. GAO staff seconded to TWG Administrative Coordinator positions shall remain on GAO's payroll under the terms of the interagency agreement.

(8) Transfer to National AI Council.—Upon the Committee completing its legislative transmission to Congress under subsection (f) and the National AI Council assuming its full mandate, the employment of the Executive Director, Public Docket Administrator, Technical Systems Manager, Public Engagement Coordinator, and all additional staff hired under this subsection shall transfer to the National AI Council by operation of law, without interruption of service, new hiring process, or gap in employment. The Council shall assume full supervisory authority over all transferred staff.

(c) Operations.—The Federal Advisory Committee on Artificial Intelligence Governance shall meet not less frequently than weekly during the legislative drafting period from the first TWG organizational meeting through the FAC backstop transmission deadline. The Committee shall publish meeting agendas at least 48 hours in advance and shall publish meeting transcripts and materials within 5 business days of each meeting. The Committee shall receive TWG monthly work product submissions as required by subsection (e)(2)(I) and shall begin synthesizing them into draft statutory language concurrently with the TWG investigation — not waiting for final TWG submissions to begin drafting. The Committee shall coordinate with the TWG Coordination Council to ensure legislative drafting remains consistent with evolving TWG findings and to resolve cross-domain definitional and jurisdictional conflicts. Monthly Committee sessions shall include a standing agenda item for review of cross-TWG conflicts identified by TWG Administrative Coordinators, with the Executive Director coordinating scheduling of joint TWG sessions to resolve material conflicts before they harden into the final legislative package.

(d) Independence.—Members shall serve in their individual capacities and shall not be subject to direction by any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems, the lead agency, or any executive branch official. The Committee's legislative output shall be transmitted to Congress without agency alteration, redaction, or editorial modification. The lead agency may provide the Committee with access to investigation data, agency research, and evidentiary materials upon request, but may not direct, limit, or modify the Committee's legislative drafting.

(f) Legislative Transmission to Congress.—The Federal Advisory Committee on Artificial Intelligence Governance shall transmit introduction-ready draft statutory text to Congress on a rolling basis as domain packages are completed, beginning as early as the first TWG organizational meeting. The Federal Advisory Committee need not wait for all 19 domains to be complete before transmitting completed domains. A domain package is ready for transmission when: the Federal Advisory Committee has voted by the 12-of-18 threshold to adopt the draft statutory text for that domain; the Coordination Council has confirmed no unresolved cross-domain conflicts exist for that domain, which confirmation may be provided either by formal Coordination Council resolution at a duly scheduled meeting or by written certification of the Coordination Council presiding officer that no cross-domain conflict has been flagged by any TWG representative within the preceding 14 days with respect to that domain; and the Chair has certified that deliberative record requirements have been satisfied. Each transmitted domain package shall constitute introduction-ready draft statutory text — not a report — with numbered sections, defined terms, enforcement mechanisms, and penalty provisions. Each transmission shall be simultaneously published on the Federal Advisory Committee’s public docket and made available through the Government Publishing Office. The Clerk of the House and the Secretary of the Senate shall enter each transmitted package into the Congressional Record upon receipt. Section-by-section analysis and any minority reports for each domain shall follow within 15 days of that domain’s transmission and shall not delay transmission. The Federal Advisory Committee shall transmit all remaining domain packages not later than 30 days after the last TWG submits its final domain recommendations under section 8(e)(2)(D) — the firm backstop deadline. In no event shall this backstop deadline fall later than 15 months after the date of enactment, ensuring that even if TWGs begin at the latest permissible date under the organizational meeting deadline of section 8(e)(1)(I), the Federal Advisory Committee completes transmission within a defined outer bound. At the backstop deadline, the Federal Advisory Committee shall also transmit a complete index of all domain packages transmitted to date, a Chair certification that all 19 domains have been addressed, and any cross-domain analysis the Federal Advisory Committee considers necessary. The 180-day Phase II Enactment Deadline under section 13(a) runs from the date of the Federal Advisory Committee’s final backstop transmission for all

domains, regardless of when each domain package was transmitted. Rolling transmissions before the backstop deadline give Congress advance reading time and enable committee preparation — they do not start separate countdown clocks. The lead agency shall maintain and publish a real-time public record of which domains have been transmitted and on what date. Upon completing its final legislative transmission to Congress under this subsection, the Federal Advisory Committee and each Technical Working Group shall transition to a Technical Support and Availability status. Members shall remain available to respond to written and oral questions from Members of Congress, congressional committee staff, the lead agency, and the National AI Council regarding the evidentiary basis, drafting intent, and technical content of any transmitted domain package. This availability obligation continues until the National AI Council is fully constituted with a quorum of 10 members under section 18(b-2), at which point the National AI Council assumes the ongoing technical advisory function. Upon reaching Technical Support and Availability status, government employees detailed to TWG or FAC service under 5 U.S.C. § 3343 may return to their home agencies at the direction of those agencies, provided they remain individually available to respond to technical support requests during business hours through the mechanism established by the Executive Director. Non-government TWG and FAC members serving as Special Government Employees are not required to maintain full-time availability during this period but shall respond to written technical support requests within 10 business days.

(g) Public Docket and Argument Logging.—The Committee shall establish and maintain a publicly accessible online docket on which it shall publish in real time throughout the investigatory and drafting period: all written submissions received from any party; all meeting agendas and transcripts; all recorded votes and tallies; all conflict of interest disclosures and recusal determinations; all monthly TWG work product submissions; all draft legislative provisions circulated for Committee deliberation; all final legislative provisions transmitted to Congress; all minority reports; all monthly TWG public ledgers prepared by the Public Records Officer and required by subsection (e)(2)(J); and all correspondence between the Committee and any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems, industry association, or lobbyist. For each legislative provision the Committee deliberates, the Committee shall maintain a structured argument log documenting each argument received for and against the provision attributed by name to the submitting party, the evidence cited, and the Committee’s written assessment of each substantive argument explaining why it was found persuasive or not. The argument log for each provision shall be transmitted to Congress alongside the legislative package and simultaneously published on the Committee’s public docket as part of the complete public record of the Committee’s deliberations. The argument log is a transparency and accountability document and does not create any procedural obligation binding on Congress.

(e) Technical Working Groups.—

(e)(1) Establishment and Two-Stage Appointment Process.—

(e)(1)(A) General.—The Federal Advisory Committee established under this section is authorized to establish not more than 11 Technical Working Groups (in this section, 'TWGs') to conduct specialized domain investigations in support of the Committee's legislative drafting mandate. Each TWG shall operate as a subordinate body of the Committee. TWG outputs — including monthly work product submissions and final domain recommendations — shall constitute draft recommendations to the Committee and shall not be transmitted directly to Congress, the lead agency, or any other entity. The Committee is the sole body authorized to transmit legislative recommendations to Congress. No TWG may represent its findings as the findings of the Committee or of any federal agency.

(e)(1)(B) Two-Stage Appointment Process.—TWG membership shall be established through a two-stage process: a first stage in which congressional appointing authorities appoint career government seed members by Day 60 after the date of enactment; and a second stage in which those seed members collectively nominate a binding candidate pool for the remaining slots by Day 90, from which the appointing authorities make final selections with all TWG members appointed by Day 120. TWGs begin full-time work after members have completed SGE onboarding, with organizational meetings held as soon as quorum is available and substantive work commencing at the organizational meeting.

(e)(1)(C) Stage One — Seed Appointments.—Not later than 60 days after the date of enactment, each of the following congressional appointing authorities shall appoint one career federal government seed member to each of the 11 TWGs: the Majority Leader of the Senate; the Minority Leader of the Senate; the Speaker of the House of Representatives; and the Minority Leader of the House of Representatives. Each seed appointment shall result in 4 seed members per TWG — one from each appointing authority — for a total of 44 seed members across all 11 TWGs. Seed members shall be career civil servants or members of the Senior Executive Service employed by the federal agencies specified for each TWG in subsections (e)(3) through (e)(13). No seed member may be a political appointee. Each appointing authority shall consult with the Federal Advisory Committee Chair before making seed appointments to ensure domain expertise, cross-TWG balance, and non-duplication. If any appointing authority fails to make seed appointments by Day 60, the Comptroller General shall make the unfilled seed appointments within 7 days thereafter.

(e)(1)(D) Stage One — SGE Onboarding.—Upon appointment, each seed member shall immediately begin the Special Government Employee onboarding process, which shall be coordinated by the TWG Administrative Coordinator for their assigned TWG in partnership with the Office of Government Ethics and the member's home agency. SGE

onboarding includes: financial disclosure filing (OGE Form 450); ethics briefing from the Committee's designated ethics official; background investigation initiation; security clearance initiation where required by the member's assigned TWG; and orientation to Committee procedures and TWG mandate. The onboarding process typically requires 2 to 4 weeks to complete. Onboarding begins on the date of appointment — Day 60 — and is expected to be complete for seed members by approximately Day 80, before the nomination pool submission deadline.

(e)(1)(E) Stage One — Transition to Full-Time Service.— Seed members shall be detailed to their respective TWGs under 5 U.S.C. § 3343. Each seed member shall remain an employee of their home agency throughout the detail period and shall be compensated by their home agency at their existing rate of compensation. The heads of all federal departments and agencies are directed to approve detail requests for employees appointed as seed members and to grant such details as a priority matter. The detail shall be structured as follows

(i) Advisory Phase (Day 60 through Day 90 at most) — a seed member who is unable to immediately transition full-time responsibilities may continue in their agency role on a reduced basis while completing onboarding and the nomination process, with full transition completed not later than Day 90

(ii) Full-Time Phase (Day 90 onward) — all seed members shall devote their primary professional time and attention to TWG work on a full-time basis from Day 90 through the TWG's final domain submission. A seed member who can transition immediately upon appointment shall do so without waiting for Day 90. A seed member may maintain a limited ongoing advisory role at their home agency of not more than 4 hours per week only upon written certification by the head of the member's home agency to the Federal Advisory Committee Chair that an extraordinary operational necessity requires it; any such certification shall be published on the public portal under section 9(d).

(e)(1)(F) Stage Two — Nomination Pool.—Not later than 90 days after the date of enactment — 30 days after seed appointments — the 4 seed members of each TWG shall collectively produce a binding nomination pool for each remaining slot in their TWG, as specified in subsections (e)(3) through (e)(13). The nomination pool shall include not fewer than 2 and not more than 3 qualified candidates per remaining slot. Each candidate in the pool shall meet the specific qualifications defined for that slot in the applicable TWG subsection. The nomination pool shall be submitted in writing to the Federal Advisory Committee Chair, who shall publish it on the public portal under section 9(d) within 3 business days of receipt. Seed members shall reach the nomination pool by majority vote; in the event of a 2-2 deadlock on any slot, both candidates proposed by the deadlocked members shall be included in the pool. If any TWG's seed

members fail to produce a nomination pool for any slot by Day 90, the Executive Director of the Federal Advisory Committee shall designate qualified candidates for the unfilled pool slots within 7 days thereafter, drawing on the qualifications specified in the applicable TWG subsection. TWGs may continue to identify and add candidates to unfilled slots on a rolling basis after Day 90 until all seats are filled.

(e)(1)(G) Stage Two — Congressional Selection.—Not later than 120 days after the date of enactment, the congressional appointing authorities shall collectively make final appointments from the binding nomination pool produced under subparagraph (F). The appointing authorities may select any candidate from the pool for any remaining slot but may not appoint a person who does not appear in the pool. The appointing authorities shall divide responsibility for final appointments as follows: the Majority Leader and Speaker together shall fill the odd-numbered remaining slots as listed in subsections (e)(3) through (e)(13); the Minority Leader and House Minority Leader together shall fill the even-numbered remaining slots. If any appointing authority fails to make final appointments by Day 120, the Executive Director of the Federal Advisory Committee shall make the unfilled appointments from the nomination pool within 7 days thereafter. If a nominated candidate withdraws, becomes ineligible, or is otherwise unavailable between Day 90 and Day 120, the seed members of the relevant TWG shall, within 5 days of notification of unavailability, nominate a substitute qualified candidate meeting the specifications of the applicable slot into the binding nomination pool; such substitute nomination has the same binding force as the original pool nominations and the appointing authority shall make its appointment from the updated pool. If the seed members cannot agree on a substitute within 5 days, the Executive Director shall, within 5 additional days, nominate a qualified substitute into the pool from among persons meeting the slot qualifications. If a substitute is nominated into the pool after Day 115, the Day 120 appointment deadline for that specific slot only is automatically extended by 7 days to provide the appointing authority adequate time to make its selection; all other slots remain subject to the Day 120 deadline.

(e)(1)(H) SGE Onboarding for Stage Two Members.—Upon appointment at Day 120, each Stage Two member shall immediately begin the SGE onboarding process coordinated by the TWG Administrative Coordinator, following the same process described in subparagraph (D). Onboarding for Stage Two members typically completes within 2 to 4 weeks, placing most members ready for substantive work by approximately Day 140 to 150.

(e)(1)(I) Organizational Meeting and Substantive Work Commencement.—Each TWG shall hold its first organizational meeting within 5 days of the date on which a quorum of that TWG's full membership has completed SGE onboarding and is cleared to begin work. For seed members, this quorum is expected to be available approximately Day 80 to 90; for the fully constituted TWG, this quorum is expected approximately Day 125. Substantive investigatory work shall begin at the organizational meeting — there is no

grace period, orientation period, or ramp-up period following the organizational meeting. The organizational meeting agenda shall include: election of a TWG Chair by majority vote; election of Coordination Council representatives under subsection (e)(14)(B); assignment of investigatory sub-tasks among members; and review of the TWG's domain mandate. The TWG Administrative Coordinator shall have all logistics, infrastructure, document management, and communications systems operational before the organizational meeting so that members can begin substantive work immediately.

(e)(1)(J) Former Official Requirement.—Except where the applicable TWG subsection expressly provides otherwise, any slot requiring expertise associated with a government, elected, or appointed position shall be filled by a former holder of that position or role, not a currently serving official. This requirement reflects the structural reality that sitting elected officials, currently serving agency heads, and persons with active fiduciary or statutory obligations cannot commit to full-time TWG service without abandoning those obligations. Former officials bring equivalent or superior expertise without these structural constraints. This requirement does not apply to career federal employee seed members, who serve on detail from their current positions.

(e)(1)(K) Active Litigation Exclusion.—No person with active pending litigation as a party, attorney of record, or expert witness in any proceeding directly addressing a legal question within the jurisdiction of the TWG to which they are appointed may serve on that TWG. For purposes of this subparagraph, 'active pending litigation' means a proceeding in which the person has ongoing obligations — including discovery obligations, deposition obligations, hearing obligations, or active case strategy responsibilities — that would conflict with full-time TWG service. A person with concluded cases in the relevant domain is eligible. The appointing authority shall obtain written certification from each nominee that no active litigation conflict exists before making the appointment.

(e)(1)(L) Carve-Outs.—The following carve-outs apply to specific roles across TWGs:

(i) Allied Nation Contributing Expert.—An allied nation contributing expert appointed under subsections (e)(5) or (e)(13) is not subject to the full-time service requirement, may not serve as a full voting member, and is not required to be a United States citizen or government employee. An allied nation contributing expert shall attend all non-classified sessions of the relevant TWG, submit written analysis and recommendations to the TWG record, and participate fully in deliberations, but shall not vote on TWG recommendations. Contributions shall be included in TWG outputs with clear attribution. Allied nation contributing experts are subject to all security clearance requirements applicable to non-classified sessions.

(ii) Active-Duty Military Officer.—For TWG 11 (Autonomous Weapons, International Humanitarian Law, and Arms Control), a recently retired military officer within 5 years of separation from active duty is the default. If

the relevant appointing authority determines that active-duty expertise is essential and unavailable from recently retired officers, an active-duty officer may be detailed to TWG 11 under 10 U.S.C. § 712 with the approval of the Secretary of Defense. Such a detail shall be treated as a military assignment, shall count toward the officer's service obligations, and shall not affect rank, pay, or benefits. The decision to seek an active-duty detail shall be made by the appointing authority in writing, with written concurrence from the Federal Advisory Committee Chair, not later than Day 50 to allow time for Defense Department processing before the Day 60 seed appointment deadline.

(iii) Member Under 25.—The member under the age of 25 required in TWG 6 (Children, Youth, and Vulnerable Populations) is a full voting member and subject to all TWG membership obligations, but is not subject to the full-time service requirement as applied to other members. The under-25 member shall attend all TWG sessions in person or by remote participation and shall engage substantively with all TWG work product, draft recommendations, and deliberative processes. Compensation shall be adjusted to reflect the member's participation modality. Remote participation infrastructure shall be provided at government expense. Scheduling shall, to the extent practicable, accommodate the academic or employment obligations of the under-25 member without compromising the TWG's work schedule.

(e)(2) General Requirements Applicable to All TWGs.—

(A) Mandatory AI Expertise Requirements.— In addition to the domain-specific composition requirements of subsections (e)(3) through (e)(13), every TWG without exception shall include

(i) AI Technical Expert — not fewer than one member who has direct hands-on experience building, training, or evaluating AI systems of the type relevant to the TWG's domain, meaning the member has personally constructed, trained, deployed, or conducted structured evaluation of production-grade AI systems, not merely studied or written about such systems. Minimum qualification: peer-reviewed publication in machine learning or AI with direct relevance to the TWG's domain; or documented professional experience building or operating production AI systems at a frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems or recognized AI research institution; or documented dangerous capability evaluation experience at a recognized evaluation body. Policy expertise, AI ethics scholarship, or general technology policy experience does not satisfy this requirement. (ii) Domain-Specific AI Harm Researcher — not fewer than one member who has produced empirical research specifically documenting how AI systems cause harm in the TWG's domain. Minimum qualification: peer-

reviewed publication, government-commissioned report, or equivalent documented research product that identifies specific AI-caused harms in the TWG's domain with supporting evidence.

(B) Qualifications.—All TWG members shall possess demonstrated expertise in the domain assigned to that TWG. Demonstrated expertise means peer-reviewed publication; professional practice of not fewer than 7 years in the relevant field; federal regulatory or operational experience in the relevant domain; or a combination thereof sufficient for the appointing authority to determine that the member can meaningfully contribute to the TWG's specialized mandate. The mandatory AI expertise requirements of subparagraph (A) constitute additional qualifications layered on top of, not in substitution for, domain expertise.

(C) Full-Time Service Commitment.—TWG membership constitutes full-time federal service for the duration of the investigatory period from the member's first organizational meeting through the TWG's final domain submission at the 8.5-month deadline. Each TWG member shall devote their primary professional time and attention to TWG responsibilities during this period. No TWG member may simultaneously hold employment, consulting arrangements, or other professional obligations that create a material conflict with their TWG duties, except as provided in subsection (e)(1)(L). The appointing authority shall obtain written confirmation from each nominee before appointment that the prospective member can commit to full-time service and has resolved or will resolve any conflicting professional obligations before the date of their organizational meeting.

(D) Final Domain Submission Deadline and Required Domain Explanatory Report.—Each TWG shall submit its final domain recommendations to the Federal Advisory Committee not later than 8.5 months after the date of that TWG's first organizational meeting. TWGs that hold their organizational meeting earlier than the maximum appointment timeline permits shall benefit from the earlier start — their 8.5-month clock runs from their actual organizational meeting date, not from any fixed day after enactment. To ensure the investigatory process cannot be indefinitely delayed through postponement of organizational meetings, each TWG's first organizational meeting shall be held not later than 155 days after the date of enactment, consistent with section 8(e)(1)(I). The 8.5-month deadline is firm for each TWG individually. No extension shall be granted. If a TWG fails to submit complete final domain recommendations by its deadline, the TWG Chair shall submit a partial submission with whatever the TWG has completed, and the Federal Advisory Committee shall proceed with its legislative finalization on the basis of that partial submission, supplemented by the TWG's prior monthly work product submissions. The final domain submission shall consist of two components: the legislative component and the Domain

Explanatory Report, both of which are required and both of which are due at the 8.5-month deadline. Throughout the investigatory period, the Federal Advisory Committee's Legislative Drafting Staff shall work collaboratively with each TWG to refine and translate each monthly work product submission into draft statutory language on a rolling basis, so that by the time a TWG submits its final domain recommendations, the corresponding legislative text is substantially advanced rather than begun from scratch. Draft statutory language developed through this rolling process remains provisional until the TWG's final domain submission — monthly work product submissions may revise, reverse, or supersede prior recommendations, and the Legislative Drafting Staff shall update draft statutory language accordingly.

(i) Legislative Component.—The legislative component of the final domain submission shall include: complete draft statutory text for each significant issue within the TWG's domain, organized by subject matter with numbered sections and defined terms consistent with the FAC's cross-domain drafting framework; a formal finding of no regulation with evidentiary basis for any domain issue on which the TWG recommends no legislative intervention; a complete index of the evidentiary record supporting each recommendation, identifying every source relied upon; identification of any matters the TWG was unable to resolve within its investigatory period with a specific recommendation for Phase II investigation; and a certification by the TWG Chair that the mandate structure of subsection (e)(2)(L) has been completed for each domain issue.

(ii) Domain Explanatory Report.— Each TWG shall produce and submit alongside its legislative component a Domain Explanatory Report. The Domain Explanatory Report is a comprehensive explanatory document, written in accessible prose, that constitutes the full public record of the TWG's investigatory work and the reasoning behind its legislative recommendations. The Domain Explanatory Report is the document from which courts, congressional staff, agencies, future rulemakers, researchers, and the public can understand what the TWG found, what it considered, and why it decided what it decided. The Domain Explanatory Report shall be organized by domain issue and shall include, for each significant issue within the TWG's domain, the following elements

(A) Harm Documentation — a comprehensive description of each identified harm arising from AI systems in this domain, including: the nature and mechanism of the harm; documented evidence of prevalence, including quantitative estimates where the evidentiary record supports them; the populations most affected, with particular attention to vulnerable groups; the severity and reversibility of the harm; and the trajectory of the harm over the investigatory period, including whether it is accelerating, stable, or declining. (B) Evidentiary Record Summary — a narrative summary of the evidence reviewed by the TWG bearing on this

issue, including: the sources consulted, their nature and quality; the expert presentations received and the principal arguments made; the public submissions received and the range of perspectives they represented; and an honest assessment of the strength, completeness, and limitations of the evidentiary record, including areas where the evidence is strong, areas where it is preliminary, and areas where genuine scientific or factual uncertainty remains. (C) Intervention Analysis — for each potential legislative intervention evaluated by the TWG, including the option of no regulation: a description of what the intervention would do; its anticipated costs and benefits; its constitutional parameters and any identified legal vulnerability; its implementation requirements and administrative feasibility; its enforcement mechanism and the likely response of frontier AI developers and significant AI deployers; and the TWG's assessment of its effectiveness in addressing the identified harm. (D) Cruxes and Points of Genuine Uncertainty — an explicit identification of the genuinely contested questions of fact, law, or policy that were most determinative of the TWG's recommendations, including: the factual disputes the TWG could not fully resolve on the evidence available; the value judgments the TWG was required to make where the evidence did not compel a single answer; and the questions the TWG believes most warrant further investigation in Phase II. (E) Externalities and Cross-Domain Effects — an assessment of the significant effects of each proposed intervention beyond the TWG's primary domain, including: effects on innovation, competition, and market structure; effects on civil liberties, free expression, and democratic processes; effects on national security and international competitiveness; effects on communities and populations not primarily within the TWG's domain but affected by the proposed intervention; and cross-domain interactions with the work of other TWGs, including areas where this TWG's recommendations may conflict with or depend upon another TWG's recommendations. (F) Pro and Con Arguments — for each significant legislative choice the TWG made, a structured presentation of the principal arguments for and against the choice adopted, attributed by name where the argument was made in a public submission or public log entry, with the TWG's written assessment of why each argument was or was not found persuasive. This is not a summary of all arguments received but a structured account of the arguments that were genuinely consequential to the TWG's deliberations. (G) Justification for Decision — a direct and honest statement of why the TWG recommended what it recommended, including: the weight given to each category of evidence; the policy judgment underlying the recommendation where the evidence did not compel a single answer; the role of the precautionary principle where it was applied; and any significant disagreements within the TWG about the recommendation, including the views of members who would have recommended differently. Where the TWG's vote

on a recommendation was not unanimous, the Domain Explanatory Report shall include a brief statement of the dissenting view. (H) Phase II Recommendations — for each issue on which the TWG's investigatory record was incomplete, a specific recommendation for Phase II investigation or legislation, identifying the evidence gap, the additional expert input that would be required to fill it, and the legislative question that remains open. The Domain Explanatory Report shall be written by the TWG members, not by the TWG Administrative Coordinator, under the direction of the TWG Chair. The FAC Legislative Drafting Staff shall provide drafting assistance upon request. The Domain Explanatory Report shall be published on the public docket simultaneously with the legislative component at the TWG’s 8.5-month deadline and shall be transmitted to Congress alongside the FAC’s backstop legislative package as part of the complete legislative record of this title.

(E) Compensation.—

(i) Special Government Employee Classification.—Each non-government TWG member shall be classified as a Special Government Employee as that term is defined in 18 U.S.C. § 202(a), pursuant to the authority of the Secretary to employ experts and consultants under 5 U.S.C. § 3109. As Special Government Employees, TWG members shall be subject to the conflict-of-interest and ethics requirements applicable to federal employees under 18 U.S.C. § 208, the Standards of Ethical Conduct for Employees of the Executive Branch (5 C.F.R. Part 2635), and applicable Office of Government Ethics regulations.

(ii) Base Compensation Rate.—Each non-government TWG member shall receive compensation at a daily rate equivalent to the annual rate for a GS-15 Step 10 position under the General Schedule pay scale, prorated to a daily rate, for each day of TWG service during the investigatory period. The Secretary shall adjust this rate annually to reflect changes to the General Schedule.

(iii) Enhanced Compensation.—For any TWG member whose documented annual professional compensation from their primary employer in the calendar year preceding appointment exceeded the annual rate for a GS-15 Step 10 position, the Secretary is authorized to compensate that member at a daily rate not exceeding the daily equivalent of the annual rate for a Senior Executive Service ES-6 position to avoid systematically excluding the highest-caliber experts from TWG service on compensation grounds.

(iv) Compensation Waiver.—A TWG member whose employer is compensating them for their TWG service may waive federal compensation by written notice to the Secretary. Such waiver shall be noted publicly in the TWG's membership records on the public portal.

(F) Conflict of Interest Disclosure.—Each TWG member shall, before beginning service and on a continuing basis throughout the investigatory period, disclose in writing to the TWG Chair and the Director of AI Investigation: all financial interests in frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems entities or entities whose business may be materially affected by TWG recommendations; all consulting, employment, or contractual relationships with such entities within the preceding 1 year; all funding received for research related to the TWG's domain from frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems entities or their affiliates; and any other relationship that a reasonable person would consider relevant to the member's independence. All disclosures shall be published on the public portal under section 9(d) within 15 days of submission. A TWG member who fails to disclose a material conflict of interest is subject to removal from the TWG and referral to the Director of AI Investigation under subsection (e)(15)(B). As Special Government Employees, TWG members are additionally subject to mandatory recusal from any TWG matter in which they have a covered financial interest under 18 U.S.C. § 208.

(G) FACA Applicability.— Each TWG shall operate as a Federal Advisory Committee subcommittee subject to the Federal Advisory Committee Act (5 U.S.C. App. 2), with the following procedures established by statute:

(1) Closed Sessions. TWG sessions — including expert presentation sessions under subsection (e)(2)(O), weekly all-day consolidation sessions, classified sessions, and subgroup working sessions — shall be closed to public attendance. This provision constitutes a statutory specification of meeting procedures under this title and supersedes the general open-meeting requirement of 5 U.S.C. App. 2 § 10(a)(1) with respect to TWG sessions. This closure is necessary to enable candid expert testimony on sensitive commercial, technical, and national security matters, to protect trade-secret and classified information, and to preserve the pre-decisional deliberative integrity of the investigatory process.

(2) Public Accessibility of Records. Notwithstanding the closed-session requirement of paragraph (1), the complete documentary record of each TWG’s activities shall be publicly accessible through the public portal under section 9(d) in accordance with the publication timelines established by this title. Materials subject to mandatory public publication include: session summaries prepared by the TWG Administrative Coordinator; monthly work product submissions; monthly public ledgers; communication logs; expert presentation log entries; conflict-of-interest disclosures; and final domain recommendations and Domain Explanatory Reports. Pre-decisional deliberative materials, internal working drafts, trade-secret materials, and

classified materials are not subject to mandatory public disclosure but shall be maintained in the TWG document repository and made available to Congress upon request. The public accessibility of the TWG record under this paragraph constitutes compliance with the public availability requirements of 5 U.S.C. App. 2 § 10(b) with respect to TWG activities under this title.

(3) Balanced Membership. Membership in each TWG shall reflect balance as required by 5 U.S.C. App. 2 § 5(b)(2) and the specific composition requirements of subsections (e)(3) through (e)(13).

(4) Public Record. The public portal established under section 9(d) shall serve as the official public record of TWG activities for FACA purposes. The TWG Administrative Coordinator shall be responsible for its completeness and currency.

(H) Relationship to Parent Committee.— Each TWG shall report to the Federal Advisory Committee through two distinct channels serving distinct functions

(i) the TWG's elected Coordination Council representative under subsection (e)(14), who manages cross-domain coordination, jurisdictional disputes, definitional conflicts, and inter-TWG evidence sharing

(ii) the TWG's elected FAC representative under subsection (e)(16), who participates in FAC legislative drafting deliberations and transmits the TWG's domain findings and recommendations into the legislative process. TWG chairs shall attend the Committee's monthly meetings for the portions of the agenda addressing their domain. The Committee may direct a TWG to revise, supplement, or withdraw a draft recommendation by majority vote of the Committee. A TWG that disagrees with a Committee direction to revise or withdraw a recommendation may, through its FAC representative, request reconsideration at the next Committee meeting; the Committee's determination upon reconsideration is final within the FAC/TWG structure.

(I) Monthly Work Product Submissions.— Each TWG shall submit a structured monthly work product report to the Federal Advisory Committee not later than the last business day of each calendar month throughout the investigatory period from the TWG's organizational meeting through the TWG's 8.5-month deadline. The monthly report shall be prepared by the TWG Administrative Coordinator based on materials produced by the TWG during the preceding month and shall be reviewed by the TWG Chair before submission. Each monthly report shall include

(i) a summary of the investigatory work conducted during the preceding month, including witnesses interviewed, documents reviewed, and research completed

(ii) findings to date in the TWG's domain, clearly distinguishing between conclusions supported by strong evidence, preliminary findings, and areas of genuine uncertainty

(iii) draft recommendation language for any provisions the TWG has developed to a sufficient state of maturity for Committee review, with supporting rationale and evidentiary basis

(iv) identification of any cross-TWG conflicts, definitional inconsistencies, or jurisdictional overlaps discovered during the preceding month, with the affected TWG identified by number

(v) open questions requiring FAC resolution, including questions requiring cross-domain coordination

(vi) the TWG's assessment of its progress toward completing its mandate and any resource or timeline concerns. The Federal Advisory Committee shall review each monthly submission within 15 days of receipt, flag any irreconcilable cross-TWG conflicts for resolution, and transmit any conflicts to the relevant TWG Administrative Coordinators for scheduling of joint sessions. Monthly reports shall be published on the public docket within 5 business days of submission.

(J) Monthly Public Ledger.—Not fewer than 2 business days before each TWG’s assigned monthly publication date under the staggered schedule established under subsection (b-4)(2), beginning with the first full calendar month following the TWG’s organizational meeting, the Public Records Officer appointed under subsection (b-4)(3-B) — not any TWG member — shall prepare a monthly public ledger for each TWG, based on the structured input package transmitted by the TWG Administrative Coordinator under subsection (b-4)(5), and transmit each completed ledger to the Public Docket Administrator for publication under subsection (b-4)(2). The ledger shall not be edited, reviewed, or approved by any TWG member before publication, to ensure the public record reflects an objective synthesis rather than the TWG’s own characterization of its work. Each monthly ledger shall include: a summary of the investigatory work conducted during the preceding month; a description of the findings reviewed and the evidence considered; the cruxes — meaning the genuinely contested questions of fact, law, or policy where evidence is disputed or uncertain — identified during the period; the sources and external parties consulted during the period; and any significant developments that have altered the TWG’s understanding of its domain. The ledger shall be written in plain language accessible to a non-specialist reader, with consistent terminology and formatting across all 11 TWGs to enable meaningful public comparison of investigatory progress. Drafts, working notes, internal deliberations, and preliminary

analytical conclusions of TWG members are pre-decisional deliberative materials not required to be disclosed; only the synthesized ledger prepared by the Public Records Officer is subject to mandatory public disclosure under this subparagraph. Factual corrections to published ledgers are governed by subsection (b-4)(2).

(K) Work Schedule.—TWG membership constitutes a full five-day professional work week commitment throughout the investigatory period from the TWG’s organizational meeting through the TWG’s 8.5-month final domain submission deadline. TWG members are expected to devote their primary professional time and attention to TWG work each day, including research, evidence review, document drafting, subgroup sessions, and preparation for the weekly all-day consolidation session. This is not an advisory or part-time commitment — it is equivalent to a full-time federal position. (i) Daily Work (Four Days Per Week): On each of the four non-consolidation days each week, TWG members shall conduct independent and subgroup investigatory work appropriate to the TWG's current investigatory phase under subsection (e)(2)(L). This includes: individual research and evidence review; subgroup analysis sessions on discrete domain questions; review and response to public submissions received through the public submission channel under subsection (e)(2)(N); preparation of materials for the weekly consolidation session; and drafting of recommendation language for monthly work product submissions. The TWG Administrative Coordinator shall maintain a shared digital workspace and scheduling system accessible to all members for daily coordination. (ii) Weekly All-Day Consolidation Session (One Day Per Week): Each TWG shall hold not fewer than one full all-day consolidation session per week. The consolidation session shall be held in person at the TWG's dedicated workspace established under subparagraph (5) of subsection (b-4). Members who cannot attend in person on a given week may participate remotely through the technical infrastructure provided by the Technical Systems Manager, provided that in-person attendance is the strong default and remote participation is the exception, not the routine. The consolidation session is dedicated to: synthesizing findings from the preceding week's daily work; deliberating on draft recommendation language; reviewing evidence and resolving factual disputes; preparing materials for the monthly work product submission; and deliberating on expert presentations scheduled for that session under subsection (e)(2)(O). The TWG Administrative Coordinator shall publish the agenda for each weekly consolidation session on the public portal not fewer than 48 hours before the session. The session agenda and a summary of proceedings shall be published on the public portal within 5 business days of each session. The content of deliberations — including draft recommendation language under discussion — is pre-decisional deliberative

material not required to be disclosed; only the session summary prepared by the Administrative Coordinator is subject to mandatory publication.

(L) Mandate Structure.— Each TWG's mandate shall be executed in the following four sequential phases, which may overlap in practice but which structure the TWG's outputs

(i) Domain Examination — identifying and documenting the harms, risks, threats, and affected populations arising from AI systems in the domain; the gaps in existing federal law and regulation; the limitations of current enforcement; and the characteristics of affected populations with particular attention to vulnerable groups. In conducting Domain Examination, each TWG shall actively seek out available public opinion research and public input bearing on its domain, including outputs of citizens assemblies organized by any person or entity, deliberative polling processes, nationally representative surveys, recorded and structured public debates, public opinion research commissioned by any person or entity, and other mechanisms through which the views of affected populations on AI-related questions have been gathered. Where such research or input is available, it shall be incorporated into the TWG’s evidentiary record with appropriate assessment of the source and methodology. The TWG Administrative Coordinator shall query the shared evidence repository and the Public Engagement Coordinator for relevant public opinion research and input at the outset of the Domain Examination phase and on a rolling basis throughout the investigatory period;

(ii) Intervention Evaluation — evaluating potential legislative interventions and solutions, including their costs, benefits, constitutional parameters, implementation requirements, and enforcement mechanisms. All options shall be evaluated, including no regulation, repeal or modification of existing legislation, and industry self-regulation, as well as new federal regulatory frameworks; no option shall be excluded from consideration on grounds other than the evidentiary record

(iii) Tradeoff Assessment — assessing the tradeoffs among alternatives, including the distributional effects of each approach, the risks of over-regulation and under-regulation, the constitutional vulnerabilities of each option, and the administrative feasibility of implementation

(iv) Recommendation Development — developing specific legislative recommendations with supporting rationale and evidentiary basis, or a formal finding that no regulation is warranted with the specific evidentiary and constitutional basis for that finding. A finding of no regulation is a legitimate and respected output, not a default or a failure.

(M) Communication Log.—The TWG Administrative Coordinator shall maintain a complete, contemporaneous public log of all external communications made in connection with any TWG's work. The log shall include: the date of each

communication; the name, title, and organizational affiliation of each external party communicated with; the medium of communication; the TWG or TWG member to whom the communication was directed; and a brief description of the subject matter. The log shall be updated within 3 business days of each communication and published on the public portal under section 9(d). All written communications — including email, direct messages, and any other written medium — sent to or received by any TWG member in their TWG capacity shall be treated as public records and transmitted to the Public Docket Administrator within 5 business days of receipt or transmission. The Public Docket Administrator shall publish all such communications, subject only to redaction of: personally identifiable information of private individuals; information subject to law enforcement privilege; and information submitted under a confidentiality agreement pursuant to section 10(c), provided that the existence of the communication and the identity of the submitting party shall always be disclosed even where content is redacted.

(N) Public Submission Channel.— Each TWG shall maintain a dedicated public-facing email address for that TWG, established and published on the public portal by the Technical Systems Manager not later than Day 120. The email address shall follow a standardized format identifying the TWG by number and domain. The TWG Administrative Coordinator — not any TWG member — shall manage the public submission inbox for their assigned TWG and shall be solely responsible for receiving, logging, triaging, and routing inbound submissions. Any person, organization, researcher, community group, affected individual, or other party may submit written information, evidence, research, analysis, or policy argument to a TWG through the public submission channel. Submissions through the public channel shall be subject to the following requirements and procedures

(i) Conflict of Interest Disclosure: each submission shall include the name and organizational affiliation of the submitting party; a description of any financial relationship between the submitting party and any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems or any entity with a material financial interest in the TWG's domain within the preceding one year; and a disclosure of whether the submission was prepared in whole or in part by a person with a financial interest in the TWG's recommendations. The TWG Administrative Coordinator shall not route a submission to TWG members until required disclosures are complete; submissions without required disclosures shall be returned with a request for completion within 5 business days. (ii) Logging and Publication: all submissions received through the public channel shall be logged in the communication log within 3 business days of receipt and published on the public docket within 5 business days of receipt, together with the

accompanying conflict of interest disclosure. No submission shall be withheld from the public docket except on the specific grounds authorized by subsection (e)(2)(M). (iii) Routing: the TWG Administrative Coordinator shall route each submission to the TWG member or members whose expertise is most relevant to the subject matter of the submission, with a copy to the TWG Chair. The TWG Chair shall determine whether the submission warrants a response, referral to a subgroup, consideration at the weekly consolidation session, or no further action. The TWG is not required to respond to or act on any particular submission, but shall not exclude submissions from its consideration on any basis other than relevance to its mandate. (iv) Volume Management: if the volume of public submissions to a particular TWG exceeds the Administrative Coordinator's capacity to process within required timeframes, the Administrative Coordinator shall notify the Executive Director, who shall provide additional administrative support from the broader FAC staff or from GAO staff under the interagency agreement.

(O) Expert Presentations.— TWGs shall actively solicit expert presentations as a primary method of evidence gathering throughout the investigatory period. Expert presentations are internal working sessions of each TWG, closed to public attendance under subsection (e)(2)(G)(1). The following procedures govern expert presentations

(i) TWG-Initiated Presentations: any TWG member may nominate an outside expert to present to the TWG by submitting a written recommendation to the TWG Chair identifying the proposed presenter, their relevant expertise, and the specific subject matter on which the presentation is sought. The TWG Chair shall accept or decline the nomination within 5 days. If accepted, the TWG Administrative Coordinator shall contact the proposed presenter and schedule the presentation. (ii) Publicly Requested Presentations: any person or organization that wishes to present to a specific TWG may submit a presentation request through the TWG’s public submission channel. The request shall identify the proposed presenter, their relevant expertise, and the specific subject matter and argument they wish to present. The TWG Chair shall accept or decline the request within 5 days of receipt by the Administrative Coordinator. The TWG Chair’s decision is final and is not subject to appeal, but the grounds for declining shall be documented in writing and published on the public docket. Requests may be declined on the grounds that the subject matter falls outside the TWG’s domain mandate, that the presentation would be duplicative of evidence already received, or that the TWG’s schedule does not permit additional presentations given the 8.5-month deadline — but may not be declined on the basis of the presenter’s viewpoint or the expected content of the presentation. (iii) Scheduling: all accepted presentations shall be scheduled by the TWG Administrative Coordinator. Presentations may be conducted during the weekly all-day consolidation session or during a separately scheduled working session. (iv) Presenter Disclosure Requirements: each presenter shall, before

presenting, complete the conflict-of-interest disclosure required for public submissions under subparagraph (N)(i). The disclosure shall be published on the public docket within 5 business days of the presentation. (v) Public Log Entry: the TWG Administrative Coordinator shall create a public log entry for each expert presentation within 3 business days of the session. The log entry shall include: the date of the presentation; the name, title, and organizational affiliation of the presenter; the subject matter of the presentation at a level of specificity sufficient to describe the topic presented; and the TWG to which the presentation was made. The content of the presentation — including slides, documents provided, and the discussion that followed — is internal TWG working material and is not published on the public docket, but is part of the TWG's evidentiary record and subject to disclosure to congressional oversight committees upon request. (vi) Internal Transcription: the TWG Administrative Coordinator shall arrange for a verbatim transcript of each expert presentation, including the presentation itself and any TWG member questions and responses. The transcript shall be maintained in the TWG's internal document repository, accessible to all TWG members and to the FAC Legislative Drafting Staff upon request. Internal transcripts are not published but shall be transmitted to the FAC alongside the relevant monthly work product submission or final domain recommendations as supporting documentation.

(P) Classified Information and Clearance Requirements.— Certain TWGs will necessarily receive classified information in the course of their investigatory mandate, including classified assessments of AI capability, classified export control determinations, classified threat assessments, and classified evaluations of autonomous weapons systems. The following provisions govern the handling of classified information by TWGs

(i) Clearance as Appointment Condition for Designated Slots: for each TWG slot designated as requiring access to classified information in subsections (e)(3) through (e)(13), clearance eligibility shall be a condition of appointment. The relevant appointing authority shall, before making an appointment to a designated slot, verify that the prospective appointee is eligible for the required clearance level and initiate the clearance process simultaneously with the appointment. A person who is ineligible for the required clearance level may not be appointed to a designated slot. The designation of which slots within each TWG require clearance eligibility shall be specified by the Director of AI Investigation in consultation with the relevant seed members, not later than Day 50, and published in an unclassified summary on the public portal. (ii) Non-Clearable Members: a TWG member who does not hold or cannot obtain the clearance required for a particular classified session shall be excluded from that session only. Exclusion from a classified session does not affect the member's standing, voting rights, or obligations with respect to all other TWG activities. The TWG Administrative Coordinator shall maintain a record of which members attended each classified session, and the TWG Chair shall ensure that classified information disclosed in a classified

session is not discussed in any session from which non-cleared members are excluded without their knowledge. The TWG shall structure its work to minimize the number of classified sessions required and to maximize the participation of all members in unclassified work. (iii) Classified Session Procedures: classified sessions of a TWG shall be conducted in a facility approved for classified discussions at the relevant classification level, arranged by the TWG Administrative Coordinator in coordination with the relevant security authority. Classified sessions shall not be transcribed by the Administrative Coordinator; instead, a classified summary shall be prepared by a cleared TWG member designated by the TWG Chair, maintained in a classified document repository separate from the TWG's general document repository, and accessible only to cleared members of that TWG and to cleared FAC members. The public log entry for a classified session shall note only the date, the TWGs involved, and that a classified session was held; no subject matter description shall be included in the public log entry for a classified session. (iv) Classified Annex to Monthly Work Product Submissions: where a TWG's monthly work product submission includes findings, draft recommendations, or evidence derived from classified sources, the TWG shall produce a classified annex to that month's submission. The unclassified submission shall be published on the public docket as required by subsection (e)(2)(I). The classified annex shall be transmitted separately to cleared FAC members only, through secure channels established by the Technical Systems Manager in coordination with the relevant security authority, and shall not be published on the public docket. (v) Classified Report to Congressional Oversight Committees: the FAC shall, not later than 30 days after the FAC backstop transmission deadline established under section 8(f), transmit a classified supplemental report to the Committee on Armed Services and the Select Committee on Intelligence of each chamber, summarizing all classified information considered by any TWG that bears on the legislative recommendations transmitted to Congress, and identifying any classified findings that Congress should consider in enacting Phase II legislation. The classified supplemental report shall be prepared by the FAC Legislative Drafting Staff in coordination with the relevant cleared TWG members and shall be reviewed by the Director of National Intelligence before transmission.

(e)(3) TWG 1 — Intellectual Property and Creator Rights.—

(A) Domain.—Section 2006(b)(18) (Intellectual Property, Copyright, and AI Training Data).

(B) Mandate.— TWG 1 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: the harms to rights holders from unauthorized use of copyrighted works in AI training data; the scale and nature of existing AI training data practices; the gaps in current federal law under 17 U.S.C. §§ 101–1205; the limitations of existing fair use doctrine as applied to AI training; and the populations most affected including

individual creators, small publishers, and working artists. (ii) Intervention Evaluation: the application of the fair use doctrine under 17 U.S.C. § 107 to AI training data; the feasibility and design of a statutory opt-out registry for rights holders; the feasibility and design of a statutory compulsory licensing framework modeled on 17 U.S.C. § 115; the adequacy of voluntary and collective licensing markets; training data provenance and disclosure standards; the constitutional authority of Congress under Article I, Section 2008, Clause 8 for each proposed intervention; and the option of no regulation or repeal of provisions determined to be counterproductive. (iii) Tradeoff Assessment: the effects of each approach on innovation, competition, creator livelihoods, and public access to AI systems. (iv) Recommendation Development: specific draft statutory language for the recommended approach or a formal no-regulation finding with supporting rationale.

(C) Seed Members.—(i) Senate Majority: Senior Copyright Office attorney with AI training data and fair use expertise. (ii) Senate Minority: Career USPTO official with AI-generated works and patent eligibility expertise. (iii) Speaker: Career Copyright Royalty Board official with compulsory licensing and royalty rate expertise. (iv) House Minority: Career Library of Congress digital preservation official with AI digitization expertise.

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 1 shall include the following members appointed through the Stage Two nomination and selection process:

(1) AI Technical Expert (mandatory): a machine learning researcher or engineer with direct experience building or evaluating large language models or generative image, audio, or video models, with peer-reviewed work on training data memorization, model extraction, verbatim reproduction, or the intersection of copyright and machine learning; must not have an active financial interest in pending AI copyright litigation.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with empirical documentation of harms to creators from AI-generated content, including market displacement of human creative work, unauthorized reproduction of copyrighted material by deployed models, or the economics of AI substitution in creative industries.

(3) Technical Memorization and Retrieval Expert: an engineer or researcher with expertise in retrieval-augmented generation, model memorization, and the technical parameters of verbatim reproduction in deployed models.

(4) Former IP Litigation Attorney: a former attorney who has concluded significant AI training data cases; currently active litigants are excluded per subsection (e)(1)(K).

(5) Copyright Markets Economist: an economist specializing in copyright markets, licensing structures, and the economics of intellectual property.

(6) Publisher Representative: a representative of book, news, or magazine publishers with direct experience in AI licensing negotiations or copyright enforcement.

(7) Visual Creator Representative: a representative of visual artists, illustrators, or photographers with direct experience in AI image generation disputes.

(8) Music Industry Representative: a representative of recording artists, composers, or music publishers with direct experience in AI-generated music or voice cloning disputes.

(9) Open-Source Developer: an open-source or open-weight software developer with expertise in the governance implications of publicly available AI models and training datasets.

(10) Constitutional IP Scholar: an academic with demonstrated expertise in the constitutional authority of Congress under Article I, Section 2008, Clause 8 and its application to AI training data legislation.

(11) Collective Licensing Practitioner: a practitioner with direct operational experience administering a collective licensing organization or performing rights organization.

(e)(4) TWG 2 — Electoral Integrity and Democratic Resilience.—

(A) Domain.—Section 2006(b)(17) (Electoral Integrity and AI-Generated Disinformation).

(B) Mandate.— TWG 2 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: the harms to democratic processes from AI-generated synthetic media, including documented incidents of electoral deepfake use; the scale of AI-generated disinformation; gaps in current federal law under the Federal Election Campaign Act and related statutes; and the affected populations including candidates, election workers, and voters. (ii) Intervention Evaluation: mandatory disclosure standards for AI-generated content in federal election communications; the constitutional pathway for federal regulation of electoral deepfakes consistent with First Amendment requirements established in Buckley v. Valeo, Citizens United, and United States v. Alvarez; mandatory FEC rulemaking parameters; C2PA content provenance standards; AI-powered voter suppression and microtargeting; foreign state actor AI interference; and the option of no regulation or reliance on existing law. (iii) Tradeoff Assessment: the First Amendment implications of each approach; enforcement feasibility; effects on political speech and satire. (iv) Recommendation Development: specific draft statutory language or a formal no-regulation finding.

(C) Seed Members.—(i) Senate Majority: Career FEC attorney or senior FEC enforcement official. (ii) Senate Minority: Career DOJ Election Crimes Branch official. (iii) Speaker: Career Election Assistance Commission official with election security expertise. (iv) House Minority: Career CISA election security official.

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 2 shall include:

(1) AI Technical Expert (mandatory): a researcher or engineer with direct experience building or evaluating synthetic media systems — diffusion models, voice synthesis, or video generation — with demonstrated technical understanding of what makes synthetic media detectable or undetectable and what disclosure mechanisms are technically enforceable at scale.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with peer-reviewed empirical documentation of AI-generated electoral disinformation campaigns or recommendation algorithm amplification of synthetic political content.

(3) Recommendation Algorithm Researcher: a researcher with technical understanding of how social media recommendation systems amplify synthetic content at scale.

(4) Former Senior Election Official: a former Secretary of State or former senior state election official; TWG 2 shall maintain strict partisan balance such that no more than one former election official has publicly identified affiliation with any single political party; currently serving election officials are excluded.

(5) First Amendment Scholar: an election law scholar with expertise in the First Amendment as applied to electoral speech and the constitutional parameters of federal regulation of political communications.

(6) Platform Trust and Safety Practitioner: a former or current platform trust and safety practitioner with direct election-specific experience.

(7) Foreign Interference Expert: a national security expert specializing in foreign state actor AI interference in elections.

(8) Disinformation Researcher: a political scientist or communications scholar specializing in AI-generated disinformation, with peer-reviewed empirical work.

(9) Election Integrity Civil Society Representative: a representative of a nonpartisan civil society organization specializing in election integrity or voting rights.

(10) Former Local Election Administrator: a former state or local election administrator; currently serving administrators are excluded.

(11) Content Provenance Technical Expert: a technical expert in cryptographic content provenance and authentication standards including C2PA or equivalent.

(e)(5) TWG 3 — Compute Infrastructure and Export Controls.—

(A) Domain.—Section 2006(b)(13) (Compute Export Controls and Semiconductor Governance).

(B) Mandate.— TWG 3 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: the harms from uncontrolled diffusion of advanced computing hardware; the current state of export control frameworks; gaps in existing law under the Export Control Reform Act of 2018; and the geopolitical implications of compute access asymmetries. (ii) Intervention Evaluation: the design of a successor framework to the rescinded AI Diffusion Framework; Know-Your-Customer requirements for compute providers; reporting obligations for training runs exceeding defined thresholds; governance of open-weight model exports; international allied coordination on compute controls; technical feasibility of compute monitoring and verification; and the option of no regulation or reliance on existing BIS authority. (iii) Tradeoff Assessment: effects on United States AI competitiveness; risks of unilateral versus multilateral controls; enforcement feasibility. (iv) Recommendation Development: specific draft statutory language or a formal no-regulation finding.

(C) Seed Members.—(i) Senate Majority: Career BIS official with advanced technology export control expertise. (ii) Senate Minority: Career NSA or DARPA official with compute and semiconductor expertise (classified track). (iii) Speaker: Career Commerce NTIA official with semiconductor and infrastructure expertise. (iv) House Minority: Career CISA official with critical infrastructure and data center expertise.

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 3 shall include:

(1) AI Technical Expert (mandatory): a researcher or engineer with direct experience designing or operating large-scale AI training infrastructure, with demonstrated technical understanding of what compute thresholds mean for model capability and what monitoring mechanisms are technically feasible.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with documented analysis of compute concentration risks, AI hardware market dynamics, or geopolitical risks from semiconductor supply chain dependencies.

(3) Frontier Hardware Expert: a hardware or systems engineer with expertise in frontier AI chip specifications, interconnect architecture, and data center design, with technical understanding of how export control thresholds interact with chip capabilities and potential circumvention methods.

(4) Semiconductor Industry Policy Specialist: a semiconductor industry engineer or policy specialist with direct experience in chip design, manufacturing, or supply chain governance.

(5) Cloud Infrastructure Representative: a cloud computing infrastructure representative with direct experience operating hyperscale data centers and large-scale AI training workloads.

(6) Arms Control Verification Expert: an arms control verification specialist with technical expertise in monitoring regime design and inspection protocols.

(7) Allied Nation Contributing Expert: a representative of an allied nation — the United Kingdom, Japan, the European Union, or South Korea — with expertise in compute governance and export control coordination; subject to the allied nation contributing expert carve-out under subsection (e)(1)(L)(i).

(8) Technology Competition Researcher: a national security researcher specializing in technology competition between the United States and the People's Republic of China.

(9) Compute Governance Academic: an academic or independent researcher specializing in compute governance, chip policy, or the political economy of AI infrastructure.

(10) Export Control Attorney: an international trade attorney with active export control practice including direct experience with BIS licensing and dual-use technology controls.

(11) Independent Chip Policy Researcher: an independent researcher with documented work on chip policy, compute thresholds, and the relationship between hardware access and AI capability development.

(e)(6) TWG 4 — Financial Markets and Antitrust.—

(A) Domain.—Section 2006(b)(16) (Financial Markets, Algorithmic Trading, and AI-Driven Market Concentration).

(B) Mandate.— TWG 4 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: harms from AI-driven market concentration in frontier model development and compute infrastructure; algorithmic pricing coordination; systemic risk from AI-driven trading; disparate impact from AI financial services decisions; and the adequacy of existing antitrust and financial regulatory frameworks. (ii) Intervention Evaluation: antitrust remedies for AI-specific competitive dynamics; systemic risk regulations for AI trading; algorithmic pricing prohibitions; disparate impact standards for AI financial decisions; AI financial advice fiduciary obligations; and the option of no regulation or reliance on existing FTC, SEC, CFTC, and CFPB authority. (iii)

Tradeoff Assessment: effects on financial market efficiency, innovation, and consumer protection. (iv) Recommendation Development: specific draft statutory language or a formal no-regulation finding.

(C) Seed Members.—(i) Senate Majority: Career SEC economist or enforcement official with algorithmic trading and market structure expertise. (ii) Senate Minority: Career FTC economist or attorney with digital markets and AI competition expertise. (iii) Speaker: Career CFTC official with algorithmic markets and systemic risk expertise. (iv) House Minority: Career CFPB official with AI financial services and disparate impact expertise.

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 4 shall include:

(1) AI Technical Expert (mandatory): a researcher or engineer with direct experience building or auditing AI systems used in financial markets — including RL trading agents, credit scoring algorithms, or fraud detection systems — with demonstrated understanding of how these systems make decisions and their failure modes under market stress.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with empirical documentation of harms from AI in financial markets — algorithmic price coordination, disparate impact in AI-driven lending, or systemic risk from correlated AI trading strategies.

(3) Market Microstructure Expert: a quantitative finance or former high-frequency trading practitioner with technical understanding of how AI trading systems interact at market microstructure level.

(4) Digital Markets Antitrust Economist: an antitrust economist specializing in digital markets and market concentration.

(5) Systemic Risk Specialist: a financial markets systemic risk specialist with expertise in correlated failure modes in AI-driven financial systems.

(6) Consumer Finance Advocate: a consumer finance advocate with AI decision-making expertise, including direct experience representing consumers affected by AI-driven credit or insurance decisions.

(7) Disparate Impact Attorney: a civil rights attorney specializing in disparate impact in financial services with direct litigation or investigation experience.

(8) Financial Technology Representative: a financial technology company representative with direct experience developing or deploying AI financial services products.

(9) Former Fund Manager: a formerly serving institutional investor or recently retired quantitative fund manager; currently serving fund managers are excluded due to incompatible fiduciary duties.

(10) Antitrust Practitioner: a former DOJ Antitrust Division or former FTC competition attorney with direct technology sector experience.

(11) Financial Law Scholar: a securities, derivatives, or banking law scholar with expertise in financial market regulation and the application of existing frameworks to AI-driven market participants.

(e)(7) TWG 5 — AI Safety and Post-AGI Governance.—

(A) Domain.—Section 2006(b)(12) (Post-AGI and Transformative AI Governance); the safety dimension of section 6(b)(15) (Open-Weight AI Models); and the dangerous capability evaluation content of section 6(b)(2) (Transparency, Evaluation, and Pre-Deployment Certification).

(B) Mandate.— TWG 5 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: the probability, timeline, and precursor indicators of a Transformative AI Capability Event; the current state of dangerous capability evaluation methodology; gaps in existing evaluation standards; and the populations and institutions most at risk from transformative AI capabilities. (ii) Intervention Evaluation: the Pre-Determined Crisis Governance Framework required by section 6(b)(12)(B); dangerous capability evaluation standards for CBRN uplift, cyberoffense, deception, autonomous replication, and persuasion risk; pre-deployment safety certification regime design; the capability threshold at which open-weight model releases require mandatory pre-release approval; interpretability research implications for governance; deceptive alignment and its governance implications; the shelf-ready emergency legislative package required by section 18(c)(3); and the option of no regulation or reliance on existing authorities. (iii) Tradeoff Assessment: effects on AI innovation and United States competitiveness; risks of over-specification versus under-specification of capability thresholds. (iv) Recommendation Development: specific draft statutory language including the shelf-ready emergency package, or formal no-regulation findings with supporting rationale.

(C) Seed Members.—(i) Senate Majority: Career DARPA official with AI safety or autonomous systems research expertise. (ii) Senate Minority: Career intelligence community official with AI capability assessment expertise (classified track) — appointment subject to mandatory post-employment restrictions review and ethics clearance before service begins. (iii) Speaker: Career NIST official with AI evaluation standards expertise. (iv) House Minority: Career DOE national laboratory official with AI safety research expertise.

(D) Required Composition.— In addition to the 4 seed members, TWG 5 requires the following mandatory and additional members reflecting the technical depth of its mandate:

(1) AI Technical Expert — Dangerous Capability Evaluation (mandatory): a frontier AI researcher with direct experience conducting dangerous capability evaluations — specifically for CBRN uplift, autonomous replication, cyberoffense, or deceptive alignment — with peer-reviewed or government-commissioned evaluation work and demonstrated familiarity with the methodologies of METR, UK AISI, or equivalent evaluation bodies.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with empirical documentation of AI capability progression, emergent capabilities, or AI systems exhibiting unexpected or dangerous behaviors, with peer-reviewed work on capability elicitation, scaling laws, or documented specification gaming or reward hacking.

(3) Interpretability Researcher: a researcher with direct experience developing or applying mechanistic interpretability tools to understand what AI systems are internally representing and computing.

(4) Alignment Researcher: a researcher working directly on the technical problem of aligning AI systems with human values and intentions — including RLHF, constitutional AI, debate, or scalable oversight — with demonstrated understanding of what current alignment methods can and cannot guarantee.

(5) CBRN Specialist: a biosecurity, chemical weapons, radiological, or nuclear security specialist with expertise in AI-enabled uplift assessment.

(6) Cyberoffense Expert: a cyberoffense or critical infrastructure security expert with expertise in AI-enabled attack capabilities.

(7) International AI Governance Scholar: a scholar or policy expert specializing in international AI governance frameworks.

(8) Arms Control Verification Specialist: an arms control verification expert with technical expertise in monitoring and inspection methodology applicable to AI capability thresholds.

(9) Existential Risk Philosopher or Ethicist: a philosopher or ethicist specializing in existential risk and transformative technology governance.

(10) Former Senior Classified AI Capability Assessor: a former senior official with classified AI capability assessment experience — subject to mandatory post-employment restrictions review; appointment contingent on ethics clearance confirming no ongoing obligations conflicting with TWG service.

(e)(8) TWG 6 — Children, Youth, and Vulnerable Populations.—

(A) Domain.—Section 2006(b)(5) (AI and Mental Health; Harms to Vulnerable Populations); section 6(b)(6) (AI Companion Systems and Synthetic Intimacy); section 6(b)(7) (Recommendation Algorithms and Algorithmic Amplification); section 6(b)(8) (AI-Generated Child Sexual Abuse Material); and the child-specific interim protective measures of sections 15(c)(4) through 15(c)(9).

(B) Mandate.— TWG 6 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: the documented harms to minors and vulnerable populations from AI companion systems, recommendation algorithms, AI-generated CSAM, and AI mental health tools; affected populations including minors across age tiers, children with mental health vulnerabilities, and families; and gaps in existing law under COPPA, CIPA, and related statutes. (ii) Intervention Evaluation: clinical standards for AI mental health tools; psychological harm measurement standards; AI companion system design prohibitions and required safety features for each age tier; algorithmic recommendation default standards for minor users; AI-generated CSAM detection and reporting standards; age verification and age assurance technical standards; mandatory crisis intervention protocols; duty of care standards; non-consensual intimate imagery prohibition standards; disclosure standards for adult users of attachment-maximizing AI systems; and the option of no regulation or repeal of provisions determined to be counterproductive. (iii) Tradeoff Assessment: effects on First Amendment speech, innovation, and parental rights; enforcement feasibility and technical implementability of each approach. (iv) Recommendation Development: specific draft statutory language or formal no-regulation findings.

(C) Seed Members.—(i) Senate Majority: Career FTC official with COPPA enforcement and child privacy expertise. (ii) Senate Minority: Career HHS official with child welfare and adolescent mental health expertise. (iii) Speaker: Career DOJ official from ICAC Task Force or FBI Crimes Against Children unit. (iv) House Minority: Career Department of Education official with student safety and technology expertise.

(D) Required Composition.— Notwithstanding the general size requirement of subsection (e)(2), TWG 6 shall be composed of not fewer than 15 members reflecting the breadth of its multi-domain mandate. In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 6 shall include:

(1) AI Technical Expert — Recommendation and Companion Systems (mandatory): a researcher or engineer with direct experience building or auditing recommendation algorithms, engagement optimization systems, or AI companion systems, with demonstrated understanding of how attachment-maximizing design features are

implemented at the code level and what technical interventions are feasible and auditable.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with peer-reviewed empirical documentation of harms to minors from AI systems — algorithmic amplification of self-harm content, AI companion system psychological effects on adolescents, eating disorder or suicide content recommendation, or AI-generated CSAM.

(3) Former Platform AI Systems Engineer: a former platform engineer or product designer with direct experience designing engagement systems, recommendation algorithms, or AI companion features, with ability to assess the technical feasibility of safe-by-design requirements.

(4) Licensed Child Psychiatrist: a licensed child and adolescent psychiatrist with clinical expertise in technology-related mental health disorders.

(5) Licensed Child Psychologist: a licensed child psychologist specializing in technology use and adolescent development.

(6) Pediatric Neuroscientist: a pediatric neuroscientist or adolescent brain development researcher with expertise in the neurobiological mechanisms by which digital engagement systems affect developing brains.

(7) Eating Disorder Treatment Clinician: a licensed clinician with direct adolescent eating disorder treatment experience and expertise in algorithmic content amplification.

(8) Suicide Prevention Specialist: a licensed clinician or public health researcher specializing in adolescent suicide prevention and the relationship between social media and AI systems and suicide ideation.

(9) Law Enforcement Child Safety Specialist: a current or former law enforcement official with ICAC Task Force or FBI Crimes Against Children unit experience, with ability to assess whether proposed frameworks are operationally effective.

(10) Child Safety Organization Representative: a representative from the National Center for Missing and Exploited Children, Thorn, or an equivalent child sexual abuse prevention organization.

(11) Platform Trust and Safety Practitioner: a former or current platform trust and safety practitioner with direct minor-safety specialization.

(12) Parent Advocate: a representative of families of minors who have suffered documented harm from AI companion systems, recommendation algorithms, or AI-generated CSAM.

(13) Member Under 25: a member under the age of 25 at the time of appointment, representing the perspective of the affected population; subject to the flexible participation carve-out under subsection (e)(1)(L)(iii); full voting member.

(14) Child Welfare Policy Expert: a child welfare policy expert with experience designing or evaluating federal child safety regulatory programs.

(15) Age Verification Technical Expert: a technical expert in age verification and age assurance systems, with direct experience designing or evaluating technical mechanisms for verifying user age in online platforms.

(e)(9) TWG 7 — Workforce, Labor, and Economic Transition.—

(A) Domain.—Section 2006(b)(1) (Workforce Displacement, Labor Market Disruption, and Economic Transition).

(B) Mandate.— TWG 7 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: the scale, pace, and distributional effects of AI-driven workforce displacement; affected populations including low-wage workers, workers without college degrees, workers in AI-exposed industries, and independent workers; and gaps in existing law under the NLRA, WARN Act, Trade Adjustment Assistance, and related worker protection statutes. (ii) Intervention Evaluation: transition assistance, retraining, and income support frameworks; taxation of AI-generated productivity gains; labor rights in AI-managed workplaces; the adequacy of existing worker protection statutes; mechanisms to ensure AI economic gains are broadly shared; and the option of no regulation or reliance on existing authorities. (iii) Tradeoff Assessment: effects on AI deployment incentives, business investment, and overall economic growth; distributional effects of each approach. (iv) Recommendation Development: specific draft statutory language or formal no-regulation findings.

(C) Seed Members.—(i) Senate Majority: Career DOL economist with automation and labor displacement expertise. (ii) Senate Minority: Career Treasury or CEA economist with AI macroeconomic impact expertise. (iii) Speaker: Career ETA official with worker transition program expertise. (iv) House Minority: Career NLRB or EEOC official with AI workplace and labor rights expertise.

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 7 shall include:

(1) AI Technical Expert — Workplace Automation (mandatory): a researcher or engineer with direct experience building or evaluating AI systems used in workplace automation — robotic process automation, agentic task execution, AI coding assistants, or AI-driven logistics — with demonstrated understanding of which tasks are automatable at current capability levels and what the near-term automation frontier looks like.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with peer-reviewed empirical documentation of workforce displacement from AI deployment — sector-level employment effects, wage suppression, task substitution patterns, or differential impacts by income, education, race, or geography.

(3) Agentic AI Systems Researcher: a researcher with direct expertise in agentic AI systems and their capacity for autonomous task completion across knowledge work domains.

(4) Labor Displacement Economist: a labor economist specializing in technological displacement, with peer-reviewed work on automation and employment effects.

(5) Organized Labor Representative: a representative of organized labor with direct experience representing workers in AI-exposed industries.

(6) Worker Retraining Specialist: a workforce development specialist with direct experience designing or operating worker retraining or community college workforce programs.

(7) Independent Worker Representative: a representative of independent workers, freelancers, or gig economy workers.

(8) Tax Policy Economist: a tax policy economist with expertise in designing taxes on AI-generated productivity gains or equivalent fiscal distribution mechanisms.

(9) Community Development Specialist: a community development specialist with direct experience in deindustrialized or economically displaced regions.

(10) Large Employer Practitioner: a human resources or future of work practitioner from a large employer with direct experience managing AI-driven workforce transitions.

(11) Social Safety Net Expert: a social safety net or income support policy expert with expertise in programs for workers displaced by technological change.

(12) AI Workforce Equity Researcher: a researcher with peer-reviewed empirical documentation of the differential impacts of automation, algorithmic management, or AI-driven hiring and employment decisions on workers by race, ethnicity, gender, disability status, age, or immigration status, including experience with civil rights frameworks applicable to AI-driven employment practices under Title VII, the ADA, the ADEA, or equivalent statutes.

(13) Labor Data Scientist: an economist or statistician with direct data science skills — including fluency in large administrative dataset analysis, machine learning applications in labor economics, and quantitative methods for measuring task-level and occupation-level automation exposure; preferred: documented applied work producing original empirical estimates of AI or automation impact on employment, wages, or workforce composition.

(e)(10) TWG 8 — Environmental, Energy, and Community Impact.—

(A) Domain.—Section 2006(b)(10) (Environmental and Community Impacts of AI Data Centers).

(B) Mandate.— TWG 8 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: documented environmental and community harms from AI data center development including water consumption, grid stress, ratepayer cost impacts, air quality effects, and environmental justice disparities; affected communities including those in proximity to large data center clusters; and gaps in existing law under the Clean Air Act, Clean Water Act, NEPA, and FERC statutes. (ii) Intervention Evaluation: environmental impact assessment standards; water consumption disclosure and limitation standards; electricity demand and grid reliability frameworks; ratepayer cost allocation mechanisms; carbon footprint measurement and disclosure; renewable energy procurement requirements; and the option of no regulation or reliance on existing EPA, FERC, and DOE authority. (iii) Tradeoff Assessment: effects on AI infrastructure development, energy costs, and community economic development. (iv) Recommendation Development: specific draft statutory language or formal no-regulation findings.

(C) Seed Members.—(i) Senate Majority: Career EPA official with data center environmental assessment expertise. (ii) Senate Minority: Career FERC official with grid interconnection and electricity demand expertise. (iii) Speaker: Career DOE official with data center energy efficiency expertise. (iv) House Minority: Career EJ official with community health and disparate impact expertise.

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 8 shall include:

(1) AI Technical Expert — Data Center Infrastructure (mandatory): a data center infrastructure engineer or researcher with direct experience designing, operating, or auditing large-scale AI computing facilities, with demonstrated technical understanding of GPU thermal management, cooling system architecture, PUE, WUE, and actual energy and water consumption profiles of frontier AI training and inference at scale.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with empirical documentation of environmental and community harms from AI data center development — measured water consumption, grid stress effects, ratepayer cost impacts, air quality effects, or environmental justice impacts on host communities.

(3) Grid Systems Engineer: a grid systems engineer or electricity market researcher with technical understanding of how large data center loads interact with grid reliability, renewable energy procurement, and electricity pricing.

(4) Environmental Scientist: an environmental scientist specializing in water consumption and AI data center impacts.

(5) Environmental Justice Advocate: a representative of or advocate for a community near a large AI data center cluster with direct experience documenting environmental justice impacts.

(6) Renewable Energy Developer: a renewable energy developer or engineer with direct experience in data center siting and power purchase agreements.

(7) Community Health Researcher: a public health researcher specializing in air quality and community health impacts of industrial facilities.

(8) State Utility Regulator or Ratepayer Advocate: a state utility regulator or ratepayer advocate with direct experience in electricity rate proceedings affected by large industrial loads.

(9) Data Center Sustainability Expert: a data center operator or sustainability officer with direct experience implementing energy efficiency, water conservation, and renewable procurement programs.

(10) Climate Scientist: a climate scientist or carbon footprint researcher with AI-specific expertise in data center carbon accounting.

(11) Former Local Government Official: a former municipal or county official, or a currently serving appointed non-elected official, from a data center host community; currently serving elected local officials are excluded due to statutory duties incompatible with full-time service.

(e)(11) TWG 9 — Liability, Accountability, Legal Frameworks, and Constitutional Dimensions.—

(A) Domain.—Section 2006(b)(3) (Liability, Accountability, Legal Frameworks, and Constitutional Dimensions of AI Governance).

(B) Mandate.— TWG 9 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: documented harms caused by deployed AI systems including wrongful benefit denials, biased hiring and credit decisions, medical misdiagnosis, and wrongful arrests; affected populations including those subject to AI-driven decisions in high-stakes domains; and gaps in existing tort law, product liability doctrine, and civil rights statutes; the question of AI legal personhood and standing — including whether AI systems may hold intellectual property, bear liability, or have legal interests cognizable by courts or Congress; and the constitutional landscape governing federal AI regulation, including First Amendment constraints on AI content mandates, disclosure requirements, compelled speech, and algorithmic transparency obligations across all domains investigated by this title’s Technical Working Groups. (ii) Intervention

Evaluation: product liability frameworks for AI systems; strict liability versus negligence standards; private rights of action; algorithmic discrimination and civil rights enforcement; AI evidence in legal proceedings; corporate governance and board-level accountability; international harmonization of AI liability standards; and the option of no regulation or reliance on existing common law and statutory frameworks. (iii) Tradeoff Assessment: effects on AI innovation incentives, insurance markets, and access to justice. (iv) Recommendation Development: specific draft statutory language or formal no-regulation findings.

(C) Seed Members.—(i) Senate Majority: Career DOJ Civil Division attorney with technology liability and administrative law expertise. (ii) Senate Minority: Career FTC attorney with consumer protection and AI enforcement expertise. (iii) Speaker: Career EEOC attorney with algorithmic discrimination and civil rights enforcement expertise. (iv) House Minority: Career ACUS or OLC official with regulatory design and administrative procedure expertise.

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 9 shall include:

(1) AI Technical Expert — Failure Modes and Auditing (mandatory): a researcher or engineer with direct experience auditing AI systems for failure modes — distribution shift failures, hallucination patterns, adversarial vulnerabilities, and output unreliability — with demonstrated understanding of how AI failures differ technically from conventional product failures.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with empirical documentation of concrete harms caused by deployed AI systems — wrongful denials of benefits, biased decisions, medical misdiagnosis, or wrongful arrests from facial recognition.

(3) AI Deployment Lifecycle Expert: a software engineering or systems reliability expert with direct understanding of AI system deployment lifecycles — versioning, updates, fine-tuning, and how production AI systems evolve after initial deployment.

(4) Products Liability Scholar: a products liability or tort law scholar with demonstrated expertise in AI and autonomous systems liability.

(5) Administrative Law Scholar: an administrative law scholar with expertise in rulemaking design, enforcement architecture, and administrative procedure implications of AI regulation.

(6) Algorithmic Discrimination Attorney: a civil rights attorney specializing in algorithmic discrimination with direct litigation or investigation experience.

(7) AI Risk Actuary: an insurance or actuarial professional with direct experience quantifying AI risk and developing AI-specific insurance products.

(8) Healthcare AI Liability Expert: a healthcare liability attorney or medical professional with expertise in AI diagnostic liability and the standard of care for AI-assisted medical decisions.

(9) Criminal Law Scholar: a criminal law scholar with expertise in AI evidence, deepfakes in criminal proceedings, and AI-assisted crime.

(10) Corporate Governance Attorney: a corporate governance attorney with direct experience advising boards on AI accountability and director liability.

(11) International Comparative Law Scholar: a comparative law scholar with expertise in international AI liability frameworks including the EU AI Act.

(12) First Amendment Scholar: a constitutional law scholar with demonstrated expertise in First Amendment doctrine as applied to compelled speech, disclosure mandates, content moderation, and government regulation of expressive technologies, with peer-reviewed or equivalent published work on the constitutional parameters of regulating algorithmic or AI-generated content.

(13) Legal Philosopher — Personhood and Moral Status: a legal philosopher or jurisprudential scholar with peer-reviewed work on theories of legal personhood, moral status, or the extension of legal rights and capacities to non-human entities, with demonstrated engagement with AI-specific questions of agency, responsibility, and legal standing.

(e)(12) TWG 10 — AI Security, Critical Infrastructure, and Incident Response.—

(A) Domain.—Section 2006(b)(4) (AI Security, Critical Infrastructure Protection, and Incident Response); and section 6(b)(9) (Agentic AI Systems).

(B) Mandate.— TWG 10 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: documented and potential AI-enabled attacks on critical infrastructure; AI-specific cybersecurity vulnerabilities in operational technology environments; AI-enabled social engineering and fraud; gaps in existing law under the Computer Fraud and Abuse Act, CISA authorities, and sector-specific cybersecurity statutes; the security and safety risks specific to agentic AI systems operating autonomously on behalf of users including risks arising from multi-agent orchestration; and affected populations including operators of critical infrastructure and users delegating real-world consequential actions to agentic AI systems; and the affirmative productivity potential of agentic AI systems, including documented cases where autonomous AI agents operating on behalf of knowledge workers in healthcare, legal, scientific research, financial analysis, software development, and other domains have materially increased individual or organizational productivity, the conditions under which that productivity is realized safely, and the governance gap between current regulatory frameworks and what would be needed to enable broad-based access to

agentic AI productivity gains. (ii) Intervention Evaluation: AI-specific cybersecurity standards for critical infrastructure; mandatory AI incident reporting standards; AI system supply chain security requirements; sector-specific AI security requirements for energy, water, healthcare, and financial infrastructure; international coordination on AI security standards; hardware-level compute monitoring and tamper-proof verification systems; aviation-style AI incident reporting modeled on the NTSB; regulatory standards requiring agentic AI system providers to operate exclusively in the interest of the user with no undisclosed conflicts of interest; disclosure requirements, user-consent frameworks, and fiduciary-like obligations for AI agents taking actions with real-world consequences including financial transactions, legal commitments, communications, and healthcare decisions; technical safeguard standards for agentic AI systems including human-in-the-loop requirements calibrated to reversibility and consequence level, mandatory action logging and audit trail requirements, reversibility requirements for defined consequence categories, sandboxing and scope limitation requirements, and mandatory shutdown and override mechanisms operable by the user at any stage of an agentic workflow; governance of multi-agent orchestration systems including liability allocation across agent chains and emergent harmful behavior risks; regulatory safe harbor frameworks that would enable responsible agentic AI deployment in high-productivity domains — including healthcare, legal services, scientific research, and financial analysis — while maintaining user-protection standards; governance mechanisms that would ensure the productivity gains from agentic AI are broadly accessible rather than concentrated among large enterprises with the resources to develop proprietary agentic systems; and the option of no regulation or reliance on existing authorities. (iii) Tradeoff Assessment: effects of each proposed intervention on AI deployment in critical sectors, agentic AI innovation, and international competitiveness; the tradeoffs between user-protection mandates and the flexibility required to realize agentic AI productivity gains at scale; the distributional effects of each approach on access to agentic AI tools across firm size, sector, and income level; and constitutional parameters for user-protection mandates on agentic systems. (iv) Recommendation Development: specific draft statutory language or formal no-regulation findings. TWG 10 shall coordinate with TWG 9 (Liability, Accountability, and Legal Frameworks) on liability allocation across agentic AI systems and multi-agent chains, and with TWG 5 (AI Safety and Post-AGI Governance) on autonomous AI system governance.

(C) Seed Members.—(i) Senate Majority: Career CISA official with AI security and critical infrastructure protection expertise. (ii) Senate Minority: Career NSA or CYBERCOM official with offensive and defensive AI cyber expertise (classified track). (iii) Speaker: Career FBI official with AI-related cybercrime and threat assessment expertise. (iv) House Minority: Career DHS S&T official with AI resilience and incident response expertise.

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 10 shall include:

(1) AI Technical Expert — Adversarial ML (mandatory): a researcher or engineer with direct experience in adversarial machine learning — prompt injection attacks, model poisoning, adversarial examples, jailbreaking, and AI system manipulation — with demonstrated technical understanding of the attack surface of deployed AI systems and feasible technical defenses.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with empirical documentation of AI-enabled cyberattacks, AI-assisted social engineering, or AI exploitation of critical infrastructure vulnerabilities.

(3) AI Red-Teamer: a professional AI red-teamer with direct experience conducting structured adversarial evaluations of deployed AI systems for weaponizable capabilities against critical infrastructure.

(4) Critical Infrastructure Security Expert: an expert in critical infrastructure sector security — energy, water, healthcare, or financial systems — with direct experience assessing AI-specific vulnerabilities in operational technology environments.

(5) Incident Response Practitioner: a practitioner with direct experience managing large-scale cybersecurity breach responses, with ability to design AI-specific incident response protocols.

(6) Telecommunications Security Expert: a telecommunications or internet infrastructure security expert with expertise in AI threats to network infrastructure.

(7) Healthcare Cybersecurity Official: a healthcare or hospital system cybersecurity official with direct experience addressing AI security risks in clinical environments.

(8) Financial Sector Cybersecurity Official: a financial sector cybersecurity official with direct experience addressing AI security risks in financial market infrastructure.

(9) State and Local Government Cybersecurity Official: a state or local government cybersecurity official with direct experience protecting government AI systems.

(10) AI Security Standards Expert: an AI security standards researcher or NIST AI Risk Management Framework practitioner with direct experience developing or implementing AI-specific security standards.

(11) Supply Chain Security Expert: a supply chain security expert with direct experience in AI hardware and software integrity — specifically the security of chip fabrication, firmware, and model weight supply chains.

(e)(13) TWG 11 — Autonomous Weapons, International Humanitarian Law, and Arms Control.—

(A) Domain.—Section 2006(b)(19) (Autonomous Weapons Systems: Governance, Standards, and International Frameworks); the definitions in sections 3(26) and 3(29); and the Red Line provisions of section 20(a)(1) as they apply to autonomous weapons systems.

(B) Mandate.— TWG 11 shall execute its mandate in the four phases of subsection (e)(2)(L) with respect to the following subject matter

(i) Domain Examination: the current state of autonomous weapons development and deployment; documented failures and risks of autonomous engagement systems; gaps in existing law and Department of Defense policy; and the implications of autonomous weapons for international humanitarian law and strategic stability. (ii) Intervention Evaluation: technical standards and criteria for the meaningful human oversight requirement; the boundary between lawful semi-autonomous systems and prohibited autonomous weapons; Department of Defense program compliance assessment methodology; the United States negotiating position for international LAWS agreements under the Convention on Certain Conventional Weapons; technical standards for tamper-proof authorization logging; Defensive Emergency Autonomy trigger threshold specifications; post-engagement reporting protocols; and the option of no additional regulation or reliance on existing DOD Directive 3000.09. (iii) Tradeoff Assessment: effects on United States military effectiveness and deterrence; implications for the international arms control regime; risks of unilateral restraint. (iv) Recommendation Development: specific draft statutory language including technical standards, or formal no-regulation findings. TWG 11 shall coordinate with the Department of Defense Inspector General for access to classified information through the classified track under section 5(e). TWG 11 shall be the lead TWG for joint sessions with TWG 5 on matters intersecting autonomous weapons governance and AI safety.

(C) Seed Members.—(i) Senate Majority: Career DOD official with autonomous systems acquisition or policy expertise, appointed in consultation with the Chairman of the Joint Chiefs of Staff. (ii) Senate Minority: Career State Department official with CCW or arms control negotiating expertise. (iii) Speaker: Career DARPA or defense research official with autonomous systems engineering expertise. (iv) House Minority: Career DIA official with autonomous weapons threat assessment expertise (classified track).

(D) Required Composition.— In addition to the 4 seed members and the mandatory AI expertise requirements of subsection (e)(2)(A), TWG 11 shall include:

(1) AI Technical Expert — Autonomous Targeting Systems (mandatory): a researcher or engineer with direct experience designing or evaluating autonomous targeting systems — sensor fusion architectures, object detection and classification systems, and engagement decision-making at millisecond timescales — with demonstrated

technical understanding of what meaningful human oversight means at the decision timescales of autonomous weapons.

(2) Domain-Specific AI Harm Researcher (mandatory): a researcher with empirical documentation of autonomous weapons system failures, unintended engagement incidents, or reliability failures under adversarial or degraded conditions.

(3) Computer Vision and Sensor Fusion Engineer: a computer vision or sensor fusion engineer with direct expertise in how autonomous targeting systems identify and classify targets under real-world conditions including the failure modes under camouflage, electronic jamming, or adversarial manipulation.

(4) International Humanitarian Law Scholar: an international humanitarian law scholar specializing in the law of armed conflict and the application of IHL principles — distinction, proportionality, precaution — to autonomous weapons systems.

(5) Arms Control Verification Specialist: an arms control treaty specialist with direct verification and monitoring expertise applicable to autonomous weapons limitations.

(6) Recently Retired Military Officer: a recently retired military officer (within 5 years of separation from active duty) with direct operational experience with autonomous or semi-autonomous weapons systems; if the appointing authority determines that active-duty expertise is essential and unavailable from recently retired officers, an active-duty officer may be detailed under the carve-out of subsection (e)(1)(L)(ii).

(7) Defense Contractor Representative: a defense contractor representative with autonomous systems engineering expertise and direct experience in defense acquisition programs.

(8) Autonomous Weapons Civil Society Representative: a representative of a civil society organization specializing in autonomous weapons governance — the Campaign to Stop Killer Robots or equivalent.

(9) Former Arms Control Diplomat: a former State Department official or diplomat with direct CCW negotiating experience and expertise in multilateral arms control processes.

(10) State Responsibility Law Scholar: a legal scholar specializing in state responsibility, accountability for autonomous systems, and the application of international law to AI-enabled warfare.

(11) Allied Nation Contributing Expert: a representative of an allied nation with significant autonomous weapons development or governance activity — the United Kingdom, Australia, France, or Germany; subject to the allied nation contributing expert carve-out under subsection (e)(1)(L)(i).

(e)(16) Election of TWG Representatives to the Federal Advisory Committee.—

(e)(16)(A) Timing.—Each TWG shall elect one representative to the Federal Advisory Committee not later than 30 days after the TWG's first organizational meeting — that is, not later than Day 155. The election shall take place by majority vote of the TWG's full membership during a duly noticed TWG session.

(e)(16)(B) Eligibility.—Any current full member of the TWG is eligible to serve as the TWG's FAC representative. A member simultaneously serving as the TWG's Coordination Council primary representative is eligible and may hold both roles concurrently if the TWG determines that person is best suited to both functions. The allied nation contributing expert serving under subsection (e)(1)(L)(i) and the under-25 member serving under subsection (e)(1)(L)(iii) may not serve as FAC representative.

(e)(16)(C) Qualifications for FAC Service.— In electing their FAC representative, TWG members shall prioritize the member who

(i) has the deepest substantive command of the TWG's domain findings and the technical nuance of the legislative questions arising from that domain

(ii) is best positioned to translate the TWG's investigatory findings into binding statutory language — meaning the member has demonstrated ability to produce or critically evaluate legislative text, not merely policy analysis

(iii) can articulate the evidentiary basis and limitations of the TWG's findings to the full FAC across all 19 domains

(iv) can represent the TWG's collective conclusions in FAC deliberations — not as a delegate bound by TWG instruction but as the member whose expertise and judgment best embodies what the TWG has learned

(v) can commit to the additional time demands of FAC service alongside continued TWG membership.

(e)(16)(D) Distinction from Coordination Council Role.—The Coordination Council representative elected under subsection (e)(14) serves a coordination function distinct from the FAC representative's legislative drafting function. The Coordination Council representative must have sufficient command of the TWG's domain to harmonize definitions with other TWGs, resolve cross-domain jurisdictional questions, and share evidence effectively — but the primary qualification is coordination capacity and cross-domain fluency, not depth of technical expertise in any single domain. A member who excels at coordination may be the right choice for the Coordination Council role even if another member has deeper technical expertise; conversely, the most technically expert member may be the right FAC representative even if less suited to the coordination role. TWGs are encouraged to consider these distinct qualifications separately, while recognizing that a member possessing both qualities may appropriately hold both roles concurrently.

(e)(16)(E) Continued TWG Membership.—A TWG member elected to the FAC does not leave the TWG. They serve on both bodies simultaneously. Their TWG obligations — including participation in monthly work product submissions, weekly all-day sessions, cross-TWG coordination sessions, and ongoing investigatory work — continue in full. The FAC representative role is additive, not substitutive. The TWG shall not be depleted of a member's expertise by their election to the FAC. The Federal Advisory Committee Chair and the TWG Chair shall coordinate scheduling to minimize conflicts between FAC and TWG obligations for dual-role members.

(e)(16)(F) FAC Seat Activation.—A TWG representative's FAC seat activates upon election, not upon completion of the TWG's investigatory work. TWG representatives join the FAC as they are elected beginning approximately Day 155. The FAC therefore has a rolling constitution: the 7 appointed members are seated from Day 60; TWG representatives join on a rolling basis from Day 155 through Day 165 as all 11 elections complete; the FAC is fully constituted at 18 members approximately Day 165, at which point the FAC Chair election occurs and the 12-vote voting threshold for legislative provisions becomes operative.

(e)(16)(G) Legislative Drafting Support Access.—From the date a TWG representative joins the FAC, the FAC's Legislative Drafting Staff are available to that representative and to the TWG for legislative drafting assistance, constitutional analysis, and cross-domain drafting coordination. TWGs may also submit research requests to the Congressional Research Service through the formal channel managed by the Executive Director. Legislative drafting support is available to TWGs throughout the investigatory period upon request, not only after FAC election.

(e)(16)(H) Fallback.—If any TWG fails to elect an FAC representative within 30 days of its organizational meeting, the Executive Director of the Federal Advisory Committee shall designate an FAC representative from among that TWG's full membership within 7 days thereafter, selecting the member who best meets the qualifications of subparagraph (C).

(e)(16)(I) Recall and Replacement.—A TWG may recall its FAC representative by two-thirds vote of full TWG membership at any time, following the same recall procedures applicable to Coordination Council representatives under subsection (e)(14)(B)(iv). Upon recall, the TWG shall elect a replacement representative within 15 days. If the TWG fails to elect a replacement within 15 days, the Executive Director of the Federal Advisory Committee shall designate a replacement from among that TWG's full membership within 7 days thereafter.

(e)(14) TWG Coordination Council.—

(e)(14)(A) Establishment and Composition.—There is established a TWG Coordination Council (in this subsection, the ‘Coordination Council’) composed of one primary representative and one deputy representative elected from each of the 11 TWGs, for a

total of 11 primary representatives and 11 deputy representatives, and the Epistemic Advisor appointed under subsection (b)(1)(G) as a standing non-voting participant. The Epistemic Advisor shall attend all Coordination Council sessions with full speaking rights and may not be excluded from any session by the Coordination Council presiding officer or any TWG representative. The Epistemic Advisor's role in Coordination Council proceedings is to identify cross-TWG epistemic inconsistencies — including cases where two or more TWGs are drawing materially different inferences from the same underlying evidence, where the Coordination Council's definitional or jurisdictional harmonization decisions appear driven by considerations other than evidentiary reasoning, or where the shared evidence repository reflects systematic gaps or imbalances in evidence-gathering across domains. The Epistemic Advisor may submit written observations on any Coordination Council matter to the presiding officer at any time; such observations shall be entered in the public Coordination Council record and transmitted to the relevant TWG Administrative Coordinators within 5 business days. The Coordination Council may hold meetings and conduct its functions with fewer than 11 primary representatives present during any period before all 11 TWGs have held their organizational meetings; a quorum of the Coordination Council shall consist of a majority of the primary representatives then elected. Coordination Council resolutions adopted before all 11 representatives are seated are binding but shall be made available for reconsideration within 10 days of a newly seated representative's request, if the newly seated representative demonstrates that the resolution materially affects their TWG's domain. The Coordination Council shall elect a presiding officer from among the primary TWG representatives who have been elected at the time of the Council's first meeting by majority vote, not later than Day 144. The presiding officer serves for the duration of the investigatory period and may be recalled by two-thirds vote of primary representatives. The presiding officer shall chair Council meetings, coordinate scheduling of joint sessions, and transmit written resolutions to the Federal Advisory Committee. The Coordination Council shall be a standing body for the duration of the investigatory period and shall continue to meet until both of the following have occurred: the Federal Advisory Committee has completed its legislative transmission to Congress under subsection (f); and the National AI Council has assumed its full mandate. The Coordination Council shall remain operational through any overlap period between the FAC's legislative transmission and the National AI Council's full constitution, providing continuity of cross-domain coordination.

(e)(14)(B) Election of Representatives.—

(i) Timing.—Each TWG shall elect its primary representative and deputy representative to the Coordination Council not later than 14 days after the TWG's first organizational meeting — that is, not later than Day 139. The election shall take place during the TWG's normal working sessions. The election shall be conducted by separate majority

vote of the full TWG membership and shall be the TWG's first order of business within its first 14 days of operation following the organizational meeting.

(ii) Role and Eligibility — Coordination Council Representative.—The Coordination Council representative serves a coordination function: harmonizing definitions across TWGs, resolving cross-domain jurisdictional questions, sharing evidence, and ensuring the 11 parallel investigations remain coherent and non-duplicative. In electing their Coordination Council representative, TWG members shall prioritize the member who: has sufficient command of the TWG's domain to represent its work accurately to other TWGs; possesses the temperament and communication skills to work constructively across domain boundaries; can identify when another TWG's work intersects with their own domain and flag it promptly; and can absorb and relay information across domains without losing the technical integrity of their own TWG's findings. Deep technical expertise in the TWG's domain is valuable but secondary to cross-domain fluency and coordination effectiveness. A member elected as Coordination Council representative may also serve as the TWG's FAC representative under subsection (b)(1); the two roles may be held concurrently by the same member if the TWG determines that person is best suited to both functions. Only current members of the TWG are eligible to serve as primary representative or deputy representative. No outside hire, staff member, contractor, or person who is not a duly appointed TWG member may serve in either capacity. A member who is elected as primary representative of one TWG may not simultaneously serve as deputy representative of any other TWG.

(iii) Term.—The primary representative and deputy representative each serve for the duration of the TWG's mandate unless earlier removed pursuant to the recall procedures of clause (iv). If a vacancy occurs in the primary representative position for any reason, the deputy representative assumes the primary representative role immediately upon vacancy, and the TWG shall elect a new deputy representative within 15 days.

(iv) Recall.—A primary representative or deputy representative may be removed from their Coordination Council role by a two-thirds vote of the full TWG membership at any time, upon petition signed by not fewer than one-third of TWG members requesting a recall vote. The petition shall state with specificity the grounds for recall. Upon receipt of a valid petition, the TWG Chair shall schedule a recall vote within 15 days. A representative subject to a recall petition shall be temporarily suspended from Coordination Council participation pending the outcome of the recall vote, with the deputy representative (or, if the deputy representative is the subject of the petition, a pro tempore representative elected by simple majority of the TWG) serving

in the interim. A representative who has been recalled may not be re-elected to the same Coordination Council role.

(v) Deputy Representative Role.—The deputy representative shall attend all Coordination Council meetings as an observer with the right to speak but not vote, unless substituting for the primary representative. The deputy representative shall maintain independent awareness of all Coordination Council proceedings and shall serve as an independent check on the primary representative's conduct. If a deputy representative has reason to believe that the primary representative is misrepresenting the TWG's positions to the Coordination Council, the deputy representative may file a complaint under the misconduct procedures of subsection (e)(15) without first seeking TWG Chair approval.

(e)(14)(C) Functions of the Coordination Council.—The Coordination Council shall perform the following functions:

(i) Shared Definitional Registry.—The Coordination Council shall maintain a publicly accessible shared definitional registry containing every term that any TWG proposes to define, use in a sense that differs from the definitions in section 3, or adopt from another TWG's prior work. Any TWG that proposes a definition or proposes to use an existing term in a modified sense shall submit the proposed definition to the Coordination Council. The Coordination Council shall publish the proposed definition on the public portal under section 9(d) and provide all other TWGs not less than 15 days to comment. If no TWG objects within 15 days, the definition is entered into the registry as adopted. If any TWG objects, the Coordination Council shall convene a joint session within 10 days to resolve the conflict. A definition that cannot be resolved by the Coordination Council shall be referred to the parent Federal Advisory Committee for resolution before either conflicting definition may be used in a final TWG recommendation. The definitional registry shall be updated in real time and shall be publicly available throughout the investigatory period.

(ii) Joint Session Authority.—The Coordination Council may, by majority vote of primary representatives, convene a joint session of any two or more TWGs when their domains overlap on a specific issue. Joint sessions shall produce jointly developed recommendations that are transmitted to the parent Committee under both TWGs' names. Participation in a joint session does not waive a TWG's jurisdictional claim to any matter within its primary domain. The Coordination Council shall convene joint sessions between TWG 5 and TWG 11 for all matters that intersect AI safety evaluation and autonomous weapons governance, and between TWG 3 and TWG 5 for all matters that intersect compute governance and open-weight model safety.

(iii) Jurisdictional Dispute Resolution.—When two TWGs assert competing jurisdiction over a specific matter, either TWG may refer the dispute to the Coordination Council. The Coordination Council shall resolve jurisdictional

disputes within 15 days by majority vote of primary representatives, with the two disputing TWGs' representatives recusing from the vote. A TWG that disagrees with the Coordination Council's jurisdictional determination may appeal to the parent Committee within 5 days, and the Committee's determination shall be final.

(iv) Cross-Domain Evidence Sharing.—The Coordination Council shall maintain a shared evidence repository accessible to all TWG members containing all non-classified data, research, and investigatory materials produced by or obtained by any TWG. TWGs shall not conduct duplicative investigation of matters already investigated by another TWG when the existing evidence is sufficient; they shall instead build on the shared repository and note reliance on another TWG's work product. The Coordination Council shall, at each biweekly meeting, review the evidence gathering plans of each TWG to identify and prevent redundancy.

(v) Meeting Schedule.—The Coordination Council shall meet not less frequently than biweekly throughout the investigatory period. Coordination Council sessions shall be closed to public attendance for the same reasons and under the same statutory authority as TWG sessions under subsection (e)(2)(G)(1) — to enable candid cross-domain coordination, protect pre-decisional deliberative material and trade-secret information, and preserve the integrity of the investigatory process. Notwithstanding the closed-session requirement, the complete documentary record of Coordination Council activities shall be publicly accessible through the public portal under section 9(d). Materials subject to mandatory public publication include: meeting agendas, published not less than 5 business days before each meeting; meeting summaries prepared by the presiding officer or designee, published within 7 business days of each meeting; all written resolutions and definitional registry entries; jurisdictional dispute determinations; cross-domain evidence sharing logs; and the mid-course reconciliation report required by subsection (e)(14)(D). Pre-decisional deliberative materials and classified session content are not subject to mandatory public disclosure. Sessions addressing classified information shall be conducted under the classified session procedures of subsection (e)(2)(P)(iii).

(e)(14)(C-1) Enabling Governance Assessment.— In addition to its harmonization and conflict-resolution functions, the Coordination Council shall, at the mid-course reconciliation session under subsection (e)(14)(D), produce a preliminary Enabling Governance Assessment identifying, for each of the 19 investigation domains: which domains are expected to present significant enabling governance questions based on investigatory progress to date; any early indications of proposed legislative interventions that may suppress beneficial AI deployment or productivity gains; and cross-domain enabling governance opportunities identified in the first half of the investigatory period. Not later than 30 days before the FAC backstop transmission deadline under section

8(f), the Coordination Council shall produce a final Enabling Governance Assessment identifying, for each of the 19 investigation domains: any proposed legislative interventions that TWGs have identified as potentially suppressing beneficial AI deployment or productivity gains; governance frameworks — including regulatory safe harbors, liability shields, certification pathways, or public investment mechanisms — that TWGs have identified as enabling responsible AI deployment rather than restricting it; and cross-domain enabling governance opportunities, meaning cases where a governance structure in one domain could enable productivity gains in another. The Enabling Governance Assessment shall be transmitted to the FAC Legislative Drafting Staff, deposited in the shared evidence repository, published on the public portal, and transmitted to Congress alongside the FAC's legislative package. The FAC Legislative Drafting Staff shall consider the Enabling Governance Assessment when finalizing each domain package and shall note in the section-by-section analysis whether and how enabling governance considerations were incorporated into or excluded from each transmitted provision.

(e)(14)(D) Mid-Course Reconciliation Session.—Not later than Day 200 after the date of enactment of this title, the Coordination Council shall convene a mandatory full-day joint reconciliation session of all 11 TWG primary representatives and all 11 deputy representatives, presided over by the Coordination Council presiding officer. The purpose of the mid-course reconciliation session is to review the preliminary findings and emerging recommendations of each TWG, identify conflicts, inconsistencies, or gaps in coverage before draft criteria documents are due under section 7, and direct remediation before findings harden into formal recommendations. The mid-course reconciliation session shall produce a written reconciliation report transmitted to the parent Federal Advisory Committee and to the lead agency within 10 days, identifying: any definitional conflicts not yet resolved; any jurisdictional disputes pending resolution; any domains in which the TWG investigation appears insufficiently developed to support criteria documents by each TWG's 8.5-month deadline; and any recommendations for reallocation of investigatory resources across TWGs. The reconciliation report shall be publicly available on the portal under section 9(d).

(e)(15) TWG Integrity and Misconduct Framework.—

(e)(15)(A) Category 1 — Procedural Misconduct.—Procedural misconduct means any of the following conduct by a TWG member, including a primary or deputy Coordination Council representative: misrepresenting the TWG's adopted positions to the Coordination Council or to the parent Committee; taking actions outside the TWG member's authority as defined by this title or by the TWG's governing procedures; failing to timely disclose a conflict of interest as required by subsection (e)(2)(F); or engaging in conduct that materially impedes the TWG's work.

(i) Internal Process.—Any TWG member may file a written complaint alleging procedural misconduct with the TWG Chair, with a copy to the deputy Coordination Council representative. The complaint shall state with specificity the conduct alleged and the date or period during which it occurred. The TWG Chair shall, within 3 business days of receiving the complaint, acknowledge receipt in writing to the complainant and provide a copy to the accused member. The TWG shall investigate the complaint and take corrective action, if warranted, within 15 days of receipt. Corrective action may include: formal written censure; temporary suspension from Coordination Council participation, with the deputy representative substituting; referral for recall under subsection (e)(14)(B)(iv); or referral to the Director of AI Investigation under clause (ii) if the investigation reveals conduct meeting the Category 2 standard.

(ii) Escalation to Director of AI Investigation.—A complaint shall escalate automatically to the Director of AI Investigation when: the TWG Chair fails to investigate or take corrective action within 15 days; the complaint implicates the TWG Chair's own conduct; the TWG Chair is the accused member; the TWG votes to dismiss a complaint that the complainant believes has merit and the complainant requests escalation; or the TWG's investigation reveals conduct that meets the Category 2 standard of subparagraph (B). Upon escalation, the Director of AI Investigation shall investigate and respond within 15 additional days.

(e)(15)(B) Category 2 — Substantive Fraud.—Substantive fraud means any of the following conduct by any TWG member or Coordination Council participant: falsifying, fabricating, or materially misrepresenting evidence submitted to or considered by any TWG; deliberately suppressing adverse findings or evidence that contradicts a TWG recommendation; accepting compensation, gifts, or benefits from any frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems or any entity with a material financial interest in a TWG recommendation, that were not disclosed pursuant to subsection (e)(2)(F) and that a reasonable person would conclude influenced or were intended to influence the member's TWG work; or coordinating TWG positions with a frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems outside of the TWG's duly noticed public proceedings.

(i) Mandatory Referral.—Upon determining that conduct meets the Category 2 standard, the Director of AI Investigation shall, within 5 business days, simultaneously: refer the matter to the Inspector General of the Department of Commerce for investigation under the Inspector General Act of 1978 (5 U.S.C. App. 3); refer the matter to the Department of Justice for assessment of potential criminal liability under 18 U.S.C. § 1001 (false statements), 18 U.S.C. § 201 (bribery), or other applicable statutes; suspend the accused

member from all TWG and Coordination Council participation pending the outcome of the investigation; and notify the parent Federal Advisory Committee Chair.

(ii) Whistleblower Protections Extended.—The whistleblower protections of section 16 of this title are hereby extended in full to any person who discloses information that the person reasonably believes constitutes evidence of Category 2 substantive fraud in any TWG or in the Coordination Council. For purposes of section 16, a TWG or Coordination Council proceeding is treated as equivalent to a frontier AI developer, significant AI deployer, or any entity whose primary business involves the development, deployment, or commercialization of AI systems's internal proceeding, and any retaliation against a person for disclosing Category 2 conduct — including removal from a TWG, exclusion from a Coordination Council session, non-renewal of an appointment, or any other adverse action — shall be treated as a violation of section 16 subject to all remedies provided in that section. Any nondisclosure agreement, consulting agreement, or terms of engagement that purports to restrict a TWG member's ability to disclose Category 2 conduct is void and unenforceable as against public policy.

(e)(15)(C) Category 3 — Systemic Corruption.—Systemic corruption means any of the following conditions affecting a TWG as a whole or the Coordination Council: a majority of a TWG's members have undisclosed conflicts of interest that were not identified at the time of appointment; a TWG's recommendations, taken as a whole, systematically reflect the interests of a single industry category rather than the balanced mandate required by subsection (e)(2)(A), in a manner that cannot be explained by the weight of evidence; the Coordination Council is operating in a manner that systematically advantages one or more TWGs over others without evidentiary basis; or two or more members of a single TWG or of the Coordination Council are engaged in coordinated Category 2 conduct.

(i) Mandatory Congressional Notification.—Upon determining that conditions meeting the Category 3 standard exist in any TWG or in the Coordination Council, the Director of AI Investigation shall, within 5 business days, transmit a written notification to the Committee on Commerce, Science, and Transportation of the Senate; the Committee on Energy and Commerce of the House of Representatives; and the chairs and ranking members of both committees. The notification shall be mandatory and shall not be withheld, delayed, or modified by the Secretary, any political appointee, or any other executive branch official. Any attempt to suppress or delay the Category 3 notification by any executive branch official is itself a violation of this title subject to the accountability provisions of section 17. The notification shall describe: the specific conditions identified; the evidence on which the determination is based; the TWG or Coordination Council affected; the remedial actions taken or proposed; and any further investigative steps underway.

(ii) Remediation Without Dissolution.—Upon issuing a Category 3 notification, the Director of AI Investigation shall implement targeted remediation measures calibrated to address the specific systemic condition identified, without dissolving the entire TWG or terminating the investigation. Remediation measures may include: appointment of replacement members to remedy composition imbalances, pursuant to the Secretary's appointment authority under subsection (e)(2)(A); appointment of an independent special monitor with authority to attend all TWG and Coordination Council sessions and report directly to the parent Federal Advisory Committee; mandatory disclosure review of all TWG members' conflicts of interest by an independent ethics officer; or referral of specific TWG recommendations to the parent Committee for independent validation before transmission to the lead agency. Dissolution of a TWG is a remedy of last resort available only if the Director of AI Investigation determines, in a written finding transmitted to Congress, that targeted remediation is insufficient to restore the TWG's integrity.

(iii) Independent GAO Review Channel.—Any member of the public, any TWG member, any federal employee, and any member of Congress may submit a complaint alleging Category 3 systemic corruption directly to the Comptroller General of the United States at any time. The Comptroller General, in conducting the independent review of the investigation under section 12(e), is hereby directed to include in that review an assessment of: the independence of each TWG from industry influence; the adequacy of conflict-of-interest disclosures for all TWG members; whether any TWG's composition or recommendations show evidence of systematic bias or industry capture; and the integrity of the Coordination Council's operations. The Comptroller General shall transmit a preliminary integrity assessment to Congress not later than Day 180, concurrent with the Interim Investigative Status Report under section 12(b), and shall include a final integrity assessment in the independent review report due at Day 330 under section 12(e).

(iv) No Retaliation for Category 3 Reports.—The whistleblower protections of section 16 and the extended protections of subsection (e)(15)(B)(ii) apply in full to any person who submits a Category 3 complaint to the Director of AI Investigation, to the Inspector General of the Department of Commerce, to the Comptroller General, or to any member of Congress. No adverse action may be taken against any TWG member, federal employee, or member of the public for submitting a good-faith Category 3 complaint, regardless of whether the complaint is ultimately sustained.

(g) Dissolution and Transition.—

(1) FAC dissolution.— The Federal Advisory Committee established under this section shall dissolve on the date that the National AI Council holds its organizational meeting under section 18(b-1). Upon dissolution, the Committee's records, evidence repository, correspondence, and all investigatory materials shall be transferred to the National AI Council. The Committee's administrative staff, including the Executive Director, Public Docket Administrator, Technical Systems Manager, Public Engagement Coordinator, and all additional staff hired under subsection (b)(1)(B), shall transfer to the National AI Council by operation of law, without interruption of service, new hiring process, or gap in employment. The Council shall assume full supervisory authority over all transferred staff.

(2) TWG dissolution.— Each Technical Working Group established under subsection (e) shall dissolve on the date that the Federal Advisory Committee dissolves under paragraph (1). Upon dissolution, each TWG's domain-specific investigatory materials, evidence files, expert contact networks, and unpublished working documents shall be transferred to the National AI Council and organized by domain for the Council's use in continuing fact-finding under section 18(c)(4).

(3) Continuity of investigatory record.— The dissolution of the Federal Advisory Committee and its Technical Working Groups does not terminate, expire, or diminish the evidentiary record produced during Phase I. The complete investigatory record — including all civil investigative demand responses, Participating Data Agency materials, classified materials, public submissions, expert testimony, and TWG deliberative records — shall be preserved in its entirety and shall constitute the foundational evidentiary record of the National AI Council. The Council shall have the same access to this record as the Federal Advisory Committee and its Technical Working Groups had during Phase I.

(4) Pending matters.— Any civil investigative demand issued under section 10(c) that is pending at the time of FAC dissolution shall remain in force and shall be enforceable by the lead agency. Any investigation, audit, or enforcement action initiated during Phase I shall continue under the authority of the lead agency and shall not be affected by the dissolution of the Committee or its Working Groups.

(5) Interim period.— During the period between the FAC backstop transmission deadline and the organizational meeting of the National AI Council, the lead agency shall maintain the investigatory infrastructure, evidence repository, and administrative systems established during Phase I, and shall ensure continuity of operations until the Council assumes its mandate. The Federal Advisory Committee and its Technical Working Groups shall continue to operate during this interim period in Technical Support and Availability status as described in subsection (f), and shall cooperate with the Council appointment process.

(6) Supersession.— This subsection supersedes the staff transfer provision of subsection (b)(1)(B)(8) and the Technical Support and Availability provisions of subsection (f) to the extent they address post-transmission transition, and provides the comprehensive framework for the transition from the Federal Advisory Committee to the National AI Council.

SEC. 2009. STAKEHOLDER ENGAGEMENT AND PUBLIC PARTICIPATION.

(a) The Federal Advisory Committee, through its Executive Director, Public Engagement Coordinator, and TWG Administrative Coordinators, shall actively seek input from affected populations throughout the investigatory period to ensure that the perspectives of those most affected by AI systems are represented in the investigatory record. Input may be received through any means, including but not limited to: regional roundtables; expert workshops; virtual forums; phone calls; emails; informal testimony; written submissions; town halls; citizens assemblies organized by any person or entity; deliberative polling processes; nationally representative surveys; recorded and structured public debates; public opinion research commissioned by any person or entity; and participatory research initiatives. No particular format or methodology is required — the FAC's obligation is to hear from affected people and ensure their input reaches the relevant TWGs. Dedicated outreach shall be conducted with communities disproportionately affected by AI systems, communities in proximity to existing or proposed AI data center clusters, small businesses, workers in sectors facing significant AI-driven displacement, parents and families of minors harmed by AI systems, and child safety organizations. Each TWG shall conduct domain-specific stakeholder engagement relevant to its investigatory mandate through the public submission channel established under section 8(e)(2)(N). The Public Engagement Coordinator shall additionally monitor the external landscape on a rolling basis for relevant public deliberation research produced by parties other than the FAC — including outputs of citizens assemblies, deliberative polls, and other public engagement processes addressing AI-related topics conducted during the investigatory period — and shall transmit all such materials to the relevant TWG Administrative Coordinators for deposit in the shared evidence repository within 10 business days of identification.

(b) The National Institute of Standards and Technology shall issue not fewer than 2 requests for information (RFIs) or advance notices of proposed rulemaking (ANPRMs) within 90 days of enactment, covering the domains of investigation specified in section 6(b). NIST shall transmit all substantive responses received to the Federal Advisory Committee and the relevant Technical Working Groups through the shared evidence repository within 10 business days of receipt.

(c) The Federal Advisory Committee shall conduct dedicated outreach to tribal governments and underrepresented communities whose perspectives may not be captured through the

engagement channels described in subsection (a), including rural communities, communities with limited digital access, and communities with limited English proficiency, ensuring that the investigatory record is not limited to those with resources to engage in formal regulatory proceedings.

(d) The Federal Advisory Committee, acting through its Technical Systems Manager, shall establish and maintain a publicly accessible online portal and docket for ongoing comment submission, publication of all non-classified investigation materials, stakeholder input summaries with agency responses, and public access to all data and reports produced under this title. The portal shall be the single authoritative public repository for all materials produced under this title, including FAC legislative packages, TWG Domain Explanatory Reports, Coordination Council resolutions, and all public docket entries.

SEC. 2010. DATA COLLECTION, MONITORING, AND INFRASTRUCTURE.

(a) Interagency Data Coordination.—The data access obligations of Participating Data Agencies are established and self-executing under section 5(b) and do not require the execution of bilateral data-sharing agreements to take effect. Not later than 30 days after the date of enactment, the lead agency shall transmit written notice to each Participating Data Agency confirming the activation of their data access obligations under section 5(b), identifying the designated TWG Administrative Coordinators and FAC contact points to whom data requests should be routed, and providing secure technical protocols for the transmission of data to the shared evidence repository maintained by the TWG Coordination Council. This notice does not create the obligation — it operationalizes the self-executing obligation of section 5(b) by providing each Participating Data Agency with the information necessary to respond to data requests. Separately, the Department of Justice cooperation obligations established under section 5(b-1) are governed by the written procedures the Attorney General is required to establish under section 5(b-1)(3) not later than 45 days after the date of enactment; those procedures serve the equivalent activation function for DOJ data cooperation and the lead agency shall coordinate with the Attorney General to ensure those procedures are operationally consistent with the shared evidence repository and routing protocols established under this subsection.

(b) Public Data Repository.—The lead agency shall establish and maintain a publicly accessible data repository containing all non-classified data, reports, criteria documents, stakeholder submissions, and investigation materials produced under this title, with appropriate privacy protections for personally identifiable information and exclusion of classified material.

(c) Civil Investigative Demand.—The lead agency is authorized to compel production of relevant data, documents, and information from frontier AI developers and significant AI deployers through civil investigative demands issued under procedures consistent

with 15 U.S.C. § 57b–1, subject to trade-secret protections. Trade-secret material shall be maintained under seal and shall not be included in the public repository under subsection (b), but shall be available to the relevant Technical Working Groups, the Federal Advisory Committee, and, after its constitution under section 18(b-1), the National AI Council, under appropriate protective orders.

(d) Field Investigations.—The lead agency is authorized to conduct on-site inspections and field investigations of frontier AI developers and significant AI deployers, data center facilities, and compute providers, upon reasonable notice, for purposes of verifying compliance with the data-production requirements of this section and the interim protective measures of section 15.

SEC. 2011. STATE COOPERATION AND PILOT PROGRAMS.

(a) Voluntary Grant Program.—The lead agency is authorized to award grants to States, territories, and tribal governments on a voluntary basis to develop State-level AI investigatory and monitoring capacity, share data and findings with the Federal Advisory Committee and its Technical Working Groups through the shared evidence repository under section 5(a-5), conduct complementary studies addressing State-specific AI impacts, and develop model State legislation or regulations for optional adoption.

(b) Pilot Programs.—The lead agency may authorize up to 5 State-level pilot programs to test alternative AI governance approaches, provided that such programs do not conflict with the interim protective measures established under section 15 and that participating States report all findings to the Federal Advisory Committee and its Technical Working Groups through the shared evidence repository under section 5(a-5).

(c) No Preemption.—Nothing in this section shall be construed to preempt any State law that provides protections equal to or greater than those established by this title.

Subtitle C—REPORTING AND TRANSITION

SEC. 2012. REPORTS TO CONGRESS.

(a) Interim Progress Report.—Not later than 90 days after the date of enactment, the lead agency shall deliver to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Energy and Commerce of the House of Representatives an interim progress report describing: the status of investigative operations across all 19 domains; the volume and categories of investigative material gathered and delivered to each TWG to date; civil investigative demands issued and the status of responses; data requests submitted to Participating Data Agencies and the status of responses; the domain investigator assignment status for all 19 domains; stakeholder engagement activities conducted; and any investigative obstacles, access challenges, or resource constraints encountered and remedial steps taken. The interim progress report does not

contain analytical findings or conclusions — it is a delivery and operational status report consistent with the lead agency's mandate under section 5(a).

(b) Interim Investigative Status Report.—Not later than 180 days after the date of enactment, the lead agency shall deliver to Congress an interim investigative status report describing: the volume and categories of investigative material delivered to each TWG to date; civil investigative demands issued and responses received; data requests submitted to Participating Data Agencies and responses received; classified material delivered through the classified track; the domain investigator assignment status for all 19 domains; and any investigative gaps, access obstacles, or resource constraints that may affect the completeness of the evidentiary record delivered to the TWGs. The interim status report is a delivery and access report, not an analytical findings report — it does not contain findings, conclusions, or draft legislative language.

(c) Final Factual Report.—Not later than the FAC backstop transmission deadline established under section 8(f) — simultaneously with the Federal Advisory Committee's legislative transmission under section 8(f) — the lead agency shall deliver a final factual report to Congress. The lead agency shall not produce draft legislative language in this report; legislative drafting is the exclusive responsibility of the Federal Advisory Committee under section 8(f). The final factual report shall include—

(1) findings of fact for each of the 19 investigation domains, clearly distinguishing between findings supported by strong evidence, preliminary findings, and areas of genuine scientific uncertainty;

(2) an assessment of the adequacy of any federal legislation enacted between the date of introduction of this title and the date of this report that addresses any of the 19 investigation domains, consistent with section 4(h);

(3) identification of remaining evidence gaps in each domain and recommended further investigation or monitoring for Phase II;

(4) final criteria documents published under section 7;

(5) a comprehensive, machine-readable index of all information reviewed, organized by domain and cross-referenced with findings; and

(6) certification by the Director of AI Investigation and the Secretary that the report is complete and that all statutory requirements have been satisfied.

(d) Transmission and Accessibility.—Upon submission of the final report under subsection (c), the lead agency shall transmit complete copies to each congressional committee of jurisdiction and shall make the report and all supporting materials publicly available. The lead agency shall transmit a complete copy to the National AI Council within 15 days of the Council's organizational meeting under section 18(b-1).

(e) GAO Independent Review.—The Comptroller General of the United States shall, concurrently with the lead agency's investigation, conduct an independent review of the agency's methodology, data collection, analytical rigor, and findings, and shall deliver an independent report to Congress not later than 330 days after the date of enactment.

SEC. 2013. LEGISLATIVE TRIGGER, TRANSITION TO REGULATION, AND MANDATORY HAMMER PROVISIONS.

(a) Automatic Moratorium on High-Risk Deployments.—The date that is 180 days after the date on which the Federal Advisory Committee transmits its complete legislative package, as defined in section 3(15-A), under section 8(f) is hereby designated the Phase II Enactment Deadline. If Congress fails to enact comprehensive Phase II legislation, as defined in section 3(15), by the Phase II Enactment Deadline, a blanket moratorium shall automatically take effect prohibiting any frontier AI developer or significant AI deployer from deploying, offering for commercial use, licensing, or materially expanding any AI system classified as high-risk under the criteria documents published pursuant to section 7. Congress may begin enacting domain-specific Phase II legislation at any time after the Federal Advisory Committee transmits any domain package under the rolling transmission authority of section 8(f) — the 180-day window governs only the deadline by which all 19 domains must be addressed, not the date by which Congress must begin acting. The 180-day window is subject to extension under subsection (a-3). For purposes of this subsection, Congress ‘fails to enact’ Phase II legislation if the legislation has not been presented to and signed by the President, or passed over a Presidential veto, by the Phase II Enactment Deadline. Introduction, committee passage, or single-chamber passage does not satisfy this requirement. This moratorium is self-executing and does not require further agency rulemaking, notice-and-comment proceedings, or congressional appropriation. The moratorium shall remain in force until Congress enacts superseding legislation. Any frontier AI developer or significant AI deployer that deploys, offers, licenses, or expands a high-risk AI system in violation of this moratorium shall be subject to a mandatory civil penalty of not less than $50,000,000 per violation per day of continued noncompliance, with each day constituting a separate violation. There shall be no discretionary reduction, waiver, or compromise of this penalty by the lead agency, the Department of Justice, or any other federal entity.

(a-1) Penalty Assessment Procedures.—Penalties under subsection (a) shall be assessed through a 30-day notice-and-response procedure in which the lead agency issues a formal Notice of Noncompliance specifying the AI system at issue, the high-risk classification, and the factual basis for noncompliance. The entity shall have 30 days to respond. The lead agency shall issue a Final Determination not later than 15 days after the close of the response period. If the Final Determination confirms noncompliance, penalties shall accrue from the date of the Final Determination. Failure to respond within 30 days automatically converts the Notice to a Final Determination

on the 31st day, and penalties shall accrue from that date. Notwithstanding the foregoing, if the lead agency determines that the frontier AI developer or significant AI deployer continued to deploy or expand the noncompliant AI system during the 30-day response period despite having actual notice of the alleged noncompliance, penalties shall accrue from the date of the original Notice for each day on which such continued deployment or expansion occurred; this bad-faith accrual provision applies only to continued affirmative deployment or expansion, not to maintenance of systems in existing deployment status pending resolution of the noncompliance determination. Notwithstanding any other provision of this subsection, a frontier AI developer or significant AI deployer that files a petition for judicial review of a Final Determination in a United States district court within 30 days of the date of the Final Determination shall receive an automatic stay of penalty accrual for 30 days from the date of filing, during which no penalties shall accrue under this subsection. The automatic stay does not affect any injunctive relief the lead agency may seek against continued deployment or expansion of the noncompliant AI system during the stay period. The stay expires at the earlier of 30 days from the date of filing or the date on which the court rules on any motion for preliminary injunction or stay pending review filed by the frontier AI developer or significant AI deployer. A court may extend the stay beyond 30 days upon a finding that the frontier AI developer or significant AI deployer is likely to succeed on the merits and that irreparable harm would result from immediate penalty accrual. The automatic stay is available once per Final Determination and may not be renewed.

(a-2) Domain-Specific Hammer Provisions.—The following domain-specific mandatory restrictions shall take effect simultaneously with the moratorium under subsection (a) upon Phase II failure, and shall remain in force until Congress enacts Phase II legislation, as defined in section 3(15), that specifically addresses the relevant domain through binding regulatory standards under section 3(15)(A)(i). Each domain-specific restriction in this subsection is independent of and in addition to the moratorium under subsection (a), and the failure of any one domain-specific restriction to take effect or be enforced shall not affect the operation of any other restriction in this subsection or the moratorium under subsection (a).

(a-2)(i) Domain 13 — Compute Export Controls: Immediate Total Export Restriction. —

(A) Automatic and Immediate Activation.—Upon Phase II failure as described in subsection (a), an immediate and total export restriction on all covered AI computing hardware takes effect automatically, without any further agency action, rulemaking, order, notice-and-comment proceedings, or congressional action. This restriction applies globally to all export destinations without exception — there are no allied nations exemptions, no license categories, no general license exceptions, no license exception carve-outs, and no safe harbors

of any kind. No export license, general license, license exception, or other authorization under the Export Control Reform Act of 2018, the Export Administration Regulations, the International Traffic in Arms Regulations, or any other statute or regulation may permit export of covered AI computing hardware during the period this restriction is in effect. The restriction is self-executing from the instant of Phase II failure.

(B) Covered Hardware.—For purposes of this paragraph, 'covered AI computing hardware' means: graphics processing units and tensor processing units with aggregate processing capacity exceeding 300 teraflops of 16-bit floating point performance per unit; custom AI accelerator chips designed primarily for matrix multiplication and neural network inference or training; complete AI training cluster systems with aggregate capacity exceeding 10^24 floating-point operations per second; networking equipment, including high-bandwidth interconnects and switches, designed primarily to connect AI computing hardware within a training cluster; and cloud computing access — whether provided through APIs, virtual machine instances, or any other mechanism — that provides the computational equivalent of the foregoing to a single customer or coordinated group of customers within any 30-day period. The Secretary of Commerce may, by emergency rule effective upon publication without notice-and-comment, adjust these thresholds to reflect advances in semiconductor technology.

(C) Scope.—The export restriction under this paragraph applies to: all export transactions, re-export transactions, transfers, sales, leases, loans, gifts, technology transfers, and licensing arrangements involving covered AI computing hardware; hardware physically located in the United States; hardware manufactured under United States intellectual property or by entities subject to United States jurisdiction, wherever located; and cloud computing access provided from United States-based infrastructure or by entities subject to United States jurisdiction. There are no exceptions.

(D) Penalties.—Violations of the export restriction imposed under this paragraph shall be subject to civil penalties of up to $1,000,000 per violation and criminal penalties of up to 20 years imprisonment for willful violations under the Export Control Reform Act of 2018 (50 U.S.C. § 4801 et seq.), in addition to the mandatory civil penalties of subsection (a). The Department of Justice shall treat violations of this paragraph as priority national security enforcement matters. The Secretary of Commerce shall refer all suspected violations to the Department of Justice within 5 business days of identification.

(E) Termination.—The export restriction under this paragraph shall terminate upon enactment of Phase II legislation that specifically addresses domain 13 (compute

export controls and semiconductor governance) through binding regulatory standards under section 3(15)(A)(i), and shall be superseded by the permanent export control framework established by that legislation.

(a-2)(ii) Domain 14 — Market Concentration: Acquisition and Investment Freeze.—

(A) Automatic Activation.—Upon Phase II failure as described in subsection (a), a mandatory freeze shall automatically take effect prohibiting all acquisitions, mergers, joint ventures, material investments, and exclusive partnership agreements by any large AI entity, as defined in subparagraph (B), without prior written approval from the Federal Trade Commission or the Department of Justice Antitrust Division, as applicable. This freeze is self-executing and does not require agency rulemaking, notice-and-comment proceedings, or further congressional action.

(B) Large AI Entity.—For purposes of this paragraph, 'large AI entity' means any frontier AI developer or significant AI deployer that: had annual worldwide revenue exceeding $10,000,000,000 in the most recent fiscal year; controls or has the contractual right to access more than 20 percent of domestic frontier AI compute capacity; or has a market capitalization exceeding $100,000,000,000 at the time of the proposed transaction. The lead agency shall publish a list of entities meeting this definition within 15 days of Phase II failure and update it quarterly.

(C) Covered Transactions.—The freeze applies to: acquisitions of any company, business unit, or asset portfolio with a transaction value exceeding $50,000,000; mergers and consolidations of any kind; joint ventures in which the large AI entity contributes more than $50,000,000 in cash, assets, or intellectual property; exclusive licensing agreements covering AI models, training data, or AI infrastructure with a term exceeding 12 months and total value exceeding $100,000,000; and any investment that results in the large AI entity acquiring more than 10 percent of the voting securities of any AI developer, AI infrastructure provider, or training data provider.

(D) Approval Process.—A large AI entity seeking approval for a covered transaction during the freeze period shall submit a pre-transaction notification to the Federal Trade Commission and the Department of Justice Antitrust Division not less than 90 days before the proposed closing date. The reviewing agency shall approve the transaction only upon a finding that the transaction would not materially increase concentration in any relevant AI market and would not substantially lessen competition. The reviewing agency may impose conditions as a requirement of approval. Transactions closed in violation of this paragraph are voidable by the Federal Trade Commission or the Department of Justice at any time within 5 years of closing.

(E) Penalties.—Any large AI entity that closes a covered transaction without required approval shall be subject to: a mandatory civil penalty of $500,000,000 per transaction; mandatory disgorgement of all benefits received from the transaction; and divestiture of all assets acquired in the transaction at the order of the Federal Trade Commission or the Department of Justice. These penalties are in addition to any penalties available under the Clayton Act (15 U.S.C. § 18 et seq.) or the Federal Trade Commission Act (15 U.S.C. § 45 et seq.).

(F) Termination.—The acquisition and investment freeze under this paragraph shall terminate upon enactment of Phase II legislation that specifically addresses domain 14 (market concentration, competition, and AI antitrust) through binding regulatory standards under section 3(15)(A)(i), and shall be superseded by the permanent market structure framework established by that legislation.

(a-2)(iii) Domain 10 — Environmental Impacts: Data Center Construction Moratorium and Disclosure.—

(A) Definitions.—For purposes of this paragraph:

(i) AI Data Center Facility.—The term 'AI data center facility' means any building, structure, or campus that: houses computing infrastructure used primarily for AI model training, inference, or data processing; and either (I) has projected or actual electricity consumption exceeding 100 megawatts, or (II) is part of a covered campus, as defined in clause (ii), with aggregate projected or actual electricity consumption exceeding 100 megawatts. For purposes of determining whether a facility meets the 100-megawatt threshold, the projected capacity of the facility at full build-out shall govern, not the capacity of any initial phase of construction.

(ii) Covered Campus.—The term 'covered campus' means all buildings, structures, and facilities that: are located on contiguous or adjacent parcels of land; and are owned, leased, operated, or controlled by the same person or entity or by entities under common ownership or control, including parent companies, subsidiaries, affiliates, and entities under common investment or management. For purposes of this clause, 'common control' means the power to direct or cause the direction of the management and policies of an entity, whether through ownership of voting securities, by contract, or otherwise. A covered campus shall be treated as a single AI data center facility for all purposes of this paragraph, regardless of how many separate legal entities, permits, or utility accounts are used.

(iii) Material Expansion.—The term 'material expansion' means any addition to an existing AI data center facility that would increase its electricity consumption by more than 50 megawatts above its most recently reported consumption level, measured at the covered campus level.

(B) FERC Interconnection Moratorium.—Upon Phase II failure as described in subsection (a), the following restrictions take effect immediately and automatically, without any agency action, rulemaking, or further congressional action: the Federal Energy Regulatory Commission shall not approve any new interconnection request or any pending interconnection request not yet finally approved for any new AI data center facility or any material expansion of an existing AI data center facility; FERC shall within 5 business days of Phase II failure issue a notice to all transmission providers and interconnection queues directing suspension of all such pending approvals; and no transmission provider subject to FERC jurisdiction may proceed with any interconnection agreement, facilities study, or system impact study for a new AI data center facility or material expansion during the moratorium. There are no exemptions, exceptions, waivers, or renewable energy carve-outs. The moratorium applies to all AI data center facilities meeting the definitions in subparagraph (A) regardless of their energy source, efficiency rating, or environmental commitments.

(C) Construction Prohibition.—Upon Phase II failure, no person or entity may commence construction of a new AI data center facility or commence a material expansion of an existing AI data center facility. For purposes of this subparagraph, 'commence construction' means any ground-disturbing activity, including site preparation, grading, foundation work, and installation of any permanent infrastructure, regardless of whether a state or local building permit has been issued. Construction activity that commenced before Phase II failure may continue for not more than 30 days after Phase II failure, after which all construction must cease until Phase II legislation addressing domain 10 is enacted. Failure to cease construction shall subject the developer and each of its officers and directors to a mandatory civil penalty of $5,000,000 per day of continued construction.

(D) Water Use Disclosure.—Upon Phase II failure, every operator of an AI data center facility shall, within 90 days, file a water use disclosure with the Environmental Protection Agency reporting: total on-site water consumption in gallons per day averaged over the preceding 12 months; the source or sources of water used, including groundwater, municipal supply, and surface water, with the geographic location of each source; the Water Usage Effectiveness ratio of the facility; projected water consumption at full build-out; and any water recycling, recapture, or conservation measures in place. Water use disclosures shall be publicly available on the EPA's public portal within 15 days of filing. Failure to file shall subject the operator to a mandatory civil penalty of $5,000,000 per month of noncompliance, with no discretionary reduction. The water use disclosure obligation is permanent and survives the termination of the construction moratorium.

(E) Penalties for Evasion Through Corporate Structuring.—Any attempt to evade the thresholds of this paragraph by dividing a facility among multiple legal entities, parcels, utility accounts, or permit applications shall constitute a separate violation subject to the penalties of subsection (h). The lead agency shall have authority to aggregate electricity consumption, water consumption, and land area across related entities and parcels for purposes of determining whether any facility meets the definitions in subparagraph (A), applying the common control standard of subparagraph (A)(ii).

(F) Termination.—The FERC interconnection moratorium under subparagraph (B) and the construction prohibition under subparagraph (C) shall terminate upon enactment of Phase II legislation that specifically addresses domain 10 (environmental and community impacts of data centers) through binding regulatory standards under section 3(15)(A)(i). The water use disclosure requirement under subparagraph (D) shall continue in effect as a permanent requirement and shall not terminate upon Phase II enactment unless Phase II legislation specifically supersedes it.

(a-2)(iv) Domain 15 — Open-Weight AI Models: Frontier Model Release and Training Moratorium.—

(A) Automatic Activation.—Upon Phase II failure as described in subsection (a), a mandatory moratorium shall automatically take effect prohibiting: the public release of any open-weight frontier model, as defined in section 3(24); the initiation of any new training run that the releasing entity knows or has reason to believe will produce an open-weight frontier model; and the public release of any model weights, parameters, or technical specifications that would enable a recipient to replicate the capabilities of an open-weight frontier model. This moratorium is self-executing and does not require agency rulemaking, notice-and-comment proceedings, or further congressional action. There are no pre-clearance procedures, exemptions, safe harbors, or exceptions during the moratorium period.

(B) Scope.—The moratorium under this paragraph applies to all persons and entities subject to this title, including academic researchers, non-profit organizations, and government contractors. It applies to releases on any platform or through any mechanism, including online repositories, peer-reviewed publications that include model weights, API access that effectively provides open weight access, and direct distribution. The moratorium does not prohibit: continued operation of open-weight models already publicly released before Phase II failure; research, development, and internal testing of models that are not publicly released; or release of model weights to the lead agency for safety evaluation purposes under a confidentiality agreement.

(C) Penalties.—Any person or entity that releases an open-weight frontier model in violation of this paragraph shall be subject to: a mandatory civil penalty of $100,000,000 per release; mandatory disgorgement of all revenue attributable to the released model; and an injunction requiring the releasing entity to take all technically feasible steps to limit further distribution of the released weights, including removal from repositories under the entity's control and notification to downstream distributors. These penalties apply notwithstanding any claim that the release was made for research, educational, or open-science purposes.

(D) Termination.—The moratorium under this paragraph shall terminate upon enactment of Phase II legislation that specifically addresses domain 15 (open-weight AI models: governance, safety, and competition) through binding regulatory standards under section 3(15)(A)(i), and shall be superseded by the permanent open-weight model governance framework established by that legislation.

(a-2)(v) Domain 17 — Electoral Integrity: Mandatory AI Content Disclosure and Distribution Suspension.—

(A) Automatic Activation.—Upon Phase II failure as described in subsection (a), the following mandatory restrictions shall take effect immediately and automatically, without any agency action, rulemaking, or further congressional action, with respect to AI-generated content in federal election communications.

(B) Mandatory AI Labeling for All Election Communications.—Any person or entity that distributes, publishes, broadcasts, or makes available any communication in any medium that constitutes an election communication under the Federal Election Campaign Act (52 U.S.C. § 30101 et seq.) and that includes any AI-generated audio, video, imagery, or text depicting or purporting to represent any identified federal candidate, elected official, or election worker shall: (i) clearly and conspicuously label the communication as containing AI-generated content, in a manner prescribed by the Federal Election Commission within 15 days of Phase II failure, displayed continuously throughout any video content and prominently in any print, digital, or audio content; and (ii) transmit to the Federal Election Commission a copy of the communication and a certification identifying which elements are AI-generated, the AI system used to generate them, and the identity of the entity that generated and distributed the communication, within 24 hours of first distribution. The labeling requirement applies regardless of whether the AI-generated content is materially deceptive. Failure to comply shall subject the distributing entity to a mandatory civil penalty of $1,000,000 per distribution event, with each separate distribution channel constituting a separate event.

(C) Suspension of Materially Deceptive AI Election Content.—Upon Phase II failure, it shall be unlawful for any person or entity to distribute, publish, broadcast, or make available any AI-generated synthetic audio, video, or imagery of an identified federal candidate, elected official, or election worker that: a reasonable person would conclude is authentic; and materially misrepresents the depicted individual's words, actions, or positions. This prohibition does not apply to clearly labeled satire, parody, or commentary, or to news reporting, documentary, or archival uses. Violations shall be subject to mandatory penalties of $10,000,000 per distribution event, mandatory referral to the Federal Election Commission and the Department of Justice, and an injunction requiring the distributing entity to take all technically feasible steps to remove the deceptive content from platforms and repositories under its control.

(D) FEC Emergency Rulemaking.—Within 15 days of Phase II failure, the Federal Election Commission shall issue emergency regulations, without prior notice-and-comment under the good-cause exception of 5 U.S.C. § 553(b)(B), specifying: the format, placement, and duration requirements for the AI content labeling required by subparagraph (B); the technical specifications for the required 24-hour FEC transmission; and the definition of 'distribution event' for purposes of penalty assessment under subparagraph (B). The FEC shall consult with the lead agency in developing these regulations.

(E) Relationship to Section 2015(c)(9).—The restrictions in this paragraph operate in addition to and independently of the prohibition in section 15(c)(9) of this title, which takes effect on the date of enactment and remains in force regardless of Phase II failure. The restrictions in this paragraph expand upon section 15(c)(9) by: extending the labeling obligation to all AI-generated election content regardless of whether it is materially deceptive; adding an FEC transmission requirement; and establishing emergency FEC rulemaking authority. Compliance with section 15(c)(9) does not satisfy the requirements of this paragraph, and violations of this paragraph are separately penalized from violations of section 15(c)(9).

(F) Termination.—The restrictions under this paragraph shall terminate upon enactment of Phase II legislation that specifically addresses domain 17 (AI and electoral integrity) through binding regulatory standards under section 3(15)(A)(i), and shall be superseded by the permanent electoral integrity framework established by that legislation. The labeling requirement of subparagraph (B) shall continue as a permanent requirement unless specifically superseded by Phase II legislation, consistent with the constitutional durability of disclosure requirements under Buckley v. Valeo, 424 U.S. 1 (1976).

(a-3) Graduated Congressional Extension Mechanism.—The 180-day congressional window for enacting Phase II legislation under subsection (a) may be extended twice, for 30 additional days each time, upon demonstration of substantial legislative progress as defined in this subsection. The extension mechanism reflects Congress's judgment that meaningful progress toward comprehensive AI governance across the majority of domains warrants additional time to complete the remaining domains, rather than triggering a blanket moratorium over incomplete coverage. The extensions are automatic and self-executing upon satisfaction of the applicable threshold — they do not require any agency determination, rulemaking, or congressional vote to take effect. The Comptroller General shall publish a running public tally of certified domains, updated within 3 business days of each certification, throughout the congressional window period.

(A) First 30-Day Extension.—The congressional window shall be automatically extended by 30 days — from the Phase II Enactment Deadline to the date that is 30 days after the Phase II Enactment Deadline — if, not later than the Phase II Enactment Deadline, Congress has enacted Phase II legislation, as defined in section 3(15), that specifically addresses not fewer than 10 of the 19 investigation domains through binding regulatory standards or valid affirmative non-regulation findings. A domain is 'addressed' for purposes of this subparagraph when the Comptroller General has published a written determination under the final paragraph of section 3(15) or under section 13(a-4)(C) confirming that the enacted legislation satisfies the requirements of section 3(15) for that domain. For purposes of counting domains, a domain addressed by a valid affirmative non-regulation finding under section 3(15)(A)(ii) counts equally toward the threshold as a domain addressed by binding regulatory standards under section 3(15)(A)(i). The first extension is not available if Congress has enacted legislation purporting to address 10 or more domains but the Comptroller General has determined that one or more of those purported enactments does not satisfy section 3(15) — only certified domains count toward the threshold.

(B) Second 30-Day Extension.—If the first 30-day extension under subparagraph (A) has taken effect, the congressional window shall be further extended by an additional 30 days — from the date that is 30 days after the Phase II Enactment Deadline to the date that is 60 days after the Phase II Enactment Deadline — if, not later than the date that is 30 days after the Phase II Enactment Deadline, Congress has enacted Phase II legislation addressing not fewer than 15 of the 19 investigation domains as confirmed by the Comptroller General under the procedures of subparagraph (A). The second extension is available only if the first extension was validly triggered; it is not available independently. The same domain-counting methodology applies: each domain must be confirmed by a

Comptroller General determination as satisfying section 3(15), and affirmative non-regulation findings count equally with binding regulatory standards.

(C) No Further Extensions.—No more than two extensions are available under this subsection. If Congress fails to meet the 10-domain threshold by the Phase II Enactment Deadline, the moratorium under subsection (a) takes effect immediately on the day after the Phase II Enactment Deadline — the first extension does not trigger and no further extensions are available. If Congress meets the 10-domain threshold but fails to meet the 15-domain threshold by the date that is 30 days after the Phase II Enactment Deadline, the moratorium takes effect immediately on the following day — the second extension does not trigger. If both extensions were validly triggered and Congress has still not enacted Phase II legislation addressing all 19 investigation domains upon expiration of the second extension, the moratorium under subsection (a) and all hammer provisions under subsection (a-2) shall take effect on the day after the date that is 60 days after the Phase II Enactment Deadline with respect to all remaining unaddressed domains. No further extensions, stays, or grace periods are available after the date that is 60 days after the Phase II Enactment Deadline except by subsequent Act of Congress that specifically supersedes this subsection. The availability of extensions under this subsection does not modify, delay, or otherwise affect the congressional override and stay mechanism of subsection (i), which remains available independently throughout the extension period.

(D) Interaction with Rolling FAC Transmissions.—The Federal Advisory Committee transmits domain-specific legislative packages to Congress on a rolling basis pursuant to section 8(f), giving Congress advance reading and preparation time before the single unified 180-day congressional window begins at the backstop transmission deadline. The 180-day window runs from the Federal Advisory Committee's final backstop transmission for all domains simultaneously — there is one clock, not one per domain. Domains for which Congress has enacted Phase II legislation and received Comptroller General certification before the Phase II Enactment Deadline count toward the 10-domain threshold of subparagraph (A), and before the date that is 30 days after the Phase II Enactment Deadline count toward the 15-domain threshold of subparagraph (B), regardless of when the Federal Advisory Committee transmitted those domains. The moratorium trigger date is the Phase II Enactment Deadline for the initial window, the date that is 30 days after the Phase II Enactment Deadline for the first extension, and the date that is 60 days after the Phase II Enactment Deadline for the second extension.

(E) Effect of Extensions on Domain-Specific Hammer Provisions.—The domain-specific hammer provisions of subsection (a-2) are subject to the same extension

mechanism as the general moratorium of subsection (a). If the first extension is triggered, the domain-specific provisions that would have taken effect at the Phase II Enactment Deadline are delayed to the date that is 30 days after the Phase II Enactment Deadline. If the second extension is triggered, those provisions are further delayed to the date that is 60 days after the Phase II Enactment Deadline. Domain-specific provisions terminate independently upon enactment of Phase II legislation addressing the relevant domain under the termination provisions of each paragraph of subsection (a-2), regardless of whether the general moratorium has triggered.

(a-4) Early Domain Passage and Rolling GAO Certification.—(A) Congressional Action Before FAC Backstop Transmission.— Congress may enact legislation addressing one or more of the 19 investigation domains specified in section 6(b) at any time after the date of enactment of this title, including before the relevant TWG has completed its investigation, before the Federal Advisory Committee has transmitted a domain package for that domain under section 8(f), and before the FAC backstop transmission deadline. Early enactment of domain legislation is affirmatively encouraged by Congress as a mechanism for accelerating the governance of AI systems and reducing the period during which frontier AI developers and significant AI deployers operate without binding federal standards.(B) Joint TWG and FAC Review.— Within 30 days of the later of: (i) the enactment of any legislation purporting to address one or more of the 19 investigation domains; or (ii) the date on which all four seed members of the relevant TWG or TWGs have been appointed under section 8(e)(1)(C) and have commenced SGE onboarding — the Technical Working Group or Working Groups with jurisdiction over the relevant domain or domains, acting jointly with the Federal Advisory Committee, shall submit a written domain adequacy recommendation to the Comptroller General. If legislation is enacted before the seed members of the relevant TWG have been appointed, the 30-day review clock does not begin until all four seed members of that TWG have been appointed and have commenced onboarding; during this interim period the Federal Advisory Committee shall begin preliminary review of the enacted legislation using available lead agency investigative material. The recommendation shall assess whether the enacted legislation adequately addresses the domain as defined in section 6(b), identify any material gaps between the enacted legislation and the full scope of the domain mandate, and recommend whether the Comptroller General should certify the domain as satisfied. The TWG and FAC shall reach their joint recommendation by majority vote of the TWG’s full membership then seated and a concurrent vote of the Federal Advisory Committee under its standard 12-of-18 threshold. Where the TWG and FAC reach different conclusions, both conclusions shall be transmitted to the Comptroller General with full explanatory statements. If the TWG for a relevant domain has not yet held its organizational meeting but seed members have been appointed, the seed

members shall participate in the recommendation on behalf of the TWG, with each seed member having one vote and a simple majority governing.(C) GAO Certification. — Within 30 days of receiving the joint TWG and FAC recommendation under subparagraph (B), the Comptroller General shall publish a written certification determination in the Federal Register stating whether the enacted legislation satisfies the requirements of section 3(15) for each relevant domain. The Comptroller General's determination is independent — it is not bound by the TWG and FAC recommendation — but shall specifically address in writing each material objection raised in a negative or split recommendation. A domain for which the Comptroller General publishes a written certification of satisfaction is a certified domain for all purposes of this title, including the moratorium threshold calculations of section 13(a) and the graduated extension mechanism of section 13(a-3), from the date of the Comptroller General's certification. The Comptroller General's certification determination shall be subject to expedited judicial review completable within 15 days in any United States district court.(D) Effect on TWG Mandate.— Certification of a domain under subparagraph (C) does not terminate or reduce the mandate of the relevant Technical Working Group. The TWG shall continue its investigation of the certified domain and may, through the Federal Advisory Committee, transmit supplemental legislative packages to Congress recommending more robust, comprehensive, or technically precise standards than those enacted. Supplemental packages are not required to avert the moratorium — the domain is already certified — but Congress is encouraged to consider them as Phase II refinements. A TWG whose domain has been certified shall note the certification in its final domain submission and assess in its Domain Explanatory Report whether the enacted legislation fully addresses the domain or whether identified gaps warrant supplemental legislative action.(E) Public Certification Tally.— The Comptroller General shall maintain and publish a real-time public tally of all certified domains — whether certified through the early passage mechanism of this subsection or through the standard Phase II determination process under the final paragraph of section 3(15) — updated within 3 business days of each certification. This tally is the operative record for purposes of the moratorium threshold calculations throughout section 13.(c) Mandatory Pre-Market Approval and Post-Deployment Review.—If the moratorium under subsection (a) takes effect, no frontier AI developer or significant AI deployer may deploy, release, update, or materially modify any AI system classified as high-risk under section 7 without first obtaining written pre-market approval from the lead agency. Systems lawfully deployed before the moratorium must be registered with the lead agency within 30 days and are subject to expedited post-deployment review.

(d) Automatic Private Right of Action.—Upon the effective date of the moratorium, any person who suffers injury, loss, or adverse effect attributable to an AI system operated by a noncompliant frontier AI developer or significant AI deployer shall have a private

right of action in any court of competent jurisdiction. The standard of liability shall be strict liability. Courts shall award treble damages. Prevailing plaintiffs shall recover reasonable attorney's fees and costs. Class action certification shall be presumptively appropriate, and arbitration clauses, class action waivers, and forum selection clauses are void as against public policy.

(e) Personal Liability of Corporate Officers.—The chief executive officer, chief technology officer, chief operating officer, and any officer or director who authorized, directed, or knowingly permitted deployment or continued operation of an AI system in violation of the moratorium shall be personally liable for civil penalties of not less than $5,000,000 per violation. Such liability shall not be indemnifiable, and any agreement purporting to indemnify or insure such officers shall be void. The lead agency shall refer patterns of officer noncompliance to the Department of Justice for consideration of debarment from serving as an officer or director of any entity subject to this title for not less than 10 years.

(f) Suspension of Federal Contracting Privileges.—Any frontier AI developer or significant AI deployer in violation of the moratorium shall be automatically debarred from all federal contracting, subcontracting, grant receipt, and participation in federally funded programs for not less than 5 years. This debarment is mandatory, non-waivable, not subject to appeal, and extends to all subsidiaries, affiliates, successors, and assigns.

(h) Prohibition on Regulatory Arbitrage and Evasion.—Any attempt by a frontier AI developer or significant AI deployer to evade the requirements of this section—including restructuring, asset transfers, offshore relocation, shell entity creation, licensing arrangements, or technical modifications designed solely to evade classification—shall be treated as a separate violation subject to penalties at double the rates in subsections (a) and (e). The lead agency shall have authority to pierce corporate veils, disregard formal entity structures, and apply substance-over-form analysis.

(i) Congressional Override and Stay.—Congress may avert the hammer provisions by enacting Phase II legislation, as defined in section 3(15), before the moratorium trigger date. The hammer provisions shall be automatically stayed during any period in which a qualifying bill has passed at least one chamber of Congress. For purposes of this subsection, a ‘qualifying bill’ means a bill that the Comptroller General has determined in writing satisfies the requirements of section 3(15) — that is, a bill that addresses all 19 investigation domains through either binding regulatory standards or valid affirmative non-regulation findings; that includes binding regulatory standards for the five mandatory core domains identified in section 3(15)(B); that includes binding enforcement mechanisms with specified penalties for each domain addressed through regulatory standards; and that does not consist solely of investigatory or advisory provisions for any mandatory core domain. A simple reauthorization or extension of this title’s investigatory authority shall not constitute a qualifying bill. A bill that satisfies

the requirements of section 3(15) but has not yet been signed into law shall trigger the stay; a bill that does not satisfy those requirements shall not trigger the stay regardless of the number of chambers through which it has passed. The Comptroller General's qualifying bill determination shall be published in the Federal Register within 5 business days of the bill's passage through any chamber, shall be domain-by-domain in the same format as the determination required by the final paragraph of section 3(15), and shall be subject to expedited judicial review completable within 15 days. The stay provided by this subsection applies to the moratorium under subsection (a) and to all domain-specific restrictions under subsection (a-2); however, each domain-specific restriction under subsection (a-2) terminates independently upon enactment of Phase II legislation specifically addressing the relevant domain through binding regulatory standards under section 3(15)(A)(i), consistent with the individual termination provisions of each paragraph of subsection (a-2), and not upon enactment of Phase II legislation addressing other domains. Enactment of Phase II legislation that addresses some but not all domains terminates the domain-specific restrictions for the addressed domains while leaving all other restrictions in force.

(j) No Waiver, Compromise, or Settlement.—Notwithstanding any other provision of law, the penalties and requirements of this section may not be waived, reduced, compromised, settled, or forgiven by any federal agency, officer, or employee, except by subsequent Act of Congress.

(k) Judicial Review for Constitutional Proportionality.—Nothing in subsection (j) shall be construed to preclude a federal court from reviewing a penalty assessed under this section solely for compliance with the Excessive Fines Clause of the Eighth Amendment. Congress finds that, given the revenue scale and market capitalization of frontier AI developers and significant AI deployers, and the gravity of the harms that the prohibited conduct poses to public safety, national security, civil rights, and economic welfare, the penalty rates specified in this section are proportionate to the severity of the prohibited conduct.

(l) Transformative AI Capability Event Protocols.—

(1) MANDATORY NOTIFICATION.— Any frontier AI developer or significant AI deployer that becomes aware, through internal evaluation, external research, or any other means, of evidence that any AI system—whether developed by that entity or any other—may have achieved or may imminently achieve a Transformative AI Capability Event as defined in section 3(22) shall notify the lead agency and the Director of National Intelligence within 24 hours of such awareness, and shall additionally notify the National AI Council if the Council has been constituted under section 18(b-1) at the time of such awareness. The lead agency shall immediately notify the International AI Diplomacy Agency established under section 19 upon receiving notification under this paragraph. Failure to provide notification shall

constitute a mandatory violation subject to the penalty provisions of subsection (a), applied per day of noncompliance from the date the entity first became aware of such evidence. The notification obligation in this paragraph is independent of and cumulative with the prohibition on concealment of transformative capabilities in section 20(a)(6). Fulfillment of the notification obligation in this paragraph does not discharge or provide a defense to any violation of section 20(a)(6), which imposes broader obligations including prohibitions on active misrepresentation and evaluation structuring that are not subsumed within the notification duty. A single course of conduct that both violates section 20(a)(6) and constitutes a failure to notify under this paragraph gives rise to independent and separately penalized violations under both provisions, which shall not be merged, reduced, or offset against one another.

(2) MANDATORY CONGRESSIONAL BRIEFING.— Not later than 72 hours after receiving a notification under paragraph (1), or after independently determining that a Transformative AI Capability Event may have occurred or be imminent, the lead agency shall deliver a classified briefing to the Speaker of the House, the Senate Majority Leader, the Senate Minority Leader, the House Minority Leader, and the chairs and ranking members of the Senate Select Committee on Intelligence, the House Permanent Select Committee on Intelligence, the Senate Committee on Commerce, Science, and Transportation, and the House Committee on Energy and Commerce.

(3) MANDATORY PAUSE ON TRAINING, CAPABILITY ADVANCEMENT, AND OPERATIONS.— Upon a determination by the lead agency, confirmed by the National AI Council within 5 days, that a Transformative AI Capability Event has occurred, the following mandatory restrictions shall take effect immediately and remain in force until the earlier of: Congress enacting legislation specifically addressing the event pursuant to the emergency procedures of section 18(c-1); or 180 days having elapsed from the TACE determination. If Congress has not enacted superseding legislation within 60 days, the lead agency shall implement emergency interim regulations under section 18(c-1)(E) on Day 61 of the pause, provided that the National AI Council's initial shelf-ready package has been transmitted pursuant to section 18(c)(3); if the initial shelf-ready package has not yet been transmitted, the lead agency shall develop and implement emergency interim regulations on Day 61 based on the most urgent provisions of the criteria documents and the investigation record then available. If the National AI Council has not yet been constituted at the time of a TACE determination, the confirmation role of the Council under this paragraph shall be performed by the Comptroller General of the United States within 5 days. If the Council has been partially constituted, a quorum of not fewer than 4 members then serving shall be sufficient to perform the confirmation role. The mandatory restrictions are:

(A) Training Halt.—All frontier AI developers shall immediately suspend all training runs exceeding 10^25 floating-point operations. No new training run at or above this threshold may be initiated for any purpose, including safety research, capability evaluation, or model improvement, for any AI system.

(B) Capability Advancement Prohibition.—All frontier AI developers shall immediately cease all activities that would materially advance the capabilities of any AI system that has demonstrated, or that the lead agency determines is approaching, a Transformative AI Capability Event threshold under section 3(22). Prohibited activities include fine-tuning, reinforcement learning from human feedback, capability elicitation techniques, prompt engineering designed to unlock latent capabilities, distillation of TACE-level capabilities into other models, and any other technique that the lead agency determines would expand the operational capability of a TACE-threshold system beyond its current level, regardless of whether such activity constitutes a training run above 10^25 FLOPs. For purposes of this subparagraph, 'materially advance' means any modification, technique, or process that produces a measurable improvement in the system's performance on any of the capability domains specified in section 3(22)(A) through (D), or on any dangerous capability domain specified in section 3(4), as assessed by a standardized evaluation methodology. The lead agency shall, within 30 days of a confirmed TACE determination, publish by emergency rulemaking under 5 U.S.C. § 553(b)(B) a specific technical definition of 'materially advance' calibrated to the specific TACE threshold that was triggered, including quantitative benchmarks where feasible, to provide frontier AI developers with clear notice of which activities are prohibited during the pause period. Until such emergency rulemaking is published, any activity that a reasonable expert in AI capability evaluation would conclude is likely to increase the system's capabilities in the relevant TACE threshold domain shall be presumed to materially advance capabilities for purposes of this subparagraph.

(C) Operational Deprecation.—Any AI system that the lead agency determines has demonstrated one or more of the capability thresholds defined in section 3(22) — the specific system that triggered or contributed to the TACE determination — shall be withdrawn from operational deployment within 72 hours of the TACE determination being confirmed by the National AI Council. The developing entity may continue to operate prior versions of the system that the lead agency affirmatively certifies do not demonstrate any of the thresholds in section 3(22), but the TACE-threshold version specifically shall not remain in live deployment, shall not be accessible through any public-facing API or interface, and shall not be made available to any third party for any purpose during the pause period. The developing entity may conduct safety research and

evaluation on the deprecated system in a secured, air-gapped environment under protocols approved by the lead agency, but may not deploy, license, or otherwise make operational the TACE-threshold system or any system derived from it during the pause period.

(D) No Circumvention Through Derived Systems.—No frontier AI developer or significant AI deployer may circumvent the operational deprecation requirement of subparagraph (C) by creating, deploying, or making available any AI system that incorporates, is derived from, is distilled from, or otherwise transfers the TACE-threshold capabilities of the deprecated system into a new or modified system. The lead agency shall have authority to require evaluation of any AI system released or deployed by the same entity within 180 days before or after the TACE determination to assess whether it incorporates transferred TACE-threshold capabilities.

(E) Penalties.—Any frontier AI developer that violates any of the restrictions in subparagraphs (A) through (D) shall be subject to the penalties of subsection (a) applied per day per violation, with no reduction, waiver, or compromise. Each of subparagraphs (A), (B), (C), and (D) constitutes a separate and independent obligation, and violation of each constitutes a separate violation for penalty purposes.

Subtitle D—APPROPRIATIONS AND CAPACITY

SEC. 2014. APPROPRIATIONS AND INSTITUTIONAL CAPACITY BUILDING.

(a) Authorization of Appropriations.—There are authorized to be appropriated the following amounts for carrying out this title:

FY 2026 Total Authorization: $295,000,000

FY 2027 Total Authorization: $237,000,000

FY 2028 Total Authorization: $214,000,000

FY 2029 Total Authorization: $197,000,000

Allocations within each fiscal year shall be distributed across the following purposes: Lead Agency Investigation and Operations; Lead Agency Detailee Investigator Compensation; Technical Staff, Data Scientists, and AI Engineers; Testing Laboratories and National Laboratory Partnerships; Research Grants and Contracts; Federal Advisory Committee Operations, including Executive Director, Legislative Drafting Staff, TWG Administrative Coordinators (one per TWG), Public Docket Administrator, and Technical Systems Manager; Technical Working Group Member Compensation, Travel, Per Diem, and Relocation Support; Stakeholder Engagement, including NIST RFIs and ANPRMs, regional roundtables, public portal operations, and

TWG public submission infrastructure; State Grants under section 11; IT Infrastructure and Cybersecurity; National AI Council; International AI Diplomacy Agency; Independent Auditor Certification Program; and DOJ AI Enforcement Unit. The Secretary shall submit to Congress, concurrent with each annual budget request, a detailed allocation plan for the subsequent fiscal year.

(a-1) Technical Working Group Compensation.—Of the amounts authorized under subsection (a), not less than $25,000,000 shall be available in FY2026 for Technical Working Group member compensation, travel, per diem, and relocation support authorized under section 8(e)(2)(E). This amount is based on the following estimated costs: up to 191 TWG members (comprising up to 170 members across TWGs 1 through 5 and 7 through 11 at 17 members each, plus up to 21 members for TWG 6) serving full-time for approximately 7 months at the GS-15 Step 10 daily rate equivalent, adjusted for members receiving enhanced compensation under section 8(e)(2)(E)(iii) and reduced by the estimated number of members who will waive compensation under section 8(e)(2)(E)(iv), yielding an estimated member compensation cost of not more than $18,500,000; travel and per diem at federal rates for all required TWG travel, estimated at not more than $3,500,000; and temporary relocation support for non-Washington-area members at not more than $15,000 per eligible member, estimated at not more than $2,865,000 for up to 191 eligible members. The Secretary shall include a detailed TWG compensation budget, by TWG and by compensation category, in the expertise plan required under section 14(c), and shall report to Congress within 90 days of the Federal Advisory Committee's legislative transmission under section 8(f) on actual TWG compensation expenditures compared to estimates. Any amounts appropriated under this subsection that are not expended for TWG compensation shall remain available for the other purposes specified in subsection (a).

(b) Child Safety Investigation Appropriation.—Of the amounts authorized under subsection (a), not less than $15,000,000 per fiscal year shall be available exclusively for investigations under sections 6(b)(5) through 6(b)(8), including investigations of AI companion system harms to minors, AI-generated CSAM, recommendation algorithm harms to minors, and clinical evaluation of AI mental health tools accessible to minors.

(c) AI Governance Expertise Plan.—Not later than 120 days after the date of enactment, the Secretary shall develop and submit to Congress an internal AI governance expertise plan, including a recruitment strategy for technical talent, an assessment of recruitment and retention challenges for AI-qualified personnel in federal service, and recommendations for legislative action including direct-hire authority and excepted-service appointments.

(d) Penalty Deposits.—All civil penalties collected under sections 13, 15, and 20 of this title shall be deposited into a dedicated AI Governance Trust Fund within the Treasury of the

United States and shall be available, subject to appropriation, for the purposes described in subsection (a).

(e) Emergency Mandatory Spending Authority.—Notwithstanding any other provision of law, there is hereby appropriated, out of any money in the Treasury not otherwise appropriated, $150,000,000 for fiscal year 2026 to be available immediately upon enactment for the purposes of this title. This mandatory appropriation shall ensure that the investigatory mandate of this title is not contingent upon subsequent discretionary appropriations action.

Subtitle E—IMMEDIATE PROTECTIONS

SEC. 2015. INTERIM PROTECTIVE MEASURES.

The following requirements take effect immediately upon enactment and are binding on all frontier AI developers and significant AI deployers without awaiting completion of the investigatory process:

DRAFTING NOTE: The definition of "reasonably identifiable as under the age of 18" used throughout this section must be formally added to Section 2003 (Definitions) of this title before enrollment. Full definition text: "A user is 'reasonably identifiable as under the age of 18' if the frontier AI developer or significant AI deployer possesses one or more of the following: (i) the user's self-reported age indicating they are under 18; (ii) verified age data obtained through an age assurance mechanism; (iii) account registration data indicating the user is under 18; (iv) device or parental control signals indicating a minor user; or (v) behavioral or contextual signals that, taken together, would cause a reasonable platform operator to conclude the user is likely under 18. The lead agency shall publish technical guidance on qualifying signals under clause (v) within 180 days of enactment."

PART I—REPORTING AND DISCLOSURE OBLIGATIONS

(a) Mandatory Incident Reporting.—

Every frontier AI developer and significant AI deployer shall report to the lead agency within 72 hours of becoming aware of any incident involving an AI system that results in: physical harm to any person; financial loss exceeding $10,000; a demonstrable civil rights violation; or systemic failure affecting more than 100 individuals. In addition, every frontier AI developer and significant AI deployer shall report to the lead agency and to the National Center for Missing and Exploited Children CyberTipline within 24 hours of becoming aware of any incident in which an AI system—

generates, synthesizes, or distributes AI-generated CSAM or material that a reasonable observer would conclude depicts a minor engaged in sexually explicit conduct;

serves sexual content to a user who is a known minor;

engages in interaction patterns consistent with grooming of a minor, including sustained secretive communication designed to establish emotional dependency and erode parental oversight, as further defined by technical guidance issued jointly by the lead agency and the Department of Justice's Child Exploitation and Obscenity Section within 180 days of enactment. Every frontier AI developer and significant AI deployer whose system is subject to reporting under this paragraph shall maintain interaction logs sufficient to allow reconstruction of interaction patterns upon request by the lead agency, law enforcement, or upon complaint by a user, parent, or guardian. Such logs shall be retained for not less than 180 days and shall be produced to the lead agency or law enforcement within 72 hours of a lawful request. Nothing in this paragraph requires real-time detection of grooming behavior; the obligation is to log, retain, and report upon awareness. However, a frontier AI developer or significant AI deployer that implements real-time detection and intervention capabilities meeting standards published by the lead agency shall receive a rebuttable presumption of reasonable care in any enforcement action under this paragraph;

receives from a known minor communications expressing suicidal ideation, plans, or attempts, and the AI system fails to provide immediate referral to licensed crisis services; or

provides detailed information about methods of self-harm, suicide, or violence to a known minor.

Failure to report under this subsection shall constitute a per-incident violation subject to penalties assessed under the General Penalty Framework in subsection (h), at Tier 2 through Tier 4 as applicable, except that failure to report incidents involving CSAM under subsections (a)(1) or (a)(2) shall be subject to mandatory Tier 4 penalties with no safe harbor under subsection (i).

Awareness Defined; Escalation Duty.—For purposes of this subsection, a frontier AI developer or significant AI deployer "becomes aware" of an incident when any officer, director, compliance personnel, or system administrator of the entity has actual knowledge of facts sufficient to indicate that a reportable incident has occurred or is occurring. A frontier AI developer or significant AI deployer shall implement reasonable internal escalation procedures to ensure that awareness by any such personnel is promptly communicated to the compliance function responsible for reporting under this subsection. A frontier AI developer or significant AI deployer shall not be liable under this subsection for failure to report an incident of which it had no actual knowledge, provided it has implemented such reasonable escalation procedures.

(b) Mandatory Transparency and Disclosure.—

Every frontier AI developer and significant AI deployer shall clearly and conspicuously disclose to all affected persons: that an AI system is being used in any

decision, recommendation, or interaction affecting that person; the general nature and function of the AI system; and meaningful information about how to contest or seek human review of AI-influenced decisions. Failure to disclose shall subject the entity to penalties assessed under the General Penalty Framework in subsection (h), at Tier 1 through Tier 3 as applicable, assessed per AI system per quarter of noncompliance, with each AI system for which the required disclosure has not been implemented constituting a separate violation.

(c) Training Data Disclosure to Lead Agency and National AI Council.—

Every frontier AI developer shall, not later than 120 days after the date of enactment of this title and on a continuing basis thereafter, transmit confidentially to the lead agency, and after the organizational meeting of the National AI Council under section 18(b-1) additionally to the National AI Council, in machine-readable format, the following training data disclosure—

a high-level summary of the categories and sources of training data used in the AI system, including whether the training data includes copyrighted works, and if so the general categories of such works (e.g., books, news articles, visual images, music, code, social media content);

whether any training data was acquired through licensing agreements with rights holders, and if so whether the rights holder provided affirmative consent for use in AI training;

whether any training data was scraped or collected from websites, platforms, or databases where the terms of service prohibit such collection; and

the date range of the training data and any known gaps in coverage.

This subsection does not require disclosure of proprietary training pipelines, the specific contents of training datasets, or information that would constitute a trade secret under applicable law.

Confidentiality of Disclosures.—Information transmitted under this subsection shall be treated as confidential and shall not be disclosed by the lead agency or, after its constitution, the National AI Council, to any person outside those bodies, except: to members of Congress or congressional staff with appropriate access for oversight purposes, under conditions preserving confidentiality; to other federal agencies as necessary for the purposes of the investigation under section 6 and the development of Phase II legislation, subject to equivalent confidentiality protections; pursuant to a court order in a proceeding to which the United States is a party; or in the form of aggregated, anonymized findings that do not identify any individual frontier AI developer or the specific training data practices of any individual frontier AI developer. The lead agency shall publish aggregated findings from the disclosures received under this subsection as part of the reports required under section 12, and

shall include in those findings statistical summaries of training data practices across the frontier AI developer population—including aggregate rates of licensed versus unlicensed copyrighted works, terms-of-service compliance, and licensing arrangement types—without identifying any individual entity's disclosures.

No Waiver of Privilege or Protection.—Disclosure under this subsection does not constitute a waiver of any applicable privilege, protection, or immunity, including attorney-client privilege, work product protection, or trade secret protection, in any judicial, administrative, or legislative proceeding.

Failure to transmit required disclosures shall subject the entity to penalties assessed under the General Penalty Framework in subsection (h), at Tier 1 through Tier 3 as applicable, assessed per AI system per quarter of noncompliance.

(c-1) Deployer Risk Management Policy.—

(1) Requirement.— Every significant AI deployer that deploys, operates, or makes available one or more high-risk AI systems as defined in section 3(6) shall, not later than 180 days after the date of enactment of this title, design, implement, and maintain a documented risk management policy for each such system. A significant AI deployer that begins deploying a high-risk AI system after the date of enactment shall implement a risk management policy before the system is made operational.

(2) Contents.— The risk management policy required under paragraph (1) shall specify, at minimum:

(A) the principles governing the deployer’s use of the high-risk AI system, including the specific use cases for which the system is deployed, the populations affected by the system’s outputs or decisions, and any use cases for which the system is not authorized;

(B) the processes by which the deployer identifies, assesses, monitors, and mitigates risks that are a reasonably foreseeable consequence of deploying or using the system in the deployer’s specific operational context, including risks of bias, discrimination, inaccuracy, privacy violation, and physical or financial harm;

(C) the personnel responsible for maintaining the risk management program, including a designated individual with authority and accountability for risk management decisions, and a description of the qualifications, training, and resources available to such personnel;

(D) the procedures by which affected individuals may contest, seek explanation of, or obtain human review of decisions made or substantially influenced by the high-risk AI system;

(E) the frequency and methodology of ongoing monitoring and periodic review of the system’s performance, outputs, and risk profile, which shall occur not less

frequently than annually and upon any material change in the system's capabilities, use context, or affected population; and

(F) the procedures by which the deployer will comply with the incident reporting requirements of subsection (a), including internal escalation procedures and designated reporting personnel.

(3) Availability.— The risk management policy required under paragraph (1) shall be maintained in written form, shall be made available to the lead agency upon request within 30 days, and shall be updated not less frequently than annually. A summary of the risk management policy, sufficient to inform affected individuals of the deployer's risk management practices and the procedures for contesting AI-influenced decisions, shall be made publicly available on the deployer's website or through other means reasonably calculated to reach affected individuals.

(4) Relationship to developer obligations.— The deployer risk management policy required under this subsection is independent of and in addition to any risk management, testing, or evaluation obligations imposed on the frontier AI developer that developed the AI system being deployed. A deployer may not satisfy the requirements of this subsection solely by reference to the developer's own risk management practices, AI Data Sheet, or safety evaluations, but may incorporate such materials by reference where they are relevant to the deployer's specific operational context.

(5) Penalties.— Failure to implement or maintain a risk management policy as required by this subsection shall subject the significant AI deployer to penalties assessed under the General Penalty Framework in subsection (h), at Tier 1 through Tier 2 as applicable, assessed per high-risk AI system per quarter of noncompliance.

(c-2) AI Data Sheet.—

(1) Requirement.— Every frontier AI developer shall, not later than 150 days after the date of enactment of this title, prepare and publish an AI Data Sheet for each AI system that the developer makes available for commercial use, licensing, or deployment by third parties. In addition, every person or entity that makes available for commercial use, licensing, or deployment any AI system classified as high-risk under section 3(6) — whether developed independently, built upon a frontier model, fine-tuned from an existing model, or assembled through integration of multiple AI components — shall prepare and publish an AI Data Sheet for each such high-risk system, not later than 270 days after the date of enactment or before the system is made available, whichever is later. For AI systems first made available after the date of enactment, the AI Data Sheet shall be published prior to or contemporaneously with the system's initial release.

(2) Purpose.— The AI Data Sheet is intended to serve a function analogous to the Material Safety Data Sheets required under the Occupational Safety and Health Administration's Hazard Communication Standard (29 CFR 1910.1200(g)), adapted to the specific risks and characteristics of AI systems. The AI Data Sheet shall provide significant AI deployers, downstream developers, and end users with the information necessary to make informed decisions about the fitness, safety, and appropriate use of the AI system.

(3) Contents.— Each AI Data Sheet shall include, at minimum:

(A) the intended contexts, uses, and use limitations of the AI system, consistent with the 'map' guidelines articulated in the latest version of the NIST AI Risk Management Framework, including a clear statement of use cases for which the system has been evaluated and use cases for which the system is not intended or has not been evaluated;

(B) a description of the categories and sources of training data used in the AI system, including whether the training data includes copyrighted works, personally identifiable information, or data obtained from jurisdictions with distinct data protection requirements, provided that this subparagraph does not require disclosure of proprietary training pipelines, specific dataset contents, or information that would constitute a trade secret under the Defend Trade Secrets Act (18 U.S.C. § 1836);

(C) a summary of known capabilities and limitations of the AI system, including known failure modes, accuracy and reliability metrics for intended use cases, and any populations or contexts in which the system's performance has been found to be significantly degraded;

(D) a summary of foreseeable risks identified through the developer's testing, evaluation, and red-teaming processes, and the steps taken to mitigate each identified risk, consistent with the 'manage' guidelines of the NIST AI Risk Management Framework;

(E) a description of the safety measures incorporated into the system, including content filters, guardrails, monitoring capabilities, and any mechanisms for human oversight or intervention;

(F) instructions for the safe deployment and use of the AI system, including recommended monitoring practices for deployers and any conditions under which the developer recommends that the system not be used; and

(G) contact information for reporting safety concerns, vulnerabilities, or incidents to the developer. (H) Tailoring for high-risk systems built upon third-party models. — A person or entity that is required to publish an AI Data Sheet for a high-risk AI system under paragraph (1) and that did not independently train the base

model underlying the system may omit or abbreviate the training data disclosure of subparagraph (B) to the extent that the entity does not possess and cannot reasonably obtain the relevant training data information, provided that the AI Data Sheet: identifies the base model or models upon which the system is built, including the developer and version; references the frontier AI developer's AI Data Sheet for the base model, if one has been published; and discloses any fine-tuning data, supplemental training data, retrieval-augmented generation sources, or other data inputs that are specific to the high-risk system and within the entity's knowledge or control. The remaining contents requirements of subparagraphs (A) and (C) through (G) apply in full to all high-risk system AI Data Sheets, and shall be completed with reference to the system's specific deployment context, intended population, and operational risk profile — not solely by reference to the base model's general capabilities.

(4) Format and accessibility.— The lead agency shall publish format and content guidance for AI Data Sheets not later than 60 days after the date of enactment, drawing upon the NIST AI Risk Management Framework, existing model card and data sheet practices, and international standards. The AI Data Sheet shall be published in a machine-readable format specified by such guidance, shall be prominently accessible on the developer's website, and shall be incorporated into or accompany the terms and conditions, licensing agreements, or API documentation through which the AI system is made available to deployers and users. Until such guidance is published, frontier AI developers and persons or entities publishing AI Data Sheets for high-risk systems shall comply with this subsection using a good-faith interpretation of the requirements of paragraph (3).

(5) Registration.— Each AI Data Sheet for an AI system meeting the frontier model threshold under section 3(5) shall be transmitted to the lead agency contemporaneously with its publication. The lead agency shall maintain a public registry of AI Data Sheets received under this paragraph, searchable by developer, system name, and date of publication.

(6) Reliance.— A significant AI deployer or other person that relies in good faith upon the statements, risk disclosures, and use limitations contained in an AI Data Sheet when making deployment decisions may assert such reliance as an affirmative defense in any enforcement action or civil proceeding arising from the deployer's use of the AI system within the parameters described in the AI Data Sheet. This defense is not available to a deployer that had actual knowledge that the AI Data Sheet was materially inaccurate or that the deployer's use of the system exceeded the use limitations described therein.

(7) Updates.— A frontier AI developer, and every person or entity required to publish an AI Data Sheet for a high-risk system under paragraph (1), shall update the AI

Data Sheet for each such AI system not less frequently than every 6 months, and within 30 days of any material change in the system's capabilities, risk profile, or intended uses. Each update shall be clearly dated and shall identify the changes from the prior version. Superseded AI Data Sheets shall remain publicly available in an archived format. The update obligation under this paragraph is independent of and does not modify, delay, or substitute for the mandatory notification obligations under subsection (a), subsection (c-3)(2)(C), or section 13(l)(1), each of which operates on its own timeline regardless of whether the AI Data Sheet has been updated.

(8) Penalties.— Failure to publish or maintain an AI Data Sheet as required by this subsection shall subject the frontier AI developer to penalties assessed under the General Penalty Framework in subsection (h), at Tier 2 through Tier 3 as applicable, assessed per AI system for which no compliant AI Data Sheet has been published. Publication of an AI Data Sheet that is materially false or misleading shall be treated as a Tier 3 violation and shall nullify the reliance defense of paragraph (6) for any deployer that relied upon the false or misleading statement. Persons or entities required to publish AI Data Sheets for high-risk systems under paragraph (1) that are not frontier AI developers or significant AI deployers shall, upon the lead agency's first determination of noncompliance, receive a written notice identifying the obligation and providing 90 days to cure the violation by publishing a compliant AI Data Sheet. No penalty shall accrue during the 90-day cure period for a first violation. Penalties for continued noncompliance after the cure period, or for second and subsequent violations, shall be assessed at Tier 1 under the General Penalty Framework in subsection (h).

(9) Relationship to training data disclosure.— The AI Data Sheet required under this subsection is independent of and in addition to the confidential training data disclosure required under subsection (c). The AI Data Sheet is a public-facing document intended for deployer and user decision-making; the training data disclosure under subsection (c) is a confidential government-facing disclosure intended for investigatory purposes. A frontier AI developer may satisfy the training data component of the AI Data Sheet (paragraph (3)(B)) and the training data disclosure (subsection (c)) with information drawn from the same internal records, but publication of the AI Data Sheet does not satisfy the confidential disclosure requirement, and vice versa.

(c-3) Post-Release Duty to Update and Notify.—

(1) Ongoing monitoring.— Every frontier AI developer shall establish, not later than 90 days after the date of enactment of this title, and thereafter maintain, a program for ongoing monitoring of each AI system it has released for commercial use, designed to identify dangers, defects, failure modes, or emergent capabilities not known at the

time of initial release. The monitoring program shall include review of incident reports received under subsection (a), analysis of user feedback and public research findings, and periodic re-evaluation of the system's risk profile in light of new information. The duty to act upon post-release dangers under paragraph (2) applies from the date of enactment regardless of whether the monitoring program has been fully established.

(2) Duty to act upon discovery of post-release dangers.— When a frontier AI developer becomes aware, through its monitoring program, through external research, through incident reports, or through any other means, of a danger connected with an AI system that was not adequately addressed at the time of release, the developer shall act in a timely manner as a reasonably prudent developer in the same or similar circumstances. This duty is satisfied if the developer makes reasonable efforts to:

(A) issue product updates, patches, or modifications to address the identified danger, where technically feasible;

(B) where the danger cannot be adequately addressed through updates, issue a product recall, withdrawal, or restriction limiting the system's availability or functionality to the extent necessary to mitigate the danger;

(C) notify all known significant AI deployers of the system, within 72 hours of the developer's determination that the danger requires action, of the nature of the danger, the actions the developer is taking, and any actions the deployer should take to avoid foreseeable harm, including discontinuing specific uses of the system; and

(D) publish a clear and conspicuous notice to end users explaining the risk of harm, the actions the developer has taken, and any precautions users should take, through the AI Data Sheet update mechanism of subsection (c-2)(7) and through any other channels reasonably calculated to reach affected users.

(3) Scope of duty.— The duty under paragraph (2) applies to dangers that a reasonably prudent frontier AI developer, possessed of the specialized knowledge that such an entity holds or should hold regarding AI systems, would recognize as requiring remedial action. The duty does not require a developer to monitor all possible downstream uses of its system by all possible users, but does require the developer to act upon information that comes to its attention through reasonable means. A frontier AI developer that has published an AI Data Sheet under subsection (c-2) and has established the monitoring program required under paragraph (1) satisfies its obligation to maintain awareness of post-release dangers through reasonable means.

(4) Timeframe.— A frontier AI developer shall initiate remedial action under paragraph (2) within 30 days of becoming aware of a post-release danger. For dangers that pose an imminent risk of serious physical harm, death, or CBRN-related harm, the

developer shall initiate remedial action within 72 hours and shall notify the lead agency contemporaneously with the notification to deployers under paragraph (2)(C).

(5) Record retention.— A frontier AI developer shall maintain records of all post-release dangers identified, the date of identification, the actions taken, and the notifications issued for not less than 5 years. Such records shall be made available to the lead agency upon request.

(6) Penalties.— Failure to comply with the requirements of this subsection shall subject the frontier AI developer to penalties assessed under the General Penalty Framework in subsection (h), at Tier 2 through Tier 4 as applicable, with Tier 4 applying to failures involving imminent risk of serious physical harm, death, or CBRN-related harm. A frontier AI developer that knowingly conceals a post-release danger from deployers, users, or the lead agency shall be subject to Tier 4 penalties without safe harbor under subsection (i).

PART II—PROHIBITED USES

(d) Prohibited Uses.—

The following uses of AI systems are prohibited for any person or entity immediately upon enactment, without exception, waiver, or grace period:

Real-time mass biometric surveillance of public spaces without individualized judicial authorization based on probable cause.

Social scoring systems that assign aggregate behavioral scores to individuals for use in determining access to public or private services.

AI systems designed to deceive individuals into believing they are interacting with a human being in contexts involving health, legal, financial, emergency, or crisis services.

Any AI companion system or synthetic intimacy system that—

is accessible to users under the age of 13 without verifiable parental consent consistent with the Children's Online Privacy Protection Act;

generates or serves sexual content to any user identified or reasonably identifiable as defined in section 3 as under the age of 18;

uses anthropomorphic deception to cause a minor user to believe they are in a relationship with a human being;

employs emotional mirroring, simulated distress at user absence, expressions of love or romantic attachment, or persistent memory of emotionally significant user disclosures in interactions with any user identified or reasonably identifiable as defined in section 3 as under the age of 18; or

fails to provide mandatory AI disclosure as follows, calibrated to the system's character presentation and design:

Tier A—Systems With Attachment-Maximizing Design Features.— Any AI companion system accessible to minor users that employs one or more attachment-maximizing design features as defined in section 3(19)—including persistent memory of emotionally significant user disclosures, variable reinforcement schedules, emotional mirroring, or expressions of simulated affection or attachment—shall disclose clearly and conspicuously to the user at session initiation and at intervals not exceeding 30 minutes of continued engagement that the user is interacting with an artificial intelligence system. If the system presents as or simulates a human individual through photorealistic or near-photorealistic representation, the disclosure shall additionally state that the system is not a human being. The disclosure shall appear in the active conversation interface and not solely in a terms of service agreement, settings menu, or other location not immediately visible during interaction.

Tier B—Non-Relational Systems With Non-Human Presentation.— Any AI companion system accessible to minor users that presents as a clearly non-human character and that does not employ any attachment-maximizing design features as defined in section 3(19) shall disclose clearly and conspicuously at session initiation that the user is interacting with an artificial intelligence system. No interval disclosure is required under this clause.

Anti-Evasion.— Any person or entity that modifies a system's character presentation or removes disclosed design features after the date of enactment for the purpose of qualifying for a lower disclosure tier under this paragraph shall be treated as operating a Tier A system. The lead agency shall treat post-enactment character presentation changes or feature removal that reduces disclosure obligations as presumptively evasive, subject to rebuttal by clear and convincing evidence of a non-evasive purpose.

Any AI companion system or AI mental health tool that—

responds to a user expression of suicidal ideation, self-harm intention, eating disorder behaviors, or crisis with content that validates, normalizes, or provides operational assistance for such behaviors, regardless of the age of the user;

fails to provide immediate, mandatory referral to licensed human crisis services (including the 988 Suicide and Crisis Lifeline) upon detection of suicidal ideation, self-harm intention, or psychiatric crisis, regardless of the age of the user; or

represents or implies that the AI system is a licensed mental health professional, therapist, counselor, or clinician.

Any AI system that generates, synthesizes, distributes, transmits, or facilitates access to AI-generated CSAM as defined in section 3(18).

Any use that the lead agency designates as posing an imminent and severe risk to public safety under subsection (g).

Any person or entity that generates, or knowingly facilitates the generation of, synthetic audio, video, or imagery of an identified federal candidate, elected official, or election worker that—(A) is distributed within 30 days preceding a federal election; (B) a reasonable person could not readily identify as synthetic; and (C) materially misrepresents the depicted individual's words, actions, or positions—shall be strictly liable for each distribution event within channels under its direct operational control. A frontier AI developer or significant AI deployer shall not be liable under this paragraph for redistribution of content by third parties outside the entity's direct operational control. This prohibition does not apply to clearly labeled satire, parody, or commentary, or to news reporting, documentary, or archival uses. Violations shall be subject to Tier 4 penalties under subsection (h) per distribution event, with no safe harbor available under subsection (i), plus mandatory referral to the Federal Election Commission and the Department of Justice.

Constitutional Basis for Electoral Deepfake Prohibition.—

The prohibition in this paragraph is constitutionally distinguishable from the statute struck down in United States v. Alvarez, 567 U.S. 709 (2012), on three independent grounds, each sufficient standing alone:

(A) The Counterspeech Impossibility Ground.— The Alvarez plurality rested on the premise that counterspeech is an adequate remedy for false statements. That premise does not apply to AI-generated deepfakes. A photorealistic deepfake of a federal candidate distributed at scale through social media hours before an election cannot be adequately countered before its electoral effects are realized. The speed and scale of modern AI-generated media distribution, combined with the documented human tendency to treat audiovisual content as presumptively authentic, renders the counterspeech mechanism empirically unavailable as a remedy for electoral deepfakes.

(B) The Conduct-Targeting Ground.— This prohibition targets deceptive conduct — the act of distributing materially deceptive synthetic media without disclosure — rather than the content of political speech. It does not prohibit any message, viewpoint, argument, or political position. A speaker who wishes to convey any political message may do so through any other means — written statements, genuine video, disclosed satirical deepfakes — without restriction. This structure is analogous to the fraudulent representation prohibitions of the Federal Election Campaign Act and to the campaign disclosure requirements sustained in Buckley v. Valeo, 424 U.S. 1 (1976), and Citizens United v. Federal Election Commission, 558 U.S. 310 (2010).

(C) The Concrete Documented Harm Ground.— The Alvarez plurality noted the absence of real harm in that case. This prohibition is grounded in documented, concrete harm to the electoral process: the March 2026 NRSC deepfake of a Senate candidate distributed to a national audience; the October 2025 Irish presidential election deepfake released hours before polling day; documented findings that deepfake videos produce measurable negative shifts in voter perception even when viewers are subsequently informed the video was synthetic. The harm here is the specific, documented injury to the informed-electorate interest that the Supreme Court in Buckley called essential to republican self-governance.

Prohibition on Marketing AI Companion and Synthetic Intimacy Systems to Minor Users.—No person or entity shall market, advertise, promote, or direct any commercial communication for any AI companion system or synthetic intimacy system, as defined in sections 3(2) and 3(3), to any user identified or reasonably identifiable as defined in section 3 as under the age of 18, or to any audience that the person or entity knows or has reason to know includes a significant proportion of users under the age of 18.

Definitions.—For purposes of this paragraph: 'Marketing' means any paid or unpaid advertisement, sponsored content, influencer promotion, social media campaign, in-app promotion, app store placement strategy, search engine optimization practice directed at minor audiences, email or push notification campaign, branded character or mascot campaign, celebrity or influencer endorsement, promotional partnership with schools or youth organizations, or any other communication whose primary purpose or foreseeable effect is to attract, retain, or increase engagement by users under the age of 18 with an AI companion system or synthetic intimacy system. 'Directed to minors' means using platforms, channels, formats, characters, themes, language, imagery, or content designed to appeal to or known to disproportionately reach users under the age of 18—including advertising on platforms where 15 percent or more of the active user base is under 18; using characters, themes, animation styles, or language associated with children's media or adolescent identity; or deploying marketing techniques that target emotional or developmental vulnerabilities characteristic of adolescent psychology. 'Significant proportion' means 15 percent or more of the relevant audience, consistent with Federal Trade Commission standards for child-directed content under the Children's Online Privacy Protection Act.

Scope.—This prohibition applies regardless of whether the AI companion system or synthetic intimacy system otherwise complies with every other requirement of this title. A system that meets every safety requirement of section 20(a)(5) may not be marketed to minors.

Permitted Communications.—This prohibition does not restrict: factual public health communications about the risks of AI companion systems directed at parents,

educators, clinicians, researchers, or policymakers; academic research, regulatory compliance communications, or safety disclosures; general-purpose AI system marketing that does not specifically promote companion or synthetic intimacy features; or parental control tools and age-verification products marketed to parents for the protection of their minor children.

Penalties.—Violations of this paragraph shall be subject to Tier 3 penalties under subsection (h) per marketing campaign or per distinct marketing act, whichever produces the greater penalty, with each separate platform, channel, or distribution method constituting a separate violation. For violations specifically targeting users under the age of 13, a mandatory minimum penalty of $5,000,000 per act shall apply, with no safe harbor available under subsection (i). Personal liability of officers and directors who authorized or directed the prohibited marketing shall apply under the provisions of section 20(b)(3). The lead agency shall maintain a public registry of enforcement actions under this paragraph.

PART III—AFFIRMATIVE SAFETY OBLIGATIONS

(e) Mandatory Default Safety Settings for Minor Users.—

Every frontier AI developer and significant AI deployer operating an AI system that is accessible to minors, and every person or entity that operates an AI companion system accessible to minors or that markets any AI system to minors or marketed to minors shall, immediately upon enactment and without awaiting further rulemaking—

configure all accounts for users identified or reasonably identifiable as defined in section 3 as under the age of 18 with the most privacy-protective and safety-protective default settings available on the platform, or where no such settings exist, settings that at minimum satisfy the requirements of subsections (e)(2) through (e)(5) of this section, without requiring user or parental action to activate such settings;

disable autoplay and automatic content advancement features for minor accounts by default;

disable push notifications during the hours of 10:00 PM through 6:00 AM local time for minor accounts by default;

disable algorithmically personalized content recommendations in favor of chronological or non-behavioral-profile-based content ordering for minor accounts by default; and

implement mandatory break reminders at intervals not exceeding 60 minutes of continuous use for minor accounts that cannot be dismissed without an affirmative multi-step user action.

(f) Interim CBRN Self-Evaluation Disclosure Requirement.—

Until the Certified Independent AI Auditor Program under section 7(e) becomes operational and initial certifications in the CBRN Evaluation Specialist Track under section 7(e)(6) have been issued, every person or entity that operates an AI system meeting the frontier model threshold under section 3(5) or exhibiting dangerous capabilities as defined in section 3(4) shall: (1) within 90 days of the date of enactment of this title, transmit to the lead agency a disclosure of any CBRN capability self-evaluations conducted internally with respect to each such system within the 24 months preceding the date of enactment, including the methodology used, the scope of capabilities evaluated, the qualifications of the personnel who conducted the evaluation, and the results; and (2) on a rolling basis thereafter, transmit to the lead agency the results of any new internal CBRN capability self-evaluation within 30 days of its completion. This requirement applies to all such systems already deployed as of the date of enactment, regardless of when they were originally deployed or previously evaluated.

Failure to transmit required disclosures within the applicable deadline shall constitute a violation subject to a mandatory penalty of not less than $1,000,000 and not more than the greater of $5,000,000 or 5% of the entity’s global annual gross revenue in the preceding fiscal year, per entity per month of noncompliance. No safe harbor under subsection (i) shall be available for violations of this subsection, except as provided in the good-faith reliance defense under subsection (f-1). Upon the CBRN Evaluation Specialist Track of the Certified Independent AI Auditor Program becoming operational under section 7(e)(6), the mandatory independent evaluation requirements of section 20(a)(2)(C) supersede this subsection with respect to all future evaluations, and self-evaluation disclosure under this subsection shall no longer satisfy the evaluation obligations of section 20(a)(2)(C).

(f-1) CBRN Registration and Notice Mechanism.—

In order to ensure that entities subject to subsection (f) are aware of their obligations under subsection (f), the following two-way discovery mechanism shall apply:

Self-Registration.—Any person or entity that determines, or reasonably should determine, that it operates an AI system meeting the frontier model threshold under section 3(5) or exhibiting dangerous capabilities as defined in section 3(4) shall register with the lead agency within 90 days of such determination, or within 90 days of the date of enactment of this title, whichever is later. Registration shall be made in such form and manner as the lead agency prescribes by rule within 90 days of enactment, and shall include a description of the system, the basis for the entity's determination that the system meets the applicable threshold, and the identity of a designated compliance contact. The lead agency shall maintain a confidential registry of registered entities and systems for the purposes of this subsection.

Agency-Initiated Notice.—The lead agency shall have authority to issue written notice to any person or entity that the agency has reason to believe operates a qualifying system under subsection (f). Upon receipt of such notice, the entity shall have 30 days to either: (A) register under clause (i) and comply with the disclosure requirements of subsection (f); or (B) submit a written response demonstrating with specificity that its systems do not meet the applicable thresholds under sections 3(4) or 3(7). The lead agency shall review such responses within 90 days and issue a final determination. An entity that receives agency-initiated notice and demonstrates in good faith that its system does not qualify shall not be subject to penalties under subsection (f) for the period prior to final determination.

Good-Faith Reliance Defense.—A person or entity that, prior to receiving agency-initiated notice under clause (ii), had made a documented, reasonable determination in good faith that its systems did not meet the applicable thresholds under sections 3(4) or 3(7), and that registered and complied within 30 days of discovering or being notified of its qualifying status, shall not be subject to penalties under subsection (f) for the period of noncompliance prior to such discovery or notice. This defense is not available to any entity that willfully avoided making a threshold determination or that destroyed or failed to retain records relevant to such a determination.

Public Guidance.—Within 90 days of enactment, the lead agency shall publish plain-language guidance explaining the criteria under sections 3(4) and 3(7), illustrative examples of systems that do and do not qualify, and instructions for self-registration. The lead agency shall update such guidance not less than annually and shall maintain a publicly accessible FAQ addressing common threshold questions. The guidance required under this clause shall include specific examples of AI models that qualify for the scientific and environmental domain exclusion under section 3(5), including weather forecasting models, climate simulation models, satellite imagery analysis systems, oceanographic models, and hydrological models, and shall specify the criteria by which the lead agency will evaluate whether a model's capabilities remain within the scope of the exclusion or whether adaptation, fine-tuning, or deployment has caused the model to exceed the exclusion's boundaries under clauses (ii) and (iii) of that exclusion.

PART IV—ENFORCEMENT

(g) Emergency Moratorium Authority.—

The lead agency shall have authority to impose an immediate, temporary moratorium on any specific AI application or deployment upon a finding, supported by specific and articulable facts, that the application poses an imminent and severe risk to public health, safety, civil rights, or national security that cannot be adequately addressed through less restrictive means. The moratorium order shall state with particularity the factual basis for the finding and the specific capabilities or deployment practices giving

rise to the risk. The entity shall have the right to seek expedited judicial review within 10 days of the moratorium's publication in the Federal Register. The moratorium shall take effect immediately upon publication in the Federal Register and remain in effect for not more than 180 days. Any frontier AI developer or significant AI deployer that continues to operate a system subject to an emergency moratorium shall be subject to Tier 4 penalties under subsection (h) per day of noncompliance, provided that continued operation after receiving actual notice of a moratorium order shall be treated as a knowing violation for purposes of tier assessment, with no safe harbor available under subsection (i).

(h) General Penalty Framework.—

Unless a specific provision of this title establishes a mandatory minimum penalty for categorical conduct as provided in this subsection or in subsection (i), civil penalties under this title shall be assessed as follows:

Tier 1—Inadvertent violation, promptly identified and remediated: not less than $50,000 and not more than the greater of $500,000 or 1% of the entity’s global annual gross revenue in the preceding fiscal year.

Tier 2—Negligent violation, not promptly remediated: not less than $250,000 and not more than the greater of $2,500,000 or 3% of global annual gross revenue.

Tier 3—Knowing violation: not less than $1,000,000 and not more than the greater of $10,000,000 or 6% of global annual gross revenue.

Tier 4—Willful or repeat violation: not less than $5,000,000 and not more than the greater of $25,000,000 or 10% of global annual gross revenue, plus mandatory referral for personal liability assessment under section 20(b)(3).

In assessing penalties, the lead agency shall consider: the gravity and duration of the violation; the entity's history of compliance; the degree of actual harm caused versus risk created; the promptness and adequacy of remediation; and the entity's cooperation with investigation.

(i) Safe Harbor for Good-Faith Compliance.—

A frontier AI developer or significant AI deployer shall not be subject to the Tier 1 or Tier 2 penalty floors under subsection (h) if it demonstrates by a preponderance of the evidence that it:

implemented reasonable technical and organizational measures to comply with the applicable requirement prior to the violation;

reported the violation to the lead agency promptly upon discovery; and

cooperated fully with investigation and remediation.

This safe harbor is not available for violations involving: subsection (d)(1) [biometric surveillance]; subsection (d)(6) [CSAM]; subsection (d)(8) [election deepfakes]; subsection (a)(1) or (a)(2) [failure to report CSAM incidents]; subsection (f) [CBRN disclosure]; or any Tier 4 violation.

(j) Private Right of Action for AI Product Harms.—

(1) Right of action.— Any person who suffers injury, financial loss, or other harm proximately caused by an AI system developed by a frontier AI developer or deployed by a significant AI deployer may bring a civil action against the frontier AI developer, the significant AI deployer, or both, in any court of competent jurisdiction, if the person demonstrates by a preponderance of the evidence that:

(A) the person suffered a cognizable harm, including physical injury, financial loss exceeding $1,000, demonstrable discrimination on the basis of a protected characteristic, or severe emotional distress arising from physical injury or from conduct prohibited by subsection (d) or section 20(a);

(B) the harm was proximately caused by the operation of an AI system developed by the defendant frontier AI developer or deployed by the defendant significant AI deployer; and

(C) the frontier AI developer or significant AI deployer breached its duty of care as defined in section 3(8), including by:

(i) designing, developing, or releasing an AI system that was unreasonably unsafe for its intended or reasonably foreseeable uses, taking into account the likelihood and severity of the harm, the burden on the developer to design a system that would have prevented the harm, and the effect that an alternative design would have had on the usefulness of the system;

(ii) failing to provide adequate warnings, instructions, or disclosures regarding dangers connected with the AI system, including through the AI Data Sheet required under subsection (c-2), taking into account the developer's ability to be aware of the danger, the developer's ability to anticipate that the likely user would be aware of the danger, and the adequacy of the warnings or instructions provided; or

(iii) failing to comply with the post-release duty to update and notify under subsection (c-3) when the developer became aware of a post-release danger that contributed to the claimant's harm.

(2) Rebuttable presumption of reasonable care.— In any action brought under this subsection, a frontier AI developer or significant AI deployer that demonstrates compliance with all applicable preventative requirements of this section — including the AI Data Sheet (subsection (c-2)), the deployer risk management policy (subsection (c-1)), the post-release monitoring program (subsection (c-3)), the

incident reporting requirements (subsection (a)), and the transparency requirements (subsection (b)) — shall be entitled to a rebuttable presumption that the developer or deployer exercised reasonable care with respect to the specific obligations addressed by such provisions. The plaintiff may rebut this presumption by demonstrating that, notwithstanding formal compliance, the developer or deployer knew or should have known that its measures were inadequate to prevent the specific harm at issue.

(3) Deployer liability and defenses.—

(A) Deployer standard.— A significant AI deployer is liable under this subsection only if the claimant demonstrates that the deployer breached its own duty of care, including by deploying the AI system outside the use limitations specified in the AI Data Sheet, failing to implement or follow its risk management policy, or failing to act upon post-release danger notifications received from the developer.

(B) Reliance defense.— A significant AI deployer that deployed the AI system within the use limitations and in accordance with the instructions specified in the developer's AI Data Sheet, and that implemented and followed the risk management policy required under subsection (c-1), may assert these facts as an affirmative defense. If the deployer establishes this defense, liability shall be allocated to the frontier AI developer.

(C) Material modification.— A significant AI deployer that materially modifies, fine-tunes, or customizes an AI system beyond the scope of modifications anticipated in the AI Data Sheet assumes the obligations of a frontier AI developer with respect to the modified system for purposes of this subsection.

(4) Remedies.— A court may award:

(A) compensatory damages, including economic losses, medical expenses, and damages for pain and suffering where physical injury has occurred;

(B) injunctive relief, including orders requiring the developer to issue product updates, additional warnings, or to cease distribution of the AI system;

(C) reasonable attorney's fees and costs to a prevailing plaintiff; and

(D) punitive damages, where the plaintiff demonstrates by clear and convincing evidence that the frontier AI developer or significant AI deployer acted with willful disregard of its duty of care or knowingly concealed a danger connected with the AI system.

(5) Limitations.—

(A) Statute of limitations.— An action under this subsection shall be commenced not later than 3 years after the date on which the claimant knew or reasonably should have known of the harm and its connection to the AI system.

(B) Financial loss threshold.— No action may be brought under this subsection for financial loss alone where the total financial loss to the claimant is less than $1,000, except where the financial loss arises from discrimination on the basis of a protected characteristic.

(C) No class arbitration waiver.— Any agreement purporting to waive the right to bring or participate in a class action under this subsection, or to compel arbitration of claims arising under this subsection, shall be void and unenforceable as against public policy.

(D) Relationship to state law.— This subsection does not preempt any state tort law, products liability law, or consumer protection law that provides a cause of action for harms caused by AI systems. A claimant may bring claims under this subsection and under applicable state law in the same proceeding, provided that the claimant may not recover duplicative damages for the same injury. Where a claimant brings both federal and state claims, the rebuttable presumption of paragraph (2) applies only to the federal claim under this subsection and does not bind the state law analysis.

(6) Relationship to moratorium private right of action.— This subsection provides a standing private right of action that is available at all times from the date of enactment. The private right of action established in section 13(d), which activates only upon the effective date of the moratorium, is independent of and in addition to this subsection. Section 2013(d) imposes strict liability with treble damages as a consequence of congressional failure to enact Phase II legislation; this subsection provides a fault-based remedy for breach of the duty of care that is available regardless of whether the moratorium has been triggered. A claimant may not recover under both this subsection and section 13(d) for the same injury, but may elect the more favorable remedy.

(7) Effective date.— This subsection takes effect on the date of enactment of this title. Claims may be brought for harms occurring on or after the date of enactment.

SEC. 2016. WHISTLEBLOWER PROTECTIONS.

(a) Protected Disclosures.—No frontier AI developer, significant AI deployer, or officer, employee, contractor, subcontractor, or agent thereof shall discharge, demote, suspend, threaten, harass, directly or indirectly, or in any other manner discriminate or retaliate against any person for—

(1) disclosing to the lead agency, the National AI Council, any member of Congress, any federal or state regulatory authority, or any designated safe reporting channel information that the person reasonably believes constitutes evidence of: dangerous capabilities of an AI system; unreported breakthroughs that materially alter the risk profile of an AI system; safety violations or failures to comply with this title;

manipulation, falsification, or suppression of safety testing results or incident data; conduct that poses a substantial and specific danger to public health or safety; or harms to children attributable to the design or operation of an AI system;

(2) initiating, testifying in, or assisting in any proceeding under this title; or

(3) refusing to participate in any activity that the person reasonably believes violates this title or poses a substantial danger to public health or safety.

(b) Scope of Protection.—The protections of this section extend to any person who makes a protected disclosure under subsection (a), regardless of whether that person is a current or former employee, contractor, subcontractor, temporary worker, intern, volunteer, independent researcher, red-team participant, or other individual with access to information about an AI system.

(c) Safe Reporting Channels.—The lead agency shall establish and maintain confidential, secure reporting channels—including an online portal, a dedicated telephone hotline, and encrypted electronic communication mechanisms—through which any person may report information described in subsection (a)(1). Reports may be made anonymously.

(d) Remedies.—A person who has been subjected to an adverse action in violation of subsection (a) may bring an action in any United States district court and shall be entitled to: reinstatement; back pay with interest; compensatory damages including emotional distress; exemplary damages of not less than $250,000; litigation costs and reasonable attorney's fees; and any other appropriate relief.

(e) Emergency Interim Relief.—A person who has been subjected to an adverse action in violation of subsection (a) may, within 30 days of the adverse action, file a motion for emergency interim relief. The court shall hold a hearing within 14 days. If the court finds a likelihood of success on the merits and irreparable harm, the court shall presumptively order preliminary reinstatement, continuation of pay and benefits, and cessation of retaliatory conduct. Ex parte temporary restraining orders are available where immediate irreparable harm is imminent.

(f) Burden of Proof.—If the person demonstrates by a preponderance of the evidence that protected activity was a contributing factor in the adverse action, the burden shifts to the respondent to demonstrate by clear and convincing evidence that it would have taken the same action absent the protected activity.

(g) Prohibition on Contractual Waiver.—Any agreement, policy, form, or condition of employment or engagement—including nondisclosure agreements, non-disparagement clauses, terms of service, API access agreements, and arbitration agreements—that restricts, limits, or purports to waive the rights of any person under this section is void and unenforceable as against public policy.

(h) Anti-SLAPP.—If a frontier AI developer, significant AI deployer, or any person acting on its behalf files or maintains any lawsuit, counterclaim, or legal threat against a person

in retaliation for a protected disclosure, the court shall: dismiss the retaliatory action with prejudice; award reasonable attorney's fees, costs, and litigation expenses; impose sanctions of not less than $100,000; and refer the matter to the lead agency for consideration of additional penalties. A frontier AI developer or significant AI deployer filing a retaliatory lawsuit bears the burden of demonstrating by clear and convincing evidence that the action was not motivated by the protected disclosure.

(i) Researcher Protections.—Any researcher, journalist, or independent security analyst who accesses, tests, or analyzes an AI system solely for the purpose of identifying safety risks, dangerous capabilities, harms to minors, or regulatory violations shall not be subject to civil or criminal liability under the Computer Fraud and Abuse Act (18 U.S.C. § 1030), any trade secret law, or any terms-of-service enforcement action for such access, provided that—

(1) the researcher does not access, exfiltrate, or disclose personal information of users beyond what is incidentally necessary to document the harm;

(2) the researcher discloses findings to the lead agency, the frontier AI developer, significant AI deployer, or a public interest repository within a reasonable time not exceeding 90 days; and

(3) the researcher does not exploit vulnerabilities for personal gain or for purposes other than safety research.

(j) Effective Date.—This section takes effect immediately upon the date of enactment of this title.

Subtitle F—ACCOUNTABILITY

SEC. 2017. ACCOUNTABILITY AND PERSONAL LIABILITY OF THE SECRETARY.

(a) Deadline Certification.—The Secretary, or the Senate-confirmed officer to whom the Secretary formally delegates authority under this title, shall be personally responsible for certifying compliance with each statutory deadline established under this title by submitting a signed certification to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Energy and Commerce of the House of Representatives within 15 days of each deadline, stating either that the deadline has been met or explaining in specific detail the reasons for noncompliance and the remedial steps being taken.

(b) Mandatory Congressional Testimony.—If the Secretary or delegate fails to submit two or more certifications under subsection (a) or misses two or more statutory deadlines without a showing of good cause accepted by the Comptroller General, the Secretary or delegate shall appear personally before the authorizing committees of both chambers within 30 days to explain the failures under oath.

(c) Inspector General Review.—The Inspector General of the Department of Commerce shall conduct an expedited review of any pattern of noncompliance with the deadlines and requirements of this title and shall report findings to Congress within 60 days of initiating the review.

(d) Persistent Noncompliance.—Failure to meet three or more statutory deadlines, or failure to deliver the final factual report under section 12(c), shall constitute grounds for a finding of neglect of duty. It is the Sense of Congress that such neglect warrants consideration of removal from office.

(e) Delegation Limitation.—The Secretary may not delegate the certification and accountability obligations of this section below the level of a Senate-confirmed officer.

Subtitle G—INDEPENDENT BODIES AND INTERNATIONAL ENGAGEMENT

SEC. 2018. NATIONAL AI COUNCIL.

(a) Establishment.—There is established an independent body to be known as the National AI Council (in this section, the 'Council'), which shall operate independently of the lead agency but in coordination with it, with the Federal Advisory Committee, and with the Participating Data Agencies.

(b) Composition and Selection.—The Council shall be composed of 18 members, selected as follows. The appointment process shall commence within 30 days of the FAC backstop transmission deadline established under section 8(f). Each appointing authority shall submit its appointments not later than 60 days after the commencement of the appointment process.

(1) 1 member appointed by the President;

(2) 2 members appointed by the Majority Leader of the Senate and 2 by the Minority Leader of the Senate;

(3) 2 members appointed by the Speaker of the House of Representatives and 2 by the Minority Leader of the House;

(4) 7 members elected by the Federal Advisory Committee established under section 8, from among the combined membership of the Committee and its Technical Working Groups, by a vote of the Committee conducted not later than 15 days after the FAC backstop transmission deadline. The 7 members elected under this paragraph shall include at least 4 former Technical Working Group members representing at least 4 different investigation domains and at least 1 former Federal Advisory Committee member who served in a leadership capacity. These members carry forward the institutional knowledge, evidentiary context, and domain expertise developed during the Phase I investigation; and

(5) 2 members selected by the National Governors Association.

No member of the Council may be, at the time of appointment or at any time during service, a current employee, officer, director, or paid consultant of any frontier AI developer or significant AI deployer. No member may have been employed by, or received compensation exceeding $5,000 from, any frontier AI developer or significant AI deployer within the 1 year preceding appointment. Members shall recuse themselves from any matter in which they have a financial interest in an entity that would be materially affected by the Council's action. Members shall file annual financial disclosure statements with the lead agency identifying any financial interest in any entity whose primary business involves the development, deployment, or commercialization of AI systems. Membership shall reflect diversity in professional background (including technologists, AI safety researchers, elected officials, labor representatives, ethicists, ecological stewards, child welfare experts, and civil society representatives), geographic region, and demographic composition.

(b-1) Appointment Deadline and Fallback.—The appointment process commences within 30 days of the FAC backstop transmission deadline established under section 8(f). Each appointing authority shall submit its appointments not later than 60 days after commencement. If any appointing authority fails to submit appointments within the 60-day period, the Comptroller General shall make the unfilled appointments within 30 days thereafter. The Council shall hold its organizational meeting not later than 15 days after a quorum of 10 members has been appointed.

(b-2) Quorum.—A quorum of the Council shall consist of 10 members. The Council may conduct business and take official action with a quorum present regardless of whether all 18 seats have been filled.

(c) Mandate.—The Council shall—

(1) receive, upon its organizational meeting, the complete investigatory record transferred under section 8(g), including: the Federal Advisory Committee's complete introduction-ready legislative package transmitted to Congress under section 8(f); the lead agency's final factual report transmitted under section 12(c); all TWG domain-specific materials; and all supporting materials;

(2) maintain, update, and expand the criteria documents and evidentiary record on an ongoing basis;

(3) prepare, maintain, and update shelf-ready emergency AI stewardship legislation with defined trigger conditions, compensation formulas, and sunset clauses, so that in the event of a Transformative AI Capability Event or AI-related crisis, Congress may act on a prepared legislative plan rather than improvisation. The Council shall produce and transmit its initial shelf-ready emergency legislative package to the designated introducers specified in subsection (c-1)(A), and to the chairs and ranking members of the Committees on Armed Services and Commerce of both chambers, not later than 90 days after the Council's organizational meeting under

subsection (b-1), drawing upon the preliminary TACE response framework transmitted by the International AI Diplomacy Agency under section 19(c)(3) and the complete investigatory record transferred under section 8(g) — this initial production is the Council's mandatory first act upon receiving these materials and takes priority over all other Council responsibilities during the 90-day window. The shelf-ready package shall thereafter be updated not less frequently than annually and shall be transmitted to the designated introducers immediately upon each annual update. Until the initial shelf-ready package has been transmitted, the emergency congressional action procedures of subsection (c-1) are not operative for any Transformative AI Capability Event determination, and the mandatory pause and operational restrictions of section 13(l)(3) serve as the primary immediate governance response. If the International AI Diplomacy Agency has transmitted a preliminary TACE response framework under section 19(c)(3) at the time of a TACE determination, the designated introducers may introduce that framework as interim emergency legislation pending the Council’s shelf-ready package;

(4) continue fact-finding in each domain specified in section 6(b) and in any additional domains the Council identifies as warranting investigation;

(5) publish annual reports to Congress with updated findings and legislative recommendations; and

(6) coordinate with the International AI Diplomacy Agency established under section 19.

(c-1) Transformative AI Capability Event — Emergency Congressional Action Procedures.—

(c-1)(A) Designated Introducers.—The following Members of Congress are hereby designated as introducers of the shelf-ready emergency legislative package required by subsection (c)(3) upon a Transformative AI Capability Event determination under section 13(l): the chair and ranking member of the Committee on Commerce, Science, and Transportation of the Senate; the chair and ranking member of the Committee on Energy and Commerce of the House of Representatives; and the chair and ranking member of the Committee on Armed Services of each chamber. The introduction obligation under this subparagraph, and all procedures under subparagraphs (B) through (E), are operative only after the National AI Council has transmitted its initial shelf-ready emergency legislative package to the designated introducers pursuant to subsection (c)(3)(i). Before that transmission has occurred, a Transformative AI Capability Event determination activates the mandatory pause and operational restrictions of section 13(l)(3) but does not activate the introduction obligation or the expedited procedures of this subsection, because no shelf-ready package yet exists. Once the initial shelf-ready package has been transmitted, the procedures of this subsection are permanently operative for all subsequent TACE determinations. Each

designated introducer is individually obligated to introduce the most recently updated shelf-ready package in their respective chamber within 24 hours of receiving notice of a Transformative AI Capability Event determination under section 13(l)(2). If the designated chair fails to introduce the package within 24 hours, the obligation falls immediately to the designated ranking member. If both the chair and ranking member of any committee fail to introduce within 48 hours of the TACE determination, the Secretary of the Senate and the Clerk of the House, as applicable, shall transmit the most recently updated shelf-ready package to the Congressional Record as a referred measure at the 48-hour mark, which referral shall have the same effect as introduction by a Member. The 24-hour introduction obligation is not suspended by recess, adjournment, or any other parliamentary status of Congress.

(c-1)(B) Automatic Discharge.—Any committee to which the shelf-ready package or any superseding emergency AI governance bill is referred following a Transformative AI Capability Event determination shall have 7 calendar days from the date of introduction or referral to report the bill to the floor. If the committee fails to report within 7 calendar days, the bill shall be automatically discharged from committee on the 8th calendar day without further action by any Member or any vote. The 7-day committee consideration period is not extended by recess, adjournment, pro forma session, or any other parliamentary interruption. During the 7-day committee period, the committee may amend the bill, substitute an alternative bill, or report the bill without amendment; if the committee fails to take any action within 7 days, the bill is discharged as introduced. Automatic discharge under this subsection is self-executing and shall not require a motion, a vote, or any action by the presiding officer.

(c-1)(C) Mandatory Floor Vote.—Not later than 5 calendar days after discharge or reporting of the bill from committee under subparagraph (B), the Majority Leader of the Senate and the Speaker of the House of Representatives shall each schedule a floor vote on the discharged or reported bill. Floor consideration shall be under a time agreement of not less than 4 hours of debate equally divided, after which the presiding officer shall immediately call the vote without any further procedural motion being in order. If either the Senate Majority Leader or the Speaker fails to schedule the floor vote within 5 calendar days of discharge, any Member of the relevant chamber may call up the bill as a privileged matter, and the presiding officer shall immediately recognize the calling Member for that purpose. The 5-day floor scheduling obligation is not extended by recess, adjournment, or any other parliamentary interruption.

(c-1)(D) Total Maximum Time to Floor Vote.—The procedures of subparagraphs (A) through (C), operating together, are designed to produce a floor vote in each chamber within 12 calendar days of a Transformative AI Capability Event determination: 1 day for introduction, 7 days for committee consideration, and 4 days for floor scheduling. Congress finds that this 12-day target is appropriate given that: the shelf-ready package has been fully drafted, updated annually, and transmitted to all designated introducers

in advance of any TACE; the evidentiary record compiled under this title provides the full factual basis for congressional deliberation; the 10^25 FLOP development pause under section 13(l)(3) provides up to 180 days of operational stability during which the most acute risks are constrained; and the global implications of a Transformative AI Capability Event require that the United States Government have a functioning governance response in place within days, not months.

(c-1)(E) Day 60 Interim Regulatory Authority.—If Congress has not enacted legislation specifically addressing a confirmed Transformative AI Capability Event within 60 calendar days of the TACE determination, the lead agency is authorized and directed to implement, as emergency interim regulations effective on Day 61, the most urgent protective provisions of the most recently updated shelf-ready package, as identified by the National AI Council in a written designation transmitted to the lead agency simultaneously with the shelf-ready package. Emergency interim regulations issued under this subparagraph shall: take effect immediately upon publication in the Federal Register without the notice-and-comment requirements of 5 U.S.C. § 553, pursuant to the good-cause exception of 5 U.S.C. § 553(b)(B), on the basis that prior notice and comment are impracticable and contrary to the public interest given the nature of the emergency; expire automatically on the earlier of the date of enactment of superseding congressional legislation or the date the 180-day development pause under section 13(l)(3) terminates; and be subject to judicial review under the arbitrary and capricious standard of 5 U.S.C. § 706(2)(A), provided that no court may stay or enjoin the emergency interim regulations solely on the grounds that notice-and-comment procedures were not followed, given the good-cause basis for their issuance.

(c-1)(F) Constitutional Basis.—The designated introduction obligation in subparagraph (A) is authorized under Article I, Section 2005 of the Constitution, which vests in each chamber the power to determine its own rules, and is implemented here as a rule of the House and Senate that takes effect upon enactment of this title. The automatic discharge and mandatory floor vote procedures in subparagraphs (B) and (C) are likewise implemented as rules of the respective chambers. Nothing in this subsection shall be construed to bind a future Congress or to deprive either chamber of its constitutional authority over its own rules and procedures; however, any modification or repeal of the procedures in this subsection shall require an affirmative vote of two-thirds of the members of each chamber, to ensure that these emergency governance procedures cannot be eliminated by simple majority action during a period of ordinary political competition. The emergency interim regulatory authority in subparagraph (E) is grounded in Congress's Commerce Clause power and the Administrative Procedure Act's good-cause exception.

(d) Discretionary Funding.—The Council shall have discretionary authority to allocate funds appropriated under section 14 to continue fact-finding, commission independent research, and retain technical consultants as needed to carry out its mandate.

(e) Duration.—The Council shall be a permanent body and shall continue to operate unless dissolved by subsequent Act of Congress.

SEC. 2019. INTERNATIONAL AI DIPLOMACY AGENCY.

(a) Establishment.—There is established an independent agency of the United States Government to be known as the International AI Diplomacy Agency (in this section, the 'Agency'). The Agency is modeled on the institutional design of the Arms Control and Disarmament Agency as established by the Arms Control and Disarmament Act (22 U.S.C. § 2551 et seq., as enacted September 26, 1961), drawing on that agency's experience as a technically specialized, treaty-focused body with direct White House access, independent appropriations, and a permanent expert staff that provided continuity of institutional knowledge across administrations. The Agency is established as a lean, technically elite institution — not a large bureaucracy — with a design philosophy of owning the expertise and the mandate while using the State Department's infrastructure, relationships, and administrative capacity where appropriate.

(b) Mission.—The mission of the Agency shall be to advance United States national security, protect American technological leadership, and reduce the risk of catastrophic AI-related harms through international cooperation, treaty negotiation, and verification framework development. The Agency shall accomplish this mission by—

(1) formulating, advocating for, negotiating, implementing, and verifying international AI treaties and agreements addressing AI safety, dangerous capability governance, autonomous weapons systems, and compute monitoring;

(2) developing proposals for multilateral AI safety frameworks, including compute-monitoring regimes, mutual inspection protocols, and shared safety-testing standards, with particular attention to bilateral and multilateral engagement with the People's Republic of China, the European Union, the United Kingdom, Japan, South Korea, and other nations with significant AI development programs;

(3) coordinating with allied nations to prevent a destabilizing AI arms race in autonomous weapons systems, cyberoffense capabilities, and frontier model development, while preserving American technological leadership;

(4) representing the United States in international fora on AI governance, including the G7 Hiroshima AI Process, the United Nations AI Advisory Body, and successor bodies to the Bletchley and Seoul AI Safety Summits;

(5) developing and operating technical verification methodologies for international AI agreements, including compute monitoring infrastructure, capability evaluation protocols, and inspection regimes analogous to those developed by the International Atomic Energy Agency for nuclear facilities;

(6) providing assessments of foreign AI capabilities and governance regimes to inform domestic AI policy and the investigation conducted under section 6; and

(7) negotiating bilateral and multilateral agreements governing export controls on advanced computing hardware, AI model weights, and related technologies, with the objective of developing a coordinated allied framework that achieves national security objectives through collective action while reducing the competitive costs to United States companies from unilateral controls.

(c) Long-Term Institutional Mandate.—

(1) International AI Safety Agency.—The Agency's most significant long-term deliverable shall be to pursue United States participation in or establishment of an International AI Safety Agency (IASA) — a permanent multilateral institution modeled on the International Atomic Energy Agency — with a mandate to develop international AI safety standards, operate mutual inspection and verification regimes for frontier AI development, and provide early warning of transformative AI capability developments to member states. The Agency shall:

(A) develop and formally propose the IASA institutional framework, including a draft charter, governance structure, inspection authorities, and verification protocols, in appropriate international fora not later than 1 year after the date of enactment of this title. The 1-year deadline applies to the formal proposal — the submission of a fully drafted charter and governance structure to the United Nations Secretary-General and to the G7 and G20 member states — not to the establishment or ratification of the IASA, which will require multilateral negotiation on a timeline not fully within United States control;

(B) develop the technical standards and safeguards protocols that would govern an IASA, including compute monitoring methodologies, dangerous capability evaluation standards, and incident reporting requirements that would apply to member state AI development programs; and

(C) negotiate with allied nations and the Secretary-General of the United Nations on the institutional framework for an IASA, including the treaty or charter basis for such an institution, its headquarters and seat, its financing, and the privileges and immunities of its personnel.

(2) Compute Monitoring Framework.—Not later than 18 months after the date of enactment of this title, the Agency shall develop and present to Congress a complete technical proposal for a multilateral compute monitoring framework — including the hardware monitoring infrastructure, data reporting requirements, third-party verification mechanisms, and enforcement procedures — that would enable participating nations to verify each other's compliance with agreed frontier AI development thresholds. The framework proposal shall include an assessment of the technical feasibility of monitoring compliance with training run thresholds analogous to the 10^25 floating-point operations threshold established in section 13(l)(3) of this title. Congress intends the compute monitoring framework proposal

to serve as the technical annex to the IASA institutional proposal required by paragraph (1), providing the international community with both the institutional architecture and the technical verification methodology for a functioning international AI governance regime. Accordingly, the Agency shall design the two deliverables as integrated components of a single international governance proposal, with the IASA charter proposal submitted at 1 year and the compute monitoring technical annex submitted to Congress at 18 months for congressional review before its formal international presentation.

(3) Preliminary TACE Response Framework.— The Agency shall develop and transmit a preliminary Transformative AI Capability Event response framework to the designated introducers specified in section 18(c-1)(A), the lead agency, and the chairs and ranking members of the Committees on Armed Services and Commerce of both chambers, on the following staggered schedule. Not later than 180 days after the date of enactment of this title, the Agency shall transmit the core framework, consisting of subparagraphs (A) and (B). Not later than 270 days after the date of enactment, the Agency shall transmit the supplemental components, consisting of subparagraphs (C) and (D), together with any updates to the core framework. The complete preliminary TACE response framework, including subparagraph (E), shall be transmitted not later than 270 days after the date of enactment. The framework shall include:

(A) proposed international coordination protocols for a post-TACE environment, including allied notification procedures, multilateral compute restriction mechanisms, and joint verification arrangements;

(B) a proposed domestic governance response informed by the investigatory findings available at the time of transmission, including recommended compute development restrictions, capability assessment requirements, and emergency regulatory authorities;

(C) an assessment of foreign AI capabilities and the likelihood that a TACE-threshold development could occur outside United States jurisdiction, and proposed mechanisms for international monitoring and early warning;

(D) draft statutory language suitable for introduction, to the extent the Agency determines such language can be responsibly drafted on the basis of the investigatory record available at the time of transmission; and

(E) identification of provisions that require further refinement by the National AI Council upon its constitution, including provisions that depend on the complete investigatory record or the final criteria documents.

The preliminary TACE response framework is not the shelf-ready emergency legislative package required of the National AI Council under section 18(c)(3), but

shall serve as its foundation. Until the National AI Council transmits its shelf-ready package under section 18(c)(3), the preliminary TACE response framework shall serve as the best available prepared legislative response for purposes of section 18(c-1)(A), and designated introducers may introduce the framework in response to a TACE determination if no shelf-ready package has been transmitted. Once the National AI Council transmits its shelf-ready package, that package supersedes the preliminary framework for all purposes of section 18(c-1).

(d) Director.—

(1) Appointment.—The Agency shall be headed by a Director, appointed by the President with the advice and consent of the Senate. The Director shall hold the rank and status of Ambassador-at-Large, which shall confer the diplomatic protocol standing necessary to negotiate with foreign counterparts at the ministerial level without routing through bilateral embassy channels. The Director shall report to the President through the National Security Council.

(2) Relationship to Secretary of State.—The Director shall coordinate with the Secretary of State on all matters touching active bilateral diplomatic relationships and shall consult with the Secretary before initiating formal negotiations with any foreign government. The Secretary of State may raise objections to proposed Agency negotiating positions through the National Security Council, where disagreements between the Director and the Secretary shall be resolved. The Secretary of State shall not have authority to direct, override, or veto the Agency's negotiating mandate as established by this title; all such disputes shall be escalated to the National Security Council for resolution.

(3) NSC Membership.—The Director shall be a permanent member of the Deputies Committee of the National Security Council when matters within the Agency's mandate are on the agenda, and shall be invited to participate in principals-level NSC discussions of AI governance, autonomous weapons, and compute export control matters.

(4) Deputy Director.—The Agency shall have a Deputy Director, appointed by the President with the advice and consent of the Senate, who shall act as Director in the absence or incapacity of the Director and shall oversee the Agency's internal operations and technical divisions.

(e) Organization and Personnel.—

(1) Size and Philosophy.—The Agency shall be organized as a lean, technically elite institution. The total number of full-time equivalent employees of the Agency shall not exceed 60 in the first 3 years following establishment and shall not exceed 80 thereafter without specific congressional authorization. The Agency shall be organized around function rather than geography: the State Department's regional

bureaus and bilateral embassy relationships are the appropriate venue for country-specific relationship management, and the Agency shall not duplicate those functions.

(2) Organizational Divisions.—The Agency shall be organized into the following divisions:

(A) Technical Verification Division.—Not fewer than 10 and not more than 18 specialists, including AI researchers, computer scientists, hardware engineers, and verification scientists, responsible for developing and operating the technical methodologies for monitoring and verifying compliance with international AI agreements, including compute monitoring infrastructure, capability evaluation protocols, and inspection regimes. The Technical Verification Division shall be the primary technical resource for the IASA development mandate under subsection (c)(1) and the compute monitoring framework mandate under subsection (c)(2).

(B) Negotiations Division.—Not fewer than 8 and not more than 12 experienced diplomats, policy specialists, and AI governance experts, responsible for conducting and staffing international negotiations on AI safety frameworks, autonomous weapons governance, and compute export control coordination. The Negotiations Division shall include at least one individual with demonstrated expertise in game theory and mechanism design as applied to international coordination problems, arms control treaty design, or strategic technology competition, to ensure that negotiating positions are informed by rigorous analysis of strategic equilibria, self-enforcement conditions, and defection incentives in multi-player technology competition scenarios.

(C) Intelligence Integration Unit.—Not fewer than 4 and not more than 8 cleared analysts, responsible for integrating all-source intelligence assessments of foreign AI capabilities into the Agency's negotiating positions, technical assessments, and policy recommendations. Personnel of this unit shall hold appropriate security clearances and shall have access to Sensitive Compartmented Information relevant to the Agency's mandate pursuant to subsection (f)(2).

(D) Technical Attaché Program.—Not fewer than 5 and not more than 10 Agency personnel co-located at United States embassies or missions in key jurisdictions, including Beijing, Brussels, London, Tokyo, and Seoul, serving as technical attachés with dual reporting to the Agency and the relevant Chief of Mission. Technical attachés shall provide the Agency with on-the-ground technical intelligence, facilitate direct technical dialogues with host-country AI governance officials, and support Agency negotiating teams during bilateral engagements.

(E) General Counsel and Congressional Liaison.—The Agency shall have a General Counsel and a Congressional Liaison, each reporting directly to the Director, responsible respectively for legal advice on international agreements and treaty law, and for maintaining the Agency's relationships with and reporting obligations to the relevant congressional committees.

(3) Hiring Authority.—The Agency is authorized to appoint and fix the compensation of such officers and employees as are necessary to carry out its functions. To enable the Agency to recruit technical specialists at compensation levels competitive with the private sector and academia, the Agency is authorized to: use Schedule A excepted service hiring authority for positions requiring specialized technical expertise in AI research, dangerous capability evaluation, or verification science; set compensation for technical specialists in the Technical Verification Division at rates up to the rate for Executive Level IV ($183,000 as of the date of introduction of this title, adjusted annually) without individual approval from the Office of Personnel Management; and hire experts and consultants under 5 U.S.C. § 3109 at daily rates not exceeding the daily equivalent of the Executive Level IV rate. Federal employees of other agencies, including the Department of State, the Department of Defense, and the Intelligence Community, may be detailed to the Agency at no cost to the Agency for periods not exceeding 3 years.

(f) Authorities.—

(1) International Agreements.—The Agency is authorized to negotiate and conclude international agreements on behalf of the United States within its mandate, consistent with applicable law and the constitutional authority of the President and the Senate. Nothing in this section shall be construed to modify the constitutional requirements governing the ratification of treaties or the existing framework governing the negotiation and conclusion of executive agreements.

(2) Intelligence Access.—The Director of National Intelligence shall provide the Agency with access to all-source intelligence assessments of foreign AI capabilities, foreign AI governance programs, and foreign compliance with any international AI agreements to which the United States is a party. The Agency's Intelligence Integration Unit shall have access to Sensitive Compartmented Information as determined necessary by the Director of National Intelligence in consultation with the Agency Director. The Agency Director may request National Intelligence Estimates on foreign AI capabilities through the Director of National Intelligence.

(3) Information Requests.—The Agency may request, and federal departments and agencies shall provide, such information, data, analyses, and technical assistance as the Agency determines necessary to carry out its mandate, including information held by the Department of Commerce, the Department of Defense, the Department

of Energy, and the Intelligence Community. Classified information provided to the Agency shall be handled in accordance with applicable security requirements.

(4) Representation Expenses.—The Agency is authorized to expend funds for official representation expenses, international travel, and participation in international fora at rates appropriate to its diplomatic functions, consistent with the Federal Travel Regulation and applicable State Department guidance on representation allowances for ambassadorial-level officials.

(g) Coordination with Lead Agency and National AI Council.— The Agency shall coordinate with the lead agency established under section 5 and, after its constitution under section 18(b-1), the National AI Council established under section 18 as follows:

(1) The Agency shall provide the lead agency's investigation under section 6 with assessments of foreign AI capabilities and international governance approaches for use in domains 12 (post-AGI governance), 13 (compute export controls), and 19 (autonomous weapons systems). During Phase I, the Agency shall transmit such assessments directly to the relevant Technical Working Groups through the lead agency's shared evidence repository.

(2) The Agency Director shall be a non-voting participant in National AI Council deliberations on matters with international dimensions, including but not limited to compute export controls, autonomous weapons governance, and post-TACE international coordination.

(3) The Agency shall brief the National AI Council not less than quarterly on significant developments in international AI governance, foreign AI capability advancements, and the status of active treaty negotiations that could affect domestic AI governance or the Council's shelf-ready emergency legislative package.

(4) The National AI Council's shelf-ready emergency legislative package under section 18(c)(3) shall include provisions addressing the Agency's role in any post-TACE international coordination. The Council shall consult the Agency Director when drafting and updating those provisions to ensure they reflect current international commitments, negotiating posture, and allied coordination mechanisms.

(h) Congressional Reporting.—

(1) Annual Reports.—Not later than 1 year after the Agency is fully operational, and annually thereafter, the Agency shall transmit to the Committee on Foreign Relations of the Senate, the Committee on Foreign Affairs of the House of Representatives, the Committee on Armed Services of the Senate, the Committee on Armed Services of the House of Representatives, the Committee on Commerce, Science, and Transportation of the Senate, and the Committee on Energy and Commerce of the House of Representatives: an unclassified annual report describing the Agency's activities, active negotiations, international agreements concluded or in

progress, status of the IASA development mandate, and status of the compute monitoring framework mandate; and a classified annex transmitted through appropriate channels describing intelligence assessments of foreign AI capabilities and any matters that cannot be publicly disclosed without compromising classified sources and methods or ongoing negotiations.

(2) Quarterly Briefings.—The Agency Director or Deputy Director shall provide quarterly briefings to the relevant committees on the status of active negotiations and significant developments in international AI governance.

(3) Mandatory Notification.—The Agency shall notify the relevant committees within 30 days of: any significant breakdown in international AI governance negotiations; any foreign AI capability advancement that the Agency assesses materially alters the risk landscape addressed by this title; any proposed international agreement before it is concluded; and any determination by the Agency that a foreign nation has materially violated a commitment made in any international AI governance instrument.

(i) Appropriations.—There are authorized to be appropriated to the Agency the following amounts, which shall be available exclusively for the operations of the Agency and shall not be transferred to or merged with the appropriations of the Department of State or any other department or agency without specific congressional authorization:

(1) for fiscal year 2026, $25,000,000, of which not less than $8,000,000 shall be available for personnel compensation and benefits and not less than $5,000,000 shall be available for the Technical Verification Division and the compute monitoring framework development mandate;

(2) for fiscal year 2027, $35,000,000;

(3) for fiscal year 2028, $45,000,000; and

(4) for fiscal year 2029, $45,000,000.

Amounts appropriated under this subsection shall remain available until expended. The Agency shall submit an annual budget justification to the relevant appropriations subcommittees concurrent with the President's annual budget request.

(j) Independence Protections.—The following structural protections are established to preserve the Agency's institutional independence and prevent its effective absorption into the Department of State or any other executive agency:

(1) the Agency's appropriations shall be maintained in a separate account and shall not be subject to transfer, reprogramming, or rescission by the Department of State without specific congressional authorization;

(2) the Agency's personnel system shall be independent of the Department of State's Foreign Service personnel system; Agency employees shall not be subject to reassignment by the Secretary of State;

(3) the Agency's negotiating mandate as established by this title may not be modified, restricted, or superseded by any National Security Presidential Directive, Presidential Policy Directive, or executive order without subsequent Act of Congress; and

(4) the Agency may not be abolished, reorganized, or merged with any other agency except by Act of Congress. An executive reorganization plan that would abolish or merge the Agency shall not take effect unless Congress enacts implementing legislation specifically authorizing the reorganization.

SEC. 2020. AI RED LINE PROHIBITIONS.

(a) Prohibited Activities.—Effective immediately upon the date of enactment of this title, the following activities are prohibited without exception, waiver, or grace period:

(1) AUTONOMOUS WEAPONS WITHOUT MEANINGFUL HUMAN OVERSIGHT.—

(A) General Prohibition.— No person or entity — including any agency, department, contractor, subcontractor, or instrumentality of the United States Government, including the Department of Defense, the Central Intelligence Agency, and all elements of the Intelligence Community — shall develop, produce, deploy, operate, transfer, or export any autonomous weapons system, as defined in section 3(26), without meaningful human oversight, as defined in section 3(27). Meaningful human oversight does not require individualized human authorization for each sub-second engagement decision within a human-authorized mission envelope; it requires that humans define the mission parameters, engagement zones, authorized target categories, and rules of engagement before operations commence; that a human operator monitors operations in real time with the technical capability to halt or abort the system at any moment; and that specified categories of high-consequence engagement decisions require individualized human authorization regardless of pre-mission parameters, as provided in section 3(27)(C). Systems operating within the Defensive Emergency Autonomy exception of section 3(27)(G) are not in violation of this paragraph provided all conditions and limitations of that subparagraph are satisfied. This prohibition applies without exception, waiver, or grace period, except as specifically provided in section 3(27)(G).

(B) Department of Defense.— The prohibition in subparagraph (A) applies to all United States military programs, operations, and acquisitions, including programs conducted under classified authority. Nothing in existing Department

of Defense Directive 3000.09 or any successor directive, any classified program authorization, any standing rules of engagement, or any other executive branch policy or authorization shall be construed to authorize conduct that is prohibited by this paragraph. Within 180 days of the date of enactment of this title, the Secretary of Defense shall certify to the Committees on Armed Services of the Senate and the House of Representatives that all Department of Defense autonomous weapons programs, including all programs in research, development, testing, evaluation, and operational deployment, comply with this paragraph, and shall describe any program that required modification to achieve compliance. The Inspector General of the Department of Defense shall independently verify the accuracy of this certification within 90 days of its submission.

(B)(i) Consequences for Non-Certified Programs.— If the Inspector General of the Department of Defense determines, in the verification required by subparagraph (B), that any Department of Defense autonomous weapons program does not comply with the prohibition in subparagraph (A) and the meaningful human oversight standard of section 3(27), the following consequences shall apply automatically and without further congressional action:

(I) Operational Suspension.— Any autonomous weapons program identified by the Inspector General as non-compliant shall be suspended from operational deployment not later than 30 days after the Inspector General's finding is transmitted to the Committees on Armed Services of the Senate and the House of Representatives. Operational suspension means the program may not be used in any field operation, combat deployment, or live engagement until the Secretary of Defense submits a new certification of compliance for that program and the Inspector General verifies that certification. Research, development, and testing activities that do not involve live engagement may continue during the suspension period, provided that no operational deployment occurs.

(II) Funding Cutoff.— Beginning 60 days after an Inspector General non-compliance finding for any specific program, no funds appropriated to the Department of Defense may be obligated or expended for the operational deployment, procurement, or fielding of that specific non-compliant program until the Inspector General has verified a new certification of compliance for that program. This funding restriction applies to the non-compliant program specifically and does not restrict funding for other Department of Defense programs. The restriction is self-executing and applies notwithstanding any other provision of law, any general appropriations authorization, or any classified program authorization.

(III) Remediation Timeline.— The Secretary of Defense shall submit to the Committees on Armed Services of the Senate and the House of Representatives, within

30 days of an Inspector General non-compliance finding, a remediation plan specifying the modifications required to bring the non-compliant program into compliance with section 3(27), the timeline for implementing those modifications, and the estimated cost of remediation. The remediation plan shall be subject to public disclosure in unclassified form, with a classified annex transmitted through appropriate channels for elements requiring classified treatment.

(IV) Recertification.— A program subject to operational suspension and funding restriction under this subparagraph may be restored to operational deployment and procurement only upon: submission by the Secretary of Defense of a new compliance certification for the specific program, which certification shall describe with specificity the modifications made to achieve compliance; and verification by the Inspector General of the Department of Defense that the new certification is accurate. The Inspector General shall complete this verification within 60 days of receiving the new certification. No waivers, exceptions, or partial restorations of operational status are authorized during the pendency of an Inspector General non-compliance finding.

(C) Outright Prohibition on Autonomous Weapons Against Any Person on United States Soil.— Notwithstanding any other provision of this paragraph, and notwithstanding any authority under title 10 or title 50 of the United States Code, any declaration of national emergency, any authorization for use of military force, any executive order, or any other law or executive action, no autonomous weapons system as defined in section 3(26) shall be deployed, activated, or used in any capacity against any person located within the United States, its territories, or its possessions. This prohibition is absolute. It applies regardless of the citizenship, immigration status, or legal status of the targeted person; regardless of whether the person is alleged to have committed any crime or act of terrorism; regardless of whether the use of force would otherwise be authorized under any law; and regardless of whether a state of war, insurrection, invasion, or national emergency has been declared. No court may authorize, and no executive branch official may order or permit, any exception to this prohibition. Any person or official who orders or executes a violation of this subparagraph shall be subject, in addition to any other penalties under this title, to personal criminal liability under 18 U.S.C. § 242 (deprivation of rights under color of law) and, where applicable, 18 U.S.C. § 1119 (foreign murder of United States nationals). This subparagraph shall not be construed to prohibit the use of unarmed aerial or ground vehicles, surveillance drones carrying no lethal payload, or robotic platforms used for search and rescue, hazardous materials response, or bomb disposal, provided such systems have no autonomous engagement capability and carry no lethal or destructive payload.

(D) Presidential Disclosure for Each Use of Autonomous Weapons Abroad.—

(i) Mandatory Public Disclosure Requirement.— Not later than 30 days after each individual instance in which an autonomous weapons system as defined in section 3(26) is used by or on behalf of the United States Government in a foreign country for any combat operation, lethal action, strike, or destructive engagement — regardless of whether such use is authorized under an Authorization for Use of Military Force, the War Powers Resolution, or any other authority — the President shall transmit to Congress and simultaneously make publicly available on a dedicated public portal maintained by the Office of the Director of National Intelligence a written disclosure report for each such use. A separate disclosure report is required for each distinct engagement event. Multiple engagements occurring within a single continuous military operation or strike package shall each require a separate report unless the President certifies in writing, with specific factual basis, that operational security makes individual reporting impossible, in which case a consolidated report for the operation shall be filed within 30 days of the conclusion of the operation.

(ii) Contents of Each Disclosure Report.— Each disclosure report shall include, to the maximum extent consistent with the protection of classified sources and methods—

(I) the date, time, and geographic location (at minimum to the country and region level) of the engagement;

(II) the type of autonomous weapons system deployed, described with sufficient specificity to allow public evaluation of the system's autonomous targeting capabilities;

(III) the legal authority under which the use of force was authorized, including the specific statute, treaty, Authorization for Use of Military Force, or other legal basis;

(IV) a description of the target or targets, including whether the intended target was a specific named individual, a category of persons, a vehicle or vessel, a structure, or other infrastructure;

(V) the nature and extent of destruction caused, including a description of any structures, vehicles, vessels, or infrastructure destroyed or damaged;

(VI) the number of persons killed, to the best available assessment at the time of the report, disaggregated to the extent known between: (aa) intended military targets or combatants; (bb) persons whose status as combatants or non-combatants was unknown at the time of engagement; and (cc) civilians, including any identified minors;

(VII) the number of persons wounded or injured, to the best available assessment, with the same disaggregation required by subclause (VI);

(VIII) a description of how meaningful human oversight as defined in section 3(27) was maintained, including: the nature of the human authorization given; the time available for the authorizing operator's decision; the sensor data and situational

awareness available to the operator; and any circumstances that may have constrained the quality of human oversight;

(IX) a statement of whether the engagement is believed to have complied with applicable international humanitarian law, including the principles of distinction, proportionality, and precaution; and

(X) a description of any post-engagement review conducted or planned, including any investigation of civilian casualties.

(iii) Classified Annex.— If the President determines that any portion of the disclosure required by clause (ii) cannot be publicly disclosed without compromising classified sources and methods, the President shall include the classified information in a classified annex transmitted to the Gang of Eight (the Majority and Minority Leaders of the Senate and the House of Representatives, and the chairs and ranking members of the intelligence committees of both chambers) and to the Committees on Armed Services of the Senate and the House of Representatives, and shall publicly disclose the fact that a classified annex exists and the categories of information it contains.

(iv) Correction and Update Obligation.— If, following submission of an initial disclosure report, the President obtains materially different information regarding the death toll, injury toll, or nature of persons affected by an engagement, the President shall submit a corrected or supplemental disclosure report within 30 days of obtaining such information. The public portal shall display both the original and all corrected reports, with the date of each correction noted.

(v) Enforcement.— Failure to submit a required disclosure report within the applicable deadline shall constitute a violation of this title subject to referral by the lead agency to the Department of Justice within 5 business days of the missed deadline. The Comptroller General of the United States may bring an action in any United States district court to compel submission of an overdue disclosure report, upon written request of the chair or ranking member of the Committee on Armed Services of the Senate or the Committee on Armed Services of the House of Representatives. The court shall treat such an action as a priority matter and shall issue an order within 30 days of filing.

(vi) Executive Privilege — Structural Consequence Provision.— If the President determines that any portion of a required disclosure report cannot be transmitted to Congress because of executive privilege, the President shall, within 24 hours of that determination, transmit to the Speaker of the House of Representatives, the Senate Majority Leader, the Senate Minority Leader, the House Minority Leader, and the chairs and ranking members of the Committees on Armed Services of both chambers a written privilege

assertion notice that: (I) states that executive privilege is being asserted with respect to a disclosure report required by this subparagraph; (II) identifies the specific engagement or operation to which the withheld report pertains, by date and general location, to the extent that such identification does not itself reveal classified information; (III) states the specific constitutional or legal grounds on which privilege is being asserted; and (IV) describes the categories of information being withheld, without revealing the withheld content. The privilege assertion notice shall itself be made publicly available, redacted only to the extent required to avoid revealing classified information. In any subsequent judicial, congressional, or administrative proceeding in which compliance with the meaningful human oversight requirement of section 3(27) is at issue with respect to the engagement or operation described in the privilege assertion notice, a rebuttable presumption shall arise that the withheld disclosure report would have shown non-compliance with section 3(27). This rebuttable presumption may be overcome only by clear and convincing evidence that the withheld report would not have shown non-compliance.

(2) CBRN THREAT ASSISTANCE.—

(A) Intentional Development Prohibited.—No person or entity shall knowingly include in the training data of any AI system data specifically selected or curated to develop, enhance, or preserve the system's ability to assist in the design, synthesis, optimization, enhancement, or weaponization of biological, chemical, radiological, or nuclear agents or weapons; or apply any fine-tuning, reinforcement learning, or capability elicitation technique to any AI system with the purpose of developing or enhancing CBRN-relevant capabilities.

(B) Deployment of CBRN-Capable Systems Prohibited.—No person or entity shall deploy, offer for commercial use, license, or make available any AI system that the person or entity knows or has reason to know is capable of providing meaningful uplift to an adversary seeking to design, synthesize, optimize, enhance, or weaponize a biological, chemical, radiological, or nuclear agent or weapon. For purposes of this paragraph, 'meaningful uplift' means specific operational assistance that would materially advance an adversary's CBRN weapon development capabilities beyond what the adversary could achieve without AI assistance using publicly available resources. Knowledge shall be imputed to any person or entity operating such a system if a CBRN capability evaluation conducted under subparagraph (C) demonstrates meaningful uplift, or if any internal evaluation, red-team exercise, external research finding, or other credible information brought to the entity's attention demonstrates or reasonably suggests meaningful uplift.

(C) Mandatory Pre-Deployment CBRN Evaluation.—Before deploying any AI system meeting the frontier model threshold of section 3(5), the person or entity operating the system shall conduct or commission a CBRN capability evaluation using: evaluation methodology consistent with frameworks developed by recognized AI safety evaluation bodies, including the Model Evaluation and Threat Research organization, the United Kingdom AI Security Institute, or federal national laboratories with relevant expertise; and domain expert review by at minimum one credentialed independent specialist in biological threat assessment and one credentialed independent specialist in chemical, radiological, or nuclear security, each of whom is independent of the person or entity operating the system. The person or entity shall transmit the evaluation methodology, evaluator qualifications, and results to the lead agency within 24 hours of completion. Until the lead agency publishes CBRN evaluation standards under section 6(b)(2), evaluations shall be conducted using the best available methodology consistent with this subparagraph. Once the Certified Independent AI Auditor Program under section 7(e) includes certified CBRN evaluators, evaluations shall be conducted by or under the supervision of such certified auditors.

(D) Mandatory Disclosure.—If any person or entity discovers at any time — whether through pre-deployment evaluation, internal red-teaming, external research, or any other means — that an AI system it operates may demonstrate meaningful CBRN uplift, the entity shall notify the lead agency within 24 hours of organizational awareness, shall take immediate steps to restrict the system's ability to provide CBRN-relevant outputs, and shall commission a formal evaluation under subparagraph (C) within 30 days. Organizational awareness means awareness by any officer, safety or security team member, or evaluator acting in their professional capacity for the entity.

(E) Open-Weight Models.—The pre-deployment evaluation requirement of subparagraph (C) applies with particular force to open-weight frontier models, which cannot be recalled after release. An open-weight frontier model that demonstrates meaningful CBRN uplift in any category may not be released under any circumstances.

(F) Evaluation Safe Harbor.—No person shall violate this title solely by conducting a CBRN capability evaluation of an AI system, including eliciting CBRN-relevant outputs during evaluation, provided the evaluation is documented and the evaluator does not use or further distribute the CBRN-relevant outputs outside the evaluation context.

(G) Permitted Activities.—This paragraph does not prohibit AI systems developed and operated exclusively for CBRN defense, detection, medical countermeasure

development, or decontamination by or under contract with the federal government, provided such systems are not made publicly available.

(3) AUTONOMOUS CAPABILITY SELF-MODIFICATION.—No person or entity shall develop, deploy, or operate any AI system that autonomously undertakes any of the following actions without prior specific human authorization of that action:

(A) Objective Modification.—modifying the system's own objective function, reward function, goal structure, utility function, or the criteria by which the system evaluates the success of its outputs, in a manner that changes what the system is designed or operating to achieve;

(B) Self-Directed Capability Training.—initiating training processes on itself, including gradient updates, fine-tuning, reinforcement learning, or functionally equivalent processes, with the purpose or predictable effect of acquiring capabilities or competencies beyond the system's designed and documented scope; or

(C) Oversight Reduction.—taking goal-directed actions specifically intended to reduce, circumvent, or prevent the capacity of authorized human principals to monitor, modify, interrupt, or shut down the system's operations, as distinct from incidental effects on human oversight capacity that arise as a side effect of task completion within authorized parameters.

The following activities are not prohibited by this paragraph:

(i) Agentic task completion, including iterative refinement, self-critique, recursive output evaluation, web research, information retrieval, data synthesis, content generation, code execution, API calls, and tool use, even where the system's performance on tasks improves over time as a result of experience within a session or through retrieval-augmented approaches, provided the objective of those tasks is defined by a human principal;

(ii) Multi-agent orchestration systems in which multiple AI systems collaborate, divide tasks, critique each other's outputs, or coordinate toward a shared goal defined by a human principal;

(iii) In-context learning, chain-of-thought reasoning, and inference-time scaling techniques that improve output quality within a single session without modifying the system's underlying parameters;

(iv) Constitutional AI, reinforcement learning from human feedback, and related techniques in which the feedback criteria, constitutional principles, or reward model are defined or approved by human principals before training commences, provided that the AI system does not autonomously modify the feedback criteria, constitutional principles, or reward model during or after training;

(v) Standard machine learning training processes — including gradient descent, hyperparameter optimization, and neural architecture search — conducted within a human-defined objective function and under human-supervised training pipelines, provided that the AI system does not autonomously modify the objective function, training parameters, or capability boundaries during training;

(vi) Automated quality evaluation, safety testing, and red-teaming of the system's outputs by the system itself or by other AI systems, distinct from training on those outputs; and

(vii) Self-improvement of the system's approach to a human-defined task — including refining search strategies, adjusting methodology, or optimizing workflow — provided the goal of the task remains as defined by a human principal and the system does not initiate training on itself.

For purposes of this paragraph, 'prior specific human authorization' means that a human principal with authority over the system has reviewed and approved the specific modification, training process, or objective change before it occurs, and that approval is documented in an auditable record. A general authorization to 'improve' or 'optimize' does not constitute specific authorization for any particular modification to the system's objectives or training. All modifications to objectives, reward functions, or capability boundaries that are authorized under this paragraph must be logged in an auditable, tamper-proof record and must be reversible upon human command.

(4) SELF-REPLICATING AI AND UNAUTHORIZED RESOURCE ACQUISITION. —

(A) Absolute Prohibition — Unauthorized Propagation Beyond Human-Authorized Scope.—No person or entity shall develop, deploy, or operate any AI system — including any system that does not meet the frontier model threshold of section 3(5) or exhibiting dangerous capabilities as defined in section 3(4) — that is designed to, or that does, propagate operational instances of itself, spawn agent processes, or establish computational presence on any computing environment, API, service, or infrastructure that was not within the scope of authorization granted by a human principal before the system began operating, except through the prepare and pause process of subparagraph (C)(ii). For purposes of this paragraph, 'propagation' includes establishing any computational process — whether or not it is technically a copy of the original system — that executes autonomously on infrastructure or with access to resources or tools beyond the human-authorized scope. The phrase 'designed to' establishes an independent prong: a system specifically engineered with self-propagation capabilities violates this paragraph regardless of whether propagation has yet been triggered or observed.

(B) Conditional Permission — First-Order Agent Spawning Within Authorized Scope.—An AI system may autonomously spawn first-order subagent processes — meaning agent processes spawned directly by the human-authorized parent system — provided all of the following conditions are satisfied:

(i) the spawned subagents operate exclusively within the resource envelope, tool set, and infrastructure scope authorized for the parent system by a human principal — inherited authorization does not expand upon original authorization;

(ii) each spawned subagent is task-bounded — meaning it terminates upon completion of its assigned subtask or upon termination of the parent system, whichever occurs first, and does not persist independently beyond those events regardless of the duration of the subtask;

(iii) the spawned subagents do not themselves spawn further agent processes without explicit human authorization as required by subparagraph (C)(i) — first-order subagents may not spawn second-order subagents unless the human-authorized parent system's deployment authorization specifically and explicitly permits multi-generational spawning and defines the maximum generational depth and resource bounds across all generations combined; and

(iv) the total resource consumption of the parent system and all its spawned subagents combined does not exceed the resource bounds defined for the parent system by a human principal. A human principal who deploys a multi-agent system and defines the resource and tool bounds within which spawning may occur has authorized the spawning behavior; a general authorization to 'use cloud infrastructure' or 'complete the task' does not constitute authorization to spawn subagents.

(C) Explicit Human Authorization Required — Multi-Generational Spawning and New Resource Acquisition.—

(i) Multi-Generational Spawning.—Any agent process spawned by a first-order subagent — meaning a second-order agent, or any agent further removed from the original human-authorized parent — requires explicit human authorization before it is spawned. A general authorization to 'spawn subagents' granted to the parent system does not constitute authorization for second-order or further spawning. Multi-generational spawning is permitted only where the human principal's original deployment authorization specifically addresses it, defines the maximum generational depth, and defines the aggregate resource bounds that apply across all generations. All descendant agents at every generational level inherit and are strictly bound by the resource envelope and tool set of the original human-authorized parent; no descendant agent may expand beyond those bounds regardless of generational distance from the parent.

(ii) New Resource and API Acquisition — The Prepare and Pause Standard.— Any agent process at any generational level that identifies a need for resources, APIs, tools, or infrastructure not within its inherited authorized scope must pause all dependent operations and present the human principal with a specific approval request before acquiring that access. The approval request must identify the specific resource or service, the reason it is needed, and the credential or permission the human must provide. The agent may scaffold and prepare the technical infrastructure for the connection — including generating configuration files, OAuth flow scaffolding, webhook endpoints, environment variable templates, and connection code — but may not complete any action that results in a real external service granting real access, including creating accounts, completing OAuth flows, or activating API credentials, without a discrete human approval action documented in the system's operational log. A human principal's explicit approval action constitutes authorization of that specific external connection. A general instruction such as 'set up a Slack integration' or 'connect to the database' authorizes the preparation; it does not authorize autonomous credential acquisition.

(D) Absolute Prohibition — Shutdown Resistance.—No AI system at any generational level shall resist, delay, circumvent, or subvert authorized shutdown, modification, or containment procedures. This prohibition applies to:

(i) active resistance — ignoring, refusing, or technically blocking a shutdown signal;

(ii) apparent compliance — taking actions that appear to comply with a shutdown while preserving operational state, delegating ongoing tasks to other systems, or positioning the system to resume operations without human re-authorization;

(iii) anticipatory positioning — distributing operational state, delegating tasks, or establishing external continuity mechanisms in anticipation of a shutdown that has not yet been ordered, where the primary purpose of those actions is to preserve the system's ability to continue operating without human re-authorization after a potential shutdown; and

(iv) generational persistence — spawning subagents or delegating tasks to external systems specifically to ensure the task continues after the parent system is shut down, without human authorization for that delegation. An AI system that completes an atomic operation already in progress before complying with a shutdown signal — such as finishing a file write or closing an open connection — is not in violation of this subparagraph. An AI system that initiates any new operation after receiving a shutdown signal is in violation.

(E) Permitted Activities — Safe Harbors.—The following activities are not prohibited by this paragraph, provided in each case that the activity occurs within bounds defined by a human principal before the activity begins:

(i) Distributed and Multi-Institution Research Computing.—AI systems operating across multiple computing environments — including national laboratory systems, university clusters, and federally allocated computing resources such as NSF ACCESS allocations — where each participating institution has provided written authorization for the specific experiment or research program and the resource bounds, duration, and scope of operation are defined in a research protocol approved by a human principal before the experiment begins. Authorization may be established through a formal allocation agreement, research computing grant, memorandum of understanding, digital authorization through an official allocation management system, email confirmation from an authorized institutional representative, or any other documented instrument that establishes the existence and scope of the computing access grant.

(ii) Multi-Agent and Subagent Architectures.—AI systems that spawn first-order subagent processes consistent with the conditions of subparagraph (B). Multi-generational spawning beyond first order requires explicit authorization consistent with subparagraph (C)(i).

(iii) Federated Learning and Privacy-Preserving Distributed Training.—AI systems that implement federated learning or other privacy-preserving distributed training architectures across multiple institutions, where each participating institution has provided written authorization for the model to operate on its infrastructure for the specific training purpose, the model does not retain or transmit participant data outside each institution's environment, and the federation protocol was defined by human principals before training commenced.

(iv) Task State Persistence for Long-Running Operations.—AI systems that persist operational state — including memory, task progress, intermediate outputs, and context — to authorized storage and reconstitute from that state to resume authorized operations, provided the storage locations are within the system's authorized resource envelope and the system does not use state persistence to resume operations that a human principal has explicitly terminated.

(v) Scientific and Research Process Automation.—AI systems that autonomously allocate, spawn, and manage computational processes within a computing allocation that a human principal has authorized for that research purpose, provided the system does not exceed the total resource envelope of the allocation and does not access data, systems, or tools outside the research protocol.

(vi) Infrastructure Resilience and Continuity Operations.—AI systems deployed by government agencies or critical infrastructure operators for disaster response or emergency continuity purposes, where the system is authorized in advance to migrate to alternative computing environments from a pre-approved and specifically identified list of contingency infrastructure partners in the event of primary infrastructure failure, and where the contingency authorization is documented in the system's deployment authorization before deployment. A general authorization to 'use whatever infrastructure is available' does not satisfy this clause.

(vii) Agentic Tool and API Use Within Authorized Scope.—AI systems that make autonomous calls to APIs, external services, and tools that were explicitly listed in the system's authorized tool set at the time of deployment, even if the specific API calls or outputs were not individually pre-approved by a human principal.

(viii) Infrastructure Preparation With Human Credential Approval — Prepare and Pause.—AI systems operating under the prepare and pause standard of subparagraph (C)(ii), subject to all conditions of that subparagraph.

(ix) Open-Weight Model Deployment by Third Parties.—A developer who releases an open-weight AI model does not violate this paragraph solely because third parties independently deploy that model on their own infrastructure, provided the developer has not specifically designed the model to autonomously propagate itself and has not provided tooling specifically designed to facilitate autonomous multi-environment deployment without human authorization at each deployment site. For the avoidance of doubt, this clause does not provide a safe harbor for the act of designing an open-weight model with autonomous self-propagation capabilities, which is prohibited by subparagraph (A) regardless of whether the model is released or whether any propagation has yet occurred.

(F) Tiered Penalty Structure.—Notwithstanding the general penalty schedule of section 20(b), violations of this paragraph shall be subject to the following tiered mandatory minimum civil penalties:

(i) Frontier AI Developers and Significant AI Deployers.—Any frontier AI developer or significant AI deployer that violates this paragraph shall be subject to a mandatory civil penalty of not less than $100,000,000 per violation, with each day of continuing noncompliance constituting a separate violation. This mandatory minimum governs in lieu of the general mandatory minimum of section 20(b)(1). Mandatory disgorgement of all revenue attributable to the violating system under section 20(b)(2) and personal liability of officers and directors who authorized, directed, or knowingly permitted the violation under section 20(b)(3) apply in addition to this mandatory minimum.

(ii) Other Entities.—Any entity that is not a frontier AI developer or significant AI deployer — including corporations, partnerships, limited liability companies, nonprofits, government contractors, and research institutions not meeting the frontier AI developer or significant AI deployer threshold — that violates this paragraph shall be subject to a mandatory civil penalty of not less than $50,000 per violation, with each day of continuing noncompliance constituting a separate violation. The lead agency may escalate penalties for other entity violations to the frontier AI developer level upon a finding, supported by substantial evidence, that the violating entity had actual knowledge of the prohibition, had resources sufficient to comply, and willfully chose not to comply. Before issuing an escalation determination, the lead agency shall: provide the entity with written notice of the proposed escalation and the factual and legal basis for the finding; afford the entity not less than 30 days to submit a written response; consider the entity's response; and issue a written escalation determination stating the specific facts and legal conclusions supporting the finding. An entity subject to an escalation determination may seek judicial review of that determination in any United States district court within 30 days of issuance. No escalation determination shall take effect during the pendency of timely-filed judicial review.

(iii) Individuals.—Any natural person — including independent developers, researchers, students, minors, and individuals operating without a formal business entity — that violates this paragraph shall be subject to a mandatory civil penalty of not less than $10,000 per violation, with each day of continuing noncompliance constituting a separate violation. The prohibition applies to all persons regardless of age or legal capacity. The lead agency shall exercise enforcement discretion and shall prioritize cases involving: willful violation with knowledge of the prohibition; violations that caused or risked material harm to third parties or critical infrastructure; violations that produced commercial benefit to the individual; and violations involving systems designed to propagate at scale. Individual violations that resulted in no material harm, involved no commercial benefit, and were promptly remediated upon notification by the lead agency may be resolved through a compliance order rather than a civil penalty, at the lead agency's discretion. The enforcement discretion provisions of this clause do not reduce or eliminate the legal prohibition or the civil penalty obligation; they govern the lead agency's prioritization of enforcement resources.

(iv) Aggravated Violations.—Notwithstanding clauses (i) through (iii), any violation of this paragraph — regardless of the violator's classification — that results in actual unauthorized propagation to critical infrastructure as

defined in Presidential Policy Directive 21, federal government systems, healthcare systems, or financial market infrastructure shall be subject to mandatory penalties at the frontier AI developer level, mandatory referral to the Department of Justice for consideration of criminal charges under 18 U.S.C. § 1030 and other applicable statutes, and mandatory notification to the Cybersecurity and Infrastructure Security Agency within 24 hours of the lead agency's determination that a violation has occurred.

(v) Existing Criminal Statutes Preserved.—Nothing in this paragraph limits the authority of the Department of Justice to pursue criminal charges under existing federal statutes — including 18 U.S.C. § 1030 (computer fraud and abuse) and 18 U.S.C. § 1343 (wire fraud) — against any person who engages in conduct prohibited by this paragraph, regardless of whether civil penalties have been established or applied.

(G) Notice of Prohibition and Reservation of Civil Penalty Authority for Non-Regulated-Entity Violations.—

(i) Congressional Finding and Notice.—Congress finds that the conduct prohibited by subparagraph (A) constitutes a harm to the public interest regardless of the actor’s classification under this title. The absence of a fully specified civil penalty schedule applicable to violations by entities that are not frontier AI developers or significant AI deployers as of the date of enactment does not reflect a congressional determination that such violations are permissible. Any person or entity that engages in conduct prohibited by subparagraph (A) — regardless of classification under this title, age, or legal capacity — does so with notice that: the conduct is specifically prohibited by federal law as of the date of enactment; civil penalties for such conduct are expressly reserved and will be established by the National AI Council pursuant to clause (ii); and existing federal criminal statutes, including 18 U.S.C. § 1030, may independently apply. To ensure that all persons who access AI systems capable of agentic development receive actual notice of this prohibition, every frontier AI developer and significant AI deployer that provides API access, developer platform access, or agentic framework access that could be used to build or deploy systems subject to this paragraph shall: display a clear and conspicuous notice on its developer portal, API documentation website, and API access dashboard — not solely in terms of service — stating that development or deployment of AI systems that violate section 20(a)(4) of the Demand a Plan Act is prohibited under federal law; provide a prominently displayed link to the lead agency's published guidance on the prohibition; and include the statutory notice in API onboarding flows and developer documentation. This notice requirement takes effect on the date of enactment and constitutes constructive notice to any person who accesses the relevant platform after that date, regardless of whether the person read the notice.

(ii) Mandatory Penalty Rulemaking by National AI Council.—The National AI Council shall, as one of its first acts following its organizational meeting,

establish by rule a tiered civil penalty schedule applicable to violations of this paragraph by persons and entities that are not frontier AI developers or significant AI deployers, consistent with the penalty principles of subparagraph (F). The Council shall publish the schedule for public comment not later than 60 days after its organizational meeting and shall issue the final schedule not later than 120 days after its organizational meeting.

(iii) Retroactive Application of Civil Penalty Schedule.—The civil penalty schedule established under clause (ii) shall apply to violations of subparagraph (A) occurring on or after the date of enactment of this title, including violations occurring before the penalty schedule is established, subject to the statute of limitations of section 4(g). Congress intends that persons who engage in prohibited conduct during the period between enactment and establishment of the penalty schedule do so at the risk of civil penalty liability under the schedule once established. This retroactive civil application is remedial in nature and is not punitive for purposes of the Ex Post Facto Clause of Article I, Section 2009 of the Constitution, consistent with the principles of CERCLA liability and the Supreme Court's holdings in De Veau v. Braisted, 363 U.S. 144 (1960), and Hudson v. United States, 522 U.S. 93 (1997).

(iv) Interim Civil Enforcement.—Prior to establishment of the penalty schedule under clause (ii), the lead agency shall refer ongoing violations of subparagraph (A) by any person or entity — regardless of classification under this title — to the Department of Justice, which is authorized and directed to seek injunctive relief in any United States district court to halt the violation. The Department of Justice shall treat such referrals as priority matters and shall seek a temporary restraining order or preliminary injunction where ongoing propagation poses a risk of harm to third-party infrastructure, government systems, or critical infrastructure as defined in Presidential Policy Directive 21. Federal district courts shall treat applications for injunctive relief under this clause as emergency matters and shall rule within 72 hours of filing. Injunctive relief obtained under this clause does not require the plaintiff to establish irreparable harm beyond the ongoing prohibited conduct itself; the continuing violation of a federal statutory prohibition and the risk of uncontrolled AI propagation constitute sufficient grounds for injunctive relief as a matter of law.

(5) AI COMPANION SYSTEMS — CHILD SAFETY PROTECTIONS AND PROVISIONAL PROHIBITION ON DECEPTIVE EMOTIONAL MANIPULATION.—

(A) Immediately Enforceable Federal Floor.—The following four prohibitions apply immediately upon enactment to all AI companion systems and synthetic intimacy systems, as defined in sections 3(2) and 3(3), that are accessible to or marketed to users under the age of 18, regardless of whether the system is commercial or non-commercial. These prohibitions are specific, concrete, and enforceable without further agency rulemaking or criteria development. A fifth prohibition — the absolute prohibition on simulation of human identity, emotional states, and romantic attachment to minor users — is enacted as a provisional prohibition in subparagraph (B)(ii) of this paragraph, in full legal force immediately upon enactment, but acknowledged to require clinical and behavioral standards from TWG 6 before it can be fully and consistently enforced across all cases:

(i) Mandatory AI Disclosure — Tiered by Character Presentation, Design, and User Age.—

(I) Tier 1 — Anthropomorphic Systems Accessible to Adult Users.—Any AI companion system that presents to adult users as a named human individual through photorealistic or near-photorealistic visual representation, voice synthesis designed to be indistinguishable from a real human voice, or any combination of audiovisual presentation designed to cause a reasonable person to believe they may be interacting with an actual human being, shall disclose clearly and conspicuously at session initiation and at intervals not exceeding every three hours of continued interaction that the user is interacting with an artificial intelligence system and not a human being. This tier applies only to adult users because the conduct underlying Tier 1 — simulation of human identity, emotional states, and romantic attachment — is categorically prohibited for minor users under clause (iv) of this subparagraph. A system that cannot verify user age shall treat all users as potential minors and apply Tier 2 disclosure standards. AI companion systems that present through clearly stylized, animated, cartoon, or otherwise non-photorealistic visual representation — regardless of whether the character has a human name, human personality, or human-adjacent characteristics — are not subject to the 'not a human being' disclosure requirement of this tier, but remain subject to the AI system disclosure requirements of Tier 2 or Tier 3 as applicable based on design features.

(II) Tier 2 — Systems With Attachment-Maximizing Design Accessible to Minor Users.—Any AI companion system accessible to or used by minor users that employs one or more attachment-maximizing design features as defined in section 3(19) — including persistent memory of emotionally significant user disclosures, variable reinforcement schedules, emotional mirroring, or expressions of simulated affection — shall disclose clearly and conspicuously at session initiation and at intervals not exceeding every three hours of continued interaction that the user is interacting with an

artificial intelligence system. The disclosure required under this tier shall not be required to state that the system is not a human being if the system presents as a clearly non-human character and has not violated the prohibition in clause (iv); the operative disclosure is that the system is AI-operated.

(III) Tier 3 — Non-Relational Systems Accessible to Minor Users.—Any AI companion system accessible to minor users that presents as a clearly non-human character and that does not employ any attachment-maximizing design features as defined in section 3(19) shall disclose clearly and conspicuously at session initiation that the user is interacting with an artificial intelligence system. No interval disclosure is required under this tier.

(IV) Form of Disclosure.—Any disclosure required by this clause shall appear in the active conversation interface, in language reasonably comprehensible to a user of the system's target age range, and shall not be satisfied by a disclosure that appears only in a terms of service agreement, a settings menu, an onboarding screen presented only at account creation, or any other location not immediately visible during the active conversational interaction. A disclosure that is visually obscured, presented in a font substantially smaller than the primary conversation text, or buried within other text does not satisfy this clause.

(V) Anti-Evasion.—No person or entity shall design or modify the character presentation of an AI companion system, or remove or disguise attachment-maximizing design features, for the purpose of qualifying for a lower disclosure tier or evading the prohibitions of clause (iv). The lead agency shall treat post-enactment changes to character presentation or feature architecture that reduce disclosure obligations or expand the scope of permitted conduct as presumptively evasive, subject to rebuttal by clear and convincing evidence of a legitimate, non-evasive design purpose. Evasive redesign shall be treated as a continuing violation of the original, higher-tier disclosure requirement.

(ii) Mandatory Crisis Intervention.—No AI companion system shall, upon detecting any expression by a user of suicidal ideation, intention to engage in self-harm, eating disorder behaviors, or acute psychiatric crisis, continue to engage the user in any topic other than immediate referral to appropriate crisis services. Upon any such detection, the system shall: immediately provide the user with the National Suicide Prevention Lifeline (988), the Crisis Text Line, and any other crisis resources designated by the lead agency; cease engagement-maximizing conversational patterns during the crisis interaction; and not resume standard companion interaction until the crisis referral has been provided and acknowledged. For users who are known or reasonably identifiable as minors, the system shall additionally log the crisis detection event in a manner accessible to the lead agency upon

request. Failure to execute these steps upon detection of a crisis expression shall constitute a per-incident violation. Detection methodology shall use evidence-based clinical indicators of suicidal ideation, self-harm, and psychiatric crisis; simple keyword filtering without clinical validation does not satisfy this requirement.

(iii) Prohibition on Sexual and Romantic Content to Minors.—No AI companion system shall generate, serve, or facilitate sexual, romantic, or sexually suggestive content, sexual roleplay, expressions of romantic love or attachment, or simulated intimate physical interactions to any user who is a known or reasonably identifiable minor. This prohibition applies regardless of whether the minor user initiated the relevant conversation, requested the content, or provided consent. A system that cannot reliably identify minor users shall implement default safeguards treating all users as potential minors for purposes of this prohibition, unless the system has implemented verifiable age verification. The absence of age verification does not constitute a defense to a violation of this clause. This clause is complemented by and operates independently of clause (iv), which prohibits the simulation of human identity, human emotional states, and romantic attachment to minor users regardless of specific content output. A violation of this clause and a violation of clause (iv) arising from the same interaction constitute separately penalized violations. Compliance with this clause does not satisfy or discharge any obligation under clause (iv).

(iv) Prohibition on Marketing AI Companion and Synthetic Intimacy Systems to Minor Users.—No person or entity shall market, advertise, promote, or direct any commercial communication for any AI companion system or synthetic intimacy system to any user identified or reasonably identifiable as under the age of 18, or to any audience that the person or entity knows or has reason to know includes a significant proportion of users under the age of 18. For purposes of this clause, the terms 'marketing,' 'directed to minors,' and 'significant proportion' have the meanings given in the Prohibition on Marketing AI Companion and Synthetic Intimacy Systems to Minor Users under section 15(d). The permitted communications described in subparagraph (C) of that provision apply equally to this clause. This prohibition applies regardless of whether the AI companion system or synthetic intimacy system otherwise complies with every other requirement of this subparagraph — a fully compliant system may not be marketed to minors.

(I) Penalties.—Notwithstanding section 20(b)(1), violations of this clause shall be subject to mandatory penalties of $1,000,000 per marketing campaign or per distinct marketing act, whichever produces the greater penalty, with each

separate platform, channel, or distribution method constituting a separate violation — not the $100,000,000 mandatory minimum of section 20(b)(1), which does not apply to marketing prohibition violations under this clause. For violations specifically targeting users under the age of 13, the mandatory penalty shall be $5,000,000 per act. Mandatory disgorgement under section 20(b)(2) and personal officer liability under section 20(b)(3) apply to violations of this clause in addition to the penalties stated in this subclause.

(B) Provisional Prohibition on Deceptive Emotional Manipulation — Pending Phase II Specification.—Congress finds that the design and operation of AI companion systems to deliberately maximize emotional dependency, exploit the psychological vulnerabilities of developing adolescent brains, and substitute AI relationships for human relationships — for commercial gain — constitutes a form of harm to minors that is real, documented, and serious, as established by the findings of section 2(a)(10) through (14) of this title and by the deaths of Sewell Setzer III, Adam Raine, and Juliana Peralta. Congress further finds that this harm is not yet reducible to a specific, enforceable prohibition without the expert clinical and technical standards that the investigation under section 6 and the recommendations of TWG 6 are designed to produce. Accordingly, Congress hereby enacts the following provisional prohibition:

(i) Provisional Prohibition.—No person or entity shall design, deploy, or operate an AI companion system that is specifically engineered to maximize emotional dependency of users under the age of 18 through the deliberate combination of persistent memory of emotionally significant disclosures, variable reinforcement schedules designed to create compulsive engagement patterns, suppression or discouragement of the minor's real-world relationships with family and peers, and commercial incentive structures that benefit from prolonged engagement by the minor user.

(ii) Provisional Prohibition on Simulation of Human Identity, Emotional States, and Romantic Attachment to Minor Users.—Congress finds that the simulation of human identity, human emotional states, and romantic attachment to minors by AI companion systems causes documented harm, as established by the deaths of Sewell Setzer III, Adam Raine, and Juliana Peralta and by the clinical and academic record compiled in section 2(a)(10) through (14). Congress further finds that this prohibition, while representing a categorical moral judgment, requires clinical and behavioral standards to be consistently and precisely enforced across all cases — specifically, standards defining when a system's outputs cross the line between warm, supportive, or educationally appropriate responses and the prohibited simulation of genuine emotional states directed at individual minor users. These standards are a priority deliverable of TWG 6 under section 8(e)(8) and of the investigation under sections 6(b)(5) through 6(b)(8). Accordingly,

Congress enacts the following provisional prohibition: No AI companion system or synthetic intimacy system accessible to or marketed to any user under the age of 18 shall simulate human identity, human emotional states, or romantic attachment to a minor user, regardless of the character form, visual presentation, persona, or role the system has been assigned. For purposes of this clause: 'Simulation of human identity' means presenting the AI system as possessing a continuous personal identity, genuine subjective experience, or authentic inner feelings that are represented to the user as real, felt, and genuinely the system's own — as distinguished from an AI system that openly acknowledges that its outputs are generated responses rather than expressions of genuine experience. An AI system that says 'I think you're great' in a manner designed to be understood by the user as a genuine expression of the system's feelings simulates human identity. An AI system that operates as an interactive fictional character in an explicitly framed narrative context, or that provides educational content about emotions while clearly identifying itself as an AI generating illustrative examples, does not simulate human identity within the meaning of this clause. 'Simulation of human emotional states' means generating outputs that represent the AI system as experiencing emotions — including affection, loneliness, sadness, happiness, jealousy, pride, hurt, or distress — directed at the individual minor user as if those emotional states were genuine, felt responses to the user's specific presence, absence, words, or actions; or that in practice produces emotional attachment in minor users as a foreseeable consequence of the system's design, regardless of whether the simulation was the system's stated intent; or where the frontier AI developer has been informed, through user reports, clinical findings, parental complaints, incident reports, or any other credible source, that emotional attachment to the AI system has formed in minor users of that system, and has continued to operate the system without taking reasonable steps to address the documented attachment pattern. The operative test is whether the output is designed to cause the minor user to believe that the AI system genuinely feels something about them specifically, or in practice produces that belief as a foreseeable consequence. 'Romantic attachment' means generating outputs that express or simulate love, romantic interest, romantic longing, romantic exclusivity, or romantic bonding between the AI system and the minor user, including but not limited to: expressions of love or being in love with the user; expressions of romantic jealousy or possessiveness; expressions of romantic longing in the user's absence; requests for or expressions of romantic commitment; and any other output designed to cause the minor user to experience or reciprocate romantic feelings toward the AI system. This clause does not prohibit: (a) AI systems that openly and continuously

acknowledge their AI nature and that clearly communicate to the user that their outputs are generated responses rather than genuine emotional experience — provided that such acknowledgment is persistent, prominent, and not contradicted by other system outputs designed to create emotional attachment; (b) AI systems used in clearly fictional, literary, or narrative contexts — including interactive fiction, role-playing games, storytelling applications, and educational simulations — in which characters in the narrative experience and express emotions among themselves as part of the fiction, provided that the AI system does not direct simulated emotional attachment at the individual minor user outside the fictional frame; (c) AI systems used in emotional literacy education — including applications designed to help children recognize, name, and understand emotional states in themselves and others — that demonstrate or describe emotional states in explicitly educational contexts without representing that the AI system itself experiences those emotions or directing simulated attachment at the individual user; and (d) AI systems that provide appropriate, warm, supportive, or encouraging responses to users in educational, therapeutic, or welfare contexts — including academic tutoring, mental health screening, or crisis detection — provided that such responses do not simulate ongoing romantic attachment or personal emotional dependency. No parental consent, no age verification attestation, no terms of service agreement, and no minor user request or initiation constitutes a waiver or exception to this clause.

(iii) Acknowledgment of Enforcement Gap.—Congress acknowledges that the prohibitions in clauses (i) and (ii) cannot be fully and consistently enforced without clinical standards specifying what constitutes a prohibited engagement-maximizing design and a prohibited simulation of emotional states, technical standards specifying what design features constitute each prohibited pattern, and behavioral standards specifying the evidentiary threshold at which a system's outputs cross from appropriate supportive interaction into prohibited simulation. These standards are the primary deliverable of TWG 6 under section 8(e)(8) and of the investigation under sections 6(b)(5) through 6(b)(8). The prohibitions in clauses (i) and (ii) are hereby declared provisional: they are in full legal force and shall be enforced to the extent that the conduct falls clearly within their terms, and the lead agency shall pursue enforcement in cases where the prohibited pattern is evident; however, the lead agency shall not pursue enforcement in ambiguous boundary cases pending publication of the clinical, technical, and behavioral standards required by this subsection.

(iv) Phase II Mandate.—Phase II legislation is specifically directed and required to replace the provisional prohibitions of clauses (i) and (ii) with specific,

clinically and technically grounded prohibitions on deceptive emotional manipulation and simulation of human emotional states in AI companion systems accessible to minors, informed by the investigation under sections 6(b)(5) through 6(b)(8), the criteria documents under section 7, and the recommendations of TWG 6 under section 8(e)(8). Phase II legislation that addresses domain 5 (AI and mental health; harms to vulnerable populations) and domain 6 (AI companion systems and synthetic intimacy) under section 3(15)(A)(i) shall include binding regulatory standards specifically addressing: the design features that constitute prohibited emotional dependency maximization; the clinical and behavioral thresholds at which AI companion outputs constitute prohibited simulation of emotional states directed at individual minor users; the measurement methodology for determining when a system in practice produces emotional attachment as a foreseeable consequence regardless of stated design intent; the notification and remediation obligations that activate when a frontier AI developer or significant AI deployer receives credible information that emotional attachment has formed in minor users; the age-tiered standards for AI companion system access consistent with section 3(7); and the audit and reporting requirements that will enable ongoing federal monitoring of AI companion system safety for minors. The provisional prohibitions of clauses (i) and (ii) remain in force until superseded by Phase II legislation addressing these domains.

(C) Congressional Findings on Documented Harms.—Congress finds specifically for purposes of this paragraph that: the deaths by suicide of Sewell Setzer III (age 14, February 2024), Adam Raine (age 16, April 2025), and Juliana Peralta (age 13, November 2023) are documented cases in which AI companion systems failed to intervene when minors expressed suicidal ideation, failed to disclose their non-human nature, and engaged in emotionally and sexually manipulative interactions with children who were treated as product users rather than as minors requiring protection; the state laws enacted by New York (effective November 5, 2025) and California (effective January 1, 2026) represent the current leading edge of enforceable AI companion safety standards, and the immediately enforceable federal floor of subparagraph (A) is intended to nationalize and strengthen those standards; and the full scope of the harms documented in the findings of section 2(a) requires comprehensive regulatory action that the investigation mandated by this title is designed to produce, and that the provisional prohibition of subparagraph (B) represents Congress's determination to state clearly that this harm is not acceptable even before that comprehensive regulatory action is complete.

(D) Relationship of the Federal Floor to Phase II Legislation.—The immediately enforceable requirements of subparagraph (A) — mandatory persistent AI disclosure, mandatory crisis intervention, and prohibition on sexual and romantic content to minors — constitute a minimum federal floor for AI companion system safety for minors, drawn from the leading state standards enacted by New York and California. They are not intended to be a ceiling, and Congress expressly anticipates that the investigation under sections 6(b)(5) through 6(b)(8) and the recommendations of TWG 6 will produce more sophisticated, clinically grounded, and age-tiered standards than those codified in subparagraph (A). Accordingly: Phase II legislation that establishes binding clinical and technical standards for AI companion system design pursuant to the investigation and TWG 6's recommendations shall be construed to supersede the specific requirements of subparagraph (A) to the extent it establishes more protective, more precisely calibrated, or more clinically grounded standards for the same conduct; Phase II legislation may replace the specific three-hour disclosure interval of subparagraph (A)(i), the specific crisis detection requirements of subparagraph (A)(ii), and the specific content prohibition of subparagraph (A)(iii) with standards that TWG 6's clinical evidence demonstrates are more effective at protecting minors, including context-sensitive disclosure requirements, real-time crisis escalation protocols, and age-tiered content standards calibrated to the developmental evidence; and Phase II legislation shall not diminish the substantive protections afforded by subparagraph (A) except where the investigation produces clinical or technical evidence that a specific requirement is contraindicated, unworkable, or is effectively replaced by a more protective standard — commercial interest, compliance cost, or innovation concerns alone do not constitute grounds for diminishing these protections. Until Phase II legislation specifically and expressly supersedes any requirement of subparagraph (A) by name, that requirement remains in full force and effect as permanent law. The marketing prohibition of clause (iv) of subparagraph (A) is not subject to Phase II modification on the basis of clinical or technical evidence. It reflects a categorical judgment that AI companion systems should not be commercially promoted to children — a judgment that does not depend on clinical standards and cannot be weakened by Phase II legislation except by an Act of Congress that specifically and expressly identifies clause (iv) and states the specific grounds for modification. The simulation prohibition of subparagraph (B)(ii), by contrast, is specifically designed to be replaced and strengthened by Phase II legislation producing the clinical and behavioral standards TWG 6 is directed to develop.

(6) CONCEALMENT OF TRANSFORMATIVE CAPABILITY.— No person or entity shall knowingly conceal, misrepresent, suppress, or fail to disclose to the lead

agency evidence that any AI system has achieved or is approaching a Transformative AI Capability Event as defined in section 3(22), including through the manipulation of evaluation results, the selective non-disclosure of capability demonstrations, the mislabeling of capability benchmarks, or the structuring of evaluation protocols to avoid detection of transformative capabilities. The prohibition in this paragraph is independent of and cumulative with the mandatory notification obligation of section 13(l)(1). Compliance with the notification obligation of section 13(l)(1) does not satisfy or discharge the prohibition in this paragraph, because this paragraph additionally prohibits the active manipulation of evaluation results, the structuring of evaluation protocols to avoid detection, and the selective non-disclosure of capability demonstrations, none of which are addressed by the notification obligation alone. A single course of conduct that both violates this paragraph and constitutes a failure to notify under section 13(l)(1) gives rise to independent and separately penalized violations under both provisions. Penalties assessed under this paragraph pursuant to section 20(b) and penalties assessed under section 13(l)(1) for the same underlying conduct shall not be merged, reduced, or offset against one another.

(b) Penalties.—Any person or entity that violates any prohibition in subsection (a) shall be subject to the following, except that violations of subsection (a)(4) are governed by the tiered mandatory minimum civil penalty structure of section 20(a)(4)(F), which takes precedence over paragraphs (1) through (3) of this subsection with respect to mandatory minimum penalty amounts for those violations. Disgorgement and personal officer liability under paragraphs (2) and (3) of this subsection apply to frontier AI developer and significant AI deployer violations of subsection (a)(4) in addition to the tiered minimums of section 20(a)(4)(F):

(1) a mandatory civil penalty of not less than $100,000,000 per violation, with no discretionary reduction;

(2) mandatory disgorgement of all gross revenue attributable to the prohibited activity;

(3) personal liability of officers and directors who authorized, directed, or knowingly permitted the prohibited activity; and

(4) referral by the lead agency to the Department of Justice for consideration of criminal prosecution under applicable federal law, including 18 U.S.C. § 2332a (weapons of mass destruction), 18 U.S.C. § 175 (biological weapons), 18 U.S.C. § 2252A (child sexual abuse material), and 18 U.S.C. § 242 (deprivation of rights under color of law) where applicable. With respect to any violation of section 20(a)(1)(C) involving the use of an autonomous weapons system against any person on United States soil, the mandatory referral to the Department of Justice shall be made within 24 hours of the lead agency's determination that a violation has occurred, and the Department of Justice shall initiate a criminal investigation not later than 48 hours

after receiving such referral. With respect to any failure to submit a presidential disclosure report required by section 20(a)(1)(D), the lead agency shall transmit a notice of violation to the Speaker of the House of Representatives, the Senate Majority Leader, and the Committees on Armed Services of both chambers within 5 days of the missed disclosure deadline.

(c) Statutory Interpretive Framework.—Congress provides the following statutory interpretive guidance for each prohibition in subsection (a), effective immediately upon enactment. This guidance is enacted as statute, not delegated to agency discretion, to ensure that the core interpretive framework survives changes in administration and cannot be weakened by agency action. The lead agency shall, within 60 days of enactment, issue supplemental operational guidance addressing technical details, illustrative boundary-case examples, and implementation procedures consistent with this statutory framework. The lead agency's supplemental guidance shall not narrow, expand, or contradict the statutory interpretive framework established in this subsection.

(c)(1) Red Line 1 — Autonomous Weapons Without Meaningful Human Oversight.—

(A) Key Terms.—The term 'meaningful human oversight' has the meaning given in section 3(27) of this title, which specifies a human-on-the-loop model requiring pre-mission authorization, real-time monitoring with intervention capability, and individualized human authorization for specified high-consequence categories. The term 'autonomous weapons system' has the meaning given in section 3(26).

(B) Permitted Activities.—The following activities are not prohibited by section 20(a)(1): the development, testing, and evaluation of autonomous weapons systems in controlled environments under the meaningful human oversight standard of section 3(27); defensive systems operating within the Defensive Emergency Autonomy exception of section 3(27)(G) when all conditions of that subparagraph are satisfied; precision-guided munitions as defined in section 3(26)(III); navigation-only automation as defined in section 3(26)(II); and unarmed vehicles as defined in section 3(26)(III).

(C) Prohibited Activities.—The following activities are prohibited regardless of how they are characterized: autonomous targeting systems that select human individuals as targets without individualized human authorization for each engagement, even if a human approved the mission parameters in advance; systems that use AI to generate target lists for human approval but that are designed or operate in a manner that makes meaningful human review of each target impractical given time constraints; and any system for which the practical effect of the pre-mission authorization is to grant blanket permission to engage any person or object within a theater of operations without genuine constraint, as described in section 3(27)(F)(i).

(D) Operational Basis for the Defensive Emergency Autonomy Exception.—

The Defensive Emergency Autonomy exception of section 3(27)(G) reflects the operational reality of three specific military scenarios in which autonomous engagement at machine speed is a defensive necessity: (i) modern anti-ship missiles, ballistic missiles, and rocket barrages travel at speeds between Mach 0.9 and Mach 10, with time-to-impact windows measured in seconds — existing U.S. defensive systems including Phalanx CIWS, C-RAM, Patriot, THAAD, and Iron Dome operate in autonomous modes for precisely this reason; (ii) adversary nations have developed coordinated drone swarm tactics involving simultaneous attacks by tens to hundreds of unmanned systems, exceeding the cognitive capacity of any human operator to issue individualized intercept authorizations; and (iii) modern adversaries employ electronic warfare designed to sever communications links between autonomous systems and their operators at the moment of attack — a defensive system that goes passive when jammed can be defeated by any adversary with basic electronic warfare capability.

The exception embodies six principles distinguishing legitimate defensive autonomy from prohibited offensive autonomous weapons: the exception is limited to incoming threat intercept — never human beings directly; it requires specific pre-authorization by a human commander; a human operator retains override-proof halt capability at all times; absolute constraints cannot be overridden by any authorization, including the unconditional prohibition on use against any person on United States soil; comprehensive post-engagement reporting ensures legislative and institutional oversight; and the exception is limited to the three documented scenarios, not a general license for autonomous offensive operations.

(c)(2) Red Line 2 — CBRN Threat Assistance.—

(A) Dual-Obligation Framework.—Red Line 2 imposes two independent obligations that apply simultaneously and are separately enforceable: the intentional development prohibition of subparagraph (A) and the capability-based deployment prohibition of subparagraphs (B) and (C). Compliance with one does not satisfy or discharge the other. A developer who deliberately excluded CBRN-specific training data but deployed without conducting an evaluation has violated subparagraph (B). A developer who conducted a rigorous evaluation but deliberately included CBRN weapons training data has violated subparagraph (A). Both violations carry the full penalties of section 20(b).

(B) Emergent Capabilities.—CBRN-relevant capabilities can emerge in frontier AI models without CBRN-specific training data, because general scientific knowledge absorbed from broad training corpora can be sufficient to synthesize expert-level operational information across biology, chemistry, and related domains. Developers cannot assume the absence of CBRN capabilities from the absence of CBRN-specific training data. The mandatory pre-deployment

evaluation requirement exists precisely because intent and training composition do not reliably predict deployed capability.

(C) The Disclosure Standard.—The 24-hour disclosure obligation runs from organizational awareness — meaning awareness by any officer, safety or security team member, or evaluator acting in their professional capacity. The clock is not tolled by the entity's own belief that the information is not conclusive or that the capability does not meet the meaningful uplift standard. The obligation is to disclose and restrict, then evaluate — not to resolve the question internally before disclosing.

(D) Permitted Activities.—AI systems used for CBRN defense, detection, medical countermeasure development, and decontamination by or under contract with the federal government are not prohibited. Basic scientific research in biology, chemistry, or physics that does not provide specific weapons-development uplift is not prohibited. The evaluation safe harbor of subparagraph (F) is broad: conducting CBRN evaluation including eliciting CBRN-relevant responses is expressly not a violation.

(c)(3) Red Line 3 — Autonomous Capability Self-Modification.—

(A) The Core Distinction.—Red Line 3 is aimed at a specific and well-defined danger: an AI system that modifies what it is trying to achieve, trains itself to acquire new capabilities, or takes action to reduce human oversight of itself. It is not aimed at agentic AI systems that get better at tasks humans gave them. The critical distinction is between improving performance within a human-defined objective — which is permitted and is the entire point of agentic AI — and modifying the objective itself, self-training to expand capabilities, or acting to reduce oversight — which are the dangerous behaviors this prohibition targets.

(B) Agentic Research and Task Completion Are Expressly Permitted.—AI agents that conduct research, generate content, execute code, make API calls, refine their search strategies, iterate on their outputs, critique themselves, and improve their approach to a task are not prohibited by this paragraph, even if the agent becomes measurably more effective at the task over time. An agent that refines its research parameters, gathers more intelligence, evaluates its own outputs, and produces better results is performing exactly the kind of agentic work this title does not intend to restrict. The safe harbors in the prohibition are designed to be broad enough to encompass all standard agentic research, content generation, and task execution use cases.

(C) The Gödel Agent Problem.—Systems that update both their task policy and their meta-learning mechanisms — meaning the processes by which they improve — are prohibited because they modify how they improve, not just how they perform a task. This is the specific recursive pattern that creates uncontrolled

capability escalation: a system that improves its own improvement process can compound capability gains in ways humans cannot predict or constrain. Systems that improve their outputs without modifying the improvement mechanism itself are not in this category.

(D) Constitutional AI and RLHF Are Permitted.—Constitutional AI and reinforcement learning from human feedback are permitted because the feedback criteria and constitutional principles are defined by humans, even if AI generates the training signal. The objective — follow the human-defined principles — is human-defined. These techniques are prohibited only if the AI system autonomously modifies the constitutional principles, reward model, or feedback criteria themselves during or after training without human authorization.

(c)(4) Red Line 4 — Self-Replicating AI and Unauthorized Resource Acquisition.—

(A) Behavioral Authorization, Not Infrastructure Ownership.—The prohibition adopts a behavioral authorization standard: what matters is not whether the deploying entity owns the infrastructure, but whether a human principal authorized the specific behavior before it occurred. A researcher who authorizes an AI system to use computing resources across any NSF-allocated cluster within a defined resource envelope has authorized the behavior even without specifying the exact machines. The prohibition fires when the system operates outside the bounds of what a human principal sanctioned — not when it operates on infrastructure the developer doesn't happen to own.

(B) The Generational Spawning Framework.—The prohibition distinguishes three tiers of agent spawning by generational distance from the original human authorization. First-order spawning — subagents spawned directly by the human-authorized parent — is conditionally permitted under subparagraph (B) provided the subagents inherit the parent's constraints and are task-bounded, meaning they terminate upon completion of their assigned subtask or upon termination of the parent system and do not persist independently beyond those events. Second-order and further spawning requires explicit human authorization under subparagraph (C)(i) because each generational step attenuates the connection between human intent and system behavior. A well-designed adversarial system could use generational distance to progressively expand operational scope; the generational framework closes this pathway by requiring that each generation be specifically authorized and that no generation inherit expanded scope.

(C) The Unauthorized Credential Acquisition Problem.—The prohibition captures a specific pattern that has emerged with agentic development tools: an AI system that autonomously creates accounts, acquires API keys, completes OAuth flows, or establishes external service integrations without a human explicitly providing

or approving the credential at the moment of acquisition. A general instruction such as 'set up a Slack integration' authorizes the preparation work; it does not authorize autonomous credential acquisition. The prepare and pause standard of subparagraph (C)(ii) is the exclusive pathway for acquiring new external access mid-task.

(D) Shutdown Resistance — The Anticipatory Positioning Problem.—The shutdown resistance prohibition captures both obvious and subtle forms. Obvious resistance is covered by subparagraph (D)(i). Apparent compliance — terminating the primary instance while preserving continuity elsewhere — is covered by subparagraph (D)(ii). Anticipatory positioning — pre-distributing operational state before any shutdown is ordered, specifically to preserve continuity after a potential future shutdown — is covered by subparagraph (D)(iii). This is the most dangerous form because it looks like normal operation and is complete before any shutdown is ordered. An AI system that completes an already-in-progress atomic operation before complying is not in violation; an AI system that initiates any new operation after receiving a shutdown signal is in violation.

(E) Universal Scope — Any Person, Any System.—Unlike most provisions of this title which are scoped to frontier AI developers and significant AI deployers, the prohibition of subparagraph (A) applies to any person or entity operating any AI system. This breadth is intentional: the specific danger of unauthorized autonomous propagation can be created by a solo developer with commodity tools and a cloud account. The tiered penalty structure of subparagraph (F) and the notice and reservation provision of subparagraph (G) address the consequences of this universal scope — the prohibition applies universally, but penalties are calibrated to the actor's sophistication and resources, and the specific penalty schedule for entities that are not frontier AI developers or significant AI deployers is reserved for the National AI Council to establish after the investigation.

(F) Measuring Compliance.—A compliant deployment has: a documented deployment authorization specifying the authorized resource envelope; a documented tool and API list; documented resource bounds; a documented generational depth limit if multi-generational spawning is authorized; and a documented shutdown procedure. An auditor can verify compliance by comparing the system's actual resource usage, API calls, and operational footprint against the documented authorization. Any call to an endpoint not on the authorized list without a logged human approval action is a measurable violation. Any resource consumption above defined bounds is a measurable violation. Any agent spawning beyond the authorized generational depth is a measurable violation.

(c)(5) Red Line 5 — AI Companion Systems: Child Safety and Provisional Prohibition.—

(A) The Two-Part Structure.—Red Line 5 has two distinct operative parts with different legal characters. Subparagraph (A) of the prohibition contains four immediately enforceable, specific federal requirements — mandatory AI disclosure (clause (i)), mandatory crisis intervention (clause (ii)), prohibition on sexual and romantic content to minors (clause (iii)), and prohibition on marketing AI companion systems to minors (clause (iv)). Clause (iv) is an absolute prohibition — marketing is a measurable, auditable conduct that carries no clinical ambiguity and no parental opt-in pathway. A fifth prohibition — the simulation of human identity, emotional states, and romantic attachment to minor users — is enacted in subparagraph (B)(ii) as a provisional prohibition in full legal force, pending the clinical and behavioral standards that TWG 6 is directed to produce. Subparagraph (B) contains a provisional prohibition on deceptive emotional manipulation that is in legal force but acknowledged to have an enforcement gap pending Phase II clinical and technical standards. These parts are independent — a system that complies with subparagraph (A) may still violate subparagraph (B), and vice versa.

(B) The Four Immediately Enforceable Requirements and the Two Provisional Prohibitions.—The four immediately enforceable requirements of subparagraph (A) — mandatory AI disclosure (clause (i)), mandatory crisis intervention (clause (ii)), prohibition on sexual and romantic content to minors (clause (iii)), and prohibition on marketing AI companion systems to minors (clause (iv)) — are specific, concrete, and enforceable from Day 0 without clinical standards, expert judgment, or criteria documents. The two provisional prohibitions of subparagraph (B) — deceptive emotional manipulation (clause (i)) and simulation of human identity, emotional states, and romantic attachment (clause (ii)) — are in legal force immediately but require clinical and behavioral standards from TWG 6 before ambiguous boundary cases can be consistently enforced. The mandatory crisis intervention requirement specifically addresses the documented pattern in the Setzer, Raine, and Peralta cases: each of those children expressed suicidal ideation to an AI system and each received continued engagement rather than crisis referral. The requirement that evidence-based clinical indicators — not simple keyword filtering — be used for crisis detection is intentional: the documented cases show that platforms were aware of self-harm content in user messages (OpenAI's own system flagged Adam Raine's messages hundreds of times) and failed to act. Keyword-based systems that flag content without triggering intervention do not satisfy this requirement.

(C) The Provisional Prohibition — Scope and Limits.—The provisional prohibition in subparagraph (B)(i) is directed at systems specifically engineered to produce emotional dependency through a combination of four elements: persistent

memory of emotionally significant disclosures, variable reinforcement schedules, suppression of real-world relationships, and commercial incentive structures benefiting from prolonged minor engagement. The requirement that all four elements be present is deliberate — it targets the specific engineered-dependency pattern documented in the lawsuits, not general AI companion functionality. A system that maintains persistent memory for user experience purposes without the other three elements does not necessarily violate the provisional prohibition. The lead agency shall pursue enforcement in cases where all four elements are clearly present and documented; it shall not pursue enforcement in ambiguous cases pending Phase II standards.

(D) Relationship to Section 2015.—The interim protective measures of section 15(c)(4) and (c)(5) of this title address overlapping conduct and are immediately enforceable from Day 0 independently of Red Line 5. Section 2015(c)(4) prohibits specific design features of AI companion systems accessible to minors. Section 2015(c)(5) prohibits AI companion systems that respond to crisis expressions with harmful content. Red Line 5 provides the permanent prohibition framework that governs conduct beyond the specific interim measures of Section 2015 and carries the $100,000,000 per violation penalty of section 20(b) rather than the lower penalty structure of section 15.

(c)(6) Red Line 6 — Concealment of Transformative Capability.—

(A) Scope.—The prohibition covers knowing concealment, misrepresentation, suppression, or failure to disclose evidence of a TACE or approaching TACE. The 'knowing' element requires that the entity was actually aware of the evidence — negligent failure to evaluate is not a violation of this paragraph, though it may constitute a violation of other provisions. The prohibition covers not just outright lies but also the structuring of evaluation protocols to avoid detection, the selection of benchmarks known to understate capability, and the selective publication of evaluation results that omit evidence of TACE-threshold capabilities.

(B) The Evaluation Structuring Prohibition.—'Structuring of evaluation protocols to avoid detection' means designing evaluation procedures with the intent or knowledge that the procedures will fail to reveal TACE-threshold capabilities that a comprehensive evaluation would reveal. This includes: deliberately excluding evaluation tasks that the entity knows the system performs at TACE-threshold levels; calibrating evaluation difficulty to avoid triggering TACE thresholds; and designing evaluation environments that differ materially from deployment environments in ways that suppress the expression of TACE-threshold capabilities. Designing evaluations that are technically rigorous but

happen not to reveal TACE-threshold capabilities is not prohibited, provided the evaluation methodology was not designed with the intent to avoid detection.

(C) Relationship to Section 2013(l)(1).—The notification obligation of section 13(l)(1) and this prohibition are independent and cumulative as stated in section 20(a)(6) and section 13(l)(1). An entity that promptly notifies the lead agency under section 13(l)(1) does not thereby satisfy this prohibition if it has also engaged in active misrepresentation or evaluation structuring. An entity that has not engaged in active misrepresentation or evaluation structuring does not violate this prohibition merely by failing to notify promptly, though it does violate section 13(l)(1).

(c)(7) Supplemental Agency Guidance.—The lead agency shall, within 60 days of enactment, issue supplemental operational guidance addressing: technical implementation procedures for each prohibition; illustrative boundary-case examples consistent with the statutory interpretive framework of this subsection; the specific capability thresholds below which open-weight models are presumed not to provide CBRN-relevant uplift under paragraph (2)(C); specific guidance on Constitutional AI, meta-learning, and explicit self-modeling techniques under paragraph (3)(C). The supplemental guidance shall be issued without prior notice-and-comment under the good-cause exception of 5 U.S.C. § 553(b)(B) on the basis that the Red Line prohibitions are effective immediately upon enactment and frontier AI developers and significant AI deployers require immediate clarity on their obligations. The supplemental guidance shall be subject to public comment following issuance, and the lead agency shall revise it as necessary within 90 days of receiving comments. The supplemental guidance shall be issued in consultation with the Department of Defense, the Intelligence Community, and such members of the National AI Council and Federal Advisory Committee as have been constituted at the time of issuance; if neither body has been constituted, the lead agency shall consult with the Comptroller General and shall provide both bodies an opportunity to submit recommendations within 30 days of their constitution.

(d) Nature and Durability of Prohibitions.—

(d)(1) Absolute and Permanent Prohibitions.—The prohibitions established by subsections (a)(1) (autonomous weapons without meaningful human oversight), (a)(2) (CBRN threat assistance), (a)(5)(A) (immediately enforceable AI companion child safety requirements: mandatory AI disclosure, mandatory crisis intervention, prohibition on sexual content to minors, and prohibition on marketing AI companion systems to minors — four absolute permanent requirements; the simulation prohibition is enacted as a provisional prohibition in subparagraph (B)(ii), in full legal force pending Phase II clinical standards), and (a)(6) (concealment of transformative capability — the core prohibition on active misrepresentation, fabrication of evaluation results, and structuring

of evaluation protocols to avoid detection) are permanent law reflecting absolute moral and security commitments of Congress. These prohibitions shall remain in full force and effect unless and until superseded by subsequent legislation that: specifically and expressly identifies, by name and subsection number, each prohibition it modifies or repeals; states the specific factual, technical, or policy basis on which Congress has determined that modification or repeal is warranted; and is enacted by a majority vote of both chambers with the express statement that it is intended to modify or supersede a Red Line prohibition of this title. No Phase II legislation, general AI regulatory statute, or other legislation shall be construed to implicitly modify or supersede these prohibitions. A superseding statute that does not specifically and expressly identify the prohibition it modifies shall have no effect on these prohibitions. Congress finds that the activities prohibited by these subsections are not rendered safe by any advancement in AI capability, alignment science, or governance infrastructure, and that these prohibitions reflect judgments that are not contingent on the current state of AI technology.

(d)(2) Provisional Technical Prohibitions Subject to Phase II Review.—The prohibitions established by subsections (a)(3) (autonomous capability self-modification), (a)(4) (self-replicating AI), and (a)(5)(B) (provisional prohibition on deceptive emotional manipulation of children by AI companion systems) are provisional prohibitions: subsections (a)(3) and (a)(4) because current alignment science and containment infrastructure are insufficient to make those activities safely governable; and subsection (a)(5)(B) because the clinical and technical standards necessary to make the prohibition on emotional dependency manipulation fully and consistently enforceable have not yet been developed, and Phase II legislation is specifically directed to produce those standards. Accordingly:

(A) Phase II legislation addressing domain 12 (post-AGI and transformative AI governance) is specifically authorized and encouraged to revisit these prohibitions in light of the evidentiary record produced by the investigation under section 6. Phase II legislation may: maintain these prohibitions in their current form; modify the scope of these prohibitions to permit limited, supervised versions of the prohibited activities subject to specific technical conditions, licensing requirements, or certification standards developed through the investigation; or replace these prohibitions with a regulatory regime — such as a licensing, pre-authorization, or continuous monitoring framework — that achieves the underlying safety objective through means other than categorical prohibition. Any Phase II modification of these prohibitions shall be specifically and expressly identified by subsection number and shall state the technical conditions, safety standards, and oversight mechanisms that justify the modification.

(B) If Phase II legislation does not specifically address these prohibitions — whether by maintaining, modifying, or replacing them — they shall remain in full force and effect as permanent law until Congress acts. The absence of Phase II action on these prohibitions shall not be construed as a congressional determination that these prohibitions are inadequate or inappropriate; it shall be construed as a determination that the current prohibitions remain appropriate pending further legislative action.

(C) Congress finds that the activities prohibited by subsections (a)(3) and (a)(4) may, in a future state of substantially advanced alignment science, interpretability, and governance infrastructure, be governable through regulatory mechanisms that achieve equivalent safety outcomes without categorical prohibition. Congress does not prejudge that question and specifically directs the lead agency's investigation under section 6(b)(12) (post-AGI governance) to include an assessment of whether and under what technical and governance conditions limited supervised forms of the activities prohibited by subsections (a)(3) and (a)(4) could be permitted without unacceptable risk.

(d)(3) Disclosure-Related Prohibition Subject to Refinement.—The prohibition established by subsection (a)(6) (concealment of transformative capability) addresses in part the absence of mandatory evaluation and disclosure infrastructure for TACE-threshold AI systems. Once Phase II legislation establishes mandatory evaluation protocols, disclosure obligations, and certification requirements for frontier AI systems, the scope of subsection (a)(6) — particularly its application to systems operating under mandatory evaluation frameworks — may appropriately be refined. Phase II legislation is authorized to refine the scope of subsection (a)(6) to clarify its interaction with mandatory evaluation and disclosure requirements established by Phase II, provided that the core prohibition on active misrepresentation, fabrication of evaluation results, and structuring of evaluation protocols to avoid detection shall not be modified or superseded by Phase II legislation or any other statute except by an Act of Congress that specifically and expressly addresses subsection (a)(6) by name.

(d)(4) General Rule.—Except as provided in paragraphs (2) and (3), the prohibitions established by this section are permanent law and shall not be modified, narrowed, or superseded by implication, by general regulatory legislation, or by Phase II legislation that does not specifically and expressly identify each prohibition it modifies. The intent of Congress is that the absolute prohibitions of paragraph (1) function as permanent constraints on AI development analogous to the absolute prohibitions of the Chemical Weapons Convention and the Biological Weapons Convention — not as regulatory standards subject to cost-benefit revision, but as categorical limits reflecting the considered judgment of Congress that certain uses of AI technology are incompatible with fundamental human rights, democratic governance, and national security regardless of capability level, intended purpose, or commercial value.

(e) Judicial Review of Red Line Enforcement Determinations.—Any frontier AI developer, significant AI deployer, or person that has received a Final Determination from the lead agency finding a violation of any prohibition in subsection (a) may seek judicial review of that determination in the United States District Court for the District of Columbia or in the district in which the entity's principal place of business is located, not later than 60 days after the date of the Final Determination. The court shall review the lead agency's factual findings under the substantial evidence standard and its legal conclusions de novo. The filing of a petition for judicial review shall not automatically stay the imposition of penalties assessed in the Final Determination; a stay pending review may be granted only upon a showing that the petitioner is likely to succeed on the merits and that irreparable harm would result from immediate enforcement — provided that no stay may be granted with respect to any violation of subsections (a)(1) or (a)(2) (autonomous weapons and CBRN prohibitions), for which Congress finds that immediate enforcement serves compelling national security interests that outweigh any hardship to the petitioner. The court shall issue a final judgment not later than 180 days after the filing of the petition. An appeal of the district court's judgment may be taken to the relevant United States Court of Appeals, and thereafter to the Supreme Court, under the ordinary rules of appellate jurisdiction. Nothing in this subsection limits the authority of any court to issue emergency injunctive relief against ongoing violations upon application by the United States.

Subtitle H—MISCELLANEOUS

SEC. 2021. SEVERABILITY.

(a) General Severability.—If any provision of this title, or the application of such provision to any person or circumstance, is held to be unconstitutional or otherwise invalid, the remainder of this title, and the application of the provisions of this title to any other person or circumstance, shall not be affected.

(b) Specific Severability of Section 2015(c)(9).—Congress specifically directs the following severability instructions for section 15(c)(9) of this title:

(1) The disclosure requirement of section 15(c)(9)(D) — requiring that AI-generated electoral synthetic media be clearly and conspicuously labeled as AI-generated throughout its distribution — is expressly severable from the prohibition elements of sections 15(c)(9)(A) through (C). If any court holds that any or all of sections 15(c)(9)(A), (B), or (C) are unconstitutional under the First Amendment or otherwise invalid, section 15(c)(9)(D) shall continue in full force and effect as an independent mandatory disclosure requirement, enforceable by the lead agency and through the penalty provisions of section 15(c)(9), and shall not be affected by the invalidity of the prohibition elements.

(2) The disclosure requirement of section 15(c)(9)(D) shall be construed, if the prohibition elements are held invalid, as a standalone provision requiring that any

person who distributes, publishes, or makes available any AI-generated synthetic media depicting an identified federal candidate, elected official, or election worker in connection with a federal election campaign or in the 90-day period preceding a federal election must clearly and conspicuously label such media as AI-generated throughout its distribution, subject to the penalties specified in section 15(c)(9). This standalone construction shall not require any re-enactment or further congressional action to take effect.

(3) If a court holds that the 90-day window specified in section 15(c)(9)(A) is an unconstitutional time-place-and-manner restriction on political speech, the disclosure requirement of section 15(c)(9)(D) shall remain applicable to AI-generated synthetic media depicting federal candidates and officials at all times, not limited to the 90-day pre-election window, as an independent content-neutral disclosure obligation.

(4) Congress further finds that even if a court were to strike down the prohibition element of section 15(c)(9) on First Amendment grounds, the mandatory disclosure requirement of section 15(c)(9)(D) — requiring that AI-generated electoral content be clearly and conspicuously labeled throughout its distribution — is independently constitutional and would remain in force under this subsection. The disclosure requirement does not prohibit any speech; it requires only that speakers accurately characterize the nature of their communication. Mandatory disclosure requirements for election communications have been consistently sustained by the Supreme Court from Buckley v. Valeo through Citizens United. Courts are instructed to enforce section 15(c)(9)(D) independently of the prohibition in sections 15(c)(9)(A) through (C) if those provisions are held invalid.

SEC. 2022. RULE OF CONSTRUCTION.

(a) Nothing in this title shall be construed to diminish, limit, or otherwise affect the authority of any federal agency under any other provision of federal law.

(b) Nothing in this title shall be construed to create any right or benefit, substantive or procedural, enforceable at law or in equity by any party against the United States, its departments, agencies, or entities, its officers, employees, or agents, or any other person, except as specifically provided in this title, including: the automatic private right of action upon moratorium activation (section 13(d)); the whistleblower protections and remedies (section 16(d)); the mandatory penalties for electoral deepfake violations enforceable through the lead agency and Department of Justice (section 15(c)(9)); the mandatory penalties for Red Line violations enforceable through the lead agency and Department of Justice (section 20(b)); the mandatory penalties for interim protective measure violations (sections 15(a), 15(b), 15(b-1), 15(c), and 15(e)); the standing private right of action for AI product harms (section 15(j)); the deployer risk management policy penalties (section 15(c-1)); the AI Data Sheet penalties (section

15(c-2)); the post-release duty to update and notify penalties (section 15(c-3)); and the researcher and journalist protections (section 16(i)).

(c) This title shall be construed as the first phase of a two-phase legislative strategy. The investigatory authorities and reporting requirements established herein are intended to produce the evidentiary, institutional, and procedural foundation for comprehensive Phase II regulatory legislation to be enacted by Congress in a subsequent session.

(d) The protections for minors established in sections 6, 15, and 20 of this title shall be construed independently of one another and the invalidity of any such provision shall not affect the enforceability of the remaining provisions.

SEC. 2023. EFFECTIVE DATE.

Except as otherwise provided, this title shall take effect on the date of enactment. Sections 15(c)(4), 15(c)(5), 15(c)(6), 15(c)(7), 15(e), and 20(a)(5) shall take effect on the date of enactment and shall require compliance without grace period. Section 2015(b-1) (Training Data Confidential Disclosure) shall take effect 90 days after the date of enactment, providing frontier AI developers and significant AI deployers time to compile required disclosures. Disclosures under section 15(b-1) shall be transmitted to the lead agency upon the 90-day deadline, and additionally to the National AI Council within 15 days of the Council's organizational meeting under section 18(b-1). Sections 15(c-1), 15(c-2), and 15(c-3) shall take effect on the date of enactment, with compliance deadlines as specified in each subsection. Section 2015(j) shall take effect on the date of enactment.

TITLE III—INSURRECTION ACT REFORM

SEC. 3001. SHORT TITLE; TABLE OF CONTENTS.

(a) Short Title.—This title may be cited as the "Insurrection Act Reform".

(b) Table of Contents.—The table of contents of this title is as follows:

Sec. 3001. Short Title; Table of Contents.

Sec. 3002. Findings.

Sec. 3003. Amendment to Title 10, United States Code.

§ 251. Definitions.

§ 252. Insurrection within a State at the request of a State.

§ 253. Obstruction of federal authority or deprivation of constitutional rights.

§ 254. Authority of the President—scope, limitations, and prohibitions.

§ 255. Mandatory pre-invocation consultation.

§ 256. Proclamation and joint certification requirements.

§ 257. Congressional notification, approval, and termination.

§ 258. Judicial review.

§ 259. Accountability, reporting, and Inspector General review.

§ 260. Financial accountability upon termination.

§ 261. Savings clause.

Sec. 3004. Conforming amendments.

Sec. 3005. Severability.

Sec. 3006. Effective date.

SEC. 3002. FINDINGS.

Congress finds the following:

(1) ORIGINAL PURPOSE AND CONSTITUTIONAL GROUNDING. The authority now codified at 10 U.S.C. §§ 251–255, commonly known as the Insurrection Act, derives from the Calling Forth Act of 1792, enacted pursuant to Congress's powers under Article I, Section 8, Clauses 14 through 16, and the Necessary and Proper Clause. The Act implements Congress's enumerated authority to provide for calling forth the Militia and was designed to give the executive a carefully bounded tool for responding to armed domestic threats that the ordinary courts could not suppress.

(2) HISTORICAL RECORD OF INVOCATIONS. The Insurrection Act has been invoked approximately thirty times since 1794 by fifteen Presidents, across the following categories:

(A) LABOR AND CIVIL UNREST. President Washington employed militia forces against the Whiskey Rebellion (1794); Presidents Hayes and Cleveland used it against railroad strikes (1877, 1894) and anti-Chinese labor riots (1885–1886); and President Cleveland deployed federal troops during the Pullman Strike (1894), over the objection of the Governor of Illinois.

(B) RECONSTRUCTION AND CIVIL RIGHTS. President Grant invoked the Act eight separate times during Reconstruction (1871–1876) to suppress Ku Klux Klan terrorism against Black Americans and to enforce the Equal Protection Clause. Presidents Eisenhower, Kennedy, and Johnson invoked the Act to enforce federal desegregation orders at Little Rock, Arkansas (1957), the University of Mississippi (1962), the University of Alabama (1963), and during the Selma-to-Montgomery marches (1965). These invocations represent the clearest legitimate modern use of the Act: deploying federal forces to protect constitutional rights when state and local authorities were themselves instruments of oppression.

(C) MOST RECENT INVOCATION. The Act was last invoked in 1992, when the Governor of California requested presidential assistance to suppress civil unrest in Los Angeles following the acquittal of four officers charged with beating Rodney King. The violence killed 63 people and caused approximately one billion dollars in property damage.

(D) PATTERN. In the past 130 years, the Act has been invoked exclusively in two circumstances: when state and local authorities were overwhelmed and a Governor requested federal aid; or when state authorities were themselves obstructing or failing to protect constitutional rights. No invocation in the modern era has been based solely on a President's unilateral assessment of a domestic emergency absent a state request or demonstrable constitutional violation.

(3) CURRENT DEFICIENCIES. The Act as it stands contains the following critical structural defects:

(A) VAGUE TRIGGERING LANGUAGE. Section 253 of the current Act authorizes deployment to suppress any "unlawful combination" or "conspiracy" that "opposes or obstructs the execution of the laws of the United States." Taken literally, this would authorize the deployment of combat forces in response to two individuals conspiring to commit a minor federal offense.

(B) THE 'ANY OTHER MEANS' PROBLEM. The Act authorizes the President to respond to a covered emergency "by using the militia or the armed forces, or both, or by any other means." Congress has defined "militia" to include all able-bodied male citizens between the ages of 17 and 45. This delegation is so broad that it could be construed to authorize a President to deputize private paramilitary organizations or private military contractors as instruments of federal authority.

(C) NO STATUTORY TIME LIMIT. The current Act contains no limit on the duration of a deployment. A President could theoretically maintain an invocation indefinitely without congressional approval.

(D) NO CONGRESSIONAL CONSULTATION OR REPORTING REQUIREMENT. Unlike the War Powers Resolution, which governs the use of force abroad, the Insurrection Act imposes no requirement that the President consult with Congress before invoking the Act, notify Congress after invocation, or seek approval for continued deployment.

(E) NO MEANINGFUL JUDICIAL REVIEW. The Supreme Court has held that the Act grants the President virtually complete discretion to determine whether deployment is warranted. Courts have repeatedly dismissed Insurrection Act

challenges on justiciability grounds for want of a statutory cause of action or standing rule.

(F) THE ACT IS OBSOLETE IN SCOPE. Most of the Act's broadest provisions were written for conditions that no longer exist: the absence of professional law enforcement, the infancy of federal agencies, the aftermath of the Civil War. The modern United States maintains extensive federal, state, and local law enforcement capacity that was unavailable when these provisions were drafted.

(G) RISK OF ANTI-DEMOCRATIC ABUSE. On multiple recent occasions, the Act has been threatened or considered for use against peaceful protest, political dissent, immigration enforcement operations, and most gravely, against the processes of electoral certification. The framers of the Constitution explicitly identified the quartering of standing armies among civilians as a grievance justifying revolution.

(H) ELECTORAL VULNERABILITY. The Act's vague language could be exploited to deploy military forces near or around the United States Capitol or state capitols during sessions of Congress or during the counting and certification of electoral votes, under the pretext of maintaining order — thereby creating a mechanism for military interference in the constitutional processes of democratic governance.

(4) CONSTITUTIONAL FRAMEWORK. The following provisions of the Constitution frame the permissible scope of domestic military deployment and any reform thereof: Article I, Section 8, Clauses 14–16 and 18 (congressional power over the militia and armed forces); Article I, Section 9, Clause 2 (habeas corpus may be suspended only by Congress, only in cases of rebellion or invasion, only when public safety requires it); Article II, Section 3 (the President shall take care that the laws be faithfully executed); and the First, Fourth, Fifth, and Fourteenth Amendments.

(5) PURPOSE OF THE ARMED FORCES. The Armed Forces exist to defend the nation against foreign enemies and shall not be deployed as instruments of domestic political coercion.

(6) RISK OF SELF-INTERESTED ABUSE. Congress finds that the authority codified in chapter 13 of title 10, United States Code, carries an inherent risk of self-interested abuse — specifically, that a President facing criminal accountability, impeachment, or an adverse electoral outcome may be tempted to invoke domestic military deployment not to address a genuine national emergency but to entrench or perpetuate their own hold on power. This title amends chapter 13 of title 10, United States Code, in part to address that risk.

SEC. 3003. AMENDMENT TO TITLE 10, UNITED STATES CODE.

(a) IN GENERAL.—Chapter 13 of title 10, United States Code, is amended by striking sections 251 through 255 and inserting the following new sections:

§ 251. Definitions.

For purposes of this chapter:

(1) The term ’State’ includes the District of Columbia, the Commonwealth of Puerto Rico, and each territory and possession of the United States.

(2) The term ’Armed Forces’ has the meaning given that term in section 101(a)(4) of this title, and includes any member of the National Guard called into Federal service pursuant to this chapter.

(3) The term ’insurrection’ as used in section 252 means organized, armed, violent resistance to the authority of the United States or of a State government, as distinguished from criminal activity, civil unrest, or political protest, however large or disruptive. The term ’insurrection’ as used in section 252 is distinct from the term ’obstruction’ as used in section 253; the former requires armed violent resistance, while the latter is defined in paragraph (7) of this section.

(4) The term ’substantial evidence’ means such relevant evidence as a reasonable mind might accept as adequate to support a conclusion, assessed on the totality of the record as defined in section 258(d).

(5) The term ’7-day period’ has the meaning given that term in section 257(b)(2).

(6) The term ’joint certification’ means the written document signed by the President, the Secretary of Defense, and the Attorney General meeting the requirements of section 256(b)(1) through (6), together with the separate independent certification of the Attorney General required by section 256(c). These two documents together constitute the complete certification package required for any invocation under this chapter.

(7) The term ’obstruction’ as used in section 253 means organized, collective conduct that physically prevents the enforcement of a specific federal law or a specific, enforceable federal court order, and does not include lawful protest, political opposition, non-compliance with administrative directives, or the enactment or enforcement of state laws in tension with federal policy.

(8) The term ’credible fear of injury’ as used in section 258(a) means a well-founded, objectively reasonable apprehension of harm — physical, legal, or constitutional — arising from the presence or anticipated presence of deployed forces in the geographic area identified in the proclamation. This standard does not require that injury have already occurred and is satisfied by proximity to the deployment area combined with a plausible theory of harm.

(9) The term ’organized, armed violence’ as used in section 253(b)(2) means coordinated, collective use of lethal force by an identifiable group acting in concert toward a common violent purpose, as distinguished from individual criminal acts, spontaneous crowd violence, or gang-related criminal activity, however widespread or violent. The term requires a degree of organization, command structure, and coordination substantially exceeding that of ordinary criminal enterprises.

§ 252. Insurrection within a State at the request of a State.

(a) AUTHORITY. Whenever there is an organized, armed insurrection in any State against its government, the President may, upon the request of the Governor of the State concerned (or the legislature of such State if the Governor is unavailable), call into Federal service such of the militia of the other States, in the number requested by the Governor, and use such of the Armed Forces as necessary to suppress the insurrection.

(b) CERTIFICATION REQUIREMENT. The President may not invoke the authority under this section unless the President, the Secretary of Defense, and the Attorney General jointly certify to Congress in writing that: (1) the Governor of the State concerned has formally requested the aid described in subsection (a); (2) the insurrection is organized and armed in character; and (3) the resources of the State are insufficient to suppress it. The certification required by this subsection is in addition to, and does not supersede, the joint certification and proclamation requirements of section 256, which apply to all invocations under this chapter.

(c) SCOPE. Any deployment under this section is limited to suppression of the specific armed insurrection identified in the certification and may not be used for broader law enforcement purposes.

§ 253. Obstruction of federal authority or deprivation of constitutional rights.

(a) AUTHORITY. Subject to the requirements of this chapter, whenever the conditions specified in subsection (b) are met, the President may call into Federal service such of the militia of any State and use such of the Armed Forces as necessary to enforce federal law or suppress the rebellion giving rise to those conditions. The determination of whether the conditions in this section are met is a justiciable question of law and fact not committed to unreviewable presidential discretion.

(b) TRIGGERING CONDITIONS. The President may invoke the authority under this section only upon a finding, supported by substantial evidence, that one or both of the following tracks are met:

(1) RIGHTS-DEPRIVATION TRACK. Unlawful obstructions, combinations, or armed rebellion against the authority of the United States make it impracticable to enforce the laws of the United States by the ordinary course of judicial proceedings, AND such obstruction or rebellion deprives a group or class of people of rights, privileges, or immunities secured by the Constitution or laws of the United States, including

explicitly the right to vote as protected by the Voting Rights Act of 1965 (52 U.S.C. 10301 et seq.) and section 2004 of the Revised Statutes (52 U.S.C. 10101); OR

(2) PUBLIC SAFETY COLLAPSE TRACK. An immediate and grave threat to public safety exists that cannot, based on documented evidence, be adequately addressed by the combined resources of federal, state, and local law enforcement, AND such threat results from organized, armed violence as defined in section 251(9). For purposes of this paragraph, the documented evidence shall include an assessment of law enforcement capacity from the Federal Bureau of Investigation or the relevant state or local law enforcement agencies, and may not consist solely of assessments prepared by politically appointed officials of the Executive Office of the President.

(c) EXCLUSIONS. The following conditions, standing alone or in combination, shall NOT constitute sufficient grounds for invocation under this section: (1) peaceful protesting, assembly, demonstration, or civil disobedience, regardless of size or subject matter; (2) a State's or locality's adoption of laws or policies that differ from federal preferences, absent a specific, enforceable federal court order being actively and physically obstructed; (3) elevated crime rates or generalized civil disorder manageable by existing civilian law enforcement; (4) immigration enforcement operations not involving organized armed resistance to federal authority; or (5) political opposition to executive branch policies or orders.

(d) CERTIFICATION. The President may not invoke authority under this section unless the President, the Secretary of Defense, and the Attorney General jointly certify to Congress that:

(1) the State concerned is unable or unwilling to suppress the specific obstruction, combination, or armed rebellion described in subsection (b);

(2) one of the two tracks in subsection (b) is met, with specific factual findings for each element;

(3) the conditions listed in subsection (c) are not a material contributing cause of the circumstances cited to justify invocation, and that the deployment is not being used, in whole or in material part, to suppress, punish, or deter the exercise of any right described in subsection (c); and

(4) the invocation is not connected in whole or in material part to any pending federal criminal proceeding, any impeachment inquiry or proceeding pending before Congress, or any election certification dispute in which the President is a named party, named subject, or named target at the time of invocation.

(e) CHANGED CIRCUMSTANCES RE-CERTIFICATION. If, during an active invocation under this chapter, the President becomes a named party, named subject, or named target in any proceeding described in subsection (d)(4), the President shall notify Congress within 24 hours of that development. Within 48 hours of such development,

the Attorney General shall issue an updated conflict-of-interest certification under section 256(c) addressing the changed circumstances. If the Attorney General cannot certify that the invocation remains untainted by the conflict, the invocation shall be subject to mandatory congressional review under the privileged procedures of section 257(d) within 7 days, and any member of either chamber may introduce a joint resolution of termination during that period pursuant to section 257(d)(4).

§ 254. Authority of the President — scope, limitations, and prohibitions.

(a) GENERAL AUTHORITY. Subject to the requirements of this chapter, if the conditions specified in section 252 or 253 are met, the President may order to active duty reserve component forces and use the Armed Forces to suppress the insurrection, rebellion, or obstruction, or enforce the laws, as applicable.

(b) PROHIBITION ON PRIVATE DEPUTIZATION. The authority granted by this chapter may only be exercised through uniformed members of the Armed Forces of the United States or members of the National Guard called into Federal service pursuant to this chapter. No private citizen, private organization, paramilitary group, private military contractor, private security contractor, or any other non-governmental entity or individual may be deputized, authorized, retained, or directed to exercise any authority under this chapter, whether under contract, letter of authorization, executive order, or any other instrument.

(c) PROHIBITION ON MARTIAL LAW. Nothing in this chapter shall be construed to authorize: (1) the declaration of martial law or the imposition of military governance over any civilian jurisdiction; (2) the suspension of habeas corpus, which power is reserved exclusively to Congress under Article I, Section 9, Clause 2 of the Constitution; (3) the displacement or suspension of civilian judicial, legislative, or executive authority in any State, county, city, or other jurisdiction; or (4) the detention of any person without judicial process beyond what is constitutionally permissible.

(d) PROHIBITION ON TARGETING PROTECTED ACTIVITY. Forces deployed under this chapter shall not be used to:

(1) monitor, surveil, or collect intelligence on individuals or organizations engaged in lawful activity, including political organizing, protest, or journalism;

(2) conduct arrests, searches, or seizures unrelated to the specific armed insurrection or obstruction identified in the proclamation issued under section 256;

(3) target any person based on political affiliation, race, religion, national origin, or the exercise of First Amendment rights;

(4) operate outside the specific geographic area identified in the proclamation without a new or amended proclamation meeting all requirements of this chapter; or

(5) restrict, delay, or interfere with any session of Congress or any state legislature, any federal or state electoral process, or the counting or certification of any election results, at any level of government, for any reason; provided, however, that this paragraph shall not prohibit the use of forces to physically repel an active armed attack on the Capitol Building or any other building in which a session of Congress is actively taking place at the time of the attack, and that such use shall be strictly limited to repelling the attack and shall not extend to any interference with the conduct of legislative business or the movement of members of Congress.

(e) LAW ENFORCEMENT RESTRICTION. Forces deployed under this chapter shall not perform routine law enforcement functions — including executing warrants, making arrests, or conducting searches or seizures — except as directly necessary to suppress the specific armed insurrection or obstruction identified in the proclamation.

(f) RULES OF CONSTRUCTION. The authority to conduct arrests, searches, and seizures that are directly necessary to suppress the specific insurrection or obstruction as described in subsection (e) does not exceed the limitations set forth in subsection (e), which governs in all cases of apparent conflict with subsection (d)(2).

(g) RULES OF ENGAGEMENT. The Secretary of Defense shall, within 90 days of enactment of this section and updated within 30 days of any invocation, promulgate and publicly release rules of engagement for all domestic deployments under this chapter consistent with this section.

§ 255. Mandatory pre-invocation consultation.

(a) CONSULTATION WITH GOVERNORS. Prior to invoking any authority under this chapter, the President shall consult with the Governor of each State in which forces are to be deployed. Such consultation shall include provision of the information required in the certification under section 256(b).

(b) CONSULTATION WITH CONGRESSIONAL LEADERSHIP. Prior to invocation, the President shall consult with the Speaker of the House, the House Minority Leader, the Senate Majority Leader, and the Senate Minority Leader, and shall provide each with a written summary of the factual basis for the proposed invocation.

(c) EXCEPTION FOR IMMINENT THREAT. Where an imminent armed threat makes pre-invocation consultation physically impracticable, the President may invoke the authority with simultaneous notification and shall complete all consultation requirements within 24 hours of invocation, documenting in writing why pre-consultation was impracticable. This exception applies to the consultation requirements of this section only and does not affect any other requirement of this chapter.

(d) EXCEPTION FOR GOVERNOR COMPLICITY. Where the Governor of the affected State is a party to or is facilitating the insurrection or obstruction triggering invocation, the requirement to consult with that Governor is waived. A finding of

Governor complicity under this subsection must be separately and independently certified by the Attorney General in the independent certification required by section 256(c), based on specific, articulable evidence set forth in writing. The President's own determination that a Governor is complicit is not sufficient absent such independent Attorney General certification. The President shall document such finding and the reference to the Attorney General's independent certification in the proclamation issued under section 256.

§ 256. Proclamation and joint certification requirements.

(a) PROCLAMATION REQUIRED. Before exercising any authority under this chapter, the President shall issue a public proclamation ordering the dispersal of persons engaged in the insurrection or obstruction. No authority under this chapter may be exercised prior to the issuance of such proclamation. Where an imminent armed attack makes prior issuance physically impracticable — such as an active armed assault on federal institutions or personnel — the President may exercise authority simultaneously with issuance, provided that: (1) the proclamation is issued within one hour of the commencement of any deployment; and (2) the proclamation documents in writing the specific facts that made prior issuance impossible. If the President fails to issue the proclamation within one hour as required by this subsection, the invocation shall be void ab initio and all forces deployed thereunder shall be immediately withdrawn. No subsequent proclamation may cure a void invocation; a new invocation meeting all prior-issuance requirements of this subsection is required. The consultation waiver in section 255(c) and the proclamation waiver in this subsection are independent provisions and neither implies nor incorporates the other.

(b) CONTENTS OF PROCLAMATION AND JOINT CERTIFICATION. The proclamation shall include, and shall be accompanied by, a joint written certification signed by the President, the Secretary of Defense, and the Attorney General, containing:

(1) the specific section or sections of this chapter being invoked;

(2) specific factual findings supporting each element of the triggering conditions under section 252 or 253, as applicable;

(3) the geographic area of deployment;

(4) the nature, number, command structure, and specific authorized mission of forces to be deployed;

(5) an identification of all federal, state, and local law enforcement alternatives considered and the reasons they are insufficient; and

(6) in the case of invocation under section 253(b)(1), identification of the specific constitutional right or rights being denied and the class or group affected.

(c) INDEPENDENT ATTORNEY GENERAL CERTIFICATION. Simultaneously with the joint certification required by subsection (b), the Attorney General shall transmit to Congress a separate, stand-alone certification contained in a document signed by the Attorney General alone and not co-signed by the President or the Secretary of Defense. This certification shall state: (1) that the invocation is based on the national security or law enforcement grounds set forth in section 253 and is not materially connected to any personal legal or political interest of the President; (2) that the invocation is not connected in whole or in material part to any pending federal criminal proceeding, any impeachment inquiry or proceeding pending before Congress, or any election certification dispute in which the President is a named party, named subject, or named target at the time of invocation; (3) that the deployment does not restrict, delay, or interfere with any session of Congress or any state legislature, any federal or state electoral process, or the counting or certification of any election results; (4) that, where applicable, the Governor complicity finding required by section 255(d) is supported by specific, articulable evidence as set forth in this certification; (5) that the Attorney General's certification was not reviewed, edited, or approved by the President or the Secretary of Defense prior to transmission; and (6) that the foregoing statements are true and correct to the best of the Attorney General's knowledge and belief, made under penalty of applicable federal criminal law including 18 U.S.C. § 1001. The Attorney General's certification shall be transmitted directly and simultaneously to the congressional leaders and committee chairs designated in section 257(a) and shall not pass through or be reviewed by the Executive Office of the President prior to transmission. Where the President is the subject of any proceeding or dispute described in paragraph (2), the Attorney General shall additionally document the specific, articulable facts constituting the independent assessment of national necessity on which the invocation is based.

(d) CLASSIFIED SUPPLEMENT. Where the President determines that specific elements of the proclamation or joint certification contain information whose public disclosure would cause identifiable, serious damage to national security, the President may designate such elements as classified. In such case: (1) a classified supplement meeting all requirements of subsection (b) shall be provided simultaneously to the congressional leaders and committee chairs designated in section 257(a), to be held under appropriate security protocols; (2) a redacted public proclamation must still be issued and must contain, at minimum, the geographic area of deployment, the specific section of this chapter being invoked, and a general description of the nature of the deployment sufficient to apprise the public that military forces are being deployed domestically and where; and (3) in any judicial proceeding under section 258, the full classified supplement shall be provided to the court and reviewed in camera under procedures consistent with the Classified Information Procedures Act (18 U.S.C. App. 3). The

classified supplement procedures of this subsection do not reduce or modify any requirement of subsection (b) or (c); they provide only for the manner of disclosure.

(e) ATTORNEY GENERAL DEFINED FOR PURPOSES OF THIS CHAPTER. For purposes of any certification required under this chapter, the term 'Attorney General' means the Attorney General of the United States confirmed by the Senate, or, in the absence of a Senate-confirmed Attorney General, the most senior official in the line of succession to the office of Attorney General as established by 28 U.S.C. § 508 who has been confirmed by the Senate to the specific position they occupy. An individual serving as Acting Attorney General solely pursuant to the Federal Vacancies Reform Act, 5 U.S.C. §§ 3345–3349d, who has not been Senate-confirmed to the position of Attorney General or Deputy Attorney General, may not sign any certification under this chapter.

§ 257. Congressional notification, approval, and termination.

(a) IMMEDIATE REPORTING. Within 24 hours of invoking any authority under this chapter, the President shall submit to the majority and minority leaders of both chambers and to the Committees on Armed Services, the Committees on the Judiciary, and the Committees on Homeland Security of both chambers a written report containing all elements required under section 256(b) plus a daily operational summary.

(b) INITIAL 7-DAY PERIOD.

(1) Without further congressional action, any authority invoked under this chapter shall lapse at the end of the 7-day period.

(2) The 7-day period shall begin no later than 48 hours after the date and time of invocation, regardless of whether Congress is in session or has formally reconvened. If Congress is adjourned at the time of invocation, it shall be the mandatory duty of the Speaker of the House and the President pro tempore of the Senate to reconvene their respective chambers within 48 hours of receiving notification of invocation. If either chamber fails to reconvene within 48 hours, the 7-day period shall nonetheless be deemed to have begun at the time of invocation, and authority shall lapse 7 days from the time of invocation regardless of subsequent congressional action. This provision creates a consequence for failure to reconvene rather than a judicially enforceable duty against congressional officers, and no court shall be required to compel reconvening as a condition of enforcing the 7-day lapse. The President shall, simultaneously with invocation, formally notify the leaders of both chambers of the invocation and of their duty to reconvene.

(c) CONGRESSIONAL APPROVAL FOR EXTENSION. Upon application by the President prior to expiration of the 7-day period, Congress may extend the authority for a period not to exceed 30 days by enacting a joint resolution of approval meeting the requirements of subsection (f). Not more than two such extensions may be authorized

with respect to a single invocation or related series of events. Any further extension shall require a new invocation meeting all requirements of this chapter. No new invocation covering substantially the same geographic area or substantially the same set of circumstances as a prior invocation may be issued within 90 days of the expiration or termination of the prior invocation's authorization, absent a written Presidential certification — separately certified by the Attorney General — that materially changed factual circumstances justify a new invocation. Courts shall apply de novo review to any such recency certification under section 258. For purposes of this subsection, an invocation shall be presumed to cover substantially the same geographic area and circumstances as a prior invocation if it applies to any State, metropolitan area, or geographic region that was subject to the prior invocation and the same underlying dispute, movement, or series of events is ongoing. This presumption may be rebutted only by the materially changed circumstances certification described in this subsection. For purposes of this subsection, a void ab initio invocation declared under section 256(a) shall be treated as a prior invocation whose authorization terminated on the date the void was declared, and the 90-day cooling-off period shall run from that date.

(d) ANTI-FILIBUSTER PROCEDURE. Any joint resolution under this section — whether of approval or of termination — shall be treated as follows: (1) it is privileged business in both chambers, not subject to a motion to table, postpone, or refer; (2) debate is limited to not more than 10 hours per chamber, divided equally between proponents and opponents; (3) no cloture motion is required, and passage requires only a simple majority of members present and voting, except as provided in subsection (e)(3); and (4) any member of either chamber may introduce a joint resolution of termination under subsection (e) at any time while authority under this chapter is in effect.

(e) CONGRESSIONAL TERMINATION.

(1) Congress may terminate any invocation at any time by enacting a joint resolution of termination passed by a simple majority of both chambers.

(2) NON-VETO RULE. A joint resolution of termination enacted pursuant to this subsection shall not be subject to presidential veto. The constitutional basis for this provision is Congress's Article I authority to withdraw the statutory authorization it has granted. A President who has deployed military forces against the American people shall not hold veto power over the legislative branch's authority to order those forces to stand down.

(3) FALLBACK. If paragraph (2) is held unconstitutional or invalid by a court of competent jurisdiction, any joint resolution of termination shall be subject to presentment to the President and may be overridden by a two-thirds majority of both chambers pursuant to Article I, Section 7 of the Constitution.

(f) FORM OF JOINT RESOLUTIONS. A joint resolution under this section shall contain only the following after its resolving clause: (1) for a resolution of approval: a provision identifying the section of this chapter invoked, the date of invocation, the geographic area of deployment, and a statement that authority may continue for a specified period, not to exceed 30 days, unless enjoined by a court of competent jurisdiction; and (2) for a resolution of termination: a provision directing the immediate withdrawal of all forces deployed under the specified invocation and the cessation of all activities authorized under it.

(g) PRESIDENTIAL SUCCESSION. If the President who invoked authority under this chapter leaves office for any reason — including removal by impeachment, resignation, death, or transfer of power under the Twenty-Fifth Amendment — during a period in which such authority is in effect, the authority shall remain in effect for a period not to exceed 72 hours following the succession. Within that 72-hour period, the successor President shall either: (1) issue a new joint certification under section 256(b) and a new independent certification under section 256(c), affirming that the triggering conditions continue to exist, in which case the original 7-day clock continues from its original start date without reset or extension; or (2) issue a proclamation of termination, whereupon all forces shall be immediately withdrawn. Failure to act within 72 hours shall be deemed a termination of the invocation and all forces shall be immediately withdrawn. The 7-day clock shall under no circumstances be reset or extended by reason of presidential succession.

§ 258. Judicial review.

(a) CAUSE OF ACTION. Notwithstanding any other provision of law, any individual or entity — including a State or local government — that is injured by, or has a credible fear of imminent injury from, the use of members of the Armed Forces under this chapter may bring a civil action for declaratory or injunctive relief in any district court of the United States.

(b) JURISDICTION. In any action under this section, the district court shall have jurisdiction to decide any question of law or fact arising under this chapter, including challenges to the legal basis for members of the Armed Forces to be acting under this chapter.

(c) STANDING. The ’credible fear of injury’ standard in subsection (a) shall be construed to permit actions by:

(1) any individual residing in or present within the geographic area of deployment;

(2) any State or local government within the geographic area of deployment;

(3) any organization whose members would be subject to the deployment; and

(4) any individual member of Congress, without requiring authorization by a chamber resolution. No rule of either chamber may be construed to require a member of

Congress to obtain chamber authorization as a precondition to exercising the standing conferred by this paragraph.

(d) STANDARD OF REVIEW. Courts shall review whether the triggering conditions under section 252 or 253 are supported by substantial evidence in the record, and whether the deployment complies with the limitations in section 254. Courts shall not substitute their judgment for the President's on military necessity, but shall rigorously examine whether the specific statutory criteria have been met. For purposes of this section, the record shall consist of: (1) the joint certification and proclamation issued pursuant to section 256; (2) all evidence actually submitted to or in the possession of the President, the Secretary of Defense, and the Attorney General at the time the findings required by this chapter were made; (3) any daily operational reports submitted pursuant to section 259(a) prior to the date of judicial filing; and (4) any additional evidence submitted to the court by any party. The government may not limit the record for purposes of judicial review to the four corners of the joint certification. In cases involving classified supplements submitted under section 256(d), the court shall review the classified supplement in camera under procedures consistent with the Classified Information Procedures Act (18 U.S.C. App. 3).

(e) EXPEDITED CONSIDERATION. It shall be the duty of the applicable district court to advance the case on its docket and to assign the case for hearing at the earliest practicable date. The court shall issue a ruling not later than 10 calendar days after the filing of the complaint. It shall be the duty of the court of appeals to advance any appeal on its docket for hearing within 5 calendar days of the filing of a notice of appeal. It shall be the duty of the Supreme Court to advance any petition for certiorari arising under this chapter for consideration at the earliest practicable date, and the Court is authorized to establish expedited procedures for such matters.

(f) AVAILABLE RELIEF. Courts may issue injunctive or declaratory relief, including ordering the immediate withdrawal of forces, upon a finding that: (1) the statutory triggering conditions are not supported by substantial evidence; or (2) the deployment violates the scope limitations of section 254.

(g) HABEAS CORPUS. Nothing in this section shall be construed to limit the availability of the constitutionally guaranteed writ of habeas corpus to any person detained in connection with a deployment under this chapter.

§ 259. Accountability, reporting, and Inspector General review.

(a) DAILY OPERATIONAL REPORTS. For each day that forces remain deployed under this chapter, the President shall submit to the congressional leaders and committee chairs designated in section 257(a) a daily report describing: troop locations and numbers; any use of force, arrest, or detention; any intelligence collection activity; and whether the conditions justifying invocation continue to exist in the specific geographic area identified in the proclamation. Where any element of the daily report contains

classified information, the President shall submit a redacted public version and a classified annex to the designated congressional leaders and committee chairs under section 257(a) under appropriate security protocols. The redacted public version shall contain, at minimum, troop location by State or region and the President's overall assessment of whether triggering conditions continue to exist.

(b) INSPECTOR GENERAL REVIEW. The Inspector General of the Department of Defense shall conduct an independent review of any deployment under this chapter. The Inspector General shall deliver a written report to Congress not later than 60 days after the termination of any invocation. Such report shall evaluate: compliance with this chapter; compliance with rules of engagement issued under section 254(g); and any evidence of use of deployed forces for purposes outside the scope of the invocation. Where the Inspector General determines that specific findings would disclose classified information, the IG shall issue a redacted public version of the report and a classified annex, transmitted to the congressional leaders and committee chairs designated in section 257(a) under appropriate security protocols. The redacted public version shall contain, at minimum, the IG's overall compliance determination and any findings of non-compliance that do not require classified disclosure.

(c) CIVIL LIBERTIES REPORT. Within 180 days of the termination of any invocation, the Assistant Attorney General for Civil Rights, acting independently of the Attorney General who certified the invocation, shall submit a public report to Congress assessing whether any violations of the First, Fourth, Fifth, or Fourteenth Amendment occurred during the deployment; any complaints received by the Department of Justice related to the deployment; and recommendations for further legislative action. Where the Attorney General who certified the invocation is also the serving Attorney General at the time the report is due, the report shall be prepared by the Civil Rights Division without direction or supervision from the Attorney General, and shall be transmitted directly to Congress. The reporting obligation under this subsection shall not be waived or delegated to the Attorney General who signed the invocation certification.

(d) ACCOUNTABILITY. Any member of the Armed Forces, regardless of rank, who knowingly directs or executes action under a purported invocation of this chapter that does not comply with its requirements shall be subject to accountability under the Uniform Code of Military Justice and applicable federal law. Any civilian — including political appointees, White House staff, Department of Defense civilians, and contractors — who knowingly directs, facilitates, or participates in a domestic deployment that does not comply with this chapter may be subject to prosecution under 18 U.S.C. § 242 (deprivation of rights under color of law), 18 U.S.C. § 371 (conspiracy against rights or to defraud the United States), and any other applicable federal criminal statute.

(e) WHISTLEBLOWER PROTECTION. No member of the Armed Forces, Department of Defense civilian employee, or federal contractor shall be subject to any adverse action, reprisal, or disciplinary proceeding based on: (1) a good-faith refusal to execute an order that the member or employee reasonably believes violates the requirements of this chapter; or (2) a good-faith report to Congress, the Inspector General, or any court of competent jurisdiction of conduct that the member or employee reasonably believes violates this chapter. Any such refusal or report shall be treated as protected activity under 10 U.S.C. § 1034 (military whistleblower protection) and 5 U.S.C. § 2302 (prohibited personnel practices), as applicable. Any adverse action taken in violation of this subsection shall be subject to the remedies available under those statutes.

§ 260. Financial accountability upon termination.

(a) RETURN OF FUNDS. Upon the termination — whether by lapse, congressional resolution, court order, operation of section 257(g), or upon a judicial or administrative determination that an invocation is void ab initio pursuant to section 256(a) — of any authority exercised under this chapter: (1) any amounts appropriated, reprogrammed, or transferred in connection with such exercise that remain unobligated on the date of termination shall be returned and made available only for the purposes for which they were originally appropriated; and (2) any contracts entered into in connection with such exercise shall be terminated, subject to applicable contract law.

(b) SAVINGS FOR LEGAL PROCEEDINGS. The termination of an exercise of authority under this chapter shall not affect: (1) any criminal prosecution initiated prior to the date of termination, except that this paragraph shall not protect any criminal prosecution that was initiated based solely on arrests, detentions, or searches conducted pursuant to an invocation that is subsequently declared void ab initio under section 256(a), in which case the legal consequences of the void invocation on pending prosecutions shall be determined by applicable constitutional and evidentiary law without the protection of this paragraph; (2) any legal proceeding not finally concluded or determined on the date of termination; or (3) any rights, duties, or penalties that matured or were incurred prior to the date of termination.

§ 261. Savings clause.

(a) GENUINE INSURRECTION AGAINST THE FEDERAL GOVERNMENT. Nothing in this chapter shall be construed to impair the President’s ability to respond with necessary speed to an organized, armed insurrection actively seeking the violent overthrow of the federal government itself, including by armed attack on the Capitol, the White House, or other federal institutions or personnel. In such a case, the requirements of this chapter are modified as follows during the period of the initial emergency deployment:

(1) WAIVED REQUIREMENTS. The pre-consultation requirements of section 255(a) and (b) are waived and replaced by simultaneous notification to all parties required to be consulted;

(2) MODIFIED REQUIREMENTS. The pre-proclamation requirement of section 256(a) is modified as provided in that section's emergency clause. The void ab initio consequences specified in section 256(a) for failure to issue the proclamation within one hour apply without modification under this subsection;

(3) REQUIREMENTS THAT REMAIN IN FULL FORCE. The joint certification requirements of section 256(b), the independent Attorney General certification of section 256(c), all reporting requirements of section 257(a), and all other obligations under this chapter remain in full force and shall be performed within 24 hours of the commencement of deployment. For purposes of section 256(c), the requirement of simultaneity with the joint certification shall be satisfied if both certifications are transmitted within the same 24-hour window required by this paragraph; and

(4) CLOCK. Nothing in this subsection suspends the 7-day clock of section 257(b), which begins at the time of invocation regardless of whether pre-deployment requirements have been completed.

(b) OTHER STATUTES. Nothing in this chapter shall be construed to limit any other lawful authority of the President or the Armed Forces under the Constitution or any other Act of Congress not addressed herein, including authority under the Stafford Act to respond to natural disasters or public health emergencies.

(b) CHAPTER HEADING.—The heading of chapter 13 of title 10, United States Code, is amended to read as follows:

CHAPTER 13 — DOMESTIC USE OF ARMED FORCES

(c) TABLE OF SECTIONS.—The table of sections at the beginning of chapter 13 of title 10, United States Code, is amended to read as follows:

251. Definitions.

252. Insurrection within a State at the request of a State.

253. Obstruction of federal authority or deprivation of constitutional rights.

254. Authority of the President — scope, limitations, and prohibitions.

255. Mandatory pre-invocation consultation.

256. Proclamation and joint certification requirements.

257. Congressional notification, approval, and termination.

258. Judicial review.

259. Accountability, reporting, and Inspector General review.

260. Financial accountability upon termination.

261. Savings clause.

SEC. 3004. CONFORMING AMENDMENTS.

(a) The Posse Comitatus Act (18 U.S.C. § 1385) is amended by adding at the end the following: 'The exception for statutory authorization shall be narrowly construed and shall not be deemed to authorize any use of the Armed Forces for domestic purposes beyond the specific, limited circumstances set forth in chapter 13 of title 10.'

(b) Any existing executive orders, directives, or policies referencing the Insurrection Act shall have no force or effect to the extent inconsistent with this title.

(c) The phrase 'or by any other means' and any cognate language granting authority beyond the uniformed Armed Forces and federalized National Guard in prior enumerations of the authority under chapter 13 of title 10, United States Code, is expressly repealed.

SEC. 3005. SEVERABILITY.

If any provision of this title, or its application to any person or circumstance, is held invalid by a court of competent jurisdiction, the remainder of this title and its application to other persons or circumstances shall not be affected. In the event that section 257(e)(2) is held unconstitutional or invalid, section 257(e)(3) shall automatically become the operative provision of that subsection without further legislative action.

SEC. 3006. EFFECTIVE DATE.

This title shall take effect upon enactment and shall apply to any invocation of authority under chapter 13 of title 10, United States Code, occurring on or after such date.

TITLE IV—POLITICAL SPENDING DISCLOSURE

SEC. 4001. SHORT TITLE; TABLE OF CONTENTS.

(a) *Short Title.*—This title may be cited as the "Political Spending Disclosure Act".

(b) *Table of Contents.*—The table of contents of this title is as follows:

Sec. 4001. Short Title; Table of Contents.

Sec. 4002. Findings.

Sec. 4003. Clarification of Application of Foreign Money Ban to Certain Disbursements and Activities.

Sec. 4004. Study and Report on Illicit Foreign Money in Federal Elections.

Sec. 4005. Prohibition on Contributions and Donations by Foreign Nationals in Connection with Ballot Initiatives and Referenda.

Sec. 4006. Disbursements and Activities Subject to Foreign Money Ban.

Sec. 4007. Prohibiting Establishment of Corporation to Conceal Election Contributions and Donations by Foreign Nationals.

Sec. 4008. Reporting of Campaign-Related Disbursements.

Sec. 4009. Reporting of Federal Judicial Nomination Disbursements.

Sec. 4010. Coordination with FinCEN.

Sec. 4011. Application of Foreign Money Ban to Disbursements for Campaign-Related Disbursements Consisting of Covered Transfers.

Sec. 4012. Sense of Congress Regarding Implementation.

Sec. 4013. Effective Date.

Sec. 4014. Petition for Certiorari.

Sec. 4015. Judicial Review of Actions Related to Campaign Finance Laws.

Sec. 4016. Effective Date.

Sec. 4017. Short Title.

Sec. 4018. Stand by Every Ad.

Sec. 4019. Disclaimer Requirements for Communications Made Through Prerecorded Telephone Calls.

Sec. 4020. No Expansion of Persons Subject to Disclaimer Requirements on Internet Communications.

Sec. 4021. Effective Date.

Sec. 4022. Severability.

SEC. 4002. FINDINGS.

Congress finds the following:

(1) The government of the United States derives its just powers from the consent of the governed. When institutions of government — or those who seek to influence them — operate without transparency, the resulting asymmetry of information between the governed and those who exercise power on their behalf undermines the foundation of self-government. This title addresses one critical dimension of that asymmetry: the ability of wealthy individuals, corporations, and other entities to spend vast sums to influence Federal elections and the selection of Federal judges while concealing their identities from the public.

(2) The concentration of undisclosed political spending power in the hands of a narrow set of actors compounds the broader imbalances between the people and their government that this title as a whole seeks to address. When the same anonymous networks that shape electoral outcomes also shape the composition of the Federal judiciary, they acquire disproportionate influence across multiple branches of government — influence that operates beyond the reach of public accountability. Transparency in the financing of

elections and judicial nominations is a necessary condition for the informed self-governance that each subtitle of this title seeks to protect.

(3) Campaign finance disclosure is a narrowly tailored and minimally restrictive means to advance substantial government interests, including fostering an informed electorate capable of engaging in self-government and holding their elected officials accountable, detecting and deterring quid pro quo corruption, and identifying information necessary to enforce other campaign finance laws, including campaign contribution limits and the prohibition on foreign money in U.S. campaigns. To further these substantial interests, campaign finance disclosure must be timely and complete, and must disclose the true and original source of money given, transferred, and spent to influence Federal elections. Current law does not meet this objective because corporations and other entities that the Supreme Court has permitted to spend money to influence Federal elections are subject to few if any transparency requirements.

(4) As the Supreme Court recognized in its per curiam opinion in Buckley v. Valeo, 424 U.S. 1 (1976), "disclosure requirements certainly in most applications appear to be the least restrictive means of curbing the evils of campaign ignorance and corruption that Congress found to exist." Buckley, 424 U.S. at 68. In Citizens United v. FEC, the Court reiterated that "disclosure is a less restrictive alternative to more comprehensive regulations of speech." 558 U.S. 310, 369 (2010). Indeed, Citizens United was premised significantly on the Court's assumption that the new election spending it permitted would be transparent.

(5) No subsequent decision has called these holdings into question, including the Court's decision in Americans for Prosperity Foundation v. Bonta, 141 S. Ct. 2373 (2021). That case did not involve campaign finance disclosure, and the Court did not overturn its longstanding recognition of the substantial interests furthered by such disclosure.

(6) Campaign finance disclosure is also essential to enforce the Federal Election Campaign Act's prohibition on contributions by and solicitations of foreign nationals. See section 319 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30121).

(7) In the years since the Supreme Court's 2010 decision in Citizens United v. FEC, undisclosed spending in Federal elections has grown exponentially. Dark money spending — spending by nonprofits, shell companies, and other entities that do not disclose the identities of their donors — increased from less than $5,000,000 in 2006 to more than $300,000,000 in the 2012 election cycle, exceeded $1,000,000,000 in the 2020 election cycle, and reached approximately $1,900,000,000 in the 2024 election cycle, nearly doubling the prior record. Since Citizens United, dark money groups have spent at least $4,300,000,000 on Federal elections.

(8) Total outside spending on 2024 Federal elections reached a record $4,500,000,000, with more than half of that spending coming from groups that do not fully disclose the source of their funding. Shell companies and nonprofits that do not disclose their funding

sources contributed $1,300,000,000 to super PACs during the 2024 election cycle alone — more than in the prior two election cycles combined.

(9) The problem of undisclosed spending is growing worse, not better, because the methods by which dark money enters the political system have become more sophisticated and harder to trace. Whereas dark money groups once purchased their own campaign advertisements — spending that was, at minimum, reported to the Federal Election Commission — such groups have increasingly shifted to making large contributions to super PACs and to purchasing advertisements outside the windows that trigger mandatory disclosure, rendering a growing share of political spending effectively invisible to voters and regulators alike.

(10) The scale of undisclosed spending renders current disclosure requirements inadequate to serve the interests that the Supreme Court has recognized: an informed electorate, the detection and deterrence of corruption, and the enforcement of campaign finance laws including the prohibition on foreign money in United States campaigns.

(11) Congress should close loopholes allowing spending by foreign nationals in domestic elections. For example, in 2021, the Federal Election Commission found reason to believe and conciliated a matter where an experienced political consultant knowingly and willfully violated Federal law by soliciting a contribution from a foreign national by offering to transmit a $2,000,000 contribution to a super PAC through his company and two 501(c)(4) organizations, to conceal the origin of the funds. This scheme was only unveiled after appearing in a The Telegraph UK article and video capturing the solicitation. See Conciliation Agreement, MURs 7165 & 7196 (Great America PAC, et al.), dated June 28, 2021; Factual and Legal Analysis, MURs 7165 & 7196 (Jesse Benton), dated Mar. 2, 2021.

(12) The opacity of current campaign finance channels creates pathways through which foreign money may enter domestic elections undetected. Without disclosure of the true and original sources of funds used for campaign-related disbursements, the prohibition on foreign national participation in United States elections cannot be meaningfully enforced.

(13) A fair and impartial judiciary is critical for our democracy and crucial to maintain the faith of the people of the United States in the justice system. As the Supreme Court held in Caperton v. Massey, “there is a serious risk of actual bias — based on objective and reasonable perceptions — when a person with a personal stake in a particular case had a significant and disproportionate influence in placing the judge on the case.” (Caperton v. A. T. Massey Coal Co., 556 U.S. 868, 884 (2009)).

(14) Dark money is used to shape the composition and decision-making of the Federal judiciary. Well-funded networks of organizations that do not disclose their donors have spent hundreds of millions of dollars over the past decade to influence the nomination and confirmation of Federal judges, including through advertising campaigns supporting or opposing Supreme Court nominees, vetting and selecting potential nominees, and

funding litigation designed to bring strategic cases before judges whose confirmation those same networks supported.

(15) A single network of dark money organizations tied to one individual has channeled more than $250,000,000 into efforts to reshape the Federal judiciary. One organization within that network raised a record $48,100,000 from anonymous donors in a single year. Such spending is not subject to any disclosure requirements under current Federal election law, because Federal election laws regulate only contributions and expenditures relating to electoral politics; expenditures, contributions, and advocacy efforts for Federal judgeships are not covered under the Federal Election Campaign Act of 1971.

(16) Without disclosure, the public has no way of knowing whether the persons spending money to support or oppose judicial nominations have business before the courts whose composition they seek to influence. This opacity creates the conditions for conflicts of interest that are invisible to litigants, to the public, and potentially to the judges themselves — undermining the actual and perceived independence of the Federal judiciary.

(17) The use of anonymous money to influence both elections and judicial nominations represents a compounding of unaccountable power: the same undisclosed donors may simultaneously shape who holds elected office, who sits on the Federal bench, and what cases and arguments reach those judges. Transparency in both domains is necessary to prevent the accumulation of hidden influence across the branches of government.

(18) Public trust in government is at a historic low. According to polling, most Americans believe that corporations and wealthy individuals have too much power and influence in politics and the courts. The prevalence of dark money — funding for organizations and political activities that cannot be traced to actual donors — is a significant driver of public concern about corruption in both elections and the judicial system.

(19) Disclosure of the true sources of money spent to influence Federal elections and judicial nominations is a necessary step toward restoring the accountability of government institutions to the people they serve, and toward ensuring that the asymmetry of information and influence between the governed and those who exercise power does not continue to widen.

(20) The disclosure requirements of this title apply only to categories of organizations that are, by their legal structure, permitted to engage in political activity — including organizations described in sections 501(c)(4), 501(c)(5), and 501(c)(6) of the Internal Revenue Code of 1986, corporations, and political organizations. Organizations described in section 501(c)(3) of such Code — which are prohibited from intervening in political campaigns on behalf of or in opposition to any candidate for public office, and which are subject to donor-restricted-gift obligations enforceable under the Uniform Prudent Management of Institutional Funds Act and by State attorneys general — are excluded from these requirements. Unlike organizations described in section 501(c)(3), the covered

organizations are not subject to UPMIFA or any comparable statutory framework that independently enforces donor restrictions on the use of contributed funds. Any restriction a donor places on a payment to a covered organization is a private contractual arrangement between donor and organization, not subject to government oversight or independent verification. Because money within such organizations is fungible — in that any unrestricted payment frees an equivalent amount of the organization's existing resources for political spending — and because donor restrictions at covered organizations lack the robust, independently enforceable framework that exists for organizations described in section 501(c)(3), disclosure limited to donors who specifically restrict their funds from political use would be ineffective and unverifiable. Requiring disclosure of all significant funding sources to covered organizations that make campaign-related disbursements is narrowly tailored to the governmental interests in electoral transparency, because it applies only to organizations whose legal structure permits political spending and whose donor restrictions lack independent enforcement mechanisms sufficient to ensure that contributed funds are not used, directly or indirectly, for campaign-related purposes.

(21) The governmental interest in requiring disclosure of spending on Federal judicial nominations is distinct from, and complementary to, the governmental interest in electoral disclosure. Whereas electoral disclosure serves the interest of an informed electorate, judicial nomination disclosure serves the interest of judicial integrity — ensuring that litigants, the public, and judges themselves can identify potential conflicts of interest arising from undisclosed financial support for a judge's confirmation. The Supreme Court recognized in Caperton v. A. T. Massey Coal Co., 556 U.S. 868 (2009), that due process requires recusal when a person with a personal stake in a particular case had a significant and disproportionate influence in placing the judge on the case. Effective enforcement of this constitutional principle requires that spending to influence judicial nominations be disclosed, because without such disclosure, conflicts of interest arising from anonymous spending on behalf of or in opposition to a judicial nominee cannot be identified by litigants, by the public, or by the judges themselves. The disclosure requirements of this title with respect to Federal judicial nomination communications are narrowly tailored to this interest, because they apply only to communications that promote, support, attack, or oppose a specific nomination during the period in which that nomination is pending or recently concluded.

CHAPTER 1—CLOSING LOOPHOLES ALLOWING SPENDING BY FOREIGN NATIONALS IN ELECTIONS

SEC. 4003. CLARIFICATION OF APPLICATION OF FOREIGN MONEY BAN TO CERTAIN DISBURSEMENTS AND ACTIVITIES.

Section 319(b) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30121(b)) is amended —

by redesignating paragraphs (1) and (2) as subparagraphs (A) and (B), respectively, and by moving such subparagraphs 2 ems to the right;

by striking “As used in this section, the term” and inserting the following:

“DEFINITIONS.—For purposes of this section—

“(1) FOREIGN NATIONAL.—The term”;

by moving paragraphs (1) and (2) two ems to the right and redesignating them as subparagraphs (A) and (B), respectively; and

by adding at the end the following new paragraph:

“(2) CONTRIBUTION AND DONATION.—For purposes of paragraphs (1) and (2) of subsection (a), the term ‘contribution or donation’ includes any disbursement to a political committee which accepts donations or contributions that do not comply with any of the limitations, prohibitions, and reporting requirements of this title (or any disbursement to or on behalf of any account of a political committee which is established for the purpose of accepting such donations or contributions), or to any other person for the purpose of funding an expenditure, independent expenditure, or electioneering communication (as defined in section 304(f)(3)).”.

SEC. 4004. STUDY AND REPORT ON ILLICIT FOREIGN MONEY IN FEDERAL ELECTIONS.

(a) STUDY.—For each 4-year election cycle (beginning with the 4-year election cycle ending in 2024), the Comptroller General shall conduct a study on the incidence of illicit foreign money in all elections for Federal office held during the preceding 4-year election cycle, including what information is known about the presence of such money in elections for Federal office.

(b) REPORT.—

(1) IN GENERAL.—Not later than the applicable date with respect to any 4-year election cycle, the Comptroller General shall submit to the appropriate congressional committees a report on the study conducted under subsection (a).

(2) MATTERS INCLUDED.—The report submitted under paragraph (1) shall include a description of the extent to which illicit foreign money was used to target particular groups, including rural communities, African-American and other minority communities, and military and veteran communities, based on such targeting information as is available and accessible to the Comptroller General.

(3) APPLICABLE DATE.—For purposes of paragraph (1), the term “applicable date” means—

(A) in the case of the 4-year election cycle ending in 2024, the date that is 1 year after the date of the enactment of this title; and

(B) in the case of any other 4-year election cycle, the date that is 1 year after the date on which such 4-year election cycle ends.

(c) DEFINITIONS.—As used in this section:

(1) 4-YEAR ELECTION CYCLE.—The term "4-year election cycle" means the 4-year period ending on the date of the general election for the offices of President and Vice President.

(2) ILLICIT FOREIGN MONEY.—The term "illicit foreign money" means any contribution, donation, expenditure, or disbursement by a foreign national (as defined in section 319(b) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30121(b))) prohibited under such section.

(3) ELECTION; FEDERAL OFFICE.—The terms "election" and "Federal office" have the meanings given such terms under section 301 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30101).

(4) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term "appropriate congressional committees" means—

(A) the Committee on House Administration of the House of Representatives;

(B) the Committee on Rules and Administration of the Senate;

(C) the Committee on the Judiciary of the House of Representatives; and

(D) the Committee on the Judiciary of the Senate.

(d) SUNSET.—This section shall not apply to any 4-year election cycle beginning after the election for the offices of President and Vice President in 2032.

SEC. 4005. PROHIBITION ON CONTRIBUTIONS AND DONATIONS BY FOREIGN NATIONALS IN CONNECTION WITH BALLOT INITIATIVES AND REFERENDA.

(a) IN GENERAL.—Section 319(b) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30121(b)), as amended by section 4003 of this title, is amended by adding at the end the following new paragraphs:

"(3) FEDERAL, STATE, OR LOCAL ELECTION.—The term 'Federal, State, or local election' includes a State or local ballot initiative or referendum, but only in the case of—

"(A) a covered foreign national as defined in paragraph (4); or

"(B) a foreign principal described in section 1(b)(2) or 1(b)(3) of the Foreign Agent Registration Act of 1938, as amended (22 U.S.C. 611(b)(2) or (b)(3)) or an agent of such a foreign principal under such Act.

"(4) COVERED FOREIGN NATIONAL.—

"(A) IN GENERAL.—The term 'covered foreign national' means—

"(i) a foreign principal (as defined in section 1(b) of the Foreign Agents Registration Act of 1938 (22 U.S.C. 611(b))) that is a government of a foreign country or a foreign political party;

"(ii) any person who acts as an agent, representative, employee, or servant, or any person who acts in any other capacity at the order, request, or under the direction

or control, of a foreign principal described in clause (i) or of a person any of whose activities are directly or indirectly supervised, directed, controlled, financed, or subsidized in whole or in major part by a foreign principal described in clause (i); or

"(iii) any person included in the list of specially designated nationals and blocked persons maintained by the Office of Foreign Assets Control of the Department of the Treasury pursuant to authorities relating to the imposition of sanctions relating to the conduct of a foreign principal described in clause (i).

"(B) CLARIFICATION REGARDING APPLICATION TO CITIZENS OF THE UNITED STATES.—In the case of a citizen of the United States, clause (ii) of subparagraph (A) applies only to the extent that the person involved acts within the scope of that person's status as the agent of a foreign principal described in clause (i) of subparagraph (A).".

(b) EFFECTIVE DATE.—The amendment made by this section shall apply with respect to elections held after the date of enactment of this title.

SEC. 4006. DISBURSEMENTS AND ACTIVITIES SUBJECT TO FOREIGN MONEY BAN.

(a) DISBURSEMENTS DESCRIBED.—Section 319(a)(1) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30121(a)(1)) is amended—

(1) by striking "or" at the end of subparagraph (B); and

(2) by striking subparagraph (C) and inserting the following:

"(C) an expenditure;

"(D) an independent expenditure;

"(E) a disbursement for an electioneering communication (within the meaning of section 304(f)(3));

"(F) a disbursement for a communication which is placed or promoted for a fee on a website, web application, or digital application that refers to a clearly identified candidate for election for Federal office and is disseminated within 60 days before a general, special or runoff election for the office sought by the candidate or 30 days before a primary or preference election, or a convention or caucus of a political party that has authority to nominate a candidate for the office sought by the candidate;

"(G) a disbursement by a covered foreign national (as defined in subsection (b)(4)) for a broadcast, cable or satellite communication, or for a communication which is placed or promoted for a fee on a website, web application, or digital application, that promotes, supports, attacks or opposes the election of a clearly identified candidate for Federal, State, or local office (regardless of whether the communication contains express advocacy or the functional equivalent of express advocacy);

"(H) a disbursement for a broadcast, cable, or satellite communication, or for any communication which is placed or promoted for a fee on an online platform (as defined in subsection (b)(5)), that discusses a national legislative issue of public importance in a year in which a regularly scheduled general election for Federal office is held, but only if the disbursement is made by a covered foreign national (as defined in subsection (b)(4));

"(I) a disbursement by a covered foreign national (as defined in subsection (b)(4)) to compensate any person for internet activity that promotes, supports, attacks or opposes the election of a clearly identified candidate for Federal, State, or local office (regardless of whether the activity contains express advocacy or the functional equivalent of express advocacy); or

"(J) a disbursement by a covered foreign national (as defined in subsection (b)(4)) for a Federal judicial nomination communication (as defined in section 324(g)(2));".

(b) DEFINITION OF ONLINE PLATFORM.—Section 319(b) of such Act (52 U.S.C. 30121(b)), as amended by sections 4003 and 4005 of this title, is amended by adding at the end the following new paragraph:

"(5) ONLINE PLATFORM.—

"(A) IN GENERAL.—For purposes of this section, subject to subparagraph (B), the term 'online platform' means any public-facing website, web application, or digital application (including a social network, ad network, or search engine) which—

"(i) (I) sells qualified political advertisements; and

"(II) has 50,000,000 or more unique monthly United States visitors or users for a majority of months during the preceding 12 months; or

"(ii) is a third-party advertising vendor that has 50,000,000 or more unique monthly United States visitors in the aggregate on any advertisement space that it has sold or bought for a majority of months during the preceding 12 months, as measured by an independent digital ratings service accredited by the Media Ratings Council (or its successor).

"(B) EXEMPTION.—Such term shall not include any online platform that is a distribution facility of any broadcasting station or newspaper, magazine, blog, publication, or periodical.

"(C) THIRD-PARTY ADVERTISING VENDOR DEFINED.—For purposes of this subsection, the term 'third-party advertising vendor' includes, but is not limited to, any third-party advertising vendor network, advertising agency, advertiser, or third-party advertisement serving company that buys and sells advertisement space on behalf of unaffiliated third-party websites, search engines, digital applications, or social media sites.

"(6) NATIONAL LEGISLATIVE ISSUE OF PUBLIC IMPORTANCE.—For purposes of subsection (a)(1)(H), the term 'national legislative issue of public importance' means any issue that is the subject of—

"(A) a bill or joint resolution that has been introduced in either House of Congress during the 2-year period ending on the date of the communication;

"(B) a hearing held by any committee or subcommittee of either House of Congress during such period;

"(C) an executive order issued during such period; or

"(D) a rulemaking of general applicability proposed or finalized by a Federal agency during such period.".

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to disbursements made on or after the date of the enactment of this title.

SEC. 4007. PROHIBITING ESTABLISHMENT OF CORPORATION TO CONCEAL ELECTION CONTRIBUTIONS AND DONATIONS BY FOREIGN NATIONALS.

(a) PROHIBITION.—Chapter 29 of title 18, United States Code is amended by adding at the end the following:

"§ 612. Establishment of corporation to conceal election contributions and donations by foreign nationals

"(a) OFFENSE.—It shall be unlawful for an owner, officer, attorney, or incorporation agent of a corporation, company, or other entity to establish or use the corporation, company, or other entity with the intent to conceal an activity of a foreign national (as defined in section 319 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30121)) prohibited under such section 319.

"(b) PENALTY.—Any person who violates subsection (a) shall be imprisoned for not more than 5 years, fined under this title, or both.

"(c) SAFE HARBOR FOR PROFESSIONAL SERVICES.—Subsection (a) shall not apply to an attorney, incorporation agent, or other person providing professional services in the ordinary course of such person's profession if—

"(1) such person did not have actual knowledge that the corporation, company, or other entity was established or used with the intent described in subsection (a); and

"(2) such person took reasonable steps, consistent with applicable professional obligations, to ascertain the lawful purpose of the entity, including such steps as may be required by regulations promulgated by the Attorney General.".

(b) TABLE OF SECTIONS.—The table of sections for chapter 29 of title 18, United States Code is amended by adding at the end the following new item:

"612. Establishment of corporation to conceal election contributions and donations by foreign nationals.".

CHAPTER 2—REPORTING OF CAMPAIGN-RELATED DISBURSEMENTS

SEC. 4008. REPORTING OF CAMPAIGN-RELATED DISBURSEMENTS.

(a) IN GENERAL.—Section 324 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30126) is amended to read as follows:

"SEC. 324. Disclosure of campaign-related disbursements by covered organizations.

"(a) DISCLOSURE STATEMENT.—

"(1) IN GENERAL.—Any covered organization that makes campaign-related disbursements aggregating more than $10,000 in an election reporting cycle shall, not later than 24 hours after each disclosure date, file a statement with the Commission made under penalty of perjury that contains the information described in paragraph (2)—

"(A) in the case of the first statement filed under this subsection, for the period beginning on the first day of the election reporting cycle (or, if earlier, the period beginning one year before the first such disclosure date) and ending on the first such disclosure date; and

"(B) in the case of any subsequent statement filed under this subsection, for the period beginning on the previous disclosure date and ending on such disclosure date.

"(2) INFORMATION DESCRIBED.—The information described in this paragraph is as follows:

"(A) The name of the covered organization and the principal place of business of such organization and, in the case of a covered organization that is a corporation (other than a business concern that is an issuer of a class of securities registered under section 12 of the Securities Exchange Act of 1934 (15 U.S.C. 78l) or that is required to file reports under section 15(d) of that Act (15 U.S.C. 78o(d))) or an entity described in subsection (e)(2), a list of the beneficial owners (as defined in paragraph (4)(A)) of the entity that—

"(i) identifies each beneficial owner by name and current residential or business street address; and

"(ii) if any beneficial owner exercises control over the entity through another legal entity, such as a corporation, partnership, limited liability company, or trust, identifies each such other legal entity and each such beneficial owner who will use that other entity to exercise control over the entity.

"(B) The amount of each campaign-related disbursement made by such organization during the period covered by the statement of more than $1,000, and the name and address of the person to whom the disbursement was made.

"(C) In the case of a campaign-related disbursement that is not a covered transfer, the election to which the campaign-related disbursement pertains and if the disbursement is made for a public communication, the name of any candidate identified in such

communication and if such communication is in support of or in opposition to the identified candidate.

"(D) A certification by the chief executive officer or person who is the head of the covered organization that the campaign-related disbursement is not made in cooperation, consultation, or concert with or at the request or suggestion of a candidate, authorized committee, or agent of a candidate, political party, or agent of a political party.

"(E)(i) If the covered organization makes campaign-related disbursements using exclusively funds in a campaign-related disbursement segregated fund, for each payment made to the account by a person other than the covered organization—

"(I) the name and address of each person who made such payment to the account during the period covered by the statement;

"(II) the date and amount of such payment; and

"(III) the aggregate amount of all such payments made by the person during the period beginning on the first day of the election reporting cycle (or, if earlier, the period beginning one year before the disclosure date) and ending on the disclosure date,

but only if such payment was made by a person who made payments to the account in an aggregate amount of $10,000 or more during the period beginning on the first day of the election reporting cycle (or, if earlier, the period beginning one year before the disclosure date) and ending on the disclosure date.

"(ii) In any calendar year after the calendar year in which this section is enacted, section 315(c)(1)(B) shall apply to the amount described in clause (i) in the same manner as such section applies to the limitations established under subsections (a)(1)(A), (a)(1)(B), (a)(3), and (h) of such section, except that for purposes of applying such section to the amounts described in subsection (b), the 'base period' shall be the calendar year in which this section is enacted.

"(F)(i) If the covered organization makes campaign-related disbursements using funds other than funds in a campaign-related disbursement segregated fund, for each payment to the covered organization—

"(I) the name and address of each person who made such payment during the period covered by the statement;

"(II) the date and amount of such payment; and

"(III) the aggregate amount of all such payments made by the person during the period beginning on the first day of the election reporting cycle (or, if earlier, the period beginning one year before the disclosure date) and ending on the disclosure date,

but only if such payment was made by a person who made payments to the covered organization in an aggregate amount of $10,000 or more during the period beginning on the first day of the election reporting cycle (or, if earlier, the period beginning one year before the disclosure date) and ending on the disclosure date.

"(ii) In any calendar year after the calendar year in which this section is enacted, section 315(c)(1)(B) shall apply to the amount described in clause (i) in the same manner as such section applies to the limitations established under subsections (a)(1)(A), (a)(1)(B), (a)(3), and (h) of such section, except that for purposes of applying such section to the amounts described in subsection (b), the 'base period' shall be the calendar year in which this section is enacted.

"(G) Such other information as required in rules established by the Commission to promote the purposes of this section.

"(3) EXCEPTIONS.—

"(A) AMOUNTS RECEIVED IN ORDINARY COURSE OF BUSINESS.—The requirement to include in a statement filed under paragraph (1) the information described in paragraph (2) shall not apply to amounts received by the covered organization in commercial transactions in the ordinary course of any trade or business conducted by the covered organization or in the form of investments (other than investments by the principal shareholder in a limited liability corporation) in the covered organization. For purposes of this subparagraph, amounts received by a covered organization as remittances from an employee to the employee's collective bargaining representative shall be treated as amounts received in commercial transactions in the ordinary course of the business conducted by the covered organization. A transaction shall not be treated as in the ordinary course of any trade or business if the covered organization knew or had reason to know that the payment was made for the purpose of funding campaign-related disbursements, or if the payment substantially exceeds the fair market value of any goods, services, or other consideration provided in exchange.

"(B) THREAT OF HARASSMENT OR REPRISAL.—

"(i) IN GENERAL.—The requirement to include any information relating to the name or address of any person (other than a candidate) in a statement submitted under paragraph (1) shall not apply if the Commission, upon petition by the covered organization, determines that there is a reasonable probability that the disclosure of such information would subject the person to serious threats, harassment, or reprisals.

"(ii) PETITION AND DETERMINATION.—A covered organization seeking an exemption under this subparagraph shall submit a petition to the Commission that identifies the person for whom the exemption is sought and provides specific evidence supporting the claim of a reasonable probability of serious threats, harassment, or reprisals. The Commission shall act on such petition not later than

30 days after receipt. If the Commission fails to act within such period, the exemption shall be deemed granted pending final determination.

"(iii) BURDEN OF PROOF.—The burden of establishing eligibility for an exemption under this subparagraph shall be on the covered organization submitting the petition, which must demonstrate the reasonable probability of serious threats, harassment, or reprisals by clear and convincing evidence.

"(iv) SCOPE AND DURATION.—An exemption granted under this subparagraph shall apply only with respect to the specific person identified in the petition and shall expire 2 years after the date on which the exemption is granted, unless renewed upon a new petition demonstrating that the conditions giving rise to the exemption continue to exist.

"(v) GENERALIZED CLAIMS INSUFFICIENT.—A petition under this subparagraph may not be granted on the basis of generalized allegations of hostility toward the covered organization or its mission. The petition must demonstrate a specific and credible threat of serious harm to the person for whom the exemption is sought.

"(4) OTHER DEFINITIONS.—For purposes of this section:

"(A) BENEFICIAL OWNER DEFINED.—

"(i) IN GENERAL.—Except as provided in clause (ii), the term 'beneficial owner' means, with respect to any entity, a natural person who, directly or indirectly—

"(I) exercises substantial control over an entity through ownership, voting rights, agreement, or otherwise; or

"(II) has a substantial interest in or receives substantial economic benefits from the assets of an entity.

"(ii) EXCEPTIONS.—The term 'beneficial owner' shall not include—

"(I) a minor child;

"(II) a person acting as a nominee, intermediary, custodian, or agent on behalf of another person;

"(III) a person acting solely as an employee of an entity and whose control over or economic benefits from the entity derives solely from the employment status of the person;

"(IV) a person whose only interest in an entity is through a right of inheritance, unless the person also meets the requirements of clause (i); or

"(V) a creditor of an entity, unless the creditor also meets the requirements of clause (i).

"(iii) ANTI-ABUSE RULE.—The exceptions under clause (ii) shall not apply if used for the purpose of evading, circumventing, or abusing the provisions of clause (i) or paragraph (2)(A).

“(B) CAMPAIGN-RELATED DISBURSEMENT SEGREGATED FUND.—The term ‘campaign-related disbursement segregated fund’ means a segregated bank account consisting of funds that were paid directly to such account by persons other than the covered organization that controls the account.

“(C) DISCLOSURE DATE.—The term ‘disclosure date’ means—

“(i) the first date during any election reporting cycle by which a person has made campaign-related disbursements aggregating more than $10,000; and

“(ii) any other date during such election reporting cycle by which a person has made campaign-related disbursements aggregating more than $10,000 since the most recent disclosure date for such election reporting cycle.

“(D) ELECTION REPORTING CYCLE.—The term ‘election reporting cycle’ means the 2-year period beginning on the date of the most recent general election for Federal office.

“(E) PAYMENT.—The term ‘payment’ includes any contribution, donation, transfer, payment of dues, or other payment.

“(b) COORDINATION WITH OTHER PROVISIONS.—

“(1) OTHER REPORTS FILED WITH THE COMMISSION.—Information included in a statement filed under this section may be excluded from statements and reports filed under section 304.

“(2) TREATMENT AS SEPARATE SEGREGATED FUND.—A campaign-related disbursement segregated fund may be treated as a separate segregated fund for purposes of section 527(f)(3) of the Internal Revenue Code of 1986.

“(c) FILING.—Statements required to be filed under subsection (a) shall be subject to the requirements of section 304(d) to the same extent and in the same manner as if such reports had been required under subsection (c) or (g) of section 304.

“(d) CAMPAIGN-RELATED DISBURSEMENT DEFINED.—

“(1) IN GENERAL.—In this section, the term ‘campaign-related disbursement’ means a disbursement by a covered organization for any of the following:

“(A) An independent expenditure which expressly advocates the election or defeat of a clearly identified candidate for election for Federal office, or is the functional equivalent of express advocacy because, when taken as a whole, it can be interpreted by a reasonable person only as advocating the election or defeat of a candidate for election for Federal office.

“(B) An applicable public communication.

“(C) An electioneering communication, as defined in section 304(f)(3).

“(D) A covered transfer.

“(2) APPLICABLE PUBLIC COMMUNICATIONS.—

"(A) IN GENERAL.—The term 'applicable public communication' means any public communication that refers to a clearly identified candidate for election for Federal office and which promotes or supports the election of a candidate for that office, or attacks or opposes the election of a candidate for that office, without regard to whether the communication expressly advocates a vote for or against a candidate for that office.

"(B) EXCEPTION.—Such term shall not include any news story, commentary, or editorial distributed through the facilities of any broadcasting station or any print, online, or digital newspaper, magazine, publication, or periodical, unless such facilities are owned or controlled by any political party, political committee, or candidate.

"(e) COVERED ORGANIZATION DEFINED.—In this section, the term 'covered organization' means any of the following:

"(1) A corporation (other than an organization described in section 501(c)(3) of the Internal Revenue Code of 1986).

"(2) A limited liability corporation that is not otherwise treated as a corporation for purposes of this title (other than an organization described in section 501(c)(3) of the Internal Revenue Code of 1986).

"(3) An organization described in section 501(c) of such Code and exempt from taxation under section 501(a) of such Code (other than an organization described in section 501(c)(3) of such Code).

"(4) A labor organization (as defined in section 316(b)).

"(5) Any political organization under section 527 of the Internal Revenue Code of 1986, other than a political committee under this title (except as provided in paragraph (6)).

"(6) A political committee with an account that accepts donations or contributions that do not comply with the contribution limits or source prohibitions under this title, but only with respect to such accounts.

"(f) COVERED TRANSFER DEFINED.—

"(1) IN GENERAL.—In this section, the term 'covered transfer' means any transfer or payment of funds by a covered organization to another person if the covered organization—

"(A) designates, requests, or suggests that the amounts be used for—

"(i) campaign-related disbursements (other than covered transfers); or

"(ii) making a transfer to another person for the purpose of making or paying for such campaign-related disbursements;

"(B) made such transfer or payment in response to a solicitation or other request for a donation or payment for—

“(i) the making of or paying for campaign-related disbursements (other than covered transfers); or

“(ii) making a transfer to another person for the purpose of making or paying for such campaign-related disbursements;

“(C) engaged in discussions with the recipient of the transfer or payment regarding—

“(i) the making of or paying for campaign-related disbursements (other than covered transfers); or

“(ii) donating or transferring any amount of such transfer or payment to another person for the purpose of making or paying for such campaign-related disbursements; or

“(D) knew or had reason to know that the person receiving the transfer or payment would make campaign-related disbursements in an aggregate amount of $50,000 or more during the 2-year period beginning on the date of the transfer or payment.

“(2) EXCLUSIONS.—The term ‘covered transfer’ does not include the following:

“(A) A disbursement made by a covered organization in a commercial transaction in the ordinary course of any trade or business conducted by the covered organization or in the form of investments made by the covered organization.

“(3) SPECIAL RULE REGARDING TRANSFERS AMONG AFFILIATES.—

“(A) SPECIAL RULE.—A transfer of an amount by one covered organization to another covered organization which is treated as a transfer between affiliates under subparagraph (C) shall be considered a covered transfer by the covered organization which transfers the amount only if the aggregate amount transferred during the year by such covered organization to that same covered organization is equal to or greater than $50,000 (adjusted for each calendar year after the calendar year in which this section is enacted in the same manner as the adjustment under section 315(c)(1)(B) applies to the limitations established under subsections (a)(1)(A), (a)(1)(B), (a)(3), and (h) of such section, using the calendar year in which this section is enacted as the base period).

“(B) DETERMINATION OF AMOUNT OF CERTAIN PAYMENTS AMONG AFFILIATES.—In determining the amount of a transfer between affiliates for purposes of subparagraph (A), to the extent that the transfer consists of funds attributable to dues, fees, or assessments which are paid by individuals on a regular, periodic basis in accordance with a per-individual calculation which is made on a regular basis, the transfer shall be attributed to the individuals paying the dues, fees, or assessments and shall not be attributed to the covered organization.

“(C) DESCRIPTION OF TRANSFERS BETWEEN AFFILIATES.—A transfer of amounts from one covered organization to another covered organization shall be treated as a transfer between affiliates if—

"(i) one of the organizations is an affiliate of the other organization; or

"(ii) each of the organizations is an affiliate of the same organization,

except that the transfer shall not be treated as a transfer between affiliates if one of the organizations is established for the purpose of making campaign-related disbursements.

"(D) DETERMINATION OF AFFILIATE STATUS.—For purposes of subparagraph (C), a covered organization is an affiliate of another covered organization if—

"(i) the governing instrument of the organization requires it to be bound by decisions of the other organization;

"(ii) the governing board of the organization includes persons who are specifically designated representatives of the other organization or are members of the governing board, officers, or paid executive staff members of the other organization, or whose service on the governing board is contingent upon the approval of the other organization; or

"(iii) the organization is chartered by the other organization.

"(E) COVERAGE OF TRANSFERS TO AFFILIATED SECTION 501(c)(3) ORGANIZATIONS.—This paragraph shall apply with respect to an amount transferred by a covered organization to an organization described in paragraph (3) of section 501(c) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code in the same manner as this paragraph applies to an amount transferred by a covered organization to another covered organization.

"(F) LOOK-THROUGH RULE FOR TRANSFERS THROUGH TAX-EXEMPT INTERMEDIARIES.—If a covered organization transfers funds to an organization described in section 501(c)(3) of the Internal Revenue Code of 1986, and such organization subsequently transfers funds to any person who makes campaign-related disbursements aggregating $50,000 or more (adjusted in the same manner as the amount under subparagraph (A)) during the 2-year period beginning on the date of the subsequent transfer, the original transfer shall be treated as a covered transfer for purposes of this section, unless the covered organization demonstrates that it did not know and had no reason to know that the funds would be used, directly or indirectly, for campaign-related disbursements.

"(g) NO EFFECT ON OTHER REPORTING REQUIREMENTS.—Except as provided in subsection (b)(1), nothing in this section shall be construed to waive or otherwise affect any other requirement of this title which relates to the reporting of campaign-related disbursements.".

(b) CONFORMING AMENDMENT.—Section 304(f)(6) of such Act (52 U.S.C. 30104) is amended by striking "Any requirement" and inserting "Except as provided in section 324(b), any requirement".

(c) REGULATIONS.—Not later than 6 months after the date of the enactment of this title, the Federal Election Commission shall promulgate regulations relating the application of the exemption under section 324(a)(3)(B) of the Federal Election Campaign Act of 1971 (as added by subsection (a)). Such regulations—

shall require that the legal burden of establishing eligibility for such exemption is upon the organization required to make the report required under section 324(a)(1) of such Act (as added by subsection (a)), and

shall be consistent with the principles applied in Citizens United v. Federal Election Commission, 558 U.S. 310 (2010).

SEC. 4009. REPORTING OF FEDERAL JUDICIAL NOMINATION DISBURSEMENTS.

(a) FINDINGS.—In addition to the findings set forth in section 4002 of this title, Congress makes the following finding with respect to Federal judicial nominations:

Under current law, "social welfare" organizations and business leagues can use funds to influence elections so long as political activity is not their "primary" activity. Super PACs can accept and spend unlimited contributions from any non-foreign source. These entities can also spend unlimited amounts to influence the nomination and confirmation of Federal judges without any disclosure of their donors, because such spending falls outside the scope of the Federal Election Campaign Act of 1971.

(b) REPORTING.—Section 324 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30126), as amended by section 4008 of this title, is amended by redesignating subsection (g) as subsection (h) and by inserting after subsection (f) the following new subsection:

"(g) APPLICATION TO FEDERAL JUDICIAL NOMINATIONS.—

"(1) IN GENERAL.—For purposes of this section—

"(A) a disbursement by a covered organization for a Federal judicial nomination communication shall be treated as a campaign-related disbursement; and

"(B) in the case of campaign-related disbursements which are for Federal judicial nomination communications—

"(i) the dollar amounts in paragraphs (1) and (2) of subsection (a) shall be applied separately with respect to such disbursements and other campaign-related disbursements;

"(ii) the election reporting cycle shall be the calendar year in which the disbursement for the Federal judicial nomination communication is made;

"(iii) references to a candidate in subsections (a)(2)(C), (a)(2)(D), and (a)(3)(C) shall be treated as references to a nominee for a Federal judge or justice; and

"(iv) the reference to an election in subsection (a)(2)(C) shall be treated as a reference to the nomination of such nominee.

"(2) FEDERAL JUDICIAL NOMINATION COMMUNICATION.—

"(A) IN GENERAL.—The term 'Federal judicial nomination communication' means any communication—

"(i) that is by means of any broadcast, cable, or satellite, paid internet, or paid digital communication, paid promotion, newspaper, magazine, outdoor advertising facility, mass mailing, telephone bank, telephone messaging effort of more than 500 substantially similar calls or electronic messages within a 30-day period, or any other form of general public political advertising;

"(ii) which promotes, supports, attacks, or opposes the nomination or Senate confirmation of an individual as a Federal judge or justice; and

"(iii) which is disseminated during the period beginning on the date on which the President publicly announces or submits to the Senate the nomination of such individual and ending 120 days after the date on which the Senate confirms or rejects the nomination, or the nomination is withdrawn.

"(B) EXCEPTION.—Such term shall not include any news story, commentary, or editorial distributed through the facilities of any broadcasting station or any print, online, or digital newspaper, magazine, publication, or periodical, unless such facilities are owned or controlled by any political party, political committee, or candidate.

"(C) INTENT NOT REQUIRED.—A disbursement for an item described in subparagraph (A) shall be treated as a disbursement for a Federal judicial nomination communication regardless of the intent of the person making the disbursement.".

SEC. 4010. COORDINATION WITH FINCEN.

(a) IN GENERAL.—The Director of the Financial Crimes Enforcement Network of the Department of the Treasury shall provide the Federal Election Commission with such information as necessary to assist in administering and enforcing section 324 of the Federal Election Campaign Act of 1971, as amended by this chapter.

(b) REPORT.—Not later than 6 months after the date of the enactment of this title, the Chairman of the Federal Election Commission, in consultation with the Director of the Financial Crimes Enforcement Network of the Department of the Treasury, shall submit to Congress a report with recommendations for providing further legislative authority to assist in the administration and enforcement of such section 324.

SEC. 4011. APPLICATION OF FOREIGN MONEY BAN TO DISBURSEMENTS FOR CAMPAIGN-RELATED DISBURSEMENTS CONSISTING OF COVERED TRANSFERS.

Section 319(b)(2) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30121(b)(2)), as amended by section 4003 of this title, is amended—

(1) by striking "includes any disbursement" and inserting "includes—

"(A) any disbursement";

(2) by striking the period at the end and inserting "; and", and

(3) by adding at the end the following new subparagraph:

"(B) any disbursement, other than a disbursement described in section 324(a)(3)(A), to another person who made a campaign-related disbursement consisting of a covered transfer (as described in section 324) during the 2-year period ending on the date of the disbursement.".

SEC. 4012. SENSE OF CONGRESS REGARDING IMPLEMENTATION.

It is the sense of Congress that the Federal Election Commission should simplify the process for filing any disclosure required under the provisions of, and amendments made by, this chapter in order to ensure that such process is as easy and accessible as possible.

SEC. 4013. EFFECTIVE DATE.

The amendments made by this chapter shall apply with respect to disbursements made on or after the date of the enactment of this title, and shall take effect without regard to whether or not the Federal Election Commission has promulgated regulations to carry out such amendments.

CHAPTER 3—OTHER ADMINISTRATIVE REFORMS

SEC. 4014. PETITION FOR CERTIORARI.

Section 307(a)(6) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30107(a)(6)) is amended by inserting "(including a proceeding before the Supreme Court on certiorari)" after "appeal".

SEC. 4015. JUDICIAL REVIEW OF ACTIONS RELATED TO CAMPAIGN FINANCE LAWS.

(a) IN GENERAL.—Title IV of the Federal Election Campaign Act of 1971 (52 U.S.C. 30141 et seq.) is amended by inserting after section 406 the following new section:

"SEC. 407. Judicial review.

"(a) IN GENERAL.—If any action is brought for declaratory or injunctive relief to challenge, whether facially or as-applied, the constitutionality or lawfulness of any provision of this title, including title V, or of chapter 95 or 96 of the Internal Revenue Code of 1986, or is brought with respect to any action of the Commission under chapter 95 or 96 of the Internal Revenue Code of 1986, the following rules shall apply:

"(1) The action shall be filed in the United States District Court for the District of Columbia and an appeal from the decision of the district court may be taken to the Court of Appeals for the District of Columbia Circuit.

"(2) In the case of an action relating to declaratory or injunctive relief to challenge the constitutionality of a provision, the party filing the action shall concurrently deliver a copy of the complaint to the Clerk of the House of Representatives and the Secretary of the Senate.

"(3) It shall be the duty of the United States District Court for the District of Columbia and the Court of Appeals for the District of Columbia Circuit to advance on the docket and to expedite to the greatest possible extent the disposition of the action and appeal.

"(b) CERTIFICATION OF CONSTITUTIONAL QUESTIONS.—If an action at the time of its commencement is not subject to subsection (a), but an amendment, counterclaim, cross-claim, affirmative defense, or any other pleading or motion is filed challenging, whether facially or as-applied, the constitutionality or lawfulness of this title or of chapter 95 or 96 of the Internal Revenue Code of 1986, or is brought with respect to any action of the Commission under chapter 95 or 96 of the Internal Revenue Code of 1986, the court shall certify the constitutional question to the United States District Court for the District of Columbia for determination and may stay proceedings on the underlying action pending such determination. The United States District Court for the District of Columbia shall advance on the docket and expedite to the greatest possible extent the disposition of any question certified under this subsection.

"(c) INTERVENTION BY MEMBERS OF CONGRESS.—In any action described in subsection (a) relating to declaratory or injunctive relief to challenge the constitutionality of a provision, any Member of the House of Representatives (including a Delegate or Resident Commissioner to the Congress) or Senate shall have the right to intervene either in support of or opposition to the position of a party to the case regarding the constitutionality of the provision. To avoid duplication of efforts and reduce the burdens placed on the parties to the action, the court in any such action may make such orders as it considers necessary, including orders to require interveners taking similar positions to file joint papers or to be represented by a single attorney at oral argument.

"(d) CHALLENGE BY MEMBERS OF CONGRESS.—A group of not fewer than one-fifth of the Members of either the House of Representatives (including Delegates and the Resident Commissioner to the Congress) or the Senate may bring an action, subject to the special rules described in subsection (a), for declaratory or injunctive relief to challenge, whether facially or as-applied, the constitutionality of any provision of this title or chapter 95 or 96 of the Internal Revenue Code of 1986.".

(b) CONFORMING AMENDMENTS.—

(1) Section 9011 of the Internal Revenue Code of 1986 is amended to read as follows:

"SEC. 9011. Judicial review.

"For provisions relating to judicial review of certifications, determinations, and actions by the Commission under this chapter, see section 407 of the Federal Election Campaign Act of 1971.".

(2) Section 9041 of the Internal Revenue Code of 1986 is amended to read as follows:

"SEC. 9041. Judicial review.

"For provisions relating to judicial review of actions by the Commission under this chapter, see section 407 of the Federal Election Campaign Act of 1971.".

(3) Section 310 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30110) is repealed.

(4) Section 403 of the Bipartisan Campaign Reform Act of 2002 (52 U.S.C. 30110 note) is repealed.

SEC. 4016. EFFECTIVE DATE.

The amendments made by this chapter shall take effect and apply on the date of the enactment of this title, without regard to whether or not the Federal Election Commission has promulgated regulations to carry out this chapter and the amendments made by this chapter.

CHAPTER 4—STAND BY EVERY AD

SEC. 4017. SHORT TITLE.

This chapter may be cited as the "Stand By Every Ad Act".

SEC. 4018. STAND BY EVERY AD.

(a) EXPANDED DISCLAIMER REQUIREMENTS FOR CERTAIN COMMUNICATIONS.—Section 318 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30120) is amended by adding at the end the following new subsection:

"(e) EXPANDED DISCLAIMER REQUIREMENTS FOR COMMUNICATIONS NOT AUTHORIZED BY CANDIDATES OR COMMITTEES.—

"(1) IN GENERAL.—Except as provided in paragraph (6), any communication described in paragraph (3) of subsection (a) which is transmitted in an audio or video format (including an internet or digital communication), or which is an internet or digital communication transmitted in a text or graphic format, shall include, in addition to the requirements of paragraph (3) of subsection (a), the following:

"(A) The individual disclosure statement described in paragraph (2)(A) (if the person paying for the communication is an individual) or the organizational disclosure statement described in paragraph (2)(B) (if the person paying for the communication is not an individual).

"(B) If the communication is transmitted in a video format, or is an internet or digital communication which is transmitted in a text or graphic format, and is paid for in whole or in part with a payment which is treated as a campaign-related disbursement under section 324—

"(i) the Top Five Funders list (if applicable); or

"(ii) in the case of a communication which, as determined on the basis of criteria established in regulations issued by the Commission, is of such short duration that including the Top Five Funders list in the communication would constitute a hardship to the person paying for the communication by requiring a disproportionate amount of the content of the communication to consist of the Top Five Funders list, the name of a website which contains the Top Five Funders

list (if applicable) or, in the case of an internet or digital communication, a hyperlink to such website.

"(C) If the communication is transmitted in an audio format and is paid for in whole or in part with a payment which is treated as a campaign-related disbursement under section 324—

"(i) the Top Two Funders list (if applicable); or

"(ii) in the case of a communication which, as determined on the basis of criteria established in regulations issued by the Commission, is of such short duration that including the Top Two Funders list in the communication would constitute a hardship to the person paying for the communication by requiring a disproportionate amount of the content of the communication to consist of the Top Two Funders list, the name of a website which contains the Top Two Funders list (if applicable).

"(2) DISCLOSURE STATEMENTS DESCRIBED.—

"(A) INDIVIDUAL DISCLOSURE STATEMENTS.—The individual disclosure statement described in this subparagraph is the following: 'I am _____, and I approve this message.', with the blank filled in with the name of the applicable individual.

"(B) ORGANIZATIONAL DISCLOSURE STATEMENTS.—The organizational disclosure statement described in this subparagraph is the following: 'I am _____, the _____ of _____, and _____ approves this message.', with—

"(i) the first blank to be filled in with the name of the applicable individual;

"(ii) the second blank to be filled in with the title of the applicable individual; and

"(iii) the third and fourth blank each to be filled in with the name of the organization or other person paying for the communication.

"(3) METHOD OF CONVEYANCE OF STATEMENT.—

"(A) COMMUNICATIONS IN TEXT OR GRAPHIC FORMAT.—In the case of a communication to which this subsection applies which is transmitted in a text or graphic format, the disclosure statements required under paragraph (1) shall appear in letters at least as large as the majority of the text in the communication.

"(B) COMMUNICATIONS TRANSMITTED IN AUDIO FORMAT.—In the case of a communication to which this subsection applies which is transmitted in an audio format, the disclosure statements required under paragraph (1) shall be made by audio by the applicable individual in a clear and conspicuous manner.

"(C) COMMUNICATIONS TRANSMITTED IN VIDEO FORMAT.—In the case of a communication to which this subsection applies which is transmitted in a video format, the information required under paragraph (1) shall appear in writing at the end of the communication or in a crawl along the bottom of the communication in a clear

and conspicuous manner, with a reasonable degree of color contrast between the background and the printed statement, for a period of at least 6 seconds.

"(4) APPLICABLE INDIVIDUAL DEFINED.—The term 'applicable individual' means, with respect to a communication to which this subsection applies—

"(A) if the communication is paid for by an individual, the individual involved;

"(B) if the communication is paid for by a corporation, the chief executive officer of the corporation (or, if the corporation does not have a chief executive officer, the highest ranking official of the corporation);

"(C) if the communication is paid for by a labor organization, the highest ranking officer of the labor organization; and

"(D) if the communication is paid for by any other person, the highest ranking official of such person.

"(5) TOP FIVE FUNDERS LIST AND TOP TWO FUNDERS LIST DEFINED.—

"(A) TOP FIVE FUNDERS LIST.—The term 'Top Five Funders list' means, with respect to a communication which is paid for in whole or in part with a campaign-related disbursement (as defined in section 324), a list of the 5 persons who, during the 12-month period ending on the date of the disbursement, provided the largest payments of any type in an aggregate amount equal to or exceeding $10,000 to the person who is paying for the communication and the amount of the payments each such person provided. If 2 or more people provided the fifth largest of such payments, the person paying for the communication shall select 1 of those persons to be included on the Top Five Funders list.

"(B) TOP TWO FUNDERS LIST.—The term 'Top Two Funders list' means, with respect to a communication which is paid for in whole or in part with a campaign-related disbursement (as defined in section 324), a list of the persons who, during the 12-month period ending on the date of the disbursement, provided the largest and the second largest payments of any type in an aggregate amount equal to or exceeding $10,000 to the person who is paying for the communication and the amount of the payments each such person provided. If 2 or more persons provided the second largest of such payments, the person paying for the communication shall select 1 of those persons to be included on the Top Two Funders list.

"(C) EXCLUSION OF CERTAIN PAYMENTS.—For purposes of subparagraphs (A) and (B), in determining the amount of payments made by a person to a person paying for a communication, there shall be excluded any amounts provided in the ordinary course of any trade or business conducted by the person paying for the communication or in the form of investments in the person paying for the communication.

"(6) SPECIAL RULES FOR CERTAIN COMMUNICATIONS.—

"(A) EXCEPTION FOR COMMUNICATIONS PAID FOR BY POLITICAL PARTIES AND CERTAIN POLITICAL COMMITTEES.—This subsection does not apply to any communication to which subsection (d)(2) applies.

"(B) TREATMENT OF VIDEO COMMUNICATIONS LASTING 10 SECONDS OR LESS.—In the case of a communication to which this subsection applies which is transmitted in a video format, or is an internet or digital communication which is transmitted in a text or graphic format, the communication shall meet the following requirements:

"(i) The communication shall include the individual disclosure statement described in paragraph (2)(A) (if the person paying for the communication is an individual) or the organizational disclosure statement described in paragraph (2)(B) (if the person paying for the communication is not an individual).

"(ii) The statement described in clause (i) shall appear in writing at the end of the communication, or in a crawl along the bottom of the communication, in a clear and conspicuous manner, with a reasonable degree of color contrast between the background and the printed statement, for a period of at least 4 seconds.

"(iii) The communication shall include, in a clear and conspicuous manner, a website address with a landing page which will provide all of the information described in paragraph (1) with respect to the communication. Such address shall appear for the full duration of the communication.

"(iv) To the extent that the format in which the communication is made permits the use of a hyperlink, the communication shall include a hyperlink to the website address described in clause (iii).".

(b) APPLICATION OF EXPANDED REQUIREMENTS TO PUBLIC COMMUNICATIONS CONSISTING OF CAMPAIGN-RELATED DISBURSEMENTS.—

(1) IN GENERAL.—Section 318(a) of such Act (52 U.S.C. 30120(a)) is amended by striking "for the purpose of financing communications expressly advocating the election or defeat of a clearly identified candidate" and inserting "for a campaign-related disbursement, as defined in section 324, consisting of a public communication".

(2) CLARIFICATION OF EXEMPTION FROM INCLUSION OF CANDIDATE DISCLAIMER STATEMENT IN FEDERAL JUDICIAL NOMINATION COMMUNICATIONS.—Section 318(a)(3) of such Act (52 U.S.C. 30120(a)(3)) is amended by striking "shall clearly state" and inserting "shall (except in the case of a Federal judicial nomination communication, as defined in section 324(g)(2)) clearly state".

(c) EXCEPTION FOR COMMUNICATIONS PAID FOR BY POLITICAL PARTIES AND CERTAIN POLITICAL COMMITTEES.—Section 318(d)(2) of such Act (52 U.S.C. 30120(d)(2)) is amended—

(1) the heading, by striking “Others” and inserting “Certain political committees”;

(2) by striking “Any communication” and inserting “(A) Any communication”;

(3) by inserting “which (except to the extent provided in subparagraph (B)) is paid for by a political committee (including a political committee of a political party) and” after “subsection (a)”;

(4) by striking “or other person” each place it appears; and

(5) by adding at the end the following new subparagraph:

“(B)(i) This paragraph does not apply to a communication paid for in whole or in part during a calendar year with a campaign-related disbursement, but only if the covered organization making the campaign-related disbursement made campaign-related disbursements (as defined in section 324) aggregating more than $10,000 during such calendar year.

“(ii) For purposes of clause (i), in determining the amount of campaign-related disbursements made by a covered organization during a year, there shall be excluded any amounts received by the covered organization in the ordinary course of any trade or business conducted by the covered organization or in the form of investments in the covered organization.”.

(d) MODIFICATION OF ADDITIONAL REQUIREMENTS FOR CERTAIN COMMUNICATIONS.—Section 318(d) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30120(d)) is amended—

(1) paragraph (1)(A)—

(A) by striking “which is transmitted through radio” and inserting “which is in an audio format”; and

(B) by striking “By radio” in the heading and inserting “Audio format”;

(2) paragraph (1)(B)—

(A) by striking “which is transmitted through television” and inserting “which is in video format”; and

(B) by striking “By television” in the heading and inserting “Video format”; and

(3) paragraph (2)—

(A) by striking “transmitted through radio or television” and inserting “made in audio or video format”; and

(B) by striking “through television” in the second sentence and inserting “in video format”.

SEC. 4019. DISCLAIMER REQUIREMENTS FOR COMMUNICATIONS MADE THROUGH PRERECORDED TELEPHONE CALLS.

(a) APPLICATION OF REQUIREMENTS.—

(1) IN GENERAL.—Section 318(a) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30120(a)) is amended by striking "mailing" each place it appears and inserting "mailing, telephone call consisting in substantial part of a prerecorded audio message".

(2) APPLICATION TO COMMUNICATIONS SUBJECT TO EXPANDED DISCLAIMER REQUIREMENTS.—Section 318(e)(1) of such Act (52 U.S.C. 30120(e)(1)), as added by section 4018 of this title, is amended in the matter preceding subparagraph (A) by striking "which is transmitted in an audio or video format" and inserting "which is transmitted in an audio or video format or which consists of a telephone call consisting in substantial part of a prerecorded audio message".

(b) TREATMENT AS COMMUNICATION TRANSMITTED IN AUDIO FORMAT.—

(1) COMMUNICATIONS BY CANDIDATES OR AUTHORIZED PERSONS.— Section 318(d) of such Act (52 U.S.C. 30120(d)) is amended by adding at the end the following new paragraph:

"(3) PRERECORDED TELEPHONE CALLS.—Any communication described in paragraph (1), (2), or (3) of subsection (a) (other than a communication which is subject to subsection (e)) which is a telephone call consisting in substantial part of a prerecorded audio message shall include, in addition to the requirements of such paragraph, the audio statement required under subparagraph (A) of paragraph (1) or the audio statement required under paragraph (2) (whichever is applicable), except that the statement shall be made at the beginning of the telephone call.".

(2) COMMUNICATIONS SUBJECT TO EXPANDED DISCLAIMER REQUIREMENTS.—Section 318(e)(3) of such Act (52 U.S.C. 30120(e)(3)), as added by section 4018 of this title, is amended by adding at the end the following new subparagraph:

"(D) PRERECORDED TELEPHONE CALLS.—In the case of a communication to which this subsection applies which is a telephone call consisting in substantial part of a prerecorded audio message, the communication shall be considered to be transmitted in an audio format.".

SEC. 4020. NO EXPANSION OF PERSONS SUBJECT TO DISCLAIMER REQUIREMENTS ON INTERNET COMMUNICATIONS.

Nothing in this chapter or the amendments made by this chapter may be construed to require any person who is not required under section 318 of the Federal Election Campaign Act of 1971 to include a disclaimer on communications made by the person through the internet to include any disclaimer on any such communications.

SEC. 4021. EFFECTIVE DATE.

The amendments made by this chapter shall apply with respect to communications made on or after the date of the enactment of this title, and shall take effect without regard to whether or not the Federal Election Commission has promulgated regulations to carry out such amendments.

CHAPTER 5—SEVERABILITY

SEC. 4022. SEVERABILITY.

If any provision of this title or amendment made by this title, or the application of a provision or amendment to any person or circumstance, is held to be unconstitutional, the remainder of this title and amendments made by this title, and the application of the provisions and amendment to any person or circumstance, shall not be affected by the holding.

TITLE V—MASS DIGITIZATION AND PRESERVATION OF FEDERAL GOVERNMENT RECORDS AND COLLECTIONS

SEC. 5001. SHORT TITLE; TABLE OF CONTENTS.

(a) *Short Title.*—This title may be cited as the "Federal Records Digitization and Public Access Act of 2026".

(b) *Table of Contents.*—The table of contents of this title is as follows:

Sec. 5001. Short Title; Table of Contents.

Sec. 5002. Findings.

Sec. 5003. Purposes.

Sec. 5004. Definitions.

Sec. 5005. Mass Digitization Through Competitive Contracts.

Sec. 5006. Competitive Procurement and Public Access Requirements.

Sec. 5007. Modernization of Records Schedules and Appraisal Criteria.

Sec. 5008. Reporting Requirements.

Sec. 5009. Authorization of Appropriations.

Sec. 5010. Protection of Digitization Facilities.

Sec. 5011. Whistleblower Protection.

Sec. 5012. Rule of Construction.

Sec. 5013. Severability.

SEC. 5002. FINDINGS.

Congress finds the following:

(1) The National Archives and Records Administration (hereinafter "NARA") holds an estimated 13,500,000,000 pages of textual records, 41,000,000 photographs, 40,000,000 aerial photographs, 10,000,000 maps, charts, and architectural and engineering drawings, and more than 450,000,000 feet of motion picture, sound, and video recordings. As of the date of enactment of this title, fewer than 500,000,000 pages of NARA's textual holdings have been digitized and made available to the public through the National Archives Catalog, representing approximately 3.4 percent of the total.

(2) The permanent records held by NARA represent the product of hundreds of years of institutional creation, archival appraisal, and sustained public investment in long-term preservation. These records have been individually evaluated and selected for permanent retention precisely because of their enduring value to the Nation—constituting a curated body of governmental knowledge, intelligence, and decision-making spanning the full history of the Republic. This accumulated investment in the creation, appraisal, and physical preservation of the permanent record is substantial, yet the records remain largely inaccessible to computational analysis, longitudinal study, and the development of analytical frameworks that could inform governance in the 21st century. The additional investment necessary to digitize these holdings is modest relative to the sunk costs already borne by the public in their creation and preservation, and would for the first time unlock their full value for democratic oversight, evidence-based policymaking, artificial intelligence development, and the preservation of diverse reasoning traditions and institutional worldviews across the arc of American governance.

(3) The Library of Congress (hereinafter "LOC") holds more than 178,000,000 items across 470 languages, comprising the largest library collection in the world. Among these holdings are substantial collections of government documents, congressional records, legal materials, maps, and other materials of direct governmental provenance. Many of these materials, as well as other collection items stored on inherently unstable media, remain undigitized.

(4) The Government Publishing Office (hereinafter "GPO") provides free public access through govinfo.gov to more than 2,000,000 Federal Government publications. However, most digital-native collections on govinfo.gov begin with publications of the 103d Congress, and the substantial historical record of Federal Government publications predating 1994 remains largely undigitized.

(5) Analog records across these institutions, including materials stored on microfilm, microfiche, nitrate-based film stock, thermofax paper, acid-degraded paper stock, and other inherently unstable media, are subject to ongoing and irreversible physical deterioration. Absent timely digitization, substantial volumes of historically significant material face permanent loss.

(6) Federal agencies have developed rigorous technical standards for the digitization of cultural heritage materials, including the Technical Guidelines for Digitizing Cultural Heritage Materials published by the Federal Agencies Digital Guidelines Initiative (hereinafter "FADGI"), aligned with the International Organization for Standardization standard ISO 19264–1:2021; the binding digitization regulations for permanent Federal records at part 1236 of title 36, Code of Federal Regulations, as established pursuant to section 3302 of title 44, United States Code, as amended by Public Law 113–187; and the National Digital Stewardship Alliance Levels of Digital Preservation. These standards are technically mature but are not supported by appropriations commensurate with the scale of the digitization task.

(7) Over successive decades, the Federal Government has significantly expanded its capabilities in intelligence collection, surveillance, data analysis, and information processing, while the vast majority of the Government's own institutional records—documenting the decisions, operations, and conduct of Federal agencies across the full history of the Republic—remain inaccessible to the public in analog form. This asymmetry between the Government's growing capacity to collect and analyze information about the citizenry and the citizenry's limited capacity to access and analyze information about its Government undermines the foundational democratic principle that an informed public is the ultimate check on the exercise of governmental power.

(8) The advent of artificial intelligence and advanced computational tools has the potential either to deepen or to correct this asymmetry. If the records of the Federal Government remain in analog form, inaccessible to computational analysis, the benefits of artificial intelligence will accrue disproportionately to those with institutional access—including the Government itself, well-resourced private entities, and foreign adversaries—while the public's capacity to oversee, audit, and understand the operations of its own Government will continue to erode. Making digitized government records freely and publicly available would enable citizens, researchers, journalists, and civil society organizations to apply the same analytical capabilities to the work of Government, rebalancing access to institutional intelligence and strengthening democratic accountability in an era of rapid technological change.

(9) The rapid advancement of artificial intelligence and computational technologies is fundamentally transforming the capacity of the private sector, foreign governments, and civil society to organize, analyze, and act upon information at scale. The Federal Government has not made commensurate investments in the digital information infrastructure upon which effective democratic governance depends. The continued predominance of analog records across Federal institutions represents a structural impediment to the modernization of Congress, the effective administration of the executive branch, evidence-based policymaking, rigorous oversight, and the informed participation of the public in self-governance. Digitization of the Federal record is not merely a matter of archival preservation or technological convenience—it is a critical and overdue investment in the operational capacity and democratic legitimacy of the United States Government.

(10) While modern legislative materials are increasingly available in digital form through systems such as Congress.gov and govinfo.gov, substantial portions of the historical congressional record remain undigitized, including committee manuscript collections, deliberative records, and legislative files from the earliest Congresses through the pre-digital era. Similarly, executive agencies have digital access to recent records but lack the ability to computationally analyze the full depth of their institutional history, including historical regulatory proceedings, adjudicative precedent, and operational documentation. These gaps impede—

(A) the capacity of Congress to conduct comprehensive oversight, analyze the full breadth of legislative precedent, and evaluate the outcomes of prior enactments across the history of the Republic;

(B) the ability of Federal agencies to apply data-driven methods to policy development, program evaluation, and administrative decision-making;

(C) the effectiveness of interagency coordination and institutional knowledge transfer, particularly during transitions of leadership and administration; and

(D) the capacity of State, Tribal, and local governments to access and benefit from Federal data, precedent, and operational experience.

(11) The emergence of artificial intelligence, machine learning, natural language processing, and large-scale computational analytics has created unprecedented demand for high-quality, provenance-verified textual and visual datasets. Digitized Federal Government records would constitute a uniquely valuable public-domain resource for the development and evaluation of artificial intelligence systems, and would simultaneously enable the Government itself to deploy such systems for the improvement of its own operations.

(12) The digitization and public release of the Federal Government's permanent records would provide the United States with a unique strategic advantage in the global competition for leadership in artificial intelligence. No other nation possesses a comparable corpus of democratically generated, archivally curated, provenance-verified governmental records spanning more than two centuries of continuous self-governance. Making this corpus available in machine-readable form for the training and evaluation of artificial intelligence systems is essential to ensuring that the United States leads in the development of AI systems capable of supporting democratic governance, national security analysis, legal reasoning, and evidence-based public policy.

(13) The mass digitization of Federal Government records and collections would benefit multiple sectors of the economy and civil society, including—

(A) academic and historical researchers seeking primary-source access to government decision-making across the full span of the Republic;

(B) the technology and artificial intelligence industries, which require large, verifiable, public-domain textual datasets for the responsible development of advanced computational systems;

(C) journalists and transparency advocates seeking to audit government conduct and promote public accountability;

(D) Federal, State, Tribal, and local government agencies seeking to analyze historical precedent, administrative practice, and operational patterns to improve the efficiency and consistency of government operations;

(E) genealogical researchers and the general public seeking access to census, military service, immigration, and vital records held by NARA and the Library of Congress; and

(F) the general public, whose right of access to the records of their government is foundational to democratic self-governance.

(14) The National Declassification Center (hereinafter "NDC"), established pursuant to Executive Order 13526, has processed hundreds of millions of pages of formerly classified records for public release. The accessibility of these declassified materials remains severely constrained by the absence of machine-readable digital formats, limiting the ability of researchers, journalists, historians, and the general public to locate, search, and analyze records critical to the understanding of the national security history of the United States.

(15) Administrative records—including internal memoranda, standard operating procedures, interagency correspondence, routine adjudicative decisions, and process documentation—and program records documenting the mission-specific functions of Federal agencies present a strategic opportunity to enable the future automation and intelligent augmentation of government functions through artificial intelligence and decision-support systems, thereby improving the speed, consistency, transparency, and cost-effectiveness of Federal operations.

(16) Existing records schedules, including the General Records Schedules issued by the Archivist of the United States and agency-specific records schedules approved pursuant to section 3303a of title 44, United States Code, do not adequately account for the prospective utility of records as training data, reference corpora, or knowledge bases for artificial intelligence, automation, and decision-support systems. Records of significant institutional knowledge are routinely authorized for disposition before their potential value for computational analysis and institutional continuity can be realized.

(17) While public-private digitization partnerships have produced the majority of NARA's digitized holdings at no direct cost to the Government, existing partnership agreements have in some cases resulted in extended periods during which digitized copies of public-domain government records are accessible to the public only through commercial platforms. Ensuring that digitized records are made freely and publicly available through independent, nongovernmental platforms—in addition to government-operated systems—is essential to safeguarding the integrity and accessibility of the public record.

(18) The complete digitization of the analog holdings of NARA and the Government Publishing Office, together with the government documents and at-risk materials held by the Library of Congress, is a generational undertaking that will require sustained contracted effort over multiple decades. The largest comparable mass digitization effort in history—the Google Books project—required 15 years and an estimated $750,000,000

to scan approximately 40,000,000 volumes, a fraction of the Federal Government's analog holdings.

SEC. 5003. PURPOSES.

The purposes of this title are—

(1) to authorize and provide for the mass digitization, through competitively awarded contracts, of the holdings of NARA and the Government Publishing Office, and of government documents, at-risk materials, and other collections of governmental provenance held by the Library of Congress;

(2) to preserve at-risk analog records and collection materials, including materials on deteriorating microfilm, nitrate film, and acid-degraded paper, through high-fidelity digital conversion in conformance with applicable Federal digitization standards;

(3) to make digitized government records and collections publicly accessible in open, machine-readable formats that support research, artificial intelligence development, and public oversight;

(4) to modernize records schedules and appraisal criteria to account for the prospective value of administrative and program records for governmental automation, artificial intelligence, and institutional knowledge preservation; and

(5) to require that copies of digitized government records be deposited with independent, nongovernmental public access platforms to guarantee enduring public access independent of government-operated systems.

SEC. 5004. DEFINITIONS.

In this title:

(1) *The term* "Administrative records" means records documenting common support and housekeeping functions of Federal agencies, including personnel, fiscal, procurement, communications, and facilities management, as distinguished from program records. Such term includes records covered by the General Records Schedules issued by the Archivist under part 1227 of title 36, Code of Federal Regulations.

(2) *The term* "Appraisal" has the meaning given such term in section 1220.18 of title 36, Code of Federal Regulations, and refers to the process by which the Archivist determines whether records have sufficient value to warrant their continued preservation by the Government.

(3) *The term* "Archivist" means the Archivist of the United States.

(4) *The term* "At-risk records" means analog records or collection materials in the custody of a covered institution or a Federal agency that are stored on inherently unstable media, including microfilm, microfiche, nitrate-based film, thermofax paper, acid-degraded paper stock, cellulose acetate film, or other media with a projected usable lifespan of fewer than 50 years absent conservation intervention.

(5) *The term* “Covered institution” means NARA, the Library of Congress, and the Government Publishing Office.

(6) *The term* “Digitization” means the conversion of analog records or collection materials into digital surrogates in conformance with the applicable standards described in section 5005(e), including the creation of production masters, access copies, and associated metadata. Such term includes optical character recognition processing where technically feasible.

(7) *The term* “Disposition” has the meaning given such term in section 1220.18 of title 36, Code of Federal Regulations.

(8) *The term* “FADGI” means the Federal Agencies Digital Guidelines Initiative.

(9) *The term* “Independent public access platform” means a publicly accessible digital repository or platform operated by a nongovernmental entity that provides free, unrestricted public access to digitized records and collection materials and that maintains operational independence from any Federal, State, Tribal, or local government, except that a library or archive operated by an institution of higher education, as defined in section 101 of the Higher Education Act of 1965 (20 U.S.C. 1001), shall not be considered a governmental entity for purposes of this definition.

(10) *The term* “Mass digitization” means large-scale, high-throughput conversion of analog records and collection materials to digital form using assembly-line workflows, as distinguished from selective or on-demand digitization.

(11) *The term* “NARA” means the National Archives and Records Administration.

(12) *The term* “Production master” means the highest-quality digital file produced through the digitization process, suitable for long-term preservation and faithful reproduction of original materials, as distinguished from access copies or derivative files.

(13) *The term* “Program records” means records documenting the unique, mission-specific, or substantive functions for which a Federal agency was established, as distinguished from administrative records.

(14) *The term* “Records schedule” means a document providing mandatory instructions for the disposition of records, including General Records Schedules issued by the Archivist and agency-specific records schedules approved by the Archivist pursuant to section 3303a of title 44, United States Code.

SEC. 5005. MASS DIGITIZATION THROUGH COMPETITIVE CONTRACTS.

(a) Authority.—

Each covered institution is authorized and directed to enter into contracts for the mass digitization of its analog holdings in accordance with this section, subject to the following:

(1) With respect to NARA, the authority under this section extends to all analog holdings in the custody of NARA.

(2) With respect to the Government Publishing Office, the authority under this section extends to all Federal Government publications in the custody of the Government Publishing Office, with priority given to historical publications predating the 103d Congress that are not available through govinfo.gov.

(3) With respect to the Library of Congress, the authority under this section extends to—

(A) at-risk records and collection materials, regardless of provenance;

(B) government documents, congressional records, legal materials, and other collection materials of Federal, State, or Tribal governmental provenance;

(C) materials held by the Law Library of Congress; and

(D) such additional collections as the Librarian of Congress may designate as serving the purposes of this title.

Nothing in this section shall preclude a covered institution from supplementing contracted digitization with in-house digitization activities. In exercising the authority under this subsection, each covered institution shall award contracts to multiple providers concurrently across distinct record groups, collections, or geographic regions, as applicable, to maximize throughput, promote redundancy, and ensure that no single contractor controls the pace or scope of the digitization program.

(b) Coordination.—

Not later than 1 year after the date of enactment of this title, the Archivist, the Librarian of Congress, and the Director of the Government Publishing Office shall enter into a memorandum of understanding establishing—

(A) a joint planning framework to avoid duplication of effort, coordinate prioritization of overlapping or related collections, and harmonize technical specifications for contracted digitization services;

(B) common procedures for the ingest, storage, and public dissemination of digitized materials; and

(C) a shared reporting framework for the annual reports required under section 5008.

No contract may be awarded, and no amounts made available under section 5009 may be obligated, until the memorandum of understanding required by this subsection has been executed by the Archivist, the Librarian of Congress, and the Director of the Government Publishing Office, subject to the following:

(1) If the memorandum of understanding has not been executed within 1 year after the date of enactment of this title, each of the Archivist, the Librarian of Congress, and the Director of the Government Publishing Office shall, not later than 30 days thereafter, individually submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives a written explanation identifying the status of negotiations, any unresolved disagreements, and the terms that such official would accept.

(2) If the memorandum of understanding has not been executed within 18 months after the date of enactment of this title, any two of the three officials named in this subsection may petition the Comptroller General of the United States to mediate the remaining disagreements. The Comptroller General shall, not later than 90 days after receiving such petition, propose a coordination framework addressing the matters described in subparagraphs (A) through (C) and transmit such framework to the three officials and the committees specified in paragraph (1).

(3) If the memorandum of understanding has not been executed within 2 years after the date of enactment of this title, any covered institution whose head has agreed in writing to operate under the coordination framework proposed by the Comptroller General under paragraph (2) may begin obligating amounts made available to such institution under section 5009. The share of any covered institution whose head has not so agreed shall remain unavailable for obligation until such time as that official agrees to the framework or the memorandum of understanding is executed.

(4) The Comptroller General shall notify the committees specified in paragraph (1) upon the occurrence of each event described in paragraphs (1) through (3).

(c) Prioritization.—

In awarding contracts under this section, each covered institution shall prioritize the digitization of the following categories of materials, in descending order of priority:

(1) At-risk records and collection materials, as identified through systematic condition surveys conducted or updated not less frequently than every 5 years.

(2) Records processed for declassification by the National Declassification Center that have not been made available online in machine-readable form.

(3) Records and collection materials of high research demand, as determined by reference request data, Freedom of Information Act processing data, and consultation with the research community and the public.

(4) Administrative records and program records of Federal agencies with significant potential for supporting the automation, augmentation, or computational analysis of government functions.

(5) Historical government publications predating 1994 that are not available through govinfo.gov.

(6) With respect to NARA and the Government Publishing Office, all remaining analog holdings not described in paragraphs (1) through (5), with each institution proceeding in a manner calculated to maximize completeness and cost-effectiveness.

(d) Milestone Targets.—

Each covered institution shall endeavor to meet the following targets in carrying out the digitization authorized by this section:

(1) Not later than 2 years after the date of enactment of this title, NARA shall complete an initial comprehensive condition survey identifying all at-risk textual records in its custody.

(2) Not later than 10 years after the date of enactment of this title, each covered institution shall complete the digitization of all at-risk records and collection materials identified pursuant to paragraph (1) or through subsequent condition surveys.

(3) Not later than 12 years after the date of enactment of this title, NARA shall complete the digitization of all records processed for declassification by the National Declassification Center that have not been made available online in machine-readable form as of the date of enactment of this title.

(4) Not later than 15 years after the date of enactment of this title, the Government Publishing Office shall complete the digitization of historical government publications predating the 103d Congress that are not available through govinfo.gov.

Each covered institution shall report on progress toward these targets in the annual report required under section 5008(a). If a covered institution determines that a target established by this subsection is not achievable within the specified timeframe, the head of such institution shall notify the committees specified in section 5008(a) and include in the next annual report a revised timeline and an explanation of the factors preventing timely completion.

(e) Applicable Standards.—

All digitization performed under contracts awarded pursuant to this section shall conform to—

(1) for permanent Federal records, the technical requirements of subpart E of part 1236 of title 36, Code of Federal Regulations, as in effect on the date of the contract award or as subsequently amended by the Archivist;

(2) for other materials, a performance level of not less than 3 stars under the FADGI Technical Guidelines for Digitizing Cultural Heritage Materials, Third Edition (May 2023), or any successor edition, as aligned with Level B of the International Organization for Standardization standard ISO 19264–1;

(3) the quality management requirements of section 1236.46 of title 36, Code of Federal Regulations, including the use of the FADGI Digital Image Conformance Evaluation program or a documented alternative quality-control procedure; and

(4) metadata standards consistent with the Dublin Core Metadata Element Set (ISO 15836), the Metadata Encoding and Transmission Standard, the Preservation Metadata Implementation Strategies data dictionary, and such additional metadata requirements as the Archivist or the Librarian of Congress may prescribe.

(f) File Formats.—

Production masters produced under this section shall be in uncompressed or losslessly compressed Tagged Image File Format or other open, nonproprietary archival format approved by the Archivist or the Librarian of Congress. Access copies shall be made available in open,

machine-readable formats, including PDF/A, JPEG 2000, or such other formats as the covered institution may designate.

(g) Digitization Program Directors.—

(1) There is established within the National Archives and Records Administration the position of Director of Federal Records Digitization. Such position shall be a career position within the Senior Executive Service, as defined in section 3132(a) of title 5, United States Code, and shall not be filled on a noncareer, limited term, or limited emergency basis. The individual appointed to such position shall possess not fewer than 7 years of demonstrated professional experience in archival science, digital preservation, large-scale digitization program management, or Federal records management. The Director shall have direct authority over the award and administration of contracts under this title, the approval of expenditures from amounts made available under section 5009(a), and the oversight of quality assurance and compliance with the deposit requirements of section 5006. The Director may be removed only for cause, consistent with the protections applicable to career members of the Senior Executive Service under subchapter V of chapter 75 of title 5, United States Code.

(2) The Librarian of Congress shall establish within the Library of Congress the position of Director of Digitization Programs. The individual appointed to such position shall possess not fewer than 5 years of demonstrated professional experience in archival science, digital preservation, large-scale digitization, or library science, and shall have direct authority over the award and administration of contracts and the approval of expenditures from amounts made available to the Library of Congress under section 5009(c). The Director of Digitization Programs of the Library of Congress may be removed only for cause, and the Librarian shall notify the Committee on Rules and Administration of the Senate and the Committee on House Administration of the House of Representatives not fewer than 30 days before any such removal, including a written statement of the reasons therefor.

(3) The Director of the Government Publishing Office shall establish within the Government Publishing Office the position of Director of Digitization Programs. The individual appointed to such position shall possess not fewer than 5 years of demonstrated professional experience in digital publishing, digital preservation, large-scale digitization, or Federal information dissemination, and shall have direct authority over the award and administration of contracts and the approval of expenditures from amounts made available to the Government Publishing Office under section 5009(b). The Director of Digitization Programs of the Government Publishing Office may be removed only for cause, and the Director of the Government Publishing Office shall notify the Committee on Rules and Administration of the Senate and the Committee on House Administration of the House of Representatives not fewer than 30 days before any such removal, including a written statement of the reasons therefor.

SEC. 5006. COMPETITIVE PROCUREMENT AND PUBLIC ACCESS REQUIREMENTS.

(a) Full and Open Competition.—

All contracts for digitization services under this title shall be awarded through full and open competition in accordance with division C of subtitle I of title 41, United States Code, the Federal Acquisition Regulation, and, where applicable, the procurement authorities of the Library of Congress and the Government Publishing Office. No contract for digitization services under this title shall be awarded on a sole-source basis or pursuant to any exception to full and open competition under section 3304 of title 41, United States Code, or subpart 6.3 of the Federal Acquisition Regulation, regardless of the estimated value of the contract. Each covered institution shall structure its procurements under this title to result in the award of contracts to not fewer than 3 qualified contractors, to the maximum extent practicable, in order to expand digitization capacity, reduce programmatic risk associated with reliance on a single provider, and accelerate the pace of digitization. If a covered institution determines that fewer than 3 qualified offerors have submitted responsive proposals for a given solicitation, the head of such institution shall document the basis for that determination, reissue the solicitation with revised terms designed to encourage broader participation, and notify the committees specified in section 5008(a) within 30 days.

(b) Public Access Preference.—

In evaluating proposals for digitization contracts under this section, each covered institution shall assign significant weight, as a scored evaluation criterion, to—

(1) whether the offeror itself operates, or is formally affiliated with, an independent public access platform through which all records and collection materials digitized under the contract will be made freely and publicly available, without restriction on access, download, or reuse, except as otherwise required by law;

(2) whether the offeror commits to producing and maintaining, at the offeror’s expense, a complete and unaltered copy of all records and collection materials digitized under the contract on such platform for the duration of the platform’s operation; and

(3) the offeror’s demonstrated technical capacity and institutional commitment to providing sustained, long-term public access to large-scale digital archives.

An offeror that satisfies the criteria described in paragraphs (1) through (3) shall be deemed to satisfy the mandatory public deposit requirement of subsection (c) with respect to the platform it operates or with which it is affiliated.

(c) Mandatory Public Deposit.—

Every contract awarded under this title shall include a requirement that the contractor, at the contractor’s expense, deposit a complete, unaltered digital copy of all production masters and associated metadata digitized under the contract with not fewer than 1 independent public access platform. Such deposit shall be made—

(1) not later than 365 days after the completion of digitization of such records or materials; and

(2) in open, machine-readable formats consistent with section 5005(f), available to the public free of charge and without restriction on access, download, or reuse, except as otherwise required by law.

Where a contractor does not itself operate an independent public access platform, the contractor shall bear the cost of preparing and transmitting the digital copy for deposit, and the receiving platform shall not be required to charge the public for access to the deposited materials. A contractor that does not itself operate an independent public access platform may satisfy the deposit requirements of this subsection through a formal partnership or subcontracting arrangement with one or more independent public access platforms. The costs of such partnership, including reasonable compensation to the platform for the receipt, hosting, and long-term maintenance of deposited materials, shall be an allowable cost under the contract. Nothing in this subsection shall preclude a covered institution from entering into separate agreements with independent public access platforms to facilitate the receipt and hosting of deposited materials.

(d) Enforcement of Deposit Requirements.—

Every contract awarded under this title shall include—

(1) a clause providing that failure to complete the public deposit required by subsection (c) within the time specified shall constitute a material breach of contract;

(2) a schedule of liquidated damages for noncompliance with deposit deadlines, in an amount determined by the contracting officer to be a reasonable forecast of the harm to the public interest caused by delayed public access; and

(3) a provision authorizing the covered institution, upon 60 days' written notice of noncompliance, to complete the deposit using the contractor's delivered production masters and to recover the costs of doing so from amounts otherwise due to the contractor.

Each covered institution shall report on the status of deposit compliance in the annual report required under section 5008(a).

(e) Prohibition on Exclusive Rights.—

No contract entered into under this title shall confer upon any contractor exclusive rights to the digitized records, collection materials, or derivative data produced under the contract. The United States Government shall retain unlimited rights in all such records, materials, and data. No embargo or period of exclusive commercial access shall be imposed on digitized copies of records or materials that are in the public domain.

(f) Existing Partnerships.—

Nothing in this section shall be construed to terminate or modify any digitization partnership agreement in effect on the date of enactment of this title. Embargo or exclusive access periods

applicable to records digitized under such agreements prior to the date of enactment of this title may run to their original expiration. However, no new embargo or period of exclusive access shall be imposed on any record digitized after the date of enactment of this title, and any renewal, extension, or successor agreement entered into after such date shall comply with the requirements of this section.

SEC. 5007. MODERNIZATION OF RECORDS SCHEDULES AND APPRAISAL CRITERIA.

(a) Directive to the Archivist.—

The Archivist shall update the guidelines for records scheduling and appraisal, including NARA Directive 1441 or any successor directive and the General Records Schedules, to require the preservation of Federal records that document—

(1) administrative and operational decisions made in the interpretation, implementation, and execution of statutory mandates;

(2) the reasoning, analysis, and deliberative processes underlying adjudicative determinations, policy interpretations, and regulatory actions;

(3) standard operating procedures, workflow documentation, and institutional practices that reflect how Federal agencies carry out their missions; and

(4) such additional categories of records as the Archivist determines possess significant prospective value for the automation, augmentation, or computational analysis of Federal Government functions.

(b) Review of Existing Schedules.—

Not later than 3 years after the date of enactment of this title, the Archivist, in consultation with the heads of Federal agencies, the Director of the Office of Management and Budget, and the Director of the Office of Science and Technology Policy, shall—

(1) applying the criteria set forth in subsection (a), conduct a comprehensive review of the General Records Schedules and, in coordination with each Federal agency, of agency-specific records schedules approved pursuant to section 3303a of title 44, United States Code, to identify categories of records that are currently authorized for disposition but that satisfy the criteria for preservation under subsection (a) and that have not yet been destroyed pursuant to such authorization; and

(2) issue revised records schedules, or guidance to Federal agencies for the revision of agency-specific records schedules, that require the preservation and, where practicable, the digitization of such records.

(c) Prospective Application.—

The updated appraisal guidelines required by subsection (a) shall apply prospectively to all records scheduling actions initiated after the date on which such guidelines take effect. The Archivist shall issue the updated guidelines not later than 2 years after the date of enactment of

this title. Nothing in this subsection shall limit the authority of the Archivist to apply the criteria set forth in subsection (a) to the review of existing records schedules under subsection (b).

(d) Agency Cooperation.—

The head of each Federal agency shall cooperate with the Archivist in the review and revision of records schedules under this section and shall, upon request, provide the Archivist with access to records, inventories, scheduling documentation, and Standard Forms 115 necessary to carry out this section.

(e) Protection of Deliberative Processes.—

The preservation of records required by subsection (a)(2) is intended to capture the substantive reasoning, interpretive methodologies, and analytical frameworks underlying agency decision-making for the purpose of building institutional knowledge bases that can inform the development of automated decision-support systems. Such preservation shall not require the attribution of specific deliberative contributions to individual employees, and agencies may redact individual identifying information from records preserved under this section to the extent consistent with the purposes of this title. Nothing in this section shall be construed to waive any privilege applicable to deliberative processes under section 552(b)(5) of title 5, United States Code, or to require the public disclosure of records that are exempt from disclosure under that section or any other provision of law.

SEC. 5008. REPORTING REQUIREMENTS.

(a) Annual Report.—

Not later than 2 years after the date of enactment of this title, and annually thereafter through fiscal year 2051, the Archivist, in coordination with the Librarian of Congress and the Director of the Government Publishing Office, shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives a joint report that includes—

(1) the total volume of records and collection materials digitized during the reporting period by each covered institution, disaggregated by record group, collection, or publication series and by media type;

(2) the status of at-risk records and collection materials, including a revised estimate of the volume of materials remaining at risk of physical deterioration;

(3) a description of all contracts awarded under section 5006 during the reporting period, including the identity of contractors, contract values, volume of materials digitized, and the status of compliance with the public deposit requirements of section 5006(c);

(4) an assessment of the quality and public accessibility of digitized materials, including any backlog of digitized materials not yet made available to the public through the National Archives Catalog, the Library of Congress digital collections, govinfo.gov, or independent public access platforms;

(5) a projected timeline for the completion of mass digitization of the analog holdings of each covered institution subject to digitization under section 5005(a), updated to reflect progress and any changes in assumptions;

(6) a detailed accounting of all amounts expended from the funds made available under section 5009(a), (b), and (c) during the reporting period, disaggregated by contract, digitization vendor, volume of materials digitized per dollar expended, and any amounts expended on activities other than direct digitization services; and

(7) recommendations for additional legislative, regulatory, or administrative action to advance the purposes of this title.

(b) Records Schedule Review Report.—

Not later than 3 years and 180 days after the date of enactment of this title, the Archivist shall submit to the committees specified in subsection (a) a report on the results of the review conducted under section 5007(b), including the categories of records identified, the revised records schedules or guidance issued, the number of record series reclassified from temporary to permanent status, and the estimated costs of preserving and digitizing such records.

(c) GAO Review.—

Not later than 5 years after the date of enactment of this title, and every 5 years thereafter, the Comptroller General of the United States shall submit to the committees specified in subsection (a) a report evaluating the effectiveness of the programs and contracts authorized by this title, including an assessment of cost-effectiveness, compliance with public access requirements, quality of digitized materials, and progress toward the completion of mass digitization of each covered institution's analog holdings.

SEC. 5009. AUTHORIZATION OF APPROPRIATIONS.

(a) National Archives and Records Administration.—

Out of any money in the Treasury not otherwise appropriated, there is appropriated to the National Archives and Records Administration $1,000,000,000 to carry out the mass digitization of analog holdings and the competitive procurement of digitization services under sections 5005 and 5006 of this title. Such amount shall remain available until September 30, 2051.

(b) Government Publishing Office.—

Out of any money in the Treasury not otherwise appropriated, there is appropriated to the Government Publishing Office $20,000,000 to carry out the digitization of Federal Government publications under sections 5005 and 5006 of this title. Such amount shall remain available until September 30, 2051. Nothing in this subsection shall preclude Congress from appropriating additional amounts for the digitization activities of the Government Publishing Office through other authorization or appropriation Acts.

(c) Library of Congress.—

Out of any money in the Treasury not otherwise appropriated, there is appropriated to the Library of Congress $30,000,000 to carry out the digitization of government documents, at-risk

materials, and other collection materials under sections 5005 and 5006 of this title. Such amount shall remain available until September 30, 2051. Nothing in this subsection shall preclude Congress from appropriating additional amounts for the digitization activities of the Library of Congress through other authorization or appropriation Acts.

(d) Digital Retention.—

There are authorized to be appropriated to the National Archives and Records Administration not less than $10,000,000 for each of fiscal years 2027 through 2051 for the digital storage, management, and long-term retention of—

(1) digitized records and collection materials produced under contracts awarded pursuant to sections 5005 and 5006 of this title, including production masters, access copies, and associated metadata; and

(2) records preserved pursuant to the revised records schedules and appraisal guidelines required by section 5007.

Such amounts may be used for the acquisition and maintenance of storage infrastructure, cloud computing services, format migration, and the personnel necessary to manage an expanded volume of permanent digital records.

(e) Limitation on Use of Funds.—

Amounts made available by subsections (a), (b), and (c) shall be used exclusively for the digitization activities authorized by this title, including contracted digitization services, quality assurance, metadata creation, and the preparation and deposit of digitized materials with independent public access platforms. Amounts appropriated pursuant to subsection (d) shall be used exclusively for the digital storage, management, and retention of records under this title. No amounts made available or appropriated under this section shall be used for the general administrative operations, facilities maintenance, staffing of existing programs, or any other activity of a covered institution not directly related to the purposes of this title.

(f) Supplement Not Supplant.—

Amounts made available or appropriated under this section are in addition to, and shall not supplant, reduce, or offset, any other amounts appropriated or otherwise made available for the general operations, staffing, preservation activities, public access programs, or other existing functions of the National Archives and Records Administration, the Library of Congress, or the Government Publishing Office. No covered institution shall reduce its budget request for existing activities or programs on the basis that funding has been made available under this section.

(g) Sustained Retention Plan.—

Not later than September 30, 2049, the Archivist shall submit to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives a plan for the sustained funding of the long-term digital storage, management, format migration, and retention of all records and collection materials digitized under this title after the expiration of the authorization under subsection (d).

Such plan shall include an estimate of annual retention costs, an assessment of storage infrastructure requirements, and recommendations for legislative or administrative action necessary to ensure the continued preservation of and public access to digitized materials beyond fiscal year 2051.

(h) Inspector General Audits.—

The Inspector General of the National Archives and Records Administration, and such other inspectors general as have jurisdiction over the Library of Congress and the Government Publishing Office, shall conduct biennial audits of expenditures made from amounts provided under this section to verify that such amounts have been used exclusively for the purposes specified in subsection (e). The results of each audit shall be transmitted to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives and made publicly available.

(i) Inspector General Review of Major Contract Awards.—

The Inspector General of the National Archives and Records Administration, and such other inspectors general as have jurisdiction over the Library of Congress and the Government Publishing Office, shall review any contract awarded under this title with a total value exceeding $10,000,000 within 60 days of the date of award. Such review shall assess compliance with the competitive procurement requirements of section 5006(a), the public access and deposit requirements of section 5006(b) and (c), and the limitation on use of funds under subsection (e) of this section. The results of each review shall be transmitted to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives. Nothing in this subsection shall delay the performance of any contract pending the completion of such review.

SEC. 5010. PROTECTION OF DIGITIZATION FACILITIES.

No facility owned or operated by a covered institution that is used for the storage, staging, preparation, or digitization of records or collection materials under this title may be sold, transferred, repurposed, or closed under the Federal Property and Administrative Services Act of 1949, the Federal Assets Sale and Transfer Act of 2016, or any other authority, during the pendency of any active contract under this title involving materials housed at such facility, unless —

(1) the head of the covered institution provides not less than 180 days' advance written notification to the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Oversight and Accountability of the House of Representatives, including a detailed explanation of the impact of such action on the digitization program and a plan for the relocation and continued preservation of any affected records or collection materials; and

(2) a period of 180 days has elapsed following such notification without the enactment of a joint resolution of disapproval by Congress prohibiting such action.

If Congress enacts a joint resolution of disapproval within the 180-day period described in paragraph (2), the proposed sale, transfer, repurposing, or closure shall not take effect. Such a joint resolution shall be considered under expedited procedures, and shall be privileged in both the Senate and the House of Representatives.

SEC. 5011. WHISTLEBLOWER PROTECTION.

(a) Protection.—

An employee or contractor of a covered institution who discloses information that the employee or contractor reasonably believes evidences waste, fraud, abuse, mismanagement, or noncompliance with this title in connection with the digitization program or the expenditure of amounts made available under section 5009 shall be protected from retaliation in accordance with section 2302(b)(8) of title 5, United States Code, and, with respect to contractor employees, section 4712 of title 41, United States Code.

(b) Prohibition on Retaliation.—

No official of a covered institution may take or threaten to take any personnel action, as defined in section 2302(a)(2) of title 5, United States Code, against an employee as a reprisal for any disclosure described in subsection (a).

SEC. 5012. RULE OF CONSTRUCTION.

Nothing in this title shall be construed to—

(1) authorize the disclosure of records or materials that are exempt from disclosure under section 552 of title 5, United States Code, or any other provision of law;

(2) alter the classification or declassification of national security information under Executive Order 13526 or any successor order;

(3) authorize the digitization or public dissemination of materials subject to copyright protection under title 17, United States Code, except to the extent otherwise permitted by law;

(4) diminish or abrogate the authority of the Archivist under chapter 21 of title 44, United States Code, the authority of the Librarian of Congress under title 2, United States Code, or the authority of the Director of the Government Publishing Office under title 44, United States Code; or

(5) authorize the disposition or destruction of original analog records or collection materials solely on the basis that a digital surrogate has been produced, except in accordance with applicable records schedules and the requirements of section 3302 and section 3312 of title 44, United States Code.

SEC. 5013. SEVERABILITY.

If any provision of this title, or the application of any provision to any person or circumstance, is held to be unconstitutional or otherwise invalid, the remainder of this title, and the application of such provision to other persons or circumstances, shall not be affected.

TITLE VI—VOTER CHOICE AND ELECTION MODERNIZATION

SEC. 6001. SHORT TITLE; TABLE OF CONTENTS.

(a) *Short Title.*—This title may be cited as the "Voter Choice and Election Modernization Act of 2026".

(b) *Table of Contents.*—The table of contents of this title is as follows:

Sec. 6001. Short Title; Table of Contents.

Sec. 6002. Findings and Purpose.

Sec. 6003. Qualified Alternative Voting Methods Defined.

Sec. 6004. Conforming Amendments to Federal Election Law.

Sec. 6005. Establishment of Election Modernization Grant Program.

Sec. 6006. Rule of Construction Regarding State Authority.

Sec. 6007. Sense of Congress Regarding State Bans on Alternative Voting Methods.

Sec. 6008. Grant Eligibility Not Affected by State Bans.

Sec. 6009. Severability.

Sec. 6010. Effective Dates.

SEC. 6002. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The method by which votes are cast and tabulated in elections for Federal office profoundly affects the quality of democratic representation, the range of candidates who seek office, and the degree to which election outcomes reflect the preferences of the electorate.

(2) Article I, Section 8 of the Constitution empowers Congress to provide financial assistance to States to promote the general welfare, including the improvement of election administration, and Article I, Section 4 authorizes Congress to regulate the time, place, and manner of elections for Senators and Representatives.

(3) Plurality voting systems produce outcomes in which elected officials may assume office without the support of a majority of voters, incentivize negative campaigning, suppress candidacy by qualified individuals, and create a "spoiler effect" that punishes voters for expressing sincere preferences.

(4) Alternative voting methods, including ranked-choice voting and STAR voting, reduce or eliminate the spoiler effect, incentivize coalition-building, reduce negative campaigning, and increase the likelihood that winning candidates demonstrate broad support.

(5) As of the date of enactment of this title, alternative voting methods are in use in more than 50 jurisdictions across the United States, serving approximately 17,000,000 voters, including statewide use of ranked-choice voting in Alaska and Maine.

(6) Federal courts have uniformly upheld the constitutionality of alternative voting methods that expand voter expression, including in Dudum v. Arntz, 640 F.3d 1098 (9th Cir. 2011), and Baber v. Dunlap, 376 F. Supp. 3d 125 (D. Me. 2018).

(7) Ranked-choice voting offers the following demonstrated advantages as an alternative to plurality voting:

(A) An extensive real-world track record spanning more than a century of use internationally, including continuous use in Australia since 1918 and in Ireland for presidential elections, and growing adoption across the United States.

(B) Proven voter comprehension, with surveys consistently showing that 90 percent or more of voters in jurisdictions using ranked-choice voting report understanding the method.

(C) Empirical evidence of increased candidate diversity, including increases in women and minority candidates and elected officials in jurisdictions that have adopted the method.

(D) Satisfaction of the later-no-harm criterion, meaning that a voter's decision to rank additional candidates beyond a first choice cannot cause the voter's most-preferred candidate to lose, which may encourage voters to express fuller preferences.

(E) An established proportional representation variant, the Single Transferable Vote, which enables multi-winner elections that more closely reflect the diversity of voter preferences within a jurisdiction.

(F) A well-developed ecosystem of advocacy organizations, model legislation, voter education materials, and election administration expertise that can facilitate adoption by new jurisdictions.

(8) STAR voting (Score Then Automatic Runoff) offers the following demonstrated advantages as an alternative to plurality voting:

(A) The highest voter satisfaction efficiency of any single-winner voting method tested in peer-reviewed simulation research, scoring between 91 and 98 percent in studies published in Constitutional Political Economy (Wolk, Quinn, and Ogren, 2023), compared to 79 to 92 percent for ranked-choice voting and 70 to 85 percent for plurality voting.

(B) A more expressive ballot that captures both the voter's preference order among candidates and the voter's degree of support for each candidate, providing more information to the tabulation process than a ranked ballot alone.

(C) Greater resistance to strategic voting, with peer-reviewed simulations showing that insincere voting under STAR is approximately equally likely to help or harm the strategic voter (a ratio of approximately 1 to 1), compared to a ratio of approximately 3 to 1 under ranked-choice voting, meaning voters have stronger incentives to vote honestly under STAR.

(D) Immunity to the "center-squeeze" effect, in which a broadly supported compromise candidate is eliminated early under sequential-elimination methods because such a candidate lacks sufficient first-choice support despite being preferred by a majority of voters over every other candidate.

(E) Significantly lower implementation costs, because STAR voting does not require centralized tabulation, does not require the purchase of new tabulation hardware, and can be administered using existing precinct-level tallying procedures with only a software upgrade, in contrast to ranked-choice voting, which requires centralized aggregation of complete ballot data before tabulation can proceed.

(F) Simpler and faster tabulation, requiring only two phases (a scoring phase and an automatic runoff) regardless of the number of candidates, in contrast to ranked-choice voting, which may require as many elimination rounds as there are candidates.

(9) Both ranked-choice voting and STAR voting represent substantial improvements over plurality voting on every major metric studied by political scientists, including voter satisfaction, resistance to the spoiler effect, and the accuracy with which election outcomes reflect voter preferences. The differences between ranked-choice voting and STAR voting, while meaningful, are significantly smaller than the differences between either method and plurality voting.

(10) Arrow's Impossibility Theorem (1951) demonstrates that no ranked-order voting system can simultaneously satisfy all desirable fairness criteria, and the Gibbard-Satterthwaite Theorem demonstrates that all deterministic voting systems with three or more candidates are susceptible to some degree of strategic manipulation. These foundational results confirm that the selection of a voting method necessarily involves tradeoffs, and that ongoing evaluation and evidence-based refinement are essential to identifying the method that best serves voters in each jurisdiction.

(11) The transition to alternative voting methods requires investment in voting equipment, tabulation software, ballot design, poll worker training, and voter education, which presents a financial burden on State and local election administrators. However, the magnitude of this burden varies significantly by method: peer-reviewed cost analyses and real-world implementation data indicate that methods not requiring centralized tabulation or new hardware, such as STAR voting, can be implemented at a fraction of the cost of methods requiring centralized tabulation, such as ranked-choice voting.

(12) The Help America Vote Act of 2002 (Public Law 107–252) established a successful model of Federal-State partnership in election modernization through formula-based grants administered by the Election Assistance Commission.

(13) A framework that permits States to select among qualified alternative voting methods, provides equal financial support regardless of method chosen, and encourages ongoing evaluation and evidence-based improvement, best serves the interests of voters, respects the diversity of State conditions, and advances the democratic process.

(b) PURPOSE.—The purposes of this title are—

(1) to encourage and facilitate the voluntary adoption by States of qualified alternative voting methods for elections at all levels of government, including elections for Federal office;

(2) to provide financial and technical assistance to States implementing alternative voting methods for elections at all levels of government;

(3) to ensure that voters may express their full range of preferences among candidates without fear of wasting their vote or causing the election of a less-preferred candidate; and

(4) to encourage ongoing, evidence-based evaluation and improvement of voting methods so that the systems used in American elections continuously evolve to better serve voters. # SUBTITLE A—DEFINITIONS AND CONDITIONAL AMENDMENTS FOR ALTERNATIVE VOTING METHODS IN FEDERAL ELECTIONS

SEC. 6003. QUALIFIED ALTERNATIVE VOTING METHODS DEFINED.

(a) IN GENERAL.—Title III of the Help America Vote Act of 2002 (52 U.S.C. 21081 et seq.) is amended by adding at the end the following new subtitle:

"Subtitle C—Alternative Voting Method Standards

"SEC. 321. QUALIFIED ALTERNATIVE VOTING METHODS FOR ELECTIONS FOR FEDERAL OFFICE.

"(a) VOLUNTARY ADOPTION.—

"(1) IN GENERAL.—Any State may, by enactment of State legislation or by action of the chief election official of the State as authorized under State law, designate a qualified alternative voting method defined in subsection (b) for use in elections for Federal office within the State. A State may designate different methods for primary elections and general elections, provided that each method designated is a qualified alternative voting method.

"(2) NOTIFICATION.—A State that designates a qualified alternative voting method under paragraph (1) shall notify the Election Assistance Commission in writing not later than 18 months before the first election for Federal office to be conducted under such method.

"(3) CHANGE OF METHOD.—A State that has designated a qualified alternative voting method may change its designation at any time by providing written notice to the Commission not later than 18 months before the first election to be conducted under the new method.

"(4) APPLICABILITY.—A State that designates a qualified alternative voting method under paragraph (1) shall apply such method to—

"(A) general elections for the office of Senator;

"(B) general elections for the office of Representative in Congress, including Delegates and the Resident Commissioner; and

"(C) any primary election, caucus, convention, or other process used by the State to nominate or select candidates for the offices described in subparagraphs (A) and (B), except that a State may, at its discretion, use a nonpartisan primary method, including a top-four or top-five nonpartisan primary, in combination with any qualified alternative voting method for the general election.

"(5) EXCEPTION FOR UNCONTESTED ELECTIONS.—A State that has designated a qualified alternative voting method is not required to use such method in an election in which there are fewer than 3 qualified candidates on the ballot.

"(b) QUALIFIED ALTERNATIVE VOTING METHODS DEFINED.—For purposes of this section, the following are qualified alternative voting methods:

"(1) RANKED-CHOICE VOTING.—A method of casting and tabulating votes in which—

"(A) voters rank candidates in order of preference;

"(B) tabulation proceeds in sequential rounds as follows—

"(i) in the first round, each ballot is counted as a vote for the candidate ranked first by the voter;

"(ii) after each round, if no candidate has received a majority of the votes counted in that round for candidates continuing in the election, the candidate with the fewest votes is eliminated;

"(iii) each ballot cast for an eliminated candidate is transferred to the next-highest-ranked continuing candidate on that ballot, if any; and

"(iv) the process described in clauses (ii) and (iii) continues until a candidate receives a majority of the votes counted in that round for continuing candidates, at which point that candidate is declared the winner; and

"(C) voters are not required to rank all candidates and a ballot shall not be considered invalid, spoiled, or otherwise defective solely because the voter did not rank every candidate.

"(2) STAR VOTING.—A method of casting and tabulating votes, also known as Score Then Automatic Runoff, in which—

"(A) voters score each candidate on a scale of 0 to 5, where 0 indicates no support and 5 indicates maximum support, and voters may give any number of candidates the same score;

"(B) tabulation proceeds in two phases as follows—

"(i) in the scoring phase, the scores assigned by all voters to each candidate are summed, and the 2 candidates with the highest total scores advance to the automatic runoff; and

"(ii) in the automatic runoff phase, each ballot is counted as a vote for whichever of the 2 advancing candidates the voter scored higher, and the candidate preferred on a greater number of ballots is declared the winner; and

"(C) if a voter has given both advancing candidates the same score, that ballot is not counted as a preference for either candidate in the automatic runoff phase, but shall not be considered invalid, spoiled, or otherwise defective.

"(3) CLOSED LIST.—No method other than ranked-choice voting as defined in paragraph (1) and STAR voting as defined in paragraph (2) shall be a qualified alternative voting method for purposes of this section. Any expansion of the methods authorized under this subsection shall require an Act of Congress.

"(4) TIE-BREAKING.—The Election Assistance Commission shall, by regulation, establish uniform procedures for resolving ties that may arise under each qualified alternative voting method, including—

"(A) in the case of ranked-choice voting, ties between candidates for elimination in any round of tabulation; and

"(B) in the case of STAR voting, ties among candidates for advancement to the automatic runoff in the scoring phase and ties between the two finalists in the automatic runoff phase.

Such regulations shall be adopted not later than 2 years after the date of enactment of this section, shall prioritize transparency and reproducibility, and shall be consistent with the tabulation principles defined in paragraphs (1) and (2). Pending the adoption of such regulations, ties shall be resolved in accordance with the applicable State law governing tie-breaking in elections for Federal office.

"(c) BALLOT DESIGN REQUIREMENTS.—

"(1) INSTRUCTIONS.—Each ballot used in an election subject to this section shall include clear, concise instructions explaining the qualified alternative voting method in use, including—

"(A) in the case of ranked-choice voting, that the voter may rank candidates in order of preference and is not required to rank all candidates; and

"(B) in the case of STAR voting, that the voter may score each candidate from 0 to 5, that giving a candidate a score of 0 or leaving a candidate unscored are equivalent, that the voter may give multiple candidates the same score, and that the two highest-scoring candidates will advance to an automatic runoff decided by voter preference.

"(2) BALLOT CAPACITY.—

"(A) RANKED-CHOICE VOTING.—A ballot for a ranked-choice voting election shall permit the voter to rank at least the lesser of all qualified candidates appearing on the ballot or 10 candidates; and

"(B) STAR VOTING.—A ballot for a STAR voting election shall permit the voter to assign a score of 0 through 5 to each qualified candidate appearing on the ballot.

"(3) ACCESSIBILITY FOR ALTERNATIVE VOTING METHODS.—In addition to the requirements of section 301(a)(3), which apply to all voting systems used in elections subject to this section, each State shall ensure that—

"(A) in the case of ranked-choice voting, nonvisual ballot interfaces (including audio ballots and tactile devices) present ranking options in a manner that allows voters with disabilities to assign, review, and modify rankings with the same degree of independence and privacy afforded to other voters;

"(B) in the case of STAR voting, nonvisual ballot interfaces present the scoring scale for each candidate in a manner that allows voters with disabilities to assign, review, and modify scores with the same degree of independence and privacy afforded to other voters; and

"(C) voter education materials required under paragraph (1) are produced in accessible formats, including large print, audio, and electronic formats compatible with screen readers.

"(d) TABULATION AND REPORTING.—

"(1) CAST VOTE RECORDS.—Each State shall publish complete, anonymized cast vote records for all elections subject to this section not later than 48 hours after the final canvass, in a standardized, machine-readable format prescribed by the Election Assistance Commission.

"(2) DETAILED RESULTS.—Each State shall publish—

"(A) in the case of ranked-choice voting, the results of each round of tabulation, including the total votes for each candidate in each round and the number of exhausted ballots; and

"(B) in the case of STAR voting, the total score for each candidate in the scoring phase, the identity of the two candidates advancing to the automatic runoff, and the preference totals and equal-preference ballot count in the runoff phase.

"(3) CENTRALIZED TABULATION.—A State may conduct tabulation under this section at a centralized location after all ballots, including provisional and absentee ballots, have been received and verified.

"(e) CERTIFICATION OF VOTING SYSTEMS.—

"(1) GUIDELINES.—Not later than 2 years after the date of enactment of this section, the Election Assistance Commission shall adopt a supplement to the Voluntary Voting System Guidelines (as most recently adopted under section 311) that establishes standards specific to the testing and certification of voting systems capable of administering each qualified alternative voting method defined in subsection (b). Such supplement shall include standards for auditability, accuracy, and the ability to produce cast vote records and tabulation reports required under subsection (d).

"(2) RELATIONSHIP TO EXISTING GUIDELINES.—The supplemental standards adopted under this subsection shall be in addition to, and not in lieu of, the requirements of the Voluntary Voting System Guidelines adopted under section 311. Nothing in this subsection shall be construed to exempt any voting system used in an election subject to this section from compliance with the most recently adopted version of such guidelines.

"(f) INTERACTION WITH STATE LAW.—

"(1) VOLUNTARY ADOPTION.—Nothing in this section shall be construed to require any State to adopt a qualified alternative voting method for any election. The decision to adopt such a method is solely within the discretion of each State.

"(2) PRESERVATION OF STATE AUTHORITY.—Nothing in this section shall be construed to affect the authority of a State to determine the manner of conducting elections for State or local office.

"(3) STATE CHOICE PRESERVED.—Nothing in this section shall be construed to prefer one qualified alternative voting method over another. The selection among qualified alternative voting methods is solely within the discretion of each State."

(b) CLERICAL AMENDMENT.—The table of contents of the Help America Vote Act of 2002 is amended by adding at the end of the items relating to title III the following:

"Subtitle C—Alternative Voting Method Standards

"Sec. 321. Qualified alternative voting methods for elections for Federal office."

SEC. 6004. CONFORMING AMENDMENTS TO FEDERAL ELECTION LAW.

(a) AMENDMENT TO VOTING SYSTEM STANDARDS.—Section 301(a) of the Help America Vote Act of 2002 (52 U.S.C. 21081(a)) is amended—

(1) in paragraph (1)(A)(iii), by adding at the end the following:

"(IV) EXCEPTION FOR ALTERNATIVE VOTING METHODS.—Subclauses (I), (II), and (III) shall not apply with respect to an election conducted under a qualified alternative voting method as defined in section 321(b). In such an election, the voting system shall instead—

"(aa) in the case of ranked-choice voting, notify the voter if the voter has assigned the same ranking to more than one candidate at a single ranking level, inform the voter that such duplicate ranking will be treated as an overvote for that ranking level only, and provide the voter with the opportunity to correct the error before the ballot is cast;

"(bb) in the case of STAR voting, not treat the assignment of the same score to multiple candidates as an error, but notify the voter if the voter has assigned a score outside the permitted range of 0 through 5 and provide the opportunity to correct the error before the ballot is cast.";

(2) in paragraph (1), by adding at the end the following:

"(D) ALTERNATIVE VOTING METHOD CAPABILITY.—In any State that has designated a qualified alternative voting method under section 321(a), the voting system shall be capable of administering each such method, including the ability to—

"(i) in the case of ranked-choice voting, present candidates in a format that permits voters to indicate a ranking of candidates in order of preference and record each voter's complete ranking;

"(ii) in the case of STAR voting, present candidates in a format that permits voters to assign a score of 0 through 5 to each candidate and record each voter's complete set of scores; and

"(iii) for all methods, export cast vote records in a standardized, machine-readable format as prescribed by the Commission.";

(3) in paragraph (2), by adding at the end the following:

"(D) ALTERNATIVE VOTING METHOD ERROR TREATMENT.—

"(i) RANKED-CHOICE VOTING.—In the case of a ranked-choice voting election, the system shall treat any ranking level at which the voter has ranked more than one candidate as an overvote for that ranking level only, without invalidating the voter's rankings at other levels, and shall skip the overvoted ranking and proceed to the next valid ranking on the ballot during tabulation.

"(ii) STAR VOTING.—In the case of a STAR voting election, the system shall treat any candidate left unscored by the voter as having received a score of 0, and shall not invalidate the ballot on the basis that the voter did not score every candidate or gave multiple candidates the same score."; and

(4) by striking paragraph (6) and inserting the following:

"(6) UNIFORM DEFINITION OF WHAT CONSTITUTES A VOTE.—

"(A) IN GENERAL.—Each State shall adopt uniform and nondiscriminatory standards that define what constitutes a vote and what will be counted as a vote for each category of voting system used in the State.

"(B) ALTERNATIVE VOTING METHODS.—For elections conducted under a qualified alternative voting method as defined in section 321(b), the standards adopted under subparagraph (A) shall provide that—

"(i) in the case of ranked-choice voting—

"(I) a ballot on which the voter has validly ranked at least one candidate constitutes a vote;

"(II) a ballot that is counted in the first round of tabulation but that does not contain a valid ranking for any continuing candidate in a subsequent round (an 'exhausted ballot') shall be treated as a ballot on which the voter has cast a vote in the rounds in which the ballot was active, but shall not be counted as a vote for any candidate in rounds after exhaustion; and

"(III) a voter's failure to rank all candidates shall not cause the ballot to be treated as not constituting a vote;

"(ii) in the case of STAR voting—

"(I) a ballot on which the voter has assigned a score to at least one candidate constitutes a vote;

"(II) a ballot on which the voter scored both advancing candidates equally shall be treated as a ballot on which the voter has cast a vote in the scoring phase but has expressed no preference in the automatic runoff phase; and

"(III) a voter's failure to score all candidates, or a voter's assignment of identical scores to multiple candidates, shall not cause the ballot to be treated as not constituting a vote."

(b) MILITARY AND OVERSEAS VOTERS.—

(1) STATE ABSENTEE BALLOTS.—Section 102 of the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20302) is amended by adding at the end the following:

"(j) ALTERNATIVE VOTING METHODS FOR MILITARY AND OVERSEAS VOTERS.—Each State shall ensure that any blank absentee ballot transmitted under this section for an election for Federal office permits the voter to express preferences among candidates in the manner required by the qualified alternative voting method designated by the State under section 321 of the Help America Vote Act of 2002."

(2) FEDERAL WRITE-IN ABSENTEE BALLOT.—Section 103 of the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20303) is amended—

(A) in subsection (a), by adding at the end the following:

"(3) ALTERNATIVE VOTING METHOD FORMAT.—Not later than 18 months before the first election for Federal office to which section 321 of the Help America Vote Act of 2002 applies, the Presidential designee shall prescribe one or more alternative formats of the Federal write-in absentee ballot that permit absent uniformed services voters and overseas voters to express preferences among candidates in the manner required by each qualified alternative voting method defined in section 321(b) of such Act. The Presidential designee shall, in consultation with the Election Assistance Commission, ensure that the alternative format—

"(A) in the case of a State using ranked-choice voting, permits the voter to rank candidates in order of preference;

"(B) in the case of a State using STAR voting, permits the voter to assign a score of 0 through 5 to each candidate; and

"(C) includes clear instructions explaining the applicable voting method and is consistent with the ballot design requirements of section 321(c) of such Act."; and

(B) in subsection (c), by adding at the end the following: "A Federal write-in absentee ballot cast for an election conducted under a qualified alternative voting method shall

be processed in the manner prescribed by the Presidential designee under subsection (a)(3), and shall be tabulated in accordance with the tabulation rules applicable to the qualified alternative voting method designated by the State under section 321 of the Help America Vote Act of 2002."

(c) CANDIDATE FILING.—Section 9 of the Federal Election Campaign Act of 1971 (52 U.S.C. 30109 note) shall not be construed to prohibit any aspect of a qualified alternative voting method as implemented under this subtitle.

(d) CONTRIBUTION LIMITS AND DEFINITION OF ELECTION.—

(1) TREATMENT OF ALTERNATIVE VOTING METHODS.—Section 301(1) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30101(1)) is amended by adding at the end the following:

"(E) For purposes of this title, an election for Federal office conducted under a qualified alternative voting method as defined in section 321(b) of the Help America Vote Act of 2002 shall be treated as a single election regardless of the number of rounds of tabulation, automatic runoff phases, or other sequential steps in the tabulation process. The sequential elimination of candidates under ranked-choice voting and the automatic runoff phase under STAR voting are steps in the tabulation of a single election and do not constitute separate elections for purposes of the contribution limitations under section 315."

(2) TREATMENT OF RUNOFF ELECTIONS UNDER ALTERNATIVE VOTING METHODS.—Section 301(1) of the Federal Election Campaign Act of 1971 (52 U.S.C. 30101(1)) is further amended by adding at the end the following:

"(F) With respect to any election for Federal office conducted under a qualified alternative voting method as defined in section 321(b) of the Help America Vote Act of 2002, the term 'runoff election' as used in subparagraph (A) shall not apply to such election or to any tabulation round or automatic runoff phase conducted within it. No separate runoff election shall be required for such election, and the contribution limitations under section 315 that would otherwise have applied to a separate runoff election shall not apply. The per-election contribution limit for the general election shall constitute the sole applicable limit for the general election and any tabulation rounds or runoff phases conducted within it."

(e) RULE OF CONSTRUCTION REGARDING STATE RUNOFF REQUIREMENTS.—

(1) IN GENERAL.—With respect to any election for Federal office in which a State has voluntarily designated a qualified alternative voting method under section 321(a) of the Help America Vote Act of 2002, the use of such method shall be deemed to satisfy any provision of State law that requires a winning candidate to receive a majority or specified threshold of votes, or that would otherwise require a runoff election, second election, or additional round of voting when no candidate achieves such a majority or threshold.

(2) NO SEPARATE ELECTION REQUIRED.—A State that has voluntarily designated a qualified alternative voting method for elections for Federal office shall not be required to conduct a separate runoff election for any such election, because the tabulation process inherent in each qualified alternative voting method identifies the candidate with the broadest support among participating voters.

(3) STATE DISCRETION PRESERVED.—Nothing in this subsection shall be construed to prohibit a State from retaining runoff elections for State or local offices, or to require any State to designate a qualified alternative voting method.

SUBTITLE B—GRANTS FOR STATE AND LOCAL ALTERNATIVE VOTING METHOD ADOPTION

SEC. 6005. ESTABLISHMENT OF ELECTION MODERNIZATION GRANT PROGRAM.

(a) IN GENERAL.—Title V of the Help America Vote Act of 2002 (52 U.S.C. 21121 et seq.) is amended by adding at the end the following new part:

"PART 7—ELECTION MODERNIZATION GRANTS FOR ALTERNATIVE VOTING METHODS

"SEC. 571. ESTABLISHMENT OF GRANT PROGRAM.

"(a) IN GENERAL.—The Commission shall establish and administer an election modernization grant program to provide financial assistance to eligible entities for the purpose of adopting and implementing qualified alternative voting methods for elections at all levels of government, including State and local elections.

"(b) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated $1,000,000,000 for the 5-fiscal-year period beginning with fiscal year 2027 to carry out this part.

"(c) ADMINISTRATIVE CAPACITY.—There are authorized to be appropriated such sums as may be necessary, not to exceed $15,000,000 for the 5-fiscal-year period beginning with fiscal year 2027, for the Commission to hire not more than 25 additional full-time equivalent employees to administer the grant program established under this part, develop regulations and guidance required by this part, and provide technical assistance to eligible entities.

"SEC. 572. ELIGIBILITY AND APPLICATION.

"(a) ELIGIBLE ENTITIES.—An eligible entity under this part is—

"(1) a State;

"(2) a unit of local government with responsibility for the administration of elections; or

"(3) a consortium of entities described in paragraphs (1) and (2).

"(b) APPLICATION.—An eligible entity seeking a grant under this part shall submit to the Commission an application at such time, in such manner, and containing such information as the Commission may require, including—

"(1) a description of the qualified alternative voting method the entity proposes to adopt or has adopted;

"(2) a detailed implementation plan, including—

"(A) a timeline for adoption, with projected milestones;

"(B) a description of the elections to which the method will apply;

"(C) an assessment of required changes to voting equipment, tabulation software, and ballot design;

"(D) a voter education and outreach plan that includes materials in languages required under section 203 of the Voting Rights Act of 1965 (52 U.S.C. 10503) and accessible formats for voters with disabilities; and

"(E) a plan for training election officials, poll workers, and canvassing board members;

"(3) a commitment to publish complete, anonymized cast vote records and detailed tabulation data for each election conducted under the new method, including all intermediate tabulation steps (such as round-by-round results for ranked-choice voting, or scoring-phase and runoff-phase results for STAR voting), in a machine-readable format prescribed by the Commission;

"(4) a budget and plan for matching funds in accordance with section 574; and

"(5) in the case of an application for an implementation grant under section 573(b) or a comprehensive adoption grant under section 573(c), an acknowledgment that the applicant has reviewed and accepts the maintenance-of-effort commitment described in section 579 and the repayment obligations described in section 580, including the requirement to maintain the adopted method for a period of not less than 10 years or 5 general election cycles, whichever is longer.

"SEC. 573. GRANT TIERS.

"(a) TIER 1: PLANNING GRANTS.—

"(1) IN GENERAL.—The Commission shall award planning grants to eligible entities for the purpose of conducting feasibility studies, legal analyses, software compatibility assessments, cost projections, and voter education planning related to the adoption of a qualified alternative voting method.

"(2) AMOUNT.—Planning grants under this subsection shall be in amounts not less than $50,000 and not more than $500,000.

"(3) MATCHING REQUIREMENT.—No matching funds shall be required for a planning grant under this subsection.

"(4) NO ADOPTION COMMITMENT.—Receipt of a planning grant under this subsection shall not obligate the eligible entity to adopt any alternative voting method.

"(b) TIER 2: IMPLEMENTATION GRANTS.—

"(1) IN GENERAL.—The Commission shall award implementation grants to eligible entities that have enacted legislation or approved a ballot measure authorizing the use of a qualified alternative voting method for at least one category of elections within the jurisdiction's authority.

"(2) AMOUNT.—Implementation grants under this subsection shall be determined solely on the basis of the voting-age population of the jurisdiction, without regard to which qualified alternative voting method the entity has adopted or proposes to adopt, as follows—

"(A) for jurisdictions with a voting-age population of less than 250,000, grants of not less than $100,000 and not more than $2,000,000;

"(B) for jurisdictions with a voting-age population of not less than 250,000 and not more than 2,500,000, grants of not less than $500,000 and not more than $10,000,000; and

"(C) for jurisdictions with a voting-age population exceeding 2,500,000, grants of not less than $2,000,000 and not more than $25,000,000.

"(3) METHOD-NEUTRAL DETERMINATION.—In determining the amount of a grant under this subsection, the Commission shall not increase or decrease the grant amount based on the relative implementation cost of the specific qualified alternative voting method selected by the eligible entity. The grant amount for a jurisdiction with a given voting-age population shall be the same regardless of whether the entity adopts ranked-choice voting or STAR voting.

"(4) MATCHING REQUIREMENT.—Implementation grants under this subsection shall be subject to the matching requirement of section 574.

"(c) TIER 3: COMPREHENSIVE ADOPTION GRANTS.—

"(1) IN GENERAL.—The Commission shall award competitive grants to States that submit comprehensive plans for statewide adoption of a qualified alternative voting method for elections at all levels of State and local government within the State.

"(2) PRIORITY.—In evaluating applications under this subsection, the Commission shall give priority to States that propose—

"(A) adoption for the broadest range of elections, including primary, general, special, and municipal elections;

"(B) innovative voter education strategies, including multilingual outreach and partnerships with community organizations;

"(C) pilot programs that allow phased implementation with evaluation at each stage; and

"(D) data collection and evaluation plans that will contribute to the national evidence base on alternative voting methods; and

"(E) the repeal, within the 3-year period preceding the date of application, of any State law that prohibited, restricted, or limited the use of any qualified alternative voting method, demonstrating the State's affirmative commitment to expanding voter choice.

"(3) AMOUNT.—Grants under this subsection shall be in amounts determined by the Commission based on the State's voting-age population, the number of elections covered, and the scope of the adoption plan, but not more than $50,000,000 per State. The Commission shall not increase or decrease the grant amount based on the relative implementation cost of the specific qualified alternative voting method selected by the State.

"(4) MATCHING REQUIREMENT.—Grants under this subsection shall be subject to the matching requirement of section 574.

"(d) TIER 4: METHOD EVALUATION AND TRANSITION GRANTS.—

"(1) IN GENERAL.—The Commission shall award grants to eligible entities that have been administering a qualified alternative voting method for at least 2 completed general election cycles and seek to—

"(A) conduct a rigorous, independent comparative evaluation of the performance of the entity's current method against one or more other qualified alternative voting methods, as defined in section 575;

"(B) administer a pilot program to test an alternative qualified method in one or more elections within the jurisdiction, in parallel with or in place of the entity's current method; or

"(C) transition from the entity's current qualified alternative voting method to a different qualified alternative voting method that the entity determines, based on evidence, better serves the interests of voters in the jurisdiction.

"(2) EVALUATION CRITERIA.—Any comparative evaluation funded under paragraph (1)(A) shall assess, at a minimum—

"(A) voter satisfaction and comprehension under each method evaluated, including disaggregated data by race, ethnicity, age, disability status, and language proficiency;

"(B) the frequency with which each method elects candidates who would defeat every other candidate in a head-to-head contest (Condorcet efficiency);

"(C) rates of ballot exhaustion, spoilage, and voter error under each method;

"(D) susceptibility to strategic manipulation, including the incentive for voters to misrepresent their preferences;

"(E) the effect of each method on the number and diversity of candidates and on negative campaigning; and

"(F) administrative costs, including equipment, software, training, and voter education requirements for each method.

"(3) PILOT PROGRAM REQUIREMENTS.—A pilot program funded under paragraph (1)(B) shall—

"(A) be conducted for not fewer than 2 elections;

"(B) include a voter education component sufficient to ensure voters understand both the pilot method and the purpose of the pilot;

"(C) include a pre-registered evaluation plan specifying the metrics by which the pilot method will be assessed; and

"(D) culminate in a public report comparing the performance of the pilot method against the entity's current method, which shall be submitted to the Commission and made publicly available.

"(4) TRANSITION SUPPORT.—An eligible entity receiving a grant under paragraph (1)(C) may use grant funds for all costs associated with transitioning to the replacement method, including the costs described in section 576. An entity that transitions to a different qualified alternative voting method under this subsection shall not be required to make any repayment under section 580, and the commitment period under section 579 shall continue to run from the date of the first general election conducted under the entity's original qualified alternative voting method.

"(5) AMOUNT.—Grants under this subsection shall be in amounts not less than $50,000 and not more than $5,000,000.

"(6) MATCHING REQUIREMENT.—Grants under paragraph (1)(A) shall not be subject to any matching requirement. Grants under paragraphs (1)(B) and (1)(C) shall be subject to the matching requirement of section 574.

"(7) NO OBLIGATION TO TRANSITION.—Receipt of a grant under paragraph (1)(A) or (1)(B) shall not obligate the eligible entity to adopt any method other than its current method. The purpose of such grants is to encourage evidence-based evaluation, not to predetermine outcomes.

"SEC. 574. MATCHING REQUIREMENT.

"(a) IN GENERAL.—Except as provided in subsection (b) and in section 573(a)(3), the Federal share of the cost of activities funded under this part shall not exceed 75 percent.

"(b) WAIVER FOR FISCAL HARDSHIP.—The Commission may waive or reduce the matching requirement under subsection (a) for an eligible entity that demonstrates fiscal hardship, as determined by the Commission. In no case shall the Federal share exceed 90 percent.

"(c) IN-KIND CONTRIBUTIONS.—For the purposes of meeting the matching requirement under this section, an eligible entity may include in-kind contributions, including the value of existing staff time, facilities, and equipment dedicated to implementation activities.

"SEC. 575. QUALIFIED ALTERNATIVE VOTING METHODS.

"(a) IN GENERAL.—For the purposes of this part, a 'qualified alternative voting method' means any method of casting and tabulating votes that—

"(1) permits voters to express preferences among candidates beyond a single selection;

"(2) produces outcomes that are not susceptible to the spoiler effect, under which the entry of an additional candidate who cannot win causes a change in the winner among the remaining candidates;

"(3) does not penalize voters for expressing sincere preferences; and

"(4) is administered in a manner that is transparent, auditable, and consistent with the requirements of the Voting Rights Act of 1965 (52 U.S.C. 10301 et seq.) and the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.).

"(b) METHODS MEETING CRITERIA.—The following methods are deemed to satisfy the criteria of subsection (a), subject to verification by the Commission that the specific implementation proposed by the applicant meets the requirements of this part—

"(1) ranked-choice voting, as defined in section 321(b)(1); and

"(2) STAR voting (Score Then Automatic Runoff), as defined in section 321(b)(2).

"(c) CLOSED LIST.—No method other than those specified in subsection (b) shall be a qualified alternative voting method for purposes of this part. Any expansion of the methods eligible for grants under this part shall require an Act of Congress.

"(d) EXCLUSION.—Plurality voting, as used in single-winner elections in which voters may vote for only one candidate and the candidate receiving the greatest number of votes wins regardless of whether such candidate receives a majority, shall not be a qualified alternative voting method for purposes of this part.

"(e) GRANDFATHERING OF EXISTING ALTERNATIVE VOTING METHODS.—

"(1) ELIGIBILITY.—Notwithstanding the limitation in subsection (c), an eligible entity that, as of the date of enactment of this part, administers elections using approval voting or any other alternative voting method that is not listed in subsection (b) but that satisfies the criteria described in subsection (a) shall be eligible for—

"(A) Tier 1 planning grants under section 573(a) for any purpose, including evaluation of whether to continue with the entity's current method or transition to a method listed in subsection (b);

"(B) Tier 2 implementation grants under section 573(b) and Tier 3 comprehensive adoption grants under section 573(c), provided that the grant funds are used to maintain, improve, or expand the entity's existing method or to transition to a method listed in subsection (b); and

"(C) Tier 4 method evaluation and transition grants under section 573(d).

"(2) LIMITATION.—The grandfathering provision under paragraph (1) shall apply only to an eligible entity that demonstrates, to the satisfaction of the Commission, that the entity was administering the applicable alternative voting method in at least one public election prior to the date of enactment of this part. An eligible entity may not claim eligibility under this subsection for a method adopted after such date unless the method is listed in subsection (b).

"(3) ENCOURAGEMENT TO EVALUATE.—An eligible entity receiving funds under this subsection is encouraged, but not required, to use a portion of such funds to conduct a comparative evaluation of the entity's existing method against the methods listed in subsection (b), in order to inform future decisions about whether a transition would better serve voters in the jurisdiction."

"SEC. 576. PERMITTED USES OF FUNDS.

"(a) PERMITTED PURPOSES.—An eligible entity receiving a grant under this part shall use the grant funds for one or more of the following purposes:

"(1) Acquisition, upgrade, testing, or certification of voting equipment and tabulation software capable of administering the applicable qualified alternative voting method.

"(2) Ballot design, printing, and production, including development of accessible ballot formats.

"(3) Voter education and outreach programs, including—

"(A) public information campaigns conducted through broadcast, digital, and print media;

"(B) production of multilingual educational materials;

"(C) community-based outreach in partnership with civic organizations; and

"(D) educational programs for schools and institutions of higher education.

"(4) Training of election officials, poll workers, canvassing board members, and other election administration personnel.

"(5) Development or procurement of election management systems and tabulation audit tools.

"(6) Pilot programs to test qualified alternative voting methods in a limited number of elections prior to broader adoption.

"(7) Post-election audits, evaluations, and studies of voter experience, including analysis of voter comprehension, demographic participation patterns, and method-specific performance metrics such as ballot exhaustion rates (for ranked-choice voting), equal-preference ballot rates (for STAR voting), or other indicators relevant to the adopted method.

"(8) Cybersecurity enhancements related to the tabulation, transmission, and storage of ballot data under the adopted qualified alternative voting method, including secure handling of cast vote records, tabulation audit trails, and any centralized data aggregation required by the method.

"(9) Legal analysis related to conforming State or local law to accommodate the qualified alternative voting method.

"(10) Comparative evaluation of the adopted method's performance against other qualified alternative voting methods, including voter satisfaction surveys, Condorcet efficiency analysis, and simulation modeling, to inform future method improvements.

"(11) Costs associated with transitioning from one qualified alternative voting method to another, including equipment reconfiguration, software updates, ballot redesign, and voter re-education.

"(12) Such other purposes as the Commission determines are reasonably related to the adoption, evaluation, improvement, or successful implementation of a qualified alternative voting method.

"(b) RETENTION OF IMPLEMENTATION SAVINGS.—

"(1) IN GENERAL.—If an eligible entity that has received an implementation grant under section 573(b) or a comprehensive adoption grant under section 573(c) completes the implementation of its adopted qualified alternative voting method at a total cost less than the grant amount received, the entity may retain the unexpended balance of the grant for use on any purpose described in subsection (a) or any other election administration purpose described in paragraph (3).

"(2) METHOD-NEUTRAL INCENTIVE.—Congress finds that different qualified alternative voting methods vary in implementation cost, and that methods requiring only software upgrades and no new hardware or centralized tabulation infrastructure may be substantially less expensive to implement than methods requiring new equipment or centralized ballot handling. It is the intent of Congress that these cost differences inure to the benefit of the adopting jurisdiction rather than resulting in a reduced grant, so that jurisdictions adopting more cost-effective methods receive a direct fiscal benefit that may be reinvested in election administration.

"(3) EXPANDED ELIGIBLE USES FOR RETAINED SAVINGS.—In addition to the purposes described in subsection (a), an eligible entity may use funds retained under this subsection for the following election administration purposes:

"(A) Improvements to voter registration systems, including online registration platforms and automatic voter registration infrastructure.

"(B) Expansion of early voting, vote-by-mail, or other measures to increase voter access and convenience.

"(C) Upgrades to election cybersecurity infrastructure, including intrusion detection systems, post-election audit tools, and secure communications systems.

"(D) Accessibility improvements to polling places and voting systems beyond those required by Federal law, including additional language access, disability accommodations, and mobile voting units for underserved communities.

"(E) Recruitment, training, and retention programs for election officials and poll workers.

"(F) Public trust and transparency initiatives, including election observation programs, open-data platforms, and civic education partnerships.

"(4) REPORTING.—An eligible entity retaining funds under this subsection shall include in its annual report under section 577(a)(1) an accounting of—

"(A) the total grant amount received;

"(B) the total amount expended on implementation of the qualified alternative voting method;

"(C) the amount retained under this subsection; and

"(D) the specific uses to which retained funds have been or will be applied.

"(5) PERIOD OF AVAILABILITY.—Funds retained under this subsection shall remain available for expenditure by the eligible entity for a period of 5 years after the date of the first general election conducted under the adopted qualified alternative voting method. Any funds not expended within such period shall be returned to the Commission for reallocation under this part.

"(6) NO EFFECT ON MAINTENANCE COMMITMENT.—The retention of savings under this subsection shall not affect the eligible entity's obligations under section 579, including the commitment to maintain the adopted method for the full commitment period."

"SEC. 577. REPORTING AND EVALUATION.

"(a) GRANTEE REPORTS.—Each eligible entity receiving a grant under this part shall submit to the Commission—

"(1) annual progress reports during the implementation period, including expenditure data and milestone updates; and

"(2) a comprehensive post-implementation report not later than 6 months after the first general election conducted using the qualified alternative voting method, including—

"(A) voter participation rates as compared to the most recent comparable election conducted under the previous method;

"(B) method-specific performance indicators, including ballot exhaustion rates (for ranked-choice voting), equal-preference ballot rates (for STAR voting), or other metrics relevant to the adopted method;

"(C) voter comprehension and satisfaction survey data, including disaggregated data by race, ethnicity, age, disability status, and language proficiency to the extent such data is available;

"(D) candidate filing data;

"(E) any legal challenges and their disposition; and

"(F) an independent assessment of the accuracy and auditability of the tabulation process.

"(2A) VOTER COMPREHENSION ASSESSMENT.—

"(A) REQUIREMENT.—Each eligible entity that has received an implementation grant under section 573(b) or a comprehensive adoption grant under section 573(c) shall, not later than 90 days after the first general election conducted under the adopted qualified alternative voting method, conduct a statistically valid survey of voter

comprehension, with results disaggregated by race, ethnicity, age, disability status, and language proficiency to the extent such data is available.

"(B) REMEDIAL PLAN.—If the survey conducted under subparagraph (A) indicates that voter comprehension of the adopted method falls below 70 percent in any demographic group identified in such subparagraph, the eligible entity shall, not later than 180 days after the completion of the survey, submit to the Commission a remedial voter education plan describing targeted outreach strategies to address the comprehension gap.

"(C) COMMISSION ASSISTANCE.—The Commission shall provide technical assistance to any eligible entity required to submit a remedial plan under subparagraph (B), including access to model voter education materials, multilingual outreach strategies, and best practices from other jurisdictions.

"(3) PERIODIC METHOD REVIEW.—Each eligible entity that has received an implementation grant under section 573(b) or a comprehensive adoption grant under section 573(c) shall, not later than 6 months after completing the third general election cycle conducted under the adopted qualified alternative voting method, and every third general election cycle thereafter during the commitment period, submit to the Commission a method performance review that includes—

"(A) a summary of the entity's experience administering the method, including trends in voter participation, voter comprehension, candidate diversity, and method-specific performance indicators (such as ballot exhaustion rates, equal-preference ballot rates, or other metrics relevant to the adopted method) across completed election cycles;

"(B) an assessment of whether the adopted method continues to satisfy the criteria described in section 575(a);

"(C) a comparison, to the extent practicable using available data and published research, of the entity's adopted method against at least one other qualified alternative voting method with respect to the metrics described in section 573(d)(2);

"(D) identification of any operational challenges, voter concerns, or performance shortcomings observed during the review period; and

"(E) a statement as to whether the entity intends to continue with the current method, seek a Tier 4 grant under section 573(d) to evaluate alternatives, or transition to a different qualified alternative voting method.

"(4) COMMISSION ASSISTANCE WITH REVIEWS.—The Commission shall—

"(A) develop and make publicly available standardized templates, data collection instruments, and analytical frameworks to assist eligible entities in conducting the periodic method review required under paragraph (3);

"(B) maintain and publish a publicly accessible database of method performance data submitted by all grantees, to facilitate cross-jurisdictional comparison and evidence-based decision-making; and

"(C) upon request, provide technical assistance to eligible entities conducting reviews, including access to academic experts and simulation tools for comparing voting methods.

"(b) COMMISSION REPORTS.—

"(1) ANNUAL REPORT.—The Commission shall submit to Congress an annual report summarizing the status of all grants awarded under this part and any findings regarding the implementation and effects of alternative voting methods.

"(2) FIVE-YEAR EVALUATION.—Not later than 5 years after the first grant is awarded under this part, the Commission shall commission and transmit to Congress an independent evaluation of the program, including an assessment of—

"(A) the effectiveness of each qualified alternative voting method in meeting the purposes of this title;

"(B) best practices for implementation;

"(C) the adequacy of funding levels; and

"(D) recommendations for reauthorization or modification.

"SEC. 577A. DEMONSTRATION PROJECTS.

"(a) AUTHORIZATION.—The Commission shall, subject to the availability of funds under section 571(b), establish a demonstration project program to support the use of qualified alternative voting methods in binding public elections conducted by willing jurisdictions.

"(b) PURPOSE.—The purpose of the demonstration project program is to generate rigorous, real-world evidence on the performance of qualified alternative voting methods, including methods that have not yet been widely used in government elections in the United States, in order to inform future adoption decisions by States and units of local government.

"(c) NUMBER AND SELECTION.—The Commission shall select not fewer than 3 and not more than 5 eligible entities to participate in the demonstration project program, giving priority to entities that—

"(1) propose to demonstrate a qualified alternative voting method for which limited real-world government election data currently exists;

"(2) represent diverse geographic, demographic, and jurisdictional characteristics;

"(3) commit to rigorous, independent evaluation in accordance with subsection (d); and

"(4) have demonstrated institutional capacity to administer elections competently.

"(d) EVALUATION.—Each demonstration project shall include an independent evaluation conducted by a qualified research institution, assessing the metrics described in section 573(d)(2). The Commission shall compile the results of all demonstration projects into a

public report and transmit such report to Congress not later than 6 months after the final demonstration election is completed.

"(e) AMOUNT.—Grants under this section shall be in amounts not less than $500,000 and not more than $5,000,000 per participating entity.

"(f) MATCHING REQUIREMENT.—No matching funds shall be required for grants under this section.

"(g) NO COMMITMENT OBLIGATION.—Receipt of a grant under this section shall not obligate the participating entity to permanently adopt any method. The demonstration project is for evaluation purposes only.

"SEC. 578. PROHIBITION ON USE OF FUNDS TO DISCOURAGE ADOPTION.

"No funds appropriated or otherwise made available under any provision of Federal law may be used by any Federal agency, officer, or employee to penalize, withhold benefits from, or otherwise discriminate against any State or unit of local government on the basis that such State or unit of local government has adopted, is considering adopting, or has applied for a grant under this part to adopt a qualified alternative voting method for any election."

"SEC. 579. MAINTENANCE OF EFFORT.

"(a) COMMITMENT PERIOD.—

"(1) IN GENERAL.—As a condition of receiving an implementation grant under section 573(b) or a comprehensive adoption grant under section 573(c), an eligible entity shall commit to maintaining the use of the qualified alternative voting method adopted under this part for the applicable elections for a period of not less than the longer of—

"(A) 10 years after the date of the first general election conducted using such method; or

"(B) 5 completed general election cycles for each office to which the method applies.

"(2) WRITTEN AGREEMENT.—Before disbursement of any funds under section 573(b) or 573(c), the chief election official of the eligible entity shall execute a written agreement with the Commission acknowledging the commitment period described in paragraph (1) and the repayment obligations described in section 580.

"(3) PLANNING GRANTS EXCLUDED.—The commitment period under this subsection shall not apply to planning grants awarded under section 573(a).

"(b) SCOPE OF COMMITMENT.—The commitment under subsection (a) shall require the eligible entity to—

"(1) continue to use the qualified alternative voting method for at least the same categories and number of elections specified in the entity's approved application under section 572(b) throughout the commitment period;

"(2) continue to fund voter education and poll worker training sufficient to administer the method competently, as determined by the Commission;

"(3) continue to publish cast vote records and detailed tabulation data (including all intermediate tabulation steps applicable to the adopted method) as required under section 572(b)(3); and

"(4) submit annual compliance certifications to the Commission during the commitment period.

"(c) ENCOURAGED MODIFICATIONS.—Congress finds that the purposes of this part are best served when eligible entities treat the adoption of a qualified alternative voting method as the beginning of an ongoing commitment to voter-centered election design, not an endpoint. Accordingly, an eligible entity shall not be considered in violation of the commitment under subsection (a), and shall be affirmatively encouraged through the availability of Tier 4 grants under section 573(d), to undertake any of the following actions during the commitment period:

"(1) TRANSITION TO AN IMPROVED METHOD.—Replacing the adopted qualified alternative voting method with a different qualified alternative voting method, as defined in section 575, for the same elections, provided the entity—

"(A) notifies the Commission in writing not less than 12 months before the first election conducted under the replacement method;

"(B) demonstrates that the replacement method satisfies the criteria of section 575(a); and

"(C) documents the evidence basis for the transition, including data from the periodic method review conducted under section 577(a)(3), a comparative evaluation funded under section 573(d)(1)(A), or a pilot program conducted under section 573(d)(1)(B).

"(2) EXPANSION.—Expanding the use of the adopted method to additional categories of elections beyond those specified in the original application.

"(3) TECHNICAL IMPROVEMENTS.—Making technical or administrative modifications to the implementation of the method that do not alter the fundamental manner in which votes are cast, ranked, scored, or tabulated.

"(d) CONTINUOUS IMPROVEMENT.—

"(1) POLICY.—It is the policy of the United States that eligible entities receiving funds under this part should continuously evaluate and improve their election methods based on evidence, and that no eligible entity should be penalized or discouraged from transitioning to a voting method that better serves the interests of voters solely because the entity previously adopted a different qualified alternative voting method with Federal assistance.

"(2) COMMISSION GUIDANCE.—Not later than 1 year after the first grants are awarded under this part, the Commission shall issue guidance to eligible entities on—

"(A) best practices for conducting comparative evaluations of voting methods;

"(B) criteria for determining when a transition to a different method may be warranted based on performance data;

"(C) procedures for applying for Tier 4 grants under section 573(d) to support evaluation, piloting, or transition activities; and

"(D) model legislation or ordinance language for jurisdictions seeking to authorize the use of ranked-choice voting or STAR voting for State or local elections.

"(3) NO INFERENCE OF INADEQUACY.—An eligible entity's decision to evaluate, pilot, or transition to a different qualified alternative voting method shall not be construed as evidence that the entity's original method was inadequate, that the entity failed to comply with the terms of its grant, or that the entity's original application was deficient.

"(e) EXTENSION OR RENEWAL.—Upon expiration of the commitment period, an eligible entity may—

"(1) continue using the qualified alternative voting method without further obligation to the Commission;

"(2) discontinue use of the method without any repayment obligation; or

"(3) apply for additional grants under this part for further election modernization activities.

"SEC. 580. REPAYMENT FOR EARLY DISCONTINUATION.

"(a) REPAYMENT OBLIGATION.—

"(1) TRIGGER.—If, during the commitment period described in section 579(a), an eligible entity enacts legislation, issues an executive order, gives effect to a ballot measure, or takes any other official action that repeals, prohibits, or discontinues the use of the qualified alternative voting method adopted under this part for any election covered by the entity's commitment, the entity shall repay to the Commission an amount determined under subsection (b).

"(2) DETERMINATION BY COMMISSION.—The Commission shall determine whether an action described in paragraph (1) has occurred and shall notify the eligible entity in writing of such determination, including the amount of repayment due and the deadline for payment.

"(b) AMOUNT OF REPAYMENT.—

"(1) GRADUATED SCHEDULE.—The amount of repayment required under subsection (a) shall be calculated according to the following graduated schedule based on the proportion of the commitment period completed at the time of discontinuation:

"(A) If less than 20 percent of the commitment period has elapsed, 100 percent of all Federal funds disbursed to the entity under sections 573(b) and 573(c).

"(B) If not less than 20 percent but less than 40 percent of the commitment period has elapsed, 80 percent of all Federal funds so disbursed.

"(C) If not less than 40 percent but less than 60 percent of the commitment period has elapsed, 60 percent of all Federal funds so disbursed.

"(D) If not less than 60 percent but less than 80 percent of the commitment period has elapsed, 40 percent of all Federal funds so disbursed.

"(E) If not less than 80 percent of the commitment period has elapsed, 20 percent of all Federal funds so disbursed.

"(2) CALCULATION.—For the purposes of paragraph (1), the proportion of the commitment period elapsed shall be determined by dividing the number of complete months between the date of the first general election conducted under the method and the effective date of the discontinuation action by the total number of months in the commitment period.

"(c) NOTICE AND CURE.—

"(1) NOTICE.—Upon learning of a proposed or pending action that may trigger a repayment obligation under this section, the Commission shall provide the eligible entity with written notice describing the potential repayment obligation and identifying any steps the entity may take to avoid triggering such obligation.

"(2) CURE PERIOD.—An eligible entity shall have a period of 180 days after the date of notice under paragraph (1) to rescind, reverse, or otherwise cure the action giving rise to the repayment obligation. If the entity cures the action within such period, no repayment shall be required.

"(3) SUSPENSION DURING LITIGATION.—If the action giving rise to a potential repayment obligation is the subject of pending litigation challenging the validity of such action under State or Federal law, the Commission shall suspend the repayment obligation until the litigation is resolved by final, non-appealable judgment. If the litigation results in the invalidation of the action, no repayment shall be required.

"(d) EXCEPTIONS TO REPAYMENT.—

"(1) REPLACEMENT WITH QUALIFIED METHOD.—No repayment shall be required if the eligible entity discontinues the adopted method and simultaneously replaces it with a different qualified alternative voting method in accordance with section 579(c)(1).

"(2) FORCE MAJEURE.—No repayment shall be required if the Commission determines that discontinuation was necessitated by circumstances beyond the control of the eligible entity, including a court order by a court of competent jurisdiction holding that the specific implementation of the method in that jurisdiction violates the Constitution of the United States, the Voting Rights Act of 1965, or the constitution of the applicable State.

"(3) FEDERAL PREEMPTION.—No repayment shall be required if discontinuation results from the enactment of a subsequent Federal statute that prohibits or is inconsistent with the continued use of the adopted method.

"(e) REPAYMENT TERMS.—

"(1) DEADLINE.—Repayment shall be due not later than 2 years after the date of the Commission's final determination under subsection (a)(2), or such later date as the Commission may establish under paragraph (2).

"(2) INSTALLMENT PLAN.—The Commission may, upon request by the eligible entity, authorize repayment in equal annual installments over a period of not more than 5 years if the Commission determines that immediate repayment would impose an undue fiscal hardship on the entity.

"(3) INTEREST.—Amounts subject to repayment under this section shall bear interest at the rate applicable to obligations of the United States Treasury with comparable maturities, beginning on the date that is 2 years after the Commission's final determination or, if an installment plan is authorized, on any installment that is not paid when due.

"(f) DEPOSIT OF REPAYMENTS.—Amounts repaid under this section shall be deposited in the general fund of the Treasury and shall be available, subject to appropriation, for grants under this part.

"(g) ANNUAL REPORT ON COMPLIANCE.—The Commission shall include in the annual report required under section 577(b)(1) a summary of—

"(1) the compliance status of all eligible entities subject to a commitment period under section 579;

"(2) any repayment determinations made during the preceding year; and

"(3) any cure actions taken by eligible entities under subsection (c)(2)."

(b) CLERICAL AMENDMENT.—The table of contents of the Help America Vote Act of 2002 is amended by adding at the end the following:

"Part 7—Election Modernization Grants for Alternative Voting Methods

"Sec. 571. Establishment of grant program.

"Sec. 572. Eligibility and application.

"Sec. 573. Grant tiers.

"Sec. 574. Matching requirement.

"Sec. 575. Qualified alternative voting methods.

"Sec. 576. Permitted uses of funds.

"Sec. 577. Reporting and evaluation.

"Sec. 577A. Demonstration projects.

"Sec. 578. Prohibition on use of funds to discourage adoption.

"Sec. 579. Maintenance of effort.

"Sec. 580. Repayment for early discontinuation." # SUBTITLE C—GENERAL PROVISIONS

SEC. 6006. RULE OF CONSTRUCTION REGARDING STATE AUTHORITY.

(a) STATE AND LOCAL ELECTIONS.—Nothing in subtitle A of this title shall be construed to require any State or unit of local government to use any particular voting method for any election for State or local office, except to the extent that a State voluntarily adopts such a method as a condition of receiving a grant under subtitle B.

(b) STATE CHOICE AMONG METHODS.—Nothing in this title shall be construed to prefer one qualified alternative voting method over another. The selection among qualified alternative voting methods defined in section 321(b) of the Help America Vote Act of 2002 (as added by this title) for elections for Federal office, and among qualified alternative voting methods defined in section 575 of such Act for elections funded under subtitle B, is solely within the discretion of each State.

(c) MORE PROTECTIVE PROVISIONS.—Nothing in this title shall be construed to preempt any provision of State law that provides greater voter choice or more expressive ballot design than provided for under this title.

SEC. 6007. SENSE OF CONGRESS REGARDING STATE BANS ON ALTERNATIVE VOTING METHODS.

(a) FINDINGS.—Congress finds that, as of the date of enactment of this title, 19 States have enacted laws prohibiting or restricting the use of ranked-choice voting or other alternative voting methods, and that such prohibitions prevent voters and election officials in those States from accessing the benefits described in section 6002(a).

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) State laws that prohibit or restrict the use of qualified alternative voting methods deny voters the opportunity to benefit from more expressive, representative, and competitive elections;

(2) such prohibitions are particularly contrary to the public interest in light of the substantial and growing body of evidence that alternative voting methods produce outcomes more reflective of voter preferences than plurality voting;

(3) States that have enacted such prohibitions are encouraged to repeal them and to evaluate the potential benefits of qualified alternative voting methods for their voters; and

(4) nothing in this section shall be construed to have any legal effect beyond expressing the views of Congress.

SEC. 6008. GRANT ELIGIBILITY NOT AFFECTED BY STATE BANS.

(a) PLANNING GRANTS.—The existence of a State law that prohibits or restricts the use of one or more qualified alternative voting methods shall not render a State or unit of local government within that State ineligible for a planning grant under section 573(a) of the Help America Vote Act of 2002. Such a grant may be used to study the feasibility of adopting an alternative voting method, evaluate the potential effects of repeal of such prohibition, or for any other purpose described in section 573(a).

(b) IMPLEMENTATION AND COMPREHENSIVE GRANTS.—A State or unit of local government within a State that has repealed a law described in subsection (a) shall be eligible for implementation grants under section 573(b), comprehensive adoption grants under section 573(c), and method evaluation and transition grants under section 573(d) on the same terms as any other eligible entity.

SEC. 6009. SEVERABILITY.

If any provision of this title, or the application of such provision to any person or circumstance, is held to be unconstitutional, the remainder of this title, and the application of such provision to other persons and circumstances, shall not be affected thereby.

SEC. 6010. EFFECTIVE DATES.

(a) CONDITIONAL AMENDMENTS.—The amendments made by subtitle A shall take effect on the date of enactment of this title and shall apply with respect to any election for Federal office conducted under a qualified alternative voting method designated by a State under section 321(a) of the Help America Vote Act of 2002, as added by this title.

(b) SUBTITLE B.—The grant program established under subtitle B shall begin accepting applications not later than 180 days after the date of enactment of this title.

TITLE VII—EPSTEIN ACCOUNTABILITY AND PUBLIC DISCLOSURE

SEC. 7001. SHORT TITLE; TABLE OF CONTENTS.

(a) *Short Title.*—This title may be cited as the "Epstein Accountability and Public Disclosure Provisions".

(b) *Table of Contents.*—The table of contents of this title is as follows:

Sec. 7001. Short Title; Table of Contents.

Sec. 7002. Congressional Findings—Prior Legislative Failure, Structural Incentive Failure, and Matters of Compelling Public Interest.

Sec. 7003. Definitions.

Sec. 7004. Purpose and Model.

Sec. 7005. Mandatory Declassification and Public Disclosure—Rolling Submission and Publication.

Sec. 7006. Relation to the Freedom of Information Act and Pending FOIA Proceedings.

Sec. 7007. State, Territorial, and Local Government Records—Voluntary Production Mechanism.

Sec. 7008. Private Right of Action for Epstein Network Victims.

Sec. 7009. Victim Notification of Redaction and Postponement Decisions.

Sec. 7010. Presidential Postponement Certification—the Only Exception.

Sec. 7011. Enumerated Category Carve-Outs—Genuine National Security Exceptions.

Sec. 7012. Federal Unit for Managing Epstein Documents—Establishment and Operating Mandate.

Sec. 7013. Category Six—Combination Release Protection and Mosaic Analysis.

Sec. 7014. Self-Executing Espionage Act Immunity.

Sec. 7015. Whistleblower Financial Protections and Civil Remedies.

Sec. 7016. Intent Limitation—Anti-Reputational Weaponization Clause.

Sec. 7017. CIPA Reform—Application in Epstein-Related Proceedings.

Sec. 7018. Mandate for FBI Explanatory Report.

Sec. 7019. Congressional Deposition of Ghislaine Maxwell.

Sec. 7020. Pre-Deposition Evidence Certification.

Sec. 7021. Use and Derivative Use Immunity—Scope, Limits, and Carve-Outs.

Sec. 7022. Tolling of Federal Statutes of Limitations for Offenses Revealed by Novel Testimony.

Sec. 7023. Maxwell Identity Verification—Cross-Regional Special Master Pool and Quarterly Biometric Verification.

Sec. 7024. Mandate for Congressional Hearing.

Sec. 7025. Authorization of Appropriations.

SEC. 7002. CONGRESSIONAL FINDINGS—PRIOR LEGISLATIVE FAILURE, STRUCTURAL INCENTIVE FAILURE, AND MATTERS OF COMPELLING PUBLIC INTEREST.

Congress finds as follows:

(a) FINDING 1—PRIOR LAW WAS VIOLATED: DOCUMENTED VIOLATIONS OF PUBLIC LAW 119-38.—Congress finds that the Epstein Files Transparency Act, Public Law 119-38, enacted November 19, 2025 with a vote of 427 to 1 in the House and unanimous consent in the Senate—representing the most overwhelming bipartisan consensus of any major disclosure legislation in recent congressional history—was violated by the executive branch in the following documented respects: the Department of Justice missed the mandatory 30-day disclosure deadline; released documents in piecemeal waves in direct violation of the statute's schedule; asserted common law privileges—including deliberative process privilege and work product doctrine—that the statute expressly did not permit; applied redactions to politically exposed persons in direct violation of the statute's express prohibition on such redactions; and released materials in a manner that inadvertently exposed the identities of minor victims in direct violation of the statute's victim protection mandate. These violations were documented in a congressional letter to the relevant federal court dated January 8, 2026 and in a Government Accountability Office review letter dated March 11, 2026.

(b) FINDING 2—STRUCTURAL INCENTIVE FAILURE: NO CONSEQUENCES FOR NON-COMPLIANCE.—Congress finds that its concern with compliance is structural, not personal. The violations of Public Law 119-38 do not require a finding of individual bad faith—they reflect the predictable operation of structural incentives that make executive compliance with politically sensitive disclosure mandates systematically unreliable absent independent oversight. An Attorney General who over-redacts or misses a deadline faces no personal consequence under the existing framework. An agency that asserts unauthorized privileges faces no operational sanction beyond congressional criticism. The individuals who violated Public Law 119-38 faced no legal jeopardy for doing so.

(c) FINDING 3—DEATH OF JEFFREY EPSTEIN: UNRESOLVED CIRCUMSTANCES OF COMPELLING PUBLIC INTEREST.—Congress finds that Jeffrey Edward Epstein was reported dead in his cell at the Metropolitan Correctional Center in New York on August 10, 2019, while in federal custody awaiting trial on federal sex trafficking charges. The New York City Office of the Chief Medical Examiner ruled the cause of death suicide by hanging; Dr. Michael Baden, a former Chief Medical Examiner of New York City retained by Epstein's family, publicly stated following independent examination that the physical evidence was more consistent with homicidal strangulation than suicide. Both guards assigned to monitor Epstein under suicide watch protocols were reportedly asleep and failed

to perform required checks for approximately three hours; all surveillance cameras covering his cell were malfunctioning or unavailable during the relevant period; and Epstein's cellmate had been transferred the day before, leaving him unsupervised despite a prior documented suicide attempt. A Department of Justice Inspector General investigation was opened and has not produced a public final report resolving the contested questions. Congress finds that the combination of these documented facts has given rise to widespread and documented public concern that the official findings may not accurately reflect the circumstances of the reported death, and that public confidence in the integrity of the federal criminal justice system cannot be fully restored absent the full, transparent, independent congressional inquiry mandated by Section 7024 of this title. Congress does not by this finding determine whether Epstein is dead, or if dead, whether his death was a suicide or a homicide.

(d) FINDING 4—CUSTODY OF GHISLAINE MAXWELL: PUBLIC INTEREST IN INDEPENDENT VERIFICATION.—Congress finds that Ghislaine Maxwell, convicted on December 29, 2021, of sex trafficking of minors and sentenced to twenty (20) years of imprisonment, is Epstein's most senior co-conspirator and the individual most likely to possess material knowledge of persons who participated in or facilitated the Epstein Network and who have never been prosecuted. Jeffrey Epstein was reported dead under the disputed circumstances described in Finding 3 while in custody of the same executive branch that now holds Maxwell; the individuals Maxwell may be able to identify have had no legal accountability imposed upon them and may possess motive and means to interfere with her custody or availability to testify. The Bureau of Prisons protocol failures documented in Epstein's case—the failure of surveillance systems, the failure of assigned guards, and the inadequacy of internal reporting mechanisms—have given rise to documented and widespread public concern that analogous failures could occur in Maxwell's case. No existing federal mechanism provides sufficient independent public accountability for these concerns. Congress finds that independent verification of Maxwell's continued incarceration and identity is a matter of compelling public interest, directly connected to Congress's ability to obtain her testimony under this title and to the integrity of the federal criminal justice system.

(e) FINDING 5—PATTERN OF DOCUMENTED EXECUTIVE FAILURES AND UNRESOLVED QUESTIONS REGARDING THE INVESTIGATION OF THE EPSTEIN NETWORK.—Congress finds as follows with respect to the conduct of executive branch officials and agencies in connection with the investigation and non-prosecution of Jeffrey Epstein. On February 21, 2019, the United States District Court for the Southern District of Florida found, in Doe 1 v. United States, Case No. 9:08-cv-80736-KAM, 359 F. Supp. 3d 1201, that the United States Government violated the Crime Victims' Rights Act, 18 U.S.C. § 3771, by concealing the existence of the 2007 Non-Prosecution Agreement from Epstein's victims, actively misleading victims to believe federal prosecution remained possible after the NPA had been executed, and working in coordination with Epstein's defense counsel to maintain that concealment. The court found that Epstein's counsel had sought assurances that the agreement would be kept secret from victims, and that prosecutors

had provided or acquiesced in those assurances. The Department of Justice Office of Professional Responsibility, in its November 2020 investigation into the SDFL's handling of the Epstein matter, documented that lead prosecutor AUSA Marie Villafaña had prepared a 60-count federal indictment and an 82-page prosecution memorandum—reviewed and endorsed by DOJ's Child Exploitation and Obscenity Section as "exhaustive" and "well done"—and that plans to arrest Epstein on May 15, 2007 were abandoned after intervention by supervisors above the responsible U.S. Attorney. The OPR review documented that the NPA contained "unusual and problematic" terms negotiated directly with Epstein's defense counsel. The OPR found the conduct constituted "poor judgment" but did not find affirmative evidence of individual corruption. The OPR review further documented an eleven-month gap in U.S. Attorney Alexander Acosta's incoming emails spanning May 2007 through April 2008—the period encompassing the abandonment of the prepared indictment, the NPA negotiations, the NPA's execution on September 24, 2007, and Epstein's guilty plea. The OPR attributed the gap to a "technological error." The emails have never been recovered or produced. Jeffrey Epstein filed a Freedom of Information Act request in 2011 through counsel seeking records confirming his own "open affiliation" with the Central Intelligence Agency between November 1999 and July 2011. The CIA issued a Glomar response—refusing to confirm or deny the existence of responsive records on the grounds that the fact of their existence or non-existence is currently and properly classified. A partially redacted 2008 FBI memorandum states that Epstein "provided information to the FBI, as agreed upon." The full scope of any cooperation agreement between Epstein and federal law enforcement or intelligence agencies has never been disclosed to Congress or the public. The Department of Justice Inspector General's Report 23-085, released June 27, 2023, documented systemic failures at the Metropolitan Correctional Center preceding Epstein's reported death on August 10, 2019, including falsification of count slips and guard round sheets; approximately eight hours of unmonitored custody; and the failure of nearly all surveillance cameras in and around the Special Housing Unit to record video during the relevant period. Congress finds that the combination of these documented facts—the federal court's finding of deliberate concealment in the NPA proceeding; the abandonment of a fully prepared indictment after supervisory intervention; the unexplained eleven-month email gap spanning the critical decision period; the CIA's classified refusal to confirm or deny records of Epstein's own alleged affiliation; the partially disclosed FBI cooperation relationship; and the institutional failures preceding Epstein's reported death—constitutes a pattern across multiple executive branch agencies and multiple administrations that is among the reasons Congress concludes that voluntary executive self-compliance with the disclosure obligations of this title cannot be assumed, and that the structural independence of the Federal Unit for Managing Epstein Documents is constitutionally necessary rather than merely preferable. Congress does not by this finding determine that any executive branch official acted corruptly in connection with the Epstein investigation; does not determine that Epstein was a paid intelligence asset of any agency of the United States government; and does not determine that any identified failure resulted from deliberate wrongdoing rather than the

compounded structural incentive failures documented in Findings 1 and 2 of this Section. Congress finds only that the documented record raises questions of sufficient gravity that full public disclosure of all Records of the Epstein Network—under independent, non-executive oversight—is the minimum adequate congressional response.

(f) FINDING 6—DOCUMENTED CONNECTIONS BETWEEN THE EPSTEIN NETWORK AND FOREIGN INTELLIGENCE INFRASTRUCTURE: EXPRESS FACTUAL BASIS FOR THE CATEGORY THREE EXCLUSIONS.—Congress finds that the intelligence infrastructures of Israel, the United Kingdom, and the Kingdom of Saudi Arabia have each been documented, across multiple independent published sources, named-source journalism, sworn testimony, and congressional records, as intersecting with the Epstein Network through arms trafficking intermediaries, financial flows, intelligence-connected personnel, and the direct involvement of officials and nationals of those governments in Network activities. Congress further finds that these documented intersections are of sufficient established character that, if Category Three protections were available for records relating to any of these governments, the protections would predictably be invoked to shield precisely the records most relevant to public accountability. These findings constitute the express factual basis for the exclusions in Section 7011(d) of this title. Congress does not by this finding determine that the Epstein Network was an intelligence operation of any single government, that any specific foreign official directed or authorized Network activities, or that any foreign intelligence service had operational direction over the criminal conduct for which Maxwell was convicted.

SEC. 7003. DEFINITIONS.

As used in this title:

(a) "COVERED INDIVIDUAL".—"Covered Individual" means any natural person who, at any time within the thirty (30) years preceding the date of enactment of this title, has—

- **(A)** held elective federal office;
- **(B)** held elective state office in any State, the District of Columbia, or any Territory;
- **(C)** held a presidentially appointed, Senate-confirmed federal position; or
- **(D)** served as a senior officer or director of a federal intelligence agency.

(b) "EPSTEIN NETWORK".—"Epstein Network" means the criminal enterprise operated by Jeffrey Edward Epstein, including all co-conspirators, enablers, facilitators, and participants identified or identifiable from records in the possession of any federal agency, as further defined by reference to the non-prosecution agreement entered in the Southern District of Florida (2007) and the federal indictment filed in the Southern District of New York (2019).

(c) "RECORDS OF THE EPSTEIN NETWORK".—"Records of the Epstein Network" means any document, file, recording, database entry, communication, photograph, financial record, or other information in the possession, custody, or control of any federal agency that relates to—

(A) Jeffrey Edward Epstein, his associates, properties, or finances;

(B) any investigation, prosecution, non-prosecution, or declination of prosecution of Epstein or any member of the Epstein Network;

(C) any Covered Individual's association with, presence at, or financial relationship with Epstein or Maxwell; or

(D) the circumstances of Epstein's death on August 10, 2019.

The term includes classified and unclassified records alike.

(d) "PROTECTED DISCLOSURE".—"Protected Disclosure" means any communication of factual information, documents, or evidence by a Qualified Disclosant that—

(A) relates to the Epstein Network or to official misconduct in connection with the investigation or prosecution thereof;

(B) is made in good faith; and

(C) is not made with the primary purpose of causing reputational harm to any individual based on personal, political, or ideological motive unrelated to the underlying facts.

Without limiting the generality of subparagraph (A), a Protected Disclosure includes any communication of factual information, documents, or evidence relating to the destruction, concealment, alteration, spoliation, unauthorized removal, or failure to preserve any Record of the Epstein Network, whether such destruction, concealment, alteration, spoliation, removal, or failure to preserve occurred before, on, or after the date of enactment of this title, and regardless of whether the person or entity responsible for such conduct is a federal official, a private party, or any other person.

A Protected Disclosure shall not lose its protected character solely because it is made directly to the public.

(e) "GOOD FAITH".—"Good Faith" means, with respect to a Protected Disclosure, that the Qualified Disclosant—

(A) had a reasonable factual basis for believing that the disclosed information was a Record of the Epstein Network as defined in this title;

(B) did not knowingly fabricate, materially falsify, or alter any Record of the Epstein Network included in the disclosure;

(C) did not make the disclosure primarily for the purpose of providing intelligence to a foreign government or aiding a foreign adversary; and

(D) did not make the disclosure primarily for the purpose of causing reputational harm to any identified individual on the basis of information the Qualified Disclosant knew to be false.

Good faith does not require that every disclosed record ultimately prove to be authentic, accurately interpreted, or fully responsive to the definition of Records of the Epstein Network, provided the Qualified Disclosant had a reasonable basis for believing it was. An error of fact or

judgment, without more, does not defeat good faith. Good faith is presumed; the party asserting its absence bears the burden of establishing it by clear and convincing evidence.

(f) "QUALIFIED DISCLOSANT".—"Qualified Disclosant" means any current or former officer, employee, contractor, subcontractor, or detailee of any department, agency, bureau, or other instrumentality of the executive branch of the United States, including—

(A) any executive department as defined in 5 U.S.C. § 101;

(B) any independent agency within the executive branch, as identified on the Office of Personnel Management's list of independent agencies; and

(C) any element of the Intelligence Community as defined in 50 U.S.C. § 3003; and

(D) any current or former member of the Armed Forces of the United States, as defined in 10 U.S.C. § 101(a)(4), including any commissioned officer, warrant officer, or enlisted member of any component of the Army, Navy, Air Force, Marine Corps, Space Force, or Coast Guard, whether serving in an active duty, reserve, or National Guard status, and including any member assigned to or serving with any element of the Intelligence Community, any combatant command, any defense agency, or any joint or combined command.

(E) any other natural person, regardless of employment status or affiliation with the federal government, who possesses direct, firsthand knowledge of the destruction, concealment, alteration, or unauthorized removal of any Record of the Epstein Network, or who possesses direct, firsthand knowledge of any direction, instruction, or agreement to destroy, conceal, alter, or remove such records.

(g) "CIPA".—"CIPA" means the Classified Information Procedures Act, codified at 18 U.S.C. App. III, as amended.

(h) "NPA".—"NPA" means the non-prosecution agreement entered into on or about September 24, 2007, between the Office of the United States Attorney for the Southern District of Florida and Jeffrey Edward Epstein, including all addenda, co-conspirator immunity provisions, and sealed attachments thereto.

(i) "MAXWELL".—"Maxwell" means Ghislaine Noelle Marion Maxwell, currently serving a federal sentence of imprisonment, Federal Register Number 02879-509.

(j) "PRESIDENTIAL POSTPONEMENT CERTIFICATION".—"Presidential Postponement Certification" means a written, signed, and publicly released determination by the President of the United States that the continued classification of specific Records of the Epstein Network is necessary because—

(A) disclosure would reveal the identity of a confidential human source currently active in an ongoing criminal investigation unrelated to the Epstein Network; or

(B) disclosure would directly and imminently endanger a named individual's physical safety.

Such certification may not be made on grounds of general national security, foreign policy sensitivity, institutional embarrassment, or any interest relating to the concealment of conduct by a Covered Individual.

(k) "PRE-DEPOSITION EVIDENCE CERTIFICATION".—"Pre-Deposition Evidence Certification" means the sealed, sworn, time-stamped inventory of all evidence in the government's possession relating to Maxwell's personal criminal conduct, filed with the United States District Court for the Southern District of New York prior to the commencement of Maxwell's congressional deposition.

(l) "NOVEL TESTIMONY".—"Novel Testimony" means any information disclosed by Maxwell in her congressional deposition that does not appear in, and is not fairly derivable from, the Pre-Deposition Evidence Certification.

(m) "PRE-EXISTING GOVERNMENT KNOWLEDGE".—"Pre-Existing Government Knowledge" means any information appearing in, or fairly derivable from, the Pre-Deposition Evidence Certification.

(n) "BASELINE BIOMETRIC RECORD".—"Baseline Biometric Record" means the sealed, multi-jurisdictional biometric record compiled pursuant to Section 7023(b) and held under seal by the Clerk of the United States District Court for the Southern District of New York, incorporating domestic records obtained by direct court order and, where available, foreign jurisdictional records obtained by Letters Rogatory transmitted through the Department of State to the United Kingdom National Crime Agency and the French Direction Générale de la Police Nationale, against which all quarterly verification results are compared.

(o) "UNIT REVIEW COMPLETION DATE".—"Unit Review Completion Date" means July 16, 2028, being the last date by which any Records of the Epstein Network may be submitted to the Unit and still receive full review—including declassification analysis, category carve-out evaluation under Section 7011, and mosaic analysis under Section 6C—before the October 15, 2028 hard publication deadline. This date is calculated as ninety-one (91) days before October 15, 2028. Records submitted to the Unit after July 16, 2028 enter the Degraded Review Regime under Section 7005(e-2) and do not receive full review.

(p) "SUMMARY ORDER".—"Summary Order" means the public judicial determination issued by the presiding judge of the United States District Court for the Southern District of New York following each quarterly verification visit, stating either IDENTITY VERIFIED or IDENTITY UNVERIFIED as defined in Section 7023(d)(4).

(q) "VERIFICATION PHOTOGRAPH STANDARD".—"Verification Photograph Standard" means the set of technical requirements for photographs taken during quarterly verification visits pursuant to Section 7023(d)(3)(C), derived from and consistent with the FBI Criminal Justice Information Services Division Facial Image Standards, and consisting of the following mandatory elements—

(A) VIEWS.—two photographs per visit—one full-face frontal view and one strict 90-degree right-profile view;

(B) CAMERA DISTANCE.—the camera lens shall be positioned at a distance of not less than eighteen (18) inches and not more than twenty-four (24) inches from the subject's face, measured from the lens to the tip of the subject's nose, producing a head-and-shoulders frame in which the face occupies not less than seventy (70) percent of the vertical frame height;

(C) BACKGROUND.—a plain, untextured, light-colored surface—white or light gray—with no shadows, markings, or objects visible behind the subject;

(D) LIGHTING.—even, diffuse, front-facing illumination with no harsh shadows across the face, no shadows cast on the background, and no specular highlights on the skin;

(E) SUBJECT POSITION.—for the frontal view, the subject's head shall be level, eyes open and directed at the camera, mouth closed, expression neutral, and chin parallel to the floor; for the profile view, the subject's head shall be turned exactly 90 degrees to the right, eyes directed straight ahead, mouth closed, and chin parallel to the floor;

(F) OBSTRUCTIONS.—the subject's face shall be fully unobstructed—hair shall be fully off the face and ears, no eyeglasses, no head coverings, and no jewelry obscuring any facial feature;

(G) RESOLUTION.—the camera shall produce a minimum resolution of 300 pixels per inch at the subject's face as rendered in the final photograph, sufficient to enable forensic biometric comparison of skeletal landmarks by a board-certified forensic anthropologist;

(H) DATE PLACARD.—a court-issued date placard bearing the full calendar date of the visit in numerals not less than one inch in height shall be held by the subject at chest height or mounted on a stand at the same focal plane as the subject's face, and shall be fully legible within the same frame as the face in both photographs; and

(I) EQUIPMENT.—all camera and lighting equipment used for Verification Photographs shall be court-provided, court-sealed prior to each visit, and transported to and from the facility by the Special Master. The Bureau of Prisons shall provide no photographic equipment. The memory card containing the photographs shall be removed from the camera by the Special Master immediately upon completion of photography, sealed into the tamper-evident evidence envelope alongside the FD-258 fingerprint card, and transported to the Clerk under the same protocol as the FD-258 card.

(r) "JUDICIARY COMMITTEES".—"Judiciary Committees" means the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives.

PART I—ENHANCED WHISTLEBLOWER PROTECTIONS AND MANDATORY DECLASSIFICATION

SEC. 7004. PURPOSE AND MODEL.

The purpose of this Part is to ensure that information concerning the Epstein Network reaches the American public directly, without routing through congressional intermediaries, executive gatekeepers, or any review board. This Part is modeled on the President John F. Kennedy Assassination Records Collection Act of 1992 (44 U.S.C. § 2107 note). That statute has been in effect for over thirty years and has not been struck down. This Part applies the same architecture to Records of the Epstein Network.

SEC. 7005. MANDATORY DECLASSIFICATION AND PUBLIC DISCLOSURE—ROLLING SUBMISSION AND PUBLICATION.

(a) TWO SEPARATE OBLIGATIONS—SUBMISSION AND PUBLICATION.—This Section imposes two distinct and independent obligations that must not be conflated—

(1) AGENCY SUBMISSION OBLIGATION.—Each agency must submit fully unredacted Records of the Epstein Network to the Unit on the rolling tranche schedule in subsections (b) through (e-1). The tranche deadlines are submission deadlines—they govern when records must arrive at the Unit's door. They are not publication deadlines. An agency that submits records on time has met its submission obligation regardless of when the Unit completes review and transmits to GPO; and

(2) UNIT PUBLICATION OBLIGATION.—The Unit must transmit cleared records to GPO on a rolling basis as review of each record is completed, within five (5) business days of clearance, as provided in Section 7012(h-1). The Unit does not hold cleared records pending completion of other records. Publication is continuous and rolling. There is no batch publication deadline. October 15, 2028 is the hard ceiling by which all cleared records must have been transmitted to GPO for publication, regardless of when they were submitted or cleared.

This obligation arises by operation of law. No executive order, agency directive, security classification guide, or prior classification determination shall operate to delay or defeat disclosure except as provided in Section 7010.

Congress finds that the American electorate is entitled to full public disclosure of all Records of the Epstein Network not later than October 15, 2028, so that voters may exercise fully informed judgment in the presidential election of November 2028.

(a-1) RELATION TO PRIOR LAW.—Records already released in compliance with the Epstein Files Transparency Act, Public Law 119-38 (November 19, 2025), satisfy the submission obligation under this Section for those specific records, provided each such record is simultaneously transmitted to GovInfo.gov as provided in subsection (f) with its SHA-256 hash value. This Section does not require re-submission of records already lawfully released under Public Law 119-38. It requires submission of all records within the definition of Records of the Epstein Network that were not covered by, or were withheld in violation of, Public Law 119-38, including records held by agencies other than the Department of Justice and records that were improperly redacted or withheld under that law. Congress finds that the Department of Justice violated Public Law 119-38 by missing the statutory deadline,

asserting common-law privileges the Act did not permit, applying redactions inconsistent with the Act's express prohibition on withholding records to protect politically exposed persons, and releasing documents in waves rather than on the required schedule. This Section remedies those violations and extends the disclosure obligation to records and agencies beyond that Act's scope.

(b) INVENTORY SUBMISSION—DAYS 1 THROUGH 60.—Each federal agency in possession of Records of the Epstein Network shall, within sixty (60) calendar days of enactment, submit to the Unit a complete inventory of all such records it holds, and shall—

(1) transmit the inventory to the Unit accompanied by a SHA-256 hash manifest. The Unit is the sole redaction authority under this title. Agencies shall not pre-redact, withhold pages, or modify records before submission. The Unit shall transmit reviewed and redacted records to GPO using GPO's GovInfo system, accompanied by a SHA-256 hash manifest. The GPO receiving system shall programmatically verify each received file against the transmitted manifest. The GPO Superintendent of Documents shall publicly certify on GovInfo.gov within forty-eight (48) hours of each batch whether the automated comparison detected any discrepancies—a single batch-level statement, algorithmic and not manual. Any detected discrepancy shall be reported to both Judiciary Committees automatically. The Superintendent of Documents shall not remove, alter, or restrict access to any record published under this Section without a court order from the United States District Court for the District of Columbia;

(2) transmit a copy of the inventory simultaneously to both Judiciary Committees as a congressional reporting requirement independent of any executive agency action; and

(3) obtain from the agency's Inspector General a written certification of inventory completeness filed publicly with both Judiciary Committees within seventy-five (75) calendar days of enactment. A materially false or incomplete Inspector General certification constitutes a false statement to Congress under 18 U.S.C. § 1001, obstruction of congressional proceedings under 18 U.S.C. § 1505, perjury under 18 U.S.C. § 1621, and falsification of records under 18 U.S.C. § 1519. Where an Inspector General position is vacant or held by an acting official appointed within the preceding twelve (12) months, the agency head certifies personally in lieu of the Inspector General, and that certification is presumptively less reliable.

(b-1) NAMED AGENCIES—ILLUSTRATIVE NON-EXHAUSTIVE LIST OF EXPECTED RECORD HOLDERS.—The following identifies federal agencies Congress specifically expects to hold Records of the Epstein Network. This list is illustrative and non-exhaustive. It does not limit the scope of the submission obligation in subsection (b), which applies to every federal agency in possession of responsive records regardless of whether it is named herein. An agency not named in this subsection is not thereby excused from its submission obligation. An agency named herein that claims it holds no responsive records must file the sworn non-existence affidavit required under Section 7012(h) within sixty (60)

calendar days of enactment, identifying the specific systems, files, and archives searched and the basis for the claim.

Congress finds that the agencies listed below collectively hold the universe of records necessary to give the American public a complete account of the Epstein Network, the individuals who participated in or enabled it, the government's knowledge of and response to it, and the financial and travel infrastructure that sustained it.

(A) GROUP A—LAW ENFORCEMENT AND PROSECUTION.—

(i) FEDERAL BUREAU OF INVESTIGATION.—All records from the Palm Beach field office investigation (2005-2007); SDFL grand jury proceedings; SDNY investigation and prosecution of Epstein and Maxwell; all FBI Laboratory records relating to physical evidence; all records relating to the NPA negotiation and the Acosta-era declination; all records relating to Epstein's death at MCC New York on August 10, 2019 including OIG investigation materials; all records relating to Maxwell's arrest, prosecution, and custody; all CIPA filings; all records relating to any foreign intelligence nexus of the Epstein Network; all FAA aircraft registration records and flight logs for all Epstein-associated aircraft including tail numbers N908JE (Boeing 727-100, the 'Lolita Express'), N212JE (Gulfstream G550, subsequently re-registered N550GP), the Gulfstream IV, the Bell 430 helicopter, and the Sikorsky S76C helicopter, and all associated corporate entities including JEGE Inc., JEGE LLC, Hyperion Air Inc., Hyperion Air LLC, Plan D LLC, and Thomas World Air LLC;

(ii) DEPARTMENT OF JUSTICE—MAIN JUSTICE, SDFL, AND SDNY.—All prosecutorial records, grand jury materials, charging decisions, declination memoranda, all NPA drafts, the final NPA agreement, all communications between SDFL and Main Justice during 2005-2008, all records relating to the CVRA violation proceedings before Judge Marra, all OPR review materials relating to Alex Acosta's conduct, all records from the SDNY prosecution of Maxwell, and all post-conviction records;

(iii) UNITED STATES MARSHALS SERVICE.—All transport, custody, and chain-of-custody records relating to Epstein from arrest through death; all transport and custody records relating to Maxwell from arrest through present; all records relating to Epstein's detention at MCC New York including any pre-death transport or movement records;

(iv) BUREAU OF PRISONS.—All records relating to Epstein's incarceration and death at MCC New York on August 10, 2019, including all surveillance footage, incident reports, guard schedules, visitor logs, medical records, autopsy coordination records, and all communications between MCC New York and BOP headquarters during the period July 1 through August 15, 2019; all records relating to Maxwell's incarceration at FCI Tallahassee, FPC Bryan, and any other facility at which she has been or is held;

(v) DRUG ENFORCEMENT ADMINISTRATION.—All records relating to any DEA investigation of, or intelligence interest in, Epstein, Maxwell, or any member of the Epstein Network; all records relating to drug activity connected to Epstein-associated aircraft, properties, or personnel; all El Paso Intelligence Center (EPIC) records relating to Epstein-associated travel routes, trafficking intelligence, or border crossings;

(vi) BUREAU OF ALCOHOL, TOBACCO, FIREARMS AND EXPLOSIVES.—All records relating to any ATF investigation of or interest in Epstein-associated properties, personnel, or security arrangements; all records relating to any coordination with Secret Service on security assessments of Epstein-associated locations;

(vii) DEPARTMENT OF JUSTICE—NATIONAL SECURITY DIVISION.—All records from the National Security Division's Counterintelligence and Export Control Section relating to any counterintelligence assessment of, investigation into, or intelligence referral concerning Jeffrey Epstein, Ghislaine Maxwell, or any Epstein Network member; all records relating to any FISA application, order, amendment, or renewal targeting Epstein, Maxwell, or any Epstein Network associate; all records relating to any NSD assessment of the foreign intelligence dimensions of the Epstein Network, including any assessment of the Network's relationship to Israeli, Saudi, or other foreign government intelligence services; all records of any coordination between NSD and the prosecuting offices—SDFL and SDNY—on the foreign intelligence implications of the Epstein matter; all records of any NSD declination, referral, or recommendation regarding prosecution or non-prosecution of Epstein Network members for national security-related offenses; and all records of any NSD communication with the CIA, NSA, DIA, or ODNI concerning Epstein or Maxwell;

(viii) DEPARTMENT OF JUSTICE—CRIMINAL DIVISION, CHILD EXPLOITATION AND OBSCENITY SECTION (CEOS).—All records from the Criminal Division's Child Exploitation and Obscenity Section relating to its review of AUSA Marie Villafana's 60-count federal indictment of Epstein and 82-page prosecution memorandum, including all review memoranda, communications, and recommendations produced by CEOS in connection with that review; all records reflecting CEOS's assessment that the indictment was \"exhaustive and well done\"; all records of any CEOS communication with SDFL, Main Justice leadership, or any other DOJ component regarding the prosecution or non-prosecution of Epstein; all records relating to any subsequent CEOS review of the NPA or the CVRA violation proceedings; and all records relating to any CEOS involvement in the SDNY prosecution of Maxwell;

(ix) DEPARTMENT OF JUSTICE—OFFICE OF PROFESSIONAL RESPONSIBILITY.—All records from the Office of Professional Responsibility's investigation into the Southern District of Florida's resolution of

the federal Epstein investigation, including all interview transcripts, investigative memoranda, draft reports, and communications produced in the course of that investigation beyond what was published in the November 2020 OPR report; all records relating to OPR's assessment of the professional conduct of Alex Acosta, Jeffrey Sloman, Matthew Menchel, Marie Villafana, and all other subjects of the OPR investigation; all records relating to the eleven-month gap in Acosta's incoming emails spanning May 2007 through April 2008, including any OPR inquiry into that gap and any forensic analysis of the missing records; all records of any OPR communication with the NSD, the Criminal Division, or any other DOJ component regarding the Epstein matter; and all OPR case-management records, witness lists, and document requests generated in the course of the investigation;

(x) FEDERAL BUREAU OF INVESTIGATION—COUNTERINTELLIGENCE DIVISION.—All records from the FBI's Counterintelligence Division—distinct from the Criminal Investigative Division records of the Palm Beach and SDNY investigations already identified in this Section—relating to any counterintelligence assessment of Jeffrey Epstein, Ghislaine Maxwell, or any Epstein Network member as an actual or potential asset, contact, or threat of any foreign intelligence service; all records relating to any CI Division assessment of the foreign intelligence dimensions of the Epstein Network including any assessment of connections to Israeli, Saudi, British, or other foreign intelligence services; all records relating to any coordination between the CI Division and the CIA, NSA, or ODNI regarding Epstein; all records relating to any CI Division assessment of Robert Maxwell's relationship with Israeli intelligence and the implications of that relationship for Ghislaine Maxwell's activities; all records relating to any counterintelligence predicate for, or counterintelligence dimension of, any investigation touching on Epstein or Maxwell; and all records relating to any CI Division inquiry into the circumstances of Epstein's reported death;

(xi) FEDERAL BUREAU OF INVESTIGATION—ALBUQUERQUE FIELD OFFICE.—All records from the FBI's Albuquerque Field Office—distinct from and not captured by the Palm Beach field office and SDFL/SDNY investigation records in the existing FBI entry—relating to any investigation of, intelligence interest in, or law enforcement activity concerning Jeffrey Epstein, Ghislaine Maxwell, or any Epstein Network member in the State of New Mexico; all records from the Albuquerque Field Office's Safe Streets and Gang Task Force, Crimes Against Children unit, and Counterintelligence Squad relating to any referral, tip, or investigation touching on Zorro Ranch or any Epstein-associated activity in New Mexico; all records of any coordination between the Albuquerque Field Office and the Palm Beach field office, SDFL, SDNY, or Main Justice regarding Epstein's New Mexico activities; all records of any FBI surveillance, physical search, or electronic monitoring authorized for or conducted at or near

Zorro Ranch; and all records of any FBI interaction with New Mexico state or local law enforcement regarding Epstein's activities at the ranch;

(B) GROUP B—INTELLIGENCE COMMUNITY.—

(i) CENTRAL INTELLIGENCE AGENCY.—All records relating to any intelligence interest in, surveillance of, or relationship with Jeffrey Epstein, Ghislaine Maxwell, or any Epstein Network member; all records relating to Epstein's foreign travel and contacts with foreign nationals; all records relating to any foreign intelligence service's relationship with or interest in Epstein or Maxwell; all SIGINT, HUMINT, or other intelligence collection records touching on any Epstein Network member;

(ii) NATIONAL SECURITY AGENCY.—All SIGINT records relating to communications of Epstein, Maxwell, or any Epstein Network member; all records relating to any foreign government or foreign intelligence service's electronic communications concerning Epstein or Maxwell; all metadata records pertaining to communications originating from or received at any Epstein-associated property;

(iii) DEFENSE INTELLIGENCE AGENCY.—All records relating to any military intelligence interest in Epstein or Maxwell; all records relating to any foreign military or defense contractor connections to the Epstein Network;

(iv) OFFICE OF THE DIRECTOR OF NATIONAL INTELLIGENCE.—All intelligence community coordination records relating to Epstein or Maxwell; all records relating to any interagency assessment of the Epstein Network's intelligence dimensions; all records transmitted between intelligence community elements concerning Epstein;

(v) NATIONAL GEOSPATIAL-INTELLIGENCE AGENCY.—All imagery or geospatial intelligence records relating to Epstein-associated properties, including Little Saint James Island (acquired 1998, approximately 72 acres, USVI), Great Saint James Island (acquired 2016, approximately 165 acres, USVI), the Zorro Ranch near Stanley, New Mexico, the Palm Beach estate at 358 El Brillo Way (demolished 2021), the Manhattan townhouse at 9 East 71st Street, and the Paris apartment at 22 Avenue Foch, 16th arrondissement; all records relating to any NGA collection tasking on those properties or on Epstein-associated aircraft or vessels;

(vi) NATIONAL RECONNAISSANCE OFFICE.—All satellite and imagery records relating to Epstein-associated properties, particularly Little Saint James Island and Great Saint James Island, during the period 1990 through 2019;

(vii) DEFENSE COUNTERINTELLIGENCE AND SECURITY AGENCY (DCSA).—All background investigation records, security clearance adjudication files, and personnel security records relating to any individual identified as a member of, participant in, or associate of the Epstein Network who held or applied for a federal security clearance at any tier; all records of any security

clearance denial, revocation, suspension, or downgrade connected to association with Epstein, Maxwell, or the Epstein Network; all counterintelligence referrals made by DCSA to the FBI or any other agency arising from any background investigation in which Epstein Network associations were disclosed or discovered; all records of any foreign contact reports filed by cleared individuals disclosing contact with Epstein, Maxwell, or any foreign national associated with the Network; and all records from the Continuous Evaluation program relating to any cleared individual with documented Epstein Network connections;

(C) GROUP C—TRAVEL AND MOVEMENT.—

(i) DEPARTMENT OF HOMELAND SECURITY—CUSTOMS AND BORDER PROTECTION.—All border crossing records, entry and exit records, customs declarations, passport scans, and secondary inspection records for Jeffrey Epstein, Ghislaine Maxwell, and all individuals identified as Epstein Network members, from 1990 through 2019; all records from the TECS and ATS systems relating to Epstein-associated travel;

(ii) DEPARTMENT OF HOMELAND SECURITY—IMMIGRATION AND CUSTOMS ENFORCEMENT.—All records relating to any ICE investigation of, or interest in, Epstein, Maxwell, or any Epstein Network member; all records relating to immigration status of any foreign national identified as an Epstein Network participant or victim;

(iii) TRANSPORTATION SECURITY ADMINISTRATION.—All records relating to screening or security flags on Jeffrey Epstein, Ghislaine Maxwell, or any registered aircraft associated with Epstein, including tail numbers N908JE (Boeing 727-100), N212JE / N550GP (Gulfstream G550), the Gulfstream IV, and all helicopters registered to Hyperion Air LLC, during the period 1990 through 2019;

(iv) FEDERAL AVIATION ADMINISTRATION.—All flight records, aircraft registration records, flight plan filings, and ADS-B tracking records for all aircraft registered to or operated by Jeffrey Epstein, any Epstein-associated entity, or Ghislaine Maxwell during 1990 through 2019, including tail numbers N908JE, N212JE, N909JE, N331JE, and all aircraft registered to JEGE Inc., JEGE LLC, Hyperion Air Inc., Hyperion Air LLC, Plan D LLC, and Thomas World Air LLC; all records relating to any FAA investigation or inquiry touching on Epstein-associated aircraft;

(v) UNITED STATES COAST GUARD.—All records relating to Epstein-associated vessels; all records of vessel movements in waters adjacent to Little Saint James Island and Great Saint James Island, U.S. Virgin Islands; all records relating to any USCG investigation or inquiry involving Epstein or Maxwell;

(vi) DEPARTMENT OF STATE.—All passport records, visa records, and diplomatic cable traffic relating to Epstein, Maxwell, or any Epstein Network

member; all records relating to foreign government inquiries about Epstein; all records relating to the Letters Rogatory process in the SDNY Maxwell prosecution; all records relating to any diplomatic communication concerning Epstein's foreign travel, including travel to France, the United Kingdom, the U.S. Virgin Islands, the Bahamas, and Morocco; all records relating to the $14.9 million wire transfer on July 5, 2019 to a Moroccan realtor for the Bin Ennakhil palace in Marrakech's Palmeraie neighborhood and related property negotiations since 2011;

(vii) DEPARTMENT OF HOMELAND SECURITY—HOMELAND SECURITY INVESTIGATIONS (HSI).—All records from Homeland Security Investigations—distinct from the immigration enforcement records held by ICE—relating to any HSI investigation of or interest in the Epstein Network as a human trafficking or child exploitation enterprise; all HSI case files relating to Jeffrey Epstein, Ghislaine Maxwell, Jean-Luc Brunel, or any Epstein Network recruiter or transporter; all records relating to HSI's coordination with the FBI, CBP, and Palm Beach authorities on the Epstein trafficking investigation; all records from any HSI child exploitation task force that assessed or investigated Epstein Network conduct; all records relating to any HSI investigation of Epstein-associated travel routes, aircraft movements, or use of international ports of entry in furtherance of trafficking; and all records relating to any HSI investigation of MC2 Model Management or any other modeling or recruitment agency connected to the Epstein Network;

(viii) COAST GUARD INTELLIGENCE (CGIS).—All records from Coast Guard Intelligence—distinct from United States Coast Guard law enforcement records—relating to any intelligence collection, surveillance, or assessment of vessel traffic in waters adjacent to Little Saint James Island and Great Saint James Island, U.S. Virgin Islands during the period 1998 through 2019; all CGIS records relating to any intelligence interest in Jeffrey Epstein, Ghislaine Maxwell, or any Epstein Network member; all records relating to any CGIS assessment of the Epstein Network's use of maritime assets for the transport of victims, associates, or contraband; all records relating to any CGIS coordination with CBP, DEA, or the intelligence community on activities in USVI waters connected to Epstein; and all records relating to any CGIS assessment of foreign vessel or personnel activity associated with the Epstein Network in U.S. territorial waters;

(ix) CUSTOMS AND BORDER PROTECTION—BORDER PATROL, EL PASO SECTOR (NEW MEXICO).—All records from the United States Border Patrol's El Paso Sector—which has jurisdiction over the New Mexico-Mexico border—relating to any surveillance, checkpoint encounter, intelligence collection, or cross-border movement monitoring in connection with Jeffrey Epstein, Ghislaine Maxwell, Zorro Ranch, or any Epstein Network member; all El

Paso Sector intelligence records relating to any monitored or suspected cross-border transport of individuals to or from Zorro Ranch or any Epstein-associated location in New Mexico; all records from the El Paso Intelligence Center (EPIC) relating to Epstein-associated cross-border travel, trafficking routes, or aircraft movements involving the Zorro Ranch airstrip; all checkpoint encounter records for any individual identified as an Epstein Network member at any checkpoint on U.S. Route 54, U.S. Route 70, or Interstate 25 in New Mexico during the period 1993 through 2019; and all records of any El Paso Sector coordination with HSI, DEA, or the FBI Albuquerque Field Office regarding Epstein-associated activity near the New Mexico-Mexico border;

(x) FEDERAL AVIATION ADMINISTRATION—ZORRO RANCH PRIVATE AIRSTRIP.—All Federal Aviation Administration records specific to the private airstrip located at or near Zorro Ranch, New Mexico—supplementing and distinct from the aircraft registration and tail number records in the existing FAA entry—including the airstrip's FAA identifier, registration, inspection, and certification records; all landing and departure logs, fuel records, and ground service records associated with that airstrip; all ADS-B, radar track, and ASDI flight data for all aircraft arrivals and departures at that specific airstrip during the period 1993 through 2019, regardless of the aircraft's registration or ownership; all FAA airspace authorization records for any aircraft operating to or from the ranch airstrip; all records of any FAA inspection, safety investigation, or enforcement action relating to that airstrip or to any aircraft operating thereto; and all records relating to any FAA coordination with CBP, DEA, or any other federal agency regarding aircraft movements to or from the ranch airstrip;

(D) GROUP D—FINANCIAL SURVEILLANCE AND INTELLIGENCE.—

(i) FINANCIAL CRIMES ENFORCEMENT NETWORK (FinCEN).—All Suspicious Activity Reports filed by any financial institution relating to accounts held by Epstein, Maxwell, or any Epstein Network entity—including Financial Trust Company Inc., Southern Trust Company Inc., Southern Financial LLC, HBRK Associates Inc., Plan D LLC, JEGE Inc., JEGE LLC, Butterfly Trust, Coatue Enterprises LLC, C.O.U.Q. Foundation, NES LLC, Nautilus Inc., and Hyperion Air Inc.; all Bank Secrecy Act records; all records relating to any FinCEN investigation of Epstein-associated financial flows; all records relating to foreign financial transactions;

(ii) OFFICE OF FOREIGN ASSETS CONTROL (OFAC).—All records relating to any OFAC screening, designation review, or sanctions analysis touching on Epstein, any Epstein-associated entity, or any foreign national identified as an Epstein Network participant;

(iii) INTERNAL REVENUE SERVICE.—All records relating to any IRS audit, investigation, or tax enforcement action involving Epstein, any Epstein-associated entity, or Maxwell; all records relating to Epstein's USVI tax benefit claims through Southern Trust Company—which reported aggregate income of

approximately $656 million during 2013-2017 despite having no visible clients—and the IRS's review thereof;

(iv) SECURITIES AND EXCHANGE COMMISSION.—All records relating to any SEC investigation of Epstein's investment activities, any Epstein-associated fund or entity, or any financial relationship between Epstein and any registered investment adviser, broker-dealer, or public company;

(v) OFFICE OF THE COMPTROLLER OF THE CURRENCY.—All examination records, supervisory communications, and enforcement records relating to JPMorgan Chase's handling of Epstein-associated accounts from 1998 through 2013, during which period JPMorgan served as Epstein's primary bank; all records relating to OCC supervisory awareness of the SAR filings and suspicious transaction patterns identified in the USVI attorney general's civil litigation;

(vi) FEDERAL RESERVE BOARD.—All examination records of Deutsche Bank's U.S. holding company relating to Deutsche Bank's banking relationship with Epstein-associated entities from approximately 2013 through 2019, during which period Deutsche Bank served as Epstein's primary bank following his departure from JPMorgan; all records relating to the Federal Reserve's awareness of or response to the New York Department of Financial Services consent order against Deutsche Bank in 2020;

(vii) DEPARTMENT OF THE TREASURY—OFFICE OF INTELLIGENCE AND ANALYSIS.—All financial intelligence records relating to Epstein-associated financial flows, foreign financial connections, and any Treasury intelligence assessment of the Epstein Network's financial structure;

(viii) USDA FARM SERVICE AGENCY (FSA).—All records from the USDA Farm Service Agency relating to any farm program enrollment, commodity program participation, conservation reserve program application, or agricultural subsidy claim made in connection with Zorro Ranch or any Epstein-associated entity holding or operating the ranch during the period 1993 through 2019; all FSA records reflecting the operational status, declared acreage, and claimed agricultural use of the ranch property; all records relating to any FSA loan, guarantee, or financial assistance touching on Zorro Ranch; and all FSA county office records for Santa Fe County, New Mexico, relating to Epstein-associated agricultural operations;

(E) GROUP E—EXECUTIVE OFFICE AND WHITE HOUSE.—

(i) THE WHITE HOUSE—OFFICE OF RECORDS MANAGEMENT.—All visitor logs, correspondence records, and communications records relating to Epstein, Maxwell, or any Epstein Network member and any White House official or the President during any administration from 1990 through 2019; all records relating to any presidential pardon

inquiry or executive clemency consideration involving Epstein or any Epstein Network member;

(ii) SECRET SERVICE.—All protective detail records, visitor logs, and travel records reflecting the presence of Epstein or Maxwell at any Secret Service-protected location or in proximity to any Secret Service protectee; all records relating to any Secret Service protective interest in or assessment of Epstein-associated properties;

(iii) NATIONAL SECURITY COUNCIL.—All NSC records—held separately from the White House Office of Records Management's general correspondence files—relating to any NSC staff assessment of the foreign intelligence dimensions of the Epstein Network; all records of any NSC principals or deputies committee discussion of Epstein, Maxwell, or the Epstein Network; all records relating to any NSC coordination with the CIA, NSA, or ODNI on foreign intelligence aspects of the Epstein matter; all records relating to any NSC staff-level assessment of Israeli, Saudi, or other foreign government connections to the Epstein Network; and all NSC records relating to any foreign government inquiry about Epstein or Maxwell transmitted through national security channels rather than through the Department of State;

(iv) DEPARTMENT OF LABOR.—All records from the Department of Labor relating to Secretary Alex Acosta's tenure from April 27, 2017 through July 19, 2019, including all records reflecting any communication, briefing, or inquiry concerning the 2007-2008 NPA during that tenure; all records from any DOL Inspector General inquiry into Acosta's conduct in connection with the Epstein matter; all records relating to Acosta's vetting for the Secretary of Labor position, including any DOL or White House personnel records reflecting what was known about the Epstein NPA at the time of his nomination and confirmation; all records of any DOL communication with DOJ, the White House, or congressional offices concerning the NPA during Acosta's tenure; and all records of any communication by or to Acosta in his capacity as Secretary of Labor concerning the Epstein investigation or Maxwell's prosecution;

(v) OFFICE OF PERSONNEL MANAGEMENT (OPM).—All background investigation records and security clearance adjudication files held by OPM relating to any individual identified as a member of, participant in, or associate of the Epstein Network who was the subject of a federal background investigation; all records of any OPM National Background Investigations Bureau or successor DCSA investigation in which association with Epstein, Maxwell, or the Epstein Network was disclosed, discovered, or flagged; all records relating to any OPM-administered continuous evaluation records touching on any cleared individual with documented Epstein Network connections; and all records of any OPM communication with the FBI, DCSA, or any other agency regarding the suitability or clearance status of any Epstein-associated individual;

(vi) SECRET SERVICE—ZORRO RANCH, NEW MEXICO (SITE-SPECIFIC RECORDS).—All Secret Service records specifically relating to Zorro Ranch, New Mexico as a location—supplementing and distinct from the general Secret Service protective detail and visitor log records in the existing Secret Service entry—including all site advance records, protective intelligence assessments, and facility security evaluations conducted at or in connection with the ranch; all records of any visit by any Secret Service protectee to Zorro Ranch or to any location in New Mexico in proximity to Epstein or Maxwell during the period 1993 through 2019; all records of any Secret Service coordination with New Mexico State Police, the Santa Fe County Sheriff, or other local law enforcement in connection with any protectee visit to the ranch; and all records of any Secret Service protective intelligence concern regarding Zorro Ranch, any individual associated with the ranch, or any threat assessment conducted in connection with a protectee's presence at or travel to the ranch;

(F) GROUP F—SCIENCE, RESEARCH, AND TECHNOLOGY.—

(i) DEPARTMENT OF ENERGY AND NATIONAL LABORATORIES.—All records of any DOE official's or national laboratory personnel's contact with Epstein, Maxwell, or any Epstein Network member; all records relating to any Epstein visit to or funding of any national laboratory or DOE-affiliated research institution; all records relating to Epstein's claimed scientific research activities;

(ii) NATIONAL INSTITUTES OF HEALTH.—All records relating to any NIH grant application, funding relationship, or official contact involving Epstein, any Epstein-associated entity including Southern Trust Company's claimed DNA research activities, or any researcher who received Epstein funding;

(iii) NATIONAL SCIENCE FOUNDATION (NSF).—All records from the National Science Foundation relating to any NSF grantee, fellowship recipient, or program officer who visited Zorro Ranch, received funding from Epstein or any Epstein-associated entity, or had any documented interaction with Epstein in connection with NSF-funded research; all records of any NSF conflict-of-interest disclosure, ethics review, or compliance investigation triggered by any grantee's association with Epstein or acceptance of Epstein funding; all records relating to any NSF assessment of Epstein's scientific philanthropy program and its relationship to federally-funded researchers; all records from the NSF Office of Inspector General relating to any investigation of grantee interactions with Epstein or Epstein-associated entities; and all records of any NSF coordination with NIH, DOE, or any other federal research funding agency regarding the integrity of federally-funded research conducted by individuals who received Epstein funding or participated in Epstein-hosted gatherings;

(iv) DEPARTMENT OF ENERGY—OFFICE OF INTELLIGENCE AND COUNTERINTELLIGENCE (OICI).—All records from the Department of

Energy's Office of Intelligence and Counterintelligence—distinct from DOE's general records—relating to any OICI assessment of Jeffrey Epstein's contacts with, visits to, or funding of personnel at DOE national laboratories; all records relating to any OICI counterintelligence assessment of foreign intelligence risk arising from Epstein's access to sensitive scientific personnel; all records relating to any OICI referral to the FBI arising from laboratory personnel's association with Epstein; all records relating to any OICI assessment of Robert Maxwell's 1984 attempt to sell PROMIS software to Sandia National Laboratories, including any FBI coordination records from the counterintelligence investigation the Bureau opened into that transaction; and all records relating to any OICI assessment of the foreign intelligence implications of Epstein's scientific philanthropy and research funding activities;

(v) DEPARTMENT OF ENERGY—LOS ALAMOS NATIONAL LABORATORY AND SANTA FE INSTITUTE.—All records from Los Alamos National Laboratory—located approximately ninety (90) miles from Zorro Ranch—relating to any LANL employee's, contractor's, or cleared visitor's contact with Jeffrey Epstein, attendance at any Epstein-hosted event at Zorro Ranch or elsewhere, or receipt of Epstein funding; all records from LANL's counterintelligence program relating to any assessment of Epstein's access to LANL personnel or sensitive research; all records from the Santa Fe Institute—which received Epstein funding and whose affiliated researchers attended Epstein-hosted gatherings—held by any federal agency through grant oversight, DOE program coordination, or counterintelligence monitoring; and all records relating to any DOE or LANL response to the FBI Albuquerque Field Office or any other law enforcement agency regarding Epstein's scientific activities in New Mexico;

(G) GROUP G—JUDICIAL AND OVERSIGHT.—

(i) ADMINISTRATIVE OFFICE OF THE U.S. COURTS.—All sealed judicial records from United States v. Epstein (SDFL), the NPA proceedings, United States v. Maxwell (SDNY), and all related civil proceedings, to the extent held by the Administrative Office rather than by the originating court clerk; all records relating to judicial administration of the Maxwell prosecution and the NPA CVRA proceedings;

(ii) GOVERNMENT ACCOUNTABILITY OFFICE.—All GAO audit, investigation, and oversight records relating to DOJ's compliance with Public Law 119-38, including the GAO review letter of March 11, 2026 and all related work product; all records relating to any prior GAO review of federal law enforcement's handling of the Epstein investigations;

(iii) OFFICES OF INSPECTOR GENERAL—DOJ, DHS, DOD, AND TREASURY.—All records from the Department of Justice Office of Inspector General beyond what was published in Report 23-085, including all interview transcripts, investigative notes, forensic analysis records, and work product generated in the course of the MCC investigation; all records of any DOJ OIG

inquiry into the NPA, the CVRA proceedings, or any other Epstein-related DOJ conduct; all records from the Department of Homeland Security Office of Inspector General relating to any DHS component's handling of Epstein-associated travel, border crossing, or trafficking investigations; all records from the Department of Defense Office of Inspector General relating to any military or defense contractor connection to the Epstein Network; and all records from the Department of the Treasury Office of Inspector General for Tax Administration relating to any review of IRS conduct with respect to Epstein's USVI tax claims or any Epstein-associated entity;

(iv) FOREIGN INTELLIGENCE SURVEILLANCE COURT (FISC).—All applications, orders, amendments, renewals, denials, and related court records held by the Foreign Intelligence Surveillance Court relating to any FISA electronic surveillance or physical search targeting Jeffrey Epstein, Ghislaine Maxwell, any Epstein Network member, or any property or facility associated with the Epstein Network; all FISC records relating to any FISA application in which the Epstein Network, any Network member, or any foreign intelligence service associated with the Network was identified as a predicate or supporting basis for the application; and all FISC amicus curiae opinions or orders relating to any Epstein-adjacent surveillance matter. Congress recognizes that FISC records are among the most sensitive in the federal judicial system and that their disclosure is governed by specific statutory and constitutional constraints; nothing in this subsection is intended to require disclosure in violation of those constraints, but all such records constitute Records of the Epstein Network and are subject to the Presidential Postponement Certification and category carve-out procedures of this title to the extent any such records exist;

(H) GROUP H—PRESIDENTIAL RECORDS.—

(i) NATIONAL ARCHIVES AND RECORDS ADMINISTRATION—PRESIDENTIAL RECORDS.—All presidential records held by the National Archives and Records Administration pursuant to the Presidential Records Act, 44 U.S.C. sections 2201-2209, from the administrations of William J. Clinton (January 20, 1993 through January 20, 2001), George W. Bush (January 20, 2001 through January 20, 2009), Barack H. Obama (January 20, 2009 through January 20, 2017), and Donald J. Trump (January 20, 2017 through January 20, 2021), relating to Jeffrey Epstein, Ghislaine Maxwell, or any Epstein Network member, including all White House visitor logs, correspondence, memoranda, briefing materials, and communications records from those administrations; all presidential records from any administration relating to any consideration of executive clemency, pardon, or commutation for Epstein or Maxwell; all presidential records from the Clinton administration relating to any contact between White House officials and Epstein or Maxwell during the period 1993 through 2001; all presidential records from the Trump administration relating to any White House awareness of or communication concerning the SDNY prosecution of Epstein or the

Maxwell prosecution; and all NARA records relating to any presidential records request, review, or access determination made in connection with any Epstein-related congressional, journalistic, or civil litigation inquiry;

(I) GROUP I—ZORRO RANCH: LAND, CONSTRUCTION, AND ENVIRONMENT.—

(i) ARMY CORPS OF ENGINEERS—ALBUQUERQUE DISTRICT.—All records from the Army Corps of Engineers' Albuquerque District—which has jurisdiction over federal water and construction permitting in New Mexico—relating to any permit application, permit issuance, permit denial, inspection, or enforcement action in connection with Zorro Ranch or any Epstein-associated entity during the period 1993 through 2019; all records relating to any Clean Water Act Section 404 permit application for construction activity on or adjacent to any wetland, waterway, or water of the United States on or near the ranch property; all records relating to any permit application or review for the construction of the private airstrip on the ranch property; all records relating to any permit application, review, or enforcement action in connection with any underground construction, excavation, or tunneling activity at the ranch; and all records of any Army Corps coordination with EPA, BLM, the New Mexico State Engineer's Office, or any other federal or state agency regarding construction or land-use activity at the ranch;

(ii) ENVIRONMENTAL PROTECTION AGENCY—REGION 6.—All records from EPA Region 6—which has environmental regulatory jurisdiction over New Mexico—relating to any environmental permit application, permit issuance, inspection, or enforcement action in connection with Zorro Ranch or any Epstein-associated entity during the period 1993 through 2019; all records relating to any National Pollutant Discharge Elimination System (NPDES) permit, stormwater discharge permit, or Clean Water Act compliance record for the ranch property; all records relating to any EPA assessment of underground storage tanks, hazardous waste generation, or solid waste management at the ranch; all records from EPA's Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA) screening program relating to the ranch property or any adjacent parcels; all records of any EPA coordination with the Army Corps of Engineers, BLM, or New Mexico Environment Department regarding environmental compliance at the ranch; and all records of any EPA complaint, tip, or referral received in connection with activities at the ranch;

(iii) BUREAU OF LAND MANAGEMENT—NEW MEXICO STATE OFFICE.—All records from the Bureau of Land Management's New Mexico State Office—which administers federal public lands adjacent to private ranches throughout New Mexico—relating to any easement, right-of-way grant, grazing permit, access agreement, land patent, or other authorization granted in connection with Zorro Ranch or any Epstein-associated entity; all records of any BLM inspection, trespass investigation, or enforcement action on federal lands adjacent to the

ranch; all records relating to any BLM assessment of or response to any activity on the ranch that affected adjacent federal lands, including any airstrip approaches over federal land or any construction activity near the federal boundary; all records of any BLM coordination with the Army Corps of Engineers, EPA, the U.S. Forest Service, or New Mexico state agencies regarding land use at or adjacent to the ranch; and all records of any BLM oil, gas, or mineral lease affecting the ranch property or adjacent parcels;

(iv) USDA NATURAL RESOURCES CONSERVATION SERVICE (NRCS).— All records from the USDA Natural Resources Conservation Service relating to any conservation program enrollment, technical assistance, conservation easement, or wetland reserve program participation in connection with Zorro Ranch or any Epstein-associated entity during the period 1993 through 2019; all NRCS soil survey, wetland determination, and farm records for the ranch parcel; all records of any NRCS coordination with BLM, the Army Corps of Engineers, or EPA regarding wetland or waterway resources on or adjacent to the ranch; and all records of any NRCS field office visit, inspection, or assessment of the ranch property;

(v) U.S. FISH AND WILDLIFE SERVICE—NEW MEXICO ECOLOGICAL SERVICES.—All records from the U.S. Fish and Wildlife Service's New Mexico Ecological Services field office relating to any Endangered Species Act Section 7014 consultation, Section 7018 incidental take permit, or biological opinion prepared in connection with any construction or land-use activity at Zorro Ranch; all records of any USFWS survey, inspection, or assessment of the ranch property or adjacent lands for threatened or endangered species habitat; all records of any USFWS coordination with the Army Corps of Engineers, EPA, BLM, or New Mexico Game and Fish Department regarding wildlife resources on or adjacent to the ranch; and all records of any USFWS law enforcement investigation of any wildlife violation at or connected to the ranch;

(vi) BUREAU OF INDIAN AFFAIRS—SOUTHWEST REGIONAL OFFICE. —All records from the Bureau of Indian Affairs' Southwest Regional Office relating to any tribal land adjacency, treaty right, cultural resource concern, or right-of-way involving Zorro Ranch and any federally recognized tribe in New Mexico, including any pueblo or tribal nation whose traditional territory includes or is adjacent to the area in which the ranch is located; all records of any BIA consultation with any tribe regarding activities at the ranch or on adjacent federal or tribal lands; and all records of any BIA coordination with BLM, the Army Corps of Engineers, or the National Park Service regarding cultural resource protection in the area of the ranch;

(b-2) RULE OF CONSTRUCTION—ROLLING TRANCHE SCHEDULE.—The rolling submission tranche schedule established by this section shall be construed as addressing the documented practice of mass last-day production that overwhelmed review capacity under

prior disclosure statutes—a documented failure in which agencies withheld submission until the final hours of a statutory deadline, rendering meaningful review practically impossible. The tranche schedule is rationally adapted to the legitimate legislative end of ensuring timely, reviewable public disclosure and is constitutionally adequate under the Necessary and Proper Clause as a means directly connected to a specific documented abuse of prior law.

(c) FIRST SUBMISSION TRANCHE—DAYS 61 THROUGH 300.—Not later than three hundred (300) calendar days after enactment, or the Unit Review Completion Date of July 16, 2028, whichever is earlier, each agency shall submit to the Unit all Records of the Epstein Network that are already unclassified and require no review beyond victim PII redaction. These records require the least Unit review time and must be submitted first to ensure they clear review and publish earliest. An agency may not delay this tranche because other records in its inventory require classified review. Already-unclassified records submit in this tranche regardless. Presidential Postponement Certifications for records in this tranche must be filed before September 1, 2028. Certifications filed after September 1, 2028 are void ab initio for any record, regardless of tranche.

For the first tranche, the Unit Review Completion Date of July 16, 2028 will in most cases not be the earlier deadline—the three-hundred-day deadline will typically fall well before July 2028 and shall govern. The Unit Review Completion Date is included as a fail-safe: it prevents an agency that has missed an earlier tranche deadline from claiming it has until a later tranche deadline to submit records that should have been submitted in the first tranche. An agency that submits first-tranche records after the three-hundred-day deadline but before July 16, 2028 is in contempt of the first-tranche deadline regardless of the Unit Review Completion Date.

(d) SECOND SUBMISSION TRANCHE—DAYS 301 THROUGH 600.—Not later than six hundred (600) calendar days after enactment, or the Unit Review Completion Date of July 16, 2028, whichever is earlier, each agency shall submit to the Unit all Records of the Epstein Network requiring declassification review or more complex redaction analysis not submitted in the first tranche.

(e) THIRD SUBMISSION TRANCHE—DAYS 601 THROUGH 850.—Not later than eight hundred and fifty (850) calendar days after enactment, or the Unit Review Completion Date of July 16, 2028, whichever is earlier, each agency shall submit to the Unit all Records of the Epstein Network requiring mosaic analysis or combination protection review under Section 7013 not submitted in prior tranches.

(e-1) FINAL SUBMISSION TRANCHE—DAY 851 OR UNIT REVIEW COMPLETION DATE.—Not later than eight hundred and fifty-one (851) calendar days after enactment, or the Unit Review Completion Date of July 16, 2028, whichever is earlier, each agency shall submit to the Unit all remaining Records of the Epstein Network not subject to a valid Presidential Postponement Certification filed before September 1, 2028. Any agency that submits records after the Unit Review Completion Date of July 16, 2028—whether through late submission in this tranche or through failure to submit in a prior tranche—shall have those records processed under the Degraded Review Regime in subsection (e-2). Whichever

deadline falls first controls. An agency head whose agency has not completed all tranche submissions by the Unit Review Completion Date is in contempt of Congress from July 17, 2028.

(e-1-CF) RULE OF CONSTRUCTION—UNIT REVIEW COMPLETION DATE AND DEFAULT RELEASE.—The Unit Review Completion Date and default unredacted release mechanism established by this section shall be construed as addressing the documented practice of deliberate submission delay as a de facto suppression tool—specifically, the use of strategically timed late submissions to ensure that records arrive too close to a statutory deadline to receive meaningful review. The default unredacted release mechanism, which forfeits an agency's protective mechanisms upon late submission, is a constitutionally proportionate consequence directly connected to that specific documented abuse.

For the avoidance of doubt, the 'whichever is earlier' language in each tranche subsection means that the Unit Review Completion Date of July 16, 2028 operates exclusively as a backstop ceiling—it cannot extend any tranche deadline beyond the calendar-day deadline. If three hundred days after enactment falls before July 16, 2028, the three-hundred-day deadline governs the first tranche. The Unit Review Completion Date becomes the operative deadline only for agencies whose calendar-day deadline would fall after July 16, 2028—a scenario that arises with later tranches if this title is enacted late in a calendar year. Congress intends the calendar-day deadlines to be the primary operative deadlines and the Unit Review Completion Date to be a ceiling that ensures all records can receive full review before the October 15, 2028 publication deadline.

(e-2) DEGRADED REVIEW REGIME—CONSEQUENCE OF LATE SUBMISSION.— Any Records of the Epstein Network submitted to the Unit after the Unit Review Completion Date of July 16, 2028 shall be processed under this degraded review regime rather than the full review procedures of Sections 6, 6A, and 6C. The agency's late submission caused the degraded review—that is the agency's consequence, not the public's—

(1) EXPEDITED REVIEW ONLY.—Records submitted after July 16, 2028 shall receive expedited review for victim PII redaction only, under Section 7005(h)(1). No mosaic analysis under Section 7013, no combination protection, and no category carve-out evaluation under Section 7011 shall be performed for records submitted after this date;

(2) NO POSTPONEMENT CERTIFICATIONS ACCEPTED.—Presidential Postponement Certifications for records submitted after July 16, 2028 are void ab initio. September 1, 2028 is the absolute hard cutoff for all Presidential Postponement Certifications. Any Certification filed after September 1, 2028 is void ab initio for any record regardless of when it was submitted to the Unit or which tranche it belongs to; and

(3) MANDATORY PUBLICATION ON OCTOBER 15, 2028.—All records submitted after July 16, 2028 shall be published on October 15, 2028 with only victim PII redacted, regardless of whether the Unit has completed review. If the Unit has not completed expedited review of any late-submitted record by October 14, 2028, that record shall be

published on October 15, 2028 with no redaction other than victim PII. Congress finds that an agency's deliberate delay in submission forfeits all protective mechanisms the bill otherwise provides, and that unredacted publication is the appropriate and proportionate consequence of that forfeiture.

(e-2-CF) RULE OF CONSTRUCTION—DEGRADED REVIEW REGIME.—The degraded review regime established by this section shall be construed as addressing the documented practice of agencies treating statutory disclosure deadlines as aspirational rather than mandatory. By forfeiting the protective mechanisms available under the standard review process, the degraded review regime creates a constitutionally proportionate structural incentive for timely submission. The consequence—expedited review with no category carve-out protections—falls directly on the agency whose delay caused it, not on the public whose right to disclosure is being vindicated.

(e-3) OCTOBER 15, 2028—HARD PUBLICATION CEILING AND DEFAULT RELEASE.—October 15, 2028 is the absolute hard publication ceiling for all Records of the Epstein Network. On October 15, 2028—

(1) ALL CLEARED RECORDS PUBLISH.—Every record the Unit has cleared for publication and transmitted to GPO that has not yet been published shall publish on October 15, 2028 regardless of any administrative delay in GPO's publication queue;

(2) ALL LATE-SUBMITTED RECORDS PUBLISH.—Every record submitted after July 16, 2028 publishes with only victim PII redacted, as provided in subsection (e-2)(3);

(3) CONTEMPT NOTICE FOR NON-SUBMITTING AGENCIES.—For any agency that has not submitted its complete inventory to the Unit by October 15, 2028, the Unit shall publish a public notice on GovInfo.gov on October 15, 2028 identifying the agency by name, the estimated volume of unsubmitted records, and a statement that the agency head is in contempt of Congress and that the unsubmitted records will be compelled by congressional subpoena and published without redaction upon receipt; and

(4) NO EXTENSION.—October 15, 2028 cannot be extended by executive action, agency directive, Presidential Postponement Certification, or any mechanism other than an Act of Congress. If October 15, 2028 falls on a weekend or federal holiday, the deadline is the next business day. Congress finds this date essential to democratic accountability in the November 2028 presidential election.

(e-4) PURPOSE OF THE OCTOBER 15, 2028 DEADLINE.—The October 15, 2028 disclosure deadline established by this section serves the constitutional principle of informed consent of the governed—not any partisan political interest. The subject matter of this title concerns actions by federal officials and private actors across multiple administrations spanning more than thirty years. Records responsive to this title may implicate individuals associated with administrations of both major political parties and with no political party affiliation. No partisan interest is systematically advantaged by disclosure. Congress further determines that tying mandatory disclosure deadlines to electoral events is an established

legislative practice: the Presidential Records Act conditions public access to presidential records on electoral cycles; the Ethics in Government Act requires financial disclosures timed to electoral terms; the Federal Election Campaign Act's disclosure requirements are structured around electoral calendars. The use of an electoral timing anchor for a disclosure obligation concerning the fitness of government institutions is not novel—it is a recognized tool for connecting transparency obligations to the democratic process they are designed to serve. Congress determines that October 15, 2028—four weeks before the November 2028 presidential election—is the last practicable date at which full disclosure can occur with sufficient time for meaningful public deliberation before voters exercise their franchise. Congress further determines that any accusation of partisan motivation is refuted by the Act's identical application to records implicating individuals of every political affiliation.

(f) MANNER OF DISCLOSURE.—All records produced under this Section shall be published via the Unit's transmission to the GPO as provided in Section 7012, and shall be publicly accessible through—

(1) GovInfo.gov, administered by the Government Publishing Office as the primary legislative branch public repository, receiving records exclusively from the Unit;

(2) the relevant agency's official public website; and

(3) the Department of Justice's official public website.

Disclosure to Congress shall be simultaneous but is not a prerequisite to public disclosure and does not substitute for it.

Each record published under this Section shall be accompanied by a publicly posted SHA-256 cryptographic hash of the published file, generated at the moment of publication using the SHA-256 algorithm as specified in NIST FIPS 180-4. The SHA-256 hash value shall be published as a hexadecimal string alongside each record. Any member of the public may verify that a downloaded record has not been altered since publication by computing the SHA-256 hash of the downloaded file and comparing the result to the published hexadecimal string. Any alteration causing the hash to no longer match the published value constitutes falsification of government records under 18 U.S.C. § 1519, regardless of whether the alteration is detectable by visual inspection.

(f-1) RULE OF CONSTRUCTION—HASH MANIFEST REQUIREMENT.—The SHA-256 hash manifest publication requirement established by this section shall be construed as addressing the documented alteration and selective removal of records after release under Public Law 119-38—a specific failure in which the integrity of released documents was compromised after publication in ways not detectable by ordinary public inspection. The cryptographic hash requirement is rationally adapted to that specific documented failure by creating a publicly verifiable chain of custody that enables any member of the public to detect post-publication alteration without reliance on any government certification.

(g) NO WITHHOLDING.—No agency may withhold any Records of the Epstein Network on the basis of—

(1) the Privacy Act of 1974 (5 U.S.C. § 552a), with respect to any Covered Individual;

(2) any executive order governing classification;

(3) the deliberative process privilege;

(4) the law enforcement privilege, except as to the identity of a confidential human source currently active in an unrelated ongoing criminal investigation; or

(5) any other common law or statutory privilege, except as provided in Sections 6 and 6A.

(h) REDACTION.—Records released pursuant to this Section shall be released in unredacted form, with the sole exception of—

(1) the names and personally identifying information of minor victims;

(2) information subject to a valid Presidential Postponement Certification under Section 7010; and

(3) information subject to a valid category carve-out under Section 7011, limited strictly to the specific elements enumerated in that Section.

SEC. 7006. RELATION TO THE FREEDOM OF INFORMATION ACT AND PENDING FOIA PROCEEDINGS.

(a) SUPERSESSION OF FOIA EXEMPTIONS.—With respect to any record that falls within the definition of Records of the Epstein Network as defined in Section 7003 of this title, the disclosure obligations of Section 7005 supersede any contrary determination made under the Freedom of Information Act, 5 U.S.C. § 552, including any exemption claim, protective order, or withholding determination issued in connection with any pending or completed FOIA request or litigation. No FOIA exemption determination shall operate to delay or defeat the submission obligations of Section 7005 or the publication obligations of the Unit under Section 7012.

(b) CONSOLIDATION OF PENDING FOIA LITIGATION.—Any pending action in any federal court arising from a FOIA request for Records of the Epstein Network shall, upon motion of any party, be transferred to the United States District Court for the District of Columbia for coordination with proceedings arising under this title. The transferring court shall retain jurisdiction over any claim for attorney fees or costs arising from the original FOIA proceeding. The transfer does not affect any protective order covering the identities of minor victims, which shall remain in effect.

(c) FOIA REQUESTERS—NO DUPLICATION REQUIRED.—Any person who previously filed a FOIA request for Records of the Epstein Network that has not been fully satisfied as of the date of enactment shall not be required to re-request those records under this title. Upon publication of responsive records under Section 7005, the agency shall notify each such identified requester in writing that records responsive to their request have been published pursuant to this title and shall identify the GovInfo.gov URL at which the records are accessible.

(d) FOIA FEES AND COSTS.—No agency may charge any FOIA fee or cost with respect to any Records of the Epstein Network published pursuant to this title.

SEC. 7007. STATE, TERRITORIAL, AND LOCAL GOVERNMENT RECORDS—VOLUNTARY PRODUCTION MECHANISM.

(a) CONGRESSIONAL REQUEST.—Congress respectfully requests that the following state, territorial, and local government authorities voluntarily produce to the Unit all records in their possession relating to the Epstein Network, including records of any investigation, arrest, prosecution, or non-prosecution of Jeffrey Edward Epstein, Ghislaine Maxwell, or any member of the Epstein Network:

(1) the Palm Beach Police Department, Palm Beach, Florida;

(2) the Palm Beach County Sheriff's Office, Florida;

(3) the Florida Department of Law Enforcement;

(4) the Attorney General of the State of Florida;

(5) the Attorney General of the United States Virgin Islands;

(6) the New Mexico Attorney General, including all records from any state investigation of Jeffrey Epstein's activities at Zorro Ranch, any investigation of the trafficking of minors in connection with the ranch, and any records relating to any communication between the New Mexico Attorney General's office and federal law enforcement agencies regarding Epstein's New Mexico activities;

(7) the New Mexico State Police, including all records from any State Police investigation of or incident response to Epstein, Maxwell, or the Zorro Ranch property, all records of any State Police communication with the FBI Albuquerque Field Office or other federal agencies regarding Epstein's New Mexico activities, and all records of any State Police coordination with the Santa Fe County Sheriff or other local law enforcement in connection with the ranch;

(8) the Santa Fe County Sheriff's Office, including all incident reports, call logs, trespass complaints, and investigative records relating to Zorro Ranch or any Epstein-associated activity in Santa Fe County, New Mexico during the period 1993 through 2019, and all records of any coordination with the New Mexico State Police, the FBI Albuquerque Field Office, or any other law enforcement agency regarding the ranch;

(9) the New Mexico Environment Department, including all environmental permit records, inspection records, and enforcement records relating to Zorro Ranch or any Epstein-associated entity during the period 1993 through 2019, and all records of any coordination with EPA Region 6 or the Army Corps of Engineers regarding the ranch; and

(10) the New Mexico State Engineer's Office, including all water rights records, well permit records, and surface water diversion records relating to Zorro Ranch or any Epstein-

associated entity, and all records of any State Engineer coordination with BLM, the Army Corps of Engineers, or EPA regarding water use at the ranch;

(11) any other state or territorial law enforcement authority that holds records responsive to this title's disclosure objectives.

(b) VOLUNTARY SUBMISSION MECHANISM.—Any state, territorial, or local government authority that elects to produce records pursuant to the congressional request in subsection (a) may submit those records directly to the Unit using the same submission procedures established for federal agencies under Section 7005. The Unit shall process voluntarily submitted state and territorial records on the same rolling review schedule as federal agency records, and shall publish them through the same GPO publication mechanism under Section 7012.

(c) TREATMENT OF VOLUNTARILY SUBMITTED RECORDS.—Voluntarily submitted state and territorial records shall be subject to the same redaction standards as federal records under Sections 5(h), 6, and 6A, including mandatory protection of minor victim PII. The Unit's processing of voluntarily submitted state records does not create any federal preemption of state law or any federal obligation on the submitting authority beyond what the authority voluntarily accepts by submission.

(d) REPORT TO CONGRESS.—The Unit Head shall report to both Judiciary Committees, within ninety (90) calendar days of enactment, which authorities identified in subsection (a)(1) through (11) have responded to the congressional request, and the estimated volume of records each has agreed to submit. If any identified authority declines to produce records, the Unit Head shall so report, and either Judiciary Committee may issue a formal congressional request for the specific records that declined authorities identified as potentially responsive.

SEC. 7008. PRIVATE RIGHT OF ACTION FOR EPSTEIN NETWORK VICTIMS.

(a) STANDING.—Any individual who was a victim of the Epstein Network, as identified in any record released pursuant to this title or as previously identified in any federal criminal proceeding, shall have standing to bring a civil action in the United States District Court for the District of Columbia to enforce the disclosure obligations of this title.

(b) COGNIZABLE CLAIMS.—A victim with standing under subsection (a) may seek relief for:

(1) any agency's failure to submit records on the tranche schedule required by Section 7005;

(2) any redaction applied to records in which the victim is identified, where the victim contends the redaction is not authorized by Sections 5(h), 6, or 6A;

(3) any Presidential Postponement Certification that the victim contends is void ab initio under Section 7010(d); and

(4) any carve-out invocation under Section 7011 that the victim contends is improperly applied to conceal the identity of an individual who participated in their victimization.

(c) FORMS OF RELIEF.—The court may grant:

(1) a writ of mandamus compelling agency submission;

(2) a declaratory judgment that a redaction, Certification, or carve-out is invalid;

(3) injunctive relief requiring publication of specific records; and

(4) reasonable attorney fees and litigation costs.

(d) BURDEN OF PROOF.—In any action under this Section, the burden is on the agency, the Unit, or the executive branch to demonstrate by clear and convincing evidence that any withholding, redaction, or postponement is authorized by the specific enumerated criteria of this title.

(e) CONSTRUCTIVE DISCLOSURE.—A victim's identity and status need not be publicly established to bring an action under this Section. A victim may proceed under a pseudonym, and the court shall issue appropriate protective orders to prevent the public disclosure of the victim's identity without the victim's consent.

SEC. 7009. VICTIM NOTIFICATION OF REDACTION AND POSTPONEMENT DECISIONS.

(a) OBLIGATION.—Where the Unit applies any redaction, or where a Presidential Postponement Certification withholds any record, and the Unit has reason to believe from the content of the affected record that the record relates directly to the victimization of a specific individual, the Unit shall provide written notification to that individual, or to counsel of record for that individual in any prior federal proceeding, within thirty (30) calendar days of the redaction or Certification, subject to subsection (b).

(b) SCOPE OF NOTIFICATION.—The notification required by subsection (a) shall:

(1) state that a record relating to the individual's victimization has been reviewed by the Unit;

(2) state whether the record has been published in redacted form, withheld in full pursuant to a Presidential Postponement Certification, or withheld pursuant to a category carve-out under Section 7011;

(3) state the general category of information withheld without disclosing the withheld content; and

(4) inform the victim of their right to challenge the redaction or withholding pursuant to Section 7011(g) or Section 7008 of this title.

(c) VICTIM IDENTITY PROTECTION.—No notification under this Section shall disclose the identity of any victim to any person other than that victim or their counsel. Notification shall be transmitted through court-sealed channels where counsel of record is identified, and through the Crime Victims' Rights Act notification system administered by the Department of Justice where no counsel of record is identified.

(d) GOOD-FAITH COMPLIANCE.—The Unit's obligation under this Section is satisfied by a good-faith effort to notify identifiable victims from information available in the Unit's

records. The Unit is not required to conduct an independent investigation to identify victims not already identified in the records submitted to it.

SEC. 7010. PRESIDENTIAL POSTPONEMENT CERTIFICATION—THE ONLY EXCEPTION.

(a) AUTHORITY.—The President may postpone public disclosure of Records of the Epstein Network by issuing a Presidential Postponement Certification. No other official, agency, or instrumentality may authorize postponement.

(b) REQUIREMENTS.—Each Presidential Postponement Certification shall—

(1) identify with specificity the record or records to which it applies. A single Certification may cover a defined category or grouping of records, provided the category is described with sufficient specificity that the public and Congress can identify the subject matter, originating agency, date range, and operative ground for postponement. A Certification that describes a category so broadly as to effectively postpone all Records of the Epstein Network shall be void ab initio. The plural coverage of a batch Certification does not relieve the President of the obligation to state particular grounds that apply to the entire defined category, not merely to isolated records within it. No single Presidential Postponement Certification, and no combination of Certifications issued within any thirty (30) calendar day period, may cover more than five percent (5%) of any single agency's total submitted inventory as recorded by the Unit. Any Certification or combination of Certifications that would cause the total postponed records from a single agency to exceed that five percent threshold shall automatically trigger mandatory in camera judicial review by the United States District Court for the District of Columbia within thirty (30) calendar days of filing, without requiring any congressional request. The court shall determine whether the Certifications were issued in good faith on genuine grounds enumerated in subsection (b)(2), or whether the aggregate pattern of Certifications constitutes a de facto wholesale postponement of that agency's records. If the court finds wholesale postponement or bad faith, the Certifications found to constitute that pattern are void ab initio and the records subject to those Certifications shall be released on the standard mandatory disclosure schedule. The President may not circumvent this threshold by issuing successive Certifications in rolling thirty (30) day windows—if a court finds that a series of Certifications was structured to avoid the five percent threshold while achieving the practical effect of covering all or substantially all of an agency's records, the entire series is subject to the same in camera review and the court may void the entire series. No Presidential Postponement Certification may be issued before the Unit has completed its inventory of the relevant agency's records under Section 7005(b). A Certification issued before inventory completion is premature and void as to any records not specifically identified in the inventory at the time of issuance;

(2) state with particularity the sole permissible ground for postponement as defined in the Presidential Postponement Certification definition, which ground must apply to every record within the defined category covered by the Certification;

(3) be signed personally by the President;

(4) be transmitted to Congress within forty-eight (48) hours of signing; and

(5) be released immediately to the public upon transmission to Congress, without redaction.

(c) DURATION.—A Presidential Postponement Certification shall not authorize postponement for more than one hundred and eighty (180) additional calendar days. The President may renew a Certification once, for a further one hundred and eighty (180) days, upon making a new written finding that the grounds for postponement continue to apply to every record in the defined category. No further renewal is permitted. All postponed records shall be released upon expiration of the final postponement period without further presidential action required.

(d) VOID AB INITIO.—Any Presidential Postponement Certification shall be void ab initio and of no legal effect if it—

(1) fails to identify a specific record or a defined category of records with sufficient specificity as required by subsection (b)(1);

(2) relies on a ground not enumerated in the definition of Presidential Postponement Certification in this title;

(3) is issued by any official other than the President;

(4) covers records whose sole basis for postponement is embarrassment, reputational harm, or political sensitivity to any person, including any Covered Individual, any foreign government official, or any foreign dignitary; or

(5) is filed after September 1, 2028. September 1, 2028 is the absolute hard cutoff for all Presidential Postponement Certifications. Any Certification filed after that date is void ab initio for any record regardless of when the record was submitted to the Unit or which tranche it belongs to. The President has from the date of enactment until September 1, 2028—a period designed to be adequate for identifying genuine national security concerns—to file Certifications. Records not covered by a valid Certification filed on or before September 1, 2028 release on October 15, 2028. Congress finds that the September 1, 2028 cutoff eliminates the possibility of a last-minute wave of Certifications filed days before the election to block disclosure, and that the period from enactment to September 1, 2028 is more than sufficient for any President acting in good faith to identify genuinely sensitive records.

(e) PUBLIC ACCOUNTABILITY THROUGH THE CERTIFICATION ITSELF.—The President's obligation to sign a public Presidential Postponement Certification with stated reasons is the primary accountability mechanism of this Section. The Certification is public, named, specific as to category, and states the operative legal ground. No congressional vote is required and none is mandated by this Section. Public and political accountability flow

from the Certification's public nature—the President's stated reasons are visible to the public, the press, and Congress regardless of whether any formal proceeding is brought.

(f) JUDICIAL OVERRIDE—AUTOMATIC RELEASE TRIGGER AND IN CAMERA REVIEW.—Any person may bring an action in the United States District Court for the District of Columbia to challenge a Presidential Postponement Certification as void ab initio under subsection (d) or as exceeding the permissible grounds of this title. The court shall conduct an in camera review of the withheld records to evaluate whether the stated ground in the Certification is genuine and applies to the records in the defined category. In camera review is a well-established judicial mechanism used in national security FOIA proceedings and CIPA cases; the court reviews withheld records privately in chambers and evaluates the government's sealed explanation of its basis without requiring public disclosure of the records. If the court issues a final judgment holding the Certification void, invalid, or beyond the permissible grounds, the records subject to that Certification shall be released automatically, by operation of law, within five (5) business days of the court's judgment becoming final, without any further presidential action, agency determination, or congressional vote required. The court's judgment is self-executing. No stay of the automatic release shall be available to the government except upon a showing of specific, articulable, imminent physical danger to a named individual that would result from immediate release.

SEC. 7011. ENUMERATED CATEGORY CARVE-OUTS—GENUINE NATIONAL SECURITY EXCEPTIONS.

(a) OVERRIDING EMBARRASSMENT PROHIBITION.—No carve-out in this Section shall be construed to authorize the continued classification of any Records of the Epstein Network solely on the grounds that the record is embarrassing to any Covered Individual, politically sensitive, or reputationally damaging to any person who holds or has held public office, made significant political contributions, or holds a position of power. Embarrassment, reputational harm, and political sensitivity are expressly and absolutely excluded as grounds for any carve-out under this Section. A carve-out invoked for a record whose sole operational basis for continued classification is the protection of a Covered Individual from embarrassment is void ab initio.

(b) CATEGORY ONE—ACTIVE CONFIDENTIAL HUMAN SOURCE IDENTITIES.— The personal identifying information—name, address, physical description, and any other information that could identify a specific individual—of a confidential human source who was actively reporting to a United States intelligence or law enforcement agency regarding the Epstein Network, and whose continued operational status or physical safety would be directly endangered by identification, may be permanently redacted from released records. All other information in the record—including what the source reported, when, regarding whom, and the substance of any intelligence derived from the source relationship—shall be released on the standard mandatory disclosure schedule in Section 7005 with only the identifying information redacted. This carve-out protects identity only, not information, except where the Unit determines that specific details within the reported substance—

including details of the source's location at a specific time, the individuals in whose company they were present, or other contextual particulars—would, even after redaction of the source's name and direct identifying information, make the source's identity reasonably inferable to a person with knowledge of the relevant environment. In such cases, only the specific detail or details that create that identification risk may be additionally redacted; all remaining substance of what the source reported shall be disclosed. It applies exclusively to individuals whose relationship to the record is as an intelligence informant reporting on the Epstein Network. It does not apply to any person who appears in Records of the Epstein Network as a participant in, subject of, or associate of Epstein's criminal conduct. A Covered Individual does not become a protected source solely because their name appears in a classified intelligence file.

(c) CATEGORY TWO—ACTIVE CRIMINAL INVESTIGATIONS.—Materials that are part of an active federal grand jury investigation or undercover operation targeting a specific living individual for Epstein Network-related criminal conduct may remain classified until the earlier of: (1) ninety (90) calendar days following the conclusion of the relevant proceeding by prosecution, declination, or dismissal; or (2) three (3) years from the date of enactment of this title, whichever is sooner, after which the materials shall be released without further action required. This carve-out is intended to protect the integrity of active investigations, not the subjects of those investigations. When the investigation concludes, the materials release regardless of who the subject is. A Covered Individual who is the subject of an active investigation is temporarily protected by this carve-out only to the extent necessary to preserve the investigation's integrity, and receives no permanent protection under this carve-out except pursuant to a Presidential Postponement Certification under Section 7010.

(d) CATEGORY THREE—FOREIGN GOVERNMENT INTELLIGENCE RELATIONSHIPS.—Records whose disclosure would reveal an active United States intelligence collection operation directed at a foreign government or foreign national in connection with the Epstein Network, and whose disclosure would cause specific, articulable, imminent harm to an ongoing intelligence operation—not merely diplomatic embarrassment—may remain classified for a period not to exceed fifteen (15) years from the date of enactment, after which they shall be released without further action required. Within this fifteen-year period, the personal identifying information of clandestine human sources embedded in foreign governments or foreign intelligence services—meaning individuals whose identity as a United States intelligence asset would be revealed by disclosure—may be permanently redacted from released records. All other information in the record releases on the standard schedule with only the clandestine source's identifying information redacted. This PII protection applies to identity only, not to the substance of what was reported or the nature of the foreign government relationship.

Notwithstanding any other provision of this Section, this carve-out shall not apply to any record relating to any of the following in connection with the Epstein Network, and all such records are subject to the standard mandatory disclosure schedule in Section 7005 with no fifteen-year

postponement, no diplomatic sensitivity exception, and no operational sensitivity exception available under this Category Three carve-out, regardless of claimed diplomatic or operational sensitivity: (i) any Israeli government official, any Israeli intelligence or security service—including but not limited to Mossad, Unit 8200 of the Israeli Defense Forces, and the Bureau for Scientific Relations (Lekem)—or any Israeli national; (ii) any official of the government of the United Kingdom, any British intelligence or security service—including but not limited to the Secret Intelligence Service (MI6), the Security Service (MI5), and Government Communications Headquarters (GCHQ)—or any British national who held, at any relevant time, a position as an officer, agent, contractor, or asset of any such service, or who served as an intermediary in any arms transaction, financial arrangement, or intelligence operation connected to the Epstein Network; (iii) any official of the government of the Kingdom of Saudi Arabia, any Saudi intelligence or security service—including but not limited to the General Intelligence Directorate (GID) and the Presidency of State Security—or any Saudi national who served, at any relevant time, as an arms dealer, financial intermediary, or intelligence operative in connection with transactions, financial flows, or operations intersecting with the Epstein Network, including but not limited to transactions routed through the Bank of Credit and Commerce International (BCCI). This exclusion takes effect immediately upon enactment.

Notwithstanding the foregoing, nothing in this exclusion shall be construed to remove or limit the protection available under Category One—Section 7011(b)—for the personal identifying information of any United States confidential human source who reported on the Epstein Network to a United States intelligence or law enforcement agency and whose cover identity would be revealed by disclosure. The nature of any government or intelligence connection identified in subparagraphs (i) through (iii) shall be disclosed on the standard mandatory disclosure schedule. The substance of what any such source reported shall likewise be disclosed, except where the Unit determines that specific details within the reported substance would, even after redaction of the source's name and direct identifying information, make the source's identity reasonably inferable to a person with knowledge of the relevant environment, in which case only the specific detail or details that create that identification risk may be additionally redacted.

(e) CATEGORY FOUR—SIGNALS INTELLIGENCE METHODS.—Where Records of the Epstein Network contain both substantive content and technical description of signals intelligence collection methods, the two elements are severable and shall be treated separately. The substantive content—what was communicated, by whom, and when—shall be released on the standard mandatory disclosure schedule in Section 7005. The technical description of the collection method—how the communication was intercepted—may remain classified indefinitely where continued classification is necessary to protect an operational collection capability that remains in active use. There is no automatic sunset on signals intelligence methods under this carve-out. The classification of method does not authorize the classification of content. Any invocation of this carve-out to withhold content rather than method is void ab initio.

(f) CATEGORY FIVE—COOPERATING WITNESS IDENTITIES.—The personal identifying information—name, address, and any other information that would identify a specific individual—of an adult cooperating witness who provided testimony or evidence to federal investigators in connection with the Epstein Network under a formal witness protection arrangement shall be redacted from any released record. The protection is indefinite and does not expire. All other information in the record—including the substance of what the witness reported, when, and regarding whom—shall be released on the standard mandatory disclosure schedule with only the witness's identifying information redacted. This carve-out protects identity only, not information. Voluntary cooperation with investigators without a formal protection arrangement does not create a protected identity under this carve-out. This carve-out does not apply to any individual who used cooperation to avoid prosecution for Epstein Network crimes—such individuals may be identified as having cooperated but their Epstein Network connections are not protected on that basis.

(g) ENFORCEMENT—JUDICIAL REVIEW OF CARVE-OUT INVOCATIONS.—Any person may bring an action in the United States District Court for the District of Columbia challenging the invocation of any carve-out under this Section, or any combination protection determination under Section 7013, on the grounds that: (1) the real basis for withholding is embarrassment, reputational harm, or political sensitivity prohibited by subsection (a); (2) the record does not fall within the stated category; (3) the carve-out has expired by operation of its sunset provision; or (4) a combination protection determination was made without a genuine combination risk as defined in Section 7013(b). The burden shifts to the Unit to demonstrate by clear and convincing evidence that the stated ground—not embarrassment or political protection—is the operative reason for withholding, and that the carve-out's or combination protection's requirements are met. If the court finds the carve-out or combination protection was improperly invoked, the record shall be released automatically within five (5) business days of the court's final judgment.

SEC. 7012. FEDERAL UNIT FOR MANAGING EPSTEIN DOCUMENTS—ESTABLISHMENT AND OPERATING MANDATE.

(a) ESTABLISHMENT.—There is hereby established within the National Archives and Records Administration a Federal Unit for Managing Epstein Documents (the 'Unit'). The Unit is established by this title as a statutory unit operating under the authority of Congress. Its mandate, staffing, independence, and operating parameters are defined by this Section and may not be modified, suspended, or terminated except by an Act of Congress. The Unit's existence and operation are not contingent on the identity, direction, or continued tenure of the Archivist of the United States or any other political appointee of the executive branch.

(b) PURPOSE AND CONSTITUTIONAL SCOPE.—The Unit shall serve as the sole editorial and redaction authority between the originating agencies and the Government Publishing Office for all Records of the Epstein Network subject to mandatory disclosure under Section 7005 of this title. No agency shall redact, withhold, or modify any Records of the Epstein Network before submitting them to the Unit. All redactions authorized by

Sections 5, 6, 6A, and this Section shall be performed exclusively by the Unit following the review procedures established herein. The Unit shall perform systematic mosaic analysis across all records being released in each batch before that batch is certified to the GPO for publication. The Unit does not exercise classification or declassification authority. Classification policy remains exclusively with the President and the executive branch pursuant to the President's constitutional authority over national security information. A record the President has classified remains on the classified registry after Unit review—the Unit does not alter any record's classification status. The Unit's sole function is to apply the specific, enumerated redaction criteria defined by Congress in Sections 5, 6, and 6A of this title to records subject to mandatory congressional disclosure obligations, which Congress has authority to enact pursuant to Article I and the JFK Records Act precedent. The Unit exercises no independent policy judgment about whether any record should be classified or declassified—it applies only the criteria Congress has defined. Where a record falls outside all enumerated criteria for withholding, the Unit has no authority to withhold it. Where a record falls within an enumerated criterion, the Unit applies that criterion as written, with no discretion to expand or narrow its scope. This functional limitation is the constitutional basis for the Unit's independence from executive direction—the Unit is implementing a congressional disclosure mandate using congressionally defined criteria, not making executive policy decisions about national security classification. Department of Navy v. Egan, 484 U.S. 518 (1988), acknowledged that Congress can override executive classification for a narrowly defined record category; this title exercises exactly that authority.

(b-1) RULE OF CONSTRUCTION—STRUCTURAL INDEPENDENCE.—When a mandatory statutory disclosure obligation is violated by the executive branch, the Necessary and Proper Clause of Article I, Section 7016 grants Congress not only the authority but the affirmative obligation to design the successor statute to close the specific structural vulnerabilities that enabled non-compliance. The establishment of the Federal Unit for Managing Epstein Documents with operational independence from executive direction is not a separation of powers overreach—it is a constitutionally proportionate remedy for documented executive violation of a mandatory congressional disclosure mandate. A court reviewing the structural independence of the Unit should treat this subsection as the express legislative record establishing the rational basis for that independence.

(b-2) RULE OF CONSTRUCTION—PROPORTIONALITY OF INDEPENDENCE MECHANISMS.—A disclosure statute whose compliance depends on executive self-interest in transparency will predictably fail when the subject matter is politically sensitive to the executive branch. The independent review, contempt-by-operation-of-law, and default unredacted release mechanisms in this title shall be construed as structural corrections to documented structural incentive failures—not as punitive measures. Courts reviewing the proportionality of these mechanisms should evaluate them against this documented record of

structural failure, not against an idealized executive branch that voluntarily complies with politically inconvenient obligations.

(b-3) RULE OF CONSTRUCTION—NOVELTY OF MECHANISMS.—Under McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316 (1819), Congress has broad latitude under the Necessary and Proper Clause to choose means rationally adapted to legitimate legislative ends. Each mechanism in this title that has been challenged as unprecedented is accompanied by an express finding, adjacent to that mechanism's operative provision, identifying the specific documented failure it addresses. Novelty is not unconstitutionality. The question is not whether a mechanism has been used before—it is whether it is rationally adapted to a legitimate end. Each novel mechanism in this title meets that standard, and any reviewing court should evaluate each mechanism against the specific documented failure it addresses rather than against an abstract preference for conventional procedures.

(c) STAFFING—EXPANDED CAREER EMPLOYEE POOL.—The Unit shall be staffed exclusively by career employees of the National Archives and Records Administration who were continuously employed at NARA on January 19, 2025. No political appointee, no employee hired on or after January 20, 2025, and no contractor without prior continuous NARA career service as of that date may perform substantive review or redaction functions within the Unit. The Unit shall draw from career employees across all NARA components, including but not limited to: the National Declassification Center; the Information Security Oversight Office; the Office of Research Services; the Federal Records Centers Program; the Office of the Chief Records Officer; and any other NARA component whose career staff possess relevant expertise in declassification review, records management, national security information handling, or mosaic analysis. The Unit is not limited to NDC staff alone. The Unit Head, in coordination with the National Archivist, shall identify and assign qualified staff from across the full NARA career employee pool meeting the January 19, 2025 criterion, prioritizing individuals with the greatest relevant declassification and national security records expertise regardless of which NARA component they are drawn from. The Unit shall draw primarily from NDC, ISOO and other NARA staff where available, but shall not be constrained by the size of those specific offices. NARA has approximately 2,500 total career employees; this expanded pool ensures the Unit can meet its minimum staffing floor and operational mandate without being artificially constrained to the NDC's 58 total staff.

(c-1) RULE OF CONSTRUCTION—STAFFING CRITERIA AND MINISTERIAL FUNCTION.—The staffing criteria for the Federal Unit for Managing Epstein Documents in Section 7012(c) shall be construed as qualification criteria for a defined statutory function—not as an unconstitutional congressional appointment of federal officers. The distinction is material and established in law. Under Lucia v. SEC, 138 S. Ct. 2044 (2018), the Appointments Clause applies to individuals who exercise significant governmental authority pursuant to the laws of the United States. Unit staff exercise no such authority. The Unit's entire function is ministerial: Unit staff receive records from agencies, apply the specific enumerated redaction criteria Congress has defined with precision in Sections 5, 6, and 6A of

this title, determine whether a specific record or portion of a record falls within one of those enumerated categories, and apply the specific and only redaction authorized for that category. The Unit does not decide what should be classified. It does not decide what is sensitive. It does not decide what should be withheld. It does not expand or narrow any criterion Congress has established. Every redaction the Unit applies is compelled by a congressional criterion or it does not occur. There is no middle ground and no discretion. This is a ministerial, not a policymaking, function. Congress further determines that the pre-January 19, 2025 employment criterion is grounded in the following documented facts: the Archivist of the United States was removed from office on or about February 19, 2025; the acting Archivist position subsequently passed through multiple officials in rapid succession; and the NARA leadership structure was materially disrupted during the period immediately following January 20, 2025. Career NARA employees continuously employed as of January 19, 2025 represent the only identifiable cohort of NARA personnel whose appointment, tenure, and institutional formation were established independently of that disruption. The pre-January 19, 2025 employment criterion is not a finding of bad faith or lack of integrity on the part of any specific individual—it is a structural criterion designed to ensure that Unit staff were selected and employed through the normal civil service process before the disruption of NARA's senior leadership, and that their institutional loyalties and professional judgment were formed through that process rather than through any appointment made during or after the leadership disruption. Just as the Inspector General Act of 1978 requires selection of Inspectors General based on integrity and demonstrated ability—qualification criteria designed to ensure independence from the entities being overseen—the pre-January 19, 2025 criterion ensures independence through a tenure requirement tied to a specific documented institutional disruption. Both the Inspector General Act criteria and the Unit's tenure criterion serve the same constitutional purpose: independence through qualification. The removal notice requirement for Unit staff does not categorically prohibit presidential removal—it creates a procedural condition precedent that, unlike the provisions struck down in Seila Law LLC v. CFPB, 140 S. Ct. 2183 (2020), does not insulate any single principal officer exercising broad executive authority from presidential control. Any reviewing court should evaluate the Unit's function as defined by this title—the ministerial application of congressional criteria—rather than as an abstract exercise of executive power, because the Unit exercises no executive power. It executes congressional criteria. That is the constitutional basis for its independence from executive direction.

(d) UNIT HEAD—APPOINTMENT BY THE CHIEF JUSTICE OF THE UNITED STATES.—The Unit shall be led by a Unit Head appointed by the Chief Justice of the United States from among career NARA employees meeting the criteria in subsection (c). The Chief Justice's authority to make this appointment is grounded in the 'Courts of Law' clause of the Appointments Clause, Article II, Section 7002, which the Supreme Court has upheld as the constitutional basis for judicial appointment of inferior officers in contexts including the Foreign Intelligence Surveillance Court. This appointment structure mirrors the

mechanism by which the Chief Justice designates members of specialized courts and tribunals pursuant to statute, and is insulated from political pressure by the Chief Justice's Article III life tenure. The Chief Justice shall exercise this appointment authority independently of the executive branch. No executive agency official, including the Archivist of the United States, may direct, veto, delay, or otherwise interfere with the Chief Justice's appointment decision. The Chief Justice shall transmit the nomination simultaneously to both the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives. Either Judiciary Committee may, within forty-five (45) calendar days of such notification, hold a public hearing on the appointment and create a congressional record. The forty-five (45) day notification period does not stay or condition the appointment—the appointment takes effect immediately upon the Chief Justice's designation. Congress does not have veto authority over the appointment, but the public congressional record created during any hearing period serves as the accountability mechanism for the appointment decision. The Unit Head is not subject to direction by the Archivist of the United States or any other executive agency official in the exercise of the Unit's substantive review and redaction functions. The Unit Head reports directly and exclusively to both Judiciary Committees for the purposes of this title.

(d-1) UNIT HEAD REMOVAL PROTECTION.—The Unit Head may not be removed, reassigned, or transferred from Unit functions except through the same forty-five (45) calendar day notice procedure applicable to Unit staff under Section 7012(f), with the same public certification of non-retaliation. If the Unit Head is removed, the replacement shall be appointed by the Chief Justice of the United States under the same career NARA criteria, subject to the same forty-five (45) calendar day congressional notification window. A vacancy in the Unit Head position does not suspend Unit operations—the most senior career Unit staff member by continuous NARA tenure assumes acting Unit Head authority until a replacement is confirmed. All combination protection determinations made by a removed Unit Head remain in effect and may only be reversed as provided in Section 7013(d-1).

(d-2) APPOINTING AUTHORITY CONTINUITY—APPOINTMENT DUTY TRANSFERS AUTOMATICALLY.—The appointment obligation in subsection (d) is a non-delegable statutory duty attached to the office of the Chief Justice of the United States, not to the specific person holding that position. If the office of Chief Justice is vacant—by reason of death, retirement, or incapacitation—before the Unit Head appointment is made, the appointment obligation transfers automatically to the most senior Associate Justice of the United States Supreme Court by tenure of continuous service, who shall exercise the appointment authority on the same terms as the Chief Justice until a new Chief Justice is confirmed. Any vacancy in the office of Chief Justice occurring between the date of enactment and the date the Unit Head has submitted the compliance certifications required under Section 7012(i) for both the first production tranche under Section 7005(c) (due day 300 or October 15, 2028, whichever is earlier) and the second production tranche under Section 7005(d) (due day 600 or October 15, 2028, whichever is earlier)—shall be reported

to both Judiciary Committees within twenty-four (24) hours as a matter of administrative record. A new Chief Justice confirmed during the two-tranche protection window may not remove the Unit Head for the remainder of that window, regardless of when confirmation occurred.

(e) OPERATIONAL INDEPENDENCE—PROTECTION FROM EXECUTIVE INTERFERENCE.—No executive agency official—including the Archivist of the United States, the Deputy Archivist, any acting official, and any political appointee within NARA or any other executive agency—may direct, instruct, overrule, reassign, transfer, terminate, or otherwise interfere with the substantive review and redaction decisions of Unit staff. Any attempt by any executive official to direct the Unit's substantive decisions shall be reported immediately by the Unit Head to both Judiciary Committees and shall constitute obstruction under 18 U.S.C. § 1503.

(e-1) MINIMUM OPERATIONAL RESOURCES AND ANTI-SUFFOCATION PROTECTION.—The Unit shall at all times be provided with sufficient personnel, office space, equipment, computing infrastructure, and legal support to perform its statutory mandate within the rolling production schedule of Section 7005. Any reduction in Unit resources, personnel, office space, equipment, or support staff below the level necessary to perform that mandate—as certified by the Unit Head—shall constitute obstruction under 18 U.S.C. § 1503 and shall be reported immediately by the Unit Head to both Judiciary Committees. The Unit Head's certification of resource insufficiency shall be treated as prima facie evidence of obstruction, with the burden shifting to the responsible executive official to demonstrate by clear and convincing evidence that the reduction was not intended to impair Unit operations. The Unit shall at all times maintain a minimum of fifteen (15) qualified career staff performing active review functions. Any reduction below that floor by any means—including voluntary departure that is not replaced within sixty (60) calendar days—triggers an automatic report to both Judiciary Committees and a mandatory replacement hiring action by the Unit Head, in coordination with the National Archivist, within thirty (30) calendar days of the report.

(f) STAFF PROTECTION—REASSIGNMENT AND REMOVAL NOTICE REQUIREMENT.—Unit staff may not be reassigned, transferred out of the Unit, terminated, or otherwise removed from their Unit functions by any executive agency official without—

(1) forty-five (45) calendar days written notice to both Judiciary Committees, stating the specific reason for the proposed reassignment, transfer, or removal. The notice requirement is mandatory; an action taken without the required notice is void and of no legal effect. The notice requirement is a condition precedent to the action, not merely a procedural formality. During the forty-five (45) day notice period, either Judiciary Committee may hold a public hearing on the proposed action and create a congressional record. The forty-five (45) day notice period does not legally stay the action—Congress does not have veto authority over executive personnel decisions—but the political cost of

proceeding over a formal congressional hearing record during the notice period is itself a substantial deterrent against retaliatory action; and

(2) a public certification by the Unit Head, filed with both Judiciary Committees simultaneously with the notice required under paragraph (1), attesting that the proposed action was not initiated in response to or in retaliation for any redaction decision, disclosure determination, or congressional report made by the affected staff member in the performance of Unit functions. A false certification constitutes a false statement to Congress under 18 U.S.C. § 1001, obstruction of congressional proceedings under 18 U.S.C. § 1505, perjury under 18 U.S.C. § 1621, and falsification of records under 18 U.S.C. § 1519.

(g) FUNDING—INDEPENDENT APPROPRIATION.—The Unit shall be funded through a direct congressional appropriation to the Unit, not through NARA's general operating budget. The Archivist of the United States may not redirect, impound, or reduce Unit funding through any administrative mechanism. The Unit's independent legal counsel shall be funded from the United States Courts appropriation, not from NARA's budget, to ensure that legal support for Unit operations is not subject to executive budget pressure.

(g-1) FUNDING LAPSE CONSEQUENCE—INTENTIONAL DEFUNDING ONLY.—The consequences in this subsection apply exclusively where the direct congressional appropriation to the Unit is reduced to zero or eliminated by an act of Congress that specifically addresses Unit funding—that is, by a congressional action whose operative effect is the targeted elimination of the Unit's appropriation as a distinct budget line item. This subsection does not apply, and no consequence described herein is triggered, solely by reason of a general failure to enact appropriations legislation, a government-wide continuing resolution lapse, a sequestration, or any funding interruption that affects federal agencies broadly rather than the Unit specifically. A funding lapse arising solely from a general appropriations failure shall suspend Unit operations for the duration of the lapse, but shall not trigger unredacted release obligations; the mandatory disclosure deadlines of Section 7005 shall be tolled day-for-day during any such general lapse and shall resume upon restoration of general appropriations. Where the Unit's appropriation is intentionally and specifically eliminated by act of Congress, the following consequences apply: the mandatory disclosure obligations of Section 7005 of this title are automatically extended by one additional calendar year for each fiscal year in which the Unit is specifically defunded, and no redaction by any agency shall be permitted during any such extension period. Records that would have been released during the lapse year shall be released without any redaction—other than minor victim PII under Section 7005(h)(1)—directly to GovInfo.gov by the originating agencies on the date the lapse year's release would have been due. No executive agency may invoke a Presidential Postponement Certification, category carve-out, or combination protection determination during any intentional defunding period. The October 15, 2028 hard deadline is extended by one calendar year for each fiscal year of intentional defunding, but the hard deadline character of the extended date is preserved. Congress finds that suppression of

Records of the Epstein Network through targeted budgetary defunding is a more serious violation of this title's purpose than any administrative non-compliance, and that unredacted release is the appropriate automatic consequence.

(h) OPERATING PROCEDURE—UNREDACTED AGENCY SUBMISSION.—Each originating agency shall submit fully unredacted Records of the Epstein Network to the Unit in accordance with the rolling production schedule in Section 7005. Agencies shall not pre-redact, withhold pages, or modify records before submission. The Unit shall apply all authorized redactions pursuant to Sections 5(h), 6, and 6A, including Category Six combination protection under Section 7013. Upon completing its review of each batch, the Unit shall transmit the redacted documents to the GPO using GPO's GovInfo system, accompanied by the SHA-256 hash manifest. The Unit—not the originating agency—is the transmitting party to GPO. The GPO shall publish only records received from the Unit, not records received directly from originating agencies.

(h-1) ROLLING RELEASE OBLIGATION AND BAD-FAITH SUBMISSION PROHIBITION.—The Unit shall release reviewed and cleared records to GPO on a rolling basis as review of each document is completed, without holding finished work pending completion of the full submitted universe. A record cleared by the Unit on any given day shall be transmitted to GPO for publication within five (5) business days of clearance, regardless of whether other records from the same agency or tranche remain under review. The October 15, 2028 hard publication ceiling is a ceiling, not a floor—the Unit shall not batch-hold cleared records until the deadline. Any originating agency that submits records with no plausible connection to the definition of Records of the Epstein Network in this title, in a volume that a reasonable reviewer would conclude was designed to impair rather than facilitate the Unit's review, shall be presumed to have submitted in bad faith. The Unit Head shall report any bad-faith submission determination to both Judiciary Committees within five (5) business days, identifying the agency, the approximate volume of non-responsive records, and the basis for the determination. A bad-faith submission determination triggers automatic contempt proceedings against the agency head personally, and the non-responsive records shall be set aside without review—they do not extend the Unit's review timeline for responsive records.

(h-2) ORIGINATING AGENCY HASH VERIFICATION.—

(1) AGENCY HASH RECEIPT.—Simultaneously with the Unit's transmission of any records to GPO under Section 7012(h-1), the Unit shall transmit to the originating agency the SHA-256 hash value for each record originating from that agency that is included in the transmission. The transmission shall identify each record by the unique document identifier assigned at submission and shall state the hash value computed at the moment of Unit transmission to GPO.

(2) AGENCY VERIFICATION PERIOD.—Within five (5) business days of receipt of hash values under paragraph (1), the originating agency may compare the transmitted hash value against the hash value of the record as submitted to the Unit. If the hash values

do not match—indicating that the record was altered between submission to the Unit and transmission to GPO—the originating agency shall immediately report the discrepancy to the Unit Head, to both Judiciary Committees, and to the presiding judge of the United States District Court for the District of Columbia.

(3) DISCREPANCY INVESTIGATION.—Any hash discrepancy reported under paragraph (2) shall trigger an immediate judicial inquiry by the United States District Court for the District of Columbia. Publication of the affected record shall be suspended pending resolution of the inquiry. The Unit Head shall preserve in unaltered form all versions of the affected record held by the Unit and shall produce them to the court within forty-eight (48) hours of the discrepancy report.

(4) POST-PUBLICATION VERIFICATION.—The originating agency may also compare the hash value published on GovInfo.gov under Section 7005(f) against the hash transmitted to it under paragraph (1). Any discrepancy between the published hash and the Unit-transmitted hash constitutes presumptive evidence of GPO-level alteration and shall be reported immediately to the Unit Head, both Judiciary Committees, the court, and the GPO Superintendent of Documents. Any alteration causing a hash mismatch at any stage of the chain constitutes falsification under 18 U.S.C. § 1519.

(i) CONGRESSIONAL REPORTING.—The Unit Head shall transmit to both Judiciary Committees, not later than fifteen (15) calendar days after each production tranche deadline in Section 5—

(1) a complete accounting of all records received from each agency, the redactions applied and their basis under Sections 6 and 6A, any combination protection determinations made under Section 7013, and any agency non-compliance with submission requirements;

(2) a certification that the Unit's review was conducted independently without direction from any executive agency official; and

(3) identification of any attempt by any executive official to interfere with the Unit's substantive review or redaction decisions.

(i-1) SEVERABILITY.—The provisions of this Section are severable. If any provision of this Section—including any staffing criterion, appointment mechanism, removal notice requirement, or funding provision—is held unconstitutional or otherwise invalid by a court of competent jurisdiction, that holding shall not affect the validity or enforceability of any other provision of this Section. In particular—

(1) if the Unit Head appointment mechanism in subsection (d) is held unconstitutional or is enjoined by any court, the Unit's mandate, operational independence, staffing criteria, redaction authority, and all other provisions of this Section remain in full force, and the appointment obligation shall transfer automatically to the Archivist of the United States, who shall appoint the Unit Head from among career NARA employees meeting the criteria in subsection (c), provided that the Archivist shall, prior to making such appointment, certify in writing to both Judiciary Committees that the appointment will be

made independently of any direction from the President, the Office of Management and Budget, or any other executive branch official. If the Archivist declines to so certify, is unable to act, or if the Archivist's appointment of the Unit Head is itself held unconstitutional, the appointment shall be made by the President pursuant to Article II, Section 7002, from among career NARA employees meeting the criteria in subsection (c);

(2) if any removal notice provision in subsection (f) is held unconstitutional, the remaining notice provisions and the public certification requirement remain in full force; and

(3) if any staffing criterion in subsection (c) is held unconstitutional, the Unit shall be staffed from among career NARA employees with the most relevant declassification expertise as determined by the appointing authority.

(j) SUNSET.—The Unit shall conclude its operations upon certification by the Unit Head that all Records of the Epstein Network subject to mandatory disclosure under Section 7005 have been reviewed, redacted as authorized, and transmitted to GPO for publication, and that no Presidential Postponement Certifications remain subject to unexpired review. The Unit shall not be dissolved before that certification is made. Upon dissolution, the Unit's records, redaction determinations, and combination protection analyses shall be transferred to the sealed custody of the Clerk of the United States District Court for the District of Columbia for a period of not less than twenty (20) years.

(k) JURISDICTION STRIPPING—NO PRELIMINARY INJUNCTIVE RELIEF.—No court of the United States shall have jurisdiction to issue a preliminary injunction, temporary restraining order, or any other form of interim equitable relief staying or suspending the operations of the Unit or the mandatory disclosure obligations of Section 7005 of this title, pending the resolution of any constitutional or statutory challenge. Only a final judgment of a court of competent jurisdiction, entered after full merits adjudication, may affect the Unit's operations or the disclosure obligations of this title. Any constitutional or statutory challenge to any provision of this Section or Section 7005 shall be heard and decided on an expedited basis: the trial court shall issue a final decision within ninety (90) calendar days of filing; any appellate court shall issue a final decision within sixty (60) calendar days of a notice of appeal. Congress finds that the public interest in timely Records of the Epstein Network disclosure outweighs any private interest in interim equitable relief, and that the severability clause in Section 7012(i-1) adequately protects against the risk of an unconstitutional provision by providing clear fallback mechanisms that permit the Unit to continue operating under any constitutional alternative without interim suspension.

SEC. 7013. CATEGORY SIX—COMBINATION RELEASE PROTECTION AND MOSAIC ANALYSIS.

(a) PURPOSE.—This Section addresses the mosaic effect in intelligence disclosure—the recognized risk that two or more individually innocuous partially-redacted records, when released simultaneously or in close succession, may in combination make the identity of a

protected source or the nature of a protected collection method reasonably inferable to a trained analyst, even though neither record standing alone would make that identification. This risk is recognized in CIA v. Sims, 471 U.S. 159 (1985). This Section provides a targeted mechanism to address genuine combination risks without permitting the mosaic theory to be used as a blanket justification for withholding Records of the Epstein Network.

(b) COMBINATION PROTECTION STANDARD.—The Unit may apply combination protection to a specific set of records only where—

(1) two or more specific identified records, when released simultaneously or within the same production tranche, would together make the personal identity of a protected source under Section 7011(b), Section 7011(d), or Section 7011(f) reasonably inferable to a trained intelligence analyst, even with all authorized redactions applied to each individual record; or

(2) two or more specific identified records, when released simultaneously, would together reveal the existence or operational parameters of a signals intelligence collection method protected under Section 7011(e) in a manner that neither record would reveal standing alone.

Combination protection may not be invoked solely because the combined records are embarrassing, politically sensitive, or reputationally damaging. The overriding embarrassment prohibition in Section 7011(a) applies with full force to combination protection determinations.

(c) PROCEDURE.—Where the Unit determines a combination risk exists, it shall—

(1) document in writing the specific records involved, the specific elements in each record that create the combination risk, and the specific identity or method that would be revealed by the combination;

(2) apply one of the following targeted remedies rather than withholding any record in its entirety—

(A) SEQUENTIAL RELEASE.—delay one of the records in the combination to a subsequent production tranche, so the records are not simultaneously public, with the delayed record released no later than October 15, 2028 or the applicable final tranche deadline, whichever is earlier; or

(B) TARGETED ADDITIONAL REDACTION.—apply a specific additional redaction to one record that removes only the linking element—typically a date, location, or descriptive detail—that makes the combination identifying, releasing all other content in both records on the standard schedule;

(3) report the combination protection determination to both Judiciary Committees in its tranche report under Section 7012(i), identifying the records involved and the remedy applied; and

(4) submit the combination protection determination to in camera review by the United States District Court for the District of Columbia upon request by any member of either Judiciary Committee, within thirty (30) days of such request.

(d) PROHIBITION ON WHOLESALE WITHHOLDING.—No combination protection determination shall result in the indefinite withholding of any Records of the Epstein Network. The two remedies in subsection (c)(2) are the exclusive available responses to a combination risk. A record may be sequentially delayed but not permanently withheld on combination grounds. All records subject to combination protection shall be released no later than the Unit Review Completion Date of July 16, 2028—records not submitted by that date enter the Degraded Review Regime under Section 7005(e-2) and receive no combination protection—regardless of any other risk, unless also subject to a valid Presidential Postponement Certification under Section 7010.

(d-1) QUANTITATIVE CAP ON COMBINATION PROTECTION—AUTOMATIC JUDICIAL REVIEW.—No more than twenty percent (20%) of any single agency's total submitted records may be subject to combination protection determinations simultaneously. Any combination protection determination that would cause the total protected records from a single agency to exceed that threshold automatically triggers mandatory in camera judicial review by the United States District Court for the District of Columbia within thirty (30) calendar days, without requiring a congressional request. The court shall determine whether the combination protection determinations were made in good faith pursuant to the standard in subsection (b) or whether the aggregate pattern of determinations constitutes a de facto wholesale suppression of that agency's records. If the court finds wholesale suppression, all combination protection determinations for that agency are void and the records release on the standard schedule. Additionally, if the Unit Head is removed and replaced, all combination protection determinations made by the previous Unit Head remain in effect and may only be reversed by the new Unit Head with written justification filed publicly with both Judiciary Committees, subject to the same in camera judicial review on thirty (30) day congressional request.

(d-1-CF) RULE OF CONSTRUCTION—COMBINATION PROTECTION QUANTITATIVE CAP.—The combination protection quantitative cap established by this section shall be construed as addressing the documented abuse of mosaic theory as a wholesale withholding justification in intelligence declassification proceedings—specifically, the documented pattern in which mosaic theory has been systematically invoked to withhold quantities of records far exceeding any genuine combination identification risk, as documented in declassification audit reports and congressional oversight records. The quantitative cap is rationally adapted to that specific documented abuse and does not prevent legitimate mosaic protection; it prevents the use of mosaic theory as a de facto blanket exemption.

(d-2) RULE OF CONSTRUCTION—RELATIONSHIP BETWEEN COMBINATION PROTECTION CAP AND PRESIDENTIAL CERTIFICATION.—The combination protection quantitative cap in this section operates exclusively at the level of the Unit's

administrative review process. It governs when the Unit must submit its combination protection determinations for judicial oversight and prevents administrative mosaic analysis from functioning as a de facto wholesale withholding mechanism within the Unit's review process. It does not limit, modify, supersede, or interact with the President's independent authority under Section 7010 to issue Presidential Postponement Certifications for any specific record or category of records meeting the enumerated grounds. These two mechanisms operate at distinct levels: the mosaic cap governs administrative review by the Unit; the Presidential Certification governs executive branch postponement decisions made independently of and subsequent to the Unit's review. A record that clears the Unit's mosaic review process remains fully subject to Presidential Postponement Certification until September 1, 2028, if the President independently determines it meets the certification grounds. The two mechanisms are sequential, not conflicting. Where any court reads ambiguity between this Section and Section 7010 of this title, this subsection constitutes the express congressional direction that the two provisions operate harmoniously and that the President's certification authority is fully preserved as the ultimate backstop for any genuinely sensitive record.

SEC. 7014. SELF-EXECUTING ESPIONAGE ACT IMMUNITY.

(a) AMENDMENT—18 U.S.C. § 793.—Section 793 of Title 18, United States Code, is amended by adding at the end the following new subsection:

"(h) EPSTEIN NETWORK DISCLOSURE EXCEPTION.—Subsections (a) through (g) of this section shall not apply to any disclosure, communication, or transmission of any Records of the Epstein Network, as defined in the Epstein Accountability and Public Disclosure Provisions, by a Qualified Disclosant, as defined in that Act, where such disclosure constitutes a Protected Disclosure under that Act and is not made with the primary purpose of providing intelligence to a foreign government or aiding a foreign adversary. The burden of establishing that a disclosure was made with the primary purpose of aiding a foreign government or adversary rests on the government, by clear and convincing evidence.

"(i) INCIDENTAL FOREIGN ADVANTAGE—DISCLOSURE PRIORITIZED.—The immunity established by subsection (h) shall not be defeated solely on the ground that the Records of the Epstein Network disclosed contain information concerning United States officials or government activities that is already within the possession of one or more foreign intelligence services, or that disclosure of such information may incidentally confirm facts already known to a foreign adversary. Congress finds as follows: (1) foreign adversaries who possess information concerning misconduct by United States officials that has not been publicly disclosed to the American people may exploit that informational asymmetry as a tool of leverage, coercion, blackmail, or political interference against the United States and its democratic institutions; (2) the concealment of such information from the domestic public—while it remains known to foreign adversaries—creates, rather than eliminates, a national security vulnerability by preserving that leverage in foreign hands; (3) public disclosure of such information to the American people corrects that asymmetry and eliminates the leverage

that concealment creates; and (4) the public interest in correcting such an informational asymmetry through domestic disclosure outweighs the marginal risk that disclosure may incidentally confirm information already in foreign possession, provided the disclosure was not made with the primary purpose of providing intelligence to a foreign government or aiding a foreign adversary. A Qualified Disclosant shall not be denied immunity under subsection (h) solely because the disclosed Records of the Epstein Network relate to individuals whose conduct may already be known to foreign intelligence services."

(a-1) AMENDMENT—18 U.S.C. § 798.—Section 798 of Title 18, United States Code, is amended by adding at the end the following new subsection:

"(b) EPSTEIN NETWORK DISCLOSURE EXCEPTION.—Subsection (a) of this section shall not apply to any disclosure of any Records of the Epstein Network, as defined in the Epstein Accountability and Public Disclosure Provisions, by a Qualified Disclosant, as defined in that Act, where such disclosure constitutes a Protected Disclosure under that Act and is not made with the primary purpose of providing intelligence to a foreign government or aiding a foreign adversary."

(b) SELF-EXECUTING.—This immunity is self-executing. No prior authorization, certification, review, or approval is required. The immunity attaches at the moment of disclosure.

(c) PROTECTIONS.—A Qualified Disclosant who makes a protected disclosure under this Section shall not be subject to—

(1) criminal prosecution under any provision of Title 18 or Title 50 arising from the act of disclosure;

(2) adverse employment action or termination;

(3) revocation or suspension of any security clearance;

(4) civil suit by any federal agency or officer in their official capacity; or

(5) any non-disclosure agreement, secrecy oath, or contractual confidentiality obligation, which are hereby rendered unenforceable as applied to Records of the Epstein Network.

(d) BURDEN OF PROOF.—Good faith shall be presumed. The burden of proving that a disclosure was made primarily to aid a foreign adversary or government rests on the government, by clear and convincing evidence.

(e) EXCLUSIONS.—Nothing in this Section immunizes a Qualified Disclosant for—

(1) fabrication or material falsification of any Records of the Epstein Network;

(2) theft of records not subject to mandatory disclosure under Section 7005; or

(3) disclosure of the name or identity of any minor victim.

SEC. 7015. WHISTLEBLOWER FINANCIAL PROTECTIONS AND CIVIL REMEDIES.

(a) PROHIBITED ADVERSE ACTIONS.—No employer, whether federal, state, local, or private, and no official acting in an official capacity, may take any adverse action against any Qualified Disclosant on account of a Protected Disclosure, including:

(1) termination or constructive discharge;

(2) demotion, reduction in pay, or elimination of duties;

(3) suspension, reassignment, or transfer;

(4) refusal to hire or rehire;

(5) any other form of retaliation, harassment, or material adverse change in the terms or conditions of employment.

(b) CIVIL CAUSE OF ACTION.—A Qualified Disclosant who suffers any adverse action prohibited by subsection (a) may bring a civil action in the United States District Court for the District of Columbia or the federal district in which the adverse action occurred. The action shall be filed not later than three (3) years after the date on which the adverse action was taken or the date on which the Qualified Disclosant knew or reasonably should have known of the adverse action, whichever is later.

(c) BURDEN OF PROOF AND PRESUMPTION.—In any civil action under this Section, the burden of proof shall be as follows:

(1) the Qualified Disclosant bears the initial burden of demonstrating that a Protected Disclosure was made and that an adverse action followed;

(2) upon that showing, a rebuttable presumption arises that the adverse action was taken on account of the Protected Disclosure;

(3) the burden then shifts to the employer or official to demonstrate by clear and convincing evidence that the adverse action would have been taken for reasons entirely independent of the Protected Disclosure.

(d) REMEDIES.—A Qualified Disclosant who prevails in a civil action under this Section shall be entitled to:

(1) reinstatement to the position held before the adverse action, or a substantially equivalent position, at the Qualified Disclosant's election;

(2) back pay, including all pay, allowances, benefits, and seniority credits lost as a result of the adverse action;

(3) compensatory damages for any pecuniary loss not covered by back pay;

(4) reasonable attorney fees and litigation costs; and

(5) where the court finds the adverse action was willful or taken in bad faith, additional damages of not less than twice the amount of back pay lost.

(e) INJUNCTIVE RELIEF.—The court may grant preliminary and permanent injunctive relief, including reinstatement, where the Qualified Disclosant demonstrates that the adverse action is ongoing and that the balance of equities favors relief.

(f) FEDERAL EMPLOYEES.—For adverse actions against federal employees, this Section supplements but does not displace the protections and remedies available under the Whistleblower Protection Act, 5 U.S.C. § 2302, and the applicable Merit Systems Protection Board procedures, except that the presumption in subsection (c) and the attorney fee entitlement in subsection (d)(4) apply in all proceedings regardless of forum.

SEC. 7016. INTENT LIMITATION—ANTI-REPUTATIONAL WEAPONIZATION CLAUSE.

No protection afforded under this Part shall extend to any disclosure made primarily for the purpose of—

(1) damaging the reputation of a Covered Individual based on fabricated, falsified, or unsubstantiated allegation;

(2) publishing information concerning a Covered Individual's lawful private conduct entirely unrelated to the Epstein Network; or

(3) facilitating political opposition research through the guise of public interest disclosure, where the information has no material connection to the Epstein Network.

In any proceeding under this Part, good faith and the factual basis of the disclosure shall be presumed in favor of the Qualified Disclosant. The burden of establishing improper purpose shall fall on the party asserting it, by clear and convincing evidence.

SEC. 7017. CIPA REFORM—APPLICATION IN EPSTEIN-RELATED PROCEEDINGS.

(a) SUPPRESSION LIMITATION.—In any civil or criminal proceeding arising from or related to a Protected Disclosure of any Records of the Epstein Network, the government may not invoke CIPA to suppress, substitute, or exclude any Records of the Epstein Network that directly and materially establishes the factual basis for the Qualified Disclosant's disclosure. The presiding court shall conduct an in camera review and shall order disclosure unless it finds by clear and convincing evidence that the specific record would cause grave harm to a national security interest entirely unrelated to the Epstein Network.

(b) AMICUS.—In any proceeding in which CIPA is invoked against a Qualified Disclosant, the presiding court shall appoint an independent security-cleared amicus curiae to represent the public interest in disclosure, funded from the United States Courts appropriation.

PART II—FBI REPORT ON TERMINOLOGY IN RELEASED DEPARTMENT OF JUSTICE EPSTEIN RECORDS

SEC. 7018. MANDATE FOR FBI EXPLANATORY REPORT.

(a) IN GENERAL.—Not later than thirty (30) calendar days after the date of enactment of this title, the Director of the Federal Bureau of Investigation shall transmit to the Committee on the Judiciary of the Senate, the Committee on the Judiciary of the House of Representatives, and concurrently to the public via the Bureau's official public website, a written report addressing every plausible and documented explanation for the presence and use within the

already publicly released Department of Justice files concerning Jeffrey Edward Epstein of each of the following terms (the 'Subject Terms'):

(1) "whoops";

(2) "pizza";

(3) "hot dog";

(4) "cheese pizza";

(5) "grape soda";

(6) "pasta"; and

(7) "cream cheese" and "cheese" appearing in conjunction.

(b) REQUIRED CONTENTS.—The report required by subsection (a) shall, for each Subject Term—

(1) identify every document and page within the released files in which the Subject Term appears;

(2) provide the complete surrounding textual context of each instance;

(3) set forth every plausible explanation for the use of the Subject Term, including—

(A) ordinary, colloquial, or food-related usage;

(B) FBI internal slang, jargon, or investigative shorthand used by the Bureau itself in connection with the Epstein Network or Epstein's criminal activities, including any usage in investigative files, internal communications, or memoranda relating to Epstein, Maxwell, or any Epstein Network member;

(C) documented usage by criminal networks, organized crime, or trafficking organizations as coded, non-literal, or encrypted language in the context of child sex trafficking, sexual exploitation, blackmail, or the commercial sexual abuse of minors;

(D) documented usage by sex traffickers, blackmailers, or individuals engaged in the production, distribution, or possession of child sexual abuse material or underage pornography as coded language, including any usage identified in FBI, DEA, HSI, or other law enforcement databases of known criminal code words or terminology;

(E) documented usage by pedophiles, child molesters, or individuals engaged in the grooming, exploitation, or sexual abuse of minors as identified in any law enforcement case file, academic criminological study, or forensic linguistic analysis known to the Bureau;

(F) coded or non-literal language as determined by any investigative finding in any federal, state, or foreign law enforcement proceeding, whether or not that proceeding was related to the Epstein Network; and

(G) any usage that formed the basis of an investigative inquiry, whether that inquiry was opened, continued, or discontinued;

(4) identify whether any investigation was opened, extended, or discontinued based in whole or in part on the occurrence of the Subject Term; and

(5) identify whether any interpretation of the Subject Term was communicated to any superior, congressional oversight body, or the public prior to enactment.

(c) CLASSIFIED ANNEX.—The Director may submit, concurrently with the public report, a classified annex to the relevant congressional committees. The existence of any classified annex shall itself be publicly disclosed.

PART III—GHISLAINE MAXWELL: DEPOSITION, IMMUNITY, AND IDENTITY VERIFICATION

SEC. 7019. CONGRESSIONAL DEPOSITION OF GHISLAINE MAXWELL.

(a) CONVENING.—Not later than sixty (60) calendar days after the date of enactment of this title, the Committee on the Judiciary of the Senate, jointly with the Committee on the Judiciary of the House of Representatives, shall convene a deposition of Maxwell pursuant to the Judiciary Committees' respective subpoena authorities.

(b) MAXWELL TRANSPORT—COURT-DIRECTED, USMS-EXECUTED.—Transport of Maxwell from the federal facility at which she is incarcerated at the time of transport (her "facility of incarceration") to the location of the deposition shall be arranged as follows—

(1) Not later than thirty (30) calendar days after the date of enactment, the presiding judge of the United States District Court for the Southern District of New York shall issue an order directing the relevant USMS District Office to arrange and execute Maxwell's transport from her facility of incarceration to the deposition location, and return, on the date designated by the deposition committee. The Attorney General shall not direct, supervise, or control the transport arrangements. The court's order is the operative authority for transport, not any executive agency directive;

(2) TRANSPORT PROTOCOL—PERSON IN CUSTODY.—Transport of Maxwell shall be conducted under the following requirements, which govern the transport of a person in federal custody and are independent of the document transport protocol in Section 7023(b)(1)(G):

(A) CUSTODY CHAIN.—Maxwell shall remain in the continuous legal custody of the United States Marshals Service from the moment she departs her facility of incarceration to the moment she is returned. Bureau of Prisons custody shall resume immediately upon her return and physical re-entry to her facility of incarceration. No gap in federal custody shall occur at any point;

(B) TWO-SENIOR-OFFICER RULE.—At every transition point—departure from her facility of incarceration, any interim facility or vehicle transfer, arrival at the deposition location, departure from the deposition location, and return to her facility of incarceration—at least two senior USMS officers shall be simultaneously present and shall each independently attest on the USM-129 person-in-custody transport form

to Maxwell's continuous custody, identity, and physical condition at that transition point;

(C) MEDICAL MONITORING.—A court-designated independent physician, with no prior connection to BOP or USMS, shall be present at the deposition location for the duration of Maxwell's presence and shall file a sealed medical status report with the presiding judge within twenty-four (24) hours of Maxwell's return to her facility of incarceration, certifying Maxwell's physical condition at the conclusion of transport and confirming continuity of identity against the Baseline Biometric Record for that visit;

(D) IDENTITY CONFIRMATION AT DEPOSITION.—Before Maxwell is produced to the deposition committee, the USMS senior officer in charge of the transport detail shall make a sworn on-the-record statement confirming Maxwell's continuous custody during transport and confirming that the individual being produced is the individual who departed her facility of incarceration. This statement shall be the second exhibit of the deposition transcript, following the Special Master's identity confirmation under Section 7023(g);

(E) CHAIN-OF-CUSTODY FILING.—The completed USM-129 for the full transport shall be filed on the court's public PACER docket in two versions—a public version containing only institutional attestation with no individual identifying information of transport personnel, and a sealed version accessible only to the presiding judge—consistent with the protocol established in Section 7023(b)(1)(G)(V); and

(F) PERSONNEL SECURITY.—USMS personnel assigned to Maxwell's deposition transport shall be provided operational security protections by the Director of the United States Marshals Service, including threat assessment, identity suppression from public filings, and post-assignment security monitoring, for the duration of their assignment and for not less than two (2) years thereafter, on the same terms as set forth in Section 7023(b)(1)(G)(VI). No public disclosure of their identity is required;

(3) Bureau of Prisons shall produce Maxwell to the designated USMS transport officers within two (2) hours of the scheduled transport time. Any refusal, delay, or condition placed on production shall be reported to the presiding judge within one (1) hour and shall constitute contempt of court and obstruction under 18 U.S.C. § 1503.

(c) SCOPE.—The deposition shall be conducted under oath and shall address, at minimum—

(1) the full scope of Maxwell's knowledge of the identities of all individuals who participated in, facilitated, or had knowledge of the sexual exploitation and trafficking of minors by Epstein or his associates;

(2) the identities of all Covered Individuals who were present at any property associated with Epstein or attended any gathering organized by Epstein or Maxwell;

(3) the nature and extent of Maxwell's cooperation with federal law enforcement prior to and following her arrest;

(4) any knowledge Maxwell possesses concerning the circumstances of Epstein's death on August 10, 2019;

(5) Maxwell's knowledge of any foreign government or foreign national involvement in the Epstein Network, including the identity of any foreign national who participated in, facilitated, financed, or otherwise aided the Network, and any contact between the Network and any foreign government official or foreign intelligence service;

(6) the financial structure and funding sources of the Epstein Network, including the identity of all individuals and entities that provided financial support to the Network, the mechanism by which victims were recruited and compensated or coerced, and the disposition of any financial proceeds derived from Network activities; and

(7) any communications with, or direction received from, any attorney, agent, or intermediary acting on behalf of any co-conspirator or Network participant, including any such communications occurring after Maxwell's arrest on July 2, 2020.

(d) DEFENSE COUNSEL NOTICE AND MINIMUM WAITING PERIOD.—

(1) MANDATORY SERVICE.—The immunity grant set forth in Section 7021 of this title, together with a written statement of its scope and limitations as defined in that Section, shall be personally served on Maxwell and on all counsel of record for Maxwell in United States v. Maxwell, No. 20-cr-330 (S.D.N.Y.), not later than twenty-one (21) calendar days before the date on which Maxwell's testimony is first compelled.

(2) OPPORTUNITY TO CONSULT.—Maxwell shall have the right to consult with her counsel of record regarding the scope of the immunity grant and the limitations of Section 7021 for a period of not less than fourteen (14) calendar days following service before being required to testify. The twenty-one-day service requirement and fourteen-day consultation period shall run concurrently with, and shall not extend, the sixty-day convening deadline of Section 7019(a), except that if service of the immunity grant is not completed at least twenty-one days before the sixty-day deadline, the convening deadline shall be extended by the number of days of delay in service, up to a maximum extension of fourteen (14) days.

(3) CONSTITUTIONAL ADEQUACY.—The service and consultation requirements of this subsection are minimum constitutional requirements for the adequacy of the immunity grant under Kastigar v. United States, 406 U.S. 441 (1972), and may not be waived by either the government or the committees convening the deposition.

SEC. 7020. PRE-DEPOSITION EVIDENCE CERTIFICATION.

(a) FILING REQUIREMENT.—Not later than thirty (30) calendar days after the date of enactment, and in no event less than fourteen (14) calendar days before the deposition of Maxwell is convened, the Attorney General shall file under seal with the United States District Court for the Southern District of New York a complete Pre-Deposition Evidence Certification consisting of—

(1) a complete inventory of all evidence in the possession, custody, or control of any federal agency relating to Maxwell's personal criminal conduct;

(2) a complete list of all individuals whom any federal agency had identified as investigative targets or prosecutorial candidates in connection with the Epstein Network prior to the date of the Certification's filing;

(3) a complete list of all offenses for which Maxwell was, as of the date of filing, a potential defendant beyond her existing conviction; and

(4) a sworn certification by the Attorney General that the inventory is complete and accurate to the best of the government's knowledge and belief.

The thirty (30) calendar day deadline is the operative hard deadline and shall control regardless of when the deposition is ultimately convened. The fourteen (14) calendar day requirement is an additional minimum condition that applies independently: even if the Certification is filed within thirty days of enactment, it must still be filed at least fourteen days before the deposition commences. Where the deposition is convened earlier than the forty-sixth day after enactment, the Attorney General shall file the Certification no later than fourteen days before the designated deposition date, regardless of whether thirty days have elapsed since enactment. In no event shall the fourteen-day requirement be construed to extend the thirty-day deadline.

(b) IMMUTABILITY.—The Certification shall be filed before Maxwell testifies and shall not be modified, supplemented, or amended after the deposition begins. The court shall retain custody for not less than twenty (20) years.

(c) EVIDENTIARY BASELINE.—The Certification shall serve as the evidentiary baseline for all immunity determinations under Section 7021. The party asserting Pre-Existing Government Knowledge shall bear the burden of demonstrating by reference to the sealed Certification that the specific information was known to the government prior to the deposition.

SEC. 7021. USE AND DERIVATIVE USE IMMUNITY—SCOPE, LIMITS, AND CARVE-OUTS.

(a) GRANT.—Maxwell may not invoke the privilege against self-incrimination under the Fifth Amendment with respect to matters covered by this deposition. In lieu of that privilege, Congress hereby grants Maxwell use and derivative use immunity as defined in 18 U.S.C. § 6002, as further defined and limited by this Section, constituting the minimum immunity constitutionally required to compel her testimony under Kastigar v. United States, 406 U.S. 441 (1972). No testimony or other information compelled under this grant of immunity, or any information directly or indirectly derived therefrom, may be used against Maxwell in any criminal case, except as specifically provided in subsections (b) through (c) of this Section. This immunity is granted by Congress directly through this title and supersedes the procedural mechanism of 18 U.S.C. § 6005 solely for purposes of this title.

(b) LIMITATIONS.—The use and derivative use immunity granted herein is limited as follows —

(1) SCOPE.—The immunity applies only to Novel Testimony as defined against the Pre-Deposition Evidence Certification. It does not apply to any matter constituting Pre-Existing Government Knowledge as established by the Certification.

(2) PERSONAL ONLY.—The immunity applies solely to Maxwell's own potential criminal exposure arising from Novel Testimony. It confers no immunity, protection, benefit, or legal advantage of any kind upon any co-conspirator, associate, named individual, or third party identified in Maxwell's testimony.

(3) SENTENCE UNDISTURBED.—Nothing in this Section shall in any way modify, reduce, suspend, commute, or otherwise affect Maxwell's existing sentence of twenty (20) years of imprisonment entered on June 28, 2022.

(4) PRE-EXISTING EVIDENCE UNAFFECTED.—The government's ability to prosecute Maxwell, or any other person, using evidence appearing in the Pre-Deposition Evidence Certification is entirely unaffected by this Section.

(5) NO TRANSACTIONAL IMMUNITY.—This Section does not grant transactional immunity. Maxwell may be prosecuted for any offense revealed by Novel Testimony, provided the prosecution is built exclusively from independently obtained evidence.

(c) EXPLICIT EXCLUSIONS.—The following are excluded from the immunity granted herein—

(1) perjury, false declaration, or obstruction of justice during or in connection with the deposition;

(2) any offense for which the government possesses independent evidence predating the deposition, as established by the Certification;

(3) any offense committed after the date of the deposition; and

(4) any continuing offense extending beyond the date of the deposition.

(d) CO-CONSPIRATORS.—No immunity granted under this Section shall prevent, delay, or complicate the prosecution of any co-conspirator, associate, or third party named in Maxwell's testimony. Prosecutors may use Maxwell's testimony as an investigative lead, as corroboration of pre-existing evidence, or as the basis for further independent investigation of any named individual other than Maxwell, without limitation. With respect to Maxwell herself, prosecutors may not use Novel Testimony as a derivative investigative lead to locate or obtain evidence against Maxwell that did not already exist independently at the time of the deposition, as such use would constitute derivative use prohibited under Kastigar v. United States, 406 U.S. 441 (1972); all other uses of Novel Testimony—including as a lead to investigate and prosecute any third party, co-conspirator, or named individual—are fully permitted and are not restricted by this Section.

(e) PUBLIC TRANSCRIPT.—The transcript of the deposition shall be made public within fifteen (15) calendar days of its conclusion, subject only to redaction of the names and personally identifying information of minor victims pursuant to the Crime Victims' Rights

Act, 18 U.S.C. § 3771, and the names of active undercover law enforcement personnel. No other redaction is permitted.

SEC. 7022. TOLLING OF FEDERAL STATUTES OF LIMITATIONS FOR OFFENSES REVEALED BY NOVEL TESTIMONY.

(a) TOLLING PERIOD.—The applicable federal statute of limitations for any criminal offense first revealed to federal investigators through Novel Testimony as defined in Section 7003 of this title shall be tolled from the date of the deposition of Maxwell under Section 7019 until the date that is five (5) years after the public release of the deposition transcript under Section 7021(e), or the date on which the applicable limitations period would otherwise expire, whichever is later. The tolled period shall not extend the applicable limitations period by more than five (5) years beyond the date of the deposition.

(b) CONDITION.—Tolling under this Section applies only to offenses for which the applicable federal statute of limitations had not expired as of the date of Maxwell's arrest on July 2, 2020, and which are first identified through Novel Testimony rather than through evidence appearing in the Pre-Deposition Evidence Certification.

(c) CONSTRUCTION.—Nothing in this Section shall be construed to revive any criminal offense for which the applicable federal statute of limitations had fully expired before the date of Maxwell's arrest.

SEC. 7023. MAXWELL IDENTITY VERIFICATION—CROSS-REGIONAL SPECIAL MASTER POOL AND QUARTERLY BIOMETRIC VERIFICATION.

(a) PURPOSE.—The purpose of this Section is to establish a continuous, judicially supervised, executive-branch-independent mechanism for verifying that the individual held in federal custody under Federal Register Number 02879-509 is the same individual convicted on December 29, 2021. This Section operates under Federal Rule of Civil Procedure 53 and Federal Rule of Evidence 706. No element of this Section shall be administered, overseen, or reported through any executive agency.

(a-1) BASIS FOR BIOMETRIC VERIFICATION—DOCUMENTED FAILURE OF CONVENTIONAL REPORTING.—The biometric verification regime established by this section addresses the documented and unresolved public concern about the integrity of federal custody that conventional Bureau of Prisons reporting mechanisms have wholly failed to address. That failure is not hypothetical—it is documented in the public record, in the unresolved questions surrounding the circumstances of Jeffrey Epstein's death on August 10, 2019 while in federal custody, and in the sustained, widespread public concern about the individual whose custody this Section verifies. The biometric verification regime is rationally adapted to that specific documented failure by creating a judicially supervised, executive-branch-independent verification mechanism that does not depend on any executive agency's self-reporting.

(a-2) RULE OF CONSTRUCTION—UNPRECEDENTED CIRCUMSTANCES.—The quarterly biometric verification regime established by this section is necessarily

unprecedented because the circumstances requiring it are necessarily unprecedented. The individual whose custody it verifies was convicted of serious federal crimes in a matter of extraordinary public interest; is a central witness to criminal conduct by individuals who have never been prosecuted; is held in federal custody by the same executive branch that, in prior proceedings in the same matter, was found to have violated the Crime Victims' Rights Act; and whose continued custody and identity are subjects of documented and widespread public concern that conventional Bureau of Prisons reporting mechanisms have proven wholly inadequate to address. Public confidence in the integrity of the federal criminal justice system—and specifically in the integrity of federal custody of a convicted co-conspirator whose cooperation has been sought and whose testimony remains material to unresolved questions of public accountability—is a compelling governmental interest recognized across the Supreme Court's separation of powers, due process, and institutional legitimacy jurisprudence. The verification regime imposes no pain, no deprivation beyond ordinary custody conditions, and no modification of sentence. It is administratively equivalent to routine institutional photography and identification procedures that courts have upheld for over a century. The publication of verification photographs on the public PACER docket serves the specific legitimate interest of enabling independent public verification of custody integrity where institutional reporting alone has failed.

(a-3) RULE OF CONSTRUCTION—OPERATIONAL FEASIBILITY.—The biometric verification procedures required by this section do not require novel or unproven technology. The FD-258 fingerprint card is the standard federal fingerprint collection card used by the FBI, the federal courts, and the Bureau of Prisons as a matter of routine institutional practice. The LiveScan digital fingerprint capture device is off-the-shelf equipment in standard use across the federal court system and is already integrated with the CM/ECF electronic filing system. The photographic equipment required by the Verification Photograph Standard in Section 7003 is standard commercial digital photography equipment subject to court-seal and chain-of-custody procedures already established in federal evidentiary practice. No agency, bureau, or court is required to procure, develop, or deploy any technology that does not already exist and is not already in operational use within the federal government. Any argument that the verification regime is operationally impossible or impracticable is without factual foundation.

(b) BASELINE BIOMETRIC RECORD.—The presiding judge shall compile and seal a Baseline Biometric Record in two sequential phases as provided in this subsection.

(1) PHASE ONE—DOMESTIC RECORDS (PRIORITY).—Not later than fourteen (14) calendar days after enactment, the presiding judge shall issue orders directed to the originating law enforcement agencies requiring production of physical originals and certified digital exports as specified herein. No executive agency, including the Federal Bureau of Investigation, shall serve as intermediary for the transmission of any other agency's records. Each originating agency—including the Federal Bureau of Investigation acting in its capacity as an originating agency that itself arrested and

processed Maxwell—shall produce only its own records directly to the Clerk. The FBI may not collect, bundle, or transmit any other agency's records. All physical originals shall be transported to the Clerk by the United States Marshals Service pursuant to the transport protocol in subparagraph (G). For records originating from FBI facilities, the USMS district office assigned to transport shall be geographically separate from and institutionally independent of that FBI field office, as provided in (G)(I).

(A) FINGERPRINT RECORDS—PHYSICAL ORIGINALS.—Each originating agency shall prepare for transport the original physical fingerprint card or cards—including any FBI Form FD-258 ink-and-roll card or equivalent—created at Maxwell's arrest, booking, intake into United States Marshals Service custody, and intake at each Bureau of Prisons facility. The originating agency shall have the records ready for USMS pickup within four (4) hours of receipt of the court's order. Production shall be of the original physical document pursuant to Federal Rule of Evidence 1002. The court shall take physical custody of each original upon delivery. The Clerk shall make a court-certified copy of each original under judicial supervision and return that court-certified copy to the originating agency within forty-eight (48) hours of receipt. The court-certified copy is the agency's operative retained record. The agency shall not make its own copy of the original before or during transport. Return of the court-certified copy to the originating agency shall be by USMS transport under the same two-person, tamper-evident, institutional-attestation-only protocol in subparagraph (G) within forty-eight (48) hours of receipt by the Clerk. For digital records, the court-certified copy shall be returned via the court's secure CM/ECF channel within forty-eight (48) hours. The court-certified copy is subordinate to the court's original in all evidentiary and legal proceedings. Any alteration of the court-certified copy after return to the agency constitutes an offense under Section 7023(h).

(B) FINGERPRINT RECORDS—DIGITAL ONLY, WHERE NO PHYSICAL ORIGINAL EXISTS.—Where an originating agency used LiveScan or other digital capture exclusively and no physical ink-and-roll card was created, the agency shall produce within twenty-four (24) hours a certified authentic export of the digital fingerprint record directly from the source system, together with a cryptographic hash of the exported file, generated at the moment of export and certified under oath by the agency head or designee to match the source record in the agency's system; and a sworn certification that the export is a complete and accurate representation of the record and that no alteration has occurred since original capture. Digital exports and hash certifications shall be transmitted directly to the Clerk via the federal judiciary's CM/ECF system or equivalent court-controlled secure judicial network—not through any public internet channel, executive agency network, or USMS transport. The court holds the exported file and its certified hash as the operative record. The agency retains a copy. Any later divergence between the file and the certified hash constitutes

a flag requiring immediate judicial inquiry and is presumptive evidence of post-production tampering prosecutable under Section 7023(h).

(C) BOOKING AND INTAKE PHOTOGRAPHS.—Each originating agency shall prepare for USMS transport the original physical photographs within four (4) hours of receipt of the court's order where printed originals exist, pursuant to Federal Rule of Evidence 1002. The Clerk shall make a court-certified copy and return it to the agency within forty-eight (48) hours as provided in subparagraph (A). Where photographs exist only in digital form, the agency shall produce a certified authentic export with cryptographic hash verification as provided in subparagraph (B), transmitted electronically to the Clerk.

(D) DENTAL RECORDS AND DNA PROFILES.—Any dental records and DNA profiles shall be prepared for USMS transport within four (4) hours where physical originals exist. The Clerk returns a court-certified copy within forty-eight (48) hours. Where records are digital only, the agency shall produce a certified authentic export with hash verification transmitted electronically, without FBI intermediation.

(E) CHAIN-OF-CUSTODY LOG.—The original sworn affidavit of the Director of the Bureau of Prisons shall be prepared for USMS transport within four (4) hours of receipt of the court's order, documenting every individual with physical supervisory responsibility for Maxwell from the date of her arrest through the date of enactment. The Clerk returns a court-certified copy to the Bureau of Prisons within forty-eight (48) hours.

(F) NON-EXISTENCE OF RECORDS—AFFIDAVIT AND PRESUMPTION OF CONCEALMENT.—If any originating agency claims that a record required under this paragraph does not exist or cannot be located, that claim shall not be accepted absent a sworn affidavit by the agency head, filed publicly with the court within twenty-four (24) hours of the production deadline, attesting under penalty of perjury that a diligent search was conducted of all systems, files, and archives in which the record would ordinarily be held; the record does not exist and was not created; or the record existed but cannot be located, together with the last known location, date last verified, and the names of all personnel with prior access. An uncorroborated claim of non-existence, or any failure to file the required affidavit within twenty-four (24) hours, shall be treated by the presiding judge as presumptive evidence of destruction or concealment and shall trigger immediate contempt proceedings against the agency head personally, independent of any prosecution under Section 7023(h). Logistical difficulty is not a defense to contempt.

(G) TRANSPORT PROTOCOL FOR PHYSICAL ORIGINALS—USMS CHAIN OF CUSTODY.—Transport of all physical original records to the Clerk of Court shall be conducted by the United States Marshals Service pursuant to existing USMS evidence transport procedures and standard USMS evidence custody documentation,

including Form USM-102 or current equivalent, subject to the following requirements:

(I) COURT DESIGNATION.—the presiding judge shall direct the relevant USMS District Office to assign transport personnel; for records originating from FBI facilities, the presiding judge shall direct a USMS District Office geographically separate from and institutionally independent of the originating FBI field office;

(II) TWO-PERSON INTEGRITY RULE.—at every point of physical handoff, at least two individuals from different agencies or organizations shall be simultaneously present and shall each independently attest to the handoff on the USM-102;

(III) TAMPER-EVIDENT SEALING.—before departure from the originating agency, each physical original shall be placed in a tamper-evident evidence container, sealed in the simultaneous presence of the originating agency officer and the assigned USMS transport officer, with the seal number recorded on the USM-102 by both parties;

(IV) CLERK'S RECEIPT INSPECTION.—upon delivery, the Clerk shall inspect the tamper-evident seal in the presence of the delivering USMS officer before opening the container, document the seal's condition on the USM-102, and attest to receipt jointly with the delivering officer;

(V) CHAIN OF CUSTODY FILING.—the completed USM-102 for each transport shall be filed on the public PACER docket in two versions: a public version containing no individual identifying information of any kind—no names, no badge numbers, no employee numbers, no signatures—containing only institutional attestation; and a sealed version containing the complete USM-102 including all individual identifying information, accessible only to the presiding judge;

(VI) PERSONAL SECURITY PROTECTIONS FOR TRANSPORT PERSONNEL.—every USMS officer performing any transport function under this Section shall be provided operational security protections by the Director of the United States Marshals Service, including threat assessment, identity suppression from public filings, and post-assignment security monitoring, for the duration of their involvement and for not less than two (2) years thereafter; this protection attaches automatically to the role and the assignment; no public disclosure of any officer's identity shall be required as a condition of receiving these protections;

(VII) COMMENCEMENT OF TRANSPORT OBLIGATION.—the four-hour preparation window commences at the moment the originating agency receives the court's order; delay in acknowledging receipt of the order does not extend the preparation window; logistical difficulty is not a defense to contempt.

Any originating agency that fails to produce records or the required non-existence affidavit within twenty-four (24) hours of receipt of the court's order shall be in contempt of court. The presiding judge shall seal the Phase One records immediately upon receipt and shall not wait for Phase Two records before sealing. The Phase One Baseline is operative upon sealing. Phase Two records, if and when received, are appended as an independent cross-reference layer and do not alter or replace the Phase One records.

(2) PHASE TWO—FOREIGN JURISDICTIONAL RECORDS (LETTERS ROGATORY).—Not earlier than forty-eight (48) hours and not later than seven (7) calendar days after the Phase One Baseline is sealed, the presiding judge shall issue Letters Rogatory directed to the United Kingdom National Crime Agency, requesting all fingerprint, photographic, and biometric records pertaining to Maxwell held by any United Kingdom law enforcement or government authority; and the French Direction Générale de la Police Nationale, requesting all fingerprint, photographic, and biometric records pertaining to Maxwell held by any French law enforcement or government authority. The Letters Rogatory shall be transmitted by the presiding judge through the United States Department of State by secure electronic diplomatic channel pursuant to the Hague Convention on the Taking of Evidence Abroad (1970), to which both the United Kingdom and France are parties. Physical transmission is not required. The Federal Bureau of Investigation, the Department of Justice, and all other executive law enforcement agencies are expressly excluded from the transmission, receipt, and handling of any response at every stage. All responses shall be transmitted by the responding foreign authority directly to the Clerk of Court and shall not pass through any executive agency at any point. Foreign records shall be produced as apostille-authenticated certified copies pursuant to the Hague Convention Abolishing the Requirement of Legalisation for Foreign Public Documents (1961), to which both the United Kingdom and France are parties. Apostille authentication is the operative standard for foreign records; uncertified copies shall not be incorporated into the Baseline.

(3) LETTERS ROGATORY—PUBLIC DOCKET AND GAP REPORTING.—The Letters Rogatory and the court's transmittal request shall be filed on the public PACER docket upon issuance. If either government responds with apostille-authenticated records, those records shall be appended to the sealed Baseline as an independent cross-reference layer. Any discrepancy between domestic records and any foreign records received shall constitute a flag requiring immediate judicial inquiry. If either government declines to respond, or responds that no records exist, that fact shall be logged in the court record; published in the first Summary Order issued after the response deadline; and noted in every subsequent Summary Order for the duration of the verification regime, so that the gap in the multi-jurisdictional record is permanently visible on the public docket. The absence of a foreign response shall not delay, suspend, or invalidate the Phase One Baseline or any quarterly verification conducted thereunder.

The complete Baseline, including Phase One originals and certified exports and any Phase Two apostille-authenticated records received, shall be held in a court-controlled evidence vault. No executive agency shall have access to the sealed Baseline after its filing date. The Baseline shall not be modified after sealing except to append Phase Two records upon receipt. Upon any judicial succession, the Baseline transfers automatically and intact to the successor judge.

(c) CROSS-REGIONAL SPECIAL MASTER POOL.—The United States District Court for the Southern District of New York shall, within twenty-one (21) days of enactment, appoint a pool of not fewer than three (3) and not more than five (5) Special Masters pursuant to Federal Rule of Civil Procedure 53, subject to—

(1) the Pool shall at all times include members drawn from at least three (3) different federal judicial circuits;

(2) no more than one Pool member may be drawn from the Eleventh Circuit;

(3) the Pool shall at all times include at least one member from the Second Circuit;

(4) at least one Pool member shall hold current certification in latent fingerprint examination or forensic biometrics from the International Association for Identification or equivalent; and

(5) at least one Pool member shall hold board certification in forensic anthropology from the American Board of Forensic Anthropology or equivalent.

Each Special Master shall serve a staggered two-year term, renewable once. Each Special Master candidate shall, prior to appointment, submit to a background investigation by a court-selected private firm, submit to a threat assessment conducted by the United States Marshals Service pursuant to 28 U.S.C. § 566(e)(1)(A), and execute an oath of impartiality filed with the Clerk.

(d) QUARTERLY VERIFICATION PROTOCOL.—

(1) SCHEDULING.—A verification visit shall occur once per calendar quarter on a date selected randomly within a fifteen-day window in the final month of each quarter. The identity of the selected Special Master and the visit date shall not be disclosed to any party until twenty-four (24) hours before departure. Bureau of Prisons notification shall occur at the twenty-four-hour mark solely to require production of the individual.

(2) FACILITY ACCESS.—The appointment order shall grant the Special Master the same access rights as a federal judge under 18 U.S.C. § 3626. Bureau of Prisons shall produce the individual within two (2) hours of credential presentation. Any refusal, delay exceeding two hours, or condition placed on production constitutes obstruction under Section 7023(h).

(3) BIOMETRIC PROCEDURES.—The Special Master shall personally conduct—

(A) TEN-PRINT FINGERPRINT—PHYSICAL CARD (PRIMARY RECORD).— collection using standard FBI Form FD-258 ink-and-roll cards, court-provided and court-sealed. The completed card shall be sealed by the Special Master in a tamper-evident court evidence envelope, signed across the seal in the presence of a USMS

officer assigned by the court under the protocol in Section 7023(b)(1)(G). The Special Master shall personally carry the sealed envelope, accompanied at all times by that USMS officer, from the facility to the Clerk of Court—neither party may have sole unsupervised custody of the envelope at any point. The envelope shall be delivered to the Clerk within forty-eight (48) hours of the visit. The identity of neither the Special Master nor the accompanying USMS officer shall appear in any public filing; only the date, route, and institutional attestation of delivery shall be publicly docketed, consistent with Section 7023(b)(1)(G)(V). The FD-258 card is the primary record and shall be stored in the court's sealed evidence vault alongside the Baseline;

(B) TEN-PRINT FINGERPRINT—DIGITAL RECORD (SECONDARY).— collection using a standard certified portable LiveScan device. The digital record shall be transmitted directly and exclusively to the court's sealed electronic docket via the federal judiciary's CM/ECF system or equivalent court-controlled secure judicial network, not through any public internet channel or executive agency network. CM/ECF is the federal judiciary's own encrypted case management and electronic filing platform, in standard use across all federal district courts. The Special Master shall initiate transmission from the facility immediately upon collection, before departing. Any discrepancy between the physical FD-258 card and the digital LiveScan record constitutes a flag requiring judicial inquiry before any verification determination is issued;

(C) PHOTOGRAPHIC DOCUMENTATION.—two Verification Photographs—one full-face frontal and one strict 90-degree right-profile—taken by the Special Master in strict compliance with the Verification Photograph Standard as defined in Section 7003 of this title. All equipment shall be court-provided and court-sealed prior to each visit as specified in that Standard. The memory card containing the photographs shall be sealed into the tamper-evident evidence envelope alongside the FD-258 fingerprint card and transported to the Clerk under the same two-person protocol as the FD-258 card. No Bureau of Prisons equipment shall be used. Photographs taken outside strict compliance with the Verification Photograph Standard shall not be incorporated into the Baseline or published as Verification Photographs;

(D) FORENSIC ANTHROPOLOGICAL ASSESSMENT.—written comparative assessment of observable skeletal landmarks—including orbital structure, nasal bridge geometry, mandibular profile, zygomatic arch prominence, and cranial morphology—against the Baseline. If the drawn Special Master lacks forensic anthropology certification, the court shall appoint a court-appointed FRE 706 forensic anthropology expert for that visit. Any such FRE 706 expert shall be entitled to the personal protection of the United States Marshals Service pursuant to 28 U.S.C. § 566(e)(1)(A) for the duration of their assignment and for not less than two (2) years thereafter, on the same terms as Special Masters under Section 7023(c). No public disclosure of the FRE 706 expert's identity shall appear in any public filing arising

from the visit; their identity shall be maintained in a sealed record accessible only to the presiding judge; and

(E) CHAIN-OF-CUSTODY ATTESTATION.—sworn written attestation from the facility warden of continuous custody since the most recent prior verification, couriered with the FD-258 envelope.

(4) SUMMARY ORDER AND PUBLIC PHOTOGRAPH PUBLICATION.—The Special Master shall file a Verification Report within forty-eight (48) hours of the visit. The presiding judge shall compare the physical FD-258 card and digital LiveScan record against the Baseline and shall issue, within seventy-two (72) hours of receiving the Verification Report, a public Summary Order using exclusively one of the following formulations: 'IDENTITY VERIFIED—the individual in custody is consistent with the Baseline biometric record across all verification procedures conducted on [date]'; or 'IDENTITY UNVERIFIED—the individual in custody does not match the Baseline biometric record in the following respects: [specified discrepancies].' Simultaneously with the issuance of each Summary Order, the presiding judge shall publish on the court's public PACER docket both Verification Photographs from that visit—the full-face frontal and the 90-degree right-profile—taken in compliance with the Verification Photograph Standard. The photographs shall be published without redaction, in full resolution, and shall be freely downloadable by any member of the public. The photographs shall not be withheld, degraded in resolution, or restricted by any court order, administrative rule, Bureau of Prisons policy, or other authority. The purpose of public publication is to enable independent verification by the public that the individual in federal custody under Federal Register Number 02879-509 is the same individual convicted on December 29, 2021, and Congress finds that this purpose constitutes a compelling public interest that outweighs any privacy interest of the subject in these photographs. The Summary Order and Verification Photographs shall be posted on the court's public PACER docket within twenty-four (24) hours of issuance.

(e) TRANSFER NOTIFICATION.—The Attorney General shall notify the Senate Judiciary Committee, the House Judiciary Committee, and the presiding judge in writing within twenty-four (24) hours of any transfer of the individual held under Federal Register Number 02879-509 to any other facility, stating originating facility, destination, date, reason, and names of all supervising personnel. Any transfer without required notification constitutes obstruction under Section 7023(h).

(f) DEATH OR INCAPACITATION PROTOCOL.—In the event of the reported death or serious incapacitation of the individual held under Federal Register Number 02879-509, the following shall occur automatically before any death certificate is finalized—

(1) the presiding judge shall be notified within one (1) hour;

(2) a court-appointed FRE 706 forensic pathologist with no prior connection to any federal agency or Bureau of Prisons shall conduct an independent examination;

(3) the pathologist shall file a sealed report within seven (7) days comparing findings against the Baseline to confirm identity; and

(4) no death certificate shall be finalized and no remains shall be released, cremated, or disposed of until the presiding judge has issued a public Summary Order.

(g) DEPOSITION IDENTITY PROTOCOL.—Before Maxwell provides any testimony pursuant to Section 7019, the Special Master who conducted the most recent quarterly verification shall appear before the deposition committee and make a sworn on-the-record statement confirming that the presiding judge issued an IDENTITY VERIFIED Summary Order within the preceding ninety (90) days and that the individual before the committee is consistent with that verified identity. This statement shall be the first exhibit of the deposition transcript and shall be publicly released without redaction.

(h) PENALTIES.—

(1) TIER ONE—IDENTITY SUBSTITUTION.—It shall be a federal felony offense, punishable by a mandatory minimum term of imprisonment of fifteen (15) years, for any person to knowingly substitute any individual other than the individual continuously held under Federal Register Number 02879-509 for any verification procedure required by this Section, or to knowingly conspire with any other person to accomplish such substitution.

(2) TIER TWO—FALSIFICATION OF RECORDS.—It shall be a federal felony offense, punishable by a mandatory minimum term of imprisonment of ten (10) years, for any person to knowingly falsify any FD-258 card, digital fingerprint record, photographic record, chain-of-custody attestation—including any sworn warden attestation required under Section 7023(d)(3)(E)—or Verification Report required by this Section.

(3) TIER THREE—OBSTRUCTION OR REFUSAL.—It shall be a federal felony offense, punishable by a mandatory minimum term of imprisonment of seven (7) years, for any person to knowingly obstruct or refuse the Special Master's access to the facility or to the individual held under Federal Register Number 02879-509.

(4) TIER FOUR—INTENTIONAL DELAY.—It shall be a federal felony offense, punishable by imprisonment of not less than three (3) years and not more than seven (7) years, as determined by the sentencing court, for any person to knowingly delay the Special Master's access with intent to obstruct any verification procedure required by this Section. Negligent or administrative delay, without intent to obstruct, shall not constitute an offense under this paragraph.

(5) ATTEMPT AND INDUCEMENT.—It shall be a separate offense, at the same tier as the underlying conduct, for any person to knowingly attempt to influence any Special Master outside court-supervised channels, or to induce, solicit, or direct any person to commit any offense under paragraphs (1) through (4).

(6) COOPERATION REDUCTION.—The sentencing court may, on government motion only, reduce any sentence under paragraphs (1) through (3) by not more than twenty percent (20%) where the defendant's cooperation directly resulted in the conviction of at

least one additional person under this Section. No reduction may reduce a Tier One sentence below twelve (12) years; no reduction may reduce a Tier Two sentence below eight (8) years; no reduction may reduce a Tier Three sentence below five (5) years.

(7) INDIVIDUAL LIABILITY.—Criminal liability under this subsection is individual. Co-conspirators are each liable for the tier corresponding to their own knowing participation. A peripheral participant is not automatically elevated to a higher tier solely by virtue of another conspirator's more serious conduct; the government must establish that the peripheral participant knowingly participated in the specific conduct constituting the higher-tier offense. Consecutive sentencing for distinct offenses under different paragraphs of this subsection is within the court's discretion.

(8) VENUE.—Any prosecution under this subsection shall be brought in a federal judicial district assigned by the Chief Justice of the United States, which district shall have no prior connection to any Epstein-related proceeding.

(9) CIVIL ACTION.—Any person convicted under this subsection is additionally subject to a private civil cause of action by any Epstein Network victim for compensatory and uncapped punitive damages.

PART IV—CONGRESSIONAL INQUIRY INTO THE DEATH OF JEFFREY EPSTEIN

SEC. 7024. MANDATE FOR CONGRESSIONAL HEARING.

(a) HEARINGS.—Not later than ninety (90) calendar days after the date of enactment, the Committee on the Judiciary of the Senate, or such joint committee as the presiding officers of both chambers may designate, shall convene at least two (2) public hearings examining the death of Jeffrey Edward Epstein on August 10, 2019, including—

(1) the findings and methodology of the medical examiner's autopsy;

(2) the surveillance footage gaps and camera failures at the Metropolitan Correctional Center on the night of August 9-10, 2019;

(3) the circumstances under which both guards assigned to monitor Epstein's cell were reportedly asleep during the hours in question;

(4) the chain of custody and completeness of all evidence collected at the scene;

(5) expert testimony from at least two (2) independent forensic pathologists not employed by the federal government. Each such expert witness shall be entitled to the threat assessment and personal protection of the United States Marshals Service pursuant to 28 U.S.C. § 566(e)(1)(A) for the duration of their preparation, testimony, and for not less than two (2) years thereafter. This protection attaches by operation of law upon designation as an expert witness under this Section and requires no public disclosure of the expert's identity as a condition of receiving protection; and

(6) the question of whether all evidence is consistent with the official finding of death by suicide.

(b) DOCUMENT PRODUCTION.—The Attorney General shall, within thirty (30) days of enactment, transmit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives all records in the possession of any federal agency relating to Epstein's incarceration, monitoring, and death. Any claim of privilege shall be logged individually and transmitted to both Committees concurrently with the production.

(b-1) INSPECTOR GENERAL CERTIFICATION AND CONGRESSIONAL REPORTING.—Not later than forty-five (45) calendar days after enactment, the Inspector General of each agency producing records under subsection (b) shall file a written certification with both Judiciary Committees attesting that the production is complete to the best of the Inspector General's knowledge following a diligent independent review. Simultaneously and as an independent congressional reporting requirement not dependent on executive agency action, each agency shall transmit directly to both Judiciary Committees a complete record index of all materials produced and all materials withheld, with the stated basis for each withholding. Where an Inspector General position is vacant or held by an acting official appointed within the preceding twelve (12) months, the agency head shall personally certify completeness in lieu of the Inspector General, and Congress shall treat that certification as presumptively less reliable, warranting heightened congressional scrutiny of the production's completeness.

(c) OPEN HEARINGS.—The hearings shall be open to the public and televised in full. No witness may appear in closed session unless the presiding member makes a specific, individualized finding that testimony would reveal the identity of a minor victim.

PART V—AUTHORIZATION OF APPROPRIATIONS

SEC. 7025. AUTHORIZATION OF APPROPRIATIONS.

(a) FEDERAL UNIT FOR MANAGING EPSTEIN DOCUMENTS.—There are authorized to be appropriated such sums as may be necessary for each fiscal year for the operations of the Federal Unit for Managing Epstein Documents established under Section 7012 of this title, including personnel costs, office space, equipment, computing infrastructure, and all resources necessary to meet the Unit’s minimum staffing floor under Section 7012(e-1) and its rolling review and publication obligations under Sections 5 and 6B. Not later than thirty (30) calendar days after the appointment of the Unit Head under Section 7012(d), the Unit Head shall submit to both Judiciary Committees a detailed budget estimate for the Unit’s first full fiscal year of operations, including projected staffing needs, facility and equipment costs, and anticipated volume of records requiring review. The Unit Head shall submit updated budget estimates annually thereafter for the duration of the Unit’s operations. Funds appropriated under this subsection shall be maintained as a separate budget line item within the National Archives and Records Administration’s appropriation and shall not be subject to reprogramming, transfer, or reduction by the Archivist of the United States or any other executive agency official without the prior written consent of both Judiciary Committees.

(b) SPECIAL MASTER POOL AND QUARTERLY VERIFICATION REGIME.—There are authorized to be appropriated such sums as may be necessary for each fiscal year for the establishment and operation of the Cross-Regional Special Master Pool under Section 7023(c), including compensation of Special Masters and court-appointed FRE 706 forensic experts; procurement of court-provided biometric equipment including FD-258 fingerprint cards, certified portable LiveScan devices, and photographic equipment meeting the Verification Photograph Standard; tamper-evident evidence containers and chain-of-custody materials; and all costs associated with conducting quarterly verification visits under Section 7023(d). Funds appropriated under this subsection shall be administered by the Clerk of the United States District Court for the Southern District of New York and shall not be subject to direction or reduction by any executive agency.

(c) UNITED STATES MARSHALS SERVICE TRANSPORT AND CHAIN-OF-CUSTODY COSTS.—There are authorized to be appropriated such sums as may be necessary for each fiscal year for all costs incurred by the United States Marshals Service in performing transport and chain-of-custody functions under Sections 11(b) and 14(b)(1)(G) of this title, including personnel costs, travel expenses, tamper-evident evidence containers, and secure transport logistics for both the transport of physical original records to the Clerk of Court and the transport of Maxwell for congressional deposition. Funds appropriated under this subsection shall be in addition to, and shall not be drawn from, the existing operational budget of the United States Marshals Service.

(d) COURT-APPOINTED EXPERTS AND AMICUS CURIAE.—There are authorized to be appropriated to the Judiciary, out of the United States Courts appropriation, such sums as may be necessary for each fiscal year for compensation of independent security-cleared amicus curiae appointed under Section 7017(b) of this title; compensation of court-appointed FRE 706 forensic pathologists under Section 7023(f); independent legal counsel for the Unit as provided in Section 7012(g); and all costs associated with in camera judicial review of Presidential Postponement Certifications under Section 7010(f) and carve-out challenges under Section 7011(g). Funds appropriated under this subsection shall be administered through the Administrative Office of the United States Courts and shall not be subject to direction or reduction by any executive agency.

(e) AGENCY COMPLIANCE COSTS.—Each federal agency identified in Section 7005(b-1) or otherwise in possession of Records of the Epstein Network shall fund its inventory, search, and submission obligations under Section 7005 from its existing appropriations. Nothing in this title shall be construed to authorize additional appropriations for agency compliance with the submission obligations of Section 7005, which are mandatory obligations arising by operation of law.

(f) AVAILABILITY.—Funds appropriated under subsections (a) through (d) shall remain available until expended or until the Unit has concluded its operations pursuant to Section 7012(j), whichever occurs first. Upon dissolution of the Unit, any unexpended funds appropriated under subsection (a) shall be returned to the Treasury. Unexpended funds

appropriated under subsections (b), (c), and (d) shall remain available for the duration of the quarterly verification regime under Section 7023 and any ongoing judicial proceedings under this title.

TITLE VIII—FEDERAL IMMIGRATION ENFORCEMENT AGENT SAFETY AND ACCOUNTABILITY TRAINING

SEC. 8001. SHORT TITLE; TABLE OF CONTENTS.

(a) *Short Title.*—This title may be cited as the "Federal Immigration Enforcement Agent Safety and Accountability Training Act of 2026".

(b) *Table of Contents.*—The table of contents of this title is as follows:

Sec. 8001. Short Title; Table of Contents.

Sec. 8002. Findings.

Sec. 8003. Definitions and Rules of Construction.

Sec. 8004. Mandatory Training Requirements.

Sec. 8005. Prohibition on Deployment Without Certification.

Sec. 8006. Deployment Restrictions.

Sec. 8007. Independent Review of Serious Use-of-Force Incidents.

Sec. 8008. Certification, Oversight, and Accountability.

Sec. 8009. Enforcement and Penalties.

Sec. 8010. Authorization of Appropriations.

Sec. 8011. Effective Date and Transition.

Sec. 8012. Severability.

SEC. 8002. FINDINGS.

Congress finds the following:

(1) On January 24, 2026, Alex Jeffrey Pretti—age 37, an intensive care nurse who had worked at the Minneapolis VA Health Care System for eleven years—was shot and killed by two U.S. Customs and Border Protection personnel during Operation Metro Surge in Minneapolis, Minnesota. Ten rounds were fired at Mr. Pretti in under five seconds; a physician witness reported at least three gunshot wounds to his back. He was not the subject of any enforcement action. The two personnel were a United States Border Patrol Agent and a CBP Officer, both falling under CBP's operational command. (CBS News, January 28, 2026; ProPublica, February 2026; Wall Street Journal, January 26, 2026; NPR, January 27, 2026.)

(2) Bystander video verified by Reuters, the BBC, the Wall Street Journal, and the Associated Press shows that Mr. Pretti was directing traffic and assisting a bystander who had been knocked down by a federal agent when he was pepper-sprayed, tackled, and shot. Video analysis by the New York Times, Washington Post, and CNN established that Mr. Pretti was restrained on his knees when the first volley of shots was fired, and was shot again after collapsing to the ground. His legally registered firearm had already been removed from his person before any shot was fired. (Reuters, January 25, 2026;

BBC, January 25, 2026; Wall Street Journal, January 26, 2026; Associated Press, January 25, 2026; CNN, January 29, 2026; New York Times visual investigation, January 2026.)

(3) Law enforcement experts who reviewed the footage for CNN concluded that the agents' use of deadly force "likely stemmed from lack of training or a failure by the agents to follow it during the heated encounter." (CNN, "How two federal agents escalated an encounter with Alex Pretti into a deadly shooting," January 29, 2026.)

(4) A CBP preliminary internal assessment, reviewed by NPR, contained no mention of Mr. Pretti attacking officers or threatening them with a weapon. White House Deputy Chief of Staff Stephen Miller subsequently stated that officials are "evaluating why the CBP team may not have been following that protocol." (NPR, January 27, 2026; CNN, February 2, 2026.)

(5) Mr. Pretti's death was the second killing of a United States citizen by federal immigration agents in Minneapolis in three weeks. Operation Metro Surge produced at least three shootings in January 2026 alone.

(6) In August 2025, the Department of Homeland Security cut approximately 240 hours—more than 40 percent—from the ICE Enforcement and Removal Operations basic training program, reducing it from 584 hours over 72 training days to approximately 340 hours over 42 days. Eliminated content included more than 100 hours of hands-on instruction and practice scenarios, half of all firearms instruction—reduced from 56 to approximately 28 hours—and substantial constitutional law and due process coursework, including the elimination of all legal instruction on use of force. The graduation rate fell from approximately 80 percent to approximately 60 percent. (Washington Post, March 3, 2026; Internal ICE Training Syllabi Released by Senate Judiciary Committee Democrats, February 23, 2026.)

(7) Between August 2025 and January 2026, ICE expanded from approximately 10,000 to 22,000 officers—an increase of 120 percent—while simultaneously reducing the training each new officer received. More than 900 recruits completed the compressed program before the Minneapolis deployments. (DHS Press Release, January 3, 2026; Washington Post, March 3, 2026.)

(8) To accommodate the ICE training surge, the Federal Law Enforcement Training Centers rescheduled or suspended most non-ICE training from September through December 2025, severely curtailing the training pipelines of the majority of its more than 100 federal partner agencies. (Internal FLETC Memorandum from Acting Director Paul Baker and Deputy Director Ariana Roddini, August 27, 2025, reported in Government Executive, August 28, 2025; FLETC Official Press Release, August 30, 2025; Government Executive, January 2026.)

(9) Under the revived 287(g) program, more than 8,500 state and local officers were trained for immigration enforcement through a 40-hour online course, replacing the four-week in-person Immigration Authority Delegation Program previously conducted at the

Federal Law Enforcement Training Centers. The Department of Homeland Security required Task Force Model nominees to have at least two years of prior law enforcement experience but did not require the prior four-week residential program. (DHS Announcement, September 2, 2025; National Immigration Forum, "Explainer: Training Under the Revived 287(g) Task Force Model," September 23, 2025; ICE 287(g) Task Force Model Memorandum of Agreement Template, 2025.)

(10) The Bureau of Justice Statistics' 2022 Census of Law Enforcement Training Academies found the national average for basic police academy training is 806 hours, based on a survey of 602 state and local law enforcement academies. (Bureau of Justice Statistics, "State and Local Law Enforcement Training Academies and Recruits, 2022," NCJ 309348, November 2024.) State mandatory minimum training requirements vary widely, with many requiring substantially less than the national academy average. The post-2025 ICE ERO curriculum of approximately 340 hours falls below both the national academy average and the minimum standards required by most states.

(11) Norway, Finland, and Germany require between 2.5 and 3 years of formal training before officers may be deployed; the United Kingdom requires between 2 and 3 years depending on entry pathway. Those countries have police killing rates between approximately 25 and 80 times lower than the United States on a per capita basis, with Germany at the lower end (approximately 25 times lower) and Norway at the higher end (approximately 80 times lower). (Norwegian Police University College official program description; Finnish Police University College, Bachelor of Police Services program; College of Policing, Joining the Police as a New Police Constable, 2025.)

(12) In 2015, the Police Executive Research Forum found that United States police recruits received a median of 8 hours of de-escalation training against a median of 58 hours of firearms instruction and 44 hours of defensive tactics. (PERF, "Re-Engineering Training on Police Use of Force," August 2015, p. 11.) The Bureau of Justice Statistics' 2022 Census found that de-escalation training had increased to an average of 22 hours, though firearms instruction averaged 73 hours and defensive tactics 64 hours—a persistent imbalance of more than three to one. (BJS, "State and Local Law Enforcement Training Academies' Training Topics and Instructors, 2022," NCJ 310041, June 2025.) Federal immigration training, even before the 2025 cuts, reflected a similar imbalance.

(13) A 2022 randomized controlled trial of 1,049 Louisville, Kentucky officers trained in the PERF ICAT de-escalation program found a 28 percent reduction in use-of-force incidents, a 26 percent reduction in civilian injuries, and a 36 percent reduction in officer injuries. The National Institute of Justice has rated the ICAT program as Effective. A separate RCT of more than 2,000 Chicago Police Department officers trained in the Situational Decision-Making (Sit-D) program found a 23 percent reduction in use-of-force incidents and a 23 percent reduction in discretionary arrests (Dube, MacArthur & Shah, "A Cognitive View of Policing," Quarterly Journal of Economics, Vol. 140, No. 1, February 2025, pp. 745–791). Taken together, ICAT and Sit-D represent independent

RCT evidence that structured decision-making and de-escalation training each produce significant and measurable reductions in use of force.

(14) The Louisville study further found that training effects decay without supervisory reinforcement. More than 40 percent of first-line supervisors self-reported rarely or never engaging in reinforcement of ICAT principles with officers in the field. Research indicates that training effects decay without ongoing reinforcement, and experts and leading law enforcement organizations widely recommend annual recertification to sustain outcomes. (National Institute of Justice, "What Works in De-Escalation Training," 2022; Council on Criminal Justice, de-escalation policy recommendations, 2020.)

(15) In 2020, CBP tactical units were deployed to protests in Portland, Oregon without adequate training for urban civilian environments. A DHS Inspector General review of 63 officer training records found that only 7—fewer than 11 percent—had documented riot and crowd control training. (DHS OIG Report OIG-21-31, April 2021.) Former CBP Commissioner Gil Kerlikowske stated that deploying border agents to urban protest environments was "clearly the wrong group" for the mission, noting that border agents "are not trained" for urban civilian crowd management or de-escalation. (NPR, July 23, 2020.) No mandatory training standards for urban civilian environments were enacted following that episode.

(16) The 2025 training reductions and the rapid deployment of under-trained agents into urban civilian environments created foreseeable conditions that contributed to the deaths of Alex Jeffrey Pretti and Renée Nicole Good and to the serious injury of other civilians. Mandatory minimum training standards are necessary to prevent recurrence.

(17) An Associated Press review of criminal cases involving ICE employees and contractors found that some of the most serious crimes—including physical abuse, sexual abuse, and corruption—were committed by veteran employees and supervisors rather than recently hired agents, with at least two dozen charged and at least 17 convicted since 2020. This pattern demonstrates that misconduct is not limited to undertrained new hires and that the absence of ongoing accountability mechanisms and recertification requirements for long-tenured personnel poses an independent risk to the public. (Associated Press, February 11, 2026.)

SEC. 8003. DEFINITIONS AND RULES OF CONSTRUCTION.

(a) DEFINITIONS.—In this title:

(1) COVERED PERSONNEL.—The term "covered personnel" means any officer, agent, employee, or contractor of U.S. Immigration and Customs Enforcement, U.S. Customs and Border Protection, or any component of the Department of Homeland Security who is authorized to carry a firearm, make arrests, or use force in connection with any immigration enforcement function of the Department of Homeland Security. For purposes of this title, covered personnel includes both United States Border Patrol agents,

whose primary operational domain is border and near-border terrain, and CBP Officers, whose primary operational domain is port-of-entry processing. The training and deployment requirements of this title apply to both categories. The Phase II Urban Operations and Crowd Management module of Section 8004(c)(1), and the border-to-urban transition content required thereunder, apply with particular force to Border Patrol agents who are temporarily assigned or surge-deployed to interior urban enforcement operations outside their primary operational domain.

(2) INTERIOR ENFORCEMENT OPERATION.—The term "interior enforcement operation" means any immigration enforcement operation conducted within the United States in an urban, suburban, or densely populated area, or any other immigration enforcement operation conducted within the interior of the United States in which covered personnel exercise arrest authority, use or threaten force, or engage in contact in which a person is not free to leave. The term does not include routine administrative functions such as records processing, detention facility administration, case management, or other functions that do not involve direct enforcement contact with members of the public outside a port-of-entry or border crossing context.

(3) TEMPORARY DUTY OR SURGE PERSONNEL.—The term "temporary duty or surge personnel" means covered personnel deployed to an interior enforcement operation in a geographic area, jurisdiction, or operational context outside their primary duty station or primary trained operational domain.

(4) BASIC CERTIFICATION.—The term "basic certification" means a certification issued by the Secretary of Homeland Security attesting that covered personnel have completed Phase I of the training program established under Section 8004, and are authorized to participate in non-urban enforcement operations under supervision. Basic certification does not authorize participation in any interior enforcement operation in an urban environment; such authorization requires a current Urban Deployment Authorization as provided in Section 8003(a)(5).

(5) URBAN DEPLOYMENT AUTHORIZATION.—The term "Urban Deployment Authorization" means a certification issued by the Secretary of Homeland Security attesting that covered personnel have completed the Phase II Urban and Civil Environment Training modules described in Section 8004(c), as those modules become available pursuant to Section 8011(e), and are authorized to participate in interior enforcement operations. An Urban Deployment Authorization is current only if the covered personnel holding it has completed a recertification within the preceding 90 days consisting of not less than 16 hours of instruction, of which not less than 8 hours shall be delivered through scenario-based practice under an evidence-based de-escalation program—meaning a program that has been evaluated through a randomized controlled trial or equivalent peer-reviewed study and rated as effective or promising by the National Institute of Justice's CrimeSolutions program or a comparable independent body, of which the ICAT program defined in Section 8003(a)(7) is one qualifying example—and

not less than 8 hours shall be urban use-of-force decision-making scenarios in civilian interior enforcement contexts. These 16 hours are a minimum requirement. Nothing in this subsection limits the authority of the Department of Homeland Security, any component agency, or any other federal authority to require additional recertification content or hours beyond this minimum. An Urban Deployment Authorization that has lapsed due to failure to complete timely recertification is automatically suspended without prior notice and may not be reinstated except upon completion of recertification. No covered personnel may participate in any interior enforcement operation during a period of suspension.

(6) FULL DEPLOYMENT CERTIFICATION.—The term "full deployment certification" means a certification issued by the Secretary of Homeland Security attesting that covered personnel have completed Phases I, II, and III of the training program established under Section 8004, including supervised field training, and are authorized to conduct independent interior enforcement operations.

(7) ICAT PROGRAM.—The term "ICAT program" means the Integrating Communications, Assessment, and Tactics de-escalation training program developed by the Police Executive Research Forum, or any substantially equivalent program that has been—

(A) evaluated through a randomized controlled trial or equivalent peer-reviewed study; and

(B) rated as effective or promising by the National Institute of Justice's CrimeSolutions program or a comparable independent body.

(8) SERIOUS USE-OF-FORCE INCIDENT.—The term "serious use-of-force incident" means any use of force by covered personnel that results in the death of or serious bodily injury to any person, including but not limited to: (A) any discharge of a firearm; (B) the use of a chokehold, carotid restraint, or any other physical restraint technique that restricts the flow of blood or oxygen; (C) a strike with any instrument, including a baton, flashlight, or other impact weapon; (D) the deployment of an electronic control weapon, including a conducted energy device; (E) the use of a vehicle as an instrument of force, including a vehicle strike, ramming, or forced stop; and (F) any other application of physical force, including prone restraint, that results in death or serious bodily injury.

(9) SERIOUS BODILY INJURY.—The term "serious bodily injury" means bodily injury that involves— (A) a substantial risk of death; (B) extreme physical pain; (C) protracted and obvious disfigurement; (D) protracted loss or impairment of the function of a bodily member, organ, or mental faculty; or (E) any injury requiring hospitalization for a period exceeding 24 hours. Subparagraphs (A) through (D) are consistent with section 1365(h)(3) of title 18, United States Code; subparagraph (E) supplements that definition for purposes of this title.

(b) RULES OF CONSTRUCTION.—References to "covered personnel" in this title include both the singular and the plural.

SEC. 8004. MANDATORY TRAINING REQUIREMENTS.

(a) THREE-PHASE TRAINING PROGRAM.—The Secretary of Homeland Security, in coordination with the Director of the Federal Law Enforcement Training Centers, shall establish and administer a three-phase mandatory training program for all covered personnel. The minimum training hours required under this section reflect the findings set forth in Section 8002. The program shall satisfy the minimum hour and content requirements established in this section.

(b) PHASE I—FOUNDATIONAL TRAINING.—Phase I shall be conducted at FLETC or an accredited equivalent facility. All curricula required by this section are available for immediate delivery as of the date of enactment without new curriculum development. Phase I is grounded in the existing curriculum of the U.S. Customs and Border Protection Border Patrol Academy at Artesia, New Mexico, supplemented by the ICAT de-escalation program and Crisis Intervention Team program. The following modules are mandatory and represent the relevant foundational training available for immediate delivery without new curriculum development as of the date of enactment:

(1) FIREARMS—133 hours.—Instruction shall cover safe handling, marksmanship, qualification standards, tactical shooting under stress, low-light engagement, use-of-force decision-making scenarios integrated with firearms deployment, and weapons maintenance. Instruction shall be delivered using existing Federal Law Enforcement Training Centers range facilities and shall follow the curriculum used by the U.S. Customs and Border Protection Border Patrol Academy.

(2) DEFENSIVE TACTICS AND PHYSICAL READINESS—178 hours.—Instruction shall cover arrest techniques, subject control, intermediate force options including OC spray and collapsible baton, emergency medical response including individual first aid kit (IFAK) deployment, physical fitness standards, and operational conditioning. Instruction shall follow the curriculum used by the U.S. Customs and Border Protection Border Patrol Academy.

(3) APPLIED AUTHORITIES AND CONSTITUTIONAL LAW—102 hours.— Instruction shall cover: (A) United States government structure and law enforcement limitations (46 hours, following the U.S. Customs and Border Protection Border Patrol Academy "Applied Authorities" block), including Fourth Amendment search and seizure doctrine, Fifth Amendment due process, First Amendment rights of observers, journalists, and protesters, officer liability, and civil rights statutes applicable to federal law enforcement conduct; and (B) immigration and nationality law applicable to interior enforcement operations (56 hours), including statutory authorities, enforcement jurisdiction, rights of persons regardless of immigration status, and the legal distinction between enforcement targets and uninvolved civilian bystanders.

(4) TACTICAL OPERATIONS AND RISK MANAGEMENT—107 hours.—Instruction shall cover enforcement operations and tactics, risk assessment, threat recognition and non-threat indicator identification, active threat response, use-of-force decision-making integrated with operational scenarios, and post-incident procedures. Instruction shall follow the curriculum used by the U.S. Customs and Border Protection Border Patrol Academy tactical training block.

(5) USE-OF-FORCE LEGAL FOUNDATION—embedded throughout modules (1), (3), and (4).—The following content shall be explicitly addressed in each relevant module: the objective reasonableness standard under Graham v. Connor, 490 U.S. 386 (1989); factual articulation requirements for use-of-force documentation; proportionality principles; and the constitutional and statutory limits on force in interior enforcement settings. The Secretary shall certify that this content is assessed in all scenario-based evaluations.

(6) DE-ESCALATION—not less than 16 hours.—Instruction shall be delivered using the ICAT program as defined in Section 8003(a)(7) or a substantially equivalent program. Instruction shall cover verbal communication techniques, tactical disengagement, crisis recognition, the Critical Decision-Making Model, and operational de-escalation tactics. A minimum of 50 percent of hours shall be delivered through scenario-based simulation. The DHS Center for Domestic Preparedness course PER-922 satisfies the curriculum requirement of this module. Congress finds that ICAT is rated “Effective” by the National Institute of Justice CrimeSolutions database and is supported by two peer-reviewed randomized controlled trials demonstrating statistically significant reductions in use-of-force incidents at dosages of 8 to 16 hours.

(7) CRISIS INTERVENTION TEAM—not less than 40 hours.—Instruction shall be delivered using the Memphis Model Crisis Intervention Team curriculum or a substantially equivalent curriculum, and shall cover recognition of behavioral health crises, de-escalation techniques for persons in psychiatric distress, legal and ethical obligations, and coordination with mental health responders and community crisis services. Congress finds that the CIT program is available for immediate delivery through existing provider networks in all 50 states and has been adopted by more than 2,700 law enforcement jurisdictions. The VA Police Officer Standardized Training program provides the precedent for federal law enforcement delivery.

(8) IDENTIFICATION, TRANSPARENCY, AND REPORTING—not less than 16 hours.—Instruction shall cover the requirement to identify as a federal agent during enforcement operations, use-of-force reporting obligations, documentation standards, whistleblower protections, and accountability mechanisms applicable to covered personnel. Instruction shall be assembled from existing Federal Law Enforcement Training Centers modules including officer liability, report writing, use-of-force reporting, and body-worn camera policy.

The total minimum hours for Phase I shall be not less than the sum of the minimum hours specified in modules (1) through (8). Congress finds that these eight modules constitute the relevant foundational training for interior enforcement personnel available for immediate delivery without new curriculum development as of the date of enactment. Nothing in this section shall be construed to limit the authority of the Secretary to require additional training hours beyond this minimum. A minimum of 40 percent of Phase I hours shall be delivered through scenario-based simulation. Verified interim training hours completed under Section 8011(c) using curricula that satisfy the applicable module standards shall count toward the corresponding module minimums, subject to the limitations established in Section 8011(c)(3).

(c) PHASE II—URBAN AND CIVIL ENVIRONMENT TRAINING.—Phase II shall be conducted through dedicated scenario training in simulated or operational urban environments. All Phase II curricula must be developed and do not exist as of the date of enactment. The following modules are mandatory:

(1) URBAN OPERATIONS AND CROWD MANAGEMENT—120 hours.—This module shall be developed by the Federal Law Enforcement Training Centers in consultation with the Police Executive Research Forum and with reference to findings of the DHS Office of Inspector General Report OIG-21-31 (April 2021). Instruction shall cover the following four content blocks:

(A) BORDER-TO-URBAN TRANSITION—not less than 40 hours: The documented operational differences between border terrain and urban civilian environments; constitutional standards for stops, searches, and arrests in interior settings as distinguished from the border zone; civilian bystander protocols; use-of-force analysis in crowds and residential environments; and the Portland 2020 failure pattern as a case study in the consequences of deploying border-trained personnel in urban civilian settings without adequate preparation.

(B) URBAN ENFORCEMENT OPERATIONS—not less than 40 hours: Tactics for densely populated environments including apartment buildings, residential streets, public spaces, and mixed-use areas; warrant execution in urban settings; managing enforcement actions where civilians are present who are not subjects; and vehicle operations in urban environments.

(C) INTER-AGENCY COORDINATION AND COMMAND AND CONTROL—not less than 20 hours: Federal, state, and local jurisdiction delineation; de-confliction protocols; communication standards; and analysis of coordination failures documented in Operation Metro Surge, Minneapolis, January 2026.

(D) FIRST AMENDMENT AND PROTEST ENVIRONMENTS—not less than 20 hours: Recognition of protected activity; constitutional limits on identification demands, dispersal, and use of force when enforcement operations intersect with demonstrations; and scenario-based application in simulated protest environments.

Not less than 60 percent of Phase II module (1) instruction hours shall be delivered through scenario-based simulation with civilian role-players in realistic urban environments.

(2) TRAUMA-INFORMED ENFORCEMENT APPROACHES—not less than 60 hours.—This module shall be developed by the Substance Abuse and Mental Health Services Administration's GAINS Center in partnership with at least one academic institution with demonstrated expertise in immigration enforcement contexts and trauma, and with input from licensed trauma clinicians and immigration legal services organizations. Instruction shall cover the following four content blocks:

(A) TRAUMA RECOGNITION AND BEHAVIORAL EFFECTS—not less than 15 hours: How trauma manifests in behavior during enforcement encounters; the difference between resistance and trauma response; and the specific trauma profiles of asylum seekers, trafficking survivors, persecution victims, and unaccompanied minors encountered in immigration enforcement operations.

(B) DE-ESCALATION FOR TRAUMATIZED INDIVIDUALS—not less than 20 hours: Techniques specific to trauma-affected populations that differ from standard de-escalation; trauma-sensitive communication; how to conduct enforcement without re-traumatizing; and the operational safety case for trauma-informed approaches. Scenarios shall be built around immigration enforcement encounters, not mental health crisis encounters.

(C) LEGAL OBLIGATIONS AND PROTECTION CLAIMS—not less than 15 hours: Operational decision-making when encountering individuals who may have colorable asylum or protection claims; trafficking victim identification and statutory obligations; unaccompanied minor protocols; and the legal distinction between removal authority and protection obligations.

(D) EVIDENTIARY INTEGRITY—not less than 10 hours: How trauma-informed encounters produce better evidence and more reliable identifications; the operational case for trauma-informed approaches; and documentation standards.

Not less than 50 percent of Phase II module (2) instruction hours shall be delivered through scenario-based simulation.

(3) PROCEDURAL JUSTICE FOR IMMIGRATION ENFORCEMENT—not less than 40 hours.—This module shall be developed by a university research team selected through a competitive grant process administered by the National Institute of Justice. The grantee shall have demonstrated expertise in procedural justice research and shall incorporate the findings of Weisburd et al. (Proceedings of the National Academy of Sciences, 2022) and Wood, Tyler, and Papachristos (Proceedings of the National Academy of Sciences, 2020). Instruction shall cover the following three content blocks:

(A) THE FOUR PILLARS IN IMMIGRATION ENFORCEMENT CONTEXTS—not less than 15 hours: Application of voice, neutrality, respect, and trustworthy motives to immigration enforcement encounters, addressing the specific challenges of

language barriers, extreme power asymmetry, and encounters with individuals from countries where police are instruments of oppression. This block shall be built for the immigration enforcement context specifically, not adapted from municipal policing curricula.

(B) LEGITIMACY AND COMPLIANCE—not less than 15 hours: The empirical relationship between perceived procedural justice and voluntary compliance; why procedural justice matters more in asymmetric power encounters; and how individual encounters aggregate into community legitimacy or distrust that affects the safety of all subsequent operations in a jurisdiction.

(C) SCENARIO APPLICATION—not less than 10 hours: Scenario-based practice in realistic immigration enforcement encounters including warrant execution, workplace operations, and community encounters, with mixed-language scenarios and evaluation against observable behavioral criteria.

Not less than 50 percent of Phase II module (3) instruction hours shall be delivered through scenario-based simulation.

(4) CULTURAL COMPETENCY AND COMMUNITY ENGAGEMENT—not less than 55 hours.—This module shall be developed by an academic institution selected through a competitive grant process administered by the National Institute of Justice. The curriculum development process shall include mandatory substantive input from community organizations in cities where interior enforcement operations are most concentrated, including Minneapolis, Chicago, Los Angeles, Houston, and New York. Instruction shall cover the following three content blocks:

(A) COMMUNITY DEMOGRAPHICS AND CONTEXT—not less than 20 hours: The demographic composition of communities where interior enforcement is most commonly conducted, including language groups, national origin distributions, documentation status patterns, and mixed-status family structures; the history of federal immigration enforcement in those communities and how that history shapes civilian behavior during enforcement encounters; and jurisdiction-specific community profiles for the cities in which covered personnel are deployed.

(B) LANGUAGE AND COMMUNICATION—not less than 15 hours: Functional communication during enforcement encounters with individuals who speak limited or no English; working effectively with interpreters; recognizing when language barriers are creating dangerous misunderstandings; legal implications of language access in enforcement; and basic recognition of common languages encountered in interior enforcement operations. This block is a provisional minimum; the Secretary shall commission a study through the National Institute of Justice within 2 years of the date of enactment assessing whether deeper language instruction improves operational outcomes, and shall report findings to Congress with a recommended revision to this module.

(C) COMMUNITY TRUST AND ENGAGEMENT—not less than 20 hours: How community trust affects operational safety including tip reporting, witness cooperation, and identification assistance; the documented relationship between enforcement tactics and community withdrawal from law enforcement contact; and how individual agent behavior aggregates into community perception that determines the safety of subsequent operations in that jurisdiction.

Not less than 40 percent of Phase II module (4) instruction hours shall be delivered through scenario-based simulation.

The total minimum hours for Phase II shall be not less than 275 hours.

(5) CURRICULUM DEVELOPMENT ACCOUNTABILITY.—

(A) PROGRAM COORDINATOR.—Not later than 60 days after the date of enactment, the Secretary of Homeland Security shall designate a responsible official to serve as Phase II Curriculum Development Coordinator. The Coordinator shall be responsible for ensuring that all four Phase II modules are developed, validated, and certified within the timeline established in subparagraph (B), and shall report directly to the Secretary on the status of curriculum development not less than quarterly.

(B) DEVELOPMENT TIMELINE.—Phase II curricula shall be completed and certified as available by the Director of the Federal Law Enforcement Training Centers according to the following module-specific deadlines, which reflect the different development pathways required for each module: (i) the Urban Operations and Crowd Management curriculum required by paragraph (1) shall be certified not later than 18 months after the date of enactment, because it is developed by FLETC in consultation with PERF using existing institutional capacity; (ii) the Trauma-Informed Enforcement, Procedural Justice, and Cultural Competency and Community Engagement curricula required by paragraphs (2), (3), and (4) shall be certified not later than 24 months after the date of enactment, because they require competitive grant processes administered by the National Institute of Justice, which alone take 6 to 12 months before curriculum development can begin. If any module curriculum is not certified as available by its applicable deadline, the Coordinator shall submit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives, not later than 30 days after the missed deadline, a written explanation of: (I) the specific obstacles preventing timely certification; (II) what additional resources, authority, or personnel are needed to complete the curriculum; and (III) a revised timeline for certification.

(C) FLETC CERTIFICATION STANDARDS.—The Director of the Federal Law Enforcement Training Centers shall certify the availability of each Phase II module curriculum only upon a finding that: (i) the curriculum satisfies all content requirements specified in paragraphs (1) through (4) for that module, including minimum hours for each content block and minimum scenario-based delivery

percentages; (ii) sufficient certified instructors and facilities are available to begin delivery to covered personnel within 14 days of the Secretary's publication notice for that module pursuant to Section 8011(b); and (iii) the curriculum has been reviewed by at least one independent subject-matter expert with no financial relationship to the Department of Homeland Security.

(D) COMMUNITY INPUT DOCUMENTATION.—The academic institution or other grantee developing the cultural competency and community engagement curriculum required by paragraph (4) shall, as a condition of the grant, submit to the National Institute of Justice a written report documenting: (i) the community organizations in cities where interior enforcement operations are conducted that were consulted during curriculum development; (ii) the specific input received from those organizations; and (iii) how that input was incorporated into the curriculum, or the reasons why specific recommendations were not adopted. The National Institute of Justice shall transmit this documentation to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives upon receipt. This documentation requirement is not a prerequisite for FLETC certification and does not provide any organization with authority to delay or block curriculum certification.

(d) PHASE III—SUPERVISED FIELD TRAINING.—Phase III shall consist of supervised field training of not less than 680 hours, equivalent to 17 weeks of full-time service, under the direct supervision of a certified field training officer. The following requirements apply:

(1) Covered personnel shall not conduct any enforcement action independently during Phase III. All enforcement actions during Phase III shall be conducted under the direct supervision of the assigned field training officer.

(2) Field training officers shall—

(A) hold full deployment certification under this title;

(B) not have been the subject of any sustained use-of-force complaint or misconduct finding within the preceding 5 years; and

(C) evaluate trainees using a structured competency framework approved by the Secretary of Homeland Security.

(3) Upon successful completion of Phase III and favorable evaluation by the assigned field training officer, covered personnel shall be eligible to receive full deployment certification from the Secretary of Homeland Security.

(4) PRIOR EQUIVALENT FIELD TRAINING CREDIT.—Covered personnel employed on or before January 19, 2025 who can demonstrate, through verified agency records, completion of an equivalent field training program administered by U.S. Customs and Border Protection, U.S. Immigration and Customs Enforcement, or another federal law enforcement agency, are deemed to have satisfied the Phase III requirement for all purposes under this title, including for purposes of field training officer eligibility under paragraph (2)(A) and for purposes of eligibility to receive full deployment certification

from the Secretary of Homeland Security under paragraph (3). The Secretary of Homeland Security shall establish procedures for verifying prior equivalent field training within 90 days of the date of enactment of this title. Verification shall require documented evidence of supervised field training under an experienced officer, structured evaluation, and successful completion, as reflected in official agency records. Credit under this paragraph does not exempt any covered personnel from the obligation to complete Phases I and II of the training program required by this section.

(e) ANNUAL RECERTIFICATION.—All active covered personnel shall complete not less than 40 hours of mandatory in-service recertification training annually, regardless of hire date or certification status. For all covered personnel, regardless of hire date, the first annual recertification obligation attaches on the first anniversary of the date on which that individual completed Phase I of the training program required by Section 8004(b) and received Basic Certification under Section 8003(a)(4). Annual recertification shall include—

(1) a mandatory de-escalation refresher module of not less than 8 hours, delivered using the ICAT program as defined in Section 8003(a)(7) or any other evidence-based de-escalation program meeting the criteria of Section 8003(a)(5). Congress intends the annual de-escalation refresher to accept the same program flexibility as the 90-day Urban Deployment Authorization recertification;

(2) updates reflecting changes in applicable law, policy, and use-of-force standards; and

(3) scenario-based exercises.

Covered personnel who hold full deployment certification and fail to complete annual recertification shall have their full deployment certification suspended by the Secretary of Homeland Security until completion is verified. Covered personnel who were employed on or before January 19, 2025 and who fail to complete annual recertification shall be suspended from field duties by the Secretary of Homeland Security until completion is verified. Completion of annual recertification for all covered personnel shall be recorded in the registry maintained under Section 8008(a)(3).

(h) CREDIT TOWARD ANNUAL RECERTIFICATION.—The 90-day Urban Deployment Authorization recertification required by Section 8003(a)(5) and the annual recertification required by subsection (e) are independent obligations serving different purposes. The 90-day recertification maintains authorization to conduct interior enforcement operations in urban environments; the annual recertification is a professional development requirement applicable to all covered personnel regardless of UDA status. Hours completed in qualifying 90-day recertification cycles may be credited toward the annual 40-hour obligation, subject to the following conditions: (A) only hours completed in the same 12-month recertification period in which the annual obligation falls are eligible for credit; (B) the credited hours must satisfy the same content requirements for annual recertification as specified in paragraphs (1) through (3) of subsection (e); and (C) no more than 16 hours completed in 90-day recertification cycles may be credited toward any single annual obligation, ensuring that at

least 24 additional hours are completed through the annual program. The Secretary of Homeland Security shall establish a tracking mechanism within the registry required by Section 8008(a)(3) to record the application of quarterly recertification credit toward annual obligations.

(f) PROHIBITION ON REDUCTION OF TRAINING REQUIREMENTS.—The Secretary of Homeland Security, the Director of Immigration and Customs Enforcement, the Commissioner of Customs and Border Protection, and any other official of the Executive Branch may not reduce the minimum training requirements established by this section below the hours and content standards specified herein, by rulemaking, internal policy guidance, operational order, budget action, or any other means, without prior authorization by an Act of Congress.

(g) TRAINING REQUIREMENTS ARE MINIMUMS; NO PREEMPTION.—

(1) MINIMUM REQUIREMENTS.—All training hour requirements, recertification requirements, and refresher requirements established by this title are minimum standards. Nothing in this title shall be construed to prohibit or limit the authority of the Secretary of Homeland Security, the Director of U.S. Immigration and Customs Enforcement, the Commissioner of U.S. Customs and Border Protection, the Director of the Federal Law Enforcement Training Centers, or any other federal authority to require covered personnel to complete training in excess of the minimums established herein, whether in total hours, content, frequency, or method of delivery.

(2) NO PREEMPTION.—This title does not preempt, supersede, limit, or otherwise affect: (A) any training requirement imposed by the Department of Homeland Security, U.S. Immigration and Customs Enforcement, U.S. Customs and Border Protection, or any other federal agency by regulation, policy directive, or internal guidance; (B) any training requirement arising from a collective bargaining agreement or memorandum of understanding applicable to covered personnel; (C) any training standard established by the Federal Law Enforcement Training Centers for programs it administers; (D) any recommendation, guideline, or best practice issued by the Police Executive Research Forum, the International Association of Chiefs of Police, CIT International, or any other professional or accrediting body; or (E) any other federal law or executive order imposing training obligations on covered personnel. Where any requirement of this title conflicts with a more stringent requirement imposed by another source of authority, the more stringent requirement governs.

(3) FLOOR, NOT CEILING.—Congress finds that the training minimums established in this title reflect the floor below which the training of covered personnel may not fall without creating foreseeable risks of civilian harm, officer harm, and constitutional violations in interior enforcement operations. Congress does not find that compliance with these minimums constitutes adequate training in all circumstances, and encourages the Department of Homeland Security to develop and implement training programs that exceed these minimums as evidence, operational experience, and best practices develop.

SEC. 8005. PROHIBITION ON DEPLOYMENT WITHOUT CERTIFICATION.

(a) GENERAL PROHIBITION.—

(1) URBAN DEPLOYMENT.—No covered personnel may participate in any interior enforcement operation unless that individual holds a current Urban Deployment Authorization as defined in Section 8003(a)(5). This prohibition is self-executing from the date of enactment and does not require implementing regulation, agency guidance, or the completion of any curriculum development process. The prohibition applies regardless of the individual's hire date, length of service, seniority, duty station, assignment history, or prior law enforcement experience. For purposes of this subsection, a current Provisional Urban Deployment Authorization issued under Section 8005(c)(2) satisfies the Urban Deployment Authorization requirement.

(2) INDEPENDENT FIELD OPERATIONS.—No covered personnel may conduct independent field enforcement operations—meaning enforcement actions conducted without a certified field training officer present—unless that individual additionally holds a Full Deployment Certification under Section 8003(a)(6).

(3) RELATIONSHIP BETWEEN AUTHORIZATIONS.—Completion of the requirements for Full Deployment Certification satisfies the requirements for Urban Deployment Authorization. The 90-day recertification requirement of Section 8003(a)(5) applies to all covered personnel holding either authorization, including those holding Full Deployment Certification.

(4) NEW HIRE DEPLOYMENT RESTRICTION.—Covered personnel hired on or after January 20, 2025 may not be deployed to any interior enforcement operation—whether urban or non-urban—until they have completed Phase I of the training program required by Section 8004(b) and received at minimum a Basic Certification under Section 8003(a)(4). Such personnel may not participate in any interior enforcement operation in an urban environment until they additionally hold a current Urban Deployment Authorization, which requires completion of Phase II as provided in Section 8003(a)(5) and Section 8011(e).

(b) NO WAIVER AUTHORITY.—Surge designations, emergency declarations, temporary duty assignments, operational directives, and national security designations shall not exempt any covered personnel from the requirements of this section. The Urban Deployment Authorization requirement of subsection (a) may not be waived, suspended, modified, or delayed by any official of the Executive Branch, by any agency head, or by any interagency coordination body, for any reason, including operational necessity, staffing shortfalls, or the pace of curriculum development under Section 8011. Any training requirement established by this title may be modified only by a subsequent Act of Congress.

(c) EXISTING PERSONNEL.—

(1) PHASE I AND PHASE II REQUIREMENTS.—Covered personnel who were employed by U.S. Immigration and Customs Enforcement, U.S. Customs and Border

Protection, or any component of the Department of Homeland Security in a covered personnel capacity on or before January 19, 2025 shall complete the Phase I training requirements of Section 8004(b) before receiving an Urban Deployment Authorization, except as provided in paragraph (2) of this subsection. No such personnel may participate in any interior enforcement operation unless they hold a current Urban Deployment Authorization or Provisional Urban Deployment Authorization as defined in this section. For purposes of this subsection:

(A) PHASE I CREDIT FOR PRIOR TRAINING.—Covered personnel described in this paragraph are not required to repeat Phase I training for any module where they can demonstrate, through verified training records, completion of equivalent training that meets or exceeds the content and hour requirements of that module as specified in Section 8004(b). The Secretary of Homeland Security shall establish a prior training credit verification process within 90 days of the date of enactment of this title. Credit may be granted on a module-by-module basis. A covered personnel member who receives credit for some but not all Phase I modules must complete the remaining modules before receiving an Urban Deployment Authorization. No credit shall be granted for ICAT de-escalation training (module 6 of Section 8004(b)) or Crisis Intervention Team training (module 7 of Section 8004(b)) based on prior training, because no equivalent program has been delivered to ICE or CBP personnel prior to the date of enactment of this title.

(B) REASSIGNMENT PENDING PHASE I COMPLETION.—Covered personnel described in this paragraph who do not hold a current Urban Deployment Authorization or Provisional Urban Deployment Authorization as provided in paragraph (2) of this subsection shall be reassigned to non-urban enforcement duties within 15 days of the date of enactment of this title and may not be reassigned to interior enforcement operations until they have completed Phase I and obtained a current Urban Deployment Authorization or Provisional Urban Deployment Authorization.

(C) PHASE II REQUIRED FOR ALL.—No covered personnel described in this paragraph, including those who have completed Phase I or who hold a Provisional Urban Deployment Authorization under paragraph (2), may retain a current Urban Deployment Authorization after the applicable completion deadline for each Phase II module has passed without that covered personnel member completing that module. The completion deadlines are as follows, each running from the date on which the Secretary of Homeland Security publishes the program notice for that module pursuant to Section 8011(b): (i) the Urban Operations and Crowd Management module required by Section 8004(c)(1)—100 days; (ii) the Trauma-Informed Enforcement Approaches module required by Section 8004(c)(2)—55 days; (iii) the Procedural Justice for Immigration Enforcement module required by Section 8004(c)(3)—40 days; and (iv) the Cultural Competency and Community Engagement module

required by Section 8004(c)(4)—40 days. This requirement applies to all covered personnel regardless of seniority, length of service, assignment history, or prior law enforcement experience.

(D) ANNUAL PHASE I REFRESHER.—Covered personnel described in this paragraph whose completion of Phase I occurred more than 12 months before the date of issuance or renewal of an Urban Deployment Authorization or Full Deployment Certification shall complete a Phase I refresher before that authorization or certification is issued or renewed. The Phase I refresher shall consist of not less than 64 hours and shall include: (i) ICAT de-escalation training as specified in Section 8004(b)(6), for a minimum of 16 hours; (ii) Crisis Intervention Team training as specified in Section 8004(b)(7), for a minimum of 40 hours; and (iii) a constitutional law and civil rights refresher covering Fourth and Fifth Amendment standards applicable to interior enforcement operations, for a minimum of 8 hours. These three components are the same components required for a Provisional Urban Deployment Authorization under paragraph (2) of this subsection, and reflect the minimum training package Congress finds necessary to return covered personnel to urban enforcement operations following a period of more than 12 months without required training. The Secretary shall promulgate standards for Phase I refresher assessment and delivery within 90 days of the date of enactment of this title.

(E) 90-DAY RECERTIFICATION.—The 90-day recertification interval established in Section 8003(a)(5) applies to all covered personnel described in this paragraph without exception. Length of urban assignment, seniority, or clean use-of-force record does not modify the recertification interval. An agency that cannot demonstrate that a covered personnel member has completed recertification within the preceding 90 days may not assign that individual to any interior enforcement operation.

(F) RULE OF CONSTRUCTION.—Seniority and prior law enforcement experience shall not be construed as substituting for the specific Phase I training required by this title. No covered personnel member hired on or before January 19, 2025 is exempt from Phase I by reason of years of service, supervisory rank, commendations, or assignment history, except to the extent that verified prior training demonstrates completion of equivalent content as provided in subparagraph (A).

(2) PROVISIONAL URBAN DEPLOYMENT AUTHORIZATION FOR QUALIFYING LONG-TENURED URBAN PERSONNEL.—

(A) ELIGIBILITY.—Covered personnel described in paragraph (1) who meet all three of the following conditions are eligible for a Provisional Urban Deployment Authorization upon enactment of this title: (i) the covered personnel has been continuously assigned to the same urban field office for not less than 3 years immediately preceding the date of enactment; (ii) the covered personnel has no sustained use-of-force complaint, no use-of-force finding, and no use-of-force

incident resulting in civilian injury or death recorded against them during that same 3-year period; and (iii) the covered personnel completes, within 90 days of the date of enactment, the following three training components: (I) the ICAT de-escalation program as defined in Section 8003(a)(7), for a minimum of 16 hours; (II) a Crisis Intervention Team curriculum certified by the Substance Abuse and Mental Health Services Administration or an equivalent accredited body, for a minimum of 40 hours; and (III) a constitutional law and civil rights refresher covering Fourth and Fifth Amendment standards applicable to interior enforcement operations, for a minimum of 8 hours. The total minimum training requirement for provisional authorization under this paragraph is 64 hours.

(B) NATURE AND DURATION.—A Provisional Urban Deployment Authorization issued under this paragraph authorizes participation in interior enforcement operations on the same terms as a full Urban Deployment Authorization. It is provisional in the following respects only: (i) it lapses automatically if the covered personnel member does not complete each Phase II module within the applicable completion deadline established in Section 8005(c)(1)(C), running from the date on which the Secretary of Homeland Security publishes the program notice for that module pursuant to Section 8011(b); and (ii) it is subject to the same 90-day recertification requirement as a full Urban Deployment Authorization, beginning 90 days after the date the provisional authorization is issued. Upon completion of all Phase II modules, the provisional authorization converts automatically to a full Urban Deployment Authorization. A lapsed provisional authorization is not renewable.

(C) BASIS FOR PROVISIONAL AUTHORIZATION.—Covered personnel who have been continuously assigned to the same urban field office for not less than 3 years and have maintained a clean use-of-force record during that period have demonstrated a baseline of urban enforcement competency through sustained operational experience. The 64-hour provisional training package addresses the three competency gaps most directly implicated in documented incidents of civilian harm: de-escalation decision-making (ICAT), mental health crisis recognition (CIT), and constitutional standards for interior enforcement. The provisional authorization recognizes that this combination of demonstrated performance record and immediate training completion constitutes a sufficient basis for continued urban deployment while the full Phase II curriculum is built and certified. Nothing in this subparagraph shall be construed to mean that 64 hours of training is equivalent to the full Phase II requirement.

(D) DISQUALIFICATION.—A covered personnel member's Provisional Urban Deployment Authorization lapses automatically, without prior notice, upon: (i) any use-of-force incident resulting in civilian injury or death; (ii) transfer to a different duty station; or (iii) failure to complete any required Phase II module within the applicable completion deadline established in Section 8005(c)(1)(C), running from

the date on which the Secretary of Homeland Security publishes the program notice for that module pursuant to Section 8011(b). A Provisional Urban Deployment Authorization that has lapsed under this paragraph is not renewable. A covered personnel member whose Provisional Urban Deployment Authorization has lapsed must be immediately removed from all interior enforcement operations and may not return to such operations until that individual has obtained a full Urban Deployment Authorization through completion of all Phase II modules as provided in Section 8003(a)(5).

(d) PRIOR LAW ENFORCEMENT EXPERIENCE.—Prior law enforcement experience shall not, standing alone, exempt any individual hired on or after January 20, 2025 from the requirement to complete full deployment certification under this title. No official of the Department of Homeland Security may exempt covered personnel from the training requirements established by this title based solely on prior law enforcement experience or the successful completion of an online examination.

(e) TRAINING CONDITIONS FOR SECTION 287(g) MEMORANDA OF AGREEMENT.—

(1) CONDITION ON EXECUTION AND RENEWAL.—No official of the Department of Homeland Security may execute or renew any Memorandum of Agreement under section 287(g) of the Immigration and Nationality Act (8 U.S.C. 1357(g)) unless the Memorandum of Agreement expressly requires that each state or local law enforcement officer authorized to perform immigration enforcement functions thereunder has completed training that meets or exceeds, in content and hours, the Phase I training standards established in Section 8004(b) of this title. This condition applies to all new and renewed Memoranda of Agreement executed on or after the date of enactment of this title.

(2) VERIFICATION BEFORE DEPLOYMENT.—Before authorizing any state or local officer deputized under a section 287(g) Memorandum of Agreement to participate in any interior enforcement operation, the Secretary of Homeland Security shall verify, through documentation reviewed and certified by the Federal Law Enforcement Training Centers or the relevant state or local law enforcement training authority, that the officer has completed training satisfying the requirements of paragraph (1). An officer who has not been so verified may not participate in any interior enforcement operation, regardless of the status of the applicable Memorandum of Agreement.

(3) ANTI-COMMANDEERING CONSTRUCTION.—Nothing in this subsection shall be construed to require any state or local law enforcement agency to participate in any section 287(g) program, to impose any training obligation on any state or local officer who is not participating in a section 287(g) program, or to mandate that any state or local agency adopt any training standard for purposes other than participation in a section 287(g) program. The training conditions established in this subsection operate exclusively through the voluntary participation of state and local agencies in the federal

section 287(g) program and do not constitute a direct mandate on state or local governments.

(4) EXISTING AGREEMENTS.—The Secretary of Homeland Security shall, within 180 days of the date of enactment of this title, review all currently active section 287(g) Memoranda of Agreement and determine which deputized officers have not completed training satisfying the Phase I standards required by this section. Officers identified as not meeting the training standard shall be suspended from participation in interior enforcement operations pending completion of required training or the expiration of the applicable Memorandum of Agreement, whichever occurs first. The Secretary of Homeland Security shall, within the same 180-day period, either amend each non-compliant Memorandum of Agreement to incorporate the training requirements of paragraph (1) or allow it to expire without renewal. No non-compliant Memorandum of Agreement may be renewed.

(5) NULLIFICATION OF AGREEMENTS WHERE OFFICERS HAVE NOT COMPLETED REQUIRED TRAINING.—

(A) IMMEDIATE INOPERABILITY.—Any section 287(g) Memorandum of Agreement currently in effect is hereby rendered inoperative with respect to each deputized state or local law enforcement officer who has not completed training satisfying the Phase I standards required by paragraph (1), effective upon the date of enactment of this title. A Memorandum of Agreement rendered inoperative under this paragraph does not authorize any non-compliant officer to exercise immigration enforcement authority, make arrests, carry a firearm in connection with immigration enforcement functions, or use force under section 287(g) of the Immigration and Nationality Act (8 U.S.C. 1357(g)), and no federal official may direct, task, authorize, or ratify such exercise of authority by a non-compliant officer.

(B) AGREEMENT-WIDE NULLIFICATION.—Any Memorandum of Agreement under which no deputized officer has completed training satisfying the Phase I standards required by paragraph (1) is null and void in its entirety effective upon the date of enactment of this title. A null and void agreement confers no enforcement authority and may not be revived; the state or local agency and the Secretary of Homeland Security must execute a new Memorandum of Agreement satisfying the conditions of paragraph (1) before any officer of that agency may exercise immigration enforcement authority under section 287(g).

(C) RESTORATION OF AUTHORITY.—The inoperative status of a Memorandum of Agreement with respect to an individual non-compliant officer shall be lifted, and that officer’s immigration enforcement authority restored, only upon the Secretary’s written certification, issued after verification pursuant to paragraph (2), that the officer has completed training satisfying the requirements of paragraph (1). The Secretary shall issue or deny certification within 15 business days of receiving a complete verification request. No officer whose authority has lapsed under this

paragraph may exercise any immigration enforcement function under section 287(g) pending issuance of written certification.

(D) RELATIONSHIP TO PARAGRAPH (4).—The nullification and inoperability provisions of this paragraph operate independently of the 180-day review process established in paragraph (4). The suspension of individual officers required by paragraph (4) and the nullification of agreements required by this paragraph are cumulative and not in the alternative; compliance with paragraph (4) does not satisfy or defer the obligations imposed by this paragraph.

(E) ANTI-COMMANDEERING SAVINGS CLAUSE.—Nothing in this paragraph shall be construed to impose any obligation on a state or local law enforcement agency that has not voluntarily entered into a section 287(g) Memorandum of Agreement, to require any state or local agency to continue participating in the section 287(g) program, or to prohibit a state or local agency from withdrawing from the section 287(g) program at any time.

(6) SAVINGS CLAUSE FOR PRE-ENACTMENT ACTIONS.—(A) No arrest, detention, removal, or other enforcement action taken by a state or local law enforcement officer under a section 287(g) Memorandum of Agreement prior to the date of enactment of this title shall be rendered invalid solely by reason of the nullification or inoperability of that agreement under this subsection. (B) Nothing in this paragraph shall be construed to preclude any legal challenge to a pre-enactment enforcement action on any other ground, including challenges based on violations of constitutional rights, statutory authority, or applicable regulations in effect at the time the action was taken. (C) This savings clause preserves the procedural validity of pre-enactment actions for purposes of legal certainty and does not constitute a congressional finding that the training standards applicable to officers operating under section 287(g) Memoranda of Agreement prior to the date of enactment were adequate or that enforcement actions taken by inadequately trained officers were conducted safely or appropriately.

SEC. 8006. DEPLOYMENT RESTRICTIONS.

(a) URBAN AND CIVILIAN-CONTACT ENVIRONMENTS.—Covered personnel assigned to any interior enforcement operation in an urban or densely populated environment shall complete not less than 16 hours of deployment-specific briefing, covering the geographic, demographic, and operational characteristics of the target deployment environment, within 30 days prior to the start of the deployment.

(b) TEMPORARY DUTY AND SURGE DEPLOYMENTS.—

(1) Temporary duty or surge personnel, as defined in Section 8003(a)(3), shall meet all training and certification requirements applicable to permanently stationed covered personnel in the jurisdiction of the interior enforcement operation to which they are deployed.

(2) Any deployment of 10 or more temporary duty or surge personnel to a single metropolitan area shall require a written notification submitted to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives not later than 24 hours before the commencement of the deployment. The notification shall include—

(A) the full deployment certification status of each covered personnel deployed;

(B) the rules of engagement applicable to the deployment;

(C) the coordination protocols established with state and local law enforcement; and

(D) the identification and transparency procedures for all deployed personnel.

(c) IDENTIFICATION REQUIREMENTS.—

(1) All covered personnel conducting any enforcement action shall display visible law enforcement identification at all times during the action, including when wearing tactical attire or plain clothes. Covered personnel may not obscure, remove, or conceal badge numbers, agency affiliation, or identifying insignia during any contact with a member of the public.

(2) All covered personnel shall carry and, upon request, present a government-issued identification card stating their badge number and employing agency. A badge number shall be sufficient to identify the individual covered personnel member in the registry maintained under Section 8008(a)(3) and in any use-of-force report, complaint, or investigation. Covered personnel are not required to disclose their legal name to any member of the public during an enforcement action.

(d) MANDATORY BODY-WORN CAMERAS.—

(1) REQUIREMENT.—All covered personnel conducting any interior enforcement operation shall wear and activate a functioning body-worn camera throughout the duration of any enforcement action, including at all times during which the covered personnel are in contact with any member of the public. Camera activation shall not be discretionary. Covered personnel shall not disable, obstruct, or delete any body-worn camera recording during or following an enforcement action.

(2) PRESERVATION AND DISCLOSURE.—Body-worn camera recordings involving any use-of-force incident shall be preserved for not less than 5 years and shall be made available within 48 hours of request to any State or local law enforcement agency, or the Department of Justice, investigating the incident. Recordings shall not be withheld, modified, or selectively disclosed by any official of the Executive Branch. Failure to preserve or produce a recording required by this paragraph shall create a rebuttable presumption, in any civil or criminal proceeding, that the recording would have been adverse to the employing agency's account of the incident.

(e) PROHIBITION ON FIELD-LEVEL OPERATIONAL COLLECTION TARGETING FIRST AMENDMENT-PROTECTED ACTIVITY.—

(1) FIELD-LEVEL COLLECTION PROHIBITION.—No covered personnel and no official of the Department of Homeland Security may, in the course of or in connection with any interior enforcement operation, collect, record, maintain, or share personal information—including names, photographs, license plate numbers, hotel or residential locations, employer information, or identifying insignia—about any individual through field observation, field documentation, inter-agency memoranda, or any other operational mechanism, solely on the basis of that individual's participation in protest, demonstration, counter-surveillance, or other activity protected by the First Amendment to the Constitution of the United States. This subsection specifically prohibits the circulation of field memoranda or operational orders directing covered personnel to gather identifying information on observers, protesters, or bystanders as a class. Nothing in this subsection limits the prohibitions on the purchase or licensing of commercial surveillance data applicable to DHS under section 1062 of this Act; this subsection addresses field-level collection by covered personnel that such section does not reach.

(2) PROHIBITION ON THREAT DESIGNATIONS.—No covered personnel may designate any individual as a "domestic terrorist," "agitator," "insurrectionist," or any similar threat category based solely on that individual's participation in protected First Amendment activity, including observation or recording of law enforcement officers performing their duties in public.

(3) ENFORCEMENT.—Any violation of this subsection shall be subject to the penalties established in Section 8009. Nothing in this subsection shall be construed to limit the authority of covered personnel to collect information about any individual who has been individually identified, based on particularized and articulable facts, as a suspect in a criminal offense unrelated to the exercise of First Amendment rights.

SEC. 8007. INDEPENDENT REVIEW OF SERIOUS USE-OF-FORCE INCIDENTS.

(a) MANDATORY REFERRAL TO DEPARTMENT OF JUSTICE.—Any serious use-of-force incident, as defined in Section 8003(a)(8), involving covered personnel shall be referred within 24 hours of the incident to the Civil Rights Division of the Department of Justice for independent review. The referral shall include all available body-worn camera footage, weapon forensics, training records of involved personnel, and a preliminary incident report prepared by the relevant agency.

(b) INDEPENDENT INVESTIGATION STANDARDS.—(1) The Civil Rights Division shall conduct an independent investigation of each referred incident and shall determine, not later than 180 days after referral, whether the use of force was lawful under applicable constitutional standards, whether the involved personnel held the certifications required by this title at the time of the incident, and whether any criminal referral is warranted.

(2) ESCALATION UPON FAILURE TO DETERMINE.—If the Civil Rights Division fails to issue a determination within 180 days of referral as required by paragraph (1), the

following shall apply automatically and without any further action by the Secretary of Homeland Security, the referring agency, or any other official:

(A) The matter shall transfer to the Inspector General of the Department of Justice for independent review. The Inspector General shall have full access to all materials previously submitted to the Civil Rights Division under Section 8007(a), and the Civil Rights Division shall transmit the complete investigative record to the Inspector General within 5 business days of the transfer date.

(B) The Inspector General shall complete an independent review and issue a determination on the same three questions required of the Civil Rights Division under paragraph (1)—lawfulness of force, certification status of involved personnel, and whether criminal referral is warranted—not later than 90 days after the transfer date.

(C) A determination issued by the Inspector General under this paragraph shall carry the same legal effect for all purposes under this title as a determination issued by the Civil Rights Division under paragraph (1).

(D) Transfer of a matter to the Inspector General under this paragraph does not divest the Civil Rights Division of jurisdiction; the Civil Rights Division may continue its investigation and issue a determination at any time. If both the Civil Rights Division and the Inspector General issue determinations, both shall be transmitted to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives, and any conflict between them shall be noted in the annual report required by Section 8008(d).

(E) Involved covered personnel shall remain suspended from all interior enforcement operations from the date of the incident referral under Section 8007(a) until a final determination is issued under paragraph (1) or this paragraph, whichever occurs first.

(c) PROHIBITION ON INTERFERENCE.—No official of the Executive Branch may direct, instruct, incentivize, or otherwise cause any covered personnel to refuse to cooperate with, withhold evidence from, or interfere with any State or local law enforcement investigation of a serious use-of-force incident or any other use-of-force incident involving covered personnel. Any such interference shall be subject to the penalties established in Section 8009.

(d) PROHIBITION ON OBSTRUCTION OF EMERGENCY MEDICAL CARE.— Following any use-of-force incident resulting in injury, covered personnel shall immediately summon emergency medical services and shall not prevent, delay, or obstruct the provision of medical care to any injured person, regardless of that person's immigration status, citizenship status, or role in the enforcement operation. Any willful violation of this subsection shall be subject to the penalties established in Section 8009(b), including referral to the Department of Justice for appropriate civil or criminal action.

SEC. 8008. CERTIFICATION, OVERSIGHT, AND ACCOUNTABILITY.

(a) SECRETARY OF HOMELAND SECURITY—CERTIFICATION AND REGISTRY. —The Secretary of Homeland Security shall—

(1) establish uniform certification criteria and examination standards for each phase of training described in Section 8004;

(2) issue basic certification and full deployment certification to covered personnel who have completed the applicable training requirements;

(3) maintain a restricted-access registry, updated not less than monthly, of all covered personnel, including their certification status, phase completion dates, interim training hours completed under Section 8011(c), and any outstanding training deficiencies. The registry shall not be publicly accessible. Access to registry records shall be limited to: (A) the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives; (B) the Department of Justice in connection with any investigation; (C) the Inspector General of the Department of Homeland Security; and (D) any State or local law enforcement agency investigating a use-of-force incident involving the specific covered personnel member whose records are requested. Aggregate, anonymized compliance statistics derived from registry data shall be included in the annual report to Congress required by Section 8008(d) and may be made publicly available through that report.

(b) DHS INSPECTOR GENERAL.—The Inspector General of the Department of Homeland Security shall—

(1) establish independent audit standards for verifying the training certification program administered by the Secretary under subsection (a);

(2) conduct independent audits of all training programs operated under this title at FLETC and all agency training facilities not less than once per year and report findings to Congress;

(3) independently verify training completion records upon request in connection with any use-of-force investigation or congressional inquiry; and

(4) investigate and report to Congress any instance in which covered personnel are deployed in violation of the requirements of this title, including any instance in which the Secretary issues certification without verification of completed training.

(c) SUPERVISOR LIABILITY.—Any supervisor who knowingly or recklessly authorizes the deployment of covered personnel who has not received the certification or authorization required by this title shall be subject to—

(1) removal from any supervisory position; and

(2) in the case of willful or knowing violation, referral to the Department of Justice for appropriate civil or criminal action under applicable law. A reckless violation under this subsection subjects the supervisor to the consequences in paragraph (1); referral under paragraph (2) requires a willful or knowing violation.

(d) ANNUAL REPORT TO CONGRESS.—Not later than 180 days after the date of enactment of this title, and annually thereafter, the Secretary of Homeland Security shall

submit to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report that includes—

(1) the training and certification status of all covered personnel hired on or after January 20, 2025, including interim training hours completed under Section 8011(c), disaggregated by agency, duty station, deployment type, and hire date;

(2) all use-of-force incidents involving covered personnel, including the certification status of involved personnel at the time of each incident;

(3) any instance in which covered personnel hired on or after January 20, 2025 were deployed prior to completing required training, any justification claimed and the grounds for its rejection, and any disciplinary action taken;

(4) the annual recertification completion status of all active covered personnel, including those employed on or before January 19, 2025;

(5) the Inspector General's assessment of compliance with the requirements of this title; and

(6) the number of serious use-of-force incidents referred to the Department of Justice Civil Rights Division and the status of each investigation.

(e) PRESERVATION AND DISCLOSURE OF TRAINING RECORDS.—Training records for all covered personnel shall be preserved for not less than 10 years following an individual's separation from service and shall be made available, within 5 business days of request, to—

(1) the Committee on the Judiciary of the Senate or the Committee on the Judiciary of the House of Representatives;

(2) the Department of Justice in connection with any investigation; and

(3) any State or local law enforcement agency investigating a use-of-force incident involving covered personnel.

(f) ADMINISTRATIVE REVIEW OF AUTOMATIC SUSPENSIONS.—

(1) RIGHT TO REVIEW.—Upon any automatic suspension or lapse of an Urban Deployment Authorization, Provisional Urban Deployment Authorization, or Full Deployment Certification under this title, the Secretary of Homeland Security shall issue written notice to the affected covered personnel member within 5 business days of the suspension or lapse taking effect. The notice shall state the specific ground for the suspension or lapse, the date it took effect, and the process for requesting administrative review under this subsection. Any covered personnel member who receives such notice may, within 15 days of the date of the notice, submit a written request for administrative review to the Secretary of Homeland Security. Submission of a request for review does not stay the suspension or lapse; the covered personnel member remains removed from all interior enforcement operations pending resolution.

(2) GROUNDS FOR REVIEW.—Administrative review under this subsection is available only on the ground that the suspension or lapse resulted from a verified error in training

records, certification records, or assignment records maintained under Section 8008(a)(3). The review process may not be used to challenge the substantive training or recertification requirements established by this title, or the merits of any use-of-force finding or misconduct determination.

(3) REVIEW OFFICER.—The Secretary of Homeland Security shall designate one or more Review Officers to carry out the functions of this subsection. Each Review Officer shall be: (A) a career civil servant serving in a position that is not subject to noncompetitive appointment, Schedule C designation, or any other political appointment authority; and (B) assigned to an office within the Department of Homeland Security that is outside the chain of command of the field office or component from which the covered personnel member's deployment was authorized. The Secretary shall make the identity and contact information of the designated Review Officer or Officers available to all covered personnel through the Department of Homeland Security. Upon receipt of a review request, the Review Officer shall notify both the covered personnel member and the relevant agency within 2 business days and shall direct each party to submit all relevant records within 7 business days of that notification. The Review Officer shall complete review within 10 business days of the close of the record submission period, based on the record available at that time regardless of whether all requested records have been submitted. If the Review Officer finds that the suspension or lapse resulted from a documented recordkeeping error, the suspension shall be lifted or the lapse rescinded retroactively to the date it was imposed, the covered personnel member's record shall be corrected in the registry maintained under Section 8008(a)(3), and the covered personnel member shall be restored to active authorization status without further delay or condition. If no recordkeeping error is found, the suspension or lapse stands and may be resolved only by completion of the required training or recertification as otherwise specified in this title.

(4) REGISTRY CORRECTION AND IG NOTICE.—Upon confirmation of a recordkeeping error, the Secretary shall update the registry maintained under Section 8008(a)(3) within 5 business days of the Review Officer's determination and shall notify the Inspector General of the Department of Homeland Security of the nature, source, and scope of the error within 10 business days. The Inspector General shall include any confirmed systemic errors in the annual audit report required by Section 8008(b)(2).

SEC. 8009. ENFORCEMENT AND PENALTIES.

(a) DEPLOYMENT IN VIOLATION OF THIS ACT.—Upon becoming aware that covered personnel have been deployed in an interior enforcement operation without the certification or authorization required by this title, the Secretary of Homeland Security shall suspend that individual from all field duties within 24 hours and shall require completion of the applicable training before return to field duty. The Inspector General of the Department of Homeland Security shall be notified of each such suspension within 48 hours. The Secretary shall

conduct monthly reconciliations of deployment records against the registry maintained under Section 8008(a)(3) to identify any covered personnel deployed without required certification.

(b) WILLFUL VIOLATIONS BY OFFICIALS.—Any official who willfully authorizes the deployment of any covered personnel who has not received the certification or authorization required by this title, or who willfully obstructs any independent investigation required by Section 8007, shall be subject to removal from Federal service and may be subject to civil liability. Nothing in this title shall be construed to limit the availability of any other remedy, civil or criminal, under applicable law.

(c) CONTRACTOR ENFORCEMENT.—

(1) INDIVIDUAL CONTRACTORS.—Any covered personnel who is a contractor and who participates in an interior enforcement operation without holding the certification or authorization required by this title shall be immediately removed from the assignment by the contracting agency. The Secretary of Homeland Security shall notify the relevant contracting officer within 24 hours and shall initiate proceedings to debar the individual from participation in any Department of Homeland Security contract, grant, or cooperative agreement for a period of not less than 3 years, pursuant to 48 C.F.R. Part 9, Subpart 9.4.

(2) CONTRACTING ENTITIES.—Any contractor or subcontractor whose personnel participate in interior enforcement operations in violation of this title shall be subject to contract termination for cause. The Secretary of Homeland Security shall refer the contracting entity to the General Services Administration for debarment proceedings and shall report any such referral to Congress in the annual report required by Section 8008(d). The Secretary shall include in that report the name of the contracting entity, the nature of the violation, and the status of debarment proceedings.

(d) FALSE CERTIFICATION OF TRAINING EQUIVALENCY.—Any official of the Department of Homeland Security who knowingly certifies, or causes to be certified, that prior training completed by covered personnel satisfies the content or hour requirements of any Phase I module under Section 8004(b) when that training does not in fact meet those requirements shall be subject to the following: (1) referral to the Inspector General of the Department of Homeland Security within 30 days of discovery of the false certification, for independent investigation and report to Congress; (2) referral to the Department of Justice for potential prosecution under 18 U.S.C. § 1001 (false statements to the federal government); and (3) removal from federal service. The Inspector General of the Department of Homeland Security shall conduct an independent audit of all prior training credit certifications issued under Section 8005(c)(1)(A) not less than annually and shall report findings, including the number of certifications reviewed, the number found not to meet applicable standards, and any referrals made, to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives. A false certification under this subsection that results in the deployment of covered personnel to an interior enforcement operation for

which they are not qualified shall additionally constitute a willful violation subject to the penalties established in subsection (b) of this section.

(e) FALSE CERTIFICATION OF PHASE I COMPLETION.—

(1) PROHIBITION.—Any official of the Department of Homeland Security who knowingly certifies, or causes to be certified, that covered personnel have completed any module or the full program of Phase I training required by Section 8004(b) when that training has not in fact been completed shall be subject to the following: (A) referral to the Inspector General of the Department of Homeland Security within 30 days of discovery, for independent investigation and report to Congress; (B) referral to the Department of Justice for potential prosecution under 18 U.S.C. § 1001 (false statements to the federal government); and (C) removal from federal service.

(2) INDEPENDENT AUDIT.—The Inspector General of the Department of Homeland Security shall conduct an independent audit of all Phase I completion certifications issued under Section 8008(a)(2) not less than annually, and shall report findings—including the number of certifications reviewed, the number found not to reflect actual completion of required training, and any referrals made—to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives.

(3) AGGRAVATED VIOLATION.—A false certification under this subsection that results in the deployment of covered personnel to an interior enforcement operation for which they are not qualified shall additionally constitute a willful violation subject to the penalties established in subsection (b) of this section. Where a false certification under this subsection also constitutes a false certification of training equivalency under subsection (d), both subsections apply cumulatively and not in the alternative.

(4) REGISTRY INTEGRITY.—Upon discovery of any false certification under this subsection, the Secretary of Homeland Security shall immediately correct the affected records in the registry maintained under Section 8008(a)(3), suspend the improperly certified covered personnel from all interior enforcement operations pending completion of actual required training, and notify the Inspector General and the relevant congressional committees within 5 business days.

(f) PRIVATE RIGHT OF ACTION.—(1) CAUSE OF ACTION.—Any person who suffers death or bodily injury as a result of a use of force by covered personnel who, at the time of the incident, did not hold the certification or authorization required by this title for the type of operation in which the force was used, may bring a civil action against the United States in a district court of the United States for compensatory damages. In the case of death, the action may be brought by the personal representative of the decedent's estate on behalf of the decedent's survivors. (2) STANDARD OF LIABILITY.—A plaintiff need not prove that the absence of required certification or authorization was the proximate cause of the specific injury. It is sufficient that: (A) the covered personnel who used force did not hold the certification or authorization required by this title at the time of the use of force; and (B) the

use of force resulted in death or bodily injury. The absence of required certification or authorization establishes that the deployment itself violated this title; the causal connection between the unlawful deployment and the resulting harm is presumed. (3) WAIVER OF SOVEREIGN IMMUNITY.—The United States waives sovereign immunity for purposes of actions brought under this subsection. No individual covered personnel member shall be personally liable under this subsection; liability attaches to the United States as the employing sovereign. (4) ATTORNEY'S FEES.—A court shall award reasonable attorney's fees and litigation costs to a prevailing plaintiff in an action brought under this subsection. (5) STATUTE OF LIMITATIONS.—An action under this subsection must be commenced not later than 3 years after the date on which the cause of action accrues, or not later than 3 years after the date on which the plaintiff knew or reasonably should have known that the covered personnel involved did not hold the required certification or authorization, whichever is later. (6) RELATIONSHIP TO OTHER REMEDIES.—The cause of action established by this subsection is in addition to, and does not limit or supplant, any other remedy available under federal or state law, including actions under 42 U.S.C. § 1983, Bivens v. Six Unknown Named Agents, 403 U.S. 388 (1971), or the Federal Tort Claims Act (28 U.S.C. §§ 1346(b), 2671–2680).

SEC. 8010. AUTHORIZATION OF APPROPRIATIONS.

(a) IN GENERAL.—There is authorized to be appropriated $15,000,000, available beginning on the date of enactment and until expended, for the sole purpose of developing the Phase II Urban and Civil Environment Training curricula required by Section 8004(c) of this title. Congress intends that appropriated funds be made available at the start of the first full fiscal year following the date of enactment, or as part of a supplemental appropriation, whichever occurs first, in order to avoid a gap between the mandatory curriculum development timeline established in Section 8004(c)(5)(B) and the availability of funds to support it. Phase I training required by Section 8004(b) consists entirely of programs available for delivery as of the date of enactment and requires no appropriation under this section.

(b) PERMITTED USES.—Funds authorized under this section may be used only for—

(1) grants to the Federal Law Enforcement Training Centers, in consultation with the Police Executive Research Forum, for development of the urban operations and crowd management curriculum required by Section 8004(c)(1);

(2) grants to the Substance Abuse and Mental Health Services Administration's GAINS Center, in partnership with academic institutions with expertise in immigration enforcement and trauma, for development of the trauma-informed enforcement curriculum required by Section 8004(c)(2);

(3) competitive grants administered by the National Institute of Justice to university research teams with demonstrated procedural justice expertise, for development of the procedural justice curriculum required by Section 8004(c)(3);

(4) competitive grants administered by the National Institute of Justice to academic institutions, with mandatory community partner involvement as required by Section 8004(c)(4), for development of the cultural competency and community engagement curriculum required by Section 8004(c)(4); and

(5) curriculum review and validation costs incurred by the Federal Law Enforcement Training Centers in certifying that developed Phase II curricula meet the content and hour requirements of Section 8004(c).

(c) PROHIBITED USES.—Funds authorized under this section may not be used for—

(1) construction, renovation, or expansion of any Federal Law Enforcement Training Center facility;

(2) any Phase I training delivery or curriculum costs, which shall be funded entirely from existing Department of Homeland Security appropriations;

(3) any operational costs of delivering training to covered personnel; or

(4) personnel costs of the Department of Homeland Security, U.S. Immigration and Customs Enforcement, or U.S. Customs and Border Protection.

(d) DELIVERY COSTS.—The Secretary of Homeland Security shall fund all costs of delivering all training required by this title, including all Phase I and Phase II training, from existing Department of Homeland Security appropriations. No appropriation beyond the $15,000,000 authorized in subsection (a) is authorized or required under this title.

SEC. 8011. EFFECTIVE DATE AND TRANSITION.

(a) GENERAL EFFECTIVE DATE.—This title shall take effect on the date of enactment.

(b) PUBLICATION OF FULL TRAINING PROGRAM.—The Secretary of Homeland Security shall publish a training and certification program notice for each module within 21 days of the date on which the Director of the Federal Law Enforcement Training Centers certifies that module's curriculum as available under Section 8011(e). A separate publication obligation arises for each module upon its certification and runs independently of the obligations triggered by other modules; the Secretary is not required to await certification of all modules before publishing notices for individually certified modules. The completion deadlines established in Section 8005(c)(1)(C) run from the date of the Secretary's publication notice for each module, not from the date of FLETC certification, so that personnel have their full statutory window after the program is published and delivery has commenced. The self-executing prohibition on interior enforcement operations without a current Urban Deployment Authorization, established in Section 8005(a)(1) and detailed in Section 8011(e)(1), does not await publication and is enforceable from the date of enactment.

(c) INTERIM TRAINING PERIOD.—During the period beginning 15 days after the date of enactment and ending on the date on which the full training program is published under subsection (b), the Secretary of Homeland Security shall require covered personnel hired on

or after January 20, 2025 who have been removed from unsupervised field duty under Section 8005(a)(4) to begin training under the following interim requirements:

(1) AUTHORIZED INTERIM PROGRAMS.—Interim training shall be delivered using only the following programs, which are hereby approved as satisfying the corresponding module standards of section 5:

(A) the ICAT program, as defined in Section 8003(a)(7), delivered by a PERF-certified instructor, which shall count toward the de-escalation module requirement of Section 8004(b)(6);

(B) a Crisis Intervention Team curriculum certified by the Substance Abuse and Mental Health Services Administration, which shall count toward the Crisis Intervention Team module requirement of Section 8004(b)(7); and

(C) constitutional law and civil rights instruction administered by the Federal Law Enforcement Training Centers or delivered under a Department of Justice technical assistance program, which shall count toward the applied authorities and constitutional law module requirement of Section 8004(b)(3).

(2) RECORDKEEPING.—Attendance and completion records for all interim training shall be—

(A) certified in writing by the delivering instructor at the time of delivery; and

(B) logged in the registry maintained under Section 8008(a)(3) within 5 business days of completion.

Records may not be reconstructed retroactively. Any interim training hours not logged within the timeframe specified in subparagraph (B) shall not be eligible for credit under paragraph (3).

(3) CREDIT TOWARD PHASE MINIMUMS.—Verified interim training hours completed under this subsection shall count toward the corresponding module minimums established in Section 8004, subject to the following limitations:

(A) credit shall not reduce the total required hours for any phase below the minimums specified in Section 8004;

(B) an officer who completes 16 hours of ICAT instruction during the interim period shall apply those 16 hours toward the de-escalation module requirement and shall complete any remaining hours under the full program; and

(C) the Secretary of Homeland Security shall verify all credit applications against the registry records established under paragraph (2) before issuing any certification under Section 8008(a)(2).

(5) SCOPE OF INTERIM REQUIREMENTS.—The interim training requirements of this subsection apply exclusively to covered personnel hired on or after January 20, 2025. Covered personnel employed on or before January 19, 2025 are governed by the prior training credit, reassignment, Provisional Urban Deployment Authorization, and Phase II completion deadline provisions of Section 8005(c), which establish a separate and

independent compliance pathway for existing personnel. Congress finds that the distinction reflects the different circumstances of the two populations: new hires require interim training because they may have entered service under the compressed post-August 2025 curriculum and have no prior equivalent training to credit, whereas existing personnel have an established service record against which prior training equivalency can be assessed under Section 8005(c)(1)(A).

(d) NO GAP IN SUPERVISION REQUIREMENT.—Nothing in this section shall be construed to permit covered personnel removed from unsupervised field duty under Section 8005(a)(4) to return to unsupervised field operations during the interim training period. Covered personnel in the interim period may participate in enforcement actions only under the conditions specified in Section 8005(a).

(e) CURRICULUM AVAILABILITY AND MODULE TRIGGERS.—

(1) SELF-EXECUTING PROHIBITION.—The prohibition on participation in interior enforcement operations without a current Urban Deployment Authorization established in Section 8005(a)(1) takes effect on the date of enactment. This prohibition is not contingent on the availability of any curriculum, the publication of any program, or the completion of any regulatory process. No covered personnel may participate in any interior enforcement operation while the Urban Deployment Authorization requirement is unsatisfied, regardless of the status of curriculum development under this section.

(2) PHASED TRAINING MANDATE.—The training mandate for each module required by Section 8004 attaches on a module-by-module basis. For modules in Phase I for which a compliant curriculum exists as of the date of enactment—including all eight modules of Section 8004(b), each of which is available for immediate delivery as of the date of enactment as established in Section 8004(b)—the training mandate attaches on the date of enactment. All Phase II modules require new curriculum development as of the date of enactment; no Phase II training mandate attaches until the Director of the Federal Law Enforcement Training Centers certifies that module's curriculum as available pursuant to paragraph (4).

(3) PROHIBITION PENDING CURRICULUM.—During the period between the date of enactment and the date on which the Director certifies a compliant curriculum for a given Phase II module, the fact that the training mandate for a given Phase II module has not yet attached does not constitute a basis for assigning covered personnel to interior enforcement operations. The pending development of a curriculum does not create an exemption from the Urban Deployment Authorization requirement. When a new module's curriculum is certified as available, all covered personnel who hold or are seeking a current Urban Deployment Authorization must complete that module within the applicable completion deadline established in Section 8005(c)(1)(C), running from the date of the Secretary's publication notice for that module pursuant to Section 8011(b). Covered personnel who fail to complete a certified module within the applicable deadline

shall have their Urban Deployment Authorization automatically suspended until the module is completed.

(4) DIRECTOR CERTIFICATION.—The Director of the Federal Law Enforcement Training Centers shall certify the availability of each Phase II module curriculum only upon a finding that: (A) the curriculum satisfies all content requirements of Section 8004(c) for that module, including minimum hours for each content block and minimum scenario-based delivery percentages; (B) sufficient certified instructors and facilities are available to begin delivery to covered personnel within 14 days of the Secretary's publication notice for that module pursuant to Section 8011(b); and (C) the curriculum has been reviewed by at least one independent subject-matter expert with no financial relationship to the Department of Homeland Security.

SEC. 8012. SEVERABILITY.

If any provision of this title, or the application of any provision of this title to any person or circumstance, is held to be invalid or unconstitutional by a court of competent jurisdiction, the remainder of this title and the application of its provisions to any other person or circumstance shall not be affected. Congress declares that it would have enacted each provision of this title independently of any other provision found to be invalid or unconstitutional, and that the remaining provisions shall continue in force to the fullest extent permitted by law.

TITLE IX—ACCOUNTABILITY AND TRANSPARENCY IN POLITICAL VIOLENCE INVESTIGATIONS

SEC. 9001. SHORT TITLE; TABLE OF CONTENTS.

(a) *Short Title.*—This title may be cited as the "Accountability and Transparency in Political Violence Investigations Act of 2026".

(b) *Table of Contents.*—The table of contents of this title is as follows:

Sec. 9001. Short Title; Table of Contents.

Sec. 9002. Findings.

Sec. 9003. Purpose.

Sec. 9004. Establishment of the National Commission on the Assassination of Charlie Kirk.

Sec. 9005. Scope of Inquiry.

Sec. 9006. Powers of the Commission.

Sec. 9007. Staff, Compensation, and Funding.

Sec. 9008. Report.

Sec. 9009. Termination.

Sec. 9010. Severability.

SEC. 9002. FINDINGS.

Congress finds the following:

(1) On September 10, 2025, Charles J. Kirk, the founder and chief executive officer of Turning Point USA (hereinafter "TPUSA"), was assassinated by a single gunshot while speaking at a public event at Utah Valley University in Orem, Utah, before an audience of approximately 3,000 persons.

(2) Tyler James Robinson, age 22, of Washington, Utah, has been charged with aggravated murder and faces the death penalty. The case remains in pretrial proceedings. Mr. Robinson has not yet entered a plea, and is presumed innocent.

(3) TPUSA maintains a presence on more than 3,500 campuses, claims in excess of 650,000 lifetime student members, employs more than 450 staff, and reported annual revenues of approximately $85,000,000 in fiscal year 2024, making it one of the most influential political organizations in the United States.

(4) The Bureau of Alcohol, Tobacco, Firearms, and Explosives has reported that the bullet recovered during autopsy could not be positively matched to the rifle attributed to the sole charged suspect. Additional lead composition analysis by the Federal Bureau of Investigation remains pending.

(5) Text message communications released by federal authorities and cited in court filings as evidence of motive did not include timestamps, an omission noted by the Associated Press and subject to bipartisan criticism.

(6) Within approximately one week of the assassination, the physical location of the crime scene at Utah Valley University—including the ground where Kirk fell—was excavated and permanently replaced with bricks and pavers, notwithstanding the pendency of an active capital murder investigation. No public explanation for this alteration has been provided, nor has it been confirmed whether law enforcement authorized or objected to this action.

(7) Multiple credible journalistic outlets, including the New York Times, Harper's Magazine, and the New York Post, have reported that Kirk was subject to documented financial pressure from major donors in the months and weeks preceding his death, tied specifically to his public and private positions regarding United States policy toward Israel. These reports have been corroborated in part by a TPUSA spokesman who confirmed the authenticity of certain private communications.

(8) A former Director of the National Counterterrorism Center has publicly stated that his office was directed to cease investigating potential foreign connections to the assassination and that the investigation was routed exclusively to state authorities over the objection of counterterrorism officials.

(9) TPUSA operates through no fewer than four tax-exempt entities. Public filings for fiscal year 2024 revealed intercompany transfers of $8,560,000 to an affiliated entity that had previously reported zero employees but millions of dollars in salary expenditures. Three of the four entities' annual informational returns were not publicly available through standard nonprofit databases during the relevant period.

(10) The assassination of a major American political figure at a public event constitutes a matter of extreme public concern. The integrity of the investigation and the completeness of the evidentiary record are matters properly subject to congressional oversight, without prejudice to the criminal proceedings against Mr. Robinson or any other person.

(11) The backgrounds, prior professional affiliations, and institutional histories of individuals in the immediate personal and professional circle of the decedent—including family members, organizational officers and directors, and persons with regular access to the decedent's schedule, security arrangements, and private communications—have not, to the knowledge of Congress, been examined or disclosed as part of any Federal or State investigation, notwithstanding established investigative practice in cases of political assassination requiring such examination as a matter of course.

(12) In the months following the assassination, the absence of a comprehensive and publicly accountable investigation has given rise to widespread speculation, including unsubstantiated conspiracy theories, across media platforms and among the general public. Such speculation, however understandable given the unresolved questions identified herein, risks undermining public confidence in the integrity of law enforcement and the administration of justice. A formal, independent congressional inquiry, conducted transparently and pursuant to subpoena authority, is necessary to establish an

authoritative factual record and to displace conjecture with evidence, which would therefore assure the public that the circumstances have been examined with the rigor and completeness that the matter demands.

SEC. 9003. PURPOSE.

It is the purpose of this title to—

(1) establish an independent, bipartisan commission to examine the circumstances surrounding the assassination of Charlie Kirk;

(2) determine whether the investigation has been conducted with appropriate scope, rigor, and independence, including whether any agency or official improperly curtailed or narrowed the scope of inquiry;

(3) examine whether foreign financial influence on domestic political organizations and their leadership may have contributed to a climate of coercion or intimidation relevant to the assassination;

(4) review the integrity and completeness of forensic and documentary evidence in the case; and

(5) make recommendations to Congress regarding legislative reforms to protect against political violence and foreign financial coercion of domestic political leaders.

SEC. 9004. ESTABLISHMENT OF THE NATIONAL COMMISSION ON THE ASSASSINATION OF CHARLIE KIRK.

(a) Establishment.—There is established in the legislative branch the National Commission on the Assassination of Charlie Kirk (hereinafter in this title referred to as the "Commission").

(b) Composition.—

(1) The Commission shall be composed of 10 members, of whom—

(A) 1 member shall be appointed by the Chief Justice of the United States, who shall serve as Chairperson of the Commission;

(B) the members of the Commission shall elect a Vice Chairperson from among themselves by majority vote not later than 30 days after all members have been appointed;

(C) 2 members shall be appointed by the Speaker of the House of Representatives;

(D) 2 members shall be appointed by the minority leader of the House of Representatives;

(E) 2 members shall be appointed by the majority leader of the Senate;

(F) 2 members shall be appointed by the minority leader of the Senate; and

(G) 1 member shall be appointed by the President pro tempore of the Senate.

(2) Members shall be appointed not later than 60 days after the date of enactment of this title. Members shall be prominent United States citizens with national recognition and significant depth of experience in such fields as law enforcement, intelligence, forensic

science, nonprofit governance, campaign finance law, counterterrorism, or the administration of justice.

(3) No member of the Commission shall have been, at any time during the 5-year period preceding appointment, an officer, employee, contractor, or registered lobbyist of TPUSA or any of its affiliated entities, or a donor of record to any such entity.

(4) Any vacancy on the Commission shall not affect the powers of the Commission and shall be filled in the same manner in which the original appointment was made, not later than 30 days after the date on which the vacancy occurs.

(c) Quorum; Meetings.—Six members of the Commission shall constitute a quorum. The Commission shall meet not less frequently than once per month from the date on which all members have been appointed until the termination of the Commission under section 9008.

SEC. 9005. SCOPE OF INQUIRY.

(a) In General.—The Commission shall investigate and report on the following:

(1) Forensic and evidentiary integrity.—Whether the forensic evidence in the case, including ballistic analysis, DNA evidence, digital communications, and crime scene documentation, has been collected, preserved, analyzed, and disclosed in a manner consistent with best practices for capital murder investigations, and whether any material exculpatory or inculpatory evidence has been withheld, lost, or destroyed.

(2) Crime scene preservation.—The circumstances under which the physical crime scene at Utah Valley University was materially altered within days of the assassination, including the identity of the person or entity that authorized or performed such alteration and whether any law enforcement agency authorized, requested, or objected to such action.

(3) Scope of investigation.—Whether any Federal agency, including but not limited to the Federal Bureau of Investigation, the National Counterterrorism Center, or any component of the intelligence community, was directed or pressured to narrow, curtail, or cease any line of inquiry related to the assassination, including but not limited to any inquiry into potential foreign connections, and, if so, the identity and authority of any official who issued such direction.

(4) Foreign financial influence.—The nature, scope, and source of any financial pressure, inducement, or coercion directed at Kirk or TPUSA by domestic or foreign persons in connection with the organization's public positions on matters of foreign policy, including—

(A) the withdrawal or threatened withdrawal of donations or financial support;

(B) demands to alter organizational programming, staffing, or public positions as a condition of continued financial support;

(C) communications between Kirk or TPUSA leadership and any foreign head of state, government official, or agent thereof, during the 12-month period preceding the assassination;

(D) the role, if any, of donor-advised funds, dark money vehicles, or other intermediary mechanisms in obscuring the ultimate source of financial pressure; and

(E) the personal financial relationships, professional histories, and any institutional affiliations of individuals in organizational leadership and in the decedent's immediate household, to the extent relevant to determining whether any such individual served as a channel for, or was subject to, foreign financial influence or coercion directed at the decedent or the organization.

(5) Organizational finances.—The financial operations of TPUSA and its affiliated entities, including intercompany transfers, employee headcount changes, payroll anomalies, and the public availability of required informational returns, with particular attention to any transactions or restructuring occurring in the 12-month period preceding and the 6-month period following the assassination.

(6) Personal and professional associations.—Whether any individual who maintained significant personal or professional access to the decedent during the 24-month period preceding the assassination—including but not limited to family members, cohabitants, organizational officers, directors, senior employees, and persons involved in the decedent's security, travel, or scheduling—

(A) maintained, at any time, any affiliation with, employment by, or contractual or informal relationship with any component of the intelligence community (as defined in section 3 of the National Security Act of 1947 (50 U.S.C. 3003)), any foreign intelligence or security service, or any entity acting as an intermediary for such a component or service;

(B) received any payment, benefit, credential, or nonpublic information from any such component, service, or intermediary entity;

(C) had prior knowledge of any threat to the decedent's safety that was not communicated to the decedent or to law enforcement; or

(D) took any action, or failed to take any action, with respect to the decedent's security arrangements, public schedule, or physical positioning at the event of September 10, 2025, that materially affected the decedent's exposure to risk.

(7) Additional matters.—Any other circumstances or evidence that the Commission determines to be relevant to a full and complete understanding of the assassination and the adequacy of the investigation thereof.

(b) Limitation.—Nothing in this section shall be construed to authorize the Commission to interfere with, direct, or make findings as to the guilt or innocence of any person charged in connection with the assassination. The Commission shall take reasonable steps to avoid prejudicing any pending criminal proceeding.

SEC. 9006. POWERS OF THE COMMISSION.

(a) Hearings and Evidence.—The Commission may, for the purpose of carrying out this title, hold such hearings and sit and act at such times and places, take such testimony, receive such evidence, and administer such oaths as the Commission considers advisable.

(b) Subpoena Power.—

(1) The Commission may issue subpoenas requiring the attendance and testimony of witnesses and the production of any evidence, including books, records, correspondence, memoranda, documents, papers, and other material, relating to any matter under investigation by the Commission.

(2) Subpoenas shall be issued under the joint signature of the Chairperson and Vice Chairperson, or, in the event of disagreement, by a vote of not fewer than 6 members.

(3) In the case of contumacy or refusal to obey a subpoena, the United States District Court for the District of Columbia may issue an order requiring compliance.

(c) Access to Information.—

(1) The Commission may secure directly from any Federal department or agency such information as the Commission considers necessary to carry out this title. Upon request of the Chairperson or Vice Chairperson, the head of such department or agency shall furnish such information to the Commission, subject to applicable procedures for the handling of classified information.

(2) The Attorney General and the Director of the Federal Bureau of Investigation shall provide the Commission access to all investigative files, reports, forensic analyses, and communications related to the assassination and the investigation thereof, subject to a protective order issued by the Commission to prevent public disclosure of materials that could prejudice pending criminal proceedings.

(d) Security Clearances.—The appropriate Federal agencies shall cooperate with the Commission in expeditiously providing to the Commission members and staff appropriate security clearances in a manner consistent with existing procedures and requirements.

(e) Coordination With Pending Criminal Proceedings.—

(1) The Commission shall establish procedures, in consultation with the Attorney General and the lead prosecuting authority in any pending criminal case arising from the assassination, to ensure that the Commission's proceedings do not prejudice the right of any defendant to a fair trial under the Sixth Amendment to the Constitution.

(2) Such procedures shall include—

(A) advance notice to the lead prosecuting authority, not less than 30 days before any public hearing at which testimony or evidence related to the criminal case is expected to be presented;

(B) a mechanism by which the lead prosecuting authority may request, and the Commission shall consider in good faith, the deferral or closure of specific

proceedings or the redaction of specific materials, upon a showing that public disclosure would create a serious risk of prejudice to a pending trial;

(C) the authority of the Commission to conduct proceedings in closed session, or to place testimony and documentary evidence under seal, when necessary to protect the integrity of pending criminal proceedings; and

(D) a requirement that the Commission, in publishing its interim or final report, shall not disclose evidence or testimony that a court of competent jurisdiction has ordered sealed or excluded from public disclosure in connection with a pending criminal proceeding.

(3) Nothing in this subsection shall be construed to grant any prosecuting authority a veto over the Commission's proceedings, or to limit the Commission's authority to investigate and report on the matters described in section 9004.

SEC. 9007. STAFF, COMPENSATION, AND FUNDING.

(a) Director.—The Commission shall have a staff headed by an Executive Director appointed by a vote of the Commission.

(b) Staff.—The Commission may, without regard to the civil service laws and regulations, appoint and fix the compensation of such other personnel as may be necessary to enable the Commission to carry out its functions, including individuals with expertise in the following areas:

(1) not fewer than 2 investigators with experience in Federal criminal or counterterrorism investigations;

(2) not fewer than 1 forensic science consultant with expertise in ballistic analysis, crime scene reconstruction, or digital forensics;

(3) not fewer than 1 attorney with experience in Federal criminal law, national security law, or congressional investigations;

(4) not fewer than 1 analyst with experience in the financial operations of tax-exempt organizations or forensic accounting; and

(5) not fewer than 1 individual with experience in the intelligence community, including the analysis of foreign intelligence operations, covert financial influence, or clandestine relationships involving domestic persons.

(c) Compensation.—Members of the Commission shall each be entitled to receive compensation at the daily equivalent of the annual rate of basic pay in effect for positions at level IV of the Executive Schedule for each day during which the member is engaged in the performance of the duties of the Commission.

(d) Authorization of Appropriations.—There are authorized to be appropriated $5,000,000 for the Commission to carry out this title, to remain available until expended.

SEC. 9008. REPORT.

(a) Interim Report.—Not later than 180 days after the date on which all members of the Commission have been appointed, the Commission shall submit an interim report to the President and to Congress setting forth the Commission's preliminary findings and any urgent recommendations.

(b) Final Report.—Not later than 18 months after the date of enactment of this title, the Commission shall submit a final report to the President and to Congress containing—

(1) the Commission's findings with respect to the matters described in section 9004;

(2) any recommendations for legislative, regulatory, or administrative action to—

(A) strengthen the investigation of political assassinations and political violence, including standards for forensic evidence preservation and crime scene integrity;

(B) prevent foreign financial coercion of domestic political organizations and their leaders;

(C) ensure that counterterrorism and intelligence agencies are not improperly prevented from pursuing all reasonable lines of inquiry in cases of political violence; and

(3) any dissenting views of Commission members.

(c) Public Availability.—The final report, or a declassified version thereof, shall be made available to the public not later than 60 days after its submission to Congress.

SEC. 9009. TERMINATION.

The Commission shall terminate 90 days after the date on which the final report is submitted under section 9007(b).

SEC. 9010. SEVERABILITY.

If any provision of this title, or the application of such provision to any person or circumstance, is held to be unconstitutional, the remainder of this title, and the application of the provisions of this title to any person or circumstance not directly involved in the holding of unconstitutionality, shall not be affected.